

WIPO Collection of
Leading Judgments
on Intellectual
Property Rights
People's Republic of China
(2019–2023)

世界知识产权组织
知识产权典型案例集
中华人民共和国卷
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WIPO Collection of Leading Judgments on Intellectual Property Rights

People's Republic of China
(2019–2023)



Foreword

I am pleased to present this second edition in the *WIPO Collection of Leading Judgments on Intellectual Property Rights: China*, issued as a joint publication of the Supreme People's Court (SPC) of the People's Republic of China and the World Intellectual Property Organization (WIPO). It builds upon the close and fruitful cooperation established through the inaugural title in the series, *People's Republic of China (2011–2018)*, and assembles a selection of representative judgments rendered by the courts in China between 2019 and 2023, offering a comprehensive and authoritative overview of key doctrinal and jurisprudential developments during a period of significant evolution in China's intellectual property system.

WIPO's recent Global Innovation Index rankings and intellectual property statistics underline China's growing weight in the global innovation and intellectual property landscape, reflected in its steady rise into the top ranks of innovative economies and its leading position in worldwide IP filings. China now hosts a significant number of the world's foremost science and technology innovation clusters and records some of the highest volumes of patent, trademark and industrial design applications, signaling the breadth and depth of its innovation driven development. In parallel, this progress has been accompanied by far-reaching reforms to its IP court system, including the establishment and expansion of specialized IP courts and tribunals to handle increasingly complex disputes.

This publication reflects the deepening institutional partnership between WIPO and the SPC, grounded in successive frameworks for judicial exchanges and cooperation and in a shared commitment to strengthening the judicial protection of intellectual property rights in support of innovation, fair competition and sustainable socio-economic development. Over the past decade, this partnership has been expressed through a rich program of joint activities. WIPO and the SPC have co-organized international symposia and specialized training programs for judges, creating practical platforms for direct dialogue on complex, often cross-border IP issues. The inaugural WIPO Master Class on Intellectual Property Adjudication, held in Beijing in 2018 with the participation of judges from multiple jurisdictions, marked an important milestone in WIPO's work with the Chinese judiciary and helped frame subsequent exchanges on cutting edge topics. More recently, the International Judicial Symposium in Hangzhou, organized pursuant to a 2023 memorandum of understanding, further consolidated this collaboration and highlighted China's innovations in the judicial administration of IP disputes, including the development of specialized IP courts and tribunals. This second edition of the Collection builds on those joint efforts by distilling, in publication form, the jurisprudential insights that have emerged from China's experience.

WIPO's work with judges has expanded significantly with the establishment of the WIPO Judicial Institute in 2019, which coordinates global judicial engagement, including the annual WIPO IP Judges Forum, a growing program of capacity building and knowledge sharing resources and activities, and enhanced access to judicial decisions via WIPO Lex. Within this wider program of cooperation with judiciaries worldwide, the experience and perspectives of the SPC and other Chinese courts have been especially valuable, with their judges regularly contributing to these platforms and sharing insights on topics ranging from disputes in the digital environment to standard essential patents and cross-border enforcement.

It is hoped that this second edition of the WIPO Collection of Leading Judgments on Intellectual Property Rights: China, presented in both Chinese and English, will serve as a bridge for continued judicial exchange and mutual understanding. In doing so, it will assist judges, policymakers, practitioners, academics, and other stakeholders in engaging more closely with the evolving jurisprudence of one of the world's key IP jurisdictions, and reinforce the central role of judiciaries in upholding balanced and effective IP ecosystems.

Daren Tang

Director General

World Intellectual Property Organization (WIPO)

On World Intellectual Property Day - April 26, 2026

Preface

Toward the future: writing a new chapter in international cooperation on intellectual property protection

Innovation is the primary driving force for development and the wellspring of human progress. Protecting intellectual property means protecting innovation. China has always attached great importance to the protection of intellectual property rights and has steadily advanced its strategy of building an intellectual property powerhouse. In doing so, it has strengthened the legal safeguards for intellectual property and continuously improved the innovation and business environment. Courts in China have continued to deepen reform and innovation in intellectual property adjudication. A specialized adjudication system has been established, led by the intellectual property divisions of the Supreme People's Court, with four specialized intellectual property courts serving as models, 33 local intellectual property tribunals as the backbone, and intellectual property adjudication divisions at all levels of courts providing support. This system has advanced the integration of civil, criminal, and administrative adjudication of intellectual property cases through the "three-in-one" mechanism. Judicial rules concerning punitive damages, act preservation, and obstruction of evidence have been continuously refined. Between 2021 and 2025, over 2.5 million first-instance intellectual property cases were concluded. Through higher-quality and more efficient judicial protection, China has provided innovators with a stable, transparent, standardized, and predictable legal environment, and has increasingly become a preferred forum for international intellectual property litigation.

Persistent effort builds great achievements over time. Since the publication of the first volume of the WIPO Collection of Leading Judgments on Intellectual Property Rights: People's Republic of China (2011-2018) in 2019, cooperation between the Supreme People's Court of China and the World Intellectual Property Organization (WIPO) regarding judicial cases has continued to expand and deepen. In April 2023, Zhang Jun, Chief Justice and President of the Supreme People's Court of China, met with Mr. Daren Tang, Director General of WIPO, and the two sides renewed a Memorandum of Understanding on Strengthening Exchanges and Cooperation. The Supreme People's Court participated in the drafting of the China Chapter of WIPO's flagship publication, *An International Guide to Patent Case Management for Judges*. Ninety leading intellectual property judgments rendered by Chinese courts have been included in WIPO Lex. In 2025, an additional eight leading trade secret cases were recommended to WIPO. WIPO has actively supported China's efforts in judicial protection of intellectual property, and courts in China have made full use of their rich case resources to continuously contribute Chinese wisdom to the development of a more fair and equitable global intellectual property governance system.

At present, China is moving toward the goal of becoming an intellectual property powerhouse. With the rapid development of new technologies and industries, China has become the country handling the largest number of intellectual property cases in the world, and new types of cases related to data and artificial intelligence are growing rapidly. Courts in China are willing to exchange and share knowledge with countries around the world, to engage in dialogue and cooperation, and to jointly address the challenges posed to intellectual property legal systems by the accelerated breakthroughs of the new round of scientific and technological revolution and industrial transformation. Through renewed cooperation with WIPO in the publication of this case collection, we have carefully selected leading cases adjudicated by our courts in recent years across multiple fields, including civil, administrative, and criminal cases involving patents,

trademarks, copyrights, monopoly and unfair competition, trade secrets, new plant varieties, and integrated circuit layout designs. These cases fully demonstrate the development and improvement of China's judicial rules for the protection of intellectual property, demonstrating China's confidence and determination to strengthen intellectual property protection, and to foster a market-oriented, law-based, and internationalized first-class business environment. This collection represents another substantial outcome and a new starting point for cooperation between the two organizations.

Sustained commitment yields lasting results. We hope that the publication of this case collection will lay a more solid foundation for future cooperation between the two sides, inject stronger momentum into international cooperation on intellectual property protection, enable the benefits of innovation to be shared by more countries and peoples, and better serve the well-being of humankind.

The Honorable TAO Kaiyuan

Justice, Vice-President

Supreme People's Court of the People's Republic of China

On World Intellectual Property Day - April 26, 2026

Chapter I: Trademark cases

A. Request for administrative invalidation of the “Jiangxiaobai” trademark—Ownership under an agency/distribution relationship

B. Request for administrative invalidation of the “Kuihua Baodian” trademark—Distinctive titles/names in works as prior rights under the Trademark Law

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D. “MOTR” trademark infringement—Conditions for applying punitive damages and determination of the basis for damages calculation

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H. “Huarun” trademark infringement and unfair competition—Determination of similar services and the use of a person’s name as a trademark

I. “Siemens” trademark infringement and unfair competition—Infringement of business identifiers and calculation of damages

A. Request for administrative invalidation of the “Jiangxiaobai” trademark—Ownership under an agency/distribution relationship

Parties

Chongqing Liquor Industry Company A v. China National Intellectual Property Administration (CNIPA) and Chongqing Liquor (Group) Company B

Case number

(2019) 最高法行再 224 号 | 2019-SPC-Adm-SR-224

Panel

Qin Yuanming | Lang Guimei | Ma Xiurong

Keywords

administrative; trademark invalidation; agency/distribution relationship; principal's trademark

Relevant legal provision

– Trademark Law, Article 15

Facts

In the administrative dispute over a request to invalidate the “Jiangxiaobai (江小白)” trademark (No. 10325554), the trademark in dispute was filed by a certain Chengdu Advertising Company on December 19, 2011, for goods in Class 33 (alcoholic beverages; International Classification of Goods and Services for the Purposes of the Registration of Marks (hereinafter, “Nice Classification”). The registration was later assigned to Xin Trade, and subsequently to Company A.

On February 20, 2012, a certain Jiangjin Company (including Company B and affiliates) and Xin Trade (including affiliates) executed a sales contract and a customized product sales contract. The customized product sales contract expressly authorized Xin Trade to distribute certain customized products under the “Jijiang” brand series; it did not involve the “江小白” trademark. Article 1 provided: “Party A [Company B] authorizes Party B [Xin Trade] as distributor for customized products including Jiangjin Laobaigan under the ‘Jijiang’ brand, the ‘Qingxiang’ Series Nos. 1, 2, and 3, the ‘Super Pure’ Series, and the Aged Vintage Series.” Article 6.2 further provided: “Party B is responsible for the creative development of product concepts, packaging design, planning and execution of advertising and promotional campaigns, and recruitment and maintenance of secondary distribution channels, and Party A shall provide full cooperation to Party B. Party A shall respect Party B’s product concepts, packaging designs, advertising graphics, advertising expressions, and marketing plans, and may not use any of them on products sold directly by Party A or by other clients of Party A without Party B’s authorization.”

In May 2016, Company B petitioned the former Trademark Review and Adjudication Board (TRAB) to invalidate the disputed trademark. TRAB found that, prior to the filing date, Company A should have been aware of Company B’s “江小白” trademark, and that the registration violated Article 15 of the Trademark Law (2001), which stipulates the circumstances under which registration and use of a trademark are prohibited. TRAB therefore issued Ruling [2016] TRAB No. 117088 (the “contested ruling”), declaring the trademark invalid.

Company A brought an administrative action before the Beijing Intellectual Property Court (BIPC), seeking annulment of the contested ruling and a new decision by TRAB. The court of first instance ruled: (1) to annul the contested ruling; and (2) to require TRAB to re-adjudicate the invalidation request for “江小白” No. 10325554. TRAB and Company B appealed to the Beijing High People’s Court, which ruled: (1) to revoke the first-instance judgment; and (2) to dismiss Company A’s claims. Company A then petitioned the Supreme People’s Court (SPC) for supervisory review (SR). The SPC ordered reopening and, on December 26, 2019, rendered this administrative judgment (SR-224): (1) revoking the second-instance judgment; and (2) upholding the first-instance judgment.

Holding

By executing both a sales contract and a customized product sales contract, the parties established a distribution relationship and an entrusted processing relationship. As regards products made and sold under entrustment bearing the disputed trademark, the alleged principal had no prior use. The sign, product design, and related concepts originated on the agent's side, and the customized product sales contract expressly prohibited the principal from using those concepts or advertising expressions without the agent's consent. In these circumstances, the disputed trademark could not be characterized as the principal's trademark under Article 15 of the Trademark Law.

Reasoning

The core issue is whether the application for the disputed trademark violated Article 15 of the Trademark Law, which provides: "Where an agent or representative, without authorization, registers in its own name the trademark of the principal or the represented party, and the principal or represented party raises an objection, the trademark shall not be registered and its use shall be prohibited." The prohibition covers not only identical but also similar marks, and extends to identical or similar goods. Company B argued that Xin Trade was its distributor, that Xin Trade designed the disputed mark on its behalf, and that Company B had prior use of the trademark, such that Xin Trade's filing of the trademark violated Article 15 of the Trademark Law.

This Court held as follows:

First, Company B failed to provide sufficient evidence to prove prior use of the disputed trademark. Most evidence post-dated the filing date of the trademark. Pre-filing materials included a sales contract with Sen Wine Sales, a delivery order, and an audit report. The Sen Wine Sales contract had been submitted at the trademark opposition stage but was rejected by TRAB for lack of the counterparty's seal and supporting invoices. Although Company B later submitted a sealed contract, the execution date predated Sen Wine Sales' incorporation according to Company records, and Company B admitted the date was back-dated. A handwriting appraisal by Beijing Shengtang Judicial Authentication Institute, submitted by Company A at reopening, cast doubt on the preparer's handwriting on the delivery order from Company B to Sen Wine Sales, and no invoices or corroborating documents were provided. These materials did not establish prior use. Company B also submitted, after the first-instance hearing, an audit report; absent original accounting vouchers, a later audit report commissioned by Company B that merely referenced "江小白" liquor could not prove use before the filing date. In addition, a February 15, 2012 purchase contract with Chongqing Bao Glass Products Company for "I am Jiangxiaobai" bottles in the amount of RMB 690,000—far exceeding the sales and gross profit recorded in the audit report—further undermined the report's reliability.

Second, although a distribution relationship existed, the customized product sales contract vested rights in product concepts, advertising expressions, and related materials in Xin Trade. Throughout the invalidation, first-instance, and second-instance proceedings, Company B relied primarily on the February 20, 2012 contract to establish its distribution relationship with Xin Trade. The customized product sales contract authorized Xin Trade to sell certain customized products under the "Jijiang" brand and did not involve the "江小白" trademark. It required Company B to respect Xin Trade's product concepts, packaging designs, advertising graphics, advertising expressions, and marketing plans, and prohibited Company B and its other clients from using them without Xin Trade's authorization. Accordingly, beyond "Jijiang," Company B did not own IP rights in Xin Trade's customized product concepts and advertising expressions, indicating that Xin Trade's application for "江小白" did not prejudice Company B's rights. The evidence was insufficient to establish that the disputed mark was Company B's trademark and therefore insufficient to support a violation of Article 15 of the Trademark Law.

Finally, correspondence and emails exchanged during the cooperation showed that the name "江小白" and related product designs were first proposed by Mr. Tao, then Xin Trade's legal representative. Evidence submitted by Company A demonstrated that "江小白" and its related designs originated on Mr. Tao's side and were provided to Company B. Under the customized product sales contract, rights in product concepts and designs belonged to Xin Trade. There

was insufficient evidence to prove that Xin Trade designed the trademark on commission for Company B.

In sum, before the filing date, “江小白” was not Company B’s trademark. Under the customized product sales contract, Company B did not enjoy IP rights in product concepts, advertising expressions, and other related elements beyond its registered “Jijiang” mark. Xin Trade’s application to register the disputed mark did not harm Company B’s lawful rights and interests and did not violate Article 15 of the Trademark Law.

B. Request for administrative invalidation of the “Kuihua Baodian” trademark—Distinctive titles/names in works as prior rights under the Trademark Law

Parties

Shanghai Y. Network Company v. China National Intellectual Property Administration (CNIPA), with W. Holding Group Company as third party

Case number

(2021) 最高法行再 254 号 | 2021-SPC-Adm-SR-254

Panel

Zhang Zhihong | Bai Yali | Xu Changhai

Keywords

administrative; trademark invalidation; prior rights; distinctive title/name in a work

Relevant legal provisions

- Trademark Law, Article 32 (Amended in 2001), Article 31
- SPC Provisions on Several Issues Concerning the Trial of Administrative Cases Involving Trademark Authorization and Confirmation, Article 22

Facts

The disputed trademark “Kuihua Baodian (葵花宝典)” (No. 10572048) was filed by Shanghai Y. Network Company (Y. Network) on March 5, 2012, and approved for registration on June 7, 2013, for services in Class 41, including “providing online games via computer networks” (Nice Classification). W. Holding Group Company (W. Holding) petitioned the former Trademark Review and Adjudication Board (TRAB) for invalidation. TRAB held that the registration harmed the merchandising rights in the distinctive name of a martial arts manual featured in Jin’s novel *The Smiling, Proud Wanderer* (笑傲江湖), thereby violating the rule that a trademark application may not harm others’ existing prior rights, and declared the mark invalid ([2017] TRAB No. 17732).

Y. Network brought an administrative action before the Beijing Intellectual Property Court (BIPC), which annulled the TRAB ruling and remanded the matter for a new decision. On appeal by both TRAB and W. Holding, the Beijing High People’s Court affirmed the first-instance judgment. W. Holding and CNIPA (which assumed TRAB’s functions following institutional reform) then petitioned for supervisory review. On December 17, 2021, the Supreme People’s Court rendered this judgment, revoking the first- and second-instance judgments, and dismissing Y. Network’s claims.

Holding

Where a work remains within the copyright term and a distinctive title/name used in the work has attained high public recognition, use of that title/name as a trademark on related goods/services is likely to cause confusion as to authorization or association. Such title/name may constitute a prior right protected under the Trademark Law. The disputed registration violated the “no harm to prior rights” rule and was properly invalidated.

Reasoning

A work title or an in-work designation (e.g., character name, the name of a manual) is protectable as a prior right under the Trademark Law if: (i) the work remains within the copyright term; (ii) the title or name enjoys substantial public recognition; and (iii) use as a trademark on related goods or services presents a significant likelihood of public confusion.

Applying these criteria, the Court held as follows:

Copyright term and recognition. The *Smiling, Proud Wanderer* is a martial arts novel completed by Jin in 1969 and remains within the copyright term. Evidence showed first publication in October 1984, multiple reprints by several publishers, and extensive adaptations (seven television series and four films). “葵花宝典” the name of a martial arts manual central to the plot, evolved through the author’s creative effort from the ordinary words “sunflower” (葵花) and “treasured canon” (宝典) into a distinctive designation with clear referential meaning. A stable association formed between “葵花宝典” the novel, and the author. Before the filing date of the disputed trademark, the novel, its identically titled adaptations, the “葵花宝典” designation, and the author were widely known to the public.

Relatedness and likelihood of confusion. The disputed sign, a word mark identical to “葵花宝典” was approved for Class 41 services including “providing online games via computer networks; entertainment; toy rental.” Evidence showed that, as early as December 2008—before the filing date of the trademark—Jin authorized an affiliate of W. Holding to distribute and sell a *Smiling, Proud Wanderer* game. After July 2013, Jin and Ming Press Company, as licensors, granted an affiliate of W. Holding the game adaptation right to the novel, including the right to apply for trademarks using the work’s title, character names, and the names of techniques and weapons. These facts indicate that the designated services (online games; entertainment) fall within the ordinary derivative services for martial arts literary works. Use of the identical designation on those services is likely to lead the relevant public to infer authorization or association with the author.

Applicant’s bad faith. In addition to the disputed filing, Y. Network registered multiple “笑傲江湖/*Smiling, Proud Wanderer*” related marks. As an online game operator, it knew or should have known of the widespread recognition of the novel and “葵花宝典” yet it proceeded to file an application for the disputed trademark, evidencing an intent to free ride on the rightholder’s commercial opportunities and market position.

On this record, the registration harmed the author’s prior rights in the distinctive in-work designation and violated the “no harm to prior rights” rule under the Trademark Law. TRAB properly weighed the reputation of “葵花宝典” the relatedness of the designated services to typical derivatives of the well-known martial arts novel, and the applicant’s bad faith, and strictly curbed the intentional appropriation of the author’s commercial value and trading opportunities in the distinctive in-work name. The invalidation was well founded in fact and law.

C. Request for administrative invalidation of the “Blahnik” trademark—Determining when a registration harms a foreign natural person’s right to name

Parties

Manolo Blahnik v. China National Intellectual Property Administration (CNIPA), with Fang as third party

Case number

(2021) 最高法行再 75 号 | 2021-SPC-Adm-SR-75

Panel

Mao Lihua | Jiang Jianzhong | Li Rong

Keywords

administrative; trademark invalidation; foreign natural person; right to name; reputation

Relevant legal provisions

– Trademark Law (Amended in 2001), Article 31

Facts

Fang owned trademark No. 1387094, “Blahnik (马诺罗·贝丽嘉 MANOLO & BLAHNIK)” (the “disputed trademark”), registered in Nice Classification Class 25 for goods including shoes. Manolo Blahnik petitioned the former Trademark Review and Adjudication Board (TRAB) of the State Administration for Industry and Commerce to invalidate the disputed trademark, arguing that it infringed his right to name, among other rights. TRAB issued Ruling [2015] TRAB No. 62227 (the “contested ruling”), finding no infringement of Manolo Blahnik’s right to name and upholding the registration.

Manolo Blahnik brought an administrative action before the Beijing Intellectual Property Court (BIPC), which dismissed his claims. He appealed, and the appellate court dismissed the appeal. He then petitioned the Supreme People’s Court (SPC) for supervisory review. The SPC granted review and, on June 24, 2022, rendered this administrative judgment, which: (1) revoked the first- and second-instance judgments and the contested ruling; and (2) ordered CNIPA to issue a new ruling.

Holding

When a foreign natural person who is a well-known designer uses and promotes his personal name as a product brand, and that name had achieved a certain reputation among relevant consumers in the mainland of China before the filing date, registration of a trademark that fully incorporates that name on identical or similar goods is likely to lead consumers to believe the trademark refers to that person or is licensed by or otherwise connected with him. Such registration infringes the individual’s right to name.

Reasoning

“Manolo Blahnik” is a Spanish personal name (given name plus surname), not a fixed phrase, and that Manolo Blahnik is a world-renowned shoe designer. The disputed trademark fully incorporates the name “MANOLO BLAHNIK,” and Fang offered no reasonable explanation for its origin, making coincidence unlikely.

Evidence showed that since 1970 Manolo Blahnik has been engaged in the production of footwear and has used and promoted his name as an eponymous brand. Between 1987 and 2001 he received multiple industry awards in the United States, the United Kingdom, and Spain. Domestic editions of ELLE magazine from 1994 to 1999 frequently reported on “Manolo Blahnik” or on shoes designed by him. In Hong Kong, more than 50 journal and newspaper

pieces between 1993 and 1999 covered his achievements and the opening of Manolo Blahnik's third global boutique. These facts demonstrate that, before the date of filing of the disputed trademark, his name had attained a certain reputation among relevant consumers in the mainland of China—particularly in fashion circles—and that the reputation established abroad and in Hong Kong would to some extent have radiated into the mainland.

Given that Fang and related entities had long operated in the footwear industry, they should have been aware of Manolo Blahnik and his eponymous brand. The foreign-language portion of the disputed trademark is identical to his name and is likely to lead consumers to believe that the mark refers to Manolo Blahnik or that goods bearing it are licensed by or otherwise associated with him. Therefore, registration of the disputed trademark infringed Manolo Blahnik's right to name.

D. “MOTR” trademark infringement—Conditions for applying punitive damages and determination of the basis for damages calculation

Parties

P. Body Company v. A certain Sports Equipment Company

Case number

(2018)沪 0115 民初 53351 号 | 2018-SH-0115-Civ-1st-53351

Panel

Gong Xiaoyan | Jiang Guangrui | Shao Xun

Keywords

civil; trademark infringement; punitive damages; damages basis; obstruction of evidence

Relevant legal provisions

- Tort Liability Law: Article 15(1)(i), (vi), and Article 15(2)
- Trademark Law (Amended in 2013), Article 57(1), Article 63(1)–(2)
- SPC Interpretation Concerning the Application of Law in the Trial of Civil Dispute Cases Involving Trademarks, Articles 14 and 17

Facts

The plaintiff alleged it is the world’s first Pilates Company and the largest global provider of Pilates equipment and education, and that it owns registrations for the “MOTR” mark in multiple Nice Classification classes in China. Its MOTR fitness equipment is widely sold in China and frequently reported in the media, giving the mark high recognition. The plaintiff discovered that the defendant sold fitness equipment bearing the “MOTR” mark at the 2018 IWF Shanghai International Fitness Expo, and also promoted the products via a WeChat store and on-site factory sales. The defendant had previously signed a 2012 settlement agreement with the plaintiff concerning IP infringement. The plaintiff claimed trademark infringement, argued the defendant’s conduct constituted repeat infringement warranting punitive damages, and sought an injunction and RMB 3 million in damages (economic losses plus reasonable expenses), calculated at three times the defendant’s profits from infringement.

The defendant argued that it had not infringed the plaintiff’s trademark and was not liable. It claimed “MOTR” is a generic name for the Pilates roller, that the mark is an acronym for “movement on the roller” describing function and use and thus lacks distinctiveness, that the plaintiff had not used the mark in China for profit, that the mark could not be uniquely associated with the plaintiff, and that the defendant’s operations were small with no large-scale production or sales.

The Court found that the plaintiff, incorporated in California in August 1993, manufactures sports equipment and promotes fitness courses. It owns the “MOTR” registration in Class 28 for “body-building apparatus; gymnastic equipment; manually operated exercise equipment; elastic bands for yoga and fitness,” valid from October 14, 2016 to October 13, 2026. The plaintiff attended the 2006 Beijing International Fitness Conference; information about MOTR equipment and programs frequently appeared on WeChat, Sohu, the Changjiang Times, and the New Express.

The defendant, established in 2007 as a wholly foreign-owned company, manufactures sports equipment and accessories, with total 2016 sales of RMB 8,333,539.53.

On November 11, 2017, the plaintiff’s agent purchased three Pilates rollers at the defendant’s factory (RMB 1,428 each), obtaining a receipt, business cards, and product manuals. The rollers’ handles, the stretch bands’ connectors, the manual cover, and training videos bore the “MOTR” mark; the videos also displayed the plaintiff’s name. On December 29, 2017, a notarized capture

of the defendant's WeChat store showed a popular product "Motr Mobile Pilates Bed," priced at RMB 1,680 with a usage video. From October 6 to December 9, 2017, the defendant's customer service account repeatedly promoted MOTR-branded Pilates rollers on WeChat Moments, claiming that the first batch of 1,000 units had sold out and the second batch of 500 was nearly sold out, and sharing a customer feedback screenshot from Xiamen. On December 7, the account posted an apology for adhesive failure in the first batch. On March 15, 2018, at the IWF Shanghai expo, the defendant displayed a gray-barrel, grass-green-top Pilates roller with "MOTR" mark on the handle and other parts.

In September 2018, third parties Zhejiang Yang Industrial & Trade Company and Zhejiang Ying Industrial & Trade Company were sued for producing and selling Pilates rollers bearing the "MOTR" mark. In that case, they submitted lists, delivery notes, and outbound slips showing that the cost of components used to assemble the rollers (foam, mainsprings, plastic parts) totaled RMB 675.30 per unit.

On July 13, 2011, the plaintiff's Spanish counsel sent an infringement warning letter to the defendant's shareholder Company concerning fitness equipment manufactured by the defendant and imported/sold in Spain, infringing the plaintiff's EU trademark "STUDIO REFORMER." After negotiations, in February 2012, the defendant and its shareholder Company signed a settlement agreement with the plaintiff, promising to cease any acts that might infringe or hinder the plaintiff's IP rights.

The plaintiff sought damages based on the defendant's profits: $\text{Profits} = \text{Sales volume} \times (\text{Unit price} - \text{Unit cost})$. It cited the defendant's WeChat claim of 1,500 units sold, a unit price of RMB 1,680 (WeChat) or RMB 1,428 (offline), and unit cost of RMB 675.30 based on the third parties' component costs. The defendant disputed the formula and amounts. The court ordered the defendant to produce sales data, financial accounts, and original vouchers; the defendant refused. Relying on the plaintiff's evidence, the court estimated profits of at least RMB 1,017,000–1,395,000. Given the defendant's clear bad faith and the seriousness of the infringement, the court applied treble punitive damages.

On September 6, 2019, the Court rendered the following judgment: the defendant shall immediately cease infringing the plaintiff's registered trademark; within ten days it shall pay the plaintiff RMB 3 million for economic losses and reasonable enforcement expenses. No appeal was filed; the judgment is effective.

Holding

1. A party that has previously been warned for allegedly infringing a foreign-registered trademark and has signed a settlement undertaking to cease infringement, but subsequently sells in China products infringing the same party's registered trademark through multiple online and offline channels, while also exhibiting product quality issues, satisfies the "willfulness" and "serious circumstances" requirements for the award of punitive damages.
2. A party's refusal to comply with evidence-production obligations constitutes obstruction of evidence. The court may rely on the defendant's WeChat promotional content to establish sales volume; absent rebuttal evidence, the plaintiff's claims should be upheld. Unit profit may be reasonably determined with reference to similar products and the defendant's admissions.

Reasoning

The Court identified two issues: (i) whether the disputed conduct infringed the plaintiff's exclusive right to the registered trademark; and (ii) the civil liability and damages amount.

On issue (i): The defendant used the identical "MOTR" mark on identical goods to those covered by the plaintiff's registration, thereby infringing the plaintiff's exclusive right. The claim that "MOTR" is generic was unsupported by evidence. "MOTR" is a coined term with strong inherent distinctiveness; through continuous use and extensive promotion by the plaintiff and its partners, it had acquired a unique association with the plaintiff. The defense was rejected.

On issue (ii): Having infringed, the defendant must bear civil liability. The court granted injunctive relief. The plaintiff's notarization, travel, and printing expenses—reasonably incurred to stop the infringement—were fully supported by receipts and notarizations and were awarded in full.

As to economic losses: The court, applying the preponderance standard and Article 14 of the SPC 2002 Trademark Interpretation, accepted the plaintiff's profit-based formula and, given the defendant's refusal to produce sales data, determined specific parameter values from the proven facts to calculate infringer's profits.

As to punitive damages: Under Article 63(1) of the Trademark Law ("for willful infringement of the exclusive right to a trademark, where the circumstances are serious, damages may be determined at one to three times the amount calculated by the above methods"), the plaintiff's request was supported. Reasons: (1) the defendant's mark was identical and applied to identical products, with nearly identical style, color, and mark placement—wholesale imitation evidencing intent to infringe and free-ride on goodwill; (2) despite a 2011 warning and a 2012 settlement promising not to infringe, the defendant repeated infringement, violating good faith and showing severe bad faith; (3) the defendant's 2016 sales exceeded RMB 8 million, and its infringing products were promoted and sold via multiple channels (WeChat store, Moments, factory, expo) to multiple regions, evidencing scale and impact; (4) the infringing products had quality issues (adhesive failure), risking consumer confusion and harm to the plaintiff's reputation.

Accordingly, the defendant's willfulness and the seriousness of the circumstances warranted treble punitive damages. The trebled amount exceeded RMB 3 million; since the plaintiff sought RMB 3 million including reasonable expenses, the court awarded the full amount.

E. “AOPU” trademark infringement—Judicial determination on prohibiting the use of a registered trademark

Parties

Hangzhou M. Technology Company *et al.* v. Zhejiang F. Building Materials Company *et al.*

Case number

(2019) 浙民终 22 号 | 2019-ZJ-Civ-Fin-22

Panel

Liu Jianzhong | He Qiong | Chen Yu

Keywords

civil; trademark infringement; well-known trademark; prohibition on use of registered trademark

Relevant legal provisions

- Trademark Law, Article 13(3), Article 14, Article 63(1)
- SPC Interpretation on Several Issues Concerning the Application of Law in the Trial of Civil Dispute Cases Involving the Protection of Well-known Trademarks, Articles 2, 5, 7, and 11

Facts

The plaintiffs, M. Technology and A. Furnishing, are the owners and exclusive licensees of “AOPU (奥普)” registered trademark No. 730979 and “AOPU (奥普)” registered trademark No. 1187759. Through years of use and promotion, the marks attained high recognition and were recognized as well-known by administrative and judicial authorities.

X. Company acquired registered trademark No. 1737521 in Class 6 (metal building materials; Nice Classification) and later became a co-owner of the mark together with J. Company. X. Company licensed others to use it and, when selling integrated ceiling products, used signs

including “AOPU 奥普” “ “奥普 AOPU 吊顶” “ 金属建材” which were similar to the plaintiffs’s marks, causing consumer confusion and diluting the distinctiveness of the well-known “奥普” marks. F. Company, licensed by X. Company to use No. 1737521, used similar signs on integrated ceiling products. X. Company and J. Company, as co-owners of No. 1737521, failed to supervise licensees, allowing F. Company’s infringing conduct. Mr. Sheng, legal representative of X. and J., knowing the “奥普” marks were well-known, nevertheless changed the name of Yunnan M. New Materials Technology Company to Yunnan A. Company (later renamed J. Company), thereby incorporating an element of the disputed sign into the Company name, causing confusion and incurring joint liability. F. Company also used the name “Aopu Building Materials” in equity transactions on the SME stock quotation system of the Shanghai Exchange.

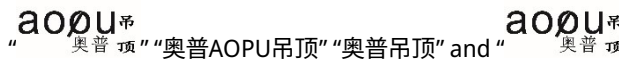
The plaintiffs further alleged that the registered trademark No. 1737521 was obtained by the assignor (the party who assigned it to X. and J. Company) through fraud and thus could not be validly acquired by the defendants (X. and J. Company) through this assignment. They claimed that use of the disputed signs on ceiling panels, packaging, store signage, office buildings, magazine ads, official and other websites, and WeChat public accounts constituted trademark infringement and unfair competition; that J. Company’s registration and use of “奥普” as a trade name constituted unfair competition; and that F. Company’s use of “Aopu Building Materials” in the SME stock quotation system likewise constituted unfair competition. They sought: (i) recognition of Nos. 730979 and 1187759 as well-known; (ii) injunctions against infringement and unfair competition; (iii) a ruling that X. and J. did not acquire the exclusive right to No. 1737521 and that all four defendants be prohibited from using it; (iv) an order that F. cease using “Aopu Building Materials” in equity trading; (v) an order that J. cease using “奥普” in its trade name; (vi) apologies/clarifications in newspapers; and (vii) joint damages of RMB 20 million.

The defendants argued: the disputed goods (integrated ceilings, panels) were not identical or similar to the Class 11 goods covered by the plaintiffs' registrations; the disputed signs were not identical or similar and would not cause confusion; No. 1187759 was not well-known after 2012; they acted lawfully and without bad faith; the use of "Aopu Building Materials" in equity trading and the use of "奥普" in a Company name were legitimate; Mr. Sheng (one of the respondents) should not bear joint liability; and no civil liabilities (damages, apologies) should attach.

The High People's Court noted: M. and A. companies are respectively the owner and exclusive licensee of No. 730979 ("奥普") (approved Feb. 21, 1995; goods Class 11: lighting apparatus, heaters, exhaust fans, etc.) and No. 1187759 ("奥普") (approved Jun. 28, 1998; Class 11: steam shower devices, bath heaters, etc.). These marks had been recognized as well-known; in first instance, defendants admitted both marks were well-known before 2012. After 2012, the "奥普" brand maintained steady growth and was continuously promoted, and was repeatedly recognized as a famous brand.

X. and J. acquired No. 1737521 (approved Mar. 28, 2002; goods Class 6: metal building materials, etc.) by assignment; since 2009 X. licensed F. and others to use it. M. applied to invalidate No. 1737521; after decisions by the former TRAB, the Beijing Intellectual Property Court, the Beijing High People's Court, and the Supreme People's Court, the mark was ultimately declared invalid during the second-instance proceedings of this case.

Notarized preservation showed the four defendants used signs including "AOPU 奥普"

 "奥普" and "奥普吊" on ceiling panels, packaging, store signage, office buildings, magazine ads, official websites, other websites, and WeChat official accounts. In October 2012, Yunnan M. New Materials Technology Company even changed its name to Yunnan A. Company (later "J. Company"). Since 2014, F. used "Aopu Building Materials" in SME stock quotation system on the Shanghai Exchange.

The Hangzhou Intermediate People's Court ordered: F., X., and J. are prohibited from using registered trademark No. 1737521 and must immediately cease infringing the plaintiffs' exclusive rights in Nos. 730979 and 1187759; they shall publish statements in China Consumer News and China Administration for Industry and Commerce News to eliminate adverse impact arising from trademark infringement and unfair competition; and they shall be jointly and severally liable to pay M. and A. RMB 8 million (including reasonable enforcement expenses). Other claims were dismissed. On appeal by all parties except Mr. Sheng, the Zhejiang High People's Court, on June 18, 2019, rendered this civil judgment, dismissing the appeals.

Holding

Disputes between two ordinary registered trademarks are generally outside the courts' purview; however, where the plaintiff's mark is well-known, the court has authority to adjudicate. If the defendant's registered trademark violates the Trademark Law by copying or imitating the plaintiff's well-known mark and thereby constitutes infringement, the court shall, upon the plaintiff's request, order the defendant to cease using its registered trademark and bear corresponding civil liabilities.

Reasoning

Under the Trademark Law and the SPC Interpretation on Well-Known Trademarks, courts may adjudicate disputes between a well-known trademark and an ordinary registered mark. The "奥普" marks were repeatedly recognized as well-known before 2012; evidence from 2012–2015 (production/sales, advertising, honors) showed continued use and promotion thereafter, consolidating market position and reputation and achieving widespread recognition and high repute among relevant consumers. Therefore, during the alleged infringement period, Nos. 730979 and 1187759 used on Class 11 goods (e.g., steam shower devices, bath heaters) should be recognized as well-known.

The defendants used the accused signs on closely related metal ceiling goods, likely creating a strong association with the "奥普" well-known marks, thereby diluting distinctiveness and improperly exploiting the marks' reputation to the plaintiffs' detriment—constituting infringement. The original applicant for No. 1737521, despite knowing the "奥普" marks' high

reputation on bath heaters and hot-air shower devices, applied in bad faith for a highly similar mark in Class 6 (closely related metal building materials), copying/imitating the plaintiffs' well-known marks. The defendants' subsequent acquisition and use were likewise in bad faith. Having found infringement, the court, consistent with the plaintiffs' claims, properly ordered the defendants to cease using registered trademark No. 1737521 and to bear corresponding civil liabilities.

F. “Shuangfeiren” trademark infringement and unfair competition— Bad faith registrant has no right to prohibit a prior user from continuing use within the original scope

Parties

Medicine Company A v. Guangzhou Business Consulting Company B *et al.*

Case number

(2020) 最高法民再 23 号 | 2020-SPC-Civ-SR-23

Panel

Qin Yuanming | Ma Xiurong | Zhou Bo

Keywords

civil; bad faith registration; prior user; original scope of use; good faith

Relevant legal provisions

- Trademark Law (Amended in 2013), Article 59(3)

Facts

A French pharmaceutical Company (“French Pharmaceutical”) had advertised “Shuangfeiren Peppermint Liquid” (双飞人药水) in newspapers in parts of China mainland since the 1990s and owned the registered word mark “Lijia (利佳)”, No. 644451X, in Nice Classification goods Class 3. On May 2, 2013, the State Food and Drug Administration issued an import registration certificate for “Lijia” mint water as non-special use cosmetics, listing Company B as the entity responsible for registration filing in China. On July 16, 2014, CNIPA granted Design Patent No. 288843X for the “Lijia” mint water packaging. On January 28, 2015, French Pharmaceutical appointed Company B as exclusive agent in China for advertising, promotion, distribution, and sale of “Lijia” cosmetics, effective January 1, 2014.

Company A, established on April 18, 2008, produces and sells liniments and skincare cosmetics. It owns three dimensional trademarks “Shuangfeiren” (双飞人), Nos. 755957X and 755958X, used on its Class 3 “Shuangfeiren Peppermint Aqua” (双飞人爽水) products. Company A sued, alleging the “Lijia” mint water packaging infringed its 3D marks and constituted unfair competition, seeking an injunction and RMB 3 million in damages against Company B *et al.*

The Yichun Intermediate People’s Court (Jiangxi) and the Jiangxi High People’s Court both found infringement and unfair competition; the first instance court awarded RMB 3 million, and the second instance court affirmed the decision. On supervisory review, the Supreme People’s Court (SPC) held that the evidence established French Pharmaceutical’s prior use, with certain influence, of the “blue, white and red” packaging for “Shuangfeiren Peppermint Liquid.” Company A, despite knowing of that market presence, maliciously applied to register similar marks (Nos. 755957X and 755958X) and enforced them—conduct not justified in good faith. The SPC sustained Company B’s prior use defense. On March 16, 2021, the SPC rendered this civil judgment, vacating the lower courts’ judgments and dismissing Company A’s claims.

Holding

Where a defendant’s product has been previously advertised and has attained a certain influence, and the plaintiff, despite knowing of the product’s market presence, maliciously registers a similar trademark and sues for infringement, the alleged infringement falls under Article 59(3) of the Trademark Law: the registrant has no right to prohibit the prior user from continuing use within the original scope.

Article 59(3) of the 2014 Trademark Law provides that: “Before the application date, if another person has already used an identical or similar mark on the same or similar goods and the mark has attained a certain influence, the owner of the registered mark has no right to prohibit that user from continuing to use the mark within the original scope, though the owner may require the addition of appropriate distinguishing signs.”

In this case, a nonparty, a Medical Corp., violated Article 39 of the Drug Administration Law by selling “Shuangfeiren Peppermint Liquid” without the required filing and registration and was administratively penalized. Under Article 48(2) of that Law, such drugs are treated as counterfeit if produced or imported without required approval. The second-instance court therefore correctly held that Medical Corp’s sales did not constitute lawful prior conduct capable of creating prior rights.

By contrast, Company B’s evidence showed French Pharmaceutical advertised “Shuangfeiren Peppermint Liquid” in newspapers since the 1990s, over a sustained period and with broad coverage of mainland China, achieving certain influence in South China. Thus, French Pharmaceutical had prior use, with certain influence, of the “blue, white and red” packaging. Moreover, before “Shuangfeiren Peppermint Aqua” was launched, an affiliate of Company A cited the “Shuangfeiren” packaging as prior design evidence to invalidate a similar design patent, and succeeded. Company A also promoted “Shuangfeiren Peppermint Aqua” in a way that actively courted confusion with “Shuangfeiren Peppermint Liquid,” evidencing awareness of the latter’s reputation.

Market operators must act in good faith and observe accepted business ethics. Despite knowing of “Shuangfeiren Peppermint Liquid” in the market, Company A applied, in bad faith, to register Nos. 755957X and 755958X—similar to that packaging—and enforced those rights. Its conduct was unjustifiable. Accordingly, Company B’s accused acts fall within Article 59(3): the registrant has no right to prohibit the prior user’s continued use within the original scope. The prior use defense is sustained; the second-instance judgment erred in both facts and law and was corrected by the SPC.

G. “Hualian” trademark infringement and unfair competition— Determining the original scope of use under the prior use defense

Parties

HL Company v. Feicheng HL Company and Feicheng HL Company Store

Case number

(2021) 最高法民再 3 号 | 2021-SPC-Civ-SR-3

Panel

Wang Yanfang | Yan Jing | Li Li

Keywords

civil; trademark infringement; unfair competition; prior use defense; original scope of use

Relevant legal provisions

- General Provisions of the Civil Law, Article 74
- Trademark Law, Articles 59 and 57
- Anti-Unfair Competition Law, Article 6

Facts

HL Company (Company A) owns the exclusive right to use the word mark “Hualian Supermarket 华联超市” and the corresponding device mark (the “disputed mark”), registered in Nice Classification Class 35 for services including advertising, import and export agency, sales promotion for others, and presentation of goods on communication media for retail purposes. Feicheng HL Company (Company B) was established on March 8, 2000, with a business scope covering cigarettes, general freight, daily necessities, and sporting goods. On November 27, 2015, Company B registered the trademark “Taodu Hualian (桃都华联)” in Class 35. On April 1, 2016, it set up a branch, Feicheng HL Company Store (the Store), which engaged in the sale of cigarettes, general freight, daily necessities, and related goods.

Company A alleged that Company B and the Store used the “华联超市” sign on storefront signage, online payment slips, and sales receipts, thereby infringing its exclusive right to the disputed mark; and that registering and prominently using “华联” in the enterprise name constituted unfair competition. Company A therefore brought an action.

At first instance, the Tai'an Intermediate People's Court (Shandong province) found that Company B had prior use of the “华联超市” sign and that the Store's use fell within the original scope of such prior use; it therefore found no trademark infringement. The court also found that Company B had used the “华联” trade name earlier than Company A, enjoyed local reputation in Feicheng, and that Company A had no operations there, so no likelihood of confusion was established; it therefore rejected the unfair competition claim. All claims were dismissed. On appeal, the Shandong High People's Court affirmed the decision. Company A then petitioned the Supreme People's Court (SPC) for supervisory review. The SPC granted review and, on February 23, 2021, issued this civil judgment, setting aside the first- and second-instance judgments and ordering Company B and its store to immediately cease using “华联”, “华联超市” and other infringing signs; to cease using an enterprise name containing “华联”; and to pay Company A RMB 50,000 for economic losses and reasonable expenses.

Holding

In determining whether “continuing use within the original scope of use” is established under the prior use defense, courts shall consider both the geographic scope of use and the scale of business operations. Where a business entity, after another party has obtained registration for the sign, opens a new branch outside its original scope of operations and uses an identical or similar sign to the registered mark in that branch’s operations, such conduct does not fall within “continuing use of the trademark within the original scope of use” as provided in Article 59(3) of the Trademark Law.

Reasoning

Company B established the Store after the registration filing date of the disputed mark and used “华联” “华联超市” in that branch’s operations; this does not constitute “continuing use within the original scope of use” under Article 59(3) of the Trademark Law. In addition, Company B was established later than the predecessor and affiliated entities of Company A, and its evidence failed to prove that, prior to the application for the disputed mark, it had used “华联超市” as a trademark with a certain influence. Accordingly, the prior use defense advanced by Company B and its Store based on their use of “华联” “华联超市” does not meet the conditions of Article 59(3) of the Trademark Law and was rejected.

H. “Huarun” trademark infringement and unfair competition— Determination of similar services and the use of a person’s name as a trademark

Parties

HR Group Company and HR IP Management Company v. HR Lighting Store, Jinniu District, Chengdu

Case number

(2021) 最高法民再 338 号 | 2021-SPC-Civ-SR-338

Panel

Yan Jing | Li Li | Xu Changhai

Keywords

civil; trademark infringement; similar services; wholesale, retail and sales promotion (for others); personal name right

Relevant legal provisions

- Trademark Law, Article 57(2)

Facts

HR Group Company (“HR Group”) owns the exclusive right to use registered trademarks No. 776090 “Huarun (华润)”, No. 384356X “Huarun Wanjia (华润万家)” in Nice Classification services Class 35 (including “sales promotion for others”), and No. 773121 “Huarun (华润)” in services Class 36 (including “capital investment service”). Trademark No. 773121 has been recognized as a well-known mark by the competent authorities and courts. HR Lighting Store, Jinniu District, Chengdu (“HR Lighting”) registered and used “Huarun (华润)” in its business name and prominently used “华润” on exterior signage, promotional materials, and elsewhere, while selling lighting products of various third party brands. HR Group alleged that such use was likely to cause confusion as to the source of services and to suggest an association with HR Group, violating Articles 57 and 13 of the Trademark Law and Article 2 and Article 5(3) of the Anti-Unfair Competition Law. It sought: (1) an injunction against infringement and against use of a business name containing “华润”; (2) a newspaper statement to eliminate adverse effects; and (3) damages of RMB 500,000 plus RMB 70,000 in reasonable expenses.

HR Lighting argued: (1) its name was lawfully approved; “华润” was chosen from the name of the proprietor’s son; it was unaware of HR Group and the disputed “华润” marks at the time of registration; there was no intent to free ride, and thus no infringement or unfair competition occurred; (2) “Huarun Lighting” was a lawful abbreviation; the store did not prominently use “华润”; its name differed sufficiently from the marks at issue, and its business scope differed from the services covered by the Class 35 registrations Nos. 776090 (“华润”) and 384356X (“华润万家”); (3) even if No. 773121 (“华润”) is a well-known mark, consumers would not associate a lighting retailer with HR Group, which does not operate in the lighting sector; therefore, cross-class protection and dilution did not apply.

The courts found: No. 776090 (“华润”) in Class 35 (including “sales promotion for others”) was approved on January 21, 1995, and renewed to January 20, 2025; No. 384356X (“华润万家”) in Class 35 (including “sales promotion for others”) was approved on April 7, 2006, and renewed to April 6, 2026; No. 773121 (“华润”) in Class 36 (including “capital investment”) was approved on December 7, 1994, and renewed to December 6, 2024. In 2013, the former TRAB recognized No. 773121 (“华润”) as a well-known mark for capital investment services prior to July 5, 2005; in 2014, an administrative judgment of the court recognized it as a well-known mark for “capital investment” and related services prior to June 9, 2009.

HR Lighting is family business registered on May 31, 2002; its proprietor, Mr. Liu, engages in wholesale and retail of lighting fixtures. On October 18, 2006, Liu also established the Chenghua District Huarun Lighting Department. Both outlets were promoted uniformly as “华润灯饰”. In 2016, “华润灯饰” received “Highlight Award—Top 500 Distributors in China’s Lighting (Fixtures) Industry (2016)” and “Top 100 Distributors in Sichuan province (2016).” Liu’s son is named Liu Huarun (刘华润).

A notarization dated March 24, 2017, documented prominent “华润灯饰” signage on the facade of the “华润灯饰同记家居馆” in a Jinniu District lighting market; “华润灯饰上品生活馆” at the entrance; “华润灯饰同记” at the entrance and reception wall; “HR华润灯饰” on product hangtags and employees’ business cards; an award plaque highlighting “成都华润灯饰” in large red font; and envelopes printed “华润灯饰商贸公司”. A notarization dated March 31, 2017, showed that the “Huarun Lighting” website displayed “Huarun Lighting” uniformly on webpages, featured the wording on the homepage and “Team” sections, and showed store photos with “Huarun Lighting” at showroom entrances. The site operator was HR Lighting Store. The Store and the Chenghua Lighting Department conducted extensive promotion under “Huarun Lighting,” including vehicle ads, a “Huarun Lighting Business Academy,” and a WeChat official account named “Huarun Lighting.”

The Chengdu Intermediate People’s Court dismissed HR Group’s claims; on appeal, the Sichuan High People’s Court affirmed the decision. HR Group and HR IP Management Company (HR IP), as assignee of the marks at issue, petitioned for supervisory review. The Supreme People’s Court granted review and, on December 20, 2021, rendered this judgment: (1) setting aside the first- and second-instance judgments; (2) ordering HR Lighting to immediately cease infringing the exclusive rights in Nos. 776090 (“华润”) and 384356X (“华润万家”); (3) ordering it to cease using a business name containing “华润” and to change its name to one not identical with or similar to “华润”; (4) awarding RMB 80,000 to HR IP for economic losses and reasonable expenses; and (5) dismissing other claims.

Holding

For determining “similar services” in trademark infringement, the benchmark is the general attention of the relevant public, considering a business operator’s scope of business, business model, and target consumers. Where an operator classifies and sells, by wholesale or retail, goods it represents or has purchased to facilitate consumer selection, such activities overlap with the Class 35 service “sales promotion for others” and should be recognized as similar services.

A citizen lawfully enjoys the right to a name and may reasonably use their name but must act in good faith and comply with laws and regulations; commercial use of one’s name may not infringe others’ lawful prior rights. Where another party has previously registered identical or similar characters as a trademark and, through long term use, the mark has become highly reputed, subsequent use of identical or similar characters on identical or similar services that is likely to cause confusion constitutes infringement of the registered trademark, even if the characters coincide with the user’s personal name.

Reasoning

First, HR Lighting’s wholesale and retail of various branded lighting products is closely related to the Class 35 “sales promotion for others” services covered by the two marks at issue in terms of service purpose, content, method, and target consumers; the services are therefore similar. Although the Nice Classification for Similar Goods and Services does not expressly list “wholesale” or “retail” under Class 35 “sales promotion for others,” similarity must be assessed from the standpoint of the relevant public’s general attention, taking into account the operator’s scope, model, and clientele. Here, HR Lighting categorized and sold, in a unified manner, branded lighting it represented or had purchased, to facilitate consumer choice; the product identifiers remained those of the third-party brands, while “Huarun Lighting” functioned as a service identifier for the sales service. This model overlaps with the services designated by the marks at issue; the services are similar.

Second, the distinctive element “Huarun” (华润) in the disputed sign is identical or similar, in composition and pronunciation, to the distinctive elements of the two marks at issue, and is a coined term with strong distinctiveness. The evidence shows that, before HR Lighting’s registration, HR Group’s “Huarun” brand was widely known among the relevant public, and the “Huarun” series of marks enjoyed high recognition in the supermarket sector. In these circumstances, HR Lighting, as a seller of goods, prominently used a sign identical with or similar to the marks at issue for similar services, creating a likelihood of confusion. Its evidence was insufficient to prove that the disputed sign had acquired such recognition in the sector as to avoid confusion with the marks at issue.

Third, while citizens enjoy the right to a name and may reasonably use it, that use must be in good faith and comply with the law; commercial use may not infringe prior rights. HR Lighting’s conduct exceeded the bounds of reasonable use of a personal name; its related defenses and evidence were not accepted. Accordingly, the use of “华润灯饰” was likely to cause confusion or misidentification as to source and infringed the exclusive rights in the registered trademarks.

I. “Siemens” trademark infringement and unfair competition— Infringement of business identifiers and calculation of damages

Parties

S. AG and S. (China) Company v. Ningbo Q. Electric Appliance Company, Gong, Wang, Kunshan X. Electric Appliance Company, and Wu

Case number

(2022) 最高法民终 312 号 | 2022-SPC-Civ-Fin-312

Panel

Yan Jing | Ma Xiurong | Dai Yiting

Keywords

civil; trademark infringement; unfair competition; evidentiary obstruction; damages

Relevant legal provisions

- Anti-Unfair Competition Law, Article 6(2) and (4), and Article 17
- SPC Interpretation on Several Issues Concerning the Application of the Anti-Unfair Competition Law, Article 13(2)

Facts

S. AG and S. (China) Company (“S. China”) hold the exclusive right to use the registered “Siemens (西门子)” / “SIEMENS” trademarks, which have attained a high degree of recognition through long-term use. Ningbo Q. Electric Appliance Company (“Q. Company”) used the designation “Shanghai Siemens Electric Company” on washing machines it manufactured and sold, on external packaging, and in related promotional activities. A sole proprietorship, Kunshan X. Electric Appliance Company (“X. Company”), sold the allegedly infringing products.

The plaintiffs alleged that Q. Company and X. Company infringed their registered trademark rights and engaged in unfair competition; they also sought to hold the companies’ respective shareholders jointly and severally liable. They sued Q. Company, its shareholders Gong and Wang (spouses), X. Company, and its shareholder Wu, seeking: (1) an injunction requiring all five defendants to cease trademark infringement and unfair competition by stopping use of “Shanghai Siemens Electric Company” on washing machines, packaging, brochures, contractual documents, and webpages; (2) damages of RMB 100 million plus RMB 163,000 in reasonable expenses against Q. Company, with Gong and Wang jointly and severally liable; joint and several liability of X. Company and Wu within RMB 3 million; (3) a corrective announcement in Legal Daily by Q. Company and X. Company; and (4) allocation of litigation costs to the five defendants.

The Jiangsu High People’s Court (first instance) ordered Q. Company and X. Company to cease infringement and unfair competition by stopping use of “Shanghai Siemens Electric Company” on the above mentioned products and media; held Q. Company, Gong, and Wang jointly and severally liable for RMB 100 million in damages plus RMB 163,000 in reasonable expenses; held X. Company and Wu jointly and severally liable within RMB 500,000; and ordered Q. Company to publish an announcement in Legal Daily. Other claims were dismissed. Q. Company, Gong, and Wang appealed. On July 27, 2023, the Supreme People’s Court rendered this judgment, dismissing the appeal and affirming the order.

Holding

1. In determining whether use of the disputed sign constitutes trademark use, courts should examine the user's intent and the concrete manner of use. Where infringing intent is evident and a business identifier in the form of an enterprise name is used in positions and contexts customarily reserved for trademarks, such conduct constitutes trademark use and trademark infringement; a defense that the use was merely an enterprise name use should be rejected.
2. Where an accused infringer refuses to produce relevant financial records, the court may apply the evidence obstruction doctrine and take the right holder's claims and evidence into account in determining damages. If the manufacturer refuses to submit production contracts, accounting books, and related materials, the court may determine the manufacturer's annual sales, the proportion attributable to infringing products, and the infringement period based on the record, and may refer to industry profit margins. If the damages so determined exceed the amount claimed, the plaintiff's damages claim should be granted in full.

Reasoning

The SPC holds that "Shanghai Siemens Electric Company" was neither Q. Company's own trade name nor its registered corporate name. Q. Company, without justification, used that designation in locations customarily used for trademarks, where it functioned as a source identifier. This was trademark use and infringed the exclusive trademark rights of S. AG and S. China. Q. Company's additional uses of the designation on packaging and in promotions constituted unfair competition. Q. Company was therefore liable for damages.

As to quantum, the record did not permit precise determination of Q. Company's infringing profits or the plaintiffs' actual losses, but it sufficed to establish that Q. Company's profits from producing and selling the infringing products clearly exceeded the statutory cap. In setting damages above the cap, the SPC considered the plaintiffs' high reputation in their enterprise name, Q. Company's evident bad faith, the scale and duration of infringement, profit margins in the washing machine sector, and the plaintiffs' reasonable expenses. Given Q. Company's refusal to produce financial records, the first-instance court relied on media reports in evidence to estimate its total sales, attributed one-fifteenth of the sales to the infringing products, and set damages at RMB 100 million; this approach was not improper. Although on appeal the plaintiffs stated that their claimed sum excluded compensation for trademark infringement, both the trademark infringement and unfair competition acts consisted of using the designation "Shanghai Siemens Electric Company" and the profits were reflected in the manufacture and marketing of the infringing products. With fixed production and sales volumes and the above methodology, even considering only the unfair competition aspect, RMB 100 million was not manifestly inappropriate. The SPC therefore upheld the award.

Gong and Wang were Q. Company's only shareholders and actual controllers; they played a significant role in the infringement, acting with clear intent. They were joint tortfeasors with Q. Company and were held jointly and severally liable.

Chapter II: Patent cases

- A. Invention patent grant involving a tumor-targeted therapy—Determination of common general knowledge
- B. Invention patent invalidation involving a light source device—Identifying distinguishing technical features that act synergistically, address the same technical problem, and produce interrelated technical effects in the assessment of inventiveness
- C. Invention patent invalidation involving a card metaphor for activities in a computing device—Assessing inventiveness of GUI-related human–computer interaction inventions
- D. Invention patent invalidation involving a multivariate confidence adaptation system—Relationship between direct evidence and the three-step approach, and consideration of unexpected technical effects in the inventiveness assessment
- E. Invention patent invalidation involving Ticagrelor—Acceptance of supplementary experimental data in pharmaceutical patent invalidation proceedings
- F. Invention patent invalidation involving a graphite discharge-gap device—Sufficiency of disclosure where claims are defined by multivariable equations
- G. Invention patent invalidation involving *Pseudomonas aeruginosa*—Considerations regarding the deposit of biological materials in the inventiveness assessment
- H. Patent ownership involving automatic intravenous (IV) compounding equipment—Determining ownership of service inventions
- I. Invention patent infringement involving an e-commerce platform—Application of the platform notice-and-takedown rule
- J. Utility model patent infringement involving an intake charging device—When dividing claim elements, a technical unit capable of a relatively independent technical function should be treated as one technical feature
- K. Utility model patent infringement involving a new electric self-balancing scooter—Identifying technical features “identical or equivalent” to functional claim features
- L. Utility model patent ownership involving a gasifier—Burden of proof for ownership where a patent is obtained for an improvement to another party’s non-public technical solution
- M. Invention patent infringement involving an automobile wiper—Identification of functional features; handling the relationship between preliminary injunctions and partial judgments
- N. Invention patent infringement involving routers—Infringement determination for method patents implemented by multiple actors; calculating damages where the accused infringer unjustifiably refuses to produce accounting records

- O. Invention patent infringement involving a cellulase—Effect of dishonest litigation on determining reasonable enforcement expenses
- P. Invention patent infringement involving a *Hypsizygus marmoreus* strain—Infringement determination for microorganism patents defined by a deposit number
- Q. Invention patent infringement involving a pesticide—Determining the profit margin of infringing products
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- S. Invention patent infringement involving a non-invasive liver disease diagnostic instrument—Use of internal and external evidence in claim construction
- T. Invention patent infringement involving a microwave oven—Calculating damages where the accused product is not publicly sold
- U. Standard-essential patent (SEP) infringement involving a bridge expansion joint device—Determining FRAND licensing obligations in SEP disputes and their impact on damages
- V. China's first drug patent linkage case involving eldecacitol soft capsules—Correspondence between a Category 4.2 declaration and the patent claims, and determination of the generic drug's technical solution
- W. A drug patent linkage case involving MabaloXavir—Acceptance of lawsuits for applications filed during the transitional period; filing requirements for drug patent linkage actions
- X. Utility model patent infringement involving a bonded anchor bolt—Publicized business performance by the infringer may serve as a basis for calculating damages
- Y. Reverse act preservation in utility model patent infringement dispute involving a flat mop—Application of reverse act preservation in patent infringement disputes involving e-commerce platforms
- Z. Utility model patent inventor remuneration involving a portable and refillable liquid spray bottle—Whether infringement damages obtained on the basis of a service invention patent may constitute the basis for calculating inventor remuneration

A. Invention patent grant involving a tumor-targeted therapy— Determination of common general knowledge

Parties

Certain Jiangsu Biomedical Research Institute Company and Certain Changzhou High-tech Research Institute v. China National Intellectual Property Administration (CNIPA)

Case number

(2020) 最高法知行终 35 号 | 2020-SPC-IP-Fin-35

Panel

Zhu Li | Yuan Xiaoshuang | Fu Lei

Keywords

administrative; invention patent application; common general knowledge; hearing principle comprehensive examination

Relevant legal provisions

- Administrative Procedure Law, Article 89(1)(i)

Facts

The application for an invention patent titled “A Tumor Targeted Variant of TNF Related Apoptosis Inducing Ligand (TRAIL) and Its Application,” filed by a certain Jiangsu Biomedical Research Institute Company (Biomedical Company) and a certain Changzhou High-tech Research Institute (Research Institute), concerns tumor-targeted TRAIL variant fusion proteins. The technical problem addressed is constructing a tumor-targeted TRAIL variant fusion protein with a linker peptide. After substantive examination, CNIPA rejected the application. The applicants requested reexamination; upon reexamination, CNIPA found the application lacked inventiveness and upheld the rejection. The applicants sued before the Beijing Intellectual Property Court (BIPC) seeking revocation of the contested decision and a remand to CNIPA for reconsideration.

BIPC revoked the contested decision and ordered CNIPA to conduct a new examination. CNIPA appealed. On August 13, 2020, the Supreme People’s Court (SPC) rendered this administrative judgment, dismissing the appeal and affirming the order.

Holding

Evidence of common general knowledge (CGK) generally comprises technical dictionaries, manuals, textbooks, and similar publications that record basic technical knowledge in the field. For publications other than the foregoing, whether they qualify as evidence of common general knowledge should be determined by considering the medium, content and characteristics, intended audience, and scope of dissemination, among other factors.

Reasoning

Regarding the use of *Frontiers in Cancer Research, Volume 8*, as evidence of common general knowledge in assessing inventiveness, the SPC held as follows:

1. Common general knowledge and its substantiation

The determination of common general knowledge in the relevant technical field directly defines the knowledge base and cognitive abilities of the person skilled in the art, thereby materially affecting the inventiveness assessment. Such determinations should be beyond reasonable doubt, supported by sufficient evidence or reasons, and not made arbitrarily.

As a rule, whether certain technical knowledge belongs to common general knowledge may be proven with evidence such as technical dictionaries, manuals, and textbooks in the relevant field. Where such sources are unavailable or inadequate, multiple non-CGK sources (e.g., patent documents, journals, or magazines) may mutually corroborate that the knowledge is common general knowledge, but this approach is subject to a stricter standard of proof.

Evidence of common general knowledge refers to literature such as technical dictionaries, manuals, and textbooks that set forth basic technical knowledge in the field. Absent contrary evidence, the technical knowledge recorded therein may be presumed to be common general knowledge. For literature other than dictionaries, manuals, and textbooks, whether it qualifies as evidence of common general knowledge should be determined by examining the medium, content and characteristics, intended audience, and scope of dissemination.

2. Whether *Frontiers in Cancer Research, Volume 8*, qualifies as evidence of common general knowledge

Medium. The publication is a book. Its Cataloging in Publication (CIP) data shows ISBN 978 7 81086 559 3. ISBNs have long been used in China; accordingly, the publication should be characterized as a book. The first-instance finding that it was a periodical was inaccurate.

Content and characteristics. Although a book, it is not a general textbook. As the preface states, it aims to introduce the latest global advances in oncology to peers and related researchers in accessible language, combining features of monographs, reviews, commentaries, and popular science, with inclusiveness, a cutting-edge focus, and debate. This indicates an orientation toward current advances rather than foundational knowledge; it is not a textbook in the usual sense.

Intended audience and dissemination. The copyright page describes it as a reference for specialized researchers and for relevant personnel in universities and hospitals, again indicating a reference book rather than a textbook. There is no other evidence showing it has become a generally used reference in the field.

In sum, although *Frontiers in Cancer Research, Volume 8*, is a book, it is not a textbook in the usual sense and is insufficient to qualify as evidence of common general knowledge. The contested decision's reliance on it as such lacked basis. CNIPA's appellate argument that the volume could serve as evidence of common general knowledge in the field was unfounded and was not supported.

B. Invention patent invalidation involving a light source device—Identifying distinguishing technical features that act synergistically, address the same technical problem, and produce interrelated technical effects in the assessment of inventiveness

Parties

Certain Shenzhen Technology Company v. China National Intellectual Property Administration (CNIPA) and Certain Computer Company

Case number

(2020) 最高法知行终 155 号 | 2020-SPC-IP-Adm-Fin-155

Panel

Xu Yanru | Ma Jun | Liu Xiaomei

Keywords

administrative; invention patent invalidation; inventiveness; distinguishing technical features

Relevant legal provisions

- Patent Law (Amended in 2008), Article 22(3)

Facts

A certain Computer Company is the patentee of invention patent No. 201010293730.7 titled “A light source device, a projection device and a projection method” (“the patent”). On December 28, 2016, Shenzhen Technology Company (“Shenzhen Technology”) filed a request for invalidation. On December 25, 2017, CNIPA issued Invalidation Review Decision No. 34530 (“contested decision”), finding the patent to involve an inventive step and maintaining its validity. Shenzhen Technology brought an administrative action before the Beijing Intellectual Property Court (BIPC) seeking revocation of the contested decision and a remand to CNIPA for reconsideration.

BIPC held that, compared with reference document 1, the distinguishing technical feature of claim 1 of the patent lies in setting a larger drive power for the light source of a specific color light that has a shorter emission period. The technical problem to be solved is adjusting the drive power of different phosphors to achieve better luminous performance. BIPC found that, starting from reference document 1 and in view of reference documents 2 and 3 and common general knowledge, a person skilled in the art would have arrived at claim 1’s solution, so claim 1 lacked inventiveness. The court revoked the contested decision and ordered CNIPA to redecide. CNIPA and the Computer Company appealed to the Supreme People’s Court (SPC), arguing that claim 1’s overall concept differs from the closest prior art (reference document 1) and that the first-instance court erred in identifying the distinguishing technical features. On July 28, 2021, the SPC rendered this administrative judgment, setting aside the first-instance judgment and dismissing Shenzhen Technology’s claims.

Holding

In assessing inventiveness, where distinguishing technical features are closely connected and interdependent, act synergistically, jointly address the same technical problem, and produce interrelated technical effects, they should be considered holistically rather than evaluated in isolation.

Reasoning

The identification of distinguishing technical features between the invention and the closest prior art must be based on a full understanding of both technical solutions. The inventive concept should be accurately grasped, features that operate in a coordinated relationship should be identified, and the relationships among the parts of the technical solution, the inventive concept adopted to solve the technical problem, and the resulting technical effects should be correctly understood. Where features are closely connected and interdependent and, through synergy, jointly solve the same technical problem and produce interrelated technical effects, they should be treated as one feature or a set of features and considered as a whole when comparing the invention with the closest prior art, rather than being mechanically dissected.

The actual technical problem solved by the invention should be determined based on the distinguishing technical features of the overall inventive concept and the technical effects those features bring to the invention as a whole. Claim 1 protects a light source device. In view of differing saturation characteristics and luminous efficiencies of phosphors, the solution adopts: (i) a light-source control component that controls the drive timing of the light source and the light-generation component so that the emission period of at least one color with higher luminous efficiency is shorter than that of other colors; and (ii) a setting whereby the drive power of the light source, when generating the color(s) whose emission period is shortened, is higher than when generating other colors. These features operate in coordination and synergy to address phosphor saturation and insufficient absolute light quantity, producing the interrelated effects of brighter images with high color reproducibility. They should be considered together as one feature or a set of features, not evaluated separately.

Reference document 1, although placing fluorescent material on a color wheel and adjusting emission periods, relies on ultraviolet light within the light source to improve utilization efficiency. Its inventive concept and technical problem differ, and it does not disclose the coordinated distinguishing features described above. Reference documents 2 and 3 likewise do not disclose the overall means corresponding to these distinguishing features. Without inventive effort, a person skilled in the art would not obviously arrive at the solution defined by claim 1 through a simple combination of the cited references. Therefore, claim 1 involves an inventive step.

C. Invention patent invalidation involving a card metaphor for activities in a computing device—Assessing inventiveness of GUI-related human–computer interaction inventions

Parties

Certain Computer Trading (Shanghai) Company v. China National Intellectual Property Administration (CNIPA) and Certain Communications Company

Case number

(2021) 最高法知行终 1 号 | 2021-SPC-IP-Adm-Fin-1

Panel

Cen Hongyu | Xu Hongni | Kong Liming

Keywords

administrative; invalidation of invention patent; inventiveness; GUI; human–computer interaction

Relevant legal provisions

- Patent Law (Amended in 2000), Article 22(3)

Facts

A certain Communications Company (“Communications Company”) is the patentee of invention patent No. 201310491586.1 entitled “Card metaphor for activities in a computing device” (“the patent”). On December 12, 2017, a certain Computer Trading (Shanghai) Company (“Computer Trading”) filed a request for invalidation of the patent. On July 20, 2018, CNIPA issued Invalidation Review Decision No. 36696 (“contested decision”), finding the patent to involve an inventive step and maintaining its validity. Computer Trading instituted administrative proceedings before the Beijing Intellectual Property Court (BIPC) seeking revocation of the contested decision and a remand of the case to CNIPA for a new decision. BIPC dismissed the claims. Computer Trading appealed. On July 26, 2022, the Supreme People’s Court rendered this administrative judgment, dismissing the appeal and affirming the first-instance judgment.

Holding

In the field of graphic user interface (GUI)-based human–computer interaction, where improving user experience is the core objective and foundational techniques are mature, inventiveness typically lies in the overall effect on interaction experience produced by the integration of application scenarios, controlled objects, and modes of operation. Where multiple technical features operate synergistically and interdependently to achieve a function and produce corresponding effects, they should be assessed as an integrated whole for purposes of inventiveness. This avoids fragmenting the features to locate isolated counterparts in the prior art and challenge inventiveness through artificial combination.

Reasoning

In the field of GUI-based human–computer interaction where enhancing user experience is the core research and development objective, foundational technical means are typically mature.

Technical innovation in GUI human–computer interaction generally lies in the holistic integration of application scenarios, controlled objects, and operational methods to enhance the interaction experience. Where several technical features are mutually dependent work together and to accomplish a function and achieve effects as a whole, they must be compared with the prior art as an integrated unit, rather than being dissected and then pieced together based on scattered disclosures.

In this case, the distinguishing features of claim 1 define operations responsive to directional contact along a second direction, comprising two sequential steps: first, marking a card as selected based on the directional contact; second, dismissing the selected card in the second direction to close the application. These steps operate coherently in sequence to achieve the closing function in a card-metaphor application scenario, enabling users to close applications quickly and conveniently. They should therefore be assessed together for inventiveness.

The cited prior art discloses using a “swipe” gesture to close applications, windows, or media files. However, the interaction scenario, the object of the closing operation, the gestures, and the overall process differ materially from the distinguishing features. None discloses, in a card-metaphor scenario, moving a card along the second direction, identifying the selected card, and dismissing the card to close the application. The technical effects therefore also differ significantly. Accordingly, the distinguishing features are not disclosed by the cited references.

Evidence of common general knowledge shows dragging objects with a “cursor” or a “stylus.” While this demonstrates visual display methods for drag-and-drop movement in the prior art, it is neither the same as nor similar to the distinguishing features at issue and cannot establish that those features form part of common general knowledge.

In light of the cited references and the evidence of common general knowledge, claim 1 would not have been obvious to a person skilled in the art and thus involves an inventive step.

D. Invention patent invalidation involving a multivariate confidence adaptation system—Relationship between direct evidence and the three-step approach, and consideration of unexpected technical effects in the inventiveness assessment

Parties

US Company A v. China National Intellectual Property Administration (CNIPA), Internet Platform Company B, Technology Company C, and Bank D

Case number

(2021) 最高法知行终 119 号 | 2021-SPC-IP-Adm-Fin-119

Panel

He Zhonglin | Cen Hongyu | Kong Liming

Keywords

administrative; invalidation of invention patent; inventiveness; three-step test

Relevant legal provisions

- Patent Law (Amended in 1992), Article 22(3)

Facts

US Company A is the patentee of invention patent No. 97121280.5 entitled “Multivariate confidence adaptation system and related methods.” Between October 2017 and February 2018, Internet Platform Company B, Technology Company C, and Bank D, respectively, filed requests for invalidation against this patent. On June 12, 2018, CNIPA issued Invalidation Review Decision No. 36402 (“contested decision”), finding that the patent lacked inventiveness and declaring the patent entirely invalid. Dissatisfied, US Company A filed an administrative action before the Beijing Intellectual Property Court (BIPC), seeking annulment of the contested decision and a remand to CNIPA for a new decision. BIPC dismissed the claims. US Company A appealed. On December 20, 2021, the Supreme People’s Court rendered this administrative judgment, dismissing the appeal and affirming the original decision.

Holding

1. The three-step test commonly used to assess inventiveness is a generally applicable method of logical deduction, whereas determining inventiveness based on direct evidence—such as solving long-standing technical problems, overcoming technical prejudice, achieving unexpected technical effects, or attaining commercial success—is a method based on empirical presumption. Both are analytical tools for determining inventiveness. Where the three-step test leads to the conclusion that a technical solution involves an inventive step, it is generally unnecessary to further examine direct evidence of inventiveness. Where the three-step test leads to the conclusion that a technical solution lacks an inventive step, direct evidence should be examined; the conclusion drawn from such direct evidence by way of empirical presumption should then be used to retest the three-step analysis, and a determination should be made by synthesizing both the logical deduction and the empirical presumption.
2. Where inventiveness is predicated on unexpected technical effects, the patentee bears the burden to prove the existence of such effects and that they stem from the relevant distinguishing features. The unexpected technical effect should be sufficient to constitute an improvement objective of the technical problem that the solution actually addresses. If a technical solution is the inevitable choice for solving the technical problem, then even if certain effects are difficult to foresee, such effects are merely a byproduct of that inevitable choice available to a person skilled in the art and are insufficient, by themselves, to establish inventiveness.

Reasoning

In judicial and administrative practice, assessing whether the claimed solution is obvious typically requires analytical tools. Broadly, there are two categories. The first is logical deduction, exemplified by the widely used three-step test following the problem-solution framework: (i) identify the closest prior art; (ii) identify the distinguishing features and the technical problem actually solved; and (iii) determine whether the claimed invention would have been obvious to the person skilled in the art. Substantively, this reconstructs the invention context and simulates the invention process to assess obviousness from the skilled person's perspective.

The second is empirical presumption, grounded in direct evidence such as solving long-standing technical problems, overcoming technical prejudice, achieving unexpected technical effects, or attaining commercial success (collectively, empirical presumption factors). This method assesses inventiveness by recognizing direct evidence, examining its correspondence or causal nexus with the claimed solution, and, with due regard to the difficulty of arriving at the solution, drawing an empirical presumption on obviousness.

In principle, logical and empirical analyses of the same solution should converge. A solution's inventiveness need not arise from the empirical presumption factors, nor does inventiveness necessarily entail commercial success. However, solving long-standing problems, overcoming prejudice, achieving unexpected effects, or attaining commercial success are important indicia of inventiveness. Logical deduction tools are of general applicability; empirical presumption tools apply in limited, typical circumstances. Coordination between the two is only implicated where empirical presumption factors are at issue.

Divergence between the two may arise in two situations. First, the three-step test indicates inventiveness, yet there is no direct evidence that, in an empirical sense, sufficiently reflects the value and effect of the invention, or any such evidence lacks correspondence or causal linkage to the distinguishing features. In this circumstance, because inventiveness need not derive from empirical factors, the absence of such factors does not negate inventiveness; the conclusion under the three-step test may stand. Second, the three-step test indicates a lack of inventiveness, yet there is direct evidence that sufficiently reflects the value and effect of the invention, with correspondence or causal linkage to the distinguishing features. In this circumstance, the three-step conclusion requires retesting. The focus of the retest depends on the nature of the direct evidence: where the solution addresses long-standing problems, overcomes prejudice, or achieves commercial success, the inquiry should examine whether the three-step analysis failed to account for the staged and limited nature of technological development and thereby misjudged the "motivation to combine." Where the solution achieves unexpected technical effects, the inquiry should examine whether the technical effects of the distinguishing features were misidentified, leading to a mis-formulation of the actual technical problem addressed. If the retest reveals errors in the original three-step analysis, the conclusion should be calibrated accordingly. If the retest confirms the original analysis, it is necessary to reexamine whether the direct evidence and its causation and correspondence with the distinguishing features were properly recognized, and whether other circumstances render it difficult to establish inventiveness on the basis of direct evidence. Accordingly, as a rule, when the three-step test yields a finding of inventiveness, further examination of direct evidence is unnecessary; when it yields a finding of lack of inventiveness, direct evidence should be examined and used to retest the three-step analysis, and a synthesis of the logical and empirical conclusions should be made.

Regarding unexpected technical effects: (i) the burden of proof rests with the patentee or applicant to at least establish the existence of unexpected effects and that they originate from the distinguishing features; (ii) the relevant date is the filing or priority date, the comparator is the closest prior art rather than the body of prior art as a whole, and the decision maker is the person skilled in the art; and (iii) the unexpected effects must constitute an improvement objective of the technical problem actually addressed—that is, an important consideration or goal in choosing the solution. Where the solution is the inevitable choice to solve the problem, even difficult-to-foresee effects are merely by products of that inevitable choice available to the skilled person and cannot, of themselves, supply inventiveness.

In this case, US Company A, as patentee, argued that claim 1 involves an inventive step because it achieves unexpected technical effects such as simplified input, simplified weighting, simplified requirements, and simplified retrieval. US Company A therefore bore the burden to prove the existence and unexpected nature of those effects, and their correspondence to the distinguishing features. The patent specification contains no clear, specific disclosure of such effects or their correspondence to the distinguishing features; nor did US Company A advance this theory during the administrative phase or first instance. It raised the argument only in its appellate grounds and at the second instance hearing, but adduced no evidence establishing that the asserted effects exist, let alone that—relative to the closest prior art—they would have been unexpected to the person skilled in the art.

E. Invention patent invalidation involving Ticagrelor—Acceptance of supplementary experimental data in pharmaceutical patent invalidation proceedings

Parties

Swedish Company A v. China National Intellectual Property Administration (CNIPA) and Shenzhen Pharmaceutical Company B

Case number

(2019) 最高法知行终 33 号 | 2019-SPC-IP-Adm-Fin-33

Panel

Wang Chuang | Zhu Li | Luo Xia

Keywords

administrative; invalidation of invention patent; pharmaceutical patent; supplementary experimental data

Relevant legal provisions

- Patent Law (Amended in 2008), Article 22
- SPC Provisions (I) on Several Issues Concerning the Application of Law in the Trial of Administrative Cases Involving Patent Granting and Invalidation, Article 10

Facts

Swedish Company A is the patentee of invention patent No. 200610002509.5 entitled “New crystalline and amorphous forms of a triazolo [4,5-d] pyrimidine compound” (“the patent”). Shenzhen Pharmaceutical Company B filed a request for invalidation of the Patent, mainly on the ground that claims 1–4 lacked an inventive step. To prove inventiveness, Swedish Company A submitted supplementary experimental data seeking to show that the Patent achieves an unexpected technical effect—“surprisingly high metabolic stability”—as stated in the specification. CNIPA held that the supplementary data should not be accepted and, even if accepted, would not establish the asserted effect; it therefore issued Invalidation Review Decision No. 33975 (“the contested decision”), declaring claims 1–4 invalid. Swedish Company A filed an administrative action with the Beijing Intellectual Property Court (BIPC). BIPC dismissed the claims.

Swedish Company A appealed to the Supreme People’s Court (SPC), seeking to set aside the BIPC judgment and the contested decision. The SPC held that the BIPC judgment and the contested decision erred in refusing to accept the supplementary data but correctly concluded that the Patent lacked an inventive step. On October 26, 2020, it rendered this administrative judgment, dismissing the appeal and affirming the BIPC judgment.

Holding

Where a pharmaceutical patent applicant or patentee submits supplementary experimental data after the filing date and contends that the data prove inventiveness or that the claims are supported by the specification, the court shall examine such data. If the original application documents expressly disclose or implicitly reveal the facts to be proved by the supplementary data, and the applicant is not using the data to cure intrinsic defects of the original application documents, the court shall accept the data and further examine whether they prove the relevant facts.

Given differences in how prior art is understood, how an invention's point of novelty is identified, and how the skilled person's knowledge is gauged, it is often unavoidable that specific experimental data will be missing from the original application. For inventiveness, a compound drug may be inventive based on its structure or form, or on its pharmacological properties. Such properties may concern therapeutic use (indications) or effects such as activity, toxicity, stability, and controlled release rate. Any non-obvious technical contribution in these respects can underpin the actual technical problem addressed and satisfy the inventiveness requirement. Yet it may be difficult for applicants to precisely foresee the inventive point as of the filing or priority date. Even where the inventive point is accurately foreseen, the facts and data needed to prove a non-obvious contribution may vary with the understanding of the prior art and the selection of the closest prior art. Accordingly, supplementary experimental data submitted after the filing or priority date should be examined.

To prevent patentees from obtaining undue benefits from the first-to-file system by virtue of accepting supplementary data, two factors merit scrutiny:

1. Positive condition: The original application documents must expressly disclose or implicitly reveal the facts to be directly proved by the supplementary data. Where this is satisfied, the applicant can be deemed to have completed the relevant research, and acceptance of the data does not contravene the first-to-file principle. Thus, it is improper either to reject such data merely because the original documents recorded the to-be-proved facts without including supporting data, or to require, categorically, that all supplementary data predate the filing or priority date on the assumption of possible misstatement. In this case, paragraph [0005] of the "Background Art" section explicitly recorded the fact to be proved—"surprisingly high metabolic stability and bioavailability." The first-instance refusal to accept the supplementary data, on the ground that the statement appeared in the "Background Art" section and was not supported by experimental data, was without basis.
2. Negative condition: Supplementary data may not be used to remedy intrinsic defects of the original application documents (e.g., insufficient disclosure). Supplementary data should typically substantiate the truth of facts already expressly or implicitly disclosed, thereby playing a corroborative role as to the legal facts ultimately at issue, rather than independently proving undisclosed content. Here, Swedish Company A's supplementary data aimed to substantiate the already-stated fact so as to support the ultimate legal proposition that claim 1 is inventive; the data were not offered to cure an intrinsic defect and should have been accepted.

The first-instance court also discounted the data because "Counter evidence 5" comprised experiments conducted by a witness with ties to Swedish Company A and lacked corroboration. For this, the SPC noted that, in drug research and development (R&D)—particularly new drug development—R&D actors are relatively concentrated, and sources of supplementary data are correspondingly concentrated. That a data provider has an employment or similar interest relationship with the applicant or patentee accords with R&D practice and should not, in itself, be an absolute ground for exclusion.

Nevertheless, the supplementary data did not establish that the compound of claim 1 possessed "surprisingly high metabolic stability and bioavailability," and thus did not demonstrate an unexpected technical effect. Claim 1 therefore lacked inventiveness. The SPC dismissed the appeal and affirmed the first-instance judgment, while correcting the error regarding non-acceptance of the supplementary data.

F. Invention patent invalidation involving a graphite discharge-gap device—Sufficiency of disclosure where claims are defined by multivariable equations

Parties

Shenzhen Company A v. China National Intellectual Property Administration (CNIPA) and Sichuan Company B

Case number

(2021) 最高法知行终 1071 号 | 2021-SPC-IP-Adm-Fin-1071

Panel

Deng Zhuo | Zhang Xinfeng | Xu Fei

Keywords

administrative; invention patent invalidation; multi-variable; claims; sufficiency of disclosure

Relevant legal provisions

– Patent Law (Amended in 2000), Article 26(3)

Facts

Sichuan Company B owns invention patent No. 200710049004.9, titled “High efficiency laminated graphite discharge gap device.” On January 21, 2020, Shenzhen Company A requested CNIPA to declare the patent entirely invalid. On September 2, 2020, CNIPA issued Invalidation Review Decision No. 46045, finding the patent inventive and upholding its validity (“the contested decision”). Company A filed suit with the Beijing Intellectual Property Court (BIPC) seeking revocation of the contested decision and a remand to CNIPA for reconsideration.

BIPC dismissed the claims. On appeal, the Supreme People’s Court (SPC) rendered on November 22, 2023, this administrative judgment, which: revoked BIPC’s judgment; revoked CNIPA’s invalidation review decision; and ordered CNIPA to issue a new decision on the invalidation request against the patent.

Holding

Where a claim is defined by an equation containing two or more variables, and the specification fails to clearly define the numerical value selection of the variables, the relationships among the variables, and the relationships between such numerical value selections and the technical effects, such that a person skilled in the art, even after reading the claims and the specification, would still need to engage in inventive labor or undue effort to solve the technical problem and achieve the technical effect, then a contention that the specification is not sufficiently disclosed may be upheld by the court.

Reasoning

The claims define the scope of protection, while the specification has the mission of disclosing the invention that the claims seek to protect. Claims must be supported by the specification. Each claimed technical solution must be derivable or generalizable by a person skilled in the art from what is sufficiently disclosed in the specification, and may not exceed that disclosure. The specification must describe the invention or utility model clearly and completely to the extent that it can be carried out by a person skilled in the art. “Can be carried out” means that a skilled person, based on the contents of the specification, can implement the technical solution, solve the technical problem, and produce the expected technical effects.

If the claims include a technical feature defined by an equation with two or more characteristic variables or parameters, the specification should clearly record the relationship between the selected numerical ranges and the technical effects achieved. Within the numerical ranges of the parameters involved, all values should, in principle, be disclosed to a level that allows the expected technical effects to be achieved without inventive labor or undue effort, enabling a skilled person, when practicing the invention, to know whether the determined parameter values or intervals solve the technical problem and achieve the effects asserted, rather than limiting success to the specific numbers appearing only in the examples. Moreover, where sufficiency depends on how parameters are determined, the less conventional the method, the clearer and more detailed the specification's guidance must be. If parameter information is unclear such that a skilled person cannot, using the overall disclosure and common general knowledge, identify the technical means necessary to solve the problem, the specification fails the sufficiency requirement.

Claim 1 recites: a high efficiency laminated graphite discharge-gap device including $N+1$ discharge gaps and a π -shaped capacitor bank (1) of N capacitors of identical capacitance, where $N \geq 1$ and the discharge gaps are connected in series; the first discharge gap $F1$ connects to the live wire, the last discharge gap $FN+1$ is grounded; in the π -shaped capacitor bank, one end of each capacitor connects to the conductive member between two discharge gaps and the other end is grounded; the discharge gaps are graphite discharge gaps with insulating annular gaskets (9) between graphite electrode sheets (6), assembled in a laminated manner; and each capacitor's capacitance is selected by $C = In/2\pi fVK$, where: In is the induced discharge current on each capacitor, $In = I/N$, I is the total current of the π -shaped capacitor bank, N is the number of capacitors, f is the lightning-wave frequency, V is the rated voltage on each capacitor, and K is the safety factor with $K \geq 1$.

The specification identifies the core technical problem to be solved as providing a method for calculating the capacitance value for graphite discharge gaps applicable to different lightning waveforms, in particular addressing uncertainty in such calculations. The technical effect asserted is that "using the capacitance-selection formula, once V is set for the device (a lower limiting voltage may be chosen), a relatively small (safe) In is selected, and f is estimated based on the lightning test waveform, then the capacitance of each capacitor in the π -shaped bank can be calculated; the formula is highly operable and applicable under 8/20 μ s, 10/350 μ s, 1.2/50 μ s lightning waveforms."

According to the facts established in the SPC judgment (2020) IP-Civ-Fin No. 329, Company B acknowledged the capacitors were "general market products." The specification suggests that, given the parameters in $In/2\pi fVK$, a skilled person can readily compute C . However, for selecting the lightning-wave frequency f and safety factor K , a skilled person cannot, based on common general knowledge, determine appropriate values across geometrically varying lightning frequencies, nor select K within the very broad ranges cited—e.g., 162 (positive polarity), 192 (negative), 1,588 (negative), 121 (positive), 117 (negative) for 8/20 μ s, and 1,040 (negative) for 10/350 μ s. If one may freely choose from such broad ranges, then the intervals are effectively unbounded: with $K \geq 1$ and lightning frequency varying by time and place, the resulting capacitance values likewise span an unbounded interval.

In the specification, K is only bounded by $K \geq 1$, while the examples use $K = 2$ or 3 without stating a basis for selecting within that open interval. Although f is defined as the lightning-wave frequency, the examples uniformly adopt $f \approx 18 \times 10^3$ Hz without explaining the basis for that choice across different waveforms. In the SPC (2020) case No. 329, Company B contended that, for the accused products, back-calculating from measured C yields K values of 162, 192, 1,588, 121, 117 (for 8/20 μ s), and 1,040 (for 10/350 μ s), which diverge significantly from $K = 2$ or 3 in the examples, and offered no basis for choosing those K values or using them to compute C . Likewise, when identifying the accused products' technical features, Company B gave no concrete basis for selecting K or f , characterizing the formula as empirical.

In the invalidation proceeding, the specification did not provide clear guidance enabling a skilled person, without inventive labor or undue effort, to select reasonable values for K and f . Nor could a skilled person, through limited experimentation, determine specific values of K and f to then compute a usable capacitance via $C = In/2\pi fVK$. Given that f and K materially affect the computed capacitance, the method fails to remove uncertainty in capacitance calculation. Accordingly, the technical means for selecting each capacitor's value as defined in claim 1 does not solve the technical problem identified in the specification and does not achieve the claimed technical effect of high operability in determining the capacitor values.

G. Invention patent invalidation involving *Pseudomonas aeruginosa*—Considerations regarding the deposit of biological materials in the inventiveness assessment

Parties

Dai v. China National Intellectual Property Administration (CNIPA) and Biopharmaceutical Company A

Case number

(2019) 最高法知行终 16 号 | 2019-SPC-IP-Adm-Fin -16

Panel

Jiao Yan | She Chaoyang | Wei Lei

Keywords

administrative; invention patent invalidation; inventiveness; deposit of biological materials

Relevant legal provisions

- Implementing Regulations of the Patent Law (Amended in 2010), Article 24

Facts

Biopharmaceutical Company A owns invention patent No. 200510059850.X, titled “Mannose-sensitive *hemagglutination pilus* strain of *Pseudomonas aeruginosa* (PA-MSHA strain).” On February 22, 2016, Dai filed a request with CNIPA to invalidate the patent. On August 10, 2016, CNIPA issued Invalidation Review Decision No. 29970 (“contested decision”), finding the patent inventive and upholding its validity. Dai then filed a lawsuit with the Beijing Intellectual Property Court (BIPC) seeking revocation of the contested decision and a remand of the case to CNIPA for reconsideration.

BIPC dismissed the claims. On appeal, the Supreme People’s Court rendered on August 15, 2019, this administrative judgment, dismissing the appeal, affirming the BIPC judgment, and sustaining CNIPA’s decision.

Holding

Where a reference document discloses only the same or a similar preparation method (e.g., screening or mutation) but does not deposit the resulting biological material, and a person skilled in the art cannot obtain the biological material claimed in the patent by repeating that method or by other means and lacks motivation to modify the method to obtain it, then the biological material claimed in the patent is inventive over the reference document.

Reasoning

Article 24 of the Implementing Regulations of the Patent Law (as amended in 2010) provides that, where a claimed invention involves a new biological material unavailable to the public and the description is insufficient to enable implementation, the applicant, in addition to meeting other statutory requirements, must deposit a sample with a recognized depository before or, at the latest, on the filing date (or the priority date, if applicable).

Accordingly, in assessing inventiveness for inventions involving biological materials: if the claimed biological material is obtained through non-reproducible means such as screening or mutation, yields beneficial effects, and has been deposited, while the reference document discloses only the same or a similar preparation method without depositing the resulting material—so that a skilled person cannot obtain the claimed material by repeating that method—then the claimed biological material is not disclosed by the reference document.

Absent evidence that a skilled person could obtain the material by other means or would be motivated to improve the method to obtain it, the claimed biological material is inventive over the reference document.

Here, Evidence 1 discloses a method for obtaining a *P. aeruginosa pilus* strain and its characteristics. The method is essentially the same as that of the present invention, and the strain is described as having MSHA *pili*. Claim 1 of the patent records the deposit number CGMCC0190, whereas Evidence 1 discloses no deposit or deposit information. It is thus inappropriate to treat the mere presence or absence of a deposit number as a distinguishing feature. Instead, one must assess the extent of disclosure in Evidence 1 and the accessibility of the strain to determine whether a skilled person could obtain it from that disclosure or would be motivated to prepare it.

First, Evidence 1 contains no deposit information and identifies no commercial source or distribution channel. There is therefore no evidence that the strain of Evidence 1 was publicly obtainable as a product and thus part of the prior art. Second, the strain-construction method in Evidence 1 involves multiple random and contingent factors, including randomness in the source of the wild-type strain, in attenuation, and in genetic engineering and screening. Because these steps generate random mutations, even a clear recital of conditions and procedures would not allow a skilled person to reproducibly obtain the same result by repeating them. A skilled person thus lacked motivation to repeat Evidence 1's construction method to obtain the patented strain, and the plaintiff provided no evidence that repetition could overcome randomness to yield an MSHA-positive strain. Finally, the patent specification reports the strain's immunogenicity, evidencing beneficial effects, and complies with the microbial deposit requirement, thereby contributing over the prior art.

In sum, claims 1–4 possess prominent substantive features and represent notable progress over Evidence 1, and are inventive.

H. Patent ownership involving automatic intravenous (IV) compounding equipment—Determining ownership of service inventions

Parties

Shenzhen B. Technology Company v. Mr. Li and Shenzhen C. Intelligent Equipment Company

Case number

(2019) 最高法民申 6342 号 | 2019-SPC-Civ-Pet-for-SR-6342

Panel

Du Weike | Wu Rong | Zhang Lingling

Keywords

civil; patent ownership; service invention-creation; related invention-creation

Relevant legal provisions

- Patent Law, Article 6
- Implementing Regulations of the Patent Law, Article 12

Facts

Shenzhen B. Technology Company ("B. Technology") is a high-tech Company engaged in R&D, manufacturing, sales, and after sales services for hospital IV compounding robots and related compounding center equipment. From February 2010 to July 2016, B. Technology filed multiple patents involving automatic compounding equipment and devices. Among them, patent No. 10284710284747XAA ("Patent 47X"), filed on September 4, 2012, concerns automated preparation for injection departments.

On September 24, 2012, Mr. Li joined B. Technology's production/manufacturing department and signed an Employment Contract and an Employee Confidentiality Agreement. He served as director of the production/manufacturing department, with primary responsibility for R&D of "IV compounding robots". During his tenure, Mr. Li signed procurement requests for the R&D department as a department manager and signed numerous technical drawings stamped "controlled document" in the review column. The drawings concerned components such as "cell composite needle assembly," "peristaltic pump infusion needle," "upper cover connection plate test for peristaltic pump," "assembly unit," "left jaw," "right jaw," "robot gripper 1," and "robot gripper 2," all related to automatic compounding devices. Company emails show that Mr. Li received R&D test reports, scheduled testing, and set R&D testing requirements, and that he repeatedly participated in R&D planning meetings.

On April 17, 2013, Mr. Li ended his employment with B. Technology. On July 12, 2013, he filed with the China National Intellectual Property Administration an invention patent entitled "Automatic IV compounding equipment and swinging turntable-type compounding device," No. 201310293690.X (the "patent-in-suit"), naming himself as the sole inventor. The patent concerns a device that uses a robot to complete the IV compounding process. On February 5, 2016, Mr. Li assigned the patent to Shenzhen C. Intelligent Equipment Company (C. Equipment), which he controlled. Before joining B. Technology, Mr. Li had no proven industry experience or academic qualifications in medical devices/equipment.

B. Technology sued in the court of first instance seeking: (1) confirmation that it owns the patent-in-suit; and (2) a joint order that Mr. Li and C. Equipment pay RMB 30,000 in reasonable expenses, plus litigation costs. The first-instance court held that Mr. Li made the patent-in-suit within one year of leaving B. Technology and that B. Technology had proved the patent relates to Li's duties or assigned tasks, and thus deemed it a service invention-creation owned by B. Technology. The court ruled: (1) B. Technology is the patentee; and (2) Mr. Li and C. Equipment

shall jointly pay RMB 30,000 within 10 days of the judgment's effective date. Mr. Li and C. Equipment appealed. The second-instance court dismissed the appeal and affirmed the first-instance judgment. They then petitioned the Supreme People's Court (SPC) for supervisory review. On December 31, 2019, the SPC issued this civil ruling, dismissing the review application.

Holding

In determining whether an invention-creation falls within "invention-creations related to one's duties or tasks assigned by the former employer" under Article 12(1)(3) of the Implementing Regulations of the Patent Law, courts should balance the interests of the former employer, the former employee, and the employee's new employer, and comprehensively consider: (1) the former employee's actual duties and assigned tasks at the former employer; (2) the specifics of the patent-in-suit and its relationship to those duties/tasks; (3) whether the former employer conducted R&D related to the patent-in-suit or had a lawful source for the relevant technology; and (4) whether the patentee/inventor can reasonably explain the R&D process or source of the patented technology.

Reasoning

The dispute centers on whether the patent-in-suit is a service invention-creation made during Mr. Li's employment at B. Technology.

Patent Law Article 6 provides that an invention-creation made in execution of employer's tasks or mainly using employer's resources is a service invention-creation, for which the right to apply belongs to the employer. Implementing Regulations of the Patent Law Article 12(1)(3) further provides that an invention-creation made within one year after retirement, transfer, or termination, if related to the person's duties or assigned tasks at the former employer, is a service invention-creation.

Recognizing that invention-creations require substantial resources and entail risk, courts must protect employers' lawful rights in genuine service inventions while avoiding an overly broad interpretation of "related invention-creation" that would unduly restrict personnel mobility or legitimate R&D at a new employer in the absence of statutory or contractual restraints (e.g., non-compete agreements). Therefore, courts should balance interests and assess the four factors, including the employee's responsibilities and access to technical information, the patent's field/problem/purpose/effects/claim scope and substantive features vis-à-vis the prior art, the former employer's related R&D or lawful sources, and whether the patentee/inventor can credibly explain the R&D process or source given the solution's complexity, required inputs, capabilities, and evidence of R&D activities.

Applying these factors produced the following conclusions:

Duties/tasks at B. Technology. Mr. Li was production/manufacturing director, directly engaged in R&D management of compounding equipment/devices, and he acknowledges R&D management. He signed R&D procurement requests and "controlled document" drawings closely related to the patent's technology. He repeatedly joined internal meetings/discussions on automatic compounding equipment/devices and managed testing via email. His role enabled direct access to non-public technical information closely tied to the technology at issue. His assertions that he only did management and that B. Technology's evidence was not truly R&D related are not supported.

Patent-in-suit and its relation to duties/tasks. The patent concerns "Automatic IV compounding equipment and swinging turntable-type compounding device," addressing labor intensity, variability in compounding quality, and health risks from toxic drugs. Claim 1 includes components such as a base, turntable workbench, bottle clamps, robot, vision sensor, infusion pump/tube, needle fixtures, swinging plate, and lift. B. Technology's Patent 47X, "Compounding method of automated compounding system and automated compounding system," addresses the same problems and aims to reduce labor and health risks, disclosing structures including an input/shaking device, clamping components, hose loading/distribution device, ampoule breaking device, mother liquor bottle clamping device, and an input turntable. The two patents address essentially the same problem, purpose, and effects; their solutions are highly related.

Considering examination records and cited searches, treating Patent 47X as a document independently affecting novelty/inventiveness of the patent-in-suit was proper. B. Technology's internal drawings bearing Li's signature relate to components overlapping with the patent-in-suit; emails discuss turntable grippers, mother liquor feeding, and ampoule breaking tests. The patent is therefore closely related to Li's duties/tasks.

Former employer's ongoing R&D. B. Technology, founded in 2002, continuously developed IV compounding technologies, filing 60 plus patents between 2010 and 2016, 44 of them pre-dating Li's tenure, many on automatic compounding devices. The argument that B. Technology had completed IV device R&D before Li joined, so the patent is not a service invention, is not supported.

Explanation of R&D process/source. The patent comprises about 13 pages of drawings and roughly 60 components, indicating complexity and significant R&D difficulty. As sole inventor, Li filed less than three months after leaving B. Technology but could not reasonably explain the R&D process or source, which is implausible. Records show his earliest applications in this space were filed on July 12, 2013; there is no evidence he previously possessed the knowledge/capacity to independently develop the patented solution.

Given the facts and evidence, the lower courts correctly determined that the patent-in-suit is a service invention-creation made during Mr. Li's employment at B. Technology. The grounds advanced by Mr. Li and C. Equipment in their review application lack merit.

I. Invention patent infringement involving an e-commerce platform— Application of the platform notice-and-takedown rule

Parties

Shenzhen Company A v. Guangzhou Company B and Hangzhou Company C

Case number

(2019) 最高法民申 5954 号 | 2019-SPC-Civ-Pet-for-SR-5954

Panel

Tong Shu | Mao Lihua | Dai Yiting

Keywords

civil; invention patent infringement; e-commerce platform; notice; necessary measures

Relevant legal provisions

- Tort Liability Law: Article 36

Facts

Company A owns the invention patent “Flash memory external storage method and device for data processing systems.” It purchased an allegedly infringing USB flash drive from Company B’s shop on the platform operated by Company C. On July 1, 2016, Company A sued Company B and Company C.

On July 7, 2016, Company A sent a lawyer’s letter to Company C requesting removal of the accused product and deletion of the allegedly infringing webpage. Company C acknowledged receipt and replied that because the matter was already in litigation, the platform would act upon the court’s judgment.

On August 8, 2016, Company A submitted an infringement comparison chart to Company C. On August 9, 2016, Company C forwarded the complaint to Company B, which responded that it was preparing materials. On August 10, 2016, Company C verified the links identified by Company A—the listings appeared to have been taken down. On April 6, 2017, however, the accused product was again displayed on Company B’s shop; Company A obtained a notarial certificate.

The first-instance court found that Company C, as a network service provider, failed to take necessary measures, thereby aggravating the loss, and ordered it to be jointly and severally liable for RMB 20,000 of damages to be borne by Company B. Both companies appealed; the second-instance court dismissed the appeals and affirmed the original decision. Company C then filed a petition for supervisory review with the Supreme People’s Court (SPC). On November 11, 2021, the SPC issued this civil ruling, dismissing the application for review.

Holding

An effective notice generally includes: proof of intellectual property (IP) rights and valid right holder information; information enabling precise location of the accused goods/services; preliminary evidence of infringement; the specific measures requested; and a written attestation of notice authenticity. Whether a notice is effective depends on the type of right, the e-commerce platform operator’s supervisory capacity (as a network service provider), and the platform’s nature. Forwarding a notice to the merchant is the platform operator’s minimum obligation. Whether further “necessary measures” are required after forwarding depends on the notice’s content.

Reasoning

Standards for an “effective notice” may vary by right type and platform governance capacity. For patent matters, within platform rules, an effective notice may include a technical feature or design feature comparison and, where applicable, a utility model or design patent evaluation report.

The infringement comparison chart submitted by Company A complied with Company C’s IP governance rules and prior complaint practice. Given that the lawyer’s letter identified the product and its location and attached the patent certificate, specification, and register, Company C should at least have responded to facilitate information flow—even if it believed the preliminary evidence fell short of an “effective notice.” The second-instance court correctly deemed the notice effective.

Forwarding is only the minimum step and does not alone show “necessary measures” were taken. Company B did not issue a counter notice of non-infringement. Company C failed to show that doing nothing beyond forwarding would probably prevent infringement.

Where a merchant takes down and later relists the same product, the platform bears lower social costs than the right holder in monitoring and preventing repeat listings. Requiring the right holder to continually police repeat listings would trap it in serial complaints and render the notice and takedown rule ineffective. Platform operators can and should prevent such evasion through platform governance rules and owe a heightened duty of care against repeated infringement.

Company C offered no evidence of necessary measures taken after Company A notarized that the accused goods were relisted, to mitigate further losses.

J. Utility model patent infringement involving an intake charging device—When dividing claim elements, a technical unit capable of a relatively independent technical function should be treated as one technical feature

Parties

Shenzhen Tech Company A v. Shenzhen Tech Company B

Case number

(2019) 最高法民再 348 号 | 2019-SPC-Civ-SR-348

Panel

Qin Yuanming | Lang Guimei | Ma Xiurong

Keywords

civil; utility model patent infringement; technical feature; scope of protection

Relevant legal provisions

- Patent Law (Amended in 2008), Article 59
- SPC Interpretation on Several Issues Concerning the Application of Law in the Trial of Patent Infringement Dispute Cases, Articles 2 and 7
- SPC Interpretation (II) on Several Issues Concerning the Application of Law in the Trial of Patent Infringement Dispute Cases, Article 8
- SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Patent Dispute Cases (Amended in 2015), Article 8

Facts

Shenzhen Company A sued, seeking: (1) that Shenzhen Company B immediately cease manufacturing, selling, offering to sell, and using the accused product and destroy the in-use accused products and special molds; (2) damages of RMB 850,000 and reasonable expenses of RMB 150,000 (RMB 1,000,000 total); and (3) all litigation costs.

Shenzhen Company B argued that the accused product falls outside the claims' scope of protection, at least lacking the claim 1 features "a transmission assembly connected to the first motor" and "a primary roller assembly connected to the transmission assembly," and sought dismissal.

The patent-in-suit is utility model ZL20152010331X.2, titled "Intake charging device," filed February 12, 2015, granted June 24, 2015; patentee: Shenzhen Company A. As granted, claim 1 recites: an intake charging device comprising an intake roller mechanism, a charging mechanism, and a main control Printed Circuit Board (PCB). The intake roller mechanism comprises a first motor, a transmission assembly connected to the first motor, and a primary roller assembly connected to the transmission assembly; the primary roller assembly comprises two opposing rollers; the first motor is electrically connected to the main control PCB; the charging mechanism comprises a charging PCB connected to the main control PCB.

The first-instance court held that a geared motor is commonly viewed by persons skilled in the art as a combination of a motor and a speed-reducing mechanism; the reducer can be regarded as part of the geared motor and also as part of the "transmission assembly" in claim 1. It found the accused product included the claimed transmission assembly and ordered: (1) immediate cessation of manufacturing; (2) cessation of use within 30 days of the judgment taking effect; (3) payment of RMB 850,000 in damages within 10 days; (4) payment of RMB 150,000 in reasonable expenses within 10 days; and (5) dismissed other claims. Shenzhen Company B appealed; the second-instance court dismissed the appeal and affirmed the original decision.

Shenzhen Company B then petitioned the Supreme People's Court (SPC) for supervisory review. The SPC brought up the case for review and, on December 30, 2019, rendered this civil judgment: (1) vacating the first- and second- instance judgments; and (2) dismissing Shenzhen Company A's claims.

Holding

When dividing the technical features of a claim, a technical unit capable of realizing a relatively independent technical function should generally be treated as one technical feature. It is improper to lump multiple technical units that realize different technical functions into a single technical feature.

Reasoning

A geared motor integrates a motor and a speed-reducing mechanism and is commonly regarded by skilled persons as a combined whole. The reducer's primary function is to reduce the speed of power output.

In claim 1, the "transmission assembly" is independent of, and not a component of, the motor. Its function is to transmit the motor's force to the rollers such that the motor, even when packaged within the mechanical structure, still drives the rollers.

In the accused product, the motor shaft connects via a gear set to a shaft with protrusions; these elements belong to the geared motor, and the gear set primarily performs speed reduction. Power is transmitted by directly inserting the geared motor shaft into the groove of the roller assembly; transmission is realized by direct connection.

Therefore, the accused product's reducing mechanism and the claimed "transmission assembly" differ in technical means, function, and effect and are not equivalent. The accused product lacks the "transmission assembly" feature.

The second-instance court erred by treating the reducer within the geared motor as part of the claim 1 "transmission assembly," leading to unclear fact finding and misapplication of law. Absent the "transmission assembly" feature, under Article 7 of the SPC Interpretation on patent infringement disputes, the accused product does not fall within the scope of protection of claim 9 of the patent-in-suit. The errors were corrected on supervisory review.

K. Utility model patent infringement involving a new electric self-balancing scooter—Identifying technical features “identical or equivalent” to functional claim features

Parties

Certain Hangzhou Intelligent Technology Company v. Certain Zhejiang Sports Equipment Company

Case number

(2018) 最高法民申 2345 号 | 2018-SPC-Civ-Pet-for-SR-2345

Panel

Du Weike | Wu Rong | Tong Shu

Keywords

civil; utility model infringement; patent right; functional feature; infringement analysis; function and effect

Relevant legal provisions

- SPC Interpretation (II) on Several Issues Concerning the Application of Law in the Trial of Patent Infringement Dispute Cases, Article 8

Facts

A certain Hangzhou intelligent technology Company (Hangzhou Company) is the patentee of utility model ZL201520406847.XXX titled “New electric self-balancing scooter.” On August 8, 2016, Ningbo Customs detained self-balancing scooters declared for export by a certain Zhejiang Sports Equipment Company (Zhejiang Company) under Notice (2016) No. 0499 on customs IP protection measures; Zhejiang Company later obtained release upon providing a guarantee. Alleging unauthorized manufacture and sale of the accused products and resulting losses, Hangzhou Company sued in the Ningbo Intermediate People’s Court.

The court dismissed the claims. On appeal, the second-instance court reversed and ordered Zhejiang Company to cease manufacturing and selling products within the patent’s scope and to pay RMB 100,000 (including reasonable expenses) within 10 days of service. Zhejiang Company petitioned the Supreme People’s Court (SPC) for supervisory review. On March 20, 2020, the SPC issued this civil ruling, dismissing the review application.

Holding

To identify whether an accused product possesses a functional claim feature, courts should define the specific content of that functional feature by reference to the indispensable technical features in the specification and drawings’ corresponding embodiments that realize the function or effect recited in the claim. If the patentee asserts that some features are not indispensable, it must explain why or prove so.

In infringement analysis, the embodiment corresponding to the functional feature should be treated as an integrated whole and compared with the accused technical features; indispensable sub-features should not be further split for piecemeal comparison.

In determining whether the accused features “achieve the same function” and “the same effect,” the basis is the function or effect as defined in the claim’s functional feature, not the separate functions or effects of each indispensable sub-feature disclosed in the specification.

Reasoning

Focus of dispute: whether the accused product falls within claim 1.

(I) Rotating mechanism feature

1. Whether the rotating mechanism in claim 1 is a functional feature

Identification turns not only on claim wording but on the role (function or effect) the feature plays in the claimed solution, and whether a person of ordinary skill in the art (POSITA) could, by reading the claims alone, directly and unambiguously determine how to realize that function or effect.

Claim 1 specifies that the rotating mechanism is “fixed between a first inner cover and a second inner cover” and functions to “rotatably connect” them, but does not describe how the rotation is achieved. The patent departs from a flat, non-rotatable pedal platform by adopting left/right inner covers rotatably connected via a rotating mechanism to enable relative rotation.

Given the adaptation between the rotating mechanism and the specific left/right inner cover structures, a POSITA could not, from the claims alone, directly determine how to realize the rotation. The invalidation decision No. 36457 likewise recognized the tight coupling of the inner cover structures and their relative-rotation arrangement. Therefore, the rotating mechanism is a functional feature.

2. Whether the accused product has a technical feature identical or equivalent to the rotating mechanism

Define the functional feature’s content: Paragraph 43 discloses a rotating mechanism comprising a shaft sleeve, two bearings, and two circlips; the sleeve is axially hollow to allow a connecting line to pass, and both inner covers can rotate relative to the sleeve; bearings are fixed in the sleeve and secured to the inner covers via circlips. The patentee did not show that any element is dispensable; thus this disclosure defines the functional feature’s content.

Accused product: One end of the shaft sleeve is fixed to an inner cover by interference fit and pin riveting; the other end connects to the opposite inner cover via a bearing and circlip. Zhejiang Company argued that only one side rotates relative to the sleeve, resulting in different safety and user experience, fewer parts, and alternative fasteners; hence there is no identity or equivalence.

Analysis: Claim 1 defines the function as achieving a “rotatable connection between the first and second inner covers,” which the accused product also achieves. Whether both sides rotate relative to the shaft is not the function or effect defined in claim 1 and does not negate “same function.” The overall technical means are not substantially different; the accused feature is equivalent under Article 8(2) of the SPC Interpretation (II). Arguments based on splitting the rotating mechanism (e.g., circlip count or position, one-side rotation) result from improper re-splitting and do not affect equivalence.

(II) Electric drive system feature

Claim 1 fixes the power source on the inner cover; per the specification and drawings, after fixation it remains within the cavity formed by the inner and bottom covers.

The accused product forms a square through-hole in the bottom cover and preliminarily retains the battery by snap-fit with the flanged edges; the inner cover also provides a corresponding battery cavity so that, once installed, the top, bottom, and inner covers close fully. Battery electrodes contact elastic electrodes on the inner cover to transmit power. Thus, once installed, the battery also sits in the cavity between the inner and bottom covers, with no substantive difference in position; the features are equivalent.

Convenience of access and replacement arises from an added opening shape and snap-fit design—an additional feature’s effect—not from fixing the battery to the bottom cover *per se*, and does not defeat equivalence.

(III) Other technical features

It is common knowledge that electrically driven self-balancing scooters require sensing circuitry. The accused product’s integrated block performs multiple sensing functions, corresponding to “a plurality of sensors” in claim 1; “sensor” is not a functional feature and needs no narrowing via embodiment details.

Claim 1 requires the controller and multiple sensors to be fixed on the inner cover; per the specification and drawings, they lie between the inner and bottom covers after fixation. In the accused product, the PCB with the integrated block and the “main control board” are fixed on a plastic bracket extending from the top cover, still located between the inner and bottom covers and closely adjacent to the inner cover. Means, function, and effect are essentially the same and would be obvious to a person skilled in the art; they are equivalent features.

The feature “two wheels extend from opposite sides of the inner cover, are fixed on both sides of the inner cover, and can rotate around the inner cover” defines mounting position, not wheel structure, and is not a functional feature. The accused product’s tires mounted on wheel bodies meet the positional requirement and fall within the claim.

L. Utility model patent ownership involving a gasifier—Burden of proof for ownership where a patent is obtained for an improvement to another party's non-public technical solution

Parties

Chemical Engineering Company A v. Liaocheng Chemical Engineering Design Company B

Case number

(2020) 最高法知民终 1293 号 | 2020-SPC-IP-Civ-Fin-1293

Panel

Zhou Xiang | Zhang Xiaoyang | Cui Ning

Keywords

civil; patent ownership; non-public technical solution; burden of proof; substantive features and progress

Relevant legal provisions

- Civil Procedure Law (Amended in 2017), Article 64)
- Implementing Regulations of the Patent Law (Amended in 2010), Article 13

Facts

Chemical Engineering Company A ("Company A") alleged that utility model patent No. 201720586771.2 titled "Gasifier outlet gas spraying device" (the "patent-in-suit"), applied for and granted to Liaocheng Chemical Engineering Design Company B ("Company B"), originated from Company A and should belong to Company A. It requested confirmation of ownership and allocation of all litigation costs to Company B.

Company B contended it is the true patentee and sought dismissal.

The Supreme People's Court (SPC) found that:

On May 24, 2017, Company B filed with the China National Intellectual Property Administration an application for the patent-in-suit, which was subsequently granted.

Company A produced five earlier-dated drawings. Compared with the patent-in-suit, some drawing contents matched figures in the patent specification. In the inquiry at the SPC IP Tribunal (second instance), Company B specifically asserted that its improvements lay in claim 1's feature "the spray pipe nozzle is inclinedly connected, toward the gasifier, with the gasifier syngas outlet pipeline" and the additional feature in claim 2.

Earlier, Jinan Intermediate People's Court (Shandong) (first instance) held that the patent-in-suit belongs to Company A. Company B appealed to the SPC, arguing the patented solution differed completely from Company A's evidence. On December 20, 2021, the SPC issued this civil judgment, dismissing the appeal and affirming the first-instance decision.

Holding

Where the plaintiff claims ownership on the ground that the defendant patented the plaintiff's non-public technical solution, the plaintiff must prove that the patent-in-suit derives from its previously completed non-public technical solution and that the defendant could access that solution before the filing date. If the defendant asserts it improved the plaintiff's solution and thereby owns the patent, it must at least prove or reasonably explain differences from the plaintiff's solution and that such differences constitute the patent's substantive features and progress.

For this category of ownership disputes, the plaintiff bears the initial burden to prove the patent's technical solution derives from the plaintiff's earlier solution and that the defendant could have been aware of it before filing the patent application. If the defendant argues that the patented solution improves prior art over the plaintiff's solution, it must prove so. Once it is confirmed that the patented solution originates from the plaintiff, the defendant must identify differences and, on that basis, prove or reasonably explain inventive contributions to the invention-creation's substantive features. If either party claims that the other's contributions are common general knowledge, prior art, or taught by prior art, that party must adduce evidence. Courts determine ownership based on the submitted evidence.

Company B acknowledged deriving the patented solution from the drawings but argued that it introduced improvements with substantive features. Unlike in the grant or validity context, where "substantive features" are assessed against the prior art, in ownership disputes premised on a non-public source, the inquiry into "inventive contribution to substantive features" is anchored to the non-public source solution. A party who modifies another's non-public solution and seeks sole or joint ownership must, through evidence or cogent explanation reflecting the R&D process and technical effects, show it made further substantial technical contributions.

Here, claims 1 and 2 of the patent-in-suit merely select an inclined connection between the spray nozzle and the gasifier syngas outlet pipe and specify an inclination angle, on Company A's solution. Although the specification asserts beneficial effects, a spraying device's purpose is to remove coal ash; varying the connection angle necessarily shifts spraying position. With no R&D records and no evidence verifying technical effects, Company B failed to show inventive contribution to substantive features by that change. Company B therefore does not obtain patent ownership on that basis.

M. Invention patent infringement involving an automobile wiper— Identification of functional features; handling the relationship between preliminary injunctions and partial judgments

Parties

French Company Valeo Wiper Systems v. Xiamen Lu Auto Parts Company *et al.*

Case number

(2019) 最高法知民终 2 号 | 2019-SPC-IP-Civ-Fin-2

Panel

Luo Dongchuan | Wang Chuang | Zhu Li | Xu Zhuobin | Ren Xiaolan

Keywords

civil; invention patent infringement; functional feature; partial judgment; preliminary injunction

Relevant legal provisions

- Patent Law, Article 59
- Civil Procedure Law, Article 153

Facts

Valeo (patentee of “Connector for motor vehicle windscreen wiper and related connection device”) sued in 2016 before the Shanghai Intellectual Property Court, alleging that Xiamen Lu Auto Parts Company (Lu Company) and Xiamen Fu Auto Parts Company (Fu Company) manufactured, sold, and offered to sell—and Mr. Chen manufactured and sold—wiper products without authorization. Valeo requested that the court order Lu Company, Fu Company, and Mr. Chen to cease the infringement, and to pay damages and reasonable expenses for stopping the infringement, provisionally calculated at RMB 6 million. Valeo also asked the court to issue an advance partial judgment ordering Lu Company, Fu Company, and Mr. Chen to immediately cease the acts infringing the patent-in-suit. In addition, Valeo filed an application for preliminary act preservation, requesting the court to rule that Lu Company, Fu Company, and Mr. Chen immediately stop the infringing acts.

The Shanghai Intellectual Property Court ordered Lu and Fu companies to cease infringement effective upon the judgment taking legal effect. Lu and Fu companies appealed. On March 27, 2019, the Supreme People’s Court (SPC) held a public hearing and pronounced its judgment in court immediately following the hearing: appeal dismissed; first-instance judgment affirmed.

Holding

1. If a technical feature in a patent claim has already defined or implied a specific structure, component, step, condition, or the relationships therebetween, then even if the feature also defines the function or effect achieved, it is not a “functional feature” within the meaning of Article 8 of the SPC Interpretation (II) on Several Issues Concerning the Application of Law in the Trial of Patent Infringement Dispute Cases.
2. In patent infringement proceedings, an act preservation ordering the cessation of the accused acts has independent value. Where a party applies for both a preliminary injunction to stop the infringement and a partial judgment, if the court deems it necessary to issue a partial judgment, it should also consider the application for a preliminary injunction and, if the requirements are satisfied, promptly issue a ruling.

(I) On whether the technical feature “in the closed position, the safety latch extends facing the locking element, for preventing elastic deformation of the locking element and for locking the connector” is a functional feature, and whether the accused products possess this feature

First, regarding whether the above feature is a functional feature: A functional feature refers to a technical feature that does not directly define the structure, component, step, condition, or the relationship thereof of the inventive technical solution, but rather defines the structure, component, step, condition, or the relationship thereof through the function or effect it plays in the invention.

If a technical feature has already defined or implied a specific structure, component, step, condition, or their interrelationships, then even if it also defines the function or effect it achieves, as a rule it is not a functional feature within the meaning of Article 8 of the SPC Interpretation (II) and should not be treated as such for infringement comparison. The feature in question in fact defines the positional relationship between the safety latch and the locking element and implies a specific structure—“the safety latch extends facing the locking element.” The role of this position and structure is “to prevent elastic deformation of the locking element and to lock the connector.”

Based on this positional and structural relationship, and in light of the specification and drawings, especially paragraph 0056 stating that “locking of the connector is ensured by the inner surface of the vertical side wall of the latch, with the inner surface extending along the outer surface of the claw so that the latch prevents the claw from deforming laterally outward from the connector, thereby the connector cannot be released from the hook-shaped end,” a person of ordinary skill in the art would understand that when the distance between the extending portion and the outer surface of the locking element is sufficiently small, deformation can be prevented and the connector locked. Thus, this “position/structure + functional description” feature, although describing function, is essentially a positional and structural limitation and not a functional feature within the meaning of Article 8 of the SPC Interpretation (II).

Second, regarding whether the accused products possess the feature: The feature in claim 1 not only defines the positional and structural relationship between the safety latch and the locking element, but also describes the function of the safety latch, which constrains that positional and structural relationship. As it is not a functional feature, both the position and structure limitations and the functional limitation shall be considered in determining infringement. Here, in the accused products, the inner surfaces of the two side walls of the safety latch are provided with a pair of projections perpendicular to the side walls. When the safety latch is in the closed position, these projections face the outer surface of the elastic element and can restrict the elastic element from opening by deformation, lock the elastic element, and prevent the wiper arm from detaching from the elastic element. When closed, the projections on the inner surfaces of the latch’s side walls face the outer surface of the elastic element, which is one implementation of “the safety latch extends facing the locking element” as recited in claim 1, and can likewise achieve the function of “preventing elastic deformation of the locking element and locking the connector.” Therefore, the accused products possess the above feature and fall within the scope of protection of claim 1. Although the court of first instance characterized the feature as functional and, on that basis, found an equivalent feature in the accused products, the error in the comparison method and conclusion did not affect the infringement determination.

(II) On the handling of the application for act preservation in this case

A special circumstance here is that the first-instance court issued a partial judgment ordering cessation of infringement of the patent-in-suit, but that judgment had not yet taken effect, and the patentee persisted in its application for act preservation during the first instance. In such circumstances, the second-instance court may handle the application for act preservation as follows: if an emergency exists or other harm may result, and the patentee applies for act preservation but the second-instance court cannot render a final judgment within the time limit for handling the application, it shall handle the act preservation application separately and

promptly render a ruling in accordance with the law; if the conditions are met, it shall promptly order preservation measures. At this moment, since the first-instance judgment has already established infringement, the second-instance court may review the application in light of the case without requiring a bond.

If the second-instance court can issue a final judgment within the time limit for handling the act preservation application, it may do so and dismiss the application. In this case, Valeo maintained its act preservation request during the proceedings, but the evidence submitted was insufficient to establish an urgent situation causing harm. Moreover, the SPC pronounced its judgment after the hearing, which took immediate legal effect. Accordingly, a separate act preservation order was unnecessary. Valeo's application for act preservation was therefore not supported.

N. Invention patent infringement involving routers—Infringement determination for method patents implemented by multiple actors; calculating damages where the accused infringer unjustifiably refuses to produce accounting records

Parties

Shenzhen D. Technology Company v. Shenzhen J. Technology Company *et al.*

Case number

(2019) 最高法知民终 147 号 | 2019-SPC-IP-Civ-Fin-147

Panel

Zhu Li | Fu Lei | Zhang Xiaoyang

Keywords

civil; patent infringement; multi-actor method patents; method patents; damages; technical contribution ratio of patent

Relevant legal provisions

– Patent Law (Amended in 2008), Articles 1, 11(1), 59(1)

Facts

The plaintiff, Shenzhen D. Technology Company (“D. Technology”), alleged that multiple commercial wireless routers (“accused products”) manufactured, offered for sale, and sold without authorization by Shenzhen J. Technology Company (“J. Technology”), and sold without authorization by Jinan Lixia Hong Electronic Products Business Department (“Hong Business”) and Jinan Lixia Hao Electronic Products Business Department (“Hao Business”), fell within the scope of protection of its invention patent entitled “A method for easy access to a network operator’s portal website” (Patent No. 02123502.3; the “patent-in-suit”). D. Technology sought an order enjoining J. Technology, Hong Business, and Hao Business from infringement and an award of RMB 5 million in damages and reasonable enforcement expenses.

J. Technology argued: (1) the patent-in-suit and the accused products employ different mechanisms to achieve redirection when accessing websites, and their access processes are not equivalent; J. Technology therefore did not infringe. In addition, the patent protects a network access authentication method, whereas J. Technology merely manufactured the accused products and did not itself practice the patented solution; thus, manufacturing and selling do not constitute infringement. (2) D. Technology’s claimed damages are excessive and lack factual and legal basis; any damages should account for the patent’s technical contribution and the existence of alternatives.

Hong Business and Hao Business jointly argued that the accused products they sold were lawfully sourced from agents; they are not manufacturers and should bear no liability.

The court found that D. Technology asserted infringement based on claims 1 and 2 of the patent-in-suit, which recite:

1. A method for easy access to a network operator’s portal website, comprising:

A. the access server’s underlying hardware directly submits, before authentication, the first upstream HTTP message from the portal-service user’s device to a “virtual web server,” whose function is implemented by the access server’s higher-level software module “virtual web server”;

B. the virtual web server emulates the website the user seeks to access and establishes a TCP connection with the portal-service user's device, returns to the access server's underlying hardware a message containing redirection information, and the underlying hardware, following normal forwarding procedures, sends to the portal-service user's device a message redirecting to the actual portal website Portal_Server; and

C. upon receiving the redirection message, the portal-service user's browser automatically initiates access to the actual portal website Portal_Server.

2. The method of claim 1, wherein in step A the portal-service user inputs any correct domain name, IP address, or any number in the browser to form an upstream IP message; and in step B the virtual web server emulates the website corresponding to the IP address of the IP message.

Through notarized purchases from Hong Business and Hao Business, D. Technology obtained one "Txx Router W15E" and one "Txx Router W20E Enhanced," and, under notarial supervision, conducted a technical demonstration of the W15E's process for accessing the operator's portal. The demonstration showed methods and steps corresponding to claims 1 and 2 of the patent-in-suit.

The accused products were sold via J. Technology's official flagship stores on JD.com and Tmall, with substantial sales. JD.com displayed, *inter alia*, "J. Technology (Txx) W15E" at RMB 199 with 10,000+ cumulative reviews; "J. Technology (Txx) W20E" at RMB 399 with 10,000+ cumulative reviews; and "J. Technology (Txx) G1" at RMB 359 with 10,000+ cumulative reviews. Tmall listed the "J. Technology (Txx) W15E" at a promotional price of RMB 179, with monthly sales of 433 units, 4,342 cumulative reviews, and accompanying installation instructions and technical support.

On December 13, 2018, the Jinan Intermediate People's Court issued a notice ordering J. Technology, within 10 days, to submit complete information and accounting books reflecting production and sales of the accused router products since July 2, 2015, failing which it would bear legal liability. By the time of the second-instance judgment, J. Technology had not submitted the evidence.

The Jinan Intermediate People's Court adjudged: (1) J. Technology shall immediately cease manufacturing, offering for sale, and selling the accused routers; (2) Hong Business and Hao Business shall immediately cease selling the accused routers; (3) J. Technology shall, within 10 days of the judgment taking effect, compensate D. Technology RMB 5 million for economic losses and reasonable expenses; (4) D. Technology's other claims were dismissed. The first-instance case acceptance fee of RMB 46,800 was borne by J. Technology. J. Technology appealed. On December 6, 2019, the Supreme People's Court (SPC) rendered this civil judgment, dismissing the appeal and affirming the first-instance decision.

Holding

1. Where, for business purposes, an accused infringer embeds the substantive contents of a patented method into the accused product, and that act or its result plays an irreplaceable, substantive role in fully covering the claim elements such that end users, in normal use, naturally reproduce the patented method, the accused infringer is deemed to have practiced the patented method and infringed the patentee's rights.
2. Where the patentee seeks damages based on the infringer's profits and has made a *prima facie* showing of the scale of infringement, but the accused infringer, without justifiable reason, refuses to produce corresponding evidence on the scale of infringement, thereby rendering the profit-calculation facts undeterminable, the court may decline to entertain the defense that damages should be apportioned by the patent's technical contribution to the infringer's profits.

The SPC identifies three issues:

(I) Whether use of the accused products falls within the scope of the patent claims

The “first upstream HTTP message” in claim 1 should not be construed as the first packet in the TCP three-way handshake between the user device and the actual target website, but as the first upstream HTTP message sent by the unauthenticated user device to the access server. Based on notarized testing, the captive-portal process of the accused products matches the steps of claims 1 and 2. Thus, when “web authentication” is enabled, the use of all three accused models falls within the scope of claims 1 and 2.

(II) Whether J. Technology’s accused conduct constitutes infringement

In assessing method-patent infringement in the network communications field, courts should account for field-specific characteristics and innovation dynamics to ensure substantive protection of patentees’ rights and to promote sustainable innovation and fair competition. Where an accused infringer, for business purposes, embeds the substantive contents of a patented method in a product, and that act or its result plays an irreplaceable, substantive role in fully covering the claimed features such that end users naturally reproduce the patented method during ordinary use, the accused infringer is deemed to have practiced the method and infringed. Here: (1) Although J. Technology did not itself perform the patented method, the accused products it made, offered, and sold can directly implement the method and play an irreplaceable, substantive role when end users fully reproduce the patented method using those products. (2) J. Technology’s unjust enrichment from manufacturing, offering, and selling the accused products is closely tied to the patent-in-suit. (3) Because end users’ use of the accused products to practice the patented method does not, as a matter of law, constitute infringement, the patentee cannot recoup its innovation investment from those direct users; absent compensation, R&D would be unsustainable. Meanwhile, J. Technology captured value attributable to the patent, causing severe and unfair imbalance. On these facts, J. Technology’s manufacturing, offering for sale, and sales constitute infringement, giving rise to injunction and damages.

(III) Whether the first-instance damages award was appropriate

Where damages are sought based on the infringer’s profits, the scale of infringement is a foundational fact for calculation, for which the patentee bears a *prima facie* burden. If the patentee meets that burden and the accused infringer, without justification, refuses to provide evidence of the scale of infringement, the court may disregard defenses based on apportioning profits by the patent’s contribution. Specifically: (1) D. Technology sought profit-based damages and submitted evidence of volumes and prices from J. Technology’s official flagship stores on JD.com and Tmall. As these data originate from J. Technology’s own official stores on reputable platforms, they are credible. J. Technology’s assertion that cumulative reviews may overstate sales was unsupported by concrete evidence. Given D. Technology’s evidentiary capacity, D. Technology satisfied its *prima facie* burden on scale. (2) Relying on that showing, D. Technology requested J. Technology’s financial books and records for the accused products. The first-instance court ordered J. Technology to produce complete accounting materials reflecting production and sales; J. Technology did not comply—either at first instance, where the court fully supported D. Technology’s RMB 5 million claim under the applicable judicial interpretation, or on appeal, where J. Technology continued to withhold records despite challenging the award. There being no objective impediment to production, J. Technology failed its ultimate burden on scale. (3) Existing evidence gives reasonable grounds to believe actual sales far exceeded D. Technology’s asserted quantities. In sum, with infringement clearly established and evidence indicating J. Technology’s actual scale of infringement exceeded the damages range claimed, any objection by J. Technology to the full award should first substantively contest the accuracy of the foundational sales facts, rather than sidestep those facts and invoke contribution/apportionment theories. Accordingly, J. Technology’s appellate defenses that the first-instance damages were excessive are not sustained.

O. Invention patent infringement involving a cellulase—Effect of dishonest litigation on determining reasonable enforcement expenses

Parties

American Company A v. Biotech Company B and Pharmaceutical Company C

Case number

(2021) 最高法知民终 2480 号 | 2021-SPC-IP-Civ-Fin-2480

Panel

Zhu Li | Cui Ning | Gu Zhengyi

Keywords

civil; patent infringement; reasonable enforcement expenses; good-faith litigation

Relevant legal provisions

- Patent Law, Article 11(1)

Facts

American Company A alleged that it owns invention patent No. 200480036105.7, titled “Endoglucanase STCE and cellulase preparation containing endoglucanase.” It claimed that Biotech Company B offered for sale and sold the accused products, while Pharmaceutical Company C manufactured, used, offered for sale, and sold them. Company A sought: (1) an injunction ordering both companies to cease infringing; (2) destruction by Biotech Company B of unsold infringing products and by Pharmaceutical Company C of specialized equipment used to manufacture infringing products as well as unsold infringing products; (3) joint payment of RMB 18.5 million in economic losses; and (4) joint payment of RMB 1.5 million in reasonable enforcement expenses.

Biotech Company B argued that the accused products it sold were procured from Pharmaceutical Company C and had a legitimate source; the accused technical solution did not fall within the patent’s scope; there was no remaining inventory; the claimed damages and methodology lacked basis; and there was no intent or conduct of joint infringement.

Pharmaceutical Company C argued that the accused technical solution was outside the patent’s scope; there was no remaining inventory; and the claimed damages lacked factual and legal basis.

The court found that, on appeal, Pharmaceutical Company C admitted that two accused product models fell within the scope of claims 1 and 11. As to the sales process and technical solutions for two other models, Biotech Company B and Pharmaceutical Company C made inconsistent statements during litigation. Regarding the delivery process for neutral cellulase products, after contracting with downstream customers, Biotech Company B would typically draft an authorization letter reflecting customer requirements and send it to Pharmaceutical Company C. Biotech Company B stated that it is an enzyme-preparation manufacturer in Hunan province with substantial technical service staff and, leveraging this advantage, it gradually established cooperation with Pharmaceutical Company C starting in April–May 2016, under which Biotech Company B fully marketed feed and textile enzyme preparations produced by Pharmaceutical Company C.

The Shanghai Intellectual Property Court ruled: (1) Biotech Company B and Pharmaceutical Company C shall immediately cease infringing the invention patent titled “Endoglucanase STCE and cellulase preparation containing endoglucanase” (No. 200480036105.7); (2) Pharmaceutical Company C shall, within 10 days of the judgment taking effect, pay American Company A RMB 10 million in economic losses and RMB 1 million in reasonable expenses, with Biotech Company B jointly and severally liable up to RMB 7.5 million of that amount; (3) the remaining claims were dismissed.

All parties appealed: American Company A argued that the damages were too low; Biotech Company B claimed legitimate source; Pharmaceutical Company C argued that the award was excessive.

On December 14, 2023, the Supreme People's Court (SPC) rendered this civil judgment: (1) item 1 of the Shanghai Intellectual Property Court's judgment (2017) Hu 73 Civ-1st No. 712 is affirmed; (2) items 2 and 3 are revoked; (3) Biotech Company B and Pharmaceutical Company C shall jointly pay American Company A RMB 18.5 million in economic losses and RMB 1.5 million in reasonable expenses within 10 days of the judgment taking effect; (4) the remainder of American Company A's appeal is dismissed; (5) Biotech Company B's appeal is dismissed; (6) Pharmaceutical Company C's appeal is dismissed.

Holding

An accused infringer's dishonesty in litigation—such as false statements—may be considered by the court when determining the patentee's reasonable enforcement expenses.

Reasoning

The SPC held that the accused technical solution falls within the patent's scope; infringement is established. On reasonable enforcement expenses the SPC found the following:

First, American Company A submitted invoices for a notary fee of RMB 25,130, a translation fee of RMB 1,698, and a testing fee of RMB 30,000. These were necessary for evidence production and are supported.

Second, the remaining claimed expenses are attorneys' fees, substantiated by billing statements. Issuance of such statements accords with the party's national commercial practice; the fees reflected should be treated as actually paid.

Third, the case involved substantial evidence, complex facts, a degree of concealment, and significant technicality, necessitating higher attorneys' fees than in ordinary cases.

Fourth, Biotech Company B and Pharmaceutical Company C made multiple inconsistent statements during litigation, some amounting to false statements, thereby increasing counsel's workload for American Company A.

Accordingly, the claimed RMB 1.5 million in reasonable expenses is fully supported. The first-instance award for reasonable expenses was unduly low and is corrected.

P. Invention patent infringement involving a *Hypsizygus marmoreus* strain—Infringement determination for microorganism patents defined by a deposit number

Parties

Shanghai Biotech Company A v. Tianjin Agricultural Company B and Tianjin Agricultural Company C

Case number

(2020) 最高法知民终 1602 号 | 2020-SPC-IP-Civ-Fin-1602

Panel

Xu Yanru | Ma Jun | Liu Xiaomei

Keywords

civil; invention patent infringement; microorganism deposit number; scope of protection; SCAR molecular marker

Relevant legal provisions

- Patent Law (Amended in 2008), Articles 11 and 65(1)

Facts

Company A owns invention patent No. 201310030601.2, titled “Pure-white *Hypsizygus marmoreus* strain” (the “patent-in-suit”). The sole claim recites: “A pure-white *Hypsizygus marmoreus* strain Finc-W-247, deposit number CCTCC No.: M2012378.” Company A alleged that mushroom products sold by Companies B and C at the Beijing Xinfadi Agricultural Products Wholesale Market infringed the patent-in-suit and sued in the Beijing Intellectual Property Court (BIPC).

Companies B and C argued that the 975-base sequence asserted by Company A is inherent to white beech mushrooms and not a strain-specific fragment protected by the patent-in-suit; therefore, the accused products fall outside the patent’s scope and they bear no liability.

BIPC held that, because the patent-in-suit protects a microorganism, both morphological and molecular biological assessments are indispensable to determine infringement, with the latter requiring laboratory methods, reagents, and instruments. An entrusted appraisal concluded that, based on the traits of pure-white *H. marmoreus*, its internal transcribed spacer (ITS), and the characteristics of the specific 975 bp DNA fragment, the Hongbin-brand white beech mushroom is the same strain as that protected by the patent-in-suit.

BIPC ruled that the accused products fall within the patent’s scope and ordered Companies B and C to cease infringement and each pay RMB 1 million in damages. On appeal, the Supreme People’s Court (SPC) rendered this civil judgment on August 19, 2021, dismissing the appeal and affirming the first-instance decision.

Holding

Whether an accused strain falls within the claims of a microorganism patent defined by a deposit number can generally be determined using one or more gene-specific fragment detection methods combined with morphological analysis. Whole genome sequencing is not required. Where the deposited strain has a unique sequence-characterized amplified region (SCAR) molecular marker, that marker may serve as the detection indicator, together with gene-sequence and morphological analyses, to identify the accused strain.

SCAR technology, developed from random amplified polymorphic DNA (RAPD), yields results unaffected by environmental factors or growth stage and directly reflects the strain's genetic essence. SCAR markers enable strain identification via strain-specific tags. Here, the patent specification states that, compared with H-W (a main cultivated variety and one parent), market-purchased G-W, and Japan's newly bred GC-W strain, the deposited strain possesses a unique 975 bp SCAR fragment. Using that strain-specific 975 bp fragment, combined with morphology and ITS sequence analysis, is therefore reasonable and reliable method for identifying the accused strain.

As to the contention that relying solely on the 975 bp fragment expands the patent's scope: the 975 bp SCAR fragment has been shown to be specific to the deposited strain; other strains of the same species lack it. Using this SCAR marker as the detection indicator, together with morphology and ITS analysis, reflects whether the tested strain is the deposited strain and does not broaden the patent's scope.

Regarding the argument that the patent failed to substantiate the 975 bp fragment's specificity and that evidence showed many domestic white beech mushrooms and a Korean white *H. marmoreus* also contain the fragment: the specification provides RAPD and SCAR analyses comparing the deposited strain with other strains and experimental data proving the 975 bp fragment's specificity. Companies B and C offered no evidence that the specification's results are erroneous, that other strains (different from the deposit) already contained the 975 bp fragment before the filing date, or that prior gene sequences of other *H. marmoreus* strains included the fragment. The available evidence thus does not undermine the specification's accuracy or validity. Nor does the existence of products containing the fragment prove market availability before the filing date or falsity of the specification. The appellate arguments therefore lack merit and are rejected.

Q. Invention patent infringement involving a pesticide—Determining the profit margin of infringing products

Parties

Singapore Agriculture Company A v. Xinxiang New Materials Technology Company B *et al.*

Case number

(2022) 最高法知民终 2898 号 | 2022-SPC-IP-Civ-Fin-2898

Panel

Lei Yanzhen | Liang Qiong | Ren Xiaoming

Keywords

civil; invention patent infringement; ownership; infringer's gains; profit margin

Relevant legal provisions

- Patent Law, Article 71
- SPC Several Provisions on Issues Concerning the Application of Law in the Trial of Patent Dispute Cases, Articles 14(2) and 18

Facts

A Singapore Agriculture Company (Company A) claimed it owns invention patent No. 02815924.1, titled "Anthranilamide for killing arthropods" (the "patent-in-suit"). It alleged that a Henan Chemical Company (Company C), a Xinxiang New Materials Technology Company (Company B), a Suqian Pharmaceutical and Chemical Company (Company D), and Mr. Wang jointly manufactured and sold the accused products, infringing the patent-in-suit. It sought an injunction and RMB 11 million for economic losses and reasonable enforcement expenses.

Companies B, C, D, and Mr. Wang denied the accused conduct and any joint infringement.

The court found: the filing date of the patent-in-suit is August 13, 2002; the grant date is June 4, 2008. Company A is one of the patentees and, with the co-owner's consent, acted alone to enforce the patent.

From November to December 2021, Company D provided samples of the accused product to evidence collectors and thereafter sold 25 kg for RMB 12,500. The products were accompanied by a test report issued by Company C. In October 2021, Company C obtained a pollutant discharge permit for a 100 t/a production line for the accused product and began commissioning. Company B promoted the accused product on its website(s); products it sold were accompanied by a test report issued in its own name. Local IP enforcement seized 25 kg of the accused product in Company B's warehouse. Shipments collected as evidence were all dispatched by Mr. Wang. Company A proposed using a 15% profit margin for Company C, referencing a 22.19% average gross margin derived from 2021 annual reports of 15 representative listed pesticide-chemical companies in China. Despite first- and second-instance court orders, Company C refused to produce account books for 2020–2022 related to the infringing conduct.

The Zhengzhou Intermediate People's Court ruled: (1) Company C shall pay RMB 1.56 million (economic losses plus reasonable expenses); Company D and Mr. Wang bear joint and several liability up to RMB 260,000; (2) Company B shall pay RMB 442,692.94; Mr. Wang bears joint and several liability up to RMB 92,692.94; (3) other claims are dismissed. Company A appealed, arguing the damages were too low and that Company D's offering for sale was not recognized; Company B appealed, arguing the award was excessive.

On November 20, 2023, the Supreme People's Court modified the first-instance judgment, ordering Company C to pay RMB 6.225 million in economic losses, with Company D and

Mr. Wang jointly and severally liable up to RMB 1.2 million; it affirmed the first-instance determinations of liability regarding Company B, Mr. Wang, and reasonable expenses.

Holding

In patent cases involving pesticide intermediates, the infringing product's profit margin may be set with reference to the industry's average margin, adjusted upward to reflect that the infringer bears no R&D cost; further upward adjustment is warranted where the infringer engages in evidence obstruction. If the patentee's proposed margin approximates the margin determined under these considerations, it may be adopted.

Reasoning

Company D's mailing of samples, coupled with explicit willingness to sell, constitutes offer for sale. Considering that Company A notarized its acquisition of the accused products in December 2021 and that Company C's production project obtained a pollutant discharge permit and began commissioning in October 2021, it is reasonable to find that manufacture began in October 2021 and continued for 10 months until the patent term expired. With reference to the average margin of the pesticide-chemical industry, the intermediate nature of the accused product, Company C's obstruction of evidence, and the absence of R&D costs for the infringer, the 15% profit margin proposed by Company A is accepted. Taking into account the output and price of the accused products, Company C's gains from infringement are determined to be RMB 6.225 million. Considering the nature, circumstances, and duration of the accused conduct by Company D and Mr. Wang, they shall bear joint and several liability for up to RMB 1.2 million.

R. Invention patent infringement involving a vacuum flask— Identifying the manufacturer of the accused products

Parties

Housewares Company A v. Jinhua Stationery & Sporting Goods Company B, Guangzhou Trade Company C, Zhejiang Industry and Trade Company D, and Yongkang Industry and Trade Company E

Case number

(2021) 最高法知民终 2301 号 | 2021-SPC-IP-Civ-Fin-2301

Panel

Xu Zhuobin | Yan Feng | Huang Zhonghua

Keywords

civil; invention patent infringement; manufacturer; joint infringement; apportionment of liability

Relevant legal provisions

- Tort Liability Law, Article 8
- Patent Law (Amended in 2008), Articles 11(1) and 70

Facts

To sell flasks bearing the “DISNEY 迪士尼” mark, Company B purchased anti-counterfeiting labels from Companies C and D (whose operations were commingled). After reviewing the product appearance and design submitted by Company B, Companies C and D issued a letter of authorization and supplied anti-counterfeiting labels, authorizing sales on JD.com and requiring Company B to mark the products “Licensee: Guangzhou Trade Company C; Manufacturer: Zhejiang Industry and Trade Company D.” Meanwhile, Company B finalized the flask design with Company E via WeChat; Company E then manufactured and supplied flasks bearing the above information to Company B.

Housewares Company A owns invention patent No. 201510147960.5, titled “Plug assembly for beverage container” (the “patent-in-suit”). It alleged that the flasks sold by Company B on JD.com fell within the patent-in-suit’s scope, purchased two flasks via notarized purchase, and sought joint damages of RMB 240,000 plus RMB 10,000 in expenses from Companies B, C, and D.

In the first instance, the Hangzhou Intermediate People’s Court added Company E as a third party and ruled: (1) Company B shall immediately cease selling and offering to sell the infringing products and destroy infringing stock; (2) Company B shall pay RMB 120,000 (losses plus expenses) within 10 days of the judgment taking effect; (3) other claims dismissed. Company B appealed, arguing lawful source, that Companies C and D as manufacturers should bear liability, that a seller should not bear full liability, and that the award was excessive. On June 20, 2023, the Supreme People’s Court rendered the final judgment: (1) item 1 of the first-instance judgment is affirmed; (2) items 2 and 3 are revoked; (3) Companies B, C, and D are jointly and severally liable to pay RMB 110,000 in economic losses and RMB 10,000 in expenses (total RMB 120,000) within 10 days of the judgment taking effect; (4) other claims are dismissed.

Holding

For purposes of the Patent Law, a “manufacturer” is not limited to the party that physically performs the manufacturing. An organizer who marshals production resources, coordinates upstream and downstream manufacturing links, and determines the product’s technical solution can also constitute the manufacturer of the accused products.

On the manufacturer status of Companies C and D: Although they had no direct contact with the physical manufacturer and did not themselves perform manufacturing, they controlled the manufacturing of the accused products via Company B by reviewing the product's appearance/design and controlling the number of anti-counterfeiting labels. The labeling on the packaging, instructions, and certificates, as well as the anti-counterfeiting marks, further confirm their status as manufacturers.

On Company B's lawful-source defense: To sell the flasks, Company B obtained trademark authorization, selected the manufacturer, determined the product design and technical solution, and handled all sales. Given its central, organizing role in the manufacturing-sales chain, Company B should be deemed a manufacturer of the accused products; its lawful-source defense is inconsistent with the Patent Law.

Case disposition: Under Company B's organization and arrangements, Companies C, D, and E, in coordination with Company B and each performing distinct roles, jointly manufactured and sold products falling within the patent-in-suit's scope, thereby jointly infringing and bearing joint and several liability.

S. Invention patent infringement involving a non-invasive liver disease diagnostic instrument—Use of internal and external evidence in claim construction

Parties

French Company A v. Wuxi Medical Company B and Hospital C

Case number

(2019) 最高法知民终 21 号 | 2019-SPC-IP-Civ-Fin-21

Panel

Jiao Yan | She Chaoyang | Wei Lei

Keywords

civil; invention patent infringement; claim construction; internal evidence; external evidence

Relevant legal provisions

- Patent Law (Amended in 2008), Article 59(1)
- SPC Several Provisions on Issues Concerning the Application of Law in the Trial of Patent Dispute Cases (Amended in 2015), Article 17
- SPC Interpretation on Several Issues Concerning the Application of Law in the Trial of Patent Infringement Dispute Cases, Articles 1, 3(1), and 7
- SPC Interpretation on Several Issues Concerning the Application of Law in the Trial of Patent Dispute Cases, Article 6

Facts

French Company A, patentee of invention patent No. 00805083.X titled “Imaging method and device using shear waves” (the “patent-in-suit”), alleged that the product used by Hospital C and manufactured by Wuxi Medical Company B infringed the patent-in-suit. It sought orders requiring Hospital C to cease using and to destroy the accused product; Wuxi Medical Company B to cease manufacturing, offering for sale, and selling the accused product, to destroy related molds, to publish a statement to eliminate adverse effects; and to pay RMB 30 million in damages plus RMB 1,660,582 in reasonable expenses.

Wuxi Medical Company B argued the accused technical solution did not fall within the patent-in-suit’s scope of protection. Hospital C argued that, under its qualifications and agreement with Company B, its clinical research use did not constitute infringement.

The court found: French Company A asserted the protection of claims 1 and 16. The accused product was the “Fibrotouch non-invasive hepatic fibrosis diagnostic instrument,” manufactured and sold by Company B and used by Hospital C. The core dispute concerned the construction of “simultaneous observation” and “full reception” in claim 1. One inventor of the patent-in-suit, treating it as background art, proposed an improved solution to overcome its deficiencies, obtained a later patent (the “later patent”), held by Company D, an affiliate of French Company A. Using that later patent as background art, Company B proposed another solution, obtained an “alternative solution patent,” and implemented it in the accused product.

On October 24, 2017, responding to Company B’s invalidation request, the former Patent Reexamination Board issued Invalidation Review Decision No. 33675, maintaining the patent-in-suit’s validity. It determined, among other things, that claim 1 requires “observing, during that period, the propagation of shear waves simultaneously at a multitude of points in the observed medium,” and that “simultaneous observation,” read in context, means observing with ultrasonic compression waves during the shear-wave propagation period; “a multitude of points” form a substantially continuous observation field along a defined axis. On October 8, 2015, in response to Company D’s invalidation request, the Board issued Invalidation Review Decision

No. 27205, maintaining Company B's alternative solution patent. That decision recorded that the patent addresses errors from reference-point motion without compensating transducer motion, by selecting sequences of measured ultrasonic signals—a technical conception different from prior art, not a mere improvement.

Beijing Intellectual Property Court (first instance) ruled: (1) Company B shall cease manufacturing, offering for sale, and selling the accused product; (2) within 10 days of the judgment taking effect, pay RMB 30,000,000 in damages; (3) within the same period, pay RMB 1,660,582 in reasonable expenses; (4) all other claims are dismissed. Company B appealed, arguing erroneous claim construction and non-infringement. On December 10, 2019, the Supreme People's Court reversed the ruling of the BIPC and dismissed all claims of French Company A.

Holding

Claim construction must be grounded in internal evidence—the specification and drawings, related claims, patents in a divisional relationship with the patent-in-suit, and effective invalidation decisions and judicial judgments. External evidence may be used to corroborate or supplement, but construction may not depart from internal evidence and must reflect the view of a person of ordinary skill in the art (POSITA).

Reasoning

Claims may be construed using the specification and drawings, related claims, divisional-family patents, and effective invalidation decisions. Construction cannot depart from these internal sources and must be from the POSITA perspective.

(I) “Simultaneous observation”

1. Text and specification: The claim language and description delimit “simultaneous observation” as a timing constraint—observe shear waves by receiving and recording ultrasonic echoes at the same time the shear waves are emitted.
2. Decision No. 33675: Its construction (observing with ultrasonic compression waves during the shear-wave propagation period) accords with the claim language and specification.
3. Later patent (affiliate): The later patent addresses defects arising from “simultaneous observation.” If the patent-in-suit had not used “simultaneous observation,” there would be no reference-frame change from transducer vibration to motivate motion compensation. Thus, the later patent reflects “simultaneous observation + motion compensation,” corroborating that the patent-in-suit uses “simultaneous observation.”
4. Company B's patent: Responding to defects of motion compensation in the later patent, Company B proposed “delayed observation” and obtained the alternative solution patent—further corroborating that the patent-in-suit uses “simultaneous observation.”
5. Decision No. 27205: It characterizes the alternative solution patent as adopting a completely different conception—embodied as “delayed observation”—to solve the same problem without position sensors and compensation computation. “Delayed observation” is technically distinct from, and not encompassed by, “simultaneous observation.” The latter cannot be broadened to include both.

Conclusion: In claim 1, “simultaneous observation” means observing via received and recorded ultrasonic echoes simultaneously with shear-wave emission.

(II) “Full reception”

Claim 1 states emitting a succession of at least 10 ultrasonic compression shots and detecting and recording, in real time, the echoes generated by each shot. The specification likewise states all echoes generated by a compression wave must be received before the next wave is emitted. Thus, “full reception” requires that for each emitted ultrasonic shot, all echoes from that shot are received; the claim cannot be construed to allow skipping reception for any shot.

Additional technical correlation: Claim 1's scheme—generating shear waves, emitting ultrasound, and receiving and recording echoes—can display an inverted V-shape in elasticity

imaging and detection charts reflecting P-wave characteristics only when “simultaneous observation + full reception” is achieved. Prior art and inventor publications corroborate this.

Overall conclusion: Based on the claims and specification, invalidation decisions, and corroborating evidence, “simultaneous observation” means observing via received and recorded ultrasonic echoes simultaneously with emission of shear waves; “full reception” means receiving all echoes for each emitted ultrasonic shot.

Comparison to accused technology: The patent-in-suit’s “simultaneous observation + full reception” observes during shear-wave emission and receives all echoes, enabling complete observation and recording of propagation at multiple points in a viscoelastic medium. By contrast, the accused “delayed observation + partial reception” ensures stationary reference points and avoids probe-motion compensation, reducing computation time and system complexity and cost. The means, functions, and effects differ; thus, the accused feature set is neither identical nor equivalent to claim 1’s “simultaneous observation + full reception.”

T. Invention patent infringement involving a microwave oven— Calculating damages where the accused product is not publicly sold

Parties

Guangdong Electrical Appliance Company A v. Zhongshan Electronic Technology Company B

Case number

(2022) 最高法知民终 1584 号 | 2022-SPC-IP-Civ-Fin-1584

Panel

Liu Xiaomei | Jiao Xinhui | Liu Peng

Keywords

civil; invention patent infringement; die patent; damages calculation

Relevant legal provisions

– Patent Law (Amended in 2008), Article 59

Facts

Company A owns invention patent No. 201510373341.8 titled “Riveting die for tightly riveting the upper cover of a magnetron.” It alleged that Company B, for production and business purposes and without authorization, manufactured and used cover-riveting dies falling within the patent-in-suit, with evident bad faith, causing substantial losses. Company A sought an injunction requiring Company B to immediately cease manufacturing and using the accused dies; destroy the accused products in use and in inventory as well as the dedicated equipment and dies; and pay RMB 10,000,000 in damages plus RMB 200,000 in reasonable expenses.

Company B argued: the patent-in-suit is unlawful; the accused product’s structure differs and does not infringe; the patent’s role in magnetron manufacture is minimal and magnetrons are low-value components; the claimed damages lack factual basis.

The court found that, according to Notarial Certificates (2020) Yue-Guang-Guangzhou No. 255853, (2020) Shen Xian Zheng Zi No. 24134, (2020) Yue-Guang-Guangzhou No. 252298, and (2020) Yue-Guang-Guangzhou No. 252305, Company A purchased microwave ovens of multiple models from the online shops of a Zhongshan electrical appliance Company on Taobao and JD.com on October 27 and 28, 2020, among other dates; the magnetrons used therein were all produced by Company B.

Guangzhou Intellectual Property Court (first instance) dismissed all of Company A’s claims. Company A appealed.

On October 7, 2023, the Supreme People’s Court rendered final judgment: (1) the first-instance judgment is set aside; (2) Company B shall immediately cease manufacturing and using, and destroy, the cover-riveting dies that infringe patent-in-suit; (3) within 10 days of the judgment taking effect, Company B shall pay RMB 10,000,000 in economic losses; (4) within the same period, pay RMB 200,000 in reasonable expenses; (5) other claims are dismissed.

Holding

Patent damages aim to restore the patentee, as far as possible, to the position it would have been in absent infringement, thereby preserving incentives for innovation. Where the accused product is not publicly sold and the damages cannot be calculated directly from market sales, the product most directly linked to realization of market gains from implementing the patented solution may serve as the reference for calculating damages, based on the specific facts.

Reasoning

In this case, Company A claimed RMB 10 million in compensation based on its actual losses, calculated as: Company A's magnetron unit profit $\times$ Company B's magnetron sales volume $\times$ the patent-in-suit's technical contribution ratio. Specifically, Company A asserted a unit sales price of no less than RMB 70, a unit cost of RMB 26.94, and thus a unit profit of RMB 43.06; Company B's magnetron sales volume was 4,494,585 units from 2018 to October 2020; and the technical contribution ratio should be 10%. Accordingly, $\text{RMB } 43.06 \times 4,494,585 \times 10\% = \text{RMB } 19,326,715$, which exceeds the RMB 10 million in actual losses claimed by Company A. Company B argued that the accused product is not a magnetron but a cover-riveting processing die, which constitutes only a small portion of a magnetron's value, so Company A's claimed amount and method lack a legal basis. The foregoing claim and argument are analyzed as follows:

Regarding whether Company A's actual losses can be calculated based on magnetron profit and sales volume: first, patent damages aim to restore the patentee to the position it would have been in absent infringement, preserving incentives for innovation; second, when the accused product is not publicly sold, its value cannot ordinarily be calculated directly from market sales; third, market gains are realized through market transactions, so using the most direct market-transaction link as the basis for calculating economic loss is causally sound. Here, the accused cover-riveting die, as tooling for magnetron production, does not itself enter the market, and no evidence shows alternative technical solutions replacing it; its market value cannot be confirmed. In these circumstances, given the purpose of the damages regime and the die's role as a necessary production tool for magnetrons, it is reasonable to take the magnetron—the most direct link reflecting market gains—as the basis for calculating Company A's actual losses.

Regarding calculating losses using Company A's magnetron unit profit and Company B's magnetron sales volume: a patentee's actual losses are generally the reduction in patented-product sales multiplied by per-unit profit. If the total reduction is hard to determine, the infringing sales volume multiplied by the patentee's per-unit profit may be deemed the loss. In this case, the total reduction in Company A's magnetron sales is difficult to determine; therefore, the infringing sales volume multiplied by Company A's per-unit profit can serve as the basis. In addition, an appraisal report by Guangdong Haike Asset Valuation Company in criminal case (2021) Yue 0606 Cri-1st No. 2200 found that Company B sold 4,494,585 magnetrons from 2018 to October 2020, and Company A's self-developed magnetron unit cost was RMB 26.94. In the absence of counterevidence from Company B, these facts are confirmed. Based on Company A's export and sales records, its claim that the unit sales price is not lower than RMB 70 has a factual basis and is affirmed.

Regarding the technical contribution ratio of the patent-in-suit: Company A brought a series of actions against Company B concerning magnetrons (trade secrets, invention, and utility model), and, after considering the importance of different technologies to magnetron production, claimed a 10% contribution for the patent-in-suit. This is analyzed as follows: the patent-in-suit covers a step for tightly riveting magnetron upper covers, addressing loose-riveting issues, reducing defect rates, and improving quality and efficiency. Given its importance and Company A's reasonable distinction from other intellectual property embodied in the product, a 10% contribution is relatively reasonable. Company B offered no effective rebuttal; under these circumstances, the 10% contribution ratio is adopted.

Regarding the use of sales profit as the calculation basis: under the relevant judicial interpretations, where an infringer essentially engages in infringement as its normal business practice, damages may be calculated by sales profit. This is determined objectively (the infringing conduct is tied to the main business and profit source) and subjectively (knowledge of infringement). In this case, Company B, established on January 24, 2017, despite a stated scope including magnetrons and electronic products, confirmed that since establishment it has produced only magnetrons for Company C. Thus, the infringing conduct relates to its core business and main profit source. Moreover, according to the effective criminal judgment and facts found on appeal, Mr. Liu joined Company A (and its predecessor) in 2001, worked on magnetron R&D since 2005, and was a core technician. He resigned in January 2017 and soon, under the pseudonym "Li," worked at Company B (actually funded by Company C), solely responsible for magnetron development. The patent-in-suit was filed on June 28, 2015 and granted on January 25, 2017; given his role, he should have known of it. Company B provided

no evidence of legitimate technical sources. It is therefore reasonable to infer subjective knowledge. Company B is thus deemed to have engaged in infringement as its business; a sales-profit-based calculation is appropriate.

To sum up, the loss-calculation method asserted by Company A is supported, and since Company A sought only RMB 10 million, that amount is granted.

U. Standard-essential patent (SEP) infringement involving a bridge expansion joint device—Determining FRAND licensing obligations in SEP disputes and their impact on the calculation of damages

Parties

Mr. Xu and Ningbo Technology Company A v. Hebei Rubber Products Company B and Hebei Roads & Bridges Company C

Case number

(2020) 最高法知民终 1696 号 | 2020-SPC-IP-Civ-Fin-1696

Panel

Qian Jianguo | Yan Feng | Chen Ruizi

Keywords

civil; invention patent infringement; standard-essential patent (SEP); FRAND licensing obligation; damages

Relevant legal provisions

- SPC Interpretation (II) on Several Issues Concerning the Application of Law in the Trial of Patent Infringement Dispute Cases, Article 24

Facts

Mr. Xu is the patentee of invention patent No. 200410049491.5, titled “Ultra-large anti-deflection comb-type bridge expansion joint device.” The patent’s technical solution is incorporated into the recommendatory industry standard “Unit-type multi-directional-displacement comb-plate bridge expansion joint device” issued and implemented by the Ministry of Transport. The introduction to that standard states that the patentee is willing to negotiate licensing of the patent-in-suit with any applicant on reasonable and non-discriminatory terms. Mr. Xu granted Company A—of which he is the controlling shareholder and legal representative—an exclusive license to practice the patent-in-suit for a royalty of RMB 0. Company C used expansion joint devices manufactured and sold by Company B in accordance with the standard in an expressway project it had won. Mr. Xu and Company A claimed that Company C and Company B infringed their patent and sought an injunction plus joint payment for economic losses and reasonable expenses totaling RMB 3 million.

The Shijiazhuang Intermediate People’s Court (Hebei province) ordered Company B to pay RMB 100,000 for economic losses and reasonable expenses and dismissed the remaining claims. All parties appealed. On June 30, 2022, the Supreme People’s Court reversed the first-instance decision and ordered Company B to cease infringement and pay RMB 3 million to Mr. Xu and Company A.

Holding

1. SEP licensing is generally by way of a non-exclusive (general) license. However, in specific circumstances, licensing terms based on related-party interests may differ from those in a normal competitive market. For example, a no-fee exclusive license granted due to related-party interests can be a normal commercial arrangement. So long as the patentee or the exclusive licensee continues to bear FRAND (fair, reasonable, and non-discriminatory) obligations toward third parties, such arrangements do not impair patent licensing negotiations and should not, in principle, be deemed a FRAND violation solely due to differing licensing terms.
2. In SEP infringement disputes, both the SEP holder’s compliance with FRAND and the alleged infringer’s fault can affect the damages awarded. If the SEP holder complied with FRAND and the standard document clearly disclosed the SEP’s technical solution, patent number,

and patentee contact information, yet the alleged infringer neither sought a license nor negotiated after notice and instead continued to practice the patent, the infringer may be found to have clear subjective fault; this should carry significant weight when applying a royalty multiple to determine damages.

Reasoning

Because standards apply to an indefinite group, SEP licensing is generally non-exclusive under the FRAND principle. This should not be understood mechanically. Granting an exclusive license is a legitimate means of exploiting a patent. Even where an exclusive license is granted, so long as the patentee or the exclusive licensee continues to bear FRAND obligations toward third parties, a FRAND breach cannot be inferred merely from exclusivity. In certain circumstances—such as where the patentee and licensee are affiliated through investment, or the patentee is the licensee’s shareholder, legal representative, or otherwise has aligned interests—the benefits obtained by the exclusive licensee from exploiting the patent align with those of the patentee; in such cases, the royalty for an exclusive license may be low or even zero. Licensing terms driven by related-party interests may differ from those in a general market, and such differences should not, in principle, alone establish a FRAND violation. In this case, Mr. Xu is the legal representative, shareholder, and actual controller of Company A. His granting a zero-royalty exclusive license to Company A based on that relationship is a normal commercial arrangement, does not impede licensing negotiations, does not amount to price discrimination against other implementers, and does not violate FRAND obligations. The patent-in-suit is an SEP; the recommendatory standard clearly disclosed its technical solution, patent number, and patentee contact information. Nevertheless, Company B neither proactively sought a license nor negotiated after receiving a licensing negotiation letter, and instead continued to implement the patent in subsequent projects, evidencing clear subjective fault. It shall therefore cease the infringement and compensate for the losses. When determining damages by applying a royalty multiple, the above fault of the parties should be given particular consideration.

V. China's first drug patent linkage case involving eldecalcitol soft capsules—Correspondence between a Category 4.2 declaration and the patent claims, and determination of the generic drug's technical solution

Parties

Japanese Company A v. Wenzhou Pharmaceutical Company B

Case number

(2022) 最高法知民终 905 号 | 2022-SPC-IP-Civ-Fin-905

Panel

Zhu Li | Cui Ning | Ke Xuning

Keywords

civil; drug patent linkage; basis for comparison; Category 4 declaration; independent claims

Relevant legal provisions

- Patent Law, Article 76

Facts

Japanese Company A owns invention patent No. 200580009877.6 titled "ED-71 preparation" (the "patent-in-suit"). It holds the marketing authorization for the corresponding originator drug and registered the drug and patent on China's Patent Information Registration Platform for Marketed Drugs (the Registration Platform). Wenzhou Pharmaceutical Company B applied to the National Medical Products Administration (NMPA) for marketing authorization of a generic corresponding to the originator drug and made a declaration stating that its generic drug does not fall within the scope of the originator's patent listed on the Registration Platform. Company A filed suit with the Beijing Intellectual Property Court (BIPC), seeking a declaration that the generic drug's technical solution falls within the claims of the patent-in-suit.

The BIPC dismissed Company A's claims. Company A appealed. On August 5, 2022, the Supreme People's Court dismissed the appeal and affirmed the first-instance decision.

Holding

1. Where a generic applicant makes a declaration under Article 6 of the Measures for the Implementation of the Early Resolution Mechanism for Drug Patent Disputes (Trial) ("Measures (Trial)"), stating that the proposed generic drug's technical solution does not fall within the scope of the listed patent, the declaration should, in principle, be made against the claim corresponding to the originator drug with the broadest scope of protection, to ensure authenticity and accuracy. Where the Registration Platform discloses two or more independent claims corresponding to the originator drug, the generic applicant should declare against all such independent claims.
2. In drug patent linkage cases, courts should, in principle, assess whether the generic drug's technical solution falls within the patent's scope by comparing it to the generic drug applicant's submitted materials. Whether the applicant's actually implemented solution matches those materials generally lies outside the scope of linkage review.

Reasoning

Under Article 6 of the Measures (Trial), a chemical generic drug applicant, when submitting its marketing authorization application, must, by reference to the patent information disclosed on the Registration Platform, make a declaration for each relevant patent of the originator drug and is responsible for the declaration's authenticity and accuracy. The article specifies

the patents to be addressed but does not specify which patent claims should be targeted. When making the declaration, the generic drug applicant should ordinarily consider the correspondence between the originator drug and the claims disclosed on the Registration Platform—i.e., whether the originator drug practices the disclosed claim’s technical solution. For a Category 4.2 declaration, whose core is to assert that the proposed generic drug’s technical solution does not fall within the scope of the originator’s patent, the declaration should, in principle, be made against the claim with the broadest scope corresponding to the originator drug. Because an independent claim has the broadest scope, if the originator drug corresponds to an independent claim, then a generic that does not fall within that independent claim necessarily does not fall within any dependent claim. However, if a generic drug does not fall within a dependent claim, one cannot thereby conclude it falls outside the patent’s scope. Therefore, for a Category 4.2 “non-infringement” declaration, where the originator drug corresponds to an independent claim, the applicant should declare against the independent claim; where there are two or more independent claims providing the broadest scope corresponding to the originator drug, the generic drug applicant should declare against all of them to ensure authenticity and accuracy of the declaration.

After the patentee registers patent information on the Registration Platform, it may amend the claims in an invalidation proceeding. However, regardless of how the claims are amended, the final accepted text may not broaden the original claims’ scope. Thus, so long as the generic drug applicant, at the time of applying, makes a Category 4.2 declaration against the claim with the broadest scope corresponding to the originator drug, subsequent claim amendments in invalidation proceedings will not affect the declaration’s authenticity and accuracy.

This case is distinctive in that the generic drug applicant Wenzhou Pharmaceutical Company B did not declare against the independent claim corresponding to the originator drug before amendment, but only made a declaration against dependent claim 2 prior to amendment. In the invalidation procedure, amendment of claims by the patentee does not necessarily change the examined text; the earliest point at which the amended examined text was accepted and published by CNIPA occurred during the oral hearing. When NMPA accepted Company B’s generic drug application on August 16, 2021, CNIPA had not yet held the oral hearing on the invalidation request. In other words, Company B filed the generic application and made the Category 4.2 declaration before the oral hearing. At that time, Company B failed to declare against the independent claim with the broadest scope corresponding to the originator drug and instead declared only against a narrower dependent claim, without justification—suggesting an attempt to sidestep the essential issue—rendering its conduct unjustified. Company B asserted that it later applied to NMPA to amend the declaration, but that occurred after Company A filed this suit and does not cure the deficiency.

In the drug marketing review and approval process, disputes between the marketing applicant and the relevant patentee or interested party over patents related to the drug sought to be registered are a special form of patent dispute—commonly referred to as drug patent linkage disputes. For chemical generics, NMPA reviews and approves marketing authorization based on the applicant’s submission, and within the prescribed period decides, in light of the court’s effective judgment, whether to stay approval. Therefore, in determining whether the generic’s technical solution falls within the patent’s scope, the comparison should, in principle, be based on the applicant’s submission. If the applicant’s actually-implemented technical solution diverges from the declared one, the applicant bears legal liability under the relevant drug regulatory laws; if the patentee or interested party believes the actually-implemented solution infringes, it may bring a separate patent infringement suit. Accordingly, whether a generic applicant’s actually-implemented technical solution matches the application documents generally falls outside the scope of a suit to confirm falling within the scope of patent protection. In this case, whether Company B’s designation of an antioxidant registered as an active pharmaceutical ingredient as an excipient in the accused generic drug complies with the relevant regulations falls within NMPA’s purview and does not affect this Court’s confirmation of the authenticity of the application documents or the comparison target. Moreover, Company A offered no additional evidence that the NMPA’s basis for reviewing and approving the generic’s antioxidant had changed.

W. A Drug patent linkage case involving “Mabaloxavir”—Acceptance of lawsuits for applications filed during the transitional period; filing requirements for drug patent linkage actions

Parties

Japanese Company A v. Pharmaceutical Company B

Case number

(2023) 最高法知民终 4 号 | 2023-SPC-IP-Civ-Fin-4

Panel

Cui Ning | She Chaoyang | Ke Xuning

Keywords

civil; drug patent linkage; transitional period; lawsuit filing requirements; Category 4 declaration

Relevant legal provisions

- Patent Law, Article 76(1) and 76(3)

Facts

Japanese Company A, patentee of the invention “Prodrugs of substituted polycyclic carbamoyl pyridone derivatives,” sought a declaration that the technical solution of Pharmaceutical Company B’s Category 4 chemical generic “Mabaloxavir tablets” (20 mg), acceptance No. CYHS2101377, falls within claims 1–9 of the patent-in-suit. Although the application for the generic drug in this case was accepted on June 30, 2021—before the issuance of the Measures for the Implementation of the Early Resolution Mechanism for Drug Patent Disputes (the Measures)—Company A had already registered the patent information at issue on the Patent Information Registration Platform for Marketed Drugs (the Registration Platform) on June 21, 2021, and the Registration Platform first made that information public on June 28, 2021. In addition, Company B refused to commit not to seek marketing authorization during the patent term, which Company A argued should be deemed tantamount to a Category 4 declaration (i.e., asserting non-coverage).

Company B argued the suit was inadmissible because no Category 4 declaration—explicitly required by governing rules—had been made, thus failing the filing conditions under the SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Civil Patent Disputes Related to Drugs Applied for Registration. Company B filed its generic drug marketing authorization application before the Measures took effect; the Registration Platform was not yet officially operational and had disclosed no patent information, so Company B neither knew of nor could have declared against a non-listed patent. By the principle of non-retroactivity, the Measures should not apply. Even if they did, the Platform contained no relevant listing when Company B applied; a Category 4 declaration was not possible.

The court found that Company A registered the patent on June 21, 2021; the Platform publicly disclosed it on June 28, 2021. The National Medical Products Administration (NMPA) received Company B’s Category 4 generic drug application on June 23, 2021; the Center for Drug Evaluation (CDE) accepted it on June 30, 2021. Company B made no patent declaration on the Registration Platform. On July 14, 2021, Company A sent a patent notice urging a non-marketing commitment during the patent term, warning that silence would be deemed an assertion of non-coverage; Company B did not respond. On May 18, 2021, CDE announced on its official website (<https://www.cde.org.cn/>) the public testing of the Registration Platform for the linkage mechanism; on June 25, 2021, CDE issued a pre-notice ending the Registration Platform’s testing and released the Registration Platform user guide.

The Beijing Intellectual Property Court (BIPC) held that the technical solution of Mabaloxavir tablets (CYHS2101377) falls within claims 1–9 of patent No. 201180056716.8. Company B appealed, arguing retroactivity concerns, unfairness in treating the case as a *de facto* Category 4 declaration, and lack of legal basis to require a no-infringement commitment during the patent term. On March 14, 2023, the Supreme People’s Court dismissed the appeal and affirmed the BIPC decision.

Holding

1. For disputes arising from applications filed after the Patent Law took effect but before the Measures took effect, a party may sue under Article 76(1) of the Patent Law. The courts should accept such cases even if, due to the absence of linkage implementing measures, the party cannot submit certain materials.
2. Under Article 76(1) of the Patent Law, filing a linkage lawsuit requires: the suit be filed during the drug marketing review and approval; the plaintiff be the marketing authorization applicant or the relevant patentee or interested party; the dispute arise from a patent related to the drug seeking registration; and the relief sought be a determination whether the applied-for-drug’s technical solution falls within the patent’s scope. Patentees or interested parties must also base the suit on a valid patent.

Reasoning

(I) Regarding the legal basis for filing the lawsuit in the circumstances of this case

Article 76 of the Patent Law does not provide that the implementation of Paragraph 1 is contingent upon prior adoption of the coordinating linkage measures set out in Paragraph 3. Absent a special provision, the law’s entry into force governs when its individual articles become effective. Second, Paragraph 1 of Article 76 grants parties the right to bring an action, while Paragraph 3 concerns measures linking drug marketing approval with the resolution of patent disputes. Whether such coordinating measures have been formulated and implemented should not affect the parties’ right to sue. Third, although Article 76 alone does not fully construct a complete drug patent linkage system, the degree of institutional completeness does not affect the operation of a law once effective. In applying the law to a specific case, courts should adhere to legislative intent and purpose and respect the right of action conferred by law, and should not, in principle, effectively postpone the law’s implementation on that basis. Therefore, for a generic drug seeking registration after the Patent Law took effect but before the Measures came into force, the parties may file suit under Article 76(1) without the prerequisites that the Measures be in force or that their specified conditions be satisfied.

(II) Regarding the specific conditions for filing the lawsuit in the circumstances of this case

Although Company A filed this action after the SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Civil Patent Disputes Related to Drugs Applied for Registration took effect, the materials those Provisions require upon filing are all generated pursuant to the linkage measures. As noted, for disputes arising from applications filed after the Patent Law took effect but before the Measures took effect, the parties may sue under Article 76(1). If parties were objectively unable to submit materials generated by the linkage measures because those measures had not yet been implemented, their right to sue should not be impaired; otherwise, the operation of Article 76(1) would be effectively deferred until after the SPC Provisions took effect. Accordingly, in such circumstances, whether the action meets filing requirements should be assessed under Article 76(1) of the Patent Law and Article 122 of the Civil Procedure Law. In addition, because in this period generic applicants had no legal obligation to make declarations against listed patents, it is inappropriate to import the concept of a “Category 4 declaration” when determining filing conditions.

Under Article 76(1) of the Patent Law, the following conditions must be satisfied to bring suit: (1) the action is filed during the drug marketing review and approval process; (2) the plaintiff is the marketing authorization applicant or the relevant patentee or interested party; (3) the action arises from a patent related to the drug seeking registration; and (4) the relief sought is a determination whether the technical solution of the drug seeking registration falls within the scope of the drug patent. In addition, a patentee or interested party must base such action on a

valid patent. As to the dispute arising from the "patent related to the drug seeking registration" in the foregoing conditions, because Article 76(1) expressly provides that the claim in such disputes is to confirm whether the applied-for drug's technical solution falls within the patent's scope, this naturally refers to disputes over whether that technical solution falls within the patent's scope. However, where no declaration mechanism for generic applicants had yet been established, the patentee or interested party may bring suit under Article 76(1) without first requiring an expression of intent from the generic applicant. Whether a genuine controversy exists over coverage should be examined at the merits stage.

In this case, the patent-in-suit remained valid. Company A, as patentee, filed suit during the evaluation and approval of the generic drug, seeking a determination that the generic's technical solution falls within the scope of the patent-in-suit. This satisfies the requirements for bringing an action under Article 76(1) of the Patent Law. Moreover, the suit also meets the conditions set forth in Article 122 of the Civil Procedure Law.

X. Utility model patent infringement involving a bonded anchor bolt—Publicized business performance by the infringer may serve as a basis for calculating damages

Parties

Technology Company A v. Building Technology Company B and Mr. Zhang

Case number

(2021) 最高法知民终 1066 号 | 2021-SPC-IP-Civ-Fin-1066

Panel

Xu Yanru | Liu Xiaomei | Pang Min

Keywords

civil; utility model patent infringement; calculation of damages; publicized business performance

Relevant legal provisions

- Patent Law (Amended in 2008), Articles 11, 59(1), 65(1)
- SPC Interpretation (II) on Several Issues Concerning the Application of Law in the Trial of Patent Infringement Dispute Cases, Article 27

Facts

Technology Company A owns utility model patent No. 201320534267.X, titled “Bonded Anchor Bolt” (the “patent-in-suit”). Company A alleged that, starting in 2017, Company B and Mr. Zhang actively promoted a third-generation point-supported installation technology, in which the “special anti-pull-out protective anchor bolt for point-hanging” falls within the scope of the patent-in-suit, constituting infringement. It sued in the Shanghai Intellectual Property Court seeking an injunction and RMB 2.5 million in damages.

The Shanghai Intellectual Property Court dismissed the claims. Company A appealed. On May 23, 2022, the Supreme People’s Court rendered this civil judgment, reversing the original decision and ordering Company B and Mr. Zhang to cease infringement and pay RMB 2.5 million in damages.

Holding

Where the patentee relies on the infringer’s publicly touted business scale as the basis for calculating damages, and the infringer counters that such publicity is exaggerated and not reflective of its actual performance but fails to submit evidence of its actual infringing business scale, the court may adopt the publicized business scale as the basis for calculating damages.

Reasoning

The “conflicting application” defense (defense based on a prior-filed application) raised by Company B and Mr. Zhang fails. The accused products are accessories for the third-generation point-supported installation technology that Company B and Mr. Zhang actively promoted. In 2017, they claimed a cumulative construction area exceeding two million square meters and showcased related project cases via brochures and their official website. On February 24, 2019, Company B’s deputy general manager continued to promote third-generation point-supported projects via WeChat Moments. Although Company B and Mr. Zhang disputed these facts—arguing the “two million square meters” figure was puffery, that the project cases were borrowed from partners, and that the accused products were not used—they provided no effective rebuttal evidence of their actual construction volume, so the puffery claim lacks support; nor did they submit evidence of the anchor bolt accessories they actually used, rendering their denial of use inconsistent with the facts.

On these facts, the court determined damages with reference to: an average of five accused products used per square meter; patented product unit prices of RMB 3.57 and RMB 3.27; and a reasonable profit margin—as asserted by Company A. Company B and Mr. Zhang’s infringing gains should be no less than RMB 2.5 million. Taking into account their business scale, the prolonged period and broad scope of infringement, evident willfulness, and Company A’s reasonable enforcement costs (including attorneys’ fees and notarization fees), the court fully supported the claimed RMB 2.5 million in damages.

Y. Reverse act preservation in utility model patent infringement dispute involving a flat mop—Application of reverse act preservation in patent infringement disputes involving e-commerce platforms

Parties

Cixi Plastics Company A v. Yongkang Industry and Trade Company B, Zhejiang Network Company C *et al.*

Case number

(2020) 最高法知民终 993 号 | 2020-SPC-IP-Civ-Fin-993

Panel

Yuan Xiaoshuang | Xu Fei | Kong Liming

Keywords

civil; utility model patent infringement; reverse act preservation; security amount; security deposit

Relevant legal provisions

- Civil Procedure Law (Amended in 2017), Article 100

Facts

Company A is the patentee of the utility model patent titled “Flat mop cleaning tool with novel bucket structure” (the “patent-in-suit”) and another utility model patent titled “Mop bucket for squeezing and cleaning flat mop” (“Patent 180.2”). Alleging that the “miracle mop” sold by Company B on the T**.com platform operated by Company C infringed both patents, Company A filed this action and another action (Case No. (2019) Zhe 02 IP-Civ-1st-368, “Case 368”) before the Ningbo Intermediate People’s Court. Upon Company A’s applications for property preservation, the court froze RMB 3.16 million in Company B’s Alipay account in each case. Following Company A’s complaint to Company C, Company B appealed to Company C and issued an IP Security Deposit Commitment Letter, agreeing to deposit RMB 1 million in its Alipay account as security and consenting that Alipay and Company C freeze all sales revenue of its online shop as from 22:00 on November 10, 2019.

At first instance, the Ningbo Intermediate People’s Court found infringement, ordered Company B and others to cease infringement and to be jointly and severally liable for damages, and ordered Company C to immediately delete and disconnect the sales link of the accused product. On the same day, Company A lodged a further complaint with Company C regarding the accused product. Company C then removed the sales link for the accused product on T**.com.

Company B and others appealed to the Supreme People’s Court (SPC). During the second instance, the patent-in-suit was declared wholly invalid by the China National Intellectual Property Administration (CNIPA), against which Company A stated it would bring an administrative action. On November 5, 2020, Company B applied to the SPC for reverse act preservation, requesting an order directing Company C to immediately restore the product sales link on T**.com. Company B stated that the accused product was its “hit product,” and that failure to restore the link ahead of the “Double Eleven” shopping festival would cause irreparable loss. As at the date of the reverse act preservation application, Case 368 remained pending at first instance and Patent 180.2 therein remained valid; the balance frozen in Company B’s Alipay accounts totaled RMB 15.6 million, of which RMB 8.28 million comprised the entire sales revenue of its shop since 22:00, November 10, 2019, frozen with Company B’s consent.

On November 6, 2020, the SPC issued this civil judgment: (1) Company C shall immediately restore the sales link for the accused product of Company B on the T**.com shopping platform; (2) RMB 6.32 million in Company B’s Alipay accounts shall be frozen until the judgment in this

case becomes effective; (3) from the date of restoration of the sales link until the effective date of the judgment, if 50% of the total sales of the accused product after restoration exceeds RMB 6.32 million, then 50% of the excess shall be retained in Company B's Alipay account and shall not be withdrawn.

Holding

1. In intellectual property (IP) infringement disputes involving an e-commerce platform, where the accused infringer applies for reverse act preservation seeking an order that the platform operator restore links or services, the court shall examine the application.
2. Where, following measures such as disconnection of links or suspension of services for alleged patent infringement, the patent-in-suit has been declared invalid but the related administrative litigation over patent validity has not yet concluded, and the accused infringer applies for reverse act preservation to restore links or services, the court may grant the application if the applicant preliminarily proves or reasonably explains that failure to restore would cause irreparable harm (such as serious loss of competitive advantage and business opportunities), that the harm to the right holder from restoration would not exceed the harm to the applicant from non-restoration, and that restoration would not prejudice the public interest.
3. When granting such reverse act preservation, the court may order the accused infringer, pending the effective judgment, not to withdraw a specified amount from the account receiving proceeds from sales of the accused product via the e-commerce platform, to serve as security. The security amount shall be reasonably determined with comprehensive regard to the right holder's claimed damages, potential loss to the right holder from erroneous preservation, and the accused infringer's expected gains after preservation. Security may comprise a fixed component plus a dynamic component.

Reasoning

(I) On whether Company B, as the accused infringer, has standing to apply for act preservation

E-commerce platform operators have a statutory duty to take necessary measures—such as deleting, blocking or disconnecting links, and terminating transactions and services—upon receipt of a notice from an IP right holder containing preliminary evidence of infringement. However, Chinese law does not specify under what circumstances a platform operator may, at the request of a platform merchant, take measures such as restoring links. The applicant for act preservation under Article 100 of the Civil Procedure Law is not limited to a plaintiff. In IP infringement disputes involving e-commerce platforms, permitting a platform merchant accused of infringement to apply, subject to Article 100's conditions, for act preservation requiring the platform operator to restore links or services is of significant importance to reasonably balance the lawful interests of the IP right holder, the platform operator, and the platform merchants, and to promote the sound development of the e-commerce market.

Given that patents and other IP rights conferred through administrative procedures may become uncertain in the course of civil infringement proceedings—owing to invalidation decisions or related administrative actions—and that a platform merchant's operating conditions may likewise change materially during litigation, a platform merchant facing an urgent situation in which non-restoration of links would cause irreparable harm to its lawful interests may apply to the people's court for act preservation directing restoration of links. The court shall accept such an application and examine it under Article 100 of the Civil Procedure Law and relevant judicial interpretations. In this case, the patent-in-suit was declared invalid by CNIPA at second instance, and its validity became uncertain as the right holder intended to bring administrative litigation. Company B, whose product link had been removed, has standing to apply for act preservation to restore the link.

(II) On whether the act preservation measure of restoring the link should be granted in this case

In deciding whether to grant restoration of links upon an accused infringer's application, the court should primarily consider: whether the request has a factual and legal basis; whether non-restoration would cause irreparable harm to the applicant; whether the potential harm to the

patentee from restoration would exceed the harm to the accused infringer from non-restoration; whether restoration would harm the public interest; and whether other circumstances render restoration inappropriate. Specifically, the following points were considered:

(1) Whether Company B's request has a factual and legal basis. This case concerns alleged infringement of a utility model patent. In China, utility models are granted without substantive examination and thus have weaker stability. To balance the interests of patentees, competitors, and the public and to maintain an orderly online environment, a patentee requesting an e-commerce platform to delete a sales link suspected of infringing a utility model patent should submit a patent evaluation report issued by the patent administration authority. If the patentee fails to submit such report without justification, the platform operator may refuse to delete the link, unless a court has, after trial, found infringement. In this case, Company C promptly deleted the accused product's sales link after the court of first instance found infringement. However, at second instance the patent-in-suit was declared wholly invalid by CNIPA for lack of novelty, and the right holder intended to file administrative litigation, rendering validity uncertain. Owing to this case and Case 368, RMB 15.6 million in Company B's Alipay accounts had been frozen as of November 5, 2020, seriously affecting normal operations. In these circumstances, Company B's request that Company C restore the product link has a factual and legal basis.

(2) Whether non-restoration would cause irreparable harm to the applicant. In e-commerce IP disputes, deletion, blocking, or disconnection of a sales link not only prevents sales on the platform but also impairs accumulated traffic, search weighting, and account ratings, thereby diminishing the merchant's competitive position. In determining "irreparable harm," courts should consider, *inter alia*: (1) whether failure to grant preservation would cause irreparable damage to personality-related rights such as reputation; and (2) whether it would result in serious loss of competitive advantage or business opportunities, such that—even if monetary compensation for erroneous deletion is theoretically available—the loss would be so substantial or complex that it cannot be accurately quantified.

Here, the accused product was primarily sold through Company B's store on T**.com. As found at first instance, cumulative sales reached 283,693 units by November 13, 2019; 352,996 units by December 4, 2019 (at evidence exchange); and 594,347 units by January 13, 2020, (at trial). These figures show both high sales volume and substantial accumulated traffic and search weight; disconnection would significantly impact online sales interests. Particularly around key sales events such as the "Double Eleven" festival, restoration or non-restoration has a substantial bearing on commercial interests. With validity uncertain, restoring the link through act preservation allows the platform merchant to operate normally during such peak periods and avoids irreparable harm.

(3) Whether the potential harm to the patentee from restoration would exceed the harm to the accused infringer from non-restoration. Although the accused product and the patentee's product are in the same category, numerous similar products exist on the market; restoration would not completely displace Company A's patented product. Moreover, the court has accounted for potential loss to Company A by freezing corresponding funds in Company B's Alipay account and retaining a portion of proceeds from post-restoration sales, which Company B expressly accepted. In these circumstances, compared with the impact of non-restoration on Company B's normal operations, the potential harm to Company A from restoration is lesser.

(4) Whether restoration would harm the public interest. In patent disputes, public interest considerations typically include public health, environmental protection, and other major societal interests. The accused product here is a mop bucket for household use. The key consideration is whether restoration would affect public health or environmental protection, particularly whether it would cause undue harm to consumers' personal or property safety. No evidence shows any such risk; restoration does not harm the public interest.

(5) Whether other circumstances make restoration inappropriate. The accused product is also alleged, in the Case 368, to infringe Company A's still-valid Patent 180.2. First, Case 368 remains at first instance; whether infringement is established and whether the prior-art defense succeeds are uncertain. Second, Company A's damages claim in Case 368 has been secured by freezing RMB 3.16 million in Company B's Alipay account. Third, in fixing security

for preservation in this case, the court took Case 368 into account, appropriately increasing Company B's security and retaining a portion of its post-restoration proceeds. As this preservation concerns only the present case, the security remains frozen until the judgment herein becomes effective. If, at that time, Case 368 is still pending, Company A may apply therein for preservation or other measures to protect its rights, and the court in that case will decide accordingly. There is thus no risk that Company A's rights in Patent 180.2 cannot be safeguarded. The separate allegation of infringement of Patent 180.2 does not preclude act preservation in this case.

(III) On determining the amount of security

Security for act preservation must be both reasonable and effective: it should account for possible harm to the respondent from implementing preservation measures, while avoiding excessive security that would unduly burden the applicant's operations. In e-commerce platform patent disputes, when fixing security for restoration of links, the court should, on the one hand, consider potential harm to the right holder after restoration and fully safeguard the right holder's ability to seek compensation therefor; on the other hand, it should reasonably determine the applicant's expected gains after restoration, avoiding undue impact on cash flow and subsequent operations from freezing excessive sales revenue. In both this case and Case 368, Company A claimed RMB 3.16 million in damages, and the first-instance court adopted corresponding property preservation. However, given the large sales volume prior to link deletion and the prospect that restoration may enlarge Company A's losses, the court, to maximally protect the patentee's interests, will set security with reference to Company A's claims in both cases and Company B's expected gains after restoration. As Company B's gains will grow with sales, the court adopts, in addition to a fixed security amount, a dynamic component. Since Company B's sales revenue also includes costs and administrative expenses, and to avoid unduly impacting operations, the dynamic security—considering the contribution ratios of the patents involved in both cases—is set at 50% of Company B's sales.

Z. Utility model patent inventor remuneration involving a portable and refillable liquid spray bottle—Whether infringement damages obtained on the basis of a service invention patent may constitute the basis for calculating inventor remuneration

Parties

Mr. Zeng v. Dongguan Company A

Case number

(2019) 最高法知民终 230 号 | 2019-SPC-IP-Civ-Fin-230

Panel

Luo Xia | Tong Haichao | Xu Fei

Keywords

civil; service invention inventor reward and remuneration; utility model patent; infringement damages

Relevant legal provisions

- Patent Law (Amended in 2008), Articles 11 and 16
- Implementing Regulations of the Patent Law (Amended in 2010), Article 78

Facts

Mr. Zeng alleged: He joined Company A in November 2006 as deputy manager of the engineering department, engaging in R&D projects and technology development. During his tenure, as the person in charge of Company A's R&D projects, he completed multiple tasks, including in relation to the patent-in-suit, which was filed by and granted to Company A as a service invention. Company A, relying on this patent, successfully transformed its business and realized substantial benefits by selling patented products through two companies effectively controlled by third party Mr. Xu. After grant, Company A paid Mr. Zeng no reward or remuneration, thereby infringing his lawful rights and interests. He sued before the Guangzhou Intellectual Property Court, seeking an order that Company A pay RMB 1,000,000 as inventor remuneration for a service invention-creation.

Company A argued: (1) Mr. Zeng played only an auxiliary, secondary role in proposing, developing and completing the patented technical solution; (2) the patent-in-suit was merely an experiment in Company A's ongoing development of refillable portable bottles, and, due to an unreasonable exhaust structure causing leakage in samples, it had material technical defects and was never implemented; statements in other infringement suits that the patent had been practiced were made only to facilitate litigation; (3) the three companies involved are independent legal entities, and Company A did not profit from sales of the patented products through the two companies identified by Mr. Zeng; (4) the claim is time-barred; (5) statements made in other cases do not constitute admissions herein, and Mr. Zeng bears the corresponding burden of proof.

The court found that the dispute among Mr. Zeng, Company A, and third parties Mr. Xu and Mr. Wang over reward and remuneration for inventor/designer of a service invention-creation concerned utility model patent No. 200720051806.9, titled "Portable and refillable liquid spray bottle" (the "patent-in-suit"). Company A had brought multiple infringement actions based on the patent-in-suit and obtained court awarded damages totaling RMB 1.125 million.

On May 21, 2019, the Guangzhou Intellectual Property Court rendered Civil Judgment (2017) Yue 73 Civ-1st No. 3581, ordering Company A to pay Mr. Zeng RMB 200,000 as inventor remuneration for a service invention-creation. Company A appealed, asserting that the patent had not been implemented and that no benefit had been obtained. On July 21, 2020, the Supreme People's Court rendered this civil judgment, dismissing the appeal and affirming the first instance judgment.

Holding

Infringement damages obtained by an entity on the basis of a service invention patent constitute revenue from prohibiting unauthorized exploitation of the patent. After deducting necessary enforcement expenses, such damages may be deemed “operating profit” within the meaning of Article 78 of the Implementing Regulations of the Patent Law, and the inventor may claim reasonable remuneration on that basis.

Reasoning

Under Article 16 of the Patent Law, upon exploitation of an invention-creation patent, the inventor or designer shall be paid reasonable remuneration based on the scope of application and the economic benefits obtained. The rationale for requiring the patentee entity to pay remuneration to the inventor or designer of a service invention-creation is that the entity has implemented the patent and derived economic benefits therefrom; where implementation yields economic benefits, the benefiting entity shall pay reasonable remuneration.

In this case, the damages recovered by Company A (the patentee entity) through enforcement based on the patent-in-suit are revenues derived from prohibiting others from exploiting the patent without authorization. After deducting necessary enforcement costs and expenditures, such economic gains shall be regarded as “operating profit” as referred to in Article 78 of the Implementing Regulations, thereby providing a legal basis for paying reasonable remuneration to the inventor. Taking into account, *inter alia*, that the patent-in-suit is a utility model; that there are three inventors; the patent term; the influence and value of the patent-in-suit for Company A’s R&D and improvement of related technical products; the necessary costs incurred by Company A in enforcement litigation; and the damages awarded by judgments and actually received upon execution, the first instance court’s determination that Company A shall pay Zeng RMB 200,000 as service invention remuneration is essentially appropriate.

Chapter III: Copyright cases

- A. “Tang Yun cloakroom furniture” copyright infringement—Copyright protection for works of applied art
- B. “Wuxia Q Zhuan” game copyright infringement and unfair competition—Analytical framework for adaptations using elements of others’ works
- C. “Soul Land” mobile game copyright infringement—Determining infringement of the right of adaptation and the use of decompilation
- D. Copyright ownership and infringement of a diabolo acrobatic work—Original expression and scope of protection for acrobatic works
- E. Copyright infringement by Karaoke TV (KTV) on-demand playback devices—Subsequent ratification does not alter the determination of infringement
- F. Infringement of the right of communication through information networks involving watermarked images and a unilateral copyright notice—Evidentiary examination for establishing copyright ownership
- G. Jurisdictional objection concerning the right of communication through information networks—Disputes shall fall under the jurisdiction of the court at the place of infringement or the defendant’s domicile
- H. Copyright infringement concerning “Big-Head Son”—Determination of commissioned works and corporate works
- I. Infringement concerning the NFT digital artwork “Fat tiger gets vaccinated”—Determining the liability of NFT trading platform providers

A. “Tang Yun cloakroom furniture” copyright infringement—Copyright protection for works of applied art

Parties

Home Furnishing Products (Shanghai) Company A v. Beijing Wood Industry Company Ang and Nanjing Yang Furniture Sales Center

Case number

(2018) 最高法民申 6061 号 | 2018-SPC-Civ-Pet-for-SR-6061

Panel

Qin Yuanming | Li Rong | Wu Rong

Keywords

civil; copyright infringement; work of applied art; functionality; artistry

Relevant legal provisions

- Regulations for the Implementation of the Copyright Law, Articles 2 and 4

Facts

In January 2009, Company A designed a set of drawings titled “Tang Yun cloakroom furniture.” In July 2009, Company A engaged Shanghai S. Photography & Design Company to photograph a series of furniture it had produced. In September and October 2011, Company A introduced and promoted its enterprise and products on Hejia.com and SouFun.com, displaying photos of its “Tang Yun cloakroom furniture.” On December 10, 2013, Company A applied for copyright registration of the three-dimensional pattern of the “Tang Yun Cloakroom Combination Cabinet.”

Nanjing Yang Furniture Sales Center (Yang) acted as the Nanjing distributor for a Beijing-based Company—Ang Wood Industry Company (Company Ang). Company A discovered that the “Tang Yun” rosewood cloakroom sold under the Yuejie brand at Yang’s store was identical to Company A’s “Tang Yun Cloakroom Combination Cabinet.” Company A asserted that the Tang Yun Cabinet is a work of applied art; Company Ang infringed Company A’s reproduction and distribution rights in that work, and Yang infringed Company A’s distribution right. Between November 29, 2013 and January 13, 2014, Company A sought evidence preservation for the accused product and filed this action.

A comparison of Company A’s “Tang Yun cloakroom furniture” and the accused “Tang Yun” rosewood cloakroom shows the following similarities: both have an overall L shape; wardrobe door panel layouts are similar; accessory decorations are the same; board colors, grains, and overall form are similar. These similarities lie primarily in artistic aspects. Differences lie mainly in functional aspects, including the L corner angle and internal compartment divisions, which do not affect the overall visual impression and do not create an obvious distinction.

Company A sued before the Nanjing Intermediate People’s Court, which dismissed the claims. Company A appealed to the Jiangsu High People’s Court. The appellate court: (1) set aside the first instance judgment; (2) ordered Company Ang to immediately cease manufacturing and selling products infringing Company A’s copyright in the “Tang Yun cloakroom furniture”; (3) ordered Yang to immediately cease selling such infringing products; (4) ordered Company Ang to pay RMB 300,000 in economic losses (including reasonable expenses) within ten days of the judgment taking effect; and (5) dismissed Company A’s remaining claims. Company Ang petitioned for supervisory review. On December 29, 2018, the Supreme People’s Court rendered this ruling, rejecting the review application.

Holding

Where an article possesses originality, artistry, utility, and reproducibility, and where its artistic elements are separable from its utilitarian features, it may be recognized as a work of applied art and protected, as a work of fine art, under the Copyright Law. Works of applied art protected by the Copyright Law must possess artistic attributes; the law protects the artistic aspects of such works, not their utilitarian functions.

Reasoning

The main issues are:

(I) Whether Company A's "Tang Yun cloakroom furniture" constitutes a work protected by the Copyright Law

Article 2 of the Implementation Regulations provides that a "work" is an original intellectual achievement in literature, art, or science that can be reproduced in a tangible form. Article 4(8) defines "works of fine art" as planar or three-dimensional plastic arts with aesthetic significance, such as paintings, calligraphy, and sculptures, constituted by lines, colors, or other means. Chinese copyright law protects the author's original expression in a work, not the ideas reflected therein. Works of applied art inherently combine utility and artistry. Functionality belongs to the realm of "idea" and is not protected by copyright; protection for applied art extends only to its artistry—that is, original artistic modeling or patterns, namely the structure or form as artistic expression. To be protected as a work of fine art, a work of applied art must, in addition to meeting the general requirements for a "work" and the specific criteria for fine art, also satisfy the separability requirement: its utilitarian features and artistic elements must be separable. If they are inseparable, protection as a work of fine art does not apply.

There is no dispute that Company A's "Tang Yun cloakroom furniture" is reproducible. The core questions are whether it contains sufficiently original artistic modeling or patterns and whether its utilitarian functions are separable from its artistic elements.

First, independent completion. Company A submitted design drafts, a copyright registration certificate, product photographs, sales contracts, and media reports, forming a complete evidentiary chain sufficient to prove that it independently completed the "Tang Yun cloakroom furniture" in 2009. Company Ang alleged that Company A copied accessory designs and used generic colors and designs but provided no sufficient evidence; the court does not support that contention.

Second, originality. Regarding board color and pattern, Company A did not merely use natural wood grain; rather, it abstracted colors and elements from traditional Chinese furniture and redesigned them, integrating traditional and modern styles. Choices of color palette, matching, grain direction, and gradation reflect unique artistic modeling or patterns. Regarding accessories, the furniture employs handcrafted brass fittings, including brass corner ornaments on the front cabinet doors and drawer handles and around the drawers, with wavy beveled edges and hollow out designs. Whether to use corner ornaments, the motifs selected, and their placement reflect Company A's creative choices in selection, design, and layout. From the standpoint of Chinese style aesthetics, the right side adopts a symmetrical design, imparting a sense of harmony. The work thus has aesthetic significance and attains the requisite level of artistic creation as a work of fine art.

Third, separability. The furniture's utilitarian features lie mainly in internal storage space enabling the placing and display of garments, and in the L shaped corner accommodating particular home environments. Its artistic appeal lies in the designed board colors and patterns, the combination of metal accessories, and Chinese style symmetry—melding modern elements with a traditional style to create a dual classical modern aesthetic. Altering board colors or patterns, accessory combinations, or symmetry would not affect its function as cloakroom furniture for storing and displaying clothing. Accordingly, the utilitarian features and artistic elements are separable and independently exist.

Therefore, Company A's "Tang Yun cloakroom furniture," as a three-dimensional work combining utility and aesthetic significance, is a work of fine art protected by the Copyright Law.

(II) Whether Company Ang infringed Company A's copyright in the work

In determining infringement, the analysis focuses on (i) access to the asserted work and (ii) substantial similarity between the accused product and the asserted work. Here, first, the design drawings provided by Company Ang do not fully reflect the design elements of the accused "Tang Yun" rosewood cloakroom and lack information on creation time and design personnel; they do not sufficiently prove independent design. Company A's work was created and published earlier than Company Ang's accused product. As a furniture industry operator, Company Ang had an opportunity to access Company A's work. Second, for works of fine art combining utility and aesthetics, copyright protects artistic aspects only, not utilitarian functions. Substantial similarity must therefore be assessed with respect to artistic elements.

Comparing Company A's "Tang Yun cloakroom furniture" and the accused "Tang Yun" rosewood cloakroom: both have an overall L shape; door panel layouts are similar; accessory decorations are the same; board colors, grains, and the overall form are similar—similarities that lie in artistic aspects. Differences mainly concern utilitarian features (L corner angle; internal compartment divisions) and do not affect the overall visual effect or create an obvious distinction. The accused product is thus substantially similar to Company A's work, and Company Ang infringed Company A's copyright in the work at issue.

B. “Wuxia Q Zhuan” game copyright infringement and unfair competition—Analytical framework for adaptations that use elements of others’ works

Parties

Ming Publishing Company and Wan (Beijing) Software Company v. Beijing Huo Network Technology Company; Wan Technology Company; and Le Network Technology Company

Case number

(2018)京民终 226 号 | 2018-BJ-Civ-Fin-226

Panel

Yang Baiyong | Su Zhifu | Zhou Bo

Keywords

civil; copyright infringement; right of adaptation; original expression; substantial similarity

Relevant legal provisions

- Civil Procedure Law (Amended in 2017), Article 52(1), Article 119
- Copyright Law (Amended in 2010) Article 10(1)(xiv), Article 49

Facts

Ming Publishing Company (Ming) and Wan (Beijing) Software Company (Wan Soft) alleged jointly that: since 2002, Ming has held exclusive rights in the *Collected Works of Jin Yong* within China, other than the right to publish and distribute the works in simplified Chinese book form. Wan Soft acquired, by assignment, the right to adapt the collection into mobile terminal game software within a specified territory and period, together with exclusive authorization for the commercial exploitation of the adapted game software. Beijing Huo Network Technology Company (Huo), Wan Technology Company (Wan Tech), and Le Network Technology Company (Le) allegedly adapted, without permission, four novels—*The Legend of the Condor Heroes*, *The Return of the Condor Heroes*, *The Heaven Sword and Dragon Saber*, and *The Smiling Proud Wanderer* (collectively, the works-in-suit)—into a game (the game-in-suit), distributed it, and derived substantial illegal profits, thereby seriously infringing Ming and Wan Soft’s right of adaptation. As competitors of Ming and Wan Soft, Huo, Wan Tech, and Le allegedly exploited the works-in-suit’s public recognition by converting well-known characters, martial arts, and other elements into cards; in so doing, they free-rode on the reputation of the works and their author, engaged in false publicity, and violated good faith, which, in aggregate, constitutes unfair competition. Ming and Wan Soft sought orders to cease infringement, issue an apology, eliminate adverse effects, and pay RMB 100 million in economic losses plus over RMB 310,000 in reasonable expenses.

Huo, Wan Tech, and Le jointly argued: Ming and Wan Soft’s entitlement to the right of adaptation is doubtful and their standing is defective; the game-in-suit is a new work created by a network Company using public domain materials and is not a derivative of the works-in-suit; individual characters, scenes, martial arts, weapons, and formations in literary works are not protected by copyright; Wan Tech and Le exercised due care; no copyright infringement or unfair competition occurred.

The court found: since 2002, Ming has held exclusive rights in the *Collected Works of Jin Yong* (including the four novels at issue) in China, other than simplified Chinese book publication and distribution. Wan Soft obtained the right to adapt the collection into mobile terminal game software within a specified territory and period, with exclusive authorization to commercially exploit the adapted software.

The game-in-suit is a card-based mobile game developed by Huo and operated by Wan Tech and Le. It features four card types: characters, martial arts, accessories, and formations. The

plot unfolds as orthodox sects besiege the demonic cult; both sides suffer heavy losses; the cult leader disappears. A dying orthodox leader instructs his disciple to seek the missing leader; the disciple travels the *jianghu*, clearing stages, dueling masters, and witnessing events.

Statistics showed: 110 character cards (“disciples”), of which 76 correspond to characters from the works-in-suit—nearly 70% of all game characters and covering all core characters; 116 martial arts, of which 82 (71%) correspond to those described in the works; 8 stages (25% of all stages) correspond to story scenes. The game also corresponds to or resembles the works in character descriptions, martial arts, accessories, formations, and level settings. Huo admitted referencing elements of the works during development.

Beijing First Intermediate People’s Court ruled: (1) Huo, Wan Tech, and Le shall immediately cease using elements related to the works-in-suit in the game software and, prior to deletion, shall not themselves provide or authorize client downloads; (2) for unfair competition acts, each shall publish a statement for 72 consecutive hours at the top of its official website homepage to eliminate adverse effects; (3) they shall be jointly and severally liable for RMB 16,319,650.8 in economic losses and reasonable expenses; (4) other claims dismissed. All parties appealed. On December 18, 2019, the Beijing High People’s Court rendered this judgment: (1) first instance items (1) and (3) affirmed; (2) item (4) vacated; (3) item (2) modified to require statements specifically for infringement of the right of adaptation, for 72 consecutive hours on the homepage tops of their respective official websites; (4) other claims of Wan Soft and Ming dismissed; (5) all appeals by Huo, Wan Tech, and Le dismissed.

Holding

Under Article 10(1)(xiv) of the Copyright Law, the right of adaptation is the right to alter a work and create a new, original work. Infringement is commonly assessed under the “access plus substantial similarity” approach—i.e., whether the alleged infringer had access to the work and whether the accused work is substantially similar. Substantial similarity is evaluated by comparing the author’s choices, selection, arrangement, and design in expressive aspects.

Reasoning

The Beijing High People’s Court holds as follows regarding whether the game at issue infringes the right of adaptation in the works concerned.

According to Article 10(1)(xiv) of the Copyright Law, the right of adaptation is the right to alter a work and create a new work with originality. Infringement of the right of adaptation is generally determined under the “access plus substantial similarity” approach—namely, whether the alleged infringer had access to the right holder’s work and whether the accused work is substantially similar to the protectable expression of that work. The Copyright Law protects the author’s original expression—the form in which ideas or emotions are manifested—rather than the ideas or emotions themselves. Protected expression encompasses not only the final form of symbols such as text, color, and lines, but also the content of a work when used to embody the author’s thoughts and emotions. However, ideas, materials or information in the public domain, forms of expression, *scènes à faire*, and expressions that are the sole or limited means of conveying an idea are excluded from the scope of protection under the Copyright Law. In assessing substantial similarity, the inquiry focuses on whether the authors’ choices, selection, trade-offs, arrangement, and design in their expressive content are the same or similar.

In this case, the works involved were published and disseminated before development of the game. Huo admitted at first instance that it referenced and borrowed relevant elements from the works when developing the game. Access is therefore established. As for similarity, the comparison materials and tables—prepared on a like-for-like basis—show extensive overlap. The degree of correspondence and consistency between the defendants’ alleged sources and the game’s content is far weaker than the correspondence between the game and the works involved identified by the plaintiffs. Applying the high-probability standard and the preponderance-of-evidence principle, and taking into account Huo’s admission, the appellate court credits the plaintiffs’ assertion that the game uses relevant content from the works involved.

Given established access and the demonstrated correspondences in character names, personality traits, weapons, and martial-arts moves, the decisive question is whether the game's use of relevant content constitutes an adaptation-based use of the original expression of the works involved.

Generally, for a work composed of themes, storylines, plot designs, and character relationships, the story theme and bare character relationships fall within "ideas," while specific plot developments around that theme and concretized character relationships may qualify as "expression" once sufficiently particularized. Elements implicated in film, television, and game adaptations—characters, plots, and scenes—require specific analysis. A work integrates content and form; its creative elements span the ideational and the specifically expressive. Abstract creative elements (themes, genres, topics, facts) can be personalized by different creators and should not be monopolized. Specific creative elements (structure, plot, characters), where the author's choices, selection, arrangement, and design are original, are protected.

Applying these principles, first, the game uses relevant content from the works through a truncation-and-combination method in a card-based online game format. The plaintiffs do not rely on abstract themes, genres, topics, or facts, but on specific creative elements—characters, character traits and relationships, martial-arts moves, weapons, formations, and scenes—from the four novels. Combined in specific forms, these elements collectively express the author's conception of character and plot and embody expressive choices in selection, arrangement, and design; they are integral to the works' original expression. Moreover, the game does not extract isolated, independent elements; it employs them in truncated and recombined clusters. Based on the comparison materials and their synthesis, the character, martial-arts, accessory, and formation cards, as well as level settings, strongly correspond to the works in naming and descriptive content. Notably, dozens of characters and types of martial arts—exceeding 70%—match those in the works. The game's card-combination rules directly borrow the designed interrelations among characters, martial arts, accessories, formations, and scene linkages in the works, thereby conveying character traits, unique experiences, relationships, and related specific plots and scenes from the novels. Accordingly, the game uses the works' original expression—not as a holistic or merely partial reproduction, but via truncation and recombination of expressive elements from all four novels.

Second, the game changes only the mode of expression (to a card-based game) without creating new expression independent of the works. Adaptation, governed by the right of adaptation, entails using another's work in one's own, but differs from reproduction (duplication) and from mere reference (drawing only on ideas). Adaptation is re-creation based on the original work; it modifies the original but remains constrained by it. The new work produced by adaptation is not wholly independent; it uses the original's expression. Adaptation does not require a change in genre or type; re-creation may occur within the same or in a different medium, provided the adapter uses the original expression and the modifications reflect the adapter's originality. Reference, by contrast, yields a new work whose original expression, though inspired by themes, emotions, or concepts (ideas) of the original, differs from and is independent of the original's specific expression. Here, the game reproduces specific creative elements—characters, traits, relationships, martial-arts moves, weapons, formations, and scenes—in a card-game format. The resulting character traits, relationships, and inter-element combinations do not materially diverge from the novels' expressive choices, and no expression independent of the works' original expression has been formed.

Third, failure to curb this adaptation would frustrate realization of the mobile-terminal game adaptation right and related interests. A work's property interests are ultimately realized through market transactions. For game adaptations of *wuxia* novels, the design centered on characters and their interrelations with martial arts, accessories, formations, and scenes constitutes the core creative elements reflecting the author's selection, arrangement, and design. The game's truncation-and-combination use allows users to partially experience the works through card mechanics. If unchecked, the authorized adaptation rights and related interests licensed to Wan Soft and held by Ming would be difficult to realize.

In conclusion, the game constitutes an adaptation of the works involved. Huo, without permission, adapted the works into mobile-terminal game software, thereby infringing the right of adaptation enjoyed by Ming and Wan Soft. The first-instance court's contrary determination is inconsistent with the facts and law and is corrected on appeal. As the developers and co-operators of the game, Huo, Wan, and Le bear joint tort liability.

C. “Soul Land” mobile game copyright infringement—Determining infringement of the right of adaptation and the use of decompilation

Parties

Shanghai Xuan Entertainment Information Technology Company v. Chengdu Ji Technology Company and Si Network Company

Case number

(2018)苏民终 1164 号 | 2018-JS-Civ-Fin-1164

Panel

Cao Meijuan | He Yonghong | Zhang Changqi

Keywords

civil; infringement of the right of adaptation; game asset/resource library; decompilation

Relevant legal provisions

- Copyright Law (Amended in 2010), Articles 9, 12, and 49

Facts

Shanghai Xuan Entertainment Information Technology Company (Xuan) alleged: Soul Land is a well-known online novel by web author Tang. Xuan acquired, by assignment, the right to adapt Soul Land and has exercised that right by self-adaptation and by licensing third parties, releasing an online game of the same name. In early 2016, Xuan discovered that Si Network Company (Si) had released a mobile game titled “New Soul Land (Divine Realm)” on its mobile game portal (www.4***.cn). The promotional page identified Chengdu Ji Technology Company (Ji) as developer and stated, *inter alia*, “This strategy game, New Soul Land, is based on the novel Soul Land by popular online writer Tang,” and “New Soul Land is adapted from the novel Soul Land by the famous online writer Tang... If you are a fan of Soul Land, come and experience the brand-new gameplay.” After downloading, registering, and entering the game, Xuan found that many character names were taken from the novel and that the storylines fully matched the novel. Xuan claimed that Ji and Si, without authorization or any rights transfer from Xuan, adapted the novel into a mobile game, widely promoted it on www.4***.cn, and provided downloads to users, thereby infringing Xuan’s right of adaptation and causing significant economic loss. Xuan sued before the Xuzhou Intermediate People’s Court seeking: (1) an order that Ji immediately stop promoting New Soul Land (Divine Realm); (2) an order that Si and Ji immediately cease operating the game; (3) a statement on the www.4***.cn homepage to eliminate adverse impact; (4) RMB 20 million in damages from Ji; (5) RMB 52,500 in reasonable expenses; and (6) court and related costs jointly from Si and Ji.

Ji argued: (1) Xuan’s notarized evidence preservation had major procedural defects and should be inadmissible; the alleged facts lack evidentiary basis. (2) Ji lawfully holds rights to adapt Tang’s The Spin-off of Soul Land: The Legend of the Divine Realm into a mobile game and to operate it. As a spin-off of Soul Land, it necessarily shares certain character names, images, relationships, skills, props, and plot connections; limited elements from Soul Land were used only as background to show continuity, constituting reasonable use. (3) The Soul Land novel totals 12 volumes and nearly three million Chinese characters; only 5,000–6,000 characters in the accused game resemble the novel, and of 140 main levels only 15 are alleged to infringe—insufficient, by proportion, to establish substantial similarity. (4) Xuan’s damages claim is grossly excessive and lacks factual and legal basis.

Si argued: (1) The game was supplied by Ji to www.4***.cn; Si lacked knowledge of any suspected infringement, and it conducted qualification reviews, thus having no subjective fault. (2) Xuan asserts a property right (the right of adaptation), not a personality right; therefore, the request to eliminate adverse impact lacks legal basis and should be denied.

The court found: Soul Land is a fantasy novel by Zhang (pen name Tang), first posted on Qidian.com in December 2008. On June 5, 2009, Zhang and Xuan signed a Game Adaptation Right Transfer Agreement, permanently and exclusively transferring the game adaptation right in Soul Land to Xuan. The Spin-off of Soul Land: The Legend of the Divine Realm is a spin-off series authored by Zhang in March 2015. On March 19, 2015, Zhang granted Beijing Si Culture Communication Company (Si Culture) the exclusive game adaptation right in the spin-off, Si Culture granted that right to Chengdu Duo Network Technology Company (Duo). On January 1, 2016, Duo issued an authorization letter to Ji, authorizing Ji to adapt and develop Soul Land: The Legend of the Divine Realm into a mobile game and to use novel elements; Ji could develop, operate, and promote the game.

New Soul Land (Divine Realm) Game Software V2.0 lists Ji as owner; registration number 2015SR23169X; certificate no. Software Copyright Registration No. 111877X; development completed June 20, 2015; registration November 25, 2015. The game launched commercially on January 22, 2016. At first instance, Ji stated it made significant updates on May 28, 2016 (enabling Legend of the Dragon God, cash-gift (“red-envelope”) functionality and a hidden-weapon system, and text adjustments) and, in July 2016, renamed the game Soul Land (The Legend of the Divine Realm).

On December 28, 2017, the Xuzhou Intermediate People’s Court rendered (2016) Su 03 Civ-1st No. 369: (1) Ji shall pay Xuan RMB 5 million in economic losses and reasonable expenses within 20 days of the judgment taking effect; (2) other claims denied. Ji appealed. On November 18, 2020, the Jiangsu High People’s Court dismissed the appeal and affirmed the original judgment.

Holding

1. Video games and novels are different forms of expression. Substantial similarity cannot be assessed solely by the proportion of literal novel text appearing in the game; the inquiry must consider whether the game uses the novel’s original expressive elements—such as characters, character relationships, skills, and plot—and the proportion of such original content within the game.
2. Game software typically contains a game asset or resource library. Decompiling the resource files to extract in-game content and comparing that content with the novel can assist in determining whether the game uses protectable expression from the literary work.

Reasoning

Video games and novels are distinct expressive media. To determine substantial similarity between them, the court must comprehensively assess whether the game uses the novel’s original expressive elements—characters, character relationships, skills, and plot—and also consider the proportion of such original content within the game.

First, the Soul Land novel’s elements—human characters, soul-beast characters, and skills, in combination with character and soul-beast relationships and plotlines—reflect the author’s careful selection, arrangement, and design, embodying artistic taste and style that attracted numerous readers. These constitute the basic original expression of the novel and are protected by the Copyright Law.

Second, the accused game is substantially similar to the novel. (i) The game is a large-scale title. Notarizing only the first 17 chapters took ten working days; collecting evidence for all chapters would impose substantial cost on Xuan and high demands on players, increasing proof difficulty and enforcement costs for the right holder, contrary to fairness and efficiency. (ii) Because the media differ, substantial similarity cannot be judged merely by counting overlapping Chinese characters. The print edition of Soul Land spans 12 volumes and about 2.64 million characters. Given that games typically include a resource library, one may decompile those files, extract content, and compare it with the novel to help determine use. Based on the first 17 chapters gameplay videos preserved by Xuan and the content extracted after decompiling the accused game’s resource library, the names of characters and soul-beasts in the game are identical to those in the novel; the plots are basically the same; and the sequence of plot development is likewise identical. Under the high-probability standard of proof, the court finds that the game extensively uses the novel’s elements—character and soul-beast names, character

relationships, skills, and plot—thus rendering the game substantially similar to the novel. (iii) In the first 17 chapters of the main storyline in the accused game, apart from a small amount of spin-off content in the preface, Chapter 1, and Chapter 5, the game largely uses original, protectable content from Soul Land. Accordingly, without Xuan’s permission, Ji developed the game and infringed Xuan’s game adaptation right in the work.

D. Copyright ownership and infringement of a diabolo acrobatic work—Original expression and scope of protection for acrobatic works

Parties

Acrobatic Troupe Company A v. Wuqiao County Acrobatic Troupe (Company B), Computer System Company C, and Certain TV Station

Case number

(2019)京73民终2823号 | 2019-BJ-73-Civ-Fin-2823

Panel

Song Peng | Feng Gang | Li Zhifeng

Keywords

civil; copyright ownership; infringement; acrobatic works; originality

Relevant legal provisions

- Copyright Law, Article 3
- Regulations for the Implementation of the Copyright Law, Article 4

Facts

Company A alleged: The program “Qiao Huadan—Collective Diabolo” (the “protected work”) is an acrobatic work, and Company A owns its copyright. Company B infringed by performing a program titled “Qiao Huadan” (the “allegedly infringing work”) that plagiarized the original in action combinations, background music, costumes, etc. The TV Station infringed by producing and broadcasting the program video; Company C infringed by disseminating the video on its website without adequate review. Company A sought injunctions and damages.

Company B argued that it had never seen the protected work, that its performance was rehearsed based on another program, and that, in any event, the protected work itself plagiarized “Wang’s Tianqiao Acrobatics.” It further contended that diabolo is traditional folk culture and should not be subject to copyright registration, and that acrobatic performances require years of training; therefore, finding infringement merely because another party registered a copyright is unreasonable.

Company C argued: It is unclear whether the protected work qualifies as an acrobatic work under the Copyright Law or whether Company A owns the copyright. Company C’s platform provides storage services; it did not modify or edit the uploaded video, lacked knowledge or reason to know of infringement, and should not be liable for damages.

The TV Station argued: It recorded the program with authorization from Company B; if the allegedly infringing work infringes, Company B should bear liability, not the TV station.

The court found: Company A created the protected work (Wuhan Optics Valley version) in 2004 and subsequently modified and upgraded it for different venues, creating versions for France, the Spring Festival Gala, and Monaco, among others. The program has received multiple domestic and international awards. Company A registered the France version for copyright, recorded as owning all rights except the right of authorship. Company A entered agreements with the program’s directors/choreographers, He and Zhang, assigning the program’s economic rights to Company A.

At the TV Station’s invitation, Company B performed the allegedly infringing work at the station’s 2017 Spring Festival Gala; the station later uploaded the video to its WeChat account and to Tencent Video.

Comparing the protected work with the allegedly infringing work, the programs share the following principal similarities in movement: (1) both are built upon the diabolo-spinning acrobatic basis and incorporate Chinese opera elements such as circular running; (2) the core choreography of the entrance sequence is similar; (3) certain signature group movements and coherent sequences are identical or highly similar—for example, acrobats in single or multiple linear formations performing wide-stride single-leg lifts and three-step footwork while manipulating the diabolo with both hands, producing uniform, alternating, and continuous motions.

Beijing Xicheng District People's Court held: (1) Company B shall cease the infringing acts; (2) Company B shall publish a newspaper statement to eliminate adverse impact; (3) The TV Station shall publish a newspaper statement to eliminate adverse impact; (4) Company B shall pay Company A RMB 40,000 in economic losses, with the TV Station jointly liable up to RMB 10,000; (5) The TV Station shall pay RMB 10,000 in economic losses; (6) Company B and the TV station shall reimburse Company A RMB 28,239 in reasonable expenses; (7) other claims denied. Company B appealed, arguing lack of originality in the protected work, differences in movements, and non-infringement. On November 1, 2021, the Beijing Intellectual Property Court rendered this judgment, rejecting the appeal and affirming the first instance decision.

Holding

1. Where acrobatic movements are the primary mode of expression and the linkage and arrangement of movements reflect personalized selection, arrangement, and design, the work may be recognized as an “acrobatic work” under Article 3 of the Copyright Law.
2. In acrobatic works, movements are the basic elements and techniques are manifested through those movements; the work does not protect techniques as such, and typically not a single specific move, but protects the arrangement of coherent movements possessing a certain artistry. Simple combinations and repetitions of conventional public-domain acrobatic moves lack originality and are not protected.
3. A work whose principal content is acrobatic movement design but that also incorporates some dance movement design may still be protected as an acrobatic work; there is no need to forcibly split coherent sequences into separate “dance” and “acrobatic” components. Accompanying music, costumes, and stage design should be assessed independently to determine whether they constitute other types of works (e.g., musical or fine art works).

Reasoning

(I) Whether the protected work is an “acrobatic work” under the Copyright Law

The Copyright Law lists acrobatic works alongside music, drama, *quyi*, and dance as a distinct category, indicating that acrobatic works are independent from drama, dance, and other forms. Acrobatic works include acrobatics, magic, and circus; they are “works expressed through physical movements and techniques,” and the protected content is not the techniques as such.

Contemporary acrobatic programs often incorporate dance elements—for example, embedding dance movements within acrobatic sequences or using dance to link acrobatic passages. In such circumstances, forcibly fragmenting coherent sequences into separate “dance” and “acrobatic” components and stripping out the dance elements significantly diminishes the original aesthetic, and the resulting fragments are ill-suited to stand alone as protectable dance or acrobatic works. Accordingly, a work that primarily comprises acrobatic action design but also incorporates some dance movement design may still be protected as an acrobatic work.

In practice, acrobatic performances frequently feature musical accompaniment, distinctive costumes, and stage design. By statute, however, acrobatic works are defined by expression through bodily movements and techniques; they are not composite works (such as audiovisual works) that subsume music or fine art for unitary protection. Thus, even if the music constitutes a musical work and the costumes or stage design constitute fine art works, they are not components of the protectable content of an acrobatic work and should be protected, if at all, as separate works.

In acrobatic works, movements are the basic elements by which techniques are displayed. The work does not protect techniques *per se*, and generally not a single, discrete move. What is protected is the arrangement and design of coherent movement sequences—analogueous to choreography notation in dance. Simple combinations and repetitions of conventional, public-domain acrobatic moves lack originality and are not protected.

Here, in the protected work, many diabolo-spinning moves incorporate movement drawn from traditional Chinese opera and dance and even expressive designs. For example, one complete sequence overlays simultaneous bilateral or vertical diabolo manipulation with a wide-stride single-leg lifting step and a three-step footwork pattern. The work also exhibits personalized choices in stage positioning, transitions, and sequencing, enabling coherent movement series to convey aesthetic effect while showcasing advanced physical technique. Company B provided no evidence that these designs and arrangements chiefly derive from the public domain or constitute limited expression. Its assertions are therefore rejected. The arrangement and design of movements in the protected work reflect individualized creative choices and constitute original expression. The work thus qualifies as an acrobatic work under the Copyright Law.

(II) Whether the protected work and the infringing work are substantially similar

Plagiarism does not require verbatim, unaltered copying. In assessing infringement of the performance right, if the unlicensed performance is substantially similar to relatively complete portions of the copyrighted work's original expression, the alleged infringer had a reasonable opportunity to access the work, and independent creation is excluded, infringement is established.

In the infringing work, the opening stage positions, movement linkages, and the choreographic design of repeatedly featured signature group sequences are substantially similar to corresponding content in the protected work, and those portions embody original expression. Accordingly, Company B's conduct constitutes plagiarism and infringement of the performance right.

E. Copyright infringement by Karaoke TV (KTV) on-demand playback devices—Subsequent ratification does not alter the determination of infringement

Parties

Mr. Su v. Certain Jingmen Company

Case number

(2021) 最高法民再 114 号 | 2021-SPC-Civ-SR-114

Panel

Qin Yuanming | Ma Xiurong | Zhou Bo

Keywords

civil; copyright infringement; liability determination; license; ratification

Relevant legal provisions

- Copyright Law (Amended in 2010), Article 48(1)

Facts

This is a dispute over copyright infringement between applicant Mr. Su and the respondent—a certain Jingmen Company. Mr. Su, as heir, succeeded to the economic rights in 33 musical works owned by the copyright holder, Mr. Su Senior (non-party). On October 15, 2018, personnel retained by Mr. Su paid RMB 80 to Jingmen Company via a third-party payment platform, entered Room B36 as ordinary customers, and selected the music videos of the 33 works at issue for playback. The playback process was recorded on a mobile phone by the entrusted personnel and later burned to a CD. Mr. Su then filed suit requesting: (1) an order requiring Jingmen Company to obtain copyright licenses from the Music Copyright Society of China (MCSC) and the China Audio-Video Copyright Association (CAVCA), or alternatively to cease using the songs; and (2) damages of RMB 15,000.

The Jingmen Intermediate People's Court ordered Jingmen Company to immediately cease using the 33 musical works and to pay Mr. Su RMB 10,000 in economic losses. Jingmen Company appealed. The Hubei High People's Court found that CAVCA and Jingmen Company executed a licensing agreement on June 14, 2019, under which CAVCA licensed use of the audiovisual works it manages, with a licensing period from May 28, 2018 to December 31, 2019. On November 5, 2018, CAVCA and MCSC executed a Cooperation Memorandum providing that, during the transition to a new fee-collection system, CAVCA's seal on licensing agreements would represent both CAVCA and MCSC. The appellate court held that because the evidence was collected on October 15, 2018—within the stated licensing period—Jingmen Company had the right to use the works and did not infringe. It therefore reversed the first-instance judgment and dismissed Mr. Su's claims.

Mr. Su petitioned the Supreme People's Court (SPC) for supervisory review. The SPC granted review and, on December 28, 2021, issued this civil judgment, setting aside both lower-court judgments and ordering Jingmen Company to pay Mr. Su RMB 6,200 in economic losses.

Holding

The Cooperation Memorandum between MCSC and CAVCA, executed to address transitional issues during the rollout of a new fee-collection system, is lawful and valid. However, where the alleged infringing act was unlicensed by MCSC or CAVCA at the time the right holder collected evidence, a later licensing agreement purporting to ratify the prior use cannot alter the determination of infringement if the right holder does not accept such ratification.

The core issues in this case are: whether Jingmen Company infringed Mr. Su's copyright and, if so, the extent of liability.

(I) Validity of the Cooperation Memorandum between MCSC and CAVCA

KTV operators typically need to use musical works, sound recordings, audiovisual works (termed at the time "cinematographic works and works created by methods analogous to cinematography" under the Copyright Law), and video recordings, and thus generally must obtain authorization from the respective copyright owners or the right holders of the sound/video recordings. To facilitate the exercise of rights by right holders and streamline licensing for KTV operators, MCSC and CAVCA developed, through years of exploration and cooperation, a model under which CAVCA centrally provides licensing and fee collection, with MCSC and CAVCA sharing collected fees in agreed proportions. This model not only complies with the Copyright Law and relevant regulations but also serves the interests of copyright owners and related right holders and enables users to obtain licenses and make payments through a unified channel.

To address issues arising during the transition to a new fee-collection system, MCSC and CAVCA executed a Cooperation Memorandum providing that CAVCA would exercise rights on behalf of both organizations; moreover, licensing agreements actually concluded with users would be executed in the names of both CAVCA and MCSC, and would be effective even if MCSC's seal did not appear on the contract. The memorandum concerns only the mechanism for issuing licenses during a specific transitional period; it does not involve a transfer of collective management rights, nor does it entail collective management organization administering right holders' rights beyond its statutory business scope. Accordingly, the Cooperation Memorandum does not violate the Copyright Law or the Regulations on the Collective Management of Copyright, should be deemed lawful and valid, and, within the agreed time frame, renders licenses executed by CAVCA effective as to MCSC.

(II) Validity and temporal scope of the licensing agreement between CAVCA and Jingmen Company

As noted, the Cooperation Memorandum is valid. In this case, the licensing agreement lists CAVCA and MCSC as Party A and Jingmen Company as Party B; even if MCSC did not affix its seal, the agreement is binding on MCSC via the memorandum. Thus, the licensing agreement is lawful and valid.

Under the Copyright Law, parties may freely agree on the licensing term. The licensed period may precede or follow the contract date (though it often coincides with it). So long as the period reflects genuine party intent and does not violate mandatory legal provisions or public order and good morals, it is valid. Retroactive ratification of prior uses is also an exercise of private autonomy and is common in practice. However, where such ratification conflicts with another right holder's prior actions or may prejudice third-party interests, the effect of retroactivity must be determined case by case.

Here, the licensing agreement was executed on June 14, 2019, but states a licensing period from May 28, 2018 to December 31, 2019, thus purporting to ratify use back to May 2018. Mr. Su collected evidence on October 15, 2018—before execution but after the stated start date. Therefore, at the time of evidence collection, Jingmen Company had not yet actually obtained a license from CAVCA. Where both Mr. Su and CAVCA had standing to sue, CAVCA's subsequent exercise of rights should not conflict with Mr. Su's right to action, lest a claimant otherwise entitled to prevail be deprived of relief. Because Mr. Su did not accept the retroactive ratification, the agreement's retroactivity for the pre-execution period should be deemed ineffective as against Mr. Su. Jingmen Company's licensed period should be calculated from June 14, 2019; its prior use infringed Mr. Su's copyrights in the works at issue.

(III) Liability of Jingmen Company

After June 14, 2019, Jingmen Company was licensed by MCSC and CAVCA and thus did not need to cease use during the licensed period.

From Mr. Su's first-instance claims, one purpose of the suit was to prompt KTV operators to proactively fulfill their obligations under the Copyright Law by entering into licenses with MCSC and CAVCA, thereby safeguarding the interests of right holders such as Mr. Su (an MCSC member). This aligns with the objectives of the Copyright Law. In KTV cases, two common scenarios arise: (1) the operator has no license from the right holder or a collective management organization; or (2) the operator holds a license from CAVCA or MCSC, but the right holder of the allegedly infringed work is not a member of the relevant collective. This case differs in that, during litigation, Jingmen Company entered into a blanket license with CAVCA and MCSC covering a large repertoire, which benefits Mr. Su and other right holders and promotes an IP-respecting public order.

Accordingly, Jingmen Company's damages liability should be lower than in the two common scenarios above. Considering the type and quantity of works, difficulty of creation, popularity, enforcement costs, the nature, manner, and consequences of the infringement, the company's business scale, the MCSC-CAVCA sharing ratio, and the remuneration proportions for lyricists and composers, the SPC awarded Mr. Su RMB 6,200, inclusive of reasonable expenses (notarization, evidence collection, and attorney's fees).

F. Infringement of the right of communication through information networks involving watermarked images and a unilateral copyright notice—Evidentiary examination for establishing copyright ownership

Parties

Mei (Tianjin) Image Technology Company v. Henan Lu Bees Industry Company

Case number

(2021) 最高法民再 355 号 | 2021-SPC-Civ-SR-355

Panel

Qin Yuanming | Ma Xiurong | Zhou Bo

Keywords

civil; infringement of the right of communication through information networks; copyright ownership; burden of proof

Relevant legal provisions

- Copyright Law (Amended in 2010), Article 11
- SPC Interpretation on Several Issues Concerning the Application of Law in the Trial of Civil Copyright Dispute Cases, Article 7
- SPC Interpretation on the Application of the Civil Procedure Law (Amended in 2020), Article 90

Facts

Third-party Getty Images authorized Mei (Tianjin) Image Technology Company (Mei Image) to display, sell, and sublicense its “Getty Images” branded photographs within China, and authorized Mei Image to file lawsuits in its own name against infringing acts. Mei Image discovered that Henan Lu Bees Industry Company (Lu Bees) had used four such branded photographs without authorization and sued for copyright infringement, seeking compensation for economic losses and reasonable expenses. As evidence, Mei Image submitted, *inter alia*, an authorization confirmation letter issued by Getty Images and a website copyright notice. The photographs at issue bore the watermark “Getty Images®.”

Lu Bees argued that the “®” symbol in the watermark denotes trademark registration rather than authorship attribution, and that the photographer’s name and other brand names appearing beneath the watermark indicate that copyright resides with the photographer, not with Mei Image or Getty Images. Lu Bees also emailed Getty Images regarding ownership of the photographs and received a reply stating that the photographs were submitted by the photographer, that Getty Images sells them under its own name and pays royalties, and that the photographer retains copyright. Lu Bees thus contended that neither Getty Images nor Mei Image holds copyright in the photographs at issue and that Mei Image’s claims should be dismissed.

The court of first instance ordered Lu Bees to pay Mei Image RMB 8,000 in combined economic losses and reasonable expenses and dismissed the remaining claims. Lu Bees appealed, and the appellate court affirmed the first-instance decision. Lu Bees then petitioned the Supreme People’s Court (SPC) for supervisory review. On November 12, 2021, the SPC issued Civil Ruling (2021) No. 1063, deciding to reopen the case. On December 20, 2021, the SPC rendered this civil judgment, revoking both lower-court judgments and dismissing all of Mei Image’s claims.

Holding

Where copyright ownership is disputed, ownership cannot be determined solely by reference to watermarks or unilateral rights declarations. The party asserting copyright must adduce further evidence to substantiate its claim, failing which it bears the adverse consequences.

Reasoning

In addition to the “getty images®” watermark, the photographs also display the photographer’s name and other brand identifiers. Further, the “®” symbol following “getty images” denotes a registered trademark, rather than copyright. Accordingly, the watermark alone does not establish that Getty Images owns the copyrights to the photographs at issue. As for the authorization letter and website copyright notice submitted by Mei Image, the former only proves that Getty Images granted authorization to Mei Image; it does not prove that Getty Images owns the copyrights in the photographs. In addition, the website copyright notice is a unilateral statement which, absent corroboration, cannot by itself determine ownership.

Under these circumstances, Mei Image bore the burden to produce further proof that Getty Images owned the copyrights in the photographs at issue but failed to do so. By contrast, according to Getty Images’ email response and other rebuttal evidence submitted by Lu Bees, Getty Images confirmed that the contributing photographers retain copyright. Therefore, Mei Image’s assertion that Getty Images owns the copyrights is unfounded, and its related claims are not to be supported.

G. Jurisdictional objection concerning the right of communication through information networks—Disputes shall fall under the jurisdiction of the court at the place of infringement or the defendant’s domicile

Parties

Mr. Zhang v. Certain Beijing Cultural Communication Company *et al.*

Case number

(2022) 最高法民辖 42 号 | 2022-SPC-Civ-Jur-42

Panel

Du Weike | Zhang Lingling | Dai Yiting

Keywords

civil; infringement of the right of communication through information networks; jurisdiction; place of infringement

Relevant legal provisions

- Civil Procedure Law, Article 29
- SPC Interpretation on the Application of the Civil Procedure Law, Articles 24 and 25
- SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Civil Disputes over Infringement of the Right of Communication to the Public through Information Networks, Article 15

Facts

Plaintiff Mr. Zhang sued a Beijing cultural communication company, Mr. Cheng, and Mr. Ma before the Qinhuangdao Intermediate People’s Court (Hebei province), the court at his domicile, alleging that the defendants published and used, on certain websites and without permission, his copyrighted photographic art works, thereby infringing his right of communication through information networks. Defendant Mr. Ma objected to jurisdiction, arguing that Article 15 of the SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Civil Disputes over Infringement of the Right of Communication to the Public through Information Networks (“the SPC Provisions”) governs; because Qinhuangdao is the plaintiff’s domicile rather than the place of infringement or the defendants’ domiciles, the case should be transferred to the Beijing Internet Court, where the allegedly infringing act was committed and where the defendants are domiciled.

The Qinhuangdao Intermediate People’s Court issued civil ruling (2021) Ji 03 IP-Civ-1st No. 27, rejecting Mr. Ma’s jurisdictional objection. On appeal, the Hebei High People’s Court revoked the ruling and transferred the case to the Beijing Internet Court. The Beijing Internet Court then referred the matter to the Beijing High People’s Court, requesting that court to apply to the Supreme People’s Court (SPC) for a designation of jurisdiction. The Beijing High People’s Court opined that the case did not fall within the exceptional circumstance contemplated in Article 15—where both the place of infringement and the defendant’s domicile are difficult to determine—and thus the Hebei High People’s Court should not have transferred the case to the Beijing Internet Court; it therefore reported the matter to the SPC for jurisdictional designation. On August 22, 2022, the SPC issued this civil ruling, designating the Beijing Internet Court to hear the case.

Holding

In determining jurisdiction over civil disputes involving infringement of the right of communication through information networks, Article 15 of the SPC Provisions applies.

Reasoning

Article 25 of the SPC Interpretation on the Application of the Civil Procedure Law provides that “the place where an information network infringement is committed includes the location of the computer or other information device used to carry out the alleged infringing act, and the place where the result of the infringement occurs includes the domicile of the infringed person.” This “information network infringement” provision addresses network-based infringement of general civil rights. By contrast, the “right of communication through information networks” is a statutory copyright under Article 10(1) of the Copyright Law—“the right to make a work available to the public by wire or wireless means such that the public may access the work at a time and place individually chosen by them.” Given this right’s nature, once an infringement occurs, it enables ubiquitous public access, rendering the geographic scope of the infringement indeterminate. Accordingly, Article 15 of the SPC Provisions provides a special jurisdictional rule: “Civil disputes over infringement of the right of communication through information networks shall be under the jurisdiction of the people’s court at the place where the infringing act is committed or at the defendant’s domicile. The place where the infringing act is committed includes the location of the network servers, computer terminals, or other devices used to carry out the alleged infringing act. Where both the place of infringement and the defendant’s domicile are difficult to determine or are outside the territory of China, the location of the computer terminal or other device at which the plaintiff discovered the infringing content may be deemed the place of infringement.” Therefore, for this specific right, Article 15 is the controlling special rule when determining jurisdiction.

Here, Qinhuangdao is the plaintiff’s domicile; it is neither the place of infringement nor the defendants’ domicile under Article 15. Nor does the case fall within the exception where “both the place of infringement and the defendant’s domicile are difficult to determine or are outside China.” Therefore, the Qinhuangdao Intermediate People’s Court lacked jurisdiction, and transferring the case to the Beijing Internet Court was proper.

H. Copyright infringement concerning “Big-Head Son”—Determination of commissioned works and corporate works

Parties

Hangzhou Company A v. Animation Company B

Case number

(2022) 最高法民再 44 号 | 2022-SPC-Civ-SR-44

Panel

Qin Yuanming | Bai Yali | Ma Xiurong

Keywords

civil; copyright infringement; commissioned work; corporate work; organizational intent

Relevant legal provisions

- Copyright Law (Amended in 2010), Article 17

Facts

In 1994, Director Cui and Producer Tang, together with Xi, Deputy Director of Shanghai Studio A, visited Liu and commissioned him to design characters for the forthcoming 1995 animated series “Big-Head Son.” On the spot, Liu penciled front-view sketches of three characters—Big-Head Son, Small-Head Dad, and Apron Mom (the “1994 Sketches”)—and handed the originals to Cui. No written agreement on copyright ownership was signed at that time. The 1995 animated series, co-produced by Company D and M Television, aired in 1995. Its end credits stated: “Character Design: Liu.”

In 2012, Liu and Hong executed a Copyright (Character Merchandising Rights) Transfer Agreement, under which Liu transferred all copyrights in the three works (Big-Head Son, Small-Head Dad, and Apron Mom) to Hong. In 2013, Liu and Animation Company B agreed that the three artworks were commissioned works, and that Animation Company B, as Party A, would exclusively own all IP rights other than the right of authorship. Hangzhou Company A then sued, alleging that Animation Company B’s New Big-Head Son and Small-Head Dad animated series infringed its copyrights.

The Binjiang District People’s Court of Hangzhou (Zhejiang province) held at first instance that Liu, as the commissioned creator, owned the full copyrights in the three artworks; that Hangzhou Company A had acquired the copyrights through its transfer contract with Hong; that Company D should be deemed the author of the derivative 1995 animated series and own the copyright therein; and that Animation Company B, without permission, adapted and used Hangzhou Company A’s works in the 2013 New Big-Head Son and Small-Head Dad series and in related exhibitions and promotions, profiting therefrom and thereby infringing Hangzhou Company A’s copyrights. The court ordered Animation Company B to pay RMB 4,000,000 in economic losses and RMB 22,040 in reasonable expenses. On appeal, the Hangzhou Intermediate People’s Court affirmed the original decision. Animation Company B then petitioned for supervisory review to the Zhejiang High People’s Court. During that review, Animation Company B submitted a document titled “Copyright Ownership Confirmation Signed by Liu” (the “1995 Statement”), which states: “I, Liu **, was commissioned by M Television and Shanghai Y Television to design the main characters ‘Big-Head Son’ and ‘Small-Head Dad’ for the animated series Big-Head Son and Small-Head Dad.” The Zhejiang High People’s Court rejected the supervisory review application. Animation Company B petitioned the Supreme People’s Court, which decided to reopen the case and, on April 18, 2022, rendered this civil judgment, revoking the first- and second-instance judgments and dismissing Hangzhou Company A’s claims.

Holding

Where the evidence of record is insufficient to prove that the author created the work as an expression of an entity's organizational intent or in fulfillment of tasks during secondment, the work should not be recognized as a corporate work or a special work for hire. Where evidence shows the work was created upon commission, it may be recognized as a commissioned work.

Reasoning

Article 11(2) of the Copyright Law provides that "a citizen who creates a work is the author," and Article 11(4) provides that "in the absence of proof to the contrary, the citizen, legal person, or other organization whose name is indicated on the work shall be deemed the author." In this case, the first- and second-instance courts and the Zhejiang High People's Court found that Director Cui, Producer Tang, and Xi (Deputy Director of Shanghai Studio A) visited Liu and commissioned him to design characters for the 1995 animated series to be produced by Company D. Liu promptly drew the 1994 Sketches; after Cui took the originals, the art team for the 1995 series further designed and re-created based on Liu's concept sketches, ultimately producing standard design drawings and subsequent turnaround sheets, proportion charts, etc., for the three main characters. The end credits of the 1995 series listed "Character Design: Liu **," and when Animation Company B registered the copyrights for the Big-Head Son and Small-Head Dad cartoon images on November 4, 2013, it also listed "Author: Liu **." The existing evidence thus suffices to establish that Liu independently created the 1994 Sketches; Liu should be recognized as their author. The lower courts' findings to this effect were not improper.

Article 11(3) of the Copyright Law provides: "Where a work is created under the auspices of a legal person or other organization, reflects the will of that legal person or organization, and the legal person or organization assumes responsibility therefor, the legal person or organization shall be deemed the author." Article 16 provides that a work created by a citizen to fulfill tasks assigned by a legal person or organization is a work for hire; absent the circumstances specified in Article 16(2), copyright vests in the author, with the legal person or organization having a priority right to use the work within its business scope within two years of completion; and in specified categories (e.g., engineering designs, product designs, maps, computer software created primarily using the entity's resources and for which the entity assumes responsibility), or where laws, administrative regulations, or contract provide otherwise, rights other than authorship vest in the entity.

According to the facts ascertained on supervisory review, the Animation Department of Company D commissioned Shanghai Studio A to undertake the art and modeling designs for Big-Head Son and Small-Head Dad, with all copyrights belonging to Company D's Animation Department (i.e., to Company D). Although the lower courts found that, when Liu created the 1994 Sketches, he was seconded from Shanghai Studio B to Shanghai Studio A, the 1994 Sketches were specifically commissioned at Liu's residence by Director Cui and others. The current evidence is therefore insufficient to prove that Liu created the 1994 Sketches as an expression of the organizational intent of Shanghai Studio A or to fulfill tasks during the secondment. The 1994 Sketches should not be recognized as corporate works or special works for hire, but rather as commissioned works. Accordingly, Animation Company B's contention that the 1994 Sketches constitute corporate works or special works for hire is untenable and is not support.

I. Infringement concerning the NFT digital artwork “Fat tiger gets vaccinated”—Determining the liability of NFT trading platform providers

Parties

Shenzhen Cultural & Creative Company A v. Hangzhou Technology Company B

Case number

(2022) 浙 01 民终 5272 号 | 2022-ZJ-01-Civ-Fin-5272

Panel

Wang Ling | Xu Jun | Gao Haizhong

Keywords

civil; infringement of the right of communication through information networks; NFT digital artwork; network virtual property; platform duty of care

Relevant legal provision

- Copyright Law, Article 10(1)(xii)

Facts

Company A alleged that the NFT (non-fungible token) “Fat tiger gets vaccinated” was listed on an NFT trading platform operated by Company B, but Company B failed to conduct the requisite review of the work, thereby infringing the right of communication through information networks. Company A requested that the court: (1) order Company B to immediately cease the infringement by deleting the “Fat tiger gets vaccinated” NFT listed on the platform and burning or recalling the corresponding minted NFT on the originating blockchain; and (2) award RMB 100,000 in economic losses and reasonable expenses.

Company B argued that it is merely a third-party platform and that the work was uploaded by a user, so it bears no liability; that it owes only an *ex post* review obligation and, having sent the NFT to a burn/black-hole address and complied with notice-and-takedown, injunctive relief is unnecessary; and that the exhaustion doctrine applies.

Upon trial, the court found: Cartoonist Ma created the character image “I’m Not Fat tiger” and, on December 16, 2021, posted the illustration “Fat tiger gets vaccinated” on his Weibo account “Uncle Buerma.” Company A, by authorization from Ma, enjoys the exclusive economic rights and enforcement rights worldwide in the “I’m Not Fat tiger” series. A user on Company B’s platform minted and listed the “Fat tiger gets vaccinated” NFT for RMB 899. That NFT is identical to Ma’s Weibo illustration and bears the watermark “@Uncle Buerma” in the lower right corner; the “Artist Bio” on the listing also identified the author as “Uncle Buerma, an outstanding cartoon creator.” Company B charged gas fees for minting, sale, and transfer, and collected a 10% commission from each sale price.

On April 22, 2022, the Hangzhou Internet Court rendered civil judgment (2022) Zhe 0192 Civ-1st No. 1008: (1) ordering Company B to cease infringing Company A’s right of communication through information networks in the artwork “Fat tiger gets vaccinated”; and (2) awarding RMB 4,000 in economic losses and reasonable expenses. Company B appealed. On December 30, 2022, the Hangzhou Intermediate People’s Court rendered this civil judgment, dismissing the appeal and affirming the decision.

Holding

1. At the listing or publication stage, an NFT digital artwork is made available on the open internet such that the public may access it at a time and place of their choosing. Such

access may consist of online browsing without transfer, or downloading and viewing after an online transfer. This constitutes an act of communication to the public through information networks.

2. In light of the distinct attributes of NFT digital artworks, and considering the service nature, operational control, potential infringement consequences, and revenue model of NFT trading platforms, providers of such services owe an elevated duty of care with respect to users' infringements of the right of communication through information networks. Beyond the obligations applicable to general network service providers, NFT platforms shall establish effective intellectual property vetting mechanisms to examine the rights provenance of NFT digital artworks.

Reasoning

There are three issues in dispute: (1) whether the conduct at issue falls within the scope of the right of communication through information networks; (2) what duty of care the NFT platform operator bears and whether Company B fulfilled it; and (3) the civil liabilities to be assumed by Company B.

1. Scope of the right of communication through information networks. NFT "digital collectibles" are digital content presented after uploading underlying data (e.g., digital files) to an NFT platform and minting an NFT; where the underlying file is a digital artwork, it is an NFT digital artwork. The transactional flow comprises minting, listing or publication, and sale or transfer. Minting implicates reproduction; listing or publication implicates communication through information networks; sale or transfer involves neither reproduction nor communication through information networks.
2. Duty of care of the platform. The following factors apply:

Nature of the service. Unlike ordinary network services, NFT trading services are tied to the creation and transfer of property-like interests; the minting and listing processes are under platform control.

Potential infringement consequences. If a user mints an infringing NFT, given blockchain's characteristics, beyond the infringing content on centralized servers, the NFT recording the wrongful content persists on-chain. This undermines NFTs' credibility as non-fungible proofs of entitlement, jeopardizes transaction security, and disrupts platform trust and market order.

Revenue model. Company B charged gas fees at minting and trading and collected commissions, constituting a scenario in which "the network service provider directly obtains economic benefits from works, performances, or audiovisual recordings provided by users."

Accordingly, Company B owed a heightened duty of care compared with ordinary providers. In addition to general obligations, an NFT platform operator must verify the legality of the source and confirm that the minter holds appropriate rights. As a reasonable anti-infringement measure, such review should occur at the minting stage. Company B failed to discharge this duty and was subjectively at fault for the occurrence of the alleged infringement; it should bear civil liability for contributory infringement.

3. Civil liability. Although the underlying file stored off-chain or on the relevant chain may have been removed, making the corresponding NFT unusable, the NFT recording the infringing information remains on-chain even after deleting the image and blocking the on-chain link, which does not eradicate the infringing record. Given Company A's explicit claim, Company B's representation that it uses a consortium blockchain, and that the NFT traded only once, routing the NFT to a black-hole address is a reasonable injunctive measure to cease infringement. Even if, in theory, an NFT on a consortium blockchain could be restored, that possibility does not affect the choice of remedy here. As to damages, infringement of the right of communication through information networks was complete at the listing stage; the fact that the NFT did not ultimately transact does not negate Company A's loss.

Chapter IV: Monopoly and competition cases

- A. Abuse of market dominance involving rare-earth permanent magnet patents—Defining the relevant technology market and assessing market power
- B. Trade secret infringement involving VAT invoice information—Client information recorded on VAT invoices does not constitute a trade secret
- C. Technical secrets infringement involving vanillin—Presumption of use after unlawful acquisition of complete technical secrets
- D. Technical secrets infringement involving carbomer—Finding of engaging in infringement as a primary business
- E. Technical secrets infringement involving melamine—Determination of joint intentional infringement and liability in technical secret cases
- F. Technical secrets infringement involving the DAKS system—Determination of disclosure of technical secrets
- G. Technical secrets infringement involving a virus detection reagent—Determination of technical solutions protected as technical secrets
- H. Technical secrets infringement involving a bell-furnace lifting tool—Determination of technical secrets in a complete set of drawings and factual presumption of technical secret infringement
- I. Technical secrets infringement involving microbial prospecting for oil and gas—When damages in technical-secret cases may disregard the contribution rate
- J. Unfair competition involving generation of fake social-Fin screenshots—Assessing the legitimacy of competitive conduct by tool software
- K. Unfair competition involving interference with search engines—Determining unfairness in manipulating search rankings
- L. Unfair competition involving commercial game account leveling—Judicial determination of internet unfair competition and business ethics
- M. Unfair competition involving lithium-ion cathode materials—Remedies and choice of law for infringement of contractual claims to trade secrets

A. Abuse of market dominance involving rare-earth permanent magnet patents—Defining the relevant technology market and assessing market power

Parties

Magnetic Materials Company A v. Foreign Metal Company B

Case number

(2021) 最高法知民终 1482 号 | 2021-SPC-IP-Civ-Fin-1482

Panel

Zhu Li | Yu Xiaohan | He Jun

Keywords

civil; abuse of market dominance; relevant market; patent licensing

Relevant legal provisions

- Anti-Monopoly Law, Articles 2, 12(2), 17(2), and 18
- SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Civil Disputes Arising from Monopolistic Conduct, Article 8
- Civil Procedure Law (Amended in 2021), Article 67(1)
- SPC Interpretation on the Application of the Civil Procedure Law, Article 90

Facts

Magnetic Materials Company A, based in Ningbo, Zhejiang province, manufactures sintered neodymium-iron-boron (NdFeB) materials. Foreign Metal Company B held more than 600 sintered NdFeB patents worldwide in the rare-earth materials field. After licensing its patented technologies to eight enterprises in China, it decided not to add new licensees. From March 2014 to March 2015, Company A repeatedly sought a license from Company B but was refused. On December 11, 2014, Company A sued in the Ningbo Intermediate People's Court, requesting an order requiring Company B to cease infringement (i.e., refusal to deal and other abuses of dominance) and to pay RMB 7 million in damages.

The Ningbo Intermediate People's Court ordered Company B to cease its refusal to deal and to pay Company A RMB 4.9 million. Company B appealed. On December 14, 2023, the Supreme People's Court rendered this civil judgment, reversing the first-instance judgment and dismissing Company A's claims.

Holding

In assessing monopolistic conduct involving intellectual property (IP) rights, it may be necessary—depending on case-specific facts—to define a relevant technology market composed of the technology covered by the IP and substitutable competing technologies. Where multiple competing technologies exist, and the market share of downstream products implementing the technology can more accurately and conveniently reflect competitive conditions in the relevant technology market, the technology holder's market power in the upstream technology market may be evaluated using the market share of such downstream products.

Reasoning

Sintered NdFeB materials are not substitutable with other magnetic materials in the marketplace; thus sintered NdFeB materials or their production technologies satisfy the primary prerequisite for constituting an independent relevant market. However, the evidence was insufficient to prove the existence of a standalone market for licenses to essential sintered

NdFeB patents, much less a relevant market consisting of licenses to essential sintered NdFeB patents held by Company B. Company A's contention that Company B's sintered NdFeB patents are irreplaceable and form an independent relevant market is inconsistent with the realities of NdFeB production, sales, and technological development; Company A also failed to provide sufficient proof, particularly as to why and how Company B's patents are technologically non-substitutable. Company A must therefore bear the adverse consequence of failing to discharge its burden of proof.

Given these circumstances, and considering demand-side substitution for sintered NdFeB production technologies, the relevant product market should be defined as the market for sintered NdFeB production technologies, encompassing closely substitutable patented and non-patented technologies. Because these technologies are used to produce sintered NdFeB materials, and because the market share and related conditions in the NdFeB materials (product) market can more accurately and conveniently reflect competitive conditions in the production-technology market, the market power of technology owners in the relevant upstream market may be assessed using market shares in the NdFeB materials market.

Based on the evidence of record, Company A failed to prove that Company B held a dominant position in the global market for sintered NdFeB production technologies; to the contrary, the evidence indicates Company B did not possess dominance in that market.

B. Trade secret infringement involving VAT invoice information—Client information recorded on VAT invoices does not constitute a trade secret

Parties

A certain Anhui International Freight Forwarding Company v. Kan *et al.*

Case number

(2021) 最高法民再 310 号 | 2021-SPC-Civ-SR-310

Panel

Tong Shu | Zhang Lingling | Wu Rong

Keywords

civil; trade secret infringement; VAT invoice; client information; confidentiality measures

Relevant legal provisions

- Anti-Unfair Competition Law, Article 10

Facts

A certain Anhui International Freight Forwarding Company (Anhui Company) sued in the court of first instance, seeking orders that Kan, Zhang, Cui, and another Anhui-based international freight forwarder (Freight Company) immediately cease infringing its trade secrets; pay RMB 550,000 for economic losses, investigation costs, and attorney's fees; and bear litigation costs.

The first-instance court found: On September 10, 2014, Zhang signed a Labor Service Agreement with a certain Anhui Import & Export Trading Co. (Anhui ImEx). On April 9, 2015, Kan signed a substantively identical agreement with the same company. On April 1, 2015, Cui signed a Labor Service Agreement with Anhui Company. The three agreements were identical in clauses, wording, and formatting. At onboarding, Kan and Zhang submitted identical Employment Commitments to Anhui ImEx, and Cui submitted the same to Anhui Company, promising not to intentionally or negligently disclose operational, managerial, or technical secrets. On August 29, 2014, Kan executed a Commitment to Protect Client and Business Information, agreeing to abide by all rules and temporary regulations of Anhui Company and Anhui ImEx and never to disclose client or business information during or after employment. On April 1, 2016, Anhui Company and Anhui ImEx issued a Notice of Appointments: Kan was appointed head of the Business Department and leader of Group 3 (in charge of international freight forwarding); Cui was appointed leader of Group 4; and Zhang was appointed head of the Customs Declaration Group. On June 13, 2016, Freight Company was established, with Kan's father as legal representative and Kan as supervisor. Its scope included international freight forwarding by sea, air, and land; customs and inspection agency services; warehousing (excluding hazardous materials); and agency services for goods and technology import/export.

During the first-instance proceedings, Anhui Company identified a 31-entity client list (including a certain Shanghai International Logistics Company) as being the trade secret at issue and produced as evidence the value added tax (VAT) invoices it had issued to 25 of those entities across transactions from December 2014 to February 2017. At Anhui Company's request, the court obtained Freight Company's invoice statistics from September 2016 to May 2017: 55 clients in total, including the 25 entities Anhui Company claimed as trade secrets, with invoiced amounts to those 25 totaling RMB 352,972.57.

Anhui Company and Anhui ImEx shared the same legal person and address. Anhui ImEx submitted a written statement confirming the two entities were "two names, one team," acknowledging that all alleged trade secrets in this case belonged to Anhui Company and that Anhui ImEx would no longer assert any rights thereto. Kan submitted a copy of an arbitration application filed by Anhui ImEx seeking RMB 50,000 in liquidated damages for non-compete breach, continued performance

of the non-compete, and departure from Freight Company. The arbitration concluded by mediation, with Kan paying RMB 30,000. Kan, Zhang, and Cui argued that Freight Company obtained client information via internet searches and that they had left their former employers in February 2017.

The Hefei Intermediate People's Court (Anhui province) held: The client list included not only 25 client names but also tax IDs, addresses, phone numbers, bank names and account numbers, and transaction pricing. The trading period spanned four years (December 2014 to February 2017), with over a hundred transactions and repeated dealings, showing that Anhui Company had developed a stable customer base by compiling and organizing these details. While fragmented client information may be publicly accessible, Anhui Company's compiled list had content and depth important to freight forwarding and not readily available to the public. Defendants failed to prove they obtained the information from internet searches. Given Anhui Company's business, the client list carried value by conferring opportunities, channels, and profits, thus competitive advantage. The three individuals, as key staff in leadership roles, had access to the list; they signed labor agreements with confidentiality clauses and separate confidentiality undertakings, and Anhui Company imposed confidentiality and non-compete obligations as internal rules. Therefore, the client information was confidential. The court concluded the list satisfied secrecy, value, and confidentiality and should be protected as a trade secret.

The court ordered Kan, Zhang, Cui, and Freight Company to cease infringement and jointly pay RMB 250,000 for losses and reasonable expenses. On appeal, the Anhui High People's Court held that although the claimed client list was embodied in VAT invoices, it met the requirements of secrecy, value, and confidentiality measures and thus merited trade secret protection, and it modified the compensation to RMB 100,000 while otherwise affirming the original decision. The applicants sought supervisory review. The Supreme People's Court granted review and on December 17, 2021, rendered this civil judgment, revoking both the first- and second-instance judgments and dismissing all of Anhui Company's claims.

Holding

Value-added tax invoices are standardized documents issued by taxpayers to purchasers under state regulations. The client information directly recorded on such invoices generally does not possess inherent confidentiality. Where the law imposes no confidentiality obligation on purchasers, and the parties have agreed none, the client information directly shown on a VAT invoice, once delivered to the purchaser, does not constitute a trade secret.

Reasoning

Anhui Company claimed that a client list formed from VAT invoice information—client names, addresses, phone numbers, bank names and account numbers, and transaction prices—constituted a trade secret. The evidence showed that all such information appears on VAT invoices. VAT invoices, issued under state regulations, must contain information consistent with administrative requirements and serve management functions; they are not inherently confidential. After delivery, purchasers have no statutory duty to keep the invoice information confidential. Anhui Company also admitted it had no confidentiality agreement with purchasers regarding VAT invoice information; thus purchasers had no contractual confidentiality duty. Accordingly, Anhui Company took no confidentiality measures for the invoices, and the invoices themselves lacked confidentiality.

Moreover, client names, addresses, and phone numbers recorded on invoices can be obtained from public sources. The applicants submitted search results (e.g., from Tianyancha) showing that such information is public, which Anhui Company acknowledged as consistent with the invoices. Therefore, those data lack secrecy. Anhui Company further argued that transaction prices and, by inference, customers' trading habits, frequency, quantities, and price tolerance gleaned from invoices are trade secrets. But it failed to identify the specific secret elements or explain how they could be derived from invoices. For freight forwarding, many factors affect pricing (transport modes, discounts, service modalities, payment and settlement terms), and contract terms vary case by case; unit prices and amounts on invoices alone cannot reveal individualized commercial information such as trading habits or acceptable price ranges. Having submitted only invoices without specifying the claimed "deep" information or showing how information such could be extracted, Anhui Company's assertion lacked evidentiary support. In sum, the client list at issue is not a trade secret because it lacked secrecy and was not subject to confidentiality measures.

C. Technical secrets infringement involving vanillin—Presumption of use after unlawful acquisition of complete technical secrets

Parties

Jiaying Chemical Company A and Shanghai New Technology Company B v. Group Company C, Company D, *et al.*

Case number

(2020) 最高法知民终 1667 号 | 2020-SPC-IP-Civ-Fin-1667

Panel

Zhu Li | Liu Xiaojun | Ling Zongliang

Keywords

civil; infringement of technical secrets; use of complete technical secrets; intent; damages

Relevant legal provisions

- Tort Liability Law, Article 8
- Anti-Unfair Competition Law (Amended in 2017), Articles 9 and 17

Facts

Jiaying Chemical Company A is a leading global manufacturer of vanillin with significant technological advantages. Shanghai New Technology Company B, established on November 5, 1999, engages in technical services, consulting, R&D, technology transfer, and new product development in the biochemical and chemical fields. Beginning in 2002, the two jointly developed a novel glyoxylic acid-based vanillin production process, including condensation, neutralization, oxidation, and decarboxylation reactions, as well as cyclic utilization of guaiacol, toluene, copper oxide, and ethanol. The asserted technical secrets comprise six protected elements embodied in 287 drawings for 58 pieces of non-standard equipment (including assembly and component drawings) and 25 third-edition process piping and instrumentation diagrams (P&IDs). The parties' Technology Development Contract, Technology Transfer Contract, and Special Contract for Long-term Cooperation all included confidentiality clauses.

Mr. Fu joined Company A in 1991 and, from 2008, served as deputy director of the vanillin workshop, mainly responsible for the repair and maintenance of vanillin production equipment. Since 2003, Company A had issued and implemented document control procedures, record control procedures, food safety/quality/environment management manuals, and equipment/facility management procedures, and trained employees accordingly. In 2007, Mr. Fu attended management system and environmental management system awareness training, as well as standardization training. On March 25, 2010, the Company promulgated Archives and Information Management Security and Confidentiality Rules. Beginning in April 2010, it executed confidentiality agreements with employees defining the scope of trade secrets and confidentiality obligations, which Mr. Fu refused to sign, citing his intention to resign.

Group Company C, established on June 8, 1995, operates in the R&D and production of potassium sorbate (a food additive) and in the manufacturing and sales of non-hazardous chemical products; Mr. Wang served as supervisor. Company D was jointly funded by Mr. Wang and Group Company C on October 21, 2009, with Mr. Wang as legal representative. Ningbo Flavor & Fragrance Company E was established on November 20, 2015, with an in-kind capital contribution of RMB 80 million from Company D. It focuses on R&D and production of edible flavors and fragrances (food additives), primarily vanillin, with Mr. Wang as legal representative. In 2017, it was renamed Fragrance (Ningbo) Company F.

Around the Spring Festival of 2010, Mr. Feng, Mr. Fu, and Mr. Fei discussed and sought opportunities to trade vanillin production technology. On April 12, they visited Group

Company C to negotiate with Mr. Wang and, using Jiaxing Engineering Technology Consulting Company G as Party A and Group Company C's vanillin branch as Party B, executed a Vanillin Technology Cooperation Agreement. That day, Group Company C issued a RMB 1,000,000 bank draft to Company G. Via an endorsement, Mr. Feng withdrew RMB 1,000,000 in cash, paying RMB 400,000 to Mr. Fu and RMB 240,000 to Mr. Fei. Mr. Fu then provided a USB flash drive containing 200 equipment drawings, 14 P&IDs, and a key equipment list; Mr. Feng passed it to Mr. Wang. On April 15, 2010, Mr. Fu submitted his resignation and, after leaving in May, joined Company D, working with Mr. Feng and Mr. Fei in the vanillin workshop. On March 15, 2011, the Ningbo Municipal Environmental Protection Bureau approved Company D's Environment Impact Assessment (EIA) report for vanillin production, authorizing an annual output of 5,000 tons. Production began in June 2011. Since its inception, Company F has continuously used vanillin production equipment contributed by Company D as equity.

In 2018, Company A and Company B filed suit in Zhejiang High People's Court, alleging that Group Company C, Company D, Company F, Mr. Fu, and Mr. Wang infringed their vanillin technical secrets.

Zhejiang High People's Court held: (1) Group Company C, Company D, Company F, and Mr. Fu shall immediately cease infringing the technical secrets at issue—i.e., cease unlawfully acquiring, disclosing, using, or permitting others to use the technical secrets recorded in the equipment drawings and P&IDs—until such secrets become publicly known; (2) Group Company C, Company D, and Mr. Fu shall, within ten days of the judgment taking effect, jointly pay Company A and Company B RMB 3,000,000 for economic losses and RMB 500,000 for reasonable enforcement expenses (total RMB 3,500,000), with Company F bearing joint liability for 7% (RMB 245,000); and (3) other claims were dismissed.

All parties except Mr. Wang appealed to the Supreme People's Court (SPC). On February 19, 2021, the SPC rendered a civil judgment: (1) revoking the first-instance civil judgment (2018) Zhe Civ-1st No. 25; (2) ordering Group Company C, Company D, Company F, Mr. Fu, and Mr. Wang to immediately cease infringing the technical secrets of Company A and Company B by unlawfully acquiring, disclosing, using, or permitting others to use the technical secrets recorded in the equipment drawings and P&IDs, until such secrets become publicly known; (3) ordering Group Company C, Company D, Mr. Fu, and Mr. Wang, within 10 days of the judgment taking effect, to jointly pay RMB 155,829,455.20 for economic losses and RMB 3,492,216 for reasonable enforcement expenses (total RMB 159,321,671.20), with Company F bearing joint liability for 7% (RMB 11,152,516.98); (4) dismissing other claims; and (5) rejecting the appeals of Group Company C, Company D, Company F, and Mr. Fu. After this judgment, Group Company C, Company D, Company F, Mr. Fu, and Mr. Wang petitioned for supervisory review.

On October 19, 2021, the Supreme People's Court rejected the supervisory review applications of Group Company C, Company D, Company F, Mr. Fu, and Mr. Wang.

Holding

1. Where the right holder adduces evidence proving that the alleged infringer unlawfully obtained complete technical secrets—such as the full process and complete set of production equipment documentation—and actually produced the same product, the court may presume that the alleged infringer used the complete technical secrets, unless sufficient contrary evidence rebuts the presumption.
2. Where the alleged infringer intentionally infringes technical secrets, the court may calculate damages based on the sales profits of the infringing products. If sales profits cannot be ascertained, damages may be calculated based on the right holder's product sales price and profit margin multiplied by the alleged infringer's sales volume.

Reasoning

Because Group Company C and others actually manufactured vanillin products, they necessarily possessed the complete production process and corresponding equipment. The asserted technical secrets encompassed six protected elements embodied in 287 equipment drawings for 58 non-standard equipment and 25 P&IDs. The alleged infringers unlawfully obtained 200 equipment drawings and 14 process flow diagrams. Comparison showed that 184 equipment

drawings matched the technical secrets in structural configuration, dimensions, design parameters, and manufacturing requirements, as well as equipment names and codes, drawing numbers, and drafting entities, covering 40 non-standard pieces of equipment. Fourteen process flow diagrams matched Company A's P&IDs in equipment locations and connections, material and medium flows, and control content and parameters; certain diagram titles, project names, and design entities also matched. Additionally, a toluene removal drawing provided by Company D to Zhejiang Container Company H and an oxidation unit process flow diagram attached to Company D's EIA report—though not among the drawings submitted by Mr. Feng—fell within the scope of the technical secrets and were used in equipment fabrication and EIA filings, confirming Company D had obtained them. In total, the alleged infringers unlawfully obtained 185 equipment drawings and 15 process flow diagrams.

Although four items showed minor differences from the corresponding technical information, given the ability to make targeted modifications after obtaining the drawings, and based on the specific infringement circumstances, these differences were evasive or adaptive changes made after acquisition; the four items still used the technical secrets. It follows that all 185 equipment drawings and 15 process flow diagrams obtained were actually used. The court's rationale included: (i) vanillin production processes and equipment are typically matched and relatively fixed; the alleged infringers established a production line and scaled production, implying possession of complete processes and equipment; (ii) they offered no valid evidence of R&D or testing of complete processes or equipment, yet achieved mass production in about one year, while the right holders spent at least four years from R&D to line completion; (iii) they provided no valid evidence of lab- or pilot-scale testing, unlawfully obtained the drawings, and used them in the EIA and equipment procurement with Zhejiang Container Company H; considering the nature of technical secret cases, the facts, and the absence of counterevidence, the court concluded they used the complete unlawfully obtained technical secrets; and (iv) minor deviations were not proven to stem from independent R&D or lawful sources; evidence showed the factory build began only after obtaining the secrets, indicating evasive or adaptive modifications—themselves a form of use.

Mr. Fu had long worked at Company A, responsible for equipment maintenance in the vanillin workshop, with access to the secrets. On April 12, 2010, Mr. Feng, Mr. Fu, and another visited Group Company C, quickly reached a Vanillin Technology Cooperation Agreement contributing “new vanillin process technology” as equity to Group Company C's vanillin branch. Mr. Fu received RMB 400,000 and, via Mr. Feng, delivered a USB flash drive containing the technical secrets to Mr. Wang. After resigning, he joined Company D, oversaw the vanillin production line, and within a short time the Company completed the line and began industrial production, fully using the right holders' equipment drawings and P&IDs. These facts establish that Mr. Fu acquired and disclosed the technical secrets to Group Companies C and D and allowed their use. Group Companies C and D, direct competitors in vanillin, should have known that Mr. Fu, as an employee of Company A, had no lawful rights to the drawings or P&IDs. Nevertheless, Group Company C obtained the secrets by contract and payment and disclosed them to Company D for use. Company D employed Mr. Fu to use the illegally obtained secrets in production and then contributed equipment as capital, disclosing and permitting Company F to continue using them. Company F's continuous use of the production line constituted infringement.

The alleged infringers unlawfully obtained and persistently and extensively used the high-value technical secrets, with egregious methods and malicious intent, disrupting the global vanillin market, and engaged in evidence obstruction and bad-faith litigation. Group Company C, Company D, Company F, and Mr. Fu refused to comply with effective preservation orders. The court therefore calculated damages based on sales profits. Because Group Company C, Company D, and Company F refused to produce accounting books and materials related to the infringing acts, profits could not be determined from such data. The court used Company A's vanillin sales prices and profit margins as reference to determine the infringers' prices and margins and to deter willful misappropriation and fully protect right holders' lawful interests, calculated damages by multiplying the 2011–2017 sales volumes of Group Company C, Company D, and Company F by Company A's vanillin sales prices and profit margins for the same period.

D. Technical secrets infringement involving carbomer—Finding of engaging in infringement as a primary business

Parties

Guangzhou High-Tech Materials Company A and Jiujiang High-Tech Materials Company B v. Anhui Fine Chemicals Company C *et al.*

Case number

(2019) 最高法知民终 562 号 | 2019-SPC-IP-Civ-Fin-562

Panel

Xu Zhuobin | Lei Yanzhen | Deng Zhuo

Keywords

civil; infringement of technical secrets; engaging in infringement as a primary business; punitive damages; damages calculation

Relevant legal provisions

- Anti-Unfair Competition Law, Article 17(3)

Facts

Company A was incorporated on June 6, 2000. Company B was incorporated on October 30, 2007, as a wholly owned subsidiary of Company A. To evidence a licensing relationship for carbomer technology between the two companies, they submitted two authorization letters. The first, dated September 30, 2008, granted Company B royalty-free use of Company A's self-developed carbomer production technology and related IP for a 10-year term (October 1, 2008 to September 30, 2018), including rights to produce, manufacture, sell, improve processes, and make follow-on improvements; sublicensing to others required mutual written consent, and rights reverted to Company A upon expiry. The second, dated September 15, 2018, extended the same terms from October 1, 2018 to September 30, 2028. The product at issue—carbomer (also known as polyacrylic acid or carboxyvinyl copolymer)—when neutralized, serves as an excellent gel matrix used widely in emulsions, creams, and gels.

Company C was incorporated on August 29, 2011. At formation, Mr. Liu was legal representative with a 70% stake; the legal representative was later changed to Mr. Wu.

Mr. Hua joined Company A on March 30, 2004, and left on November 8, 2013. From December 30, 2007 to departure, Mr. Hua executed an employment contract, confidentiality and non-compete agreement, employee handbook acknowledgment, and specialized training agreement, covering trade secret and non-compete obligations. Former Company A employees Mr. Zhu and Mr. Hu also signed similar instruments while employed. In 2012–2013, leveraging his role as R&D lead for carbomer, Mr. Hua requested from Company B's workshop supervisor the reactor and dryer equipment drawings for carbomer production “for paper writing,” and repeatedly copied carbomer process/equipment materials from his office computer to removable media in violation of Company rules. After unlawfully obtaining the process data, Mr. Hua sent original process drawings and documents to Mr. Liu, Mr. Zhu, and Mr. Hu via USB flash drive and email; the group discussed using Company A/B's original carbomer process drawings. When Mr. Hu and Mr. Zhu raised infringement concerns, Mr. Hua instructed Mr. Hu to design Company C's production process based on Company A/B's original drawings while avoiding an identical appearance. Following these instructions, Mr. Hu modified Company A's process drawings, then: retained Shandong Engineering Design Company D (Hefei Branch) to finalize design; engaged Jiangsu Machinery Company E to manufacture reactors; purchased identical crushing equipment from Shanghai Powder Machinery Manufacturing Company F (a partner of Companies A/B); and retained Wuxi Mixing Equipment Company G to prepare a general assembly drawing based on Company E's specifications and to manufacture the mixer accordingly.

By 2014 at the latest, Company C used the carbomer process and equipment technology unlawfully obtained by Mr. Hua from Companies A/B to produce carbomer, selling domestically and internationally across more than 20 countries/regions. Carbomer production was Company C's principal business; there was no evidence it produced other products. In January 2018, Company C's former legal representative Mr. Liu and others were held criminally liable for trade secret infringement. Despite criminal findings that Mr. Hua, Mr. Liu, and others infringed the right holders' technical secrets, Company C did not cease the infringement and continued sales from 2014 through August 2019.

In 2017, Companies A/B sued Company C, Mr. Hua, Mr. Liu, Mr. Hu, and Mr. Zhu in the Guangzhou Intellectual Property Court, seeking injunction, damages, and apology. The court held: (1) Mr. Hua, Mr. Liu, Mr. Hu, Mr. Zhu, and Company C shall immediately cease infringing Companies A/B's technical secrets and destroy process materials recording the secrets; (2) Company C shall, within 10 days of effectiveness, pay RMB 30,000,000 in economic losses and RMB 400,000 in reasonable expenses, with joint and several liability caps of RMB 5,000,000 (Mr. Hua), RMB 5,000,000 (Mr. Liu), RMB 1,000,000 (Mr. Hu), and RMB 1,000,000 (Mr. Zhu); and (3) other claims were dismissed. Companies A/B, Company C, Mr. Hua, and Mr. Liu appealed. On November 24, 2020, the Supreme People's Court (SPC) rendered this civil judgment: (1) affirming item 1 and item 3 of the first-instance judgment; (2) modifying item 2 to order Company C to pay RMB 30,000,000 in economic losses and RMB 400,000 in reasonable expenses, with joint and several liability caps of RMB 5,000,000 (Mr. Hua), RMB 30,000,000 (Mr. Liu), RMB 1,000,000 (Mr. Hu), and RMB 1,000,000 (Mr. Zhu); (3) dismissing other appeals by Companies A/B; and (4) dismissing the appeals of Mr. Hua, Mr. Liu, and Company C. Company C, Mr. Hua, and Mr. Liu then sought supervisory review; the SPC rejected the applications.

Holding

1. In determining whether IP infringement constitutes "serious circumstances" warranting punitive damages, the court may consider: whether the alleged infringer engages in IP infringement as a primary business; whether criminal or administrative penalties have been imposed; whether there is repeat infringement; whether obstruction of evidence occurred during litigation; and the losses caused or profits gained, the scale of infringement, and the duration of the conduct.
2. If a party knowingly builds its core business on infringement, it qualifies as engaging in infringements as a primary business. When that misconduct is sustained and large in scale, courts may impose punitive damages at the top of the permissible range.

Reasoning

Under Article 17(3) of the Anti-Unfair Competition Law, compensation is determined by actual losses; if difficult to calculate, then by the infringer's profits. For willful trade secret infringement under serious circumstances, compensation may be set at one to five times that base amount, and shall include reasonable enforcement expenses.

Here, Companies A/B's actual losses could not be ascertained, so the court calculated infringer's profits from verified partial sales by Company C. Company C's carbomer production infringed Companies A/B's technical secrets with respect to process, workflow, and certain equipment, though its carbomer formula was not found infringing. The first-instance court did not adequately weigh the role of the infringed secrets or the contribution of other production factors. Multiplying Company C's self-admitted sales exceeding RMB 37 million by a 32.26% gross margin for the fine chemicals industry yielded approximately RMB 12 million in provable profits. Considering the role of the infringed secrets in production, the court assessed a 50% contribution rate for the secrets and, correspondingly reducing Company C's infringement profits at a rounded RMB 6 million. On profit margin selection, because Company C failed to produce accounting vouchers, ledgers, or income statements as required, and failed to prove its carbomer profit margin, it bore adverse evidentiary consequences; the product margin was therefore determined with reference to the fine chemicals industry gross margin disclosed in Company A's annual report.

Company C argued it produced other products, submitting its business license in the second instance. But the registered scope reflects initial registration choices and may not match

actual operations. Established facts show Company C produced only carbomer and provided no evidence of other products. Mr. Hua's disclosure occurred in 2012–2013; Company C then used the unlawfully obtained process and equipment to make and sell carbomer domestically and internationally, and expressly stated all carbomer products were made on the same equipment. Whether conduct amounts to infringing as a primary business requires objective and subjective assessment: objectively, actual infringement constituting the company's main business and principal profit source; subjectively, knowledge of infringement by controllers and management. Company C and individuals including Mr. Liu fit these criteria.

Article 17(3) prescribes conditions and multipliers for punitive damages. The applicability turns on willfulness and seriousness. Company C's core business since incorporation was carbomer production; it offered no proof of other products, and differently named carbomer products were all made on the same equipment. After its former legal representative Mr. Liu was criminally convicted for trade secret infringement, Company C continued production and sold across 20+ countries and regions, and in first-instance proceedings unjustifiably refused to produce accounting books and vouchers, constituting evidence obstruction—evidencing willfulness and seriousness. The infringement spanned April 23, 2019, the effective date of the amended Anti-Unfair Competition Law; Company C's refusal to provide financials meant profits were determined only from self-admitted sales, representing partial illicit gains, and it was impossible to segment damages pre-/post-amendment. Evidence showed continued, large-scale, prolonged infringement even after the first-instance judgment. Given the deterrent purpose of punitive damages—to sanction malicious, egregious infringement, deter potential infringers, and protect innovation—the court determined damages at the higher end based on Company C's ascertained infringement profits.

E. Technical secrets infringement involving melamine—Determination of joint intentional infringement and liability in technical secret cases

Parties

Sichuan Chemical Company A v. Shandong Chemical Company B, *et al.*

Case number

(2022) 最高法知民终 541 号 | 2022-SPC-IP-Civ-Fin-541

Panel

Cen Hongyu | Xu Hongni | Kong Liming

Keywords

civil; infringement of technical secrets; joint infringement; cessation of infringement; judicial appraisal

Relevant legal provisions

- Anti-Unfair Competition Law (Amended in 2017), Articles 9 and 17(3)
- Tort Liability Law, Article 8
- Civil Procedure Law (Amended in 2021), Article 67(1)

Facts

Company A alleged that its pressurized gas-phase quenching process for a 50,000 t/a melamine production reaction system (the technical secrets at issue) was protected as technical secrets, and that Company B, Ningbo Management Consulting (Company C), Ningbo Chemical Engineering Design (Company D), and Mr. Yin infringed those secrets, acting jointly and reaping substantial illicit profits. It sought orders requiring the alleged infringers to cease infringement (including ceasing disclosure, use, or permitting others to use the technical secrets at issue; destroying materials embodying the secrets; requiring Company B to destroy the production system embodying the secrets; and stopping sales of melamine produced using those secrets) and to be jointly and severally liable for RMB 98 million in economic losses and reasonable expenses.

Companies B, C, D, and Mr. Yin argued they did not infringe, did not engage in joint infringement, and bore no liability.

The court found: Company A owns the technical secrets at issue; Mr. Yin was among their developers and owed confidentiality duties. On September 7, 2011, Company B announced a plan to use urea feedstock and adopt a pressurized gas-phase quenching process to build a 100,000 t/a melamine facility in two phases. On October 16, 2011, it executed an Engineering Design Contract for the large-scale melamine project with Companies C and D, identifying Company B as the client, Company D as the contractor, and Company C as the technology licensor; the contract set a RMB 9.66 million design fee and a RMB 16 million proprietary technology fee. From February to July 2012, Companies C and D separately approached Mr. Yin, sought Company A's melamine technology for designing a 50,000 t/a unit for Company B, offered substantial compensation, and copied Company A's technical materials from Mr. Yin's laptop onto a USB flash drive. In 2013, they provided Mr. Yin with the completed design drawings for Company B's melamine project for checking, and arranged multiple on-site inspections, training, and troubleshooting at Company B in 2013–2014. Mr. Yin received RMB 950,000. On April 30, 2014, Company B announced a successful trial run of Phase I, full-process operation, and qualified product output, entering trial production. On March 28, 2017, Company B disclosed that melamine products related to the Engineering Design Contract accounted for about 2% of annual revenue over the previous three years. Using Company B's disclosed organic amine gross margin and peer melamine margins, profits from melamine sales during the claimed infringement period (April 30, 2014 to December 30, 2018) were estimated at approximately RMB 280–303 million.

The Chengdu Intermediate People's Court ordered Companies B, C, D, and Mr. Yin to immediately cease disclosing, using, or permitting others to use the technical secrets at issue and to destroy materials embodying the secrets; ordered Company B to pay RMB 50 million in damages; held Companies C and D jointly liable up to RMB 5 million of that amount, and Mr. Yin up to RMB 1.2 million; and denied the requests to order Company B to stop selling melamine produced using the secrets and to destroy the infringing production system. All parties appealed. On December 26, 2022, the Supreme People's Court rendered this civil judgment, revoking the first-instance judgment (2017) Chuan 01 Civ-1st No. 2948, and ordered: Companies B, C, D, and Mr. Yin shall immediately cease disclosing, using, or permitting others to use the technical secrets at issue from the judgment's effective date until the secrets become publicly known; Company B's cessation includes immediately stopping sales of melamine produced using the technical secrets at issue; Companies C, D, and Mr. Yin shall destroy, within 10 days, all technical materials in their possession that embody the secrets; Company B shall, within 90 days, destroy equipment in its 100,000 t/a Phase I melamine project that embodies the secrets (including by dismantling those parts containing the secrets) and destroy technical materials embodying the secrets; and Companies B, C, D, and Mr. Yin shall, within 10 days, be jointly and severally liable for RMB 98 million in economic losses and reasonable enforcement expenses.

Holding

1. Joint intentional infringement is not limited to prior conspiracy or subsequent coordinated action. Where participants are mutually aware and tacitly complicit, sequentially participate, and collaborate to form a complete chain of infringing acts, their conduct constitutes joint intentional infringement. All infringers shall bear joint and several liability for the entirety of the damages.
2. From the perspective of subjective fault, joint infringement includes: (1) acts committed with joint intent; (2) acts committed with joint negligence; and (3) combinations of intentional and negligent acts, where multiple actors, though to differing fault degrees, cause harm through their combined conduct.
3. Where technical secrets are indispensable to manufacturing a specific product and the product is directly obtained by using those secrets, the sale of such product is a natural extension and inevitable consequence of the same infringer's manufacturing. A right holder's claim to order the manufacturer to cease selling products directly derived from the secrets may be upheld.
4. Where the right holder proves the existence of carriers of the technical secrets, the court should generally grant a request to order the infringer to destroy carriers in its possession, and may specify the methods and compliance period considering the carrier's nature and the secrets' content. An infringing production system is both a key carrier of the secrets and a tool for continued infringement; ordering its destruction (including dismantling) both ceases infringement and prevents recurrence.
5. A party's application for judicial appraisal does not automatically trigger appraisal. The court determines whether to initiate appraisal based on the need to ascertain facts, generally examining relevance, necessity, feasibility, and legitimacy.

Reasoning

Issues: (1) whether Companies B, C, D, and Mr. Yin infringed the technical secrets at issue and whether their acts constituted joint infringement; (2) whether they should bear joint and several liability; (3) how to allocate responsibility to destroy carriers of the secrets and to cease sales of melamine produced using the secrets; and (4) whether Company B's appraisal application should be granted.

(I) Whether the alleged infringers infringed the technical secrets at issue and whether their acts constituted joint infringement

Under Article 8 of the Tort Liability Law, joint infringement requires: (i) two or more actors; (ii) joint commission of the infringement, which, from the perspective of subjective fault, includes acts with joint intent, acts with joint negligence, and combinations of intentional and negligent acts—any one suffices; (iii) indivisible harm to the victim; and (iv) causation between each actor's infringing act and the harm, though the causal contribution may vary.

1. Subjective fault of Company B and the other alleged infringers

Mr. Yin, a principal developer, had direct access to the secrets. Before completing separation formalities and without informing the employer he retained drawings and materials, he left Sichuan Chemical Company A while still bound by confidentiality obligations, and—knowing Companies C and D were collaborating with Company B—disclosed the secrets to them and to Company B, accepted compensation, and provided follow-on technical guidance using those secrets. This breached his confidentiality duties and constituted trade secret infringement under Article 9(1)(3) of the Anti-Unfair Competition Law, making him a pivotal actor in the joint infringement.

After contracting with Company B, and despite knowing Mr. Yin's role, Companies C and D, unlawfully procured the secrets from him through substantial financial inducements, with Company C serving as the nominal technology provider transferring the secrets to Company B and Company D performing "engineering design" for Phase I, obtaining economic benefits. Their conduct falls under Article 9(1)(1)–(2) and positioned them as initiators and intermediaries in the joint infringement.

Company B, as end user and principal beneficiary, obtained technical drawings and materials from Companies C and D. The record shows it knew the technology originated from Sichuan Chemical Company A, rendering its conduct a deemed trade secret infringement under Article 9(2). Though at the terminal link, Company B was the ultimate user and principal beneficiary.

Accordingly, Companies B, C, D, and Mr. Yin shared a joint intent to infringe, were mutually aware, sequentially executed corresponding infringing acts, and divided tasks in cooperation, satisfying joint intentional infringement. Prior conspiracy or overt *post hoc* coordination is not required; tacit, sequential cooperation suffices. In this case, each actor's conduct was a critical, indispensable link in the chain.

2. Regarding the consequences of damage

No damage, no remedy. Consequences of damage are a key factor in determining liability. Without a shared harmful consequence, there is no basis for joint liability. Here, the joint intentional infringement by Company B and the other alleged infringers weakened Company A's competitive advantage derived from the technical secrets at issue and caused loss of potential or anticipated market share. Under Article 17(3) of the Anti-Unfair Competition Law, infringement profits may serve as a basis for calculating damages. Accordingly, the profits gained by Company B and the other alleged infringers constitute consequences of damage, though damage is not limited to such profits.

For these alleged infringers, the gains from their joint infringement primarily manifest in Company B's profits from melamine sales. In assessing those gains, the court should evaluate the joint conduct as a whole rather than segmenting each participant's conduct in isolation. The amounts obtained by Companies C and D and Mr. Yin at various stages are encompassed within Company B's sales profits. The increase in Company B's melamine sales profits was the collectively intended and fully foreseeable outcome from the outset.

Specifically: (1) The shared purpose of the joint infringement was to sharply increase Company B's melamine output and, in turn, its sales profits—a result that was achieved. Although each participant acted differently and realized different profit forms and shares, viewed as a whole, the gains from the joint infringement ultimately materialized in melamine sales profits—the outcome jointly pursued. Correspondingly, Company A's potential or anticipated market share and related earnings were inevitably affected. Its economic losses were caused by the alleged infringers' use of the technical secrets at issue to construct and operate the Phase I melamine production system and to produce and sell melamine using the processes in the technical secrets. (2) At the inception of the joint infringement, all participants fully foresaw both the harmful consequences and the substantial profit growth Company B would realize. Companies C and D and Mr. Yin knew the Phase I project entailed a 50,000 t/a single-line capacity; Mr. Yin disclosed the secrets knowing they would be used for that project; Companies C and D acquired the secrets from him to build that project. They knew the project aimed to increase Company B's annual capacity, that its completion would raise output, that Company B would profit from sales, that Company B competed with Company A, and that

disclosure or use would erode Company A's competitive edge. As a principal developer, Mr. Yin understood the secrets' significance and the advantages they conferred. Companies C and D likewise knew the secrets' industry value. Company B, seeking to boost capacity, knowingly acquired and used unlawfully sourced secrets for its Phase I project; the consequent output and profit surge was not only foreseeable but intended.

In sum, the consequences of damage are primarily reflected in Company B's profits from sales of the melamine products at issue, and those consequences are indivisible.

3. Regarding causation between the infringing acts and the consequences of damage

As discussed, Mr. Yin's breach of confidentiality and disclosure or authorization was the foundational link enabling the joint infringement; his subsequent technical guidance using the secrets made him a key actor. Companies C and D—through high-value inducements—illegally acquired, disclosed, used, and authorized use of the secrets, acting as initiators, intermediaries, and nominal technology providers. Company B unlawfully obtained and used the secrets to make and sell melamine, serving as the final link and principal beneficiary. Their infringing acts are interlocked and indispensable, each bearing a direct causal relationship to the consequences of damage.

Accordingly, the four participants acted with mutual intent and coordinated subjectively, divided tasks and cooperated objectively, jointly infringing the technical secrets at issue. The indivisible damage consequences bear a direct causal link to each participant's acts, constituting joint infringement.

(II) Regarding whether the alleged infringers should bear joint and several liability

Because the defendants committed joint infringement, Article 8 of the Tort Liability Law requires joint and several liability. Each participant's conduct was an indispensable part of the whole; together they caused the same consequences of damage, and each act bears a direct causal connection to those consequences. Each alleged infringer must therefore be jointly and severally liable for the full amount of losses arising from the joint infringement.

Neither the RMB 950,000 that Mr. Yin received from Companies C and D nor the contract payments to Companies C and D under the engineering design contract reflect the ultimate consequences of damage caused jointly with Company B. Those amounts cannot cap their liability. The first-instance approach that apportioned joint liability by each participant's actual gains and contribution to damage was improper and requires correction.

(III) Regarding the obligations to destroy carriers of the technical secrets at issue and to cease sales of melamine produced using those secrets

1. Destruction of carriers

Article 18 of the SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Civil Cases Involving Trade Secret Infringement provides that courts should generally uphold requests to order the return or destruction of trade secret carriers or the elimination of secret information under the infringer's control. Here, the construction and operation of the accused production system—Company B's Phase I melamine project—depended on the technical secrets at issue (including equipment selection, dimensions, and process parameters). For Company B, the principal carriers include the accused production system and drawings or technical materials filed with regulators (the design report), and, as the operator of large-scale equipment, the supporting technical documentation necessary for operation, maintenance, and repair. Company B's use consisted of: using the secrets to build the accused system; operating that system embodying the secrets; and using the processes in the secrets to manufacture and sell melamine. The accused system is both a key carrier and a tool enabling continued infringement. Ordering its destruction (including dismantling) is necessary to cease infringement and to prevent recurrence. The court therefore upheld the request to order Company B to destroy the relevant equipment and related drawings and technical materials that embody the secrets. Because the system also contained equipment that did not embody the secrets and therefore implicates Company B's property rights, destruction methods may include, but are not limited to, dismantling of those parts that embody the secrets.

Given the large-scale nature of the project and hazardous chemical handling, a reasonable compliance period is warranted. In light of Company B's own statement in SPC judgment (2020) IP-Civ-Fin No. 1559 that it modified its system in one month, dismantling or equivalent measures within 90 days are feasible. The SPC accordingly granted a 90-day grace period. The design report and other technical materials embodying the secrets must be destroyed concurrently.

The first-instance court, aiming to avoid resource waste and safety risks, sought to encourage licensing by ordering cessation of use without destruction. Although well-intentioned, that approach—given the defendants' evident fault and the seriousness of the infringement—unduly restricted the right holder's IP, risked enforcement deadlock if no agreement were reached, and would not effectively protect Company A's rights while raising dispute costs. Courts should fully and effectively protect IP; Company A's request is therefore granted to both halt infringement and delineate boundaries conducive to good-faith negotiations.

2. Cessation of sales of melamine produced using the secrets

In technical secret cases, manufacturers' infringement typically consists of using secrets to make products, conduct that the Anti-Unfair Competition Law prohibits. Where the secrets are indispensable to manufacturing and the product is directly obtained by using them, sales are a natural extension and inevitable consequence of the same infringer's manufacturing. The prohibition on use must therefore encompass post-manufacture sales by that manufacturer. A narrower reading would be illogical and would allow continued profits that perpetuate or expand harm.

Generally, independent downstream sales by non-manufacturers do not fall within the statutory list of trade-secret infringements. However, if such sellers, through clear fault, form joint or contributory infringement with the manufacturer, their conduct is likewise prohibited.

Here, Company B used the secrets to build the accused system, continued to operate that system embodying the secrets, and used the processes in the secrets to make and sell melamine. The secrets included essential technical information (equipment selection; structures, dimensions, shapes; process parameters) necessary to build and operate the accused system and to make melamine; melamine is directly produced by using those secrets. Without the secrets, Company B could not have completed the system or achieved 50,000 t/a output. The request to order Company B to cease sales of melamine produced using the secrets is encompassed within the prohibition on use and is a necessary corollary of halting the manufacturer's exploitation. Thus, building on the first-instance order to stop using the secrets, Company B must also immediately cease sales of melamine produced using them.

(VI) Regarding Company B's application for judicial appraisal

Under Article 67(1) of the Civil Procedure Law, parties bear the burden of proof. Judicial appraisal is an evidentiary activity whereby experts apply specialized knowledge to opine on technical issues; such opinions are subject to challenge and court determination. An appraisal application does not automatically trigger appraisal; initiation turns on the necessity to ascertain facts beyond the court's expertise.

In reviewing such applications, courts should avoid both abuse and undue deprivation of rights, focusing on: (i) relevance—whether the appraisal relates to facts to be determined; (ii) necessity—whether specialized means are required and whether other evidence and contestation cannot resolve the issues; (iii) feasibility—whether authoritative methods, qualified institutions, and adequate materials exist; and (iv) legitimacy—whether procedural rules are followed and parties' views are heard before initiation.

This case was filed on August 28, 2017. Company A submitted evidence of the technical information it claimed as secrets. Over four years, the first-instance court held seven pretrial conferences under confidentiality agreements and conducted hearings on October 20–21, 2021. The court repeatedly invited Company B to review the confidential evidence; Company B refused, and without justification withdrew from all seven pretrial conferences and both hearings. Not until September 28, 2021, did Company B file a written appraisal application—seeking opinions on non-publicity and commercial value or practicality of the

technical information—well beyond the evidentiary deadline. On appeal, despite first-instance findings on secrecy and value, Company B persisted with its application while still refusing to review the confidential evidence or provide opinions through contestation and failed to raise targeted objections to rulings of first instance. Effectively, Company B waived its right to contest confidential evidence. Its first-instance application lacked necessity and procedural legitimacy due to undue delay; for the same reasons, its appellate application should likewise be denied.

F. Technical secrets infringement involving the DAKS system— Determination of disclosure of technical secrets

Parties

Oil Reservoir Company A and Petroleum Technology (Beijing) Company B v. Mr. Zhai, Daqing Software Technology Company C, and Beijing Data Company D

Case number

(2022) 最高法知民终 901 号 | 2022-SPC-IP-Civ-Fin-901

Panel

Yu Xiaohan | Ou Hongwei | He Jun

Keywords

civil; infringement of technical secrets; disclosure; loss of control

Relevant legal provisions

- Anti-Unfair Competition Law, Articles 10(1) and (3); Anti-Unfair Competition Law (Amended in 2017), Article 9

Facts

Company A created in 2000 the Expert Knowledge Base System for Analogical Decision-Making in Oil and Gas Exploration and Development (DAKS system). Company A and Company B are affiliates. Company A authorized Company B to use the DAKS system and to sue when related IP is infringed. The claimed trade secrets are the DAKS software's technical parameters and engineering data (the technical information at issue), comprising: Secret Point 1—474 technical parameters (database fields) defining reservoir attributes in a database covering 1,339 reservoirs; and Secret Point 2—the same 474 parameters in the DAKS knowledge database, together with corresponding engineering data for 1,339 reservoirs.

Mr. Zhai worked at Company B from 2009 to 2012. After departure, he developed the IRBS system containing information substantially identical to the technical information at issue. In August 2017, he transferred the IRBS system to Company C for RMB 3.5072 million. Company C operated the system via the website of Company D, its wholly owned subsidiary. Companies A and B sued Mr. Zhai and Companies C and D for jointly infringing their trade secrets, seeking injunctions and damages.

The Beijing Intellectual Property Court held: (1) Companies D and C and Mr. Zhai shall immediately cease using or permitting others to use the technical information at issue; (2) Companies D and C shall, within 10 days, jointly pay RMB 2,000,000 in economic losses and RMB 600,000 in reasonable expenses, with Mr. Zhai jointly and severally liable for RMB 1,000,000 of that amount; and (3) other claims dismissed. Mr. Zhai and Companies C and D appealed. On December 4, 2023, the Supreme People's Court rendered this civil judgment, rejecting the appeals and affirming the original decision.

Holding

Where an alleged infringer provides secret technical information or its carriers to specific or non-specific recipients, causing the secrets to escape the right holder's control and become known to others, the court may deem such conduct a disclosure of technical secrets.

It is held that Mr. Zhai obtained, used, and permitted others to use the trade secrets at issue. As to whether Companies C and D infringed:

First, Company C failed to exercise adequate due diligence when negotiating and concluding the share purchase and asset acquisition for the IRBS software copyright from Mr. Zhai. The DAKS database is a large aggregation of technical parameters and engineering data across global reservoirs, yet the IRBS database was purportedly compiled by a single individual. As a professional oilfield data company, Company C should have questioned Mr. Zhai's technical capacity and the lawful source of IRBS parameters. Reasonable inquiry would have revealed the linkage of CCAP, where Mr. Zhai worked, to Company A (abbreviation C&C) and, given the high functional and use-similarity between IRBS and DAKS, should have heightened concern about the legality of IRBS data sources. Company C neither scrutinized those résumé details nor conducted further checks before closing a major transaction; thus it did not meet a reasonable diligence standard.

Second, after hiring Mr. Zhai, Company C still failed to verify résumé inconsistencies. Its 2016 and 2017 annual reports contain markedly inconsistent accounts of Mr. Zhai's 2006–2016 work history. As a listed company, Company C should have questioned his candor and pursued extended verification, including whether IRBS was inherently connected to Company B's DAKS and whether IRBS information was improperly obtained. Its claim of being defrauded and unaware of IRBS's source is rejected.

Third, Mr. Zhai contributed the IRBS copyright as in-kind capital; Company C acquired that copyright on July 5, 2017, and, on April 24, 2018, signed a Software Product License Agreement regarding IRBS with Oilfield Research Institute E. Company D is Company C's wholly owned subsidiary. Even if an arbitral award found Mr. Zhai did not deliver all source code, that does not prove Companies C and D did not actually use the infringing information. Aware or constructively aware of Mr. Zhai's misappropriation, Company C nevertheless acquired the IRBS copyright, contracted for external licensing in its own name, and, through Company D's website, added IRBS-related plugins and login links. These acts objectively created a risk that the allegedly infringing information in IRBS (i.e., the technical secrets at issue) would be disclosed and become accessible to specific or non-specific members of the public.

Accordingly, Companies C and D jointly disclosed, used, and permitted others to use the trade secrets at issue.

G. Technical secrets infringement involving a virus detection reagent—Determination of technical solutions protected as technical secrets

Parties

Shanghai Diagnostics Company A v. Mr. Cheng and Chengdu Biotech Company B

Case number

(2020) 最高法知民终 1889 号 | 2020-SPC-IP-Civ-Fin-1889

Panel

Xu Zhuobin | Yan Feng | Huang Zhonghua

Keywords

civil; infringement of technical secrets; carriers; technical solution; technical information

Relevant legal provisions

– Anti-Unfair Competition Law, Article 9(1)(iii), Article 9(4), and Article 32

Facts

Company A develops photo-activated chemiluminescence immunoassay systems. Mr. Cheng, formerly a core developer responsible for particle R&D and preparation, left and joined Company B. Company A alleged that Mr. Cheng disclosed its technical secrets relating to a “universal solution for the photo-activated chemiluminescence analysis system,” and that Company B directly used those secrets to manufacture and sell in-vitro diagnostic kits. Company A sued Mr. Cheng and Company B for infringement of its technical secrets.

Shanghai Intellectual Property Court ordered Mr. Cheng and Company B to cease infringement and to jointly pay RMB 1,000,000 in economic losses and RMB 300,000 in reasonable enforcement expenses. On appeal, the Supreme People’s Court, on December 14, 2022, rendered this civil judgment, dismissing the appeal and affirming the first-instance decision.

Holding

Where the technical secrets claimed are a technical solution, they may consist of: (1) a complete technical solution recorded in a single technical document; or (2) a technical solution reasonably summarized, generalized, and refined from non-public technical information recorded across multiple documents, such as drawings, process specifications, quality standards, operating guidelines, and experimental data.

Reasoning

Technical secrets are commonly embodied in drawings, process specifications, quality standards, operating guidelines, and experimental data. To prove existence and content, a right holder may summarize, generalize, and refine the protected information from such carriers. The protectable subject matter may be a complete technical solution or constituent technical information forming part of a solution. When the right holder extracts secret information from its technical materials, it may seek protection for a complete technical solution that combines the secret information with prior art and common general knowledge, provided the resulting solution is not generally known or readily accessible.

In this case, Company A asserted eight technical solutions, each comprising several items of technical information; subsequent solutions further restricted or added to prior ones, forming a progressive hierarchy. Technical items such as particle CV values and particle sizes are recorded in Company A’s technical documents. Based on those documents and reasonable synthesis with

field prior art and common general knowledge, Company A proved that it actually possessed and mastered the asserted technical solutions. Mr. Cheng and Company B's argument that the secrets lacked corresponding carriers and that Company A failed to prove ownership is therefore rejected.

H. Technical secrets infringement involving a bell-furnace lifting tool—Determination of technical secrets in a complete set of drawings and factual presumption of technical secret infringement

Parties

Dalian Lifting Tool Company A v. Dalian Electromechanical Equipment Company B and Mr. Liu

Case number

(2022) 最高法知民终 719 号 | 2022-SPC-IP-Civ-Fin-719

Panel

Xu Zhuobin | Huang Zhonghua | Yan Feng

Keywords

civil; infringement of technical secrets; combination of technical information; factual presumption; publicly known information

Relevant legal provisions

- Anti-Unfair Competition Law, Article 10
- SPC Interpretation on Several Issues Concerning the Application of Law in the Trial of Civil Cases Involving Unfair Competition, Article 14
- SPC Interpretation on the Application of the Civil Procedure Law, Articles 90 and 108

Facts

Company A alleged that Company B hired Mr. Liu and other core technicians to obtain Company A's technical drawings, documents, and other technical secrets relating to bell furnace lifting tools, and then manufactured and sold such products in large quantities. Company A sought an order to cease infringement and joint liability from Company B and Mr. Liu for RMB 500,000 in economic losses and RMB 230,000 in reasonable expenses. Company A claimed that its complete set of drawings—29 pages comprising general assembly, component, and part drawings—constituted technical secrets.

The Dalian Intermediate People's Court dismissed the claims, holding that Company A had not specified the concrete content of its technical secrets and thus failed to establish unlawful acquisition by Company B and Mr. Liu. Company A appealed. On March 2, 2023, the Supreme People's Court rendered this civil judgment, reversing the decision and ordering Company B to immediately cease infringing Company A's technical secrets; destroy documents, drawings, and electronic data containing those secrets; and pay RMB 500,000 in economic losses and RMB 230,000 in reasonable enforcement expenses.

Holding

1. A right holder claiming technical information recorded in drawings as technical secrets may assert either: (i) the aggregate of all technical information recorded in the drawings constitutes technical secrets; or (ii) specific technical items recorded in the drawings constitute technical secrets.
2. Given the covert nature of trade secret infringement, courts may apply the "access + substantial similarity – legitimate source" rule to infer that the alleged infringer obtained, disclosed, or used technical secrets by improper means.

Company A claimed the aggregate of information recorded across 29 drawings as its technical secrets. The claim is specific enough to assess secrecy, value, and confidentiality, and then whether the opposing party obtained, disclosed, or used the information by improper means.

“Not known to the public” means not generally known within the relevant industry, not absolutely unknown. Although secrecy is part of the plaintiff’s burden, courts should not impose an unduly heavy burden. Unlike patents, technical secrets need not be novel or inventive—secrecy, value, and confidentiality suffice. Even if some elements are publicly available, the combination may still qualify as a protectable technical secret if, as a whole, it meets legal requirements. If a holder organizes, improves, processes, combines, or compiles public information to create new information that cannot be easily obtained without effort, and adopts confidentiality measures, the resulting information can be protected as a technical secret. Courts should not require overly stringent proof distinguishing the secret from public information. If the right holder provides preliminary evidence of secrecy or a reasonable explanation that the information is not publicly known, secrecy may be preliminarily found; the burden then shifts to the alleged infringer to show the information is publicly known, or to carve out public elements from the claimed scope through adversarial exchange.

Because trade secret misappropriation is often covert, the source of the accused information is hard to pinpoint; presumptions are common. Based on case specifics, known facts, and common experience, a right holder may rely on indirect evidence to show improper means. Under the “access + substantial similarity – legitimate source” rule, where the right holder proves the alleged infringer had access and that the used information is identical or substantially similar to the secret, and the alleged infringer fails or refuses to prove a legitimate source (e.g., independent development, reverse engineering), the court may presume improper acquisition, disclosure, or use.

I. Technical secrets infringement involving microbial prospecting for oil and gas—When damages in technical-secret cases may disregard the contribution rate

Parties

Geological Microbiology Company A v. Energy Technology Company B, *et al.*

Case number

(2021) 最高法知民终 1363 号 | 2021-SPC-IP-Civ-Fin-1363

Panel

Wei Lei | Zhou Ping | Li Yan

Keywords

civil; technical secret infringement; damages; contribution rate of technology

Relevant Legal Positions

- Anti-Unfair Competition Law, Article 20

Facts

Company A alleged that Messrs. Luo, Li, Hu, and Zhang breached confidentiality obligations by disclosing the technical information at issue to Company B; that Company B knowingly used that information despite its improper acquisition; and that all committed infringement. Company A requested: (1) an order that Company B, Luo, Li, Hu, and Zhang immediately cease infringing Company A's technical secrets; (2) joint and several payment by Company B, Luo, Li, and Hu of RMB 5.88 million in economic losses and RMB 507,000 in reasonable expenses (RMB 500,000 in attorney's fees and RMB 7,000 in notarization fees), totaling RMB 6.387 million, with Zhang bearing joint and several liability up to 10% of that amount; and (3) allocation of litigation costs to all defendants.

Company B, Luo, and Hu argued that Company A's microbial hydrocarbon detection technology was public knowledge and that Company B's microbial prospecting for oil and gas (MPOG) technology derived from public information and independent R&D, so there was no infringement. Li argued he never accessed or disclosed the technical secrets at issue; that the allegedly infringing files preserved by the first-instance court did not come from his personal computer; and that their contents were publicly known. Zhang argued that, during his employment at Company A, he had no access to the secrets at issue, never obtained them from others, and did not infringe.

The court found: Company A obtained the technical secrets at issue under an Exclusive Technology Implementation License Agreement; the secrets were used primarily for MPOG. Luo, Li, Hu, and Zhang had been Company A's employees; Luo served as Company B's legal representative. During evidence preservation at Company B, with Li and Hu present, the court found on Li's computer: "Technical Specifications for Field Sampling in Microbial Prospecting for Oil and Gas" (drafted by Mr. Luo and Mr. Hu), identical to the carrier contents of secret points 1, 2, 3, 5, 7, 8, 9, and 12; "Marine Sediment Detection Standards for Microbial Prospecting for Oil and Gas," identical to secret points 13–16; and "Construction Process" and "Interim Outcomes (81) for MPOG in Blocks 1607 and 0333," basically identical to secret point 9. In May 2017, Company B won the ROC project bid, used the Marine Sediment Detection Standards, and received RMB 7.35 million.

Beijing Intellectual Property Court ruled: (1) Company B, Li, and Luo shall immediately cease infringing Company A's technical secrets upon the judgment taking effect; (2) Company B and Li shall jointly pay Company A RMB 500,000 in economic losses and RMB 250,000 in reasonable expenses (total RMB 750,000) within 10 days of effectiveness; and (3) the remaining claims were

dismissed. Company A appealed, arguing that Hu and Zhang also infringed and that the damages were too low. Company B, Li, and Luo appealed, disputing the existence of technical secrets and any infringement. On October 26, 2022, the Supreme People's Court rendered this civil judgment: (1) revoking the Beijing Intellectual Property Court's Civil Judgment (2017) Jing 73 Civ-1st No. 1382; (2) ordering Company B, Li, Luo, and Hu to immediately cease infringing certain of Company A's technical secrets until those secrets become known to the public; (3) ordering them to jointly pay Company A RMB 2 million in economic losses within 10 days; (4) ordering them to jointly pay RMB 507,000 in reasonable expenses within 10 days; and (5) dismissing the remaining claims.

Holding

Where the infringer is clearly at fault and the record establishes—or the specific facts allow the inference—that the misappropriation of technical secrets directly determined the infringer's acquisition of business opportunities or the right holder's loss thereof, the infringer's total profits may, in principle, be treated as profits from infringement.

Reasoning

Company B knowingly obtained and used Company A's technical secrets. Luo and Hu, in breach of their confidentiality agreements with Company A, used Company A's "Technical Specifications for Field Sampling in Microbial Prospecting for Oil and Gas" to prepare Company B's Field Sampling Specifications. Li, a researcher in Company A's R&D department, breached his confidentiality agreement by failing to return materials containing Company A's technical secrets upon departure and used those secrets in Company B's ROC project. Accordingly, Company B, Luo, Li, and Hu committed infringement and must cease infringement and pay damages.

Given that former employees formed a new Company and misappropriated their former employer's technical secrets; that Company B acted with clear malice in using those secrets; and that the secrets were applied in the MPOG sector rather than a fully competitive ordinary commercial field, it is reasonable to presume that Company B improperly captured business opportunities belonging to Company A. Under these circumstances, whether Company B engaged in predatory low-price bidding, whether it also used its own technologies in the ROC project, and the contribution rate of the technical secrets used do not affect the damages calculation.

Based on offshore project audit reports submitted by Company A, the average operating profit margin across two projects was about 43.85%. Using Company A's final ROC project quotation of RMB 7.75 million, operating profit was approximately RMB 3.39 million—well above the RMB 2 million claimed. Even using Company B's figures, with RMB 7.35 million received and a 27.91% profit margin, operating profit would exceed RMB 2.05 million (RMB 7.35 million × 27.91%), also exceeding Company A's claimed damages. Considering the specific infringing circumstances, the court fully granted Company A's claimed amount.

J. Unfair competition involving generation of fake social-Fin screenshots—Assessing the legitimacy of competitive conduct by tool software

Parties

Shenzhen Computer Company A v. Chenzhou Technology Company B; Changsha Service Center C; and Beijing Technology Company D

Case number

(2021)京73民终2963号 | 2021-BJ-73-Civ-Fin-2963

Panel

Zhang Ning | Ma Xingfang | Fan Miduo

Keywords

civil; unfair competition; internet; tool software

Relevant legal provisions

- Anti-Unfair Competition Law, Articles 2 and 12

Facts

The plaintiff, Company A, develops and operates WeChat and QQ, which offer messaging, *hongbao* (digital cash gifts), transfers, and other services that enjoy high popularity and influence. The defendants Company B and the Changsha Service Center C jointly developed and operated two apps, “Weishang Jietu Wang” (later renamed “Weishang Xingqiu”) and “Huoxing Meihua” (the accused apps). These apps mimicked WeChat/QQ interface designs, provided materials and templates identical to WeChat/QQ interfaces, icons, and emojis, and generated fake screenshots—conversations, *hongbao*, transfers, and wallet pages—identical to WeChat/QQ interfaces for users to download and use. The plaintiff alleged this free riding exploited WeChat/QQ’s influence for improper gain, disrupted normal operations, facilitated forgery, and caused negative social impact, constituting unfair competition under Articles 2 and 12 of the Anti-Unfair Competition Law. The “LeStore” app operated by Company D provided search, linking, and download services for the accused apps, allegedly constituting contributory infringement. The plaintiff sought: (1) an injunction against Company D; and (2) joint and several payment from Company B and Changsha Service Center C of RMB 19,715,480 plus RMB 284,520 in reasonable expenses.

Company B argued the plaintiff failed to show protectable legitimate interests under the Anti-Unfair Competition Law; any fake screenshots were user generated and Company B had discharged its duty to warn; the apps’ profitability is not unlawful and is irrelevant to the plaintiff; there is no competitive relationship; and any illegality should be addressed by administrative regulation, not damages. Changsha Service Center C argued it merely received payments, did not operate the apps, lacked common intent, and should not bear joint liability. Company D argued it is a network service provider that does not substantively review apps, lacked knowledge of any unfair competition, had no cooperation with the other defendants, derived no profits from the accused apps, and lacked subjective fault.

The court found: Company A is the operator of the applications WeChat and QQ, which have extremely high recognition in social communications. Company B and Changsha Service Center C (the two defendants) jointly developed and operated the accused apps, which offered “WeChat Screenshot” and “QQ Screenshot” functions. “WeChat Screenshot” could generate WeChat chat, group chat, *hongbao*, transfers, and wallet pages; some features were free, others VIP-only. “WeChat Conversation” included classic, advanced, and simulation versions, with the latter two for VIP-only. Using materials the apps provided—WeChat emojis, payment icons, *hongbao* detail pages, icons, forwarded articles, profiles, and payment notices—users could edit, generate, and download screenshots identical to WeChat interfaces. The “QQ Screenshot” function let users generate

pages with timestamps, text/pictures/voice, emojis, *hongbao*, transfers, calls, nudges, and system prompts; provided materials included QQ emojis, *hongbao* and receipt pages, and wallet detail pages—enabling screenshots identical to QQ interfaces such as chat, *hongbao*, wallet, account, and withdrawal pages. The accused apps updated their interfaces in step with WeChat/QQ updates. Media reported negative incidents involving forged WeChat screenshots—fake chat logs deceiving consumers, forged screenshots manipulating public opinion, and fraudulent payment images.

The Beijing Haidian District People's Court ordered the two defendants to jointly pay RMB 5 million in economic losses plus RMB 284,520 in reasonable expenses and dismissed the remaining claims. The two defendants appealed. On May 25, 2022, the Beijing Intellectual Property Court (BIPC) rendered this civil judgment, dismissing the appeal and affirming the first-instance decision.

Holding

1. If the alleged conduct falls within the first three subparagraphs of Article 12(2) of the Anti-Unfair Competition Law governing online unfair competition, the categorized provisions have priority. If not, but the conduct meets criteria such as “using technical means” or “impeding or undermining the normal operation of online products,” the catch-all in subparagraph 4 may apply.
2. Where the conduct occurs online but does not match Article 12(2)'s enumerated characteristics, Article 2 may be applied for evaluation.
3. When applying Article 2, courts generally consider: (i) whether the conduct violates the principle of good faith and industry business ethics; (ii) whether it harms other operators' lawful interests; (iii) whether it harms consumer interests; and (iv) whether it undermines a fair, healthy competitive order.

Reasoning

The two defendants did not use technical means to render WeChat/QQ products or services inoperable, and their conduct is not analogous to the specific online unfair competition acts listed in the first three subparagraphs of Article 12(2). Therefore, subparagraph 4 of Article 12(2) does not apply.

The accused apps provided materials and templates identical to WeChat/QQ interfaces, images, emojis, and text, enabling users to generate fake screenshots—WeChat chats, *hongbao*, transfers, wallets, as well as QQ chats, transfers, QQ *hongbao*—that were indistinguishable from actual interface scenarios. The two defendants leveraged WeChat/QQ's massive user base, the authentic and trustworthy social commercial ecosystem already built, and users' reliance on information within WeChat/QQ. By exploiting some users' intent to obtain improper benefits via forgery and cheating, the apps gained large user numbers and profited. Rather than creating positive social value, the apps supplied a tool for fabrication and cheating; even if users ultimately created the images, the apps provided the conditions for deception, violating good faith and business ethics.

WeChat and QQ, as instant messaging platforms, have increased user stickiness through features such as Moments, Official Accounts, WeChat Pay, QQ Zone, and QQ Wallet, building a multi-domain, multi-party, trustworthy and healthy social commercial ecosystem that yields market returns and competitive advantages. Such legitimate interests merit protection under the Anti-Unfair Competition Law. The accused apps directly undermined the authenticity-based operational foundation of WeChat/QQ, risking deterioration of user experience, diminished public evaluation, and harm to the plaintiff's competitive interests. Good faith users viewing forged screenshots—combined with their own experience of the platforms—are likely to believe dialogues, transaction records, receipts, and *hongbao* activities are genuine, leading to deception and potential personal or property harm, thereby injuring consumers. Healthy market order requires operators to compete through good faith, effort, and innovation; by contrast, the two defendants merely supplied a tool to fabricate others' interface screenshots, enabling false depictions of transactions, reviews, and payments. Allowing such conduct to persist would harm industry health and fair competition. Accordingly, the conduct constitutes unfair competition under Article 2.

Company D, as a network service provider, exercised reasonable care, lacked subjective fault, and did not commit unfair competition.

K. Unfair competition involving interference with search engines— Determining unfairness in manipulating search rankings

Parties

Beijing Technology Company A v. Jiangsu Network Technology Company B

Case number

(2021) 苏 05 民初 1480 号 | 2021-JS-05-Civ-1st-1480

Panel

Xu Feiyun | Wang Xiaofeng | Yan Changhai

Keywords

civil; unfair competition; search engine; interference; ranking

Relevant legal provisions

- Anti-Unfair Competition Law, Article 12

Facts

Company A alleged that Company B ran a content publishing and management system offering “keyword flooding” services that let subscribers manipulate search rankings on Company A’s search engine. Company B mass-produced spam pages using pseudo-original rewrites, scraping, and content splicing; injected those pages into thirdparty sites to create fake pages; and mapped them to target keywords so that, when users searched those terms, one or more fake pages would occupy first-page results. Company A claimed this conduct materially interfered with its products and services, degraded the search ecosystem, and harmed compliant site operators, constituting unfair competition. Company A sought: (1) an injunction requiring Company B to immediately stop providing the “keyword flooding” service through its site and management system; (2) RMB 10 million in damages and costs; and (3) a newspaper notice to mitigate adverse effects.

Company B argued that its model complied with industry practice and business ethics; that the published materials were lawful; and that there was no evidence it improperly diverted others’ legitimate business opportunities or disrupted market order. It contended the conduct did not amount to unfair competition and the claims should be dismissed.

The court found that Company B’s system supported, among other functions, keyword configuration; paragraph and image placement; content review; and real-time monitoring of rankings and traffic for pages appearing in Baidu results. Company B had cooperation agreements with dozens of high-authority sites under which those sites opened secondary directories for Company B, which then placed advertising under those directories.

Company B’s “keyword flooding” package included: (1) helping clients publish keyword-targeted content on partner media sites to aid inclusion by Baidu and mobile search engines; (2) guaranteeing at least 1,000 client keywords; (3) during the contract term, ensuring 1,000–50,000+ keywords ranked on Baidu’s first page (PC and mobile); and (4) leveraging cloud resources to run search engine optimization (SEO) campaigns aimed at securing indexation and rankings across search engines. In practice, Company B generated pseudo-original articles from industry material, autocombined keywords via its system, published to partner high-authority sites, and exploited those sites’ domain authority to boost rankings—guaranteeing at least 1,000 first-page keywords and often achieving several thousand to hundreds of thousands.

For evidence preservation, on February 23, 2021, Company A purchased a three-month “keyword flooding” plan. By March 8, 2021, Company B’s links appeared on Baidu’s first page for 1,237 desktop and 1,294 mobile keywords. On March 10, 2021, searches for relevant terms showed

ad pages on third-party domains published by Company B, occupying prominent first-page positions (desktop: 3rd/5th/7th; mobile: 1st/3rd/5th/8th/10th). By March 23, 2021, Company B's links ranked on the first page for 8,735 desktop and 8,176 mobile keywords. However, internal searches on the third-party sites using Company B's configured keywords could not locate those pages.

To counter directory-leasing and similar tactics, Company A updated its detection algorithms, improved recall, and rolled out targeted B2B-page coverage, identifying more than 200 million cheating/spam pages.

Company B confirmed its aggregate net profits from 2017 to 2021 exceeded RMB 3 million.

On March 1, 2022, the Suzhou Intermediate People's Court rendered this civil judgment: (1) Company B shall immediately cease the unfair competition at issue; (2) within 10 days from the effective date, Company B shall publish a statement on its official website to eliminate adverse effects; (3) within 10 days from the effective date, Company B shall pay Company A RMB 2.7 million in economic losses and RMB 53,000 in reasonable expenses to stop the infringement, totaling RMB 2,753,000; and (4) the remaining claims are dismissed. No appeal was filed; the judgment is final.

Holding

Where an internet enterprise uses technical means to mass-generate keywords and non-human-authored pages, publishes those promotion pages under secondary directories of high-authority websites, and maliciously interferes with or manipulates organic search rankings to obtain unlawful benefits without reasonable justification, such conduct falls under Article 12(2) of the Anti-Unfair Competition Law as "other acts that obstruct or undermine the normal operation of network products or services lawfully provided by other business operators," and constitutes unfair competition.

Reasoning

The court held that Company B's "keyword flooding" services constituted unfair competition—interfering with search algorithms and distorting ranking outcomes under the guise of technological neutrality—for the following reasons:

1. Competitive relationship

There exists a competitive relationship between Company B and Company A.

2. Technical implementation

Company B implemented the conduct via internet technical means, including leasing secondary directories of "high-authority websites" and publishing large volumes of keywords and non-human-authored pages thereunder.

3. Impairment of normal operation

Company B's conduct contravened Company A's will and impaired the normal operation of Company A's network products and services: it disrupted Baidu's normal indexing and ranking order, causing algorithmic distortions; wasted Company A's machine performance and server resources; and degraded Baidu users' experience and trust.

4. Breach of good faith and business ethics

The webpages and content were largely non-human-authored and technically generated. Pages unrelated to the third-party high-authority sites' ICP-filing entities were implanted into those sites. Some contracting parties of Company B were not the ICP-filing entities of the purported high-authority sites. Company B exploited the algorithmic vulnerabilities of Company A to achieve the "keyword flooding" linkage effect.

5. Harm to market order and consumers

Company B disrupted the order of search rankings used by other operators, pushing compliant operators down the rankings. It impaired the natural evaluation of high-authority sites within Baidu's system. It disturbed internet information service administration, leading high-authority sites to provide services beyond their licensed/filed scope, with some noncommercial sites suspected of offering paid services. From the consumer (internet user) perspective, the conduct severely interfered with normal search behavior, increased information-acquisition costs, and amplified the risk of being misled or deceived due to information asymmetry, infringing consumers' right to know.

6. Lack of justification

The conduct was commercial rather than aimed at public-interest protection or consumer welfare. It was disruptive and contrary to good faith, and did not create new algorithms or technologies beneficial to consumers.

Damages: the court determined the damages amount after a comprehensive consideration of Company B's business and the overall profits arising from the conduct.

L. Unfair competition involving commercial game account leveling— Judicial determination of internet unfair competition and business ethics

Parties

Technology (Chengdu) Company A *et al.* v. Network Technology Company C, Nanhai District, Foshan City

Case number

(2022) 沪 0115 民初 13290 号 | 2022-SH-0115-Civ-1st-13290

Panel

Wu Zhiyong | Ni Hongxia | Yuan Tian

Keywords

civil; unfair competition; general clause; internet; commercial account leveling

Relevant legal provisions

- Anti-Unfair Competition Law, Article 2
- SPC Interpretation on Several Issues Concerning the Application of the Anti-Unfair Competition Law, Articles 1–3

Facts

The plaintiffs, Company A and a certain Shenzhen Computer Systems Company (“Company B”), alleged that the defendant’s “Account Leveling Assistant” app offered cash-back for order placement and maintained a dedicated Honor of Kings section to induce and encourage users—including minors—to conduct commercial, large-scale account leveling on its platform, from which the defendant profited. They claimed the conduct constituted unfair competition and sought an injunction and RMB 4.5 million in damages and reasonable expenses.

The defendant, Company C, argued that the parties operate in different lines of business (game operation vs. leveling services); that leveling enhances user experience, causes no loss to the plaintiffs, and increases traffic and stickiness; and therefore does not constitute unfair competition.

The court found: Company A owns the copyright in Honor of Kings and exclusively licensed Company B to operate the game. The game is free to download, attracts users by maintaining a fair competitive environment, and monetizes via value-added items such as skins. Its user agreement requires real-name registration and prohibits commercial use of accounts, including leveling. To protect minors, the game enforces strict real-name registration and anti-addiction measures limiting minors to playing only within the time windows set by the National Press and Publication Administration.

The defendant’s app incentivized users—including minors—to engage in commercial, large-scale leveling and profited by taking cuts from recharge, withdrawal, and order-settlement fees. “Security” and “efficiency” deposits were used to secure performance. Levelers could log in using non-authentic identities; minors could take orders using others’ accounts to bypass anti-addiction controls and earn fees. The app instructed levelers to disable location services to avoid account bans. Launched in early 2020, it was distributed via Huawei, Xiaomi, Wandoujia, 360 Mobile Assistant, and PP Assistant, accumulating over 15,000 downloads by the time of suit.

On judgment, the court ordered the defendant to cease the unfair competition and, considering the game’s popularity and the defendant’s fault, awarded RMB 800,000 in economic losses and RMB 185,000 in reasonable expenses, totaling RMB 985,000. No appeal was filed; the judgment is final.

Holding

To establish unfair competition under Article 2 of the Anti-Unfair Competition Law, three elements must be met: (1) no specific statutory provision directly governs the conduct; (2) the conduct disrupts market competition order and harms the lawful rights and interests of other operators or consumers; and (3) the conduct is improper, because it violates the principle of good faith and recognized business ethics. The defendant's organization of commercial account leveling via the app meets these criteria and constitutes unfair competition.

Reasoning

The commercial account-leveling services organized via the "Account Leveling Assistant" app satisfy Article 2 of the Anti-Unfair Competition Law for three independent yet mutually reinforcing reasons: (1) there is no specific statutory provision that directly regulates the impugned conduct; (2) the conduct disrupts the market competition order and infringes the lawful rights and interests of other operators and consumers; and (3) the conduct is improper, because it violates the principle of good faith and recognized business ethics in the online gaming industry.

1. Absence of a specific statutory provision; inapplicability of Article 12 "technical means"

Scope of "technical means." The phrase "using technical means" in Article 12(2)(4) of the Anti-Unfair Competition Law targets situations where technology is deployed as the operative instrumentality of unfair competition—i.e., methods that improperly steer user choice or substantially impair the technical operating logic by which other operators lawfully provide network products or services, with a direct causal nexus between the technological intervention and the harmful effect. The mere fact that conduct occurs on or through the internet does not suffice.

Nature of the impugned conduct. Here, the defendant ran a platform that organized and matched account-leveling transactions. The decisive acts—logging in to others' accounts, playing games on their behalf, and thereby altering in-game progression—were executed manually by users. The app did not employ automated scripts, bots, client tampering, or other technologies to interfere with the plaintiffs' product logic. Accordingly, Article 12(2)(4) is not engaged.

No other enumerated category applies. The conduct does not fall within Articles 6–12 of Chapter II (e.g., confusion, false advertising, commercial disparagement, trade secret misappropriation, tying/bundling, interference with products/services by technical means), nor within specialized IP statutes such as the Patent Law or Copyright Law. It is therefore appropriately assessed under the general clause of Article 2.

2. Disruption of market order; harm to operators and consumers

Protected competitive mechanism. Honor of Kings uses an Elo-based skill-rating and matchmaking system that evaluates user skill through gameplay data to pair players of comparable competence, ensuring fair competition that attracts and retains users, and forms part of the plaintiffs' competitive advantage. The game also implements strict real-name registration and anti-addiction controls compliant with national policy, which contribute to its goodwill.

Market-order disruption and public-interest impact. By organizing commercial, scaled leveling, the defendant's platform functionally neutralized the real-name and anti-addiction regimes and distorted the fairness of matchmaking. This impeded the normal operation of the game ecosystem, undermined governance of the online environment and protection of minors, and implicated broader public interests.

Harm to the plaintiffs as operators. The leveling transactions exploited the plaintiffs' product environment while evading the plaintiffs' compliance architecture. Because the actual user behind a session could not be reliably identified, the plaintiffs could not effectively enforce their governance rules, which in turn exposed them to reputational doubts regarding compliance and social responsibility, and increased the costs of supervision and remediation.

Harm to consumers (players). Properly credentialed users were deprived of a level playing field, because opponents or teammates might be significantly more skilled hired boosters rather than the account holders matched by the Elo system. Minors faced a heightened risk of circumvention of time and access limits, elevating the risk of gaming addiction and negatively affecting physical and mental health. The cumulative effect impaired user experience and legitimate consumer expectations.

3. Violation of good faith and recognized business ethics

Industry norms and ethical baselines. In online gaming, business ethics include: (a) maintaining competitive integrity by prohibiting account lending and commercial leveling that subvert skill-based progression; (b) fulfilling social responsibilities via mechanisms that protect minors and promote healthy gameplay; and (c) preserving data integrity and security by setting boundaries on account and data use.

Defendant's bad faith and instrumentalization of the plaintiffs' product. The platform commoditized the plaintiffs' competitive mechanisms by turning the game environment into a vehicle for paid progression. The explicit instruction to disable location services to evade enforcement evidences malice and deliberate regulatory avoidance. This conduct increased the plaintiffs' governance burden and eroded the efficacy of internal controls.

Necessity of legal intervention. Given that the platform-mediated transactions systematically circumvented the plaintiffs' compliance tools and market self-correction proved ineffective, judicial intervention was warranted to restore market order and protect the lawful rights and interests of operators and consumers.

Accordingly, the defendant's conduct, while not captured by a specific enumerated provision, squarely falls within Article 2's general clause: it lacks legitimate justification, disrupts market competition order, harms operators and consumers, and violates the principle of good faith and recognized business ethics, thereby constituting unfair competition.

M. Unfair competition involving lithium-ion cathode materials— Remedies and choice of law for infringement of contractual claims to trade secrets

Parties

Jiangsu New Energy Technology Company A v. Jiangsu New Energy Technology Company B;
Technology Company C; Mr. Liu; Mr. Liu M. Xun; and Mr. Jin

Case number

(2021) 最高法知民终 814 号 | 2021-SPC-IP-Civ-Fin-814

Panel

Yu Xiaohan | Lei Yanzhen | Ou Hongwei

Keywords

civil; unfair competition; trade secrets; Anti-Unfair Competition Law; general clause

Relevant legal provisions

- Tort Liability Law, Articles 2, 5, 6(1), and 8
- Anti-Unfair Competition Law, Articles 2, 9, 17, and 32
- SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Civil Cases Involving Trade Secret Infringement, Articles 3–6, and 28

Facts

In July 2014, Mr. Zhu, chairman of a certain Beijing Trading Company D, was introduced to Mr. Liu. The parties agreed that Mr. Liu's team would contribute technology as equity in the name of Jiangsu New Energy Technology Company E, and Mr. Zhu's team would contribute capital via Beijing Trading Company D to acquire 25% of Company A. Company A was incorporated on December 25, 2014. On November 30, 2015, an appraisal valued the "Production Technology for Lithium Ion Cathode Materials" at RMB 50 million.

Company E was in fact funded and controlled by Mr. Liu. Acting through Company E and while serving as Company A's Chief Technology Officer, Mr. Liu delivered part of the trade secrets at issue to Company A, and Company A began constructing production lines. During construction, Company A negotiated financing with a wholly owned subsidiary of Tianjin Technology Company F and, in that process, disclosed the appraisal report for the technology capital contribution. In January 2016, Mr. Jin, a director of that subsidiary, became aware of the lithium battery project. Mr. Liu then engaged with Mr. Jin and, bringing lithium battery cathode material preparation know-how, formed Jiangsu New Energy Technology Company B with him. Mr. Liu resigned from Company A on March 1, 2016, joined Company B on June 12, 2016, the and production of lithium batteries commenced at Company B. Company A's partially built production lines, meanwhile, became inoperative.

On November 29, 2017, Company A sued in the Beijing Intellectual Property Court (BIPC), alleging that Company B misappropriated its trade secrets, evidenced by Mr. Liu's employment at Company B, the parties' overlapping business scopes, and Company B's actual production of lithium battery products. Company A sought orders against five defendants—Company B; Mr. Liu; Mr. Jin; Tianjin Technology Company F; and Mr. Liu M. Xun (a former employee of Company A)—to cease infringement and to pay RMB 200 million in joint and several payment.

BIPC held that the preliminary evidence did not reasonably show trade secret infringement and dismissed the claims. Company A appealed, seeking, among other relief, RMB 50 million in joint damages. On June 30, 2023, the Supreme People's Court rendered this civil judgment, which vacated the first-instance judgment, and ordered Company B, Mr. Liu, and Mr. Jin to jointly and severally pay Company A RMB 50 million within 10 days of the effective date.

Holding

Where a party holds a contractual claim to receive trade secrets that another party is legally obligated to deliver but has not yet delivered, and a third party intentionally interferes with that claim—thereby improperly appropriating the creditor’s transaction opportunities or eroding its competitive advantage—the conduct may be determined to constitute unfair competition under Article 2 of the Anti-Unfair Competition Law.

Reasoning

Scope of rights. Part of the trade secrets at issue had been delivered by Mr. Liu (on behalf of Company E) to Company A; part remained undelivered. For the delivered portion, Company A held intellectual property in the trade secrets. For the undelivered portion, Company A held a contractual claim against Company E to obtain the trade secrets (a “trade secret contractual claim”).

Application of the general clause. Under the Anti-Unfair Competition Law (AUCL), if a third party intentionally interferes with a contracting party’s claim to obtain trade secrets, in a manner that contravenes Article 2(1)’s competition principles (voluntariness, equality, fairness, good faith, and compliance with law and business ethics) and produces harm characteristic of unfair competition—such as improperly seizing transaction opportunities or undermining another operator’s competitive advantage—and the conduct is not otherwise governed by Chapter II of the AUCL or specialized intellectual property statutes, a court may characterize the conduct as unfair competition under Article 2. In such circumstances, consistent with Article 5 of the Tort Liability Law (special rules in other laws take precedence), the AUCL governs civil liability.

Undelivered information capable of trade secret status. For the portion of business information not yet delivered by Company E, where it is reasonably foreseeable or credible that such information is capable of constituting trade secrets, and a nonparty intentionally infringes Company A’s contractual claim to acquire that information, Company A may claim damages for unfair competition.

Application to this case. Company B, Mr. Liu, and Mr. Jin infringed both Company A’s intellectual property in the delivered trade secrets and Company A’s contractual claim to receive the undelivered trade secrets. There was no evidence that Mr. Liu M. Xun or Tianjin Technology Company F participated in the infringement or otherwise bore liability (noting that Company A did not sue the wholly owned subsidiary of Company F, making it difficult to pursue shareholder liability against Company F). The Court therefore reversed the first-instance judgment and ordered Company B, Mr. Liu, and Mr. Jin to bear joint and several liability for RMB 50 million in economic losses, fully granting Company A’s damages claim on appeal.

Chapter V: Integrated circuit layout design case

A. Infringement of integrated circuit (IC) layout design rights involving a lithium battery protection chip—Determining the scope of protection of the exclusive right in an IC layout design

A. Infringement of integrated circuit (IC) layout design rights involving a lithium battery protection chip—Determining the scope of protection of the exclusive right in an IC layout design

Parties

Suzhou Electronic Technology Company A v. Shenzhen Technology Company B *et al.*

Case number

(2019) 最高法知民终 490 号 | 2019-SPC-IP-Civ-Fin-490

Panel

Xu Zhuobin | Lei Yanzhen | Gao Xue

Keywords

civil; infringement of exclusive right to integrated circuit layout design; registration; object and scope of protection; originality

Relevant legal provisions

- Regulations on the Protection of Layout Designs of Integrated Circuits, Articles 4(1), and 8

Facts

On April 22, 2012, Company A applied to register an integrated circuit layout design titled “Lithium battery protection chip with single-chip negative electrode protection integrating controller and switching transistor.” The registration was published on June 8, 2012, and the exclusive right remains valid.

Without permission, Shenzhen Zhun Electronics Company (deregistered; “Company Zhun”) reproduced and sold chips substantially identical to the layout design at issue. Company B issued invoices on behalf of Company Zhun for the sales. At the time of the alleged infringement, Mr. Hu was Company Zhun’s sole shareholder, held 51% of Company B, and served as legal representative of both companies. Mr. Hu later transferred his equity in Company Zhun to Mr. Huang D. and Mr. Huang L. During the first-instance proceedings, Messrs. Huang D. and Huang L. deregistered Company Zhun.

The plaintiff alleged that Company Zhun and Company B jointly infringed its exclusive right in the layout design and that Mr. Hu, Mr. Huang D., and Mr. Huang L. should bear joint and several liability for Company Zhun’s infringement. It sued in the Shenzhen Intermediate People’s Court, seeking an injunction and joint and several payment of damages against Company B, Mr. Hu, Mr. Huang D., and Mr. Huang L.

The Shenzhen Intermediate People’s Court ruled: (1) Company B shall pay RMB 500,000 in economic losses within 10 days of the judgment’s effective date; (2) Mr. Hu, Mr. Huang D., and Mr. Huang L. shall bear joint and several liability for that amount; and (3) the remaining claims are dismissed. Company B, Mr. Hu, Mr. Huang D., and Mr. Huang L. appealed. On October 16, 2020, the Supreme People’s Court rendered this civil judgment, dismissing the appeal and affirming.

Holding

1. The purpose of registering an IC layout design is to identify the object of protection, not to disclose its contents. Public disclosure of the layout design is not a condition for obtaining the exclusive right.
2. The scope of protection of an IC layout design is generally determined by the copies or drawings submitted with the registration application. Where content cannot be identified from those copies or drawings, it may be determined by reference to a sample consistent with them.
3. Registration does not itself establish originality. The right holder must reasonably explain or substantiate the originality of the asserted layout design (or the asserted part). If the accused infringer cannot adduce sufficient counterevidence to overturn that showing, originality may be found.

Reasoning

(I) Whether the protection scope may be determined by chip samples via cross-sectioning

1. Role of paper copies/drawings and samples

Registration materials containing the layout design include: paper copies/drawings (mandatory), electronic copies/drawings (voluntary, but must contain all layout information and specify data format), and samples (submitted where the layout design has been commercially exploited). Ordinarily, the scope of protection is determined from the mandatory paper copies/drawings.

However, with increasing IC complexity and integration density, even the enlargement standard in Article 14 of the Implementing Rules of the Regulations on the Protection of Layout Designs of Integrated Circuits (paper copies/drawings enlarged to at least 20× the produced IC) may be insufficient to fully and clearly reflect the design content. In such cases, provided the sample is consistent with the paper copies/drawings, the court may use cross-sectioning and technical reconstruction of the chip sample to extract the three-dimensional configuration data and identify details not discernible from the paper copies/drawings, thereby determining the protected content.

2. Whether scope is limited to content publicly accessible at registration

Unlike the Patent Law's disclosure-for-rights bargain, the Regulations on IC Layout Design Protection do not condition protection on public disclosure by the right holder. For China National Intellectual Property Administration (CNIPA) registration, paper copies/drawings must be enlarged $\geq 20\times$; and the electronic version must contain all information. After publication, the public may request access to the paper copies/drawings, but confidential information in the paper set for a commercially exploited design may not be accessed or reproduced except as needed in infringement or administrative proceedings. Likewise, the electronic version is not open to public access or copying except for such proceedings.

Accordingly, neither during registration nor after publication is there an obligation of full, unconditional public disclosure of the complete electronic data or the confidential portions of the paper set for commercially exploited designs. The regime is a specialized-right model: registration identifies the protected subject matter and is a condition to obtaining the exclusive right; it is not a process of disclosing the design content in exchange for exclusivity, nor is it identical to Copyright Law protection.

(II) Whether the asserted layout design is original

Protected object and levels of protection. The exclusive right protects the elements and their three-dimensional configuration within the IC; it does not extend to ideas. At higher, purely functional abstraction levels that do not embody three-dimensional configurations of elements and interconnects there is no protection. Below that level, as design specificity increases, protection may cover the allocation and placement of elements, interconnections among components, information-flow relationships, and combinational effects.

Part vs. whole; functional independence. Originality may lie in any part of the layout design or in the whole. Any original part is protectable regardless of whether it is a major portion or embodies core performance. Where the overall layout is a combination of commonly recognized conventional designs, the combination as a whole must display originality. If only a part is asserted, that part should be capable of the relatively independent execution of a specific electronic function.

Dual meaning of originality; assessment framework. Originality requires: (a) the design was independently completed; and (b) it was not, at the time of creation, a commonly recognized conventional design. In litigation, where the defendant contests originality, the court should assess originality based on the parties' claims and evidence. For an asserted part identified by the right holder, the court should proceed in two steps: first, confirm that the asserted subject matter consists of three-dimensional configurations of elements and interconnects used to perform a specific electronic function (otherwise it is not within the protectable object of IC layout design rights); second, determine whether those configurations were not commonly recognized conventional designs at the time of creation.

Role of the right holder's explanation and the evidentiary burden. The right holder may describe the asserted original part from different analytical angles; such description need not fully narrate the three-dimensional configuration. Nevertheless, the court's assessment should focus on the specific three-dimensional configurations of elements and circuits contained in the part as clarified by the right holder's originality explanation.

Registration alone does not create a presumption that the design (in whole or part) is original. At the same time, courts should not impose an excessive evidentiary burden requiring the right holder to exhaust every means of proof. By contrast, an accused infringer may rebut by producing a publicly available conventional layout design sufficient to negate originality. Allocation of the burden should reflect the characteristics of IC layout designs, the current state of registration practice in China, and the parties' relative capacities to produce evidence: the right holder should first provide a sufficient explanation or *prima facie* showing of originality for the asserted part; the defendant should then produce counterevidence of lack of originality; the court should reach a conclusion upon a holistic appraisal of the record.

Chapter VI: New plant varieties case

A. "Dumi No. 5" new plant variety temporary protection fee—Court review of pre-suit, unilaterally commissioned testing by the right holder and calculation of fees during the temporary protection period

A. “Dumi No. 5” new plant variety temporary protection fee—Court review of pre-suit, unilaterally commissioned testing by the right holder and calculation of fees during the temporary protection period

Parties

Seed Technology Company A v. Xinjiang Agricultural Science and Technology Development Company B

Case number

(2021)琼 73 知民初 24 号 | 2021-HN-73-IP-Civ-1st-24

Panel

Xia Junli | Luo Jingyi | Pan Zhaoyong

Keywords

civil; new plant variety; temporary protection period usage fee; unilaterally commissioned appraisal

Relevant legal provisions

- Regulations on the Protection of New Varieties of Plants, Article 33
- SPC Provisions on Several Issues Concerning the Application of Law in the Trial of Disputes over Infringement of New Plant Variety Rights, Article 3
- SPC Provisions (II) on Several Issues Concerning the Application of Law in the Trial of Disputes over Infringement of New Plant Variety Rights, Article 19(1) and 22

Facts

The plaintiff alleged: On June 18, 2021, the melon variety “Dumi No. 5” obtained new plant variety rights. In April 2021, the plaintiff obtained authorization from the other co-holders of the variety right to enforce rights.

On December 13, 2019, the plaintiff discovered that a certain Xinjiang Agricultural Science and Technology Development Company (Company B) was selling seeds labeled “Shijimi No. 25,” suspected to be “Dumi No. 5.” An appraisal concluded that “the test sample ‘Shijimi No. 25’ and the control sample ‘Dumi No. 5’ show no obvious differences.” The plaintiff sued, seeking: (1) an injunction requiring Company B to cease producing or selling “Dumi No. 5” melon seeds under the name “Shijimi No. 25”; (2) payment of RMB 2,970,000 as usage fees for the new variety during the temporary protection period and RMB 30,000 in reasonable expenses (total RMB 3,000,000); and (3) litigation costs.

Company B argued: The claims should be rejected. Although the maternal parent of “Shijimi No. 25” shares the same origin as that of “Dumi No. 5,” the two varieties materially differ in traits, fruit shape, rind color, and flesh firmness. The appraisal report cannot establish the facts and should be rejected; a re-appraisal is necessary.

The court found: On June 18, 2021, a Beijing science academy, a Beijing company, and the plaintiff were granted the new plant variety right in “Dumi No. 5.” Notarial Certificate (2019) ** No. 1287 recorded that on December 13, 2019, the plaintiff’s representative, accompanied by notary staff, purchased three packs of “Shijimi No. 25” melon seeds (producer: Company B) and three packs of “Qige Anti-Crack No. 25” melon seeds (producer: Hainan Qige Fruit Industry) from “Qige Seed Shop,” obtaining a receipt. Photos attached to the notarial certificate show the purchase of three packs of “Shijimi No. 25,” 2,000 seeds/pack, for RMB 1,800 total, with packaging indicating “Producer: Company B,” and the bottom of the bag printed with Company B’s name, “Hainan General Distributor: Hainan Qige Fruit Industry,” and a contact number. Hainan Notary Office charged RMB 8,000 for evidence preservation fees (Nos. 1285–1292).

On December 11, 2020, a New Plant Variety Testing Center issued a field comparison appraisal report stating: “Test sample: ‘Shijimi No. 25’; Control sample: ‘Dumi No. 5’; Sample source: both provided by a Beijing company; Test guideline: DUS Testing Guideline for Melon (NY/T 2342-2013); Test cycle: 2020, one growth cycle; Comparative results: after one growth cycle at one site, the test and control samples show 0 (i.e., zero) obvious differences out of 65 basic traits (see attached table of clearly different traits); Conclusion: no obvious differences; Examiner: Mr. Deng; Date: December 11, 2020.”

Company B admitted that it began test-crossing melon seeds in 2014, had formally sold “Shijimi No. 25” since 2017, and, using unified packaging, distributed to Hainan, Shandong, Hebei, Xinjiang, and Inner Mongolia. From June 26, 2019, to the end of 2020, Company B sold 2,225,000 seeds of “Shijimi No. 25” to a seed shop at RMB 0.10–0.20 per seed, collecting RMB 244,500. As of trial, it still held about 500–600 kg of “Shijimi No. 25” in a Xinjiang warehouse (approximately 28,000 seeds/kg).

On November 4, 2021, Company B applied for a re-appraisal, requesting that the notary-sealed “Shijimi No. 25” samples be tested and compared against “Dumi No. 5” by a qualified identification body.

On December 31, 2021, the Hainan Free Trade Port Intellectual Property Court rendered this civil judgment: (1) Company B shall pay the plaintiff RMB 350,000 for temporary protection period usage fees and reasonable expenses within 10 days of the judgment’s effective date; and (2) the remaining claims are dismissed. Neither party appealed; the judgment is final.

Holding

1. In disputes over new plant variety rights, an appraisal unilaterally commissioned by the right holder before filing suit is not considered a judicially entrusted appraisal. Courts may, by reference to the statutory and judicial interpretation rules on examining appraisal opinions, scrutinize its probative value based on the provenance of samples, the appraiser’s qualifications, the applicable rules and testing methods, and related factors.
2. In temporary protection period usage fee disputes, where the right holder claims reasonable expenses incurred in bringing suit on proper grounds against entities or individuals that produced or sold propagating material of the authorized variety without permission, courts should support such claims and may consider those expenses as a factor in determining the temporary protection period usage fee.

Reasoning

(I) Whether Company B must pay usage fees for the temporary protection period

The temporary protection period for “Dumi No. 5” was May 1, 2019 to June 18, 2021. During this period, the variety right holder may recover from any entity or individual that, without permission and for commercial purposes, produced or sold propagating material of the authorized variety. Central to whether Company B must pay usage fees is the admissibility and weight of the pre-suit appraisal unilaterally commissioned by the plaintiff from the Ministry of Agriculture and Rural Affairs’ New Plant Variety Testing Center.

1. Whether to credit the appraisal report

Although not a court-entrusted appraisal in legal nature, the report is evidence whose probative force should be examined with reference to the rules for appraisal opinions, applying rigorous scrutiny to the case circumstances.

Sample provenance. The notarial certificate records the on-site purchase process. The New Plant Variety Testing Center issued a written statement that it received test samples with seals intact and stamps affixed at the seal. From return of the sealed envelope by the notary to the Beijing company’s custody through its mailing to the Testing Center, the envelope remained intact.

Appraiser qualifications. The Testing Center is a professional institution approved by the Ministry of Agriculture, with the requisite technical capacity for variety testing. Given that, at present,

no appraisal organization in the plant variety rights field has been granted judicial appraisal qualifications by the Ministry of Justice, commissioning that Testing Center was appropriate.

Rules and methods. a) Field plot planting is the most reliable and accurate method to test variety authenticity and assess purity. Here, the Center conducted a field distinctness, uniformity, and stability (DUS) comparison between the “Shijimi No. 25” test sample and the “Dumi No. 5” control sample; its authenticity conclusion is accordingly the most probative. b) Following the applicable DUS guideline, the Center compared traits across growth stages and, after one growth cycle at one site, found zero clearly different traits across 65 basic traits, concluding no obvious differences—indicating the two are the same variety.

2. Whether to permit re-appraisal

Under Article 22 of the SPC Provisions (II), where a party objects to an appraisal opinion but offers no reasonable grounds or evidence, the court shall not grant requests for re-inspection, supplemental appraisal, or re-appraisal. Company B supplied neither counterevidence sufficient to overturn the report nor persuasive reasons or specific doubts. The request for re-appraisal was therefore denied.

(II) Allocation and quantum of temporary protection period usage fees

The plaintiff sought usage fees for the temporary protection period and reasonable expenses. Although neither statute nor judicial interpretations expressly address whether reasonable rights-enforcement expenses should be supported in temporary protection fee disputes, the court held that expenses reasonably incurred in bringing suit on proper grounds should, under the fairness principle, be supported and may be factored into the usage fee determination, with Company B bearing an appropriate share.

Here, the plaintiff provided no evidence of a license royalty for the variety; thus, there was no license benchmark. The court determined the amount by comprehensively considering the following factors: (i) “Dumi No. 5” is a melon variety (a fruit crop and economic crop); (ii) the temporary protection period ran from May 1, 2019 to June 18, 2021; (iii) between June 26, 2019 and the end of 2020, Company B sold 2,225,000 seeds of “Shijimi No. 25” to a seed shop for RMB 244,500, and still held about 500–600 kg in inventory (approximately 28,000 seeds/kg), with the production/sales period overlapping the temporary protection period; (iv) the unit sale price of RMB 0.10–0.20 per seed; and (v) rights-enforcement outlays: RMB 1,800 for the purchase of “Shijimi No. 25,” RMB 1,600 for evidence preservation, and RMB 4,800 for variety testing. Considering Company B’s unauthorized production and sales of “Dumi No. 5,” the court, in equity, set the combined temporary protection period usage fee and reasonable expenses at RMB 350,000.

Chapter VII: Criminal infringement cases

A. Copyright infringement involving LEGO—Determining acts of reproduction and distribution under the crime of copyright infringement

B. Copyright infringement involving “Y.Y. Subtitle Group”—Determining “without permission of the copyright owner” under the crime of copyright infringement

C. Trademark counterfeiting involving “Bluetooth earbud pairing pop-ups”—Displaying a trademark via wireless communication constitutes trademark use

A. Copyright infringement involving LEGO—Determining acts of reproduction and distribution under the crime of copyright infringement

Parties

State v. Mr. Li and eight others

Case number

(2020) 沪刑终 105 号 | 2020-SH-Crim-Fin-105

Panel

Liu Xiaoyun | Liu Junhua | Luo Kaijuan

Keywords

criminal; copyright infringement; artistic works; distribution

Relevant legal provisions

– Criminal Law, Article 217

Facts

Forty-seven series comprising 663 models—including the “Great Wall of China” building sets—are artistic works independently created by Company A. Based on these works, Company A manufactured and marketed corresponding building block toys.

From 2015 to April 2019, without authorization from Company A, Mr. Li organized and directed Mr. Du-A, Mr. Yan, Mr. Yu, Mr. Wang-A, Mr. Zhang, Mr. Wang-B, Mr. Lü, and Mr. Li-B to purchase the new LEGO sets, reverse engineer them by disassembly, conduct computer modeling, copy blueprints, and commission mold manufacture; they set up a toy factory to mass-replicate 663 building block models across 47 series created by Company A, including the “Great Wall of China,” and sold the replicas under the “LEPIN” brand through online and offline channels.

On April 23, 2019, Shanghai Public Security Bureau seized, at a factory leased by Mr. Li, 88 injection molds, 68 spare parts, 289,411 packaging boxes, 175,141 instruction booklets, over 50,000 sales/shipping slips, and 603,875 “LEPIN” toy products copied from LEGO series.

The Copyright Authentication Committee of the China Copyright Protection Center determined that LEPIN-branded toys and catalogs were substantially identical to Company A's toys and catalogs, evidencing reproduction. A forensic accounting appraisal found that between September 11, 2017 and April 23, 2019, the defendants produced and sold 4,249,255 boxes of infringing products across 634 models, totaling RMB 300,924,050.90. Seized inventory awaiting sale totaled 603,875 boxes across 344 models, valued at RMB 30,508,780.70.

Further findings: After leaving Toy Factory A in 2017, Mr. Du-A became a LEPIN distributor, sourcing from Toy Factory A and selling on Taobao for profit; verified sales were RMB 6,215,989.43. While employed at a certain Guangdong technology Company (Company B), Mr. Yu and Mr. Wang-B sold LEPIN (copied LEGO) toys via their Taobao stores, with verified sales of RMB 3,560.28 and RMB 11,747,427.79, respectively.

On April 22, April 23, and May 12, 2019, Mr. Li, Mr. Du-A, and Mr. Wang-A were arrested. On April 23, 2019, Mr. Yu and Mr. Yan voluntarily appeared. On June 14, July 15, and July 31, 2019, Mr. Wang-B, Mr. Lü, and Mr. Zhang appeared. In July 2019, Mr. Li persuaded Mr. Li-B to report to police; on August 5, 2019, the latter voluntarily surrendered. All defendants made truthful confessions after apprehension.

On September 2, 2020, the Shanghai No. 3 Intermediate People's Court rendered Criminal Judgment (2020) Hu 03 Cri-1st No. 28: (1) Mr. Li was convicted of copyright infringement, sentenced to six years' imprisonment, and fined RMB 90 million; (2) Mr. Yan was convicted, sentenced to four years and six months' imprisonment, and fined RMB 800,000; the probationary portion of a prior sentence for "picking quarrels and provoking trouble" was revoked, resulting in a total term of four years and 10 months' imprisonment plus the fine; (3) Mr. Zhang: four years and six months' imprisonment and a RMB 1.2 million fine; (4) Mr. Wang-B: three years and nine months' imprisonment and a RMB 4.5 million fine; (5) Mr. Du-A: three years and six months' imprisonment and a RMB 2.5 million fine; (6) Mr. Lü: three years' imprisonment and a RMB 300,000 fine; (7) Mr. Wang-A: three years' imprisonment and a RMB 300,000 fine; (8) Mr. Yu: three years' imprisonment, suspended for three years, and a RMB 200,000 fine; (9) Mr. Li-B: three years' imprisonment, suspended for three years, and a RMB 200,000 fine; (10) illegal gains were recovered; seized infringing goods and instrumentalities were confiscated. Afterwards, Mr. Li, Mr. Yan, Mr. Zhang, Mr. Wang-B, Mr. Du-A, and Mr. Lü appealed. On December 29, 2020, the Shanghai High People's Court issued this Criminal Ruling, rejecting the appeals and affirming the sanctions.

Holding

1. Original building block sets designed and created by the right holder—including packaging, planographic graphics in manuals, and the assembled three-dimensional models—possess originality and distinctive aesthetic significance, and thus constitute artistic works protected by the Copyright Law.
2. Unauthorized reproduction and distribution of artistic works that meet the quantitative thresholds under the Criminal Law and judicial interpretations constitute the crime of copyright infringement. To distinguish the "distribution" conduct under copyright infringement from the "sale" conduct under the crime of selling infringing reproductions, courts must holistically assess whether the actor maintains a close nexus with the reproduction manufacturer.

Reasoning

Whether the infringed building sets are protected artistic works. The 663 three-dimensional assembled models at issue embody expressions independently created by Company A, reflecting originality and distinctive aesthetic meaning; they therefore fall within artistic works protected by the Copyright Law. In addition, Article 2(2) of the law provides that works by foreigners are protected where covered by treaties to which China is a party. Company A, domiciled in Denmark, is protected under the Berne Convention for the Protection of Literary and Artistic Works and the Universal Copyright Convention, both of which China acceded to in 1992; accordingly, the works are protected in China.

Illegal business turnover under the crime. Relying on forensic accounting and related evidence, the courts correctly fixed illegal business turnover at over RMB 330 million. The method—using the lowest unit price for the same model multiplied by actual shipments or by seized unsold quantities—is favorable to the defendants and legally grounded. On the other hand, although Mr. Li and others began reproducing LEGO toys in 2015, the illegal business turnover was calculated only for the period from September 11, 2017 to the time of detection, which in substance represented a finding favorable to the defendants. Mr. Li offered no evidence of returns or rebates; related appellate grounds lack factual foundation.

Whether the case constitutes a corporate crime by Company B. Under the Criminal Law and the SPC's Corporate Crime Interpretation (Fa Shi [1999] No. 14), a corporate crime requires that the offense be committed in the corporate's name and illegal gains accrue to the corporate. The record shows a joint crime by individuals, not a corporate crime by Company B. Production was primarily by Toy Factory A and sales in the name of Toy Factory B, not in Company B's name. Financial flows for LEPIN production and sales ran through personal accounts (e.g., Mr. Du-B, Mr. Xie), with cash withdrawals and payments to individuals, and no fund flows to or from Company B; the illegal gains did not belong to Company B. Toy Factory A had been deregistered in July 2016 and lacked corporate status; Toy Factory B principally produced and sold the infringing LEPIN products and does not meet corporate crime criteria. Moreover, Factory A was a sole proprietorship; neither factory is a criminal subject here.

Conviction and sentencing of Mr. Du-A. The original judgment correctly convicted Mr. Du-A of copyright infringement. After resigning, he acted as a profit-seeking distributor: he coordinated with Toy Factory A regarding production and customized models, and wholesaled LEPIN products, achieving sales exceeding RMB 6.21 million; such conduct constitutes “distribution” under Article 217. Before resigning, he had long and deeply participated in the replication scheme; after resigning, he immediately continued as a distributor. His pre-resignation copying and post-resignation distribution demonstrate continuity in *mens rea* and *actus reus* and, viewed as a whole, satisfy the elements of the crime of copyright infringement.

B. Copyright infringement involving “Y.Y. Subtitle Group”—Determining “without permission of the copyright owner” under the crime of copyright infringement

Parties

State v. Mr. Liang, Mr. Wang-A, and 13 others

Case number

(2021)沪03刑初101号 | 2021-SH-03-Crim-1st-101

(2021)沪0110刑初826号 | 2021-SH-0110-Crim-1st-826

Panel

Gao Weiping | Cheng Tingting | Lu Jinhua

Liu Huizhu | Bai Tingting | Wu Kuili

Keywords

criminal; copyright infringement; online communication; for-profit purpose; without permission

Relevant legal provisions

- Criminal Law, Article 217(1)
- SPC and SPP Interpretation on Several Issues Concerning the Specific Application of Law in Handling Criminal Cases of Intellectual Property Rights Infringement, Article 5(2)(1), Article 11
- SPC and SPP Interpretation (II) on Several Issues Concerning the Specific Application of Law in Handling Criminal Cases of Intellectual Property Rights Infringement, Article 1
- SPC and SPP Interpretation (III) on Several Issues Concerning the Specific Application of Law in Handling Criminal Cases of Intellectual Property Rights Infringement, Article 2(2)

Facts

Beginning in 2018, defendant Mr. Liang successively established Wuhan A Technology Company and Wuhan B Technology Company, instructing defendant Mr. Wang-A to hire defendants Wan, Xu, Xiong, Jiang, Tian, Wen-A, Wen-B, Wang-B, Hu, Yang, and others as technical and operations staff to develop and operate the “Y.Y. Subtitle Group” website and its Android, iOS, Windows, macOS, and TV clients. Liang also hired defendant Xie-A and others to organize translators to download unauthorized film and television works from overseas websites, translate, package, and upload them to servers, thereby providing users with free online streaming and downloads via the “Y.Y. Subtitle Group” platform and clients. During this period, Mr. Liang collected “membership fees” under the guise of “donations” through the site and apps; directed defendant Xie-B to solicit advertisements and collect ad fees in the name of companies including a certain Guangxi Sanjiang County Technology Company; and instructed defendant Cong to sell external hard drives preloaded with unauthorized films and TV shows. Forensic and audit findings showed the platform and related clients contained 32,824 unauthorized works, with total registered members exceeding 6.83 million. From January 2018 to the detection of the offense, aggregate illegal business revenue across the channels exceeded RMB 12 million; during the tenure of defendants Yang and Hu, their respective illegal revenue was over RMB 2 million and RMB 4 million.

On January 6, 2021, defendants Mr. Liang, Mr. Wang-A, and 11 others were apprehended; on April 19, 2021, defendants Hu and Yang voluntarily surrendered. All 15 defendants truthfully confessed to the offenses upon arrival.

On November 22, 2021, the Shanghai No. 3 Intermediate People’s Court rendered the following criminal judgment (No. 101): (1) Mr. Liang was convicted of copyright infringement, sentenced

to three years and six months' imprisonment, and fined RMB 1.5 million; (2) illegal gains were recovered and seized instrumentalities confiscated. On the same day, the Shanghai Yangpu District People's Court rendered the following criminal judgment (No. 826): (1) Mr. Wang-A: three years' imprisonment, suspended for three years, and a RMB 350,000 fine; (2) Mr. Wan: two years and six months' imprisonment, suspended for two years and six months, and a RMB 330,000 fine; (3) Mr. Jiang: two years and six months' imprisonment, suspended for two years and six months, and a RMB 300,000 fine; (4) Mr. Tian: two years and six months' imprisonment, suspended for two years and six months, and a RMB 250,000 fine; (5) Mr. Xiong: two years and six months' imprisonment, suspended for two years and six months, and a RMB 310,000 fine; (6) Mr. Wang-B: two years and six months' imprisonment, suspended for two years and six months, and a RMB 120,000 fine; (7) Mr. Xie-B: two years and six months' imprisonment, suspended for two years and six months, and a RMB 50,000 fine; (8) Mr. Xie-A: two years' imprisonment, suspended for two years, and a RMB 90,000 fine; (9) Mr. Wen-A: two years' imprisonment, suspended for two years, and a RMB 120,000 fine; (10) Mr. Xu: two years' imprisonment, suspended for two years, and a RMB 130,000 fine; (11) Mr. Wen-B: two years' imprisonment, suspended for two years, and a RMB 170,000 fine; (12) Mr. Yang: two years' imprisonment, suspended for two years, and a RMB 120,000 fine; (13) Mr. Cong: two years' imprisonment, suspended for two years, and a RMB 40,000 fine; (14) Mr. Hu: one year and six months' imprisonment, suspended for one year and six months, and a RMB 90,000 fine; (15) illegal gains were recovered and seized instrumentalities confiscated. No appeals were filed.

Holding

In copyright cases involving a large number of works and dispersed right holders, where it is difficult to obtain all copyright proof documents, if the record shows the dissemination at issue was illegal for lack of the requisite dissemination qualifications, and the infringer cannot produce evidence of authorization from copyright owners, courts may deem the conduct to be "without permission of the copyright owner" under the crime of copyright infringement.

Reasoning

(I) Quantity of unauthorized works and the amount of illegal business revenue

Under Article 2 of the SPC–SPP Interpretation (III), in cases involving numerous works or sound recordings with dispersed right holders, where evidence shows the copies were illegally published, reproduced, or distributed, and the publishers, reproducers, or distributors cannot provide evidence of authorization by the copyright owners or sound recording producers, the conduct may be deemed "without permission of the copyright owner" or "without permission of the sound recording producer" as in Criminal Law Article 217.

Here: (1) The National Radio and Television Administration's directory of license holders for Communication of Audio-Visual Programs via Information Networks confirms that the "Y.Y. Subtitle Group" website and clients lacked the requisite license. (2) Evidence—including witness Park's testimony, complaints, powers of attorney, copyright registration certificates, the China Copyright Protection Center appraisal, a report by the Beijing Office of the Korean Copyright Commission (an overseas copyright certification body), and materials from the Beijing Office of the Motion Picture Association—establishes that the works were used without authorization and are substantially identical to the right holders' works. (3) From 52,683 titles preserved from the platform's servers, a certain Shanghai accounting firm, after excluding duplicates, public-domain or non-copyrighted lectures/speeches, and works beyond a 50-year term, tallied 32,824 infringing titles, with illegal business revenue exceeding RMB 12 million. (4) Mr. Liang could not produce any authorization evidence and admitted that none of the works were authorized. The prosecution's allegation of 32,824 unauthorized titles and illegal revenue over RMB 12 million is thus proven by clear and sufficient evidence.

(II) Social harm

Mere translation does not itself infringe; however, knowing they lacked authorization, the defendants produced unauthorized audiovisual works, uploaded them to servers, and provided online streaming and downloads to users. This not only infringed copyrights, but also disrupted the national copyright administration regime, constituting "reproduction and distribution"

under Criminal Law Article 217. By Liang's own account, "donors" received membership benefits such as streaming privileges, partial or full ad exemptions, and varying on-demand counts; the "donation" model was substantively a membership recharge. Through membership fees, ad revenue, and sales of hard drives loaded with unauthorized content, the defendants generated over RMB 12 million in under three years, involving 32,824 unauthorized works and about 6.83 million members—amounting to "other particularly serious circumstances" and significant social harm.

In sum, the 15 defendants, acting together for profit, reproduced and distributed others' works without permission, under "other particularly serious circumstances," constituting the crime of copyright infringement. Sentences were imposed in accordance with the law, considering the facts, nature, circumstances, and degree of social harm.

C. Trademark counterfeiting involving “Bluetooth earbud pairing pop-ups”—Displaying a trademark via wireless communication constitutes trademark use

Parties

State v. Mr. Ma and others

Case number

(2022) 粤 03 刑终 514 号 | 2022-GD-03-Crim-Fin-514

Panel

Jiang Xiaoxi | Luo Lili | Wang Yuanyuan

Keywords

criminal; counterfeiting registered trademarks; internet of things (IoT); trademark use

Relevant legal provisions

- Criminal Law, Article 213
- SPC-SPP Interpretation on Several Issues Concerning the Specific Application of Law in Handling Criminal Cases of Intellectual Property Rights Infringement, Article 8(2)

Facts

The registered owner of the trademarks “AirPods” (No. 17636443), “AirPods Pro” (No. 41866814), and “Designed by Apple in California” (No. 12611326) is Company A. The trademarks are approved in goods Class 9 (including earphones and headphones) and remain within their valid terms.

The defendants Mr. Luo and Mr. Ma were legal representatives of Sheng and Ling companies, respectively. In September 2020, after conspiring, they agreed to cooperate on a 50/50 basis, using both companies’ premises, personnel, and equipment to assemble Bluetooth earphones counterfeiting Company A’s registered trademarks for profit. The finished earphones bore no physical trademark labels, but when paired with Company A’s smartphones, an electronic pop-up displayed “AirPods” or “AirPods Pro.”

Police apprehended Mr. Luo and others at the Sheng site and seized 1,900 suspected counterfeit second generation and 6,700 suspected counterfeit third generation Company A Bluetooth earphones (all without physical trademarks, but showing “AirPods” or “AirPods Pro” pop-ups when paired), among other items.

At the Ling site, police apprehended Mr. Ma and others, and seized: 1,546 fully packaged suspected counterfeit third generation earphones (with Company A’s trademarks; pairing pop-up “AirPods Pro”); 319 unpackaged third generation earphones (packaging with Company A’s trademark; pairing pop-up “AirPods Pro”); 5,600 unpackaged third generation earphones (no physical trademark; pairing pop-up “AirPods Pro”); 100 Company A branded packaging boxes; 2,163 unpackaged suspected counterfeit second generation earphones (packaging with Company A’s trademark; pairing pop-up “AirPods”); 100 fully packaged suspected counterfeit second generation earphones (charging case printed “Designed by Apple in California,” packaging with trademarks; pairing pop-up “AirPods”), as well as test phones, testers, soldering irons, raw materials, computers, documents, and price lists.

Whether or not the seized earphones/packaging bore Company A’s trademarks, all displayed “AirPods” or “AirPods Pro” upon Bluetooth connection with Company A phones.

On February 24, 2022, the Longgang District People’s Court of Shenzhen rendered Criminal Judgment (2021) Yue 0307 Cri-1st No. 1686: (1) Mr. Ma: six years’ imprisonment and a RMB 6.8 million fine; (2) Mr. Luo: four years’ imprisonment and a RMB 4 million fine; (3) Ming: two years’

imprisonment and a RMB 100,000 fine; (4) Xiang: two years' imprisonment (suspended for two years) and a RMB 100,000 fine; (5) Li: two years' imprisonment (suspended for two years) and a RMB 100,000 fine; (6) Wang: two years' imprisonment (suspended for two years) and a RMB 100,000 fine; (7) Lü: two years' imprisonment (suspended for two years) and a RMB 100,000 fine; (8) Liang: two years' imprisonment (suspended for two years) and a RMB 100,000 fine. On December 28, 2022, the Shenzhen Intermediate People's Court issued this criminal ruling, dismissing the appeals and affirming the decision.

Holding

1. In the crime of counterfeiting registered trademarks, "use" is not confined to affixing a trademark to tangible carriers such as goods, packaging, or containers. Any act in commerce that employs the trademark to indicate source constitutes trademark use. Whether an offense is established turns on a holistic assessment of the defendant's intent, the mode of use, and the perception of relevant public, that is, whether the conduct causes confusion or misidentification as to source.
2. Here, the infringing products use Bluetooth to establish a wireless link. During pairing, the phone initiates device discovery; once linked, the devices exchange information enabling intelligent identification. Where consumers must select a device via Bluetooth pairing to use the product, source identification hinges on selecting the correct device name. Configuring the device name so that pairing pop-ups display "AirPods" or "AirPods Pro" leads consumers to believe the connected product is manufactured by the trademark owner, causing confusion as to origin and constituting the crime of counterfeiting registered trademarks.

Reasoning

Issue: whether configuring counterfeit earphones so that pairing with Company A's phones triggers pop-ups reading "AirPods"/"AirPods Pro" is "use" under Criminal Law Article 213.

Article 8(2) of the 2004 SPC-SPP Interpretation defines "use" under Article 213 to include applying a registered or counterfeit trademark to goods, packaging, containers, manuals, or transaction documents, or using such trademarks in advertising, exhibitions, and other commercial activities. A trademark's core function is to identify source: producers use trademarks to indicate origin; consumers rely on them to distinguish, understand, and choose goods. Thus, "use" under Article 213 is not limited to affixation on tangible media; any commercial act that identifies source is trademark use. The key question is whether the manner of use in commerce impairs the trademark's source identifying function and causes confusion or misidentification, assessed by intent, mode of use, industry practice, and consumer perception.

Bluetooth is an open global standard for short-range wireless connectivity. One device initiates discovery and pairing; once the link is established, data exchange proceeds. In the IoT context, new forms of trademark use and information dissemination emerge as devices exchange data for intelligent identification. In this case, although some earphones bore no physical trademarks, the manufacturers preset the Bluetooth device name to "AirPods," causing the phone's settings pop-up to display "AirPods"/"AirPods Pro" on connection. For earbud consumers, identifying the product to establish the connection is central to use; selection of the device name functions as source identification. By engineering pop-ups to display Company A's registered trademarks upon connection, the defendants induced consumers into believing the products were genuine, creating confusion as to origin.

Considering the defendants' intent and the actual mode of use, the courts found they jointly and intentionally manufactured and sold infringing products. Displaying "AirPods"/"AirPods Pro" in pairing pop-ups constitutes "use" within Article 213. The appellants' objections were unfounded and rejected.

Chapter VIII: Other intellectual property cases

- A. Malicious litigation involving the “QQ Penguin” design patent—Determining “malice” and “liability for damages” in malicious intellectual property litigation
- B. Malicious trademark litigation involving “TeleMatrix”—Standards for determining subjective fault in damages liability
- C. Malicious litigation involving the “Target-Type Flowmeter” utility model patent—Determining malicious intellectual property litigation where rights have been terminated
- D. Patent ownership dispute over “circulating water treatment equipment”: Liability for property damage and breach of good-faith management

A. Malicious litigation involving the “QQ Penguin” design patent—Determining “malice” and “liability for damages” in malicious intellectual property litigation

Parties

Shenzhen Computer System Company A v. Mr. Tan

Case number

(2019) 粤民终 407 号 | 2019-GD-Civ-Fin-407

Panel

Wang Jing | Deng Yanhui | Zheng Ying

Keywords

civil; malicious litigation; liability for damages; fault; loss

Relevant legal provisions

- Tort Liability Law, Article 6
- Patent Law, Article 47

Facts

Company A alleged it owns the copyrights in the “QQ Penguin word and device” series of artistic works and the exclusive rights to the registered “Penguin Device” trademarks. Despite knowing Company A’s prior rights in the QQ Penguin image, Mr. Tan applied for and obtained a design patent titled “Speaker (Xzeit Mini Penguin Shape).” After Company A sued Mr. Tan and others for trademark and copyright infringement, Tan refused to withdraw his penguin speaker design patent application; instead, he sued Company A for design patent infringement.

Company A claimed Tan’s malicious litigation caused losses including reputational harm, attorney’s fees, travel expenses, and lost expected profits. It sought: RMB 2 million covering economic losses (including attorney’s fees, travel, goodwill loss, lost profits) and reasonable costs (including attorney’s and notarization fees), plus a public apology and allocation of costs to Tan.

Tan argued that in prior cases (2011) Shen Fu Fa IP-Civ-1st Nos. 348 and 349, the parties reached mediated settlements; under relevant judicial interpretations, facts admitted in mediation/settlement cannot be used adversely in later proceedings. He maintained that suing based on a granted design patent was a lawful rights protection act and requested dismissal.

The court found: Company A holds multiple copyrights and registered trademarks for the QQ Penguin series. Tan is a shareholder/director of a certain Technology (Shenzhen) Company (Company B). In December 2008, Tan applied to CNIPA for the “Speaker (Xzeit Mini Penguin Shape)” design patent and obtained a grant. In March 2011, Company A sued Tan and Company B for copyright and trademark infringement over a “QQ Mini Speaker.” The parties later settled: Tan agreed to cease infringement and pay RMB 25,000, and promised to withdraw the penguin speaker design patent within one month. Tan did not withdraw and continued paying annuities until December 2015.

Subsequently, Company A partnered with Shenzhen Zhong Technology Company (Company C) to produce and sell penguin shaped speakers. In February 2016, Tan sued Company A and Company C for design patent infringement, seeking a declaration of infringement and RMB 900,000 in patent royalties (Case No. (2016) Yue 03 Civ-1st No. 236). Company A then petitioned to invalidate Tan’s design patent; the former Patent Reexamination Board declared the design patent invalid. The court dismissed Tan’s infringement suit. Company A thereafter filed this action.

The Shenzhen Intermediate People's Court ordered Tan to pay RMB 500,000 for economic losses and reasonable expenses, and rejected the remainder of Company A's claims. Tan appealed. On June 10, 2019, the Guangdong High People's Court rendered this judgment, dismissing the appeal and affirming the original decision.

Holding

1. Malicious initiation of intellectual property (IP) litigation is, in essence, a tort. Whether a party acted with malice should be assessed under a combined subjective-objective standard, taking into account the right's foundation, the party's judgment, related conduct, timing of suit, and defenses.
2. Damages from malicious IP litigation include both positive losses and negative losses (lost profits). Where evidence shows such negative losses exist, they may be factored into the damages assessment.

Reasoning

Malicious initiation of IP litigation constitutes tortious conduct. Whether Tan's patent suit was malicious turns on whether his conduct amounted to a tort.

1. Fault: As to rights basis, the QQ Penguin image is highly renowned. Exploiting the lack of substantive examination for design patents, Tan sought a design patent covering another's prior right image; the patent lacked a legitimate basis. As to subjective state, Tan had previously been sued by Company A for infringing the QQ Penguin copyright and trademark, and settled by agreeing to cease infringement and pay damages—showing he knew of Company A's prior rights and the patent's illegitimacy. Tan also engaged patent agents and attorneys for the application and the suit, evidencing the capacity to assess compliance with legal grant requirements.
2. Conduct: Despite knowing the lack of legal basis, Tan sued for patent infringement and, after Company A filed for invalidation, persisted through the invalidation and infringement proceedings with professional counsel, foreseeably harming others' rights. Considering the rights basis, Tan's ability to assess validity, his behavior in litigation, and his defenses, Tan knowingly filed a baseless patent suit, breaching good faith and harming Company A's lawful interests—thus constituting malicious IP litigation.

Damages: Losses from a patentee's malice include direct and indirect damages. When the exact amount cannot be precisely determined, courts may fix damages by discretion based on the infringement circumstances and degree of malice. Here, the court supported Company A's reasonable enforcement costs. The malicious suit adversely affected Company A's cooperation with Company C; this was considered in quantifying damages. Given the QQ Penguin's high level of fame and Tan's evident malice, the first-instance award was proper and affirmed.

B. Malicious trademark litigation involving “TeleMatrix”—Standards for determining subjective fault in damages liability

Parties

Jiangsu Digital Company A v. Shandong Technology Company B (Dispute over liability for damages resulting from malicious initiation of an intellectual property (IP) lawsuit)

Case number

(2019) 最高法民申 366 号 | 2019-SPC-Civ-Pet-for-SR-366

Panel

Tong Shu | Mao Lihua | Wu Rong

Keywords

civil; malicious litigation; damages; purpose of action; subjective fault

Relevant legal provisions

- Civil Procedure Law, Article 13
- Trademark Law (Amended in 2001), Article 31

Facts

A non-party, T Company, registered the “TeleMatrix” trademark (the disputed mark) in 1999 in the European Union in goods Class 9 for telephone apparatus. Later, S Company merged with T Company. Since 1998, S Company had commissioned a certain Shandong Technology Company (Shandong Technology) to process hotel telephones. From 2006, S Company commissioned a certain Jiangsu Digital Company (Jiangsu Digital) to process TeleMatrix-branded hotel telephones. S Company later changed its corporate name to M Company. On November 12, 2004, Yan Company, the predecessor of Shandong Technology, filed an application in Class 9 for telephone apparatus for the disputed mark in China, and the mark was approved for registration on May 28, 2007. From 2008 onward, Shandong Technology brought trademark infringement lawsuits against S Company’s contracted manufacturers of TeleMatrix-branded telephones, including Jiangsu Digital. On September 6, 2010, Beijing M Company, an affiliate of M Company, filed a cancellation request against the disputed mark. On July 22, 2013, the former Trademark Review and Adjudication Board (TRAB) ruled that “TeleMatrix” telephone apparatus had entered the Chinese market in 2002 and had since gained a certain reputation. Given that Shandong Technology had been cooperating with M Company’s predecessor since 1998 to manufacture hotel telephones, as an operator in the same industry, Shandong Technology’s application to register the disputed mark—identical to M Company’s prior mark—on similar goods constituted “preemptively registering another party’s already-used and influential trademark by improper means,” and the TRAB therefore cancelled the disputed mark. After three levels of judicial review, the cancellation was upheld. On April 26, 2016, Jiangsu Digital filed the present lawsuit with the Wuxi Intermediate People’s Court, alleging that Shandong Technology’s trademark infringement lawsuits against it constituted malicious litigation.

On July 26, 2017, the Wuxi Intermediate People’s Court issued Civil Judgment (2016) Su 02 Civ-1st No. 71: ordering Shandong Technology to eliminate adverse effects and to pay RMB 1,000,000 in economic losses. Shandong Technology appealed. On September 28, 2018, the Jiangsu High People’s Court issued Civil Judgment (2017) Su Civ-Fin No. 1874, rejecting the appeal and affirming the original judgment. Dissatisfied, Shandong Technology petitioned the Supreme People’s Court (SPC) for supervisory review. On December 12, 2019, the SPC issued this civil ruling, dismissing the review application.

Holding

In disputes over liability for damages caused by malicious IP lawsuits, when determining whether the party initiating the IP infringement action acted with malice, the court should consider such factors as the party's rights basis and its ability to recognize the nature of that basis, and the purpose for initiating the infringement action.

Reasoning

Upon supervisory review, the SPC held that this case concerns liability for damages arising from the malicious filing of an IP lawsuit, which is essentially a species of tort dispute. Shandong Technology would be liable in tort if its trademark infringement suits against Jiangsu Digital constituted malicious litigation. The review therefore had to address the wrongful act, the resulting damage, causation, and the actor's subjective fault.

Civil litigation is an important means for IP holders to protect their interests, and courts should afford full and rigorous protection within the bounds of the law. At the same time, the exercise of the right to sue must comply with the principles of good faith and the prohibition on abuse of rights. To determine whether the trademark suits against Jiangsu Digital were filed with malice, the following factors should be considered.

First, Shandong Technology's asserted rights and its ability to appreciate their legitimacy. The TRAB and three levels of courts found that Shandong Technology's registration of the disputed mark was an improper preemptive filing of a mark previously used and influential by another party, and they cancelled the registration. Accordingly, the asserted rights lacked legitimacy *ab initio*, and Shandong Technology should have been aware of that defect when it acquired the registration.

Second, the purpose behind Shandong Technology's infringement suits against Jiangsu Digital. The record shows that both companies manufactured hotel telephones for S/M Company and competed in the same industry. In light of the improper preemptive registration, Shandong Technology's promotional use, and its serial suits against M Company and its contractors, it is difficult to conclude that the suits were brought to lawfully vindicate rights rather than for improper purposes. The lower courts' finding of malicious litigation is supported by law. Considering Jiangsu Digital's actual losses, lost expected profits, and Shandong Technology's malice, the amount of compensation awarded was appropriate.

C. Malicious litigation involving the “Target-Type Flowmeter” utility model patent—Determining malicious intellectual property litigation where rights have been terminated

Parties

Technology Company A v. Instrument Company B

Case number

(2022) 最高法知民终 1861 号 | 2022-SPC-IP-Civ-Fin-1861

Panel

Xu Zhuobin | Yan Feng | Xu Fei

Keywords

civil; malicious litigation; damages; knowledge; patentee’s management obligations

Relevant legal provisions

- Civil Code, Articles 120, 179, 1165, and 1184

Facts

Technology Company A alleged that Instrument Company B, despite knowing that the utility model patent titled “Built-in Digital Target-Type Flowmeter” had been terminated, maliciously filed a third and a fourth intellectual property (IP) lawsuit, thereby harming A’s lawful rights and interests. Company A sought an order requiring Company B to apologize and to pay for economic losses and reasonable expenses totaling RMB 500,000.

Company B argued that it did not engage in malicious litigation. It claimed the third and fourth suits were brought because the Supreme People’s Procuratorate (SPP) again confirmed that Company A had infringed, and that Company B therefore sought infringement damages from Company A. Company B contended it took no actions in those proceedings that harmed Company A’s lawful rights and interests and should bear no liability.

The court found: Company B obtained authorization for the patent-in-suit on November 1, 2000. On March 1, 2006, the China National Intellectual Property Administration (CNIPA) announced on its official website that the patent had terminated for nonpayment of annuities. On May 23, 2006, Company B filed suit in the Quanzhou Intermediate People’s Court of Fujian province (the first lawsuit), alleging that, as discovered in 2005, Company A and Machinery Company C infringed several utility model patents including the patent-in-suit by producing and selling “intelligent target-type flowmeters.” On November 7, 2006, the Quanzhou court, in Civil Judgment (2006) Quan Civ-1st No. 230, held that the accused products did not fall within the scope of the asserted patent and dismissed all of Company B’s claims. Company B appealed. On March 20, 2008, the Fujian High People’s Court, in Civil Judgment (2007) Min Civ-Fin No. 23, dismissed the appeal and affirmed on the ground that the accused product did not reproduce all essential technical features of the patent-in-suit. Company B sought supervisory review. On November 14, 2008, the Supreme People’s Court (SPC), in Civil Ruling (2008) Civ-Pet-for-SR No. 504, ordered the Fujian High People’s Court to conduct a review. On December 20, 2014, the Fujian High People’s Court, in Civil Judgment (2009) Min Civ-SR-Fin No. 4, held that the accused products fell within the scope of the patent-in-suit and that Company A’s conduct constituted infringement, revoked the first-instance judgment, and ordered A to pay B RMB 125,000.

On December 25, 2015, Company B filed the second lawsuit in the Quanzhou Intermediate People’s Court, arguing that the review judgment was based on the evidentiary record as of May 2006, and that Company A had continued to mass-produce and sell infringing products from May 2006 to 2010; Company B sought RMB 3.5 million in damages. On May 23, 2016, Company B

moved to withdraw. On May 25, 2016, in Civil Ruling (2016) Min 05 Civ-1st No. 17-1, the Quanzhou court allowed the withdrawal.

On May 27, 2019, Company B filed the third lawsuit in the Fuzhou Intermediate People's Court, citing the SPP's view in the supervisory procedure against the first lawsuit that the accused product substantially constituted infringement, alleging continued infringement by Company A from May 2006 to 2010, and seeking RMB 4.5 million. On June 4, 2020, Company B applied to withdraw.

On July 8, 2020, Company B filed the fourth lawsuit in the court of first instance, asserting the same claims and grounds as in the third lawsuit. On February 8, 2021, in Civil Judgment (2020) Min 02 Civ-1st No. 963, the court dismissed all of Company B's claims. Company B appealed to the SPC but failed to pay the appeal fee. On June 9, 2021, the SPC issued Civil Ruling (2021) IP-Civ-Fin No. 921, deeming the appeal withdrawn for failure to pay within the prescribed period.

Company A filed invalidation petitions against the patent-in-suit on June 12, 2006, and April 29, 2016; CNIPA issued decisions maintaining validity. On January 4, 2017, Company B filed an administrative suit in the Beijing Intellectual Property Court (BIPC) challenging CNIPA's termination of the patent; on July 2, 2018, Company B sought to withdraw, and on July 6, 2018, in Ruling (2017) Jing 73 Adm-1st No. 31, the court allowed the withdrawal.

The Xiamen Intermediate People's Court (Fujian province) ruled: (1) Company B shall pay Company A RMB 60,000 for economic losses (including reasonable expenses); (2) Company A's remaining claims are dismissed. Company B appealed, arguing that its litigation had a legitimate rights basis and lacked malice. On October 30, 2023, the SPC rendered this civil judgment, dismissing the appeal and affirming the original decision.

Holding

Where a patentee, knowing that the patent-in-suit has been terminated for nonpayment of annuities or other reasons, nevertheless files a patent infringement action and causes damage to others, such conduct may be found to constitute malicious initiation of IP litigation.

Reasoning

The court held that, to determine whether Company B's third and fourth lawsuits constituted malicious litigation, the key is whether Company B knew its suits lacked a rights basis or factual foundation, or knew the accused did not infringe, yet still brought suit, and whether it intended the resulting harm.

First, the patent-in-suit terminated on March 1, 2006, and that status was final; the third and fourth lawsuits plainly lacked a rights basis. Company B failed to pay annuities, and CNIPA announced termination on March 1, 2006; the patent was in a lapsed state, and Company B, as patentee, must bear the adverse consequences. Although Company B challenged CNIPA's termination decision by filing an administrative action on January 4, 2017, it withdrew in July 2018, thereby abandoning its remedy; restoration was no longer possible. Although Company A had twice filed invalidation petitions (June 2006 and April 2016) that resulted in decisions maintaining validity, invalidation proceedings evaluate patentability (e.g., inventiveness), not whether the patent has terminated or its term expired. Such issues do not bar invalidation proceedings or the assessment of patentability. Moreover, an administrative decision that the technical solution met grant conditions does not mean the patent was in force at that time.

Second, Company B knew its third and fourth lawsuits lacked a rights basis. Those suits were filed after termination of the patent and after Company B withdrew the January 4, 2017 administrative case. Company B admitted that by May 2016, during the second lawsuit, it already knew the patent had terminated and withdrew that suit; the third and fourth lawsuits thus clearly lacked a rights foundation. Further, Company B retained professional litigators for those suits, evidencing clear awareness that no rights basis existed. Proceeding in the face of such an obvious defect shows intent to cause, or reckless indifference to, Company A's losses. Even if, as Company B argues, it relied on the SPP's Decision Not to Support the Supervision Application, as patentee, Company B should have known the Procuratorate is not a patent

authority; its decision has no effect of granting or restoring patent rights. That decision should not be read as a determination of patent validity and pertained only to the first lawsuit, not a comprehensive assessment of the parties' multiple disputes.

Third, Company B's third and fourth lawsuits caused harm. Company A incurred attorneys' fees and other defense costs; Company A adduced evidence that, in multiple tenders, procuring entities required the absence of IP disputes, potentially causing lost bidding opportunities and losses. In the fourth lawsuit, Company B also sought property preservation against Company A, which likewise caused harm. These losses stemmed from B's lawsuits and constitute tort damages. Because Company B knew its suits lacked a rights basis yet still brought them, causing loss to the opposing party, with intent as to the harmful result, Company B's conduct constitutes malicious litigation.

It bears noting that the patent terminated due to underpayment of annuities, yet Company B continued to pay annuities in subsequent years and CNIPA continued to collect them, reflecting a need to improve CNIPA's process coordination. Fees collected after termination can be handled through other channels under applicable rules. The record also suggests possible deficiencies by the patent agency in performing its contractual obligations; Company B may seek contractual remedies for any resulting breach.

D. Patent ownership dispute over “circulating water treatment equipment”: Liability for property damage and breach of good-faith management

Parties

Guangzhou Aquatic Equipment Technology Company A v. Guangzhou Aquatic Technology Company B and Aquatic Research Institute C

Case number

(2019) 最高法知民终 424 号 | 2019-SPC-IP-Civ-Fin-424

Panel

Liu Xiaojun | Li Zizhu | Tang Xiaomei

Keywords

civil; property-damage compensation; nonpayment of annuities; patent termination; damages

Relevant legal provisions

- Tort Liability Law, Articles 6 and 26

Facts

The invention patent titled “A Multifunctional Circulating Water Treatment Device,” No. 200910192778.6 (the patent-in-suit), was co-owned by a certain Aquatic Research Institute C and a certain Guangzhou Aquatic Technology Company B. The named inventors were Jiang, Li, and Xie. The application was filed on September 28, 2009, granted on May 30, 2012, and, for failure to pay timely annuities, the patent right terminated on September 28, 2012.

Company A alleged that Jiang was formerly its employee and later became a shareholder of Company B, while Li and Xie were employees of Institute C. Company A claimed the patent-in-suit was a service invention made by Jiang during employment, so the right to apply should have belonged to Company A. In 2010 and 2011, Company A sued Institute C and Company B (among others) seeking a declaration that Company A owned the application right. When the patent was later terminated for nonpayment, that ownership dispute was still pending. Company A then sued in the Guangzhou Intellectual Property Court, alleging that Company B and Institute C deliberately failed to pay annuities, causing the patent to lapse and irreparably harming Company A. Company A sought RMB 1.5 million in economic losses and reasonable enforcement expenses.

Guangzhou Intellectual Property Court held: (1) Company B and Institute C shall, within 10 days of the judgment’s effective date, pay Company A RMB 500,000 for economic losses and reasonable enforcement expenses; (2) Company A’s remaining claims are denied. Company B and Institute C appealed to the Supreme People’s Court. On April 1, 2020, the SPC rendered this civil judgment, correcting the characterization of the cause of action and, on that basis, dismissing the appeal and affirming the original decision.

Holding

Where the registered patentee, during a dispute over patent ownership, has a duty in good faith to maintain the patent’s validity, and through its fault causes the patent to terminate, be invalidated, or be lost, thereby harming the true right holder’s lawful interests, such conduct infringes the true right holder’s property rights and gives rise to liability for damages.

Reasoning

(I) Characterization of the cause of action

Article 11(1) of the Patent Law provides that, after a patent for an invention or utility model is granted, no entity or individual may exploit it without the patentee's permission, except as otherwise provided by law; specifically, for production or business purposes, they may not manufacture, use, offer to sell, sell, or import the patented product, nor use the patented method or use, offer to sell, sell, or import products directly obtained by the patented method. Thus, acts constituting infringement of an invention patent are limited to those statutorily defined; the Patent Law follows the principle of "statutory patent infringement." Acts related to a patent right that are not enumerated do not constitute patent infringement.

If the registered patentee is not the actual owner of the patented technology and intentionally fails to pay annuities, leading to termination of the patent and economic loss to the actual owner, the loss is in substance a property loss related to the patented technology. The deliberate nonpayment of annuities causing termination should be treated as a general tort. Accordingly, the proper case type is a dispute over compensation for property damage.

Here, Company A contended that Institute C and Company B filed for a patent on a service invention that should have belonged to Company A, then deliberately failed to pay annuities, causing termination and entry of the technology into the public domain, depriving Company A of the market exclusivity it otherwise would have enjoyed. The asserted wrongful act is not patent infringement; the claimed losses are property losses related to the technology. Therefore, this matter should be characterized as a property-damage compensation dispute, not an invention-patent infringement dispute. The first-instance court's contrary characterization was improper and should be corrected.

(II) Liability of Institute C and Company B for termination of the patent, and the reasonableness of the RMB 500,000 award

Good faith is a fundamental principle of civil law. It requires parties to keep promises, act honestly, and pursue their interests without harming others' or the public's interests, thereby balancing private and social interests and maintaining market ethics and order. A patent is a time-limited IP right granted after administrative examination, and its validity during the protection term depends on the patentee's continued payment of annuities and refraining from abandonment.

When a dispute arises over the right to apply for a patent or over patent ownership, the registered patentee, under the principle of good faith, generally bears a duty of prudent management to keep an already-granted patent in force, including paying annuities. If the patent terminates, the technology typically enters the public domain, causing the technology owner to lose market exclusivity and suffer harm to lawful interests. A registered patentee who fails to discharge this management duty and thereby causes loss to the technology owner shall compensate for the loss.

In this case, Company A had twice sued (in 2010 and 2011) over the ownership of the application right against Institute C and Company B. Especially while the second suit—asserting that the invention was an employee invention—was pending, Institute C and Company B, as the registered patentees, owed a duty to maintain the patent's validity after grant, including paying annuities, to avoid potential harm to Company A. They failed to do so, leading to termination on September 28, 2012, thereby harming A's lawful interests. They clearly breached their duty of prudent management and violated the principle of good faith and must compensate Company A.

As to quantum, the compensation should be determined with reference to the patent's market value at the time of termination. Neither party proved that value. Considering that the patent is an invention patent, that it lapsed in the year of grant, the serious fault of Institute C and Company B, and Company A's protracted enforcement efforts—and even accounting for some contributory fault on Company A's part—the RMB 500,000 award for economic loss and reasonable expenses set by the first-instance court is appropriate.

世界知识产权组织
知识产权典型案例集
中华人民共和国卷
(2019-2023)



前言

我很高兴地推出中华人民共和国最高人民法院（最高人民法院）与世界知识产权组织（产权组织）合作出版的第二辑《世界知识产权组织知识产权典型案例集：中华人民共和国卷》。本辑在该系列的第一辑《中华人民共和国卷（2011-2018）》所奠定的紧密而富有成效的合作基础上，汇编了中国法院在2019年至2023年间作出的具有代表性的判决，全面、权威地概述了在中国知识产权制度快速发展时期的关键理论和判例进展。

产权组织最近发布的全球创新指数排名和知识产权统计数据凸显了中国在全球创新与知识产权格局中日益增长的影响力，这体现在中国稳步跻身创新经济体前列，并在全球知识产权申请量排名中占据领先地位。中国目前拥有众多全球顶尖科技创新集群，专利、商标和工业品外观设计申请量位居全球前列，这彰显了其创新驱动型发展的广度与深度。在取得这些进展的同时，中国的知识产权法院体系也进行了意义深远的改革，包括建立和扩充知识产权专门法院和法庭，以处理日益复杂的纠纷。

这份出版物体现了产权组织与最高人民法院之间日益深化的机构伙伴关系，这一关系以持续的司法交流与合作框架为基础，并建立在双方共同致力于加强知识产权司法保护，以支持创新、公平竞争和可持续的社会经济发展的承诺之上。过去十年间，双方丰富的合作活动计划充分体现了这一伙伴关系。产权组织与最高人民法院合作举办了国际专题研讨会和专门的法官培训计划，为就复杂且往往涉及跨境的知识产权问题开展直接对话搭建了实务平台。2018年在北京举办的首届产权组织知识产权司法审判高级研究班吸引了来自多个司法辖区的法官参与，标志着产权组织与中国司法界合作的重要里程碑，并为后续围绕前沿议题的交流奠定了基础。近期根据2023年签署的谅解备忘录在杭州举办的司法国际研讨会进一步巩固了这一合作关系，并突显了中国在知识产权纠纷司法管理方面的创新，包括建立专门知识产权专门法院和法庭。这一系列案例集的第二辑正是建立在这些共同努力之上，以出版物的形式提炼了中国经验中涌现出的判例见解。

随着产权组织司法研究所在2019年成立，产权组织与法官的合作显著扩展。研究所负责协调全球司法合作事务，包括一年一度的产权组织知识产权法官论坛、不断扩展的能力建设与知识共享资源和活动计划，以及通过WIPO Lex平台加强对司法判决的获取。在与全球司法机构开展的这一广泛合作计划中，最高人民法院及其他中国法院的经验和视角尤为宝贵，这些法院的法官不断为这些平台贡献力量，并就从数字环境中的纠纷到标准必要专利和跨境执法等一系列议题分享见解。

希望这份中英文双语版的第二辑《世界知识产权组织知识产权典型案例集：中华人民共和国卷》能够成为持续司法交流和相互理解的桥梁。通过出版这辑案例集，将有助于法官、

政策制定者、从业人员、学者及其他利益攸关方更深入地了解这一全球关键的知识产权管辖区内不断发展的判例，并强化司法机构在维护兼顾各方利益的有效知识产权生态系统中的核心作用。

世界知识产权组织总干事

邓鸿森

于世界知识产权日——2026年4月26日

序 言

面向未来 续写知识产权保护 国际合作新篇章

创新是引领发展的第一动力，是人类进步的源泉，保护知识产权就是保护创新。中国始终高度重视知识产权保护，深入推进知识产权强国建设，切实加强知识产权法治保障，持续优化创新环境和营商环境。中国法院不断深化知识产权审判领域改革创新，建成以最高人民法院知识产权审判部门为牵引、4个知识产权法院为示范、33个地方法院知识产权法庭为重点、各级法院知识产权审判部门为支撑的专业化审判体系，深入推进知识产权民事、刑事、行政案件“三合一”审判机制改革，不断完善惩罚性赔偿、行为保全、证明妨碍等知识产权裁判规则，2021年至2025年审结知识产权一审案件250余万件，以更加优质高效的司法保护，为创新主体营造稳定、透明、规范、可预期的法治环境，并日益成为国际知识产权诉讼优选地。

累土不辍，丘山崇成。自2019年与世界知识产权组织合作出版第一辑国别卷案例集以来，中国最高人民法院与世界知识产权组织在司法案例领域的合作不断拓展深化。2023年4月，中国首席大法官、最高人民法院院长张军会见世界知识产权组织总干事邓鸿森先生，双方续签加强交流与合作谅解备忘录。最高人民法院参与世界知识产权组织“旗舰出版物”——《国际专利案件管理法官指南》“中国专章”的编写。中国法院96件知识产权典型案例裁判文书录入世界知识产权组织法律与条约数据库（WIPO Lex）。2025年，又向世界知识产权组织推荐8件商业秘密典型案例。世界知识产权组织积极支持中国知识产权司法保护工作，中国法院也充分发挥知识产权案例资源丰富的优势，为全球知识产权治理体制向着更加公正合理方向发展源源不断地贡献中国智慧。

当前，中国正在朝着知识产权强国的目标迈进，伴随着新技术、新产业快速发展，中国已成为世界上审理知识产权案件最多的国家，与数据、人工智能相关的新类型案件正在快速增长。中国法院愿意与世界各国进行交流与分享，开展对话和合作，共同应对新一轮科技革命和产业变革加速突破给知识产权法律制度带来的挑战。此次与世界知识产权组织合作再次出版案例集，我们精选了中国法院近年来审理的涉及专利权、商标权、著作权、垄断和不正当竞争、商业秘密、植物新品种、集成电路布图设计的民事、行政纠纷以及刑事案件等多个领域的典型案例，充分展现了中国知识产权司法保护规则的发展和完善，体现了中国加大知识产权保护力度，营造市场化、法治化、国际化一流营商环境的信心与决心，是双方合作的又一丰硕成果和新的起点。

行之苟有恒，久久自芬芳。希望案例集的出版，为双方的合作打下更加坚实的基础，为深化知识产权保护国际合作注入更强的动力，让创新成果惠及更多国家和人民，更好增进人类福祉！

中华人民共和国二级大法官

最高人民法院副院长

陶凯元

于世界知识产权日——2026年4月26日

第一章 商标案件

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——代理关系下商标权归属的认定
- B. “葵花宝典”商标权无效宣告请求行政案
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- F. “双飞人”商标侵权及不正当竞争案
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- G. “华联”商标侵权及不正当竞争案
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- I. “西门子”商标侵权及不正当竞争案
——商业标识侵权行为的认定及损害赔偿的计算

A. “江小白”商标权无效宣告请求行政案 ——代理关系下商标权归属的认定

当事人

重庆江某酒业有限公司诉国家知识产权局、重庆市江某酒厂（集团）有限公司

案号

最高人民法院（2019）最高法行再224号

合议庭成员

秦元明 | 郎贵梅 | 马秀荣

关键词

行政 商标权无效宣告 经销关系 被代理人的商标

相关法律规定

— 《中华人民共和国商标法》第15条

基本案情

重庆江某酒业有限公司（以下简称江某公司）诉国家知识产权局、重庆市江某酒厂（集团）有限公司（以下简称江某酒厂）商标权无效宣告行政纠纷案中，诉争商标系第10325554号“江小白”商标，于2011年12月19日由成都格某广告有限责任公司申请注册，核定使用在第33类酒类商品上，经核准，权利人先后变更为四川新某商贸有限公司（以下简称新某公司）、江某公司。

重庆市江津区某有限责任公司（包括江某酒厂等关联单位）与新某公司（包括下属各地子公司、办事处等关联单位）于2012年2月20日签订销售合同和定制产品销售合同。定制产品销售合同明确约定授权新某公司销售的产品为“几江”牌系列酒定制产品，其中并未涉及“江小白”商标，而且定制产品销售合同第一条约定，“甲方（江某酒厂）授权乙方（新某公司）为‘几江牌’江津老白干‘清香一、二、三号’系列超清纯系列、年份陈酿系列酒定制产品经销商”。第六条之2明确约定，“乙方负责产品概念的创意、产品的包装设计、广告宣传的策划和实施、产品的二级经销渠道招商和维护，甲方给予全力配合。乙方的产品概念、包装设计、广告图案、广告用语、市场推广策划方案，甲方应予以尊重，未经乙方授权，不得在甲方直接销售或者甲方其它客户销售的产品上使用”。

2016年5月，江某酒厂针对诉争商标向原国家工商行政管理总局商标评审委员会（以下简称商标评审委员会）提出无效宣告请求。商标评审委员会认为，在诉争商标申请日之前，江某公司对江某酒厂的“江小白”商标理应知晓，诉争商标的注册已构成2001年修正的《中华人民共和国商标法》第十五条所指的不予注册并禁止使用之情形。故作出商评字[2016]

第117088号《关于第10325554号“江小白”商标无效宣告请求裁定书》（以下简称被诉裁定），裁定对诉争商标予以宣告无效。

江某公司不服，向北京知识产权法院提起行政诉讼，请求：撤销被诉裁定，责令商标评审委员会重新作出裁定。一审法院判决：1.撤销被诉裁定；2.商标评审委员会针对江某酒厂就第10325554号“江小白”商标提出的无效宣告请求重新作出裁定。商标评审委员会、江津酒厂均不服一审判决，向北京市高级人民法院提出上诉。二审法院判决：1.撤销一审判决；2.驳回江小白公司的诉讼请求。江某公司不服二审判决，向最高人民法院申请再审。最高人民法院提审本案并于2019年12月26日作出（2019）最高法行再224号行政判决，判决：1.撤销二审判决；2.维持一审判决。

裁判要旨

当事人双方同时签订了销售合同和定制产品销售合同，因此同时存在经销关系和委托加工关系，对于委托生产和销售产品上使用的诉争商标，被代理人没有在先使用行为，而且诉争商标图样、产品设计等均由代理人一方提出，定制产品销售合同明确约定被代理人未经代理人授权不得使用定制产品的产品概念、广告用语等，综合考虑上述因素，不能认定诉争商标为2001年修正的《中华人民共和国商标法》第十五条所指的“被代理人的商标”。

裁判理由

法院生效裁判认为：本案的主要争议焦点在于，诉争商标的申请注册是否违反2001年修正的《中华人民共和国商标法》第十五条的规定。2001年修正的《中华人民共和国商标法》第十五条规定：“未经授权，代理人或者代表人以自己的名义将被代理人或者被代表人的商标进行注册，被代理人或者被代表人提出异议的，不予注册并禁止使用。”代理人或者代表人不得申请注册的商标标志，不仅包括与被代理人或者被代表人商标相同的标志，也包括相近似的标志；不得申请注册的商品既包括与被代理人或者被代表人商标所使用的商品相同的商品，也包括类似的商品。本案中，江某酒厂主张，新某公司是其经销商，新某公司是为其设计诉争商标，其在先使用诉争商标，因此诉争商标的申请注册违反了2001年修正的《中华人民共和国商标法》第十五条规定。

首先，江某酒厂提供的证据不足以证明其在先使用诉争商标。江某酒厂主张其在先使用诉争商标的证据绝大多数为诉争商标申请日之后形成的证据，涉及诉争商标申请日之前相关行为的证据有江某酒厂与重庆森某酒类销售有限公司（以下简称森某公司）的销售合同、产品送货单、审计报告。江某酒厂与森某公司的销售合同已经在诉争商标异议复审程序中提交，因未体现森某公司的签章、缺乏发票等其他证据佐证而未被商标评审委员会采信。江某酒厂在本案中提交的销售合同虽然有森某公司的公章，但该合同显示的签订时间早于工商档案显示的森某公司的成立时间，而且江某酒厂也认可该合同签订时间系倒签。根据江某公司提交的再审证据即北京盛唐司法鉴定所出具的笔迹鉴定意见，江某酒厂给森某公司送货单上的制单人笔迹真实性存在疑点，且没有发票等其他证据佐证，故上述证据无法证明江某酒厂在先使用诉争商标。江某酒厂在一审法院开庭后提交了审计报告作为在先使用证据。但在缺少原始会计凭证的情况下，仅凭在后受江某酒厂委托制作的审计报告中提到“江小白”白酒，不足以证明江某酒厂在诉争商标申请日前使用了“江小白”。此外，江某酒厂提交的其于2012年2月15日与重庆宝某玻璃制品有限公司签订的购买“我是江小白”瓶的合同金额为69万元，远高于审计报告统计的销售额和销售毛利，也进一步表明无法认定审计报告的真实性。

其次，虽然江某酒厂与新某公司存在经销关系，但双方的定制产品销售合同也同时约定定制产品的产品概念、广告用语等权利归新某公司所有。在商标无效宣告和一、二审阶段，江某酒厂提供的证明其与新某公司为经销关系的主要证据是双方于2012年2月20日签订的销售合同和定制产品销售合同。定制产品销售合同明确约定授权新某公司销售的产品为“几江”牌系列酒定制产品，其中并未涉及“江小白”商标，而且定制产品销售合同明确约定，乙方（新某公司）的产品概念、包装设计、广告图案、广告用语、市场推广策划方案，甲方（江某酒厂）应予以尊重，未经乙方授权，不得用于甲方直接销售或者甲方其它客户销售的产品上使用。综上，应当认为，江某酒厂对新某公司定制产品上除“几江”外的产品概念、广告用语等内容不享有知识产权，亦说明新某公司申请注册“江小白”商标未损害江某酒厂的权利。本案证据不足以证明诉争商标是江某酒厂的商标，因此仅根据上述证据尚不能认定诉争商标的申请注册违反了2001年修正的《中华人民共和国商标法》第十五条规定。

最后，江某酒厂与新某公司合作期间的往来邮件等证据证明，“江小白”的名称及相关产品设计系由时任新某公司的法定代表人陶某某在先提出。根据江某公司向法院提交的相关证据能够证明“江小白”及其相关产品设计是由陶某某一方在先提出并提供给江某酒厂，而根据双方定制产品销售合同，产品概念及设计等权利属于新某公司所有。现有证据不足以证明新某公司是为江某酒厂设计商标。

综上，在诉争商标申请日前，“江小白”商标并非江某酒厂的商标，根据定制产品销售合同，江某酒厂对定制产品除其注册商标“几江”外的产品概念、广告用语等并不享有知识产权，新某公司对诉争商标的申请注册并未侵害江某酒厂的合法权益，未违反2001年修正的《中华人民共和国商标法》第十五条的规定。

B. “葵花宝典”商标权无效宣告请求行政案 ——作品中的特有名称可作为在先权益受到商标法保护

当事人

上海游某网络有限公司诉国家知识产权局、第三人完某控股集团有限公司

案号

最高人民法院 (2021) 最高法行再254号

合议庭成员

张志弘 | 白雅丽 | 许常海

关键词

行政 商标权无效宣告 作品中的特有名称 在先权益

相关法律规定

- 《中华人民共和国商标法》(2001年修正) 第31条
- 《最高人民法院关于审理商标授权确权行政案件若干问题的规定》第22条

基本案情

第10572048号“葵花宝典”商标(以下简称诉争商标)由上海游某网络有限公司(以下简称游某公司)于2012年3月5日提出注册申请,于2013年6月7日核准注册,核定使用服务为第41类“在计算机网络上提供在线游戏”等。完某控股集团有限公司(以下简称完某公司)就诉争商标向原国家工商行政管理总局商标评审委员会(以下简称商标评审委员会)提出无效宣告申请。商标评审委员会作出商评字[2017]第17732号《关于“葵花宝典”无效宣告请求裁定书》(以下简称被诉裁定),认为诉争商标的申请注册损害了金某《笑傲江湖》小说作品中武学秘籍特有名称的商品化权益,违反了“申请商标注册不得损害他人现有的在先权利”的规定,裁定诉争商标予以无效宣告。

游某公司不服,向北京知识产权法院提起诉讼,请求:撤销被诉裁定。一审法院判决:撤销被诉裁定,商标评审委员会重新作出裁定。完某公司和商标评审委员会均不服,向北京市高级人民法院提起上诉,请求:撤销一审判决、维持被诉裁定。二审法院判决,驳回上诉,维持原判。完某公司和国家知识产权局(二审判决后,根据中央机构改革部署,商标评审委员会的相关职责由国家知识产权局统一行使)均不服,向最高人民法院申请再审。最高人民法院提审本案,并于2021年12月17日作出(2021)最高法行再254号行政判决:1.撤销二审判决;2.撤销一审判决;3.驳回游某公司的诉讼请求。

对于著作权保护期限内的作品,如果作品中的特有名称具有较高知名度,将其作为商标使用在相关商品上容易导致相关公众误认为其经过权利人的许可或者与权利人存在特定联系,该特有名称可作为在先权益受到《中华人民共和国商标法》的保护。

裁判理由

法院生效裁判认为:将“作品名称、作品中的角色名称等”作为“在先权益”予以商标法保护,须满足三个条件:1.作品处于著作权保护期限内。2.作品名称、作品中的角色名称等具有较高知名度。3.商标使用在相关商品或服务上造成公众混淆误认的可能性较大。

具体到本案:首先,根据原审查明的事实,《笑傲江湖》系金某于1969年创作完成的一部武侠小说作品,目前仍处于著作权保护期限之内。完某公司提交的在案证据表明,该小说最早于1984年10月出版发行,后被数家出版单位相继多次再版。《笑傲江湖》小说作品先后被改编为7版电视剧和4版电影。“葵花宝典”作为《笑傲江湖》小说中武学秘籍的特有名称,是牵引小说情节发展的重要线索和贯穿整部小说的核心。经由作者的创造性劳动,“葵花宝典”已从普通词汇“葵花”与“宝典”的组合演变为具有明确指向性、对应性的名称。“葵花宝典”与《笑傲江湖》小说和金某产生了稳定的对应关系。在诉争商标申请日之前,《笑傲江湖》小说、基于小说而改编的同名影视作品、小说中的“葵花宝典”名称及金某已经为广大公众所熟知,具有较高知名度。其次,诉争商标为文字商标,与金某小说《笑傲江湖》中的武学秘籍名称“葵花宝典”完全相同,核定使用在第41类“在计算机网络上提供在线游戏;娱乐;玩具出租”等服务上。完某公司在商标评审阶段提供的证据显示,早在诉争商标申请日之前的2008年12月,金某即授权完某公司的关联公司为“笑傲江湖”游戏的发行及销售权人。2013年7月之后,金某与明某社出版有限公司作为授权人,授权完某公司的关联公司享有《笑傲江湖》小说的游戏改编权,有权以授权作品名称、授权作品中的人物、武功、武器的名称等申请注册商标等。上述事实表明,诉争商标使用的“在计算机网络上提供在线游戏;娱乐”等服务,属于武侠小说通常的衍生服务范畴。诉争商标使用在上述服务项目上,容易使相关公众误认为上述服务项目与知名小说作品的作者具有关联关系或者已经获得了作者的授权。再次,游某公司除注册本案诉争商标之外,还注册了多件“笑傲江湖”商标。游某公司作为从事网络游戏业务的经营主体,明知《笑傲江湖》小说、“葵花宝典”名称在我国具有广泛的知名度,仍使用“葵花宝典”申请注册商标,主观上具有利用相关权利人商业机会和市场优势地位的故意。综上,诉争商标的注册违反了《中华人民共和国商标法》有关“申请商标不得损害他人现有的在先权利”的规定。被诉裁定综合考虑“葵花宝典”名称的知名度、诉争商标核定使用的服务与知名武侠小说衍生服务的关联程度以及诉争商标申请人的主观恶意等因素,对故意挤占作者对作品中的特有名称享有的商业价值和交易机会的行为严格规制,符合《中华人民共和国商标法》及其司法解释的规定。被诉裁定作出宣告诉争商标无效的结论,具有事实和法律依据,并无不当。

C.涉“布拉尼克”商标权无效宣告请求行政案 ——商标注册损害国外自然人姓名权的认定

当事人

马诺娄·布拉尼克诉国家知识产权局、第三人方某舟

案号

最高人民法院（2021）最高法行再75号

合议庭成员

毛立华 | 江建中 | 李嵘

关键词

行政 商标权无效宣告 国外自然人 姓名权 知名度

相关法律规定

— 《中华人民共和国商标法》（2001年修正）第31条

基本案情

方某舟系注册在第25类鞋等商品上的第1387094号“马诺罗·贝丽嘉MANOLO&BLAHNIK”商标（以下简称诉争商标）的商标权人。马诺娄·布拉尼克针对诉争商标向原国家工商行政管理总局商标评审委员会（以下简称商标评审委员会）提出无效宣告请求，认为诉争商标损害了其姓名权等。商标评审委员会作出商评字[2015]第62227号《关于第1387094号“马诺罗·贝丽嘉MANOLO&BLAHNIK”商标无效宣告请求裁定书》（以下简称被诉裁定），认定诉争商标未损害马诺娄·布拉尼克的姓名权等，对诉争商标的注册予以维持。

马诺娄·布拉尼克不服，向北京知识产权法院提起行政诉讼。一审法院判决：驳回马诺娄·布拉尼克的诉讼请求。马诺娄·布拉尼克不服，向二审法院提起上诉。二审法院判决：驳回上诉，维持原判。马诺娄·布拉尼克不服，向最高人民法院申请再审。最高人民法院裁定提审本案，并于2022年6月24日作出（2021）最高法行再75号行政判决：1.撤销一、二审判决及被诉裁定；2.国家知识产权局重新作出裁定。

裁判要旨

国外自然人作为知名设计师，将其姓名作为产品的品牌进行使用推广，在诉争商标申请注册前，其姓名在中国大陆地区的相关公众中具有一定知名度。诉争商标完全包含了该自然人姓名，并使用在相同或类似商品上，致使相关公众容易认为诉争商标指代了该自然人，或者认为诉争商标的使用系经过该自然人许可或使用者与该自然人存在特定联系的，应认定诉争商标的注册损害了该自然人的姓名权。

法院生效裁判认为：马诺娄·布拉尼克（MANOLO BLAHNIK）是西班牙语的姓与名，且并不是现有固定搭配的词汇；马诺娄·布拉尼克（MANOLO BLAHNIK）是世界知名的鞋履设计师。诉争商标完全包含马诺娄·布拉尼克姓名 MANOLO BLAHNIK，且方某舟并未对诉争商标来源作出合理解释，难谓巧合。马诺娄·布拉尼克提交的证据证明，其自1970年开始涉足鞋类产品的生产加工行业，并且将其姓名作为鞋类产品的同名品牌进行使用推广。1987年至2001年，马诺娄·布拉尼克获得美国、英国及西班牙的多项相关奖项。国内出版发行的1994年至1999年相关《世界时装之苑ELLE》杂志上不少报道涉及“Manolo Blahnik”或者其设计的“Manolo Blahnik”鞋。在香港，1993年-1999年间至少有50余篇期刊报纸对 Manolo Blahnik 的成就及其在香港开设 Manolo Blahnik 全球第三家分店的报道。相关事实表明 Manolo Blahnik 在中国大陆相关公众尤其是时尚人士中有一定的知名度，且在诉争商标申请日前，该姓名在国外知名度以及香港地区的知名度在一定程度上会辐射至内地。方某舟及其相关企业长年从事鞋业生产，是同行业经营者，应当知道马诺娄·布拉尼克及其同名品牌的知名度，其注册外文部分与马诺娄·布拉尼克姓名完全相同的诉争商标，容易导致相关公众认为诉争商标指代了马诺娄·布拉尼克，或者认为标记有诉争商标的商品系经过该自然人许可或者与该自然人存在特定联系。故诉争商标的注册损害了马诺娄·布拉尼克的姓名权。

D. “MOTR” 商标侵权案 ——惩罚性赔偿的适用条件和赔偿基数的认定

当事人

平某身体公司诉某运动器材有限公司

案号

上海市浦东新区人民法院 (2018) 沪0115民初53351号

合议庭成员

宫晓艳 | 姜广瑞 | 邵勋

关键词

民事 侵害商标权 惩罚性赔偿 赔偿基数 举证妨碍

相关法律规定

- 《中华人民共和国侵权责任法》第15条第1款第1项、第6项、第2款
- 《中华人民共和国商标法》(2013年修正) 第57条第1项、第63条第1款、第2款
- 《最高人民法院关于审理商标民事纠纷案件适用法律若干问题的解释》第14条、第17条

基本案情

原告平某身体公司诉称：原告是全球第一家普拉提公司，系全球最大的普拉提设备和教育提供商。原告在中国多个商品和服务类别上注册了“MOTR”商标。原告的“MOTR”健身器材在中国广泛销售，相关信息亦常见于媒体宣传报道，涉案商标具有极高的知名度。原告发现，被告在参加上海举行的2018第五届中国（上海）国际健身、康体休闲展览会时，销售使用“MOTR”商标的健身器材。被告还通过微信商城、工厂现场售卖等多种方式推销上述健身器材。此外，被告曾在2012年因侵犯原告知识产权与原告签订了和解协议。原告认为，被告的行为构成商标侵权，且存在重复侵权的情形，故应该适用惩罚性赔偿。请求法院判令被告停止侵犯商标权的行为，按照被告侵权获利适用三倍惩罚性赔偿，主张赔偿经济损失和维权合理开支共计人民币300万元。

被告某运动器材有限公司辩称：被告未侵犯涉案商标，无须承担赔偿责任。“MOTR”标识系涉案普拉提滚筒产品的通用名称。涉案商标为“movement on the roller”的英文首字母缩写，中文含义为“在滚轮上的运动”，属于对产品功能、用途的描述，不具有显著性。原告在国内未以盈利为目的而使用涉案商标，涉案商标无法与原告之间建立唯一对应的关系。被告公司经营规模小，接触涉案商标的时间短，不存在大量生产、销售的行为。

法院经审理查明：原告系1993年8月注册于美利坚合众国加利福尼亚州，主要从事运动器材的生产销售、健身课程的推广。原告系“MOTR”商标的注册人，核定使用于第28类“锻炼身体肌肉器械、体操器械、手动操作的健身器材（锻炼身体器械）、用于瑜伽和体育健身活动

的弹力带”等商品，有效期自2016年10月14日至2026年10月13日。原告曾派员参加2006年北京国际健身大会，“MOTR”健身器材及健身项目的相关信息亦常见于微信、搜狐网、《长江商报》《新快报》等媒体宣传报道。

被告成立于2007年，系一家外国法人独资的公司，经营范围包括运动器材及配件制造，2016年的销售总额为833.353953万元。

2017年11月11日，原告代理人至被告的工厂，购买普拉提滚筒产品三个（1428元/个），取得领（付）款凭证一张、名片两张、产品手册三本。领（付）款凭证上领款人为某运动器材有限公司。滚筒的手柄处标有“MOTR”标识，拉伸带的两端连接处标有“E”和“MOTR”标识，产品手册的封面标有“MOTR”标识，光盘中的培训视频多处出现“MOTR”标识和原告公司名称。2017年12月29日，原告公证取证被告经营的微信商城，最热产品之一是“Motr移动的普拉提床”，售价1680元，并配有使用视频。被告客服人员在2017年10月6日至12月9日期间，多次在微信朋友圈发图文推销标有“MOTR”标识的普拉提滚筒产品，称首批1000个已经售罄，第二批500个所剩不多，并将一名居住于厦门的客户反馈留言截图发表在朋友圈。12月7日，该客服人员又发图文，就首批Motr出现脱胶情况向用户致歉。2018年3月15日，被告参加2018第五届中国（上海）国际健身、康体休闲展览会。被告的展位内摆放多种健身器材，其中包含一个筒身为灰色、顶端为草绿色的普拉提滚筒产品，产品顶端的手柄等处标有“MOTR”标识。

2018年9月，案外人浙江扬某工贸有限公司、浙江应某工贸有限公司因生产、销售标有“MOTR”标识的普拉提滚筒产品而被诉侵权。在该案诉讼过程中，两公司向原告提交了清单、送货单及出库单等证据材料，证明用于组装普拉提滚筒产品所需的发泡、弹簧发条、塑料件等零部件进货价格合计675.30元/个。

另查明，2011年7月13日，原告在西班牙的代理律师向被告的股东公司发过一份侵权警告函，告知由被告生产制造、被告股东公司在西班牙进口、销售的健身器材侵犯原告享有的“STUDIO REFORMER”欧共体商标，要求被告及其股东公司立即停止侵权行为。经过多次协商，被告及其股东公司与原告在2012年2月签订和解协议，承诺不再从事任何可能侵犯或妨碍原告知识产权的行为。

原告主张以侵权获利计算被告侵犯其商标专用权的赔偿数额，计算公式为“侵权获利=商品销售量×[产品单价-产品成本]”，涉案侵权产品的销售量和单价分别采用被告微信宣传的1500个和微信商城定价1680元、线下售价1428元，产品成本参考案外人生产同类产品所需各种零部件的物料价格675.30元/个。被告对该计算公式和计算数额均不认可。为进一步查明侵权产品的销售获利精确数额，法院责令被告在限期内提交有关销售数据、财务账户和原始凭证，但被告拒绝提交。法院最终参考原告的主张和提供的证据，推算被告对侵权产品的获利至少在101.7万元-139.5万元之间，鉴于被告的主观恶意明显、侵权情节严重，确定三倍的惩罚性赔偿倍数。

上海市浦东新区人民法院于2019年9月6日作出（2018）沪0115民初53351号民事判决：被告某运动器材有限公司于本判决生效之日起立即停止实施侵害原告平某身体公司注册商标专用权的行为；被告某运动器材有限公司于本判决生效之日起十日内赔偿原告平某身体公司经济损失和为制止侵权行为所支付的合理开支共计人民币300万元。宣判后，双方当事人均未上诉，判决已发生法律效力。

裁判要旨

1. 曾因涉嫌侵害他人在国外已注册的商标而被警告，与对方签署和解协议承诺不再从事侵权活动后，再次通过线上、线下多种渠道销售侵害他人在中国注册商标的产品，且产品存在质量问题，此种行为符合惩罚性赔偿关于“恶意”和“情节严重”的适用要件。
2. 被告拒绝履行证据披露义务已构成举证妨碍，法院根据被告微信宣传的内容，足以证明侵权商品的销售量，被告不能举证否定其宣传内容真实性的，应当支持原告主张；对于侵权商品的单位利润，可以结合同类产品及被告的自认酌情确定。

裁判理由

法院生效裁判认为，本案的争议焦点主要是：一、被控侵权行为是否构成对原告注册商标专用权的侵害；二、相关民事责任和赔偿数额的确定。

关于第一个争议焦点。被告使用的“MOTR”商标与原告的涉案商标标识完全相同，且商品类别与原告涉案商标核定使用的商品相同。被告对“MOTR”标识的使用行为属于在同一种商品上使用与注册商标相同的标识的行为，侵犯了原告的注册商标专用权。被告辩称“MOTR”标识为涉案产品的通用名称，却未提供任何证据予以证实。涉案“MOTR”商标为臆造词，其本身作为商标具有较强的显著性，且经过原告及其合作商家的持续使用和广泛宣传，已经能与原告之间建立唯一对应的关系，故对被告上述抗辩理由，法院不予采纳。

关于第二个争议焦点。被告既已侵犯了原告的注册商标专用权，理应承担相应的民事责任。故原告要求被告停止实施侵权行为的诉讼请求，法院予以支持。原告主张的公证费、差旅费、文件打印费系为制止侵权行为所支付的合理开支，且均有相关票据和公证书予以证实，法院予以全额支持。

关于经济损失。原告主张以“侵权人因侵权所获得的利益”来计算赔偿数额，具体公式为“侵权获利=产品销售量×（产品单价-产品成本）”被告对此不予认可，但并未就赔偿数额的计算提出自己的依据及方法。法院责令被告在限期内提交相关销售数据、财务账册和原始凭证，但被告拒绝提交，其行为已构成举证妨碍，故法院采用优势证据标准，根据《最高人民法院关于审理商标民事纠纷案件适用法律若干问题的解释》第十四条的规定，认可原告所主张的计算公式，并根据已查明之事实逐一确定上述公式中各项参数的具体数值，在此基础上最终确定侵权获利数额。

原告主张适用惩罚性赔偿，按照非法获益金额的三倍确定被告应承担的赔偿责任。法院认为，根据《中华人民共和国商标法》第六十三条第一款“对恶意侵犯商标专用权，情节严重的，可以在按照上述方法确定数额的一倍以上三倍以下确定赔偿数额”的规定，原告的该请求具有事实和法律依据，应予支持。具体理由如下：第一，被告使用的侵权标识与原告的权利商标标识完全相同，且二者使用于相同产品上，产品的款式、颜色、商标的标识位置等几乎完全相同，此种全面摹仿原告商标及产品的行为足见被告侵犯原告商标权、攀附原告商誉的意图十分明显。第二，被告早在2011年已因出口西班牙的产品涉嫌侵权而被原告发函警告，在原告多次沟通之后，被告最终签署和解协议，承诺今后不会从事任何可能侵犯或妨碍原告所拥有的知识产权的活动，但时隔几年之后，被告再次被发现生产销售侵犯原告注册商标专用权的产品。被告此种不信守承诺、无视他人知识产权的行为，是对诚实信用原则的违背，侵权恶意极其严重。第三，被告在2016年的销售总额已达800余万元，本案中被告通过微信商城、微信朋友圈、工厂、展览会等线上、线下多种渠道进行侵权产品的

推广和销售，产品被售往厦门等省市，可见被告的生产经营规模较大、产品销售渠道多、涉及地域范围广，侵权行为影响较大。第四，被告的侵权行为不仅造成市场混淆，而且侵权产品还存在脱胶的质量问题，会使得消费者误购并误认为原告的产品存在质量问题，会给原告的商业信誉带来负面评价，侵权后果较为严重。

综上，法院认为，被告的主观恶意明显、侵权情节严重，应加大对被告的惩罚力度，故在本案中确定三倍的惩罚性赔偿倍数。上述确定的侵权获利金额的三倍已超过300万元，鉴于原告在本案中主张包含合理支出在内总计300万元的损害赔偿金额，因此对其主张予以全额支持。

E. “奥普”商标侵权案 ——禁止使用注册商标的司法认定

当事人

杭州莫某某科技有限公司等诉浙江风某某建材股份有限公司等

案号

浙江省高级人民法院 (2019) 浙民终22号

合议庭成员

刘建中 | 何琼 | 陈宇

关键词

民事 侵害商标权 驰名商标 禁用注册商标

相关法律规定

- 《中华人民共和国商标法》第13条第3款、第14条、第63条第1款
- 《最高人民法院关于审理涉及驰名商标保护的民事纠纷案件应用法律若干问题的解释》第2条、第5条、第7条、第11条

基本案情

原告杭州莫某某科技有限公司（以下简称莫某某公司）、奥某某家居股份有限公司（以下简称奥某某公司）诉称：其系第730979号“奥普”、第1187759号“奥普”注册商标专用权人和排他许可使用权人。上述商标经过多年持续使用和宣传具有较高的知名度，曾被工商行政管理机关和司法机关认定为驰名商标。现某公司通过许可他人使用其受让的在第6类商品

上的第1737521号“奥普”注册商标等方式，在销售的集成吊顶商品上使用与涉案权

利商标近似的“AOPU奥普”“奥普”“奥普AOPU吊顶”“奥普”金属建材”标识，造成消费者混淆误认，且淡化“奥普”驰名商标的显著性。风某公司经现某公司许可使用第1737521号商标，在集成吊顶商品上使用与“奥普”驰名商标近似的标识。现某公司和晋某公司系第1737521号商标共有人，对其授权使用的商标不加监管，放任风某公司事实侵权行为。现某公司、晋某公司法定代表人盛某在明知“奥普”驰名商标的情况下，将云南某新材料科技有限公司名称变更为云南奥某公司（后更名为晋某公司），造成相关公众对相关的市场主体产生混淆误认，应当与公司共同承担侵权责任。风某公司在上海某交易中心股份有限公司中小企业股权报价系统挂牌交易其股权使用“奥普建材”名称。此外，晋某公司、现某公司

共有的第1737521号“奥普”注册商标，系转让人采取欺诈手段取得，其依法不能通过受

让方式取得第1737521号“奥普”注册商标专用权。两原告主张四被告在扣板等产品、

外包装、经销店门头、办公楼、杂志广告、官网及其他网站、微信公众号中使用上述被诉标识的行为构成商标侵权和不正当竞争；晋某公司注册使用“奥普”字号等行为构成不正当竞争；风某公司在中小企业股权报价系统中使用“奥普建材”名称进行股权交易的行为构成不正当竞争。遂诉请判令：一、认定第730979号“奥普”、第1187759号“奥普”注册商标为驰名商标；二、四被告立即停止商标侵权和不正当竞争行为；三、现某公司和晋某公司

不取得第1737521号“奥普”注册商标专用权，四被告禁止使用该商标；四、风某公司停止使用“奥普建材”名称进行股权交易；五、晋某公司立即停止使用其名称中的“奥普”字号；六、四被告在相关报刊刊登启事，赔礼道歉、消除影响；七、四被告连带赔偿经济损失2000万元。

风某公司、现某公司、晋某公司、盛某共同辩称：一、被诉集成吊顶、扣板商品与涉案权利商标核定使用商品不构成相同或类似商品，被诉侵权标识与涉案权利商标不构成相同或近似，不会造成相关公众对商品来源的误认，第1187759号商标在2012年后并不驰名。四被告未侵犯两原告商标权也不构成不正当竞争，更不存在恶意。二、风某公司使用“奥普建材”进行股权交易属于正当行为。三、云南奥某公司现已更名为晋某公司，且即使未更名，其在其名称中使用“奥普”字号也属于正当使用。四、盛某不应承担连带责任。五、被诉行为不构成侵权，四被告无需承担赔偿责任以及登报赔礼道歉、消除影响等民事责任。请求驳回莫某某公司、奥某某公司的全部诉讼请求。

法院经审理查明：莫某某公司、奥某某公司分别为第730979号“奥普”商标（1995年2月21日核准注册，核定使用商品为第11类，包括照明器材、取暖器、排风扇等）和第1187759号“奥普”商标（1998年6月28日核准注册，核定使用商品类别为第11类，包括热气淋浴装置、浴用加热器等）权利人和排他许可使用权人。该两枚商标曾被行政机关及司法机关认定为驰名商标。一审庭审中，四被告均认可2012年前第730979号“奥普”、第1187759号“奥普”商标驰名的事实。2012年后，“奥普”品牌产品的生产销售继续保持稳步发展，并持续宣传推广，且多次被认定为名牌产品。

现某公司、晋某公司经受让对第1737521号“奥普”商标（2002年3月28日核准注册，核定使用商品类别第6类，包括金属建筑材料等）享有商标权。现某公司自2009年起许可风某公司等使用第1737521号商标。莫某某公司对该商标提出撤销注册申请，后经原国家工商行政管理总局商标评审委员会、北京知识产权法院、北京市高级人民法院以及最高人民法院裁判，该商标在本案二审期间最终被宣告无效。

经证据保全公证，两原告发现四被告在扣板等产品及其外包装、经销店门头、办公楼、杂志

广告、官网及其他网站、微信公众号中使用“AOPU 奥普”“奥普”“奥普AOPU吊顶”

“奥普 金属建材”“奥普吊顶”等标识。2012年10月，云南某新材料科技有限公司名称变更为云南奥某公司（后变更为晋某公司）。2014年开始，风某公司在上海某交易中心股份有限公司中小企业股权报价系统挂牌交易其股权时使用“奥普建材”名称。

浙江省杭州市中级人民法院判决：风某公司、现某公司、晋某公司禁止使用第1737521号

“奥普”商标，并立即停止侵害莫某某公司、奥某某公司第730979号“奥普”、第1187759号“奥普”注册商标专用权的行为，分别在《中国消费者报》《中国工商报》上就其商标侵权

和不正当竞争行为刊登声明、消除影响，向莫某某公司、奥某某公司连带赔偿经济损失800万元（包括为制止侵权行为所支付的合理费用）；六、驳回莫某某公司、奥某某公司的其他诉讼请求。宣判后，除盛某外，其余当事人均提出上诉。浙江省高级人民法院于2019年6月18日作出（2019）浙民终22号民事判决，驳回上诉，维持原判。

裁判要旨

两个普通注册商标之间的争议不属于人民法院受理范围，但在权利商标系驰名商标的情况下，人民法院则有权审理。被告使用的注册商标违反商标法的规定，复制、摹仿原告驰名商标，构成侵犯商标权的，人民法院应当依据原告的请求，依法判决禁止被告使用注册商标并承担相应民事责任。

裁判理由

法院生效裁判认为：根据《中华人民共和国商标法》及驰名商标相关司法解释的规定，法院有权审理驰名商标与其他普通注册商标之间的争议。涉案“奥普”权利商标在2012年前曾多次被司法、行政认定为驰名商标，在2012年至2015年间，两原告提供的企业生产销售情况和广告宣传情况、所获荣誉等证据已足以证明在2012年后两原告对涉案“奥普”商标进行了持续的使用、宣传和推广，进一步地巩固了市场地位，维护了行业声誉并提升了品牌价值，为国内相关公众广为知晓并享有较高声誉，因此应当认定在涉案被诉侵权行为发生期间，两原告使用在第11类热气淋浴装置、浴用加热器等商品上的第730979号“奥普”、第1187759号“奥普”商标为驰名商标。被告在与之具有密切关联的金属吊顶商品上使用被诉侵权标识，足以使相关公众认为被诉侵权标识与涉案“奥普”驰名商标具有相当程度的联系，从而减弱驰名商标的显著性，亦不当利用了“奥普”驰名商标的市场声誉，损害了

两原告的利益，故被诉行为构成商标侵权。被告受让的第1737521号“”商标的申请注册人明知涉案权利商标在浴用加热器、热气淋浴装置商品上具有较高知名度且驰名，但仍在与之具有密切关联的金属建筑材料上申请注册近似程度极高的第1737521号商标，其申请注册具有恶意，系复制、摹仿原告驰名商标。被告受让、使用该商标亦具有恶意。在认定被诉行为构成商标侵权的同时，应当根据原告的诉请，判令被告禁止使用第1737521号

“”商标并承担相应民事责任。

F. “双飞人” 商标侵权及不正当竞争案 ——恶意注册商标权人无权禁止在先权利人在原范围内继续使用

当事人

某制药股份有限公司诉广州某商务咨询有限公司等

案号

最高人民法院 (2020) 最高法民再23号

合议庭成员

秦元明 | 马秀荣 | 周波

关键词

民事 恶意注册 在先权利人 原使用范围 诚实信用

相关法律规定

— 《中华人民共和国商标法》(2013年修正) 第59条第3款

基本案情

法国某制药厂自20世纪90年代起在中国大陆部分地区的报纸上刊登“双飞人药水”广告，并且拥有第644451X号在第3类商品上的“利佳”文字注册商标。2013年5月2日，国家食品药品监督管理局颁发“利佳”薄荷水进口非特殊用途化妆品备案凭证，在华申报责任单位为广州某商务咨询有限公司（以下简称某商务咨询公司）。2014年7月16日，国家知识产权局对利佳薄荷水包装盒颁发第288843X号外观设计专利证书。法国某制药厂于2015年1月28日授权某商务咨询公司独家代理在中国境内宣传、推广、分销和销售“利佳”品牌化妆品，并注明所有活动均在中国境内进行，授权自2014年1月1日起生效。某制药股份有限公司（以下简称某制药公司）成立于2008年4月18日，从事擦剂、护肤类化妆品生产、销售，是第755957X号、第755958X号“双飞人”立体商标权利人，一直将该两枚立体商标使用在其第3类“双飞人”爽水产品上。某制药公司起诉称，“利佳”薄荷水的外包装侵犯了其享有的立体商标权并构成不正当竞争，请求法院判令某商务咨询公司等停止侵权，共同赔偿某制药公司经济损失300万元等诉讼请求。

江西省宜春市中级人民法院一审与江西省高级人民法院二审均认定某商务咨询公司等被告构成商标侵权及不正当竞争，一审法院判决，由某商务咨询公司赔偿某制药公司损失300万元。二审法院判决，驳回上诉，维持原判。最高人民法院再审认为，在案证据可以证明法国某制药厂在先使用了“双飞人药水”所采用的“蓝、白、红”包装并有一定影响，某制药公司明知“双飞人药水”存在于市场，却恶意申请注册与“双飞人药水”包装近似的第755957X号、第755958X号商标并行使权利，其行为难言正当，认定某商务咨询公司的在先使用抗辩成立。最高人民法院提审本案后，并于2021年3月16日作出（2020）最高法民再23号民事判决，撤销一、二审判决，驳回某制药公司诉讼请求。

裁判要旨

被告商品在先进行广告宣传,形成一定影响。在明知他人商品已存在于市场的情况下,恶意申请注册与他人商品包装近似的商标并以上述商标作为权利基础起诉他人侵权的,被诉侵权行为应当被认定属于《中华人民共和国商标法》第五十九条第三款规定的商标权人无权禁止在先使用人在原使用范围内继续使用的情形。

裁判理由

最高人民法院再审判决认为,2013年《中华人民共和国商标法》第五十九条第三款规定:“商标注册人申请商标注册前,他人已经在同一种商品或者类似商品上先于商标注册人使用与注册商标相同或者近似并有一定影响的商标的,注册商标专用权人无权禁止该使用人在原使用范围内继续使用该商标,但可以要求其附加适当区别标识。”

本案中,案外人某医药公司违反《中华人民共和国药品管理法》第三十九条规定,未向药品管理部门申报其销售的法国某制药厂生产的“双飞人药水”而被行政处罚,且《中华人民共和国药品管理法》第四十八条第二款规定“有下列情形之一的药品,按假药论处:(二)依照本法必须批准而未经批准生产、进口,或者依照本法必须检验即销售的”。故二审法院认定案外人某医药公司销售“双飞人药水”的行为不属于合法的在先行为,不能产生在先权利的法律后果并无不当。

某商务咨询公司提交的证据可以证明,法国某制药厂自20世纪90年代起在中国大陆部分地区的报纸上刊登“双飞人药水”广告,持续时间较长、发行地域和发行量较大,在华南等地区已形成一定影响,具有一定知名度。故可以认定法国某制药厂在先使用了“双飞人药水”所采用的“蓝、白、红”包装并有一定影响。本案中,某制药公司主张某商务咨询公司侵害其第755957X号、第755958X号注册商标专用权,但是在案证据表明,在“双飞人爽水”产品问世前,某制药公司的关联企业曾以“双飞人药水”包装盒作为现有设计证据,申请对与“双飞人药水”包装相似的外观设计专利宣告无效,并获得支持。而且,某制药公司在对“双飞人爽水”进行宣传时,存在主动与“双飞人药水”进行混淆的行为,可以证明其对法国某制药厂生产的“双飞人药水”的知名度已有认知。经营者在市场交易中,应当遵循诚实信用的原则,遵守公认的商业道德。某制药公司明知“双飞人药水”存在于市场,却恶意申请注册与“双飞人药水”包装近似的第755957X号、第755958X号商标并行使权利,其行为难言正当,某商务咨询公司的被诉侵权行为应当被认定属于2013年《中华人民共和国商标法》第五十九条第三款规定的商标权人无权禁止在先使用人在原使用范围内继续使用的情形,因此,某商务咨询公司的在先使用抗辩成立,法院予以支持。二审判决认定事实、适用法律错误,最高人民法院予以纠正。

G. “华联”商标侵权及不正当竞争案 ——商标先用权抗辩中原使用范围的认定

当事人

华某公司诉肥城华某公司、肥城华某公司某某店

案号

最高人民法院 (2021) 最高法民再3号

合议庭成员

王艳芳 | 晏景 | 李丽

关键词

民事 侵害商标权 不正当竞争 先用权抗辩 原使用范围

相关法律规定

- 《中华人民共和国民法总则》第74条
- 《中华人民共和国商标法》第59条、第57条
- 《中华人民共和国反不正当竞争法》第6条

基本案情

华某公司是“华联超市 Hualian Supermarket”及图商标（以下简称涉案商标）的专用权人，核定使用服务类别为第35类，包括广告、进出口代理、推销（替他人）、为零售目的在通讯媒体上展示商品等。肥城华某公司成立于2000年3月8日，经营范围为卷烟、普通货运、日用百货、体育用品等。2015年11月27日，肥城华某公司注册了“桃都华联”商标，核定使用服务亦为第35类。2016年4月1日，肥城华某公司的分公司肥城华某公司某某店成立，经营范围为卷烟、普通货运、日用百货等。

华某公司主张，肥城华某公司及其某某店在门头、网络支付账单、购物小票上使用“华联超市”标识，侵害了华某公司的注册商标专用权；将“华联”文字注册为企业名称并在门店突出使用，构成不正当竞争，故起诉至法院。

山东省泰安市中级人民法院一审认为，肥城华某公司对“华联超市”标识构成在先使用，肥城华某公司某某店使用“华联超市”构成在原使用范围内继续使用，故肥城某某公司及其某某店的行为对涉案商标权均不构成侵害；肥城某某公司成立时间及使用“华联”字号时间早于华某公司成立时间，肥城华某公司在肥城当地具有知名度，华某公司在肥城未开展经营活动，不会造成相关公众混淆，故肥城华某公司及其某某店不构成不正当竞争。据此判决，驳回华某公司的诉讼请求。华某公司不服，提起上诉。山东省高级人民法院于判决，驳回上诉，维持原判。华某公司不服，向最高人民法院申请再审。最高人民法院裁定提审本案，并于2021年2月23日作出（2021）最高法民再3号民事判决，撤销一、二审判决，改判肥

城华某公司及其某某店立即停止使用“华联”“华联超市”等侵害涉案商标权的标识，立即停止使用带有“华联”文字的企业名称，并赔偿华某公司经济损失及合理费用共计5万元。

裁判要旨

认定是否构成商标先用权抗辩中的“在原使用范围内继续使用商标”，应当考虑商标使用的地域范围和经营规模。商业主体虽在先使用商业标识，但在他人就该标识获得注册之后，该商业主体又在原经营范围之外开设新的分支机构，并在该分支机构的经营中使用与注册商标相同或近似标识的，不属于《中华人民共和国商标法》第五十九条第三款规定的“在原使用范围内继续使用商标”的情形。

裁判理由

最高人民法院再审认为，肥城华某公司在涉案商标申请注册之后开设肥城华某公司某某店作为分支机构，并在该分支机构的经营中使用“华联”“华联超市”标识，不属于《中华人民共和国商标法》第五十九条第三款规定的“在原使用范围内继续使用商标”的情形。此外，肥城华某公司成立时间晚于华某公司前身及其关联企业的成立时间，且肥城华某公司在诉讼中提交的证据中亦无法证明在涉案商标申请注册之前，肥城华某公司已经在超市行业将“华联超市”作为商标使用并具有一定影响。综上，肥城华某公司及其某某店关于其使用“华联”“华联超市”标识的行为属于《中华人民共和国商标法》第五十九条第三款规定情形的抗辩理由不能成立。

H. “华润”商标侵权及不正当竞争案 ——类似服务的认定及将自然人姓名作为商标使用的定性

当事人

华某集团有限公司、华某知识产权管理有限公司诉成都市金牛区华某灯饰商店

案号

最高人民法院（2021）最高法民再338号

合议庭成员

晏景 | 李丽 | 许常海

关键词

民事 侵害商标权 类似服务 批发零售推销（替他人） 在先姓名权

相关法律规定

— 《中华人民共和国商标法》第57条第2项

基本案情

华某集团有限公司诉称：华某集团有限公司是第776090号“华润”商标、第384356X号“华润万家”商标及第773121号“华润”商标的注册商标专用权人。其中，第776090号“华润”商标、第384356X号“华润万家”商标核准注册在第35类上，均包含“推销（替他人）”等服务；第773121号“华润”商标核准注册在第36类“资本投资服务”等服务上，相关行政机关及人民法院曾认定该商标构成驰名商标。成都市金牛区华某商店（以下简称华某商店）注册使用“华润”作为其字号，并在其经营的灯饰店外招牌、宣传资料等多处使用“华润”字样，售卖多种他人品牌灯具。华某集团有限公司主张，华某商店的行为足以使消费者对服务来源产生混淆与误认，并引人误认为与华某集团有限公司存在关联关系，违反了《中华人民共和国商标法》第五十七条、第十三条及《中华人民共和国反不正当竞争法》第二条、第五条第三项的规定，故诉至法院，请求：1.判令华某商店立即停止侵权并停止使用带有“华润”文字的企业名称；2.判令华某商店登报以消除影响；3.判令华某商店赔偿经济损失50万元及其他合理开支共计7万元。

华某商店辩称：1.其字号经核准登记，属于合法审批后使用，该字号有特定的含义，是以该商店法定代表人之子的名字来命名的，登记该字号时，并不知道华某集团有限公司及诉争“华润”商标的存在，没有搭便车的故意，不构成商标侵权及不正当竞争。2.“华润灯饰”系华某商店的企业合法简称，且成都市金牛区华某灯饰商店未突出使用“华润”二字，该企业字号与华某集团有限公司的涉案商标有显著不同，不会引起相关公众误认，其经营范围与第776090号“华润”、第384356X号“华润万家”商标核定服务范围不同。3.即使第773121号“华润”商标被认定为驰名商标，客观上也不会让相关公众将华某商店销售灯具的经营行为与从未生产经营灯饰的华某集团有限公司联系起来，不构成驰名商标的跨类保护，也不

会导致诉争驰名商标淡化。故被诉侵权行为不构成商标侵权和不正当竞争，不承担停止侵权及赔偿损失等责任。

法院经审理查明：1995年1月21日，经原国家工商行政管理总局商标局（以下简称商标局）核准，华某集团有限公司取得第776090号“华润”商标，核定服务项目为第35类，包括推销（替他人），该商标经续展后，注册有效期至2025年1月20日。2006年4月7日，经商标局核准，华某集团有限公司取得第384356X号“华润万家”商标，核定服务项目为第35类，包括推销（替他人），该商标经续展后，注册有效期至2026年4月6日。1994年12月7日，经商标局核准，华某集团有限公司取得第773121号“华润”商标，核定服务项目为第36类，包括资本投资，该商标经续展后，注册有效期至2024年12月6日。2013年原国家工商行政管理总局商标评审委员会作出商评字[2013]第01465号商标异议复审裁定书，认定2005年7月5日之前，第773121号“华润”注册商标在资本投资服务上构成驰名商标。法院于2014年作出行政判决书，认定在2009年6月9日之前，第773121号“华润”注册商标在“资本投资”等相关服务上构成驰名商标。

华某商店为个体工商户，其企业名称注册于2002年5月31日，经营者刘某，经营范围：灯具批发零售。刘某除了开办经营华某商店，还于2006年10月18日设立了成华区华润灯饰经营部。刘某对上述两家商店对外统一使用“华润灯饰”进行宣传。2016年，成都华润灯饰被评为“亮点奖——2016年中国照明（灯饰）行业全国500强经销商”荣誉称号、“2016年中国照明（灯饰）行业四川省100强经销商”荣誉称号。华某商店经营者刘某之子，取名为刘华润。

2017年3月24日，成都市某公证处出具（2017）川国公证字第48386号公证书。根据公证书所附照片显示，在位于成都市金牛区某灯具城的“华润灯饰同记家居馆”店铺所在大楼的外墙上悬挂有该店铺招牌，突出显示“华润灯饰”字样，在店铺门口有“华润灯饰上品生活馆”字样，其中“华润灯饰”字体较大。在其店铺入口、前台背景墙上均有“华润灯饰同记”字样。在所销售商品吊牌及工作人员名片显著位置，均有“HR华润灯饰”字样。在店内放置的获奖铭牌上显示“经行业人士推介，本报各驻站人员现场考察，网上投票公选和评选组委确认，成都华润灯饰被评为‘亮点奖——2016年中国照明（灯饰）行业全国500强经销商’荣誉称号”字样，其中“成都华润灯饰”为红字字体较大。在店铺里放置的信封上均印制有“华润灯饰商贸公司”字样。

2017年3月31日，成都市某公证处出具（2017）川国公证字第51312号公证书。根据公证书附件显示，“华润灯饰”网站内网页下方统一标记有“华润灯饰”字样，网站首页介绍及“团队展示”栏目等处均使用了“华润灯饰”等字样，网站上展示了实体店多幅照片，部分照片可见店内展厅入口处标注有“华润灯饰”字样。该网站的开办者为华某商店。

华某商店及成华区华润灯饰经营部对外统一以“华润灯饰”，为经营活动进行了大量宣传，如投放车身广告、开办“华润灯饰商学院”进行企业文化推广、开设名为“华润灯饰”的微信公众号等。

四川省成都市中级人民法院判决，驳回华某集团有限公司的诉讼请求。华某集团有限公司提出上诉。四川省高级人民法院判决，驳回上诉，维持原判。华某集团有限公司及涉案商标受让人华某知识产权管理有限公司不服上述判决，向最高人民法院申请再审。最高人民法院裁定提审本案，并于2021年12月20日作出（2021）最高法民再338号民事判决：1.撤销一、二审判决；2.华某商店立即停止侵害第776090号“华润”商标及第384356X号“华润万家”商标专用权的行为；3.华某商店立即停止使用带有“华润”文字的企业名称，并变更

其企业名称，变更后的企业名称不得含有与“华润”相同或近似的字样；4.华某商店赔偿华某知识产权管理有限公司经济损失及合理费用共计8万元；5.驳回华某集团有限公司、华某知识产权管理有限公司的其他诉讼请求。

裁判要旨

1. 在商标侵权案件中认定相关服务类别是否构成类似，应当以相关公众的一般注意力为标准，综合考虑经营主体的经营范围、经营模式、服务对象等因素。商业主体为方便消费者选购，将自身所代理或购进的商品进行归类，以批发或零售等模式进行销售的行为，与区分表第35类“推销（替他人）”服务存在交叉和重合，应当认定二者构成类似服务。
2. 公民依法享有姓名权，有权合理使用自己的姓名，但应当遵循诚实信用原则并遵守相关法律、法规的规定，对姓名进行商业使用时不得侵害他人的合法在先权利。在他人已经在先将相同或近似的文字注册为商标，并经过长期使用已经具有较高知名度的情况下，该公民再将与上述注册商标相同或近似的文字使用在相同或类似服务上，容易造成相关公众混淆误认的，即使与其自身姓名存在关联，亦构成对他人注册商标权的侵害。

裁判理由

最高人民法院再审认为，首先，成都市金牛区华某灯饰商店经销各种品牌的灯具、灯饰商品，其经营范围为灯具批发、零售，该服务与两涉案商标核定使用的第35类“推销（替他人）”服务在服务目的、内容、方式及服务对象等方面存在较大关联，二者构成类似服务。虽然《类似商品和服务区分表》中第35类“推销（替他人）”服务中并未明确包含“批发、零售”服务，但是认定服务是否构成类似，应当以相关公众的一般注意力为标准，结合经营主体的经营范围、经营模式、服务对象等因素综合考虑。从本案来看，成都市金牛区华某灯饰商店将自己所代理或购进的各类品牌灯饰进行归类并统一销售，以方便消费者选购，其所销售的灯饰产品显示的标识及相关信息仍来源于其代理或购进的灯饰品牌，而“华润灯饰”系为销售上述灯饰产品所提供的服务标识。上述销售模式与涉案商标核定使用的服务存在交叉和重合，二者构成类似服务。

其次，被诉侵权标识的显著识别部分“华润”文字，与两涉案商标的显著识别部分在文字构成、呼叫等方面相同或近似，构成近似商标。“华润”系臆造词，具有较强显著性；华某集团有限公司及华某知识产权管理有限公司提交的证据能够证明在成都市金牛区华某灯饰商店注册成立之前，华某集团有限公司的“华润”品牌已为相关公众广泛知晓，“华润”系列商标在超市行业亦具有较高知名度。在上述情况下，成都市金牛区华某灯饰商店作为从事商品销售的主体，仍突出使用与涉案商标相同或近似的标识，从事与涉案商标核定服务类似的服务，容易造成相关公众的混淆误认，其所提交的证据亦尚不足以证明被诉侵权标识已经在行业内具有较高知名度，足以避免相关公众将其与涉案商标相混淆。

再次，公民虽享有其合法的姓名权，并有权合理使用自己的姓名，但应当遵循诚实信用原则并遵守相关法律法规的规定，在将姓名进行商业使用时，不得侵害他人的在先权利。成都市金牛区华某灯饰商店的行为已超出合理使用姓名的界限，故对其相关抗辩理由及所提相关证据，不予采纳。综上，成都市金牛区华某灯饰商店使用“华润灯饰”标识的行为，容易造成相关公众对其服务来源产生混淆或误认，构成对涉案商标专用权的侵害。

1. “西门子”商标侵权及不正当竞争案 ——商业标识侵权行为的认定及损害赔偿的计算

当事人

西某某股份公司、西某某（中国）有限公司诉宁波奇某电器有限公司、龚某某、王某、昆山新某某电器有限公司、武某某

案号

最高人民法院（2022）最高法民终312号

合议庭成员

晏景 | 马秀荣 | 戴怡婷

关键词

民事 侵害商标权 不正当竞争 举证妨碍 损害赔偿

相关规定

- 《中华人民共和国商标法》第57条第2项、第58条
- 《中华人民共和国反不正当竞争法》第6条第2项、第4项及第17条
- 《最高人民法院关于适用〈中华人民共和国反不正当竞争法〉若干问题的解释》第13条第2项

基本案情

西某某股份公司及西某某（中国）有限公司对涉案商标“西门子”“SIEMENS”享有专用权，并经过长期使用具有较高知名度。宁波奇某电器有限公司（以下简称奇某公司）在其生产销售的洗衣机产品、产品外包装及相关宣传活动中使用了“上海西门子电器有限公司”标识；个人独资企业昆山新某某电器有限公司（以下简称新某某公司）销售了上述被诉侵权产品。

西某某股份公司及西某某（中国）有限公司认为，奇某公司、新某某公司的行为侵害了其注册商标专用权并构成不正当竞争，应当承担侵权责任，该二公司的相关股东亦应承担赔偿责任，遂将奇某公司及其股东龚某某、王某夫妻二人，以及新某某公司及其股东武某某作为被告诉至法院，请求：1.判令五被告立即停止商标侵权及不正当竞争行为，即：停止在生产和销售的洗衣机、产品包装、产品宣传册、合同文书、互联网页面上使用“上海西门子电器有限公司”名称；2.判令奇某公司赔偿西某某股份公司、西某某（中国）有限公司经济损失人民币1亿元及合理开支163,000元，龚某某、王某对上述经济损失及合理开支承担连带赔偿责任；新某某公司和武某某在300万元范围内承担连带赔偿责任；3.判令奇某公司和新某某公司在《法治日报》刊登公告以消除影响；4.案件诉讼费由五被告承担。

江苏省高级人民法院一审判决：新某某公司、奇某公司立即停止侵害涉案商标专用权及不正当竞争行为，即停止在生产和销售的洗衣机、产品包装、产品宣传册、合同文书、互联网页面上使用“上海西门子电器有限公司”名称；奇某公司、龚某某、王某自判决生效之日起

三十日内,连带赔偿西某某股份公司、西某某(中国)有限公司经济损失1亿元及合理开支163,000元;新某某公司、武某某就上述款项在50万元范围内承担连带赔偿责任;奇某公司自判决生效之日起三十日内,在《法治日报》刊登公告以消除影响;驳回西某某股份公司、西某某(中国)有限公司的其他诉讼请求。奇某公司、龚某某、王某不服一审判决,向最高人民法院提起上诉。最高人民法院于2023年7月27日作出(2022)最高法民终312号民事判决:驳回上诉,维持原判。

裁判要旨

1. 认定对被诉侵权标识的使用行为是否构成商标性使用,应当结合行为人的行为动机及该行为的具体表现形式进行审查判断。行为人侵权故意明显,将以企业名称为表现形式的商业标识在惯常使用商标的位置、场合进行使用的,应认定该行为属于商标性使用并构成商标侵权,行为人辩称系使用企业名称的,应不予支持。
2. 在被诉侵权人拒不提交相关财务证据的情况下,人民法院可以参照适用证据妨碍制度,将权利人的主张和提供的证据作为确定赔偿额的参考。侵权产品生产商拒不提交其生产侵权产品的生产合同、财务账册等资料,人民法院根据双方当事人提交的证据确定该生产商年度销售额、侵权产品在年度销售额中的占比以及侵权时间,并参考同行业公司的利润率,最终酌定的赔偿数额高于原告请求的赔偿数额的,应对原告的赔偿请求予以全额支持。

裁判理由

最高人民法院二审认为:“上海西门子电器有限公司”并非奇某公司自有字号或企业名称,奇某公司无正当理由将该标识使用在惯常使用商标的位置,能够起到识别商品来源的效果,属于商标性使用行为,侵害了西某某股份公司及西某某(中国)有限公司注册商标专用权。其在商品外包装及宣传活动中使用“上海西门子电器有限公司”的其他行为构成不正当竞争。奇某公司应对上述侵权行为承担赔偿责任。关于赔偿数额,根据现有证据难以确定奇某公司的侵权获利及西某某股份公司、西某某(中国)有限公司因被侵权受到的实际损失,但足以认定奇某公司因生产、销售被诉侵权产品而获得的利益明显超过法定赔偿最高限额。在此情况下,最高人民法院认为,应当综合考虑西某某股份公司及西某某(中国)有限公司企业名称具有较高的知名度,奇某公司具有明显的主观恶意,且侵权规模大、侵权持续时间长,并结合洗衣机产品的利润率以及西某某股份公司、西某某(中国)有限公司为维权支出的合理费用等因素,在法定最高限额以上确定赔偿额。鉴于奇某公司诉讼中拒不提供与侵权行为相关的财务资料,一审法院将在案的媒体报道内容作为销售总额的计算依据,并按照十五分之一计算被诉侵权产品的销售额占比,进而确定1亿元赔偿额的做法并无不当。此外,虽然西某某股份公司、西某某(中国)有限公司二审中明确表示,其主张的赔偿数额不包括侵害商标权行为的赔偿,但本案侵害商标权及不正当竞争行为均体现为使用被诉侵权标识“上海西门子电器有限公司”,获利数额亦均体现在被诉侵权产品的生产、营销之上,而被诉侵权产品的生产和销售数量是固定的,且根据前述关于赔偿额的确定方式,即使仅考虑不正当竞争部分,确定1亿元的赔偿数额亦无明显不当,故最高人民法院对一审判决确定的赔偿数额予以维持。龚某某、王某二人系奇某公司仅有的两名股东,该二人作为奇某公司的实际控制人,在奇某公司侵权行为的实施过程中起到了重要作用,其行为表现出明显的侵权故意,应认定其与奇某公司构成共同侵权,与奇某公司承担连带赔偿责任。

第二章 专利案件

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——创造性判断中,对于具有协同作用、共同解决同一技术问题、产生关联技术效果的区别技术特征的认定

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A.涉“肿瘤靶向治疗”发明专利授权案 ——公知常识性证据的认定

当事人

江苏某生物医药研究有限公司、常州某高新技术研究院诉国家知识产权局

案号

最高人民法院（2020）最高法知行终35号

合议庭成员

朱理 | 原晓爽 | 傅蕾

关键词

行政 发明专利申请 公知常识 听证原则 全面审查

相关法律规定

— 《中华人民共和国行政诉讼法》第89条第1款第1项

基本案情

本案涉及名称为“一种肿瘤靶向性肿瘤坏死因子相关凋亡配体变体及其应用”的发明专利申请，申请人为江苏某生物医药研究有限公司（以下简称某医药公司）、常州某高新技术研究院（以下简称某研究院），涉及肿瘤靶向性肿瘤坏死因子相关凋亡配体变体融合蛋白质领域。本申请要解决的技术问题是构建一种带有连接肽的肿瘤靶向性肿瘤坏死因子相关凋亡配体变体融合蛋白质。经实质审查，国家知识产权局原审查部门驳回了上述申请。某医药公司、某研究院提出复审请求，国家知识产权局复审后认为本专利不具备创造性，维持了原驳回决定。某医药公司、某研究院不服，向北京知识产权法院提起诉讼，请求撤销被诉决定，判令国家知识产权局重新作出复审决定。

北京知识产权法院判决：撤销被诉决定，国家知识产权局重新作出审查决定。国家知识产权局提出上诉，最高人民法院于2020年8月13日作出（2020）最高法知行终35号行政判决：驳回上诉，维持原判。

裁判要旨

公知常识性证据通常是指技术词典、技术手册、教科书等记载本领域基本技术知识的文献；技术词典、技术手册、教科书之外的文献是否属于公知常识性证据，需要结合该文献的载体形式、内容及其特点、受众、传播范围等因素具体认定。

法院生效裁判认为：关于被诉决定以《肿瘤研究前沿》第8卷作为公知常识性证据评述涉案申请的创造性是否正确。第一，关于公知常识及其证明方法。首先，相关技术领域公知常识的认定，直接决定了该领域普通技术人员所应具备的技术知识和认知能力，进而对创造性判断具有重要影响。因此，对于公知常识的认定应该以确凿无疑为标准，应该有充分的证据或者理由支持，不应过于随意化。一般而言，对于相关技术知识是否属于公知常识，原则上可以通过技术词典、技术手册、教科书等所属技术领域中的公知常识性证据加以证明；在难以通过技术词典、技术手册、教科书等公知常识性证据予以证明的情况下，也可以通过所属领域的多份非公知常识性证据例如多篇专利文献、期刊杂志等相互印证以充分证明该技术知识属于公知常识，但这种证明方式应遵循更严格的证明标准。其次，公知常识性证据是指技术词典、技术手册、教科书等记载本领域基本技术知识的文献。如无相反证据，技术词典、技术手册、教科书记载的技术知识可以推定为公知常识。对于技术词典、技术手册、教科书之外的文献，判断其是否属于记载本领域基本技术知识的公知常识性证据，则需要结合该文献的载体形式、内容及其特点、受众、传播范围等具体认定。第二，关于涉案《肿瘤研究前沿》第8卷是否属于公知常识性证据的具体判断。首先，从载体形式看，《肿瘤研究前沿》第8卷属于图书。《肿瘤研究前沿》第8卷的图书在版编目（CIP）显示其书号为ISBN 978-7-81086-559-3，ISBN是国际标准书号的代称，在我国已使用多年，故应当认定《肿瘤研究前沿》第8卷属于图书。原审判决认定其属于期刊杂志，有失准确。其次，从内容及其特点看，《肿瘤研究前沿》第8卷虽然属于图书，却并不属于一般性教科书。该书序言指出，其尽力以最通俗的语言将目前世界上肿瘤研究的最新进展介绍给同行及相关研究人员，具有专著、综述、述评、科普读物等诸种文献的特点，以包容性、先进性、焦点争论为特色。这表明，该书旨在介绍世界肿瘤研究的最新进展，并非讲述肿瘤研究领域一般性技术知识，不属于通常意义上教科书。最后，从受众、传播范围方面看，亦难以认定《肿瘤研究前沿》第8卷属于教科书。该书版权页“内容简介”记载，“本书可作为相关专业研究人员的参考用书，也可供高校、医院的相关人员阅读使用”，同样表明其并非通常意义上的教科书，而是专业研究人员的参考用书。此外，本案并未有其他证据表明，该书在相关领域已经成为研究人员的普遍参考用书。

综合上述因素，可以认定《肿瘤研究前沿》第8卷虽然属于图书，但并非通常意义上的教科书，尚不足以认定属于公知常识性证据。被诉决定以《肿瘤研究前沿》第8卷作为公知常识性证据予以使用，依据不足。国家知识产权局关于《肿瘤研究前沿》第8卷可以作为所属技术领域中的公知常识性证据的上诉理由不能成立，不予支持。

B. “光源装置”发明专利确权案 ——创造性判断中, 对于具有协同作用、共同解决同一技术问题、产生关联技术效果的区别技术特征的认定

当事人

深圳某科技股份有限公司诉国家知识产权局、某计算机株式会社

案号

最高人民法院 (2020) 最高法知行终155号

合议庭成员

徐燕如 | 马军 | 刘晓梅

关键词

行政 发明专利无效宣告 创造性 区别技术特征

相关规定

- 《中华人民共和国专利法》(2008年修正) 第22条第3款

基本案情

某计算机株式会社系专利号为201010293730.7、名称为“光源装置、投影装置及投影方法”的发明专利(以下简称本专利)的专利权人。深圳某科技股份有限公司针对本专利,于2016年12月28日提出无效宣告请求,国家知识产权局于2017年12月25日作出第34530号无效宣告请求审查决定(以下简称被诉决定),认为本专利具备创造性,维持本专利权有效。深圳某科技股份有限公司不服,向北京知识产权法院提起诉讼,请求撤销被诉决定,判令国家知识产权局重新作出决定。

北京知识产权法院认为,本专利权利要求1相对于对比文件1的区别技术特征在于将发光期间较短的特定颜色光的光源驱动电力设定较大,要解决的技术问题是调整不同荧光体的驱动电力以获得更好的发光效果。本领域技术人员在对比文件1的基础上,结合对比文件2、3以及本领域公知常识,得到本专利权利要求1的技术方案是显而易见的,权利要求1不具备创造性,遂判决撤销被诉决定,国家知识产权局重新作出决定。国家知识产权局、某计算机株式会社均不服,向最高人民法院提起上诉,主张本专利权利要求1与最接近现有技术对比文件1的整体构思不同,一审判决对区别技术特征认定错误。最高人民法院于2021年7月28日作出(2020)最高法知行终155号行政判决,撤销原判,驳回深圳某科技股份有限公司的诉讼请求。

裁判要旨

创造性判断中，对于紧密联系、相互依存、具有协同作用、共同解决同一技术问题、产生关联技术效果的区别技术特征，可以作整体考虑，而不宜简单割裂评价。

裁判理由

法院生效裁判认为：本专利与最接近现有技术之间的区别技术特征的认定，应当建立在充分理解发明和现有技术的技术方案基础上。在此过程中，应当准确把握发明构思，对具有协调配合关系的技术内容的技术特征予以确定，准确理解技术方案各部分内容与发明为解决技术问题采用的发明构思以及产生的技术效果之间的关系。对于技术方案中存在紧密联系、相互依存、通过协同作用共同解决同一技术问题、产生关联技术效果的技术特征，在发明与最接近现有技术进行对比时，应当将其作为一个或一组技术特征予以整体考虑，不应机械地将构成整体技术方案中的技术特征割裂评价。发明实际解决的技术问题，应当基于整体发明构思的区别技术特征，并根据区别技术特征给整个发明带来的技术效果予以确定。本专利权利要求1请求保护一种光源装置，该技术方案针对不同荧光体的饱和特性不同、发光效率存在差异，在技术构思上采取“光源控制部件，其控制上述光源和上述光源光发生部件的驱动定时，将发光效率较高的至少1种颜色的光源光的发光期间设定得比其他颜色的光源光的发光期间短”的同时，设定“将已把该发光期间设定得较短的颜色的光源光发生时的上述光源的驱动电力设定得比其他颜色的光源光发生时的上述光源的驱动电力大”，二者在技术方案中通过协调配合、协同发挥作用，共同解决荧光体饱和及绝对光量不足的技术问题，产生图像尽可能明亮且颜色再现性高的关联技术效果，应当作为一个或一组技术特征整体予以考虑，不应割裂该技术特征予以评价。对比文件1虽然在色轮上设置荧光材料，进而调整发光期间，但其系利用光源中的紫外光，提高光源利用效率的技术方案，与本专利发明构思不同，解决的技术问题不同，没有公开上述协调配合的区别技术特征。对比文件2、3亦没有公开该区别技术特征的整体技术手段，本领域技术人员在不付出创造性劳动的前提下，难以通过简单地结合对比文件的技术方案来显而易见地得到权利要求1限定的技术方案，本专利权利要求1具备创造性。

C. “计算装置中的活动的卡隐喻”发明专利确权案 ——涉GUI人机交互领域专利是否具备创造性的认定

当事人

某电脑贸易（上海）有限公司诉国家知识产权局、某通信股份有限公司

案号

最高人民法院（2021）最高法知行终1号

合议庭成员

岑宏宇 | 徐红妮 | 孔立明

关键词

行政 发明专利无效宣告 创造性 GUI 人机交互

相关法律规定

— 《中华人民共和国专利法》（2000年修正）第22条第3款

基本案情

某通信股份有限公司系专利号为201310491586.1、名称为“计算装置中的活动的卡隐喻”的发明专利（以下简称本专利）的专利权人。2017年12月12日，某电脑贸易（上海）有限公司（以下简称电脑公司）针对本专利权提出无效宣告请求，国家知识产权局于2018年7月20日作出第36696号无效宣告请求审查决定（以下简称被诉决定），认为本专利具备创造性，据此维持本专利权有效。电脑公司不服，向北京知识产权法院提起诉讼，请求撤销被诉决定，判令国家知识产权局重新作出决定。

北京知识产权法院判决：驳回电脑公司的诉讼请求。电脑公司提出上诉，最高人民法院于2022年7月26日作出（2021）最高法知行终1号行政判决：驳回上诉，维持原判。

裁判要旨

在以提升用户体验度为核心研发目标的GUI（图形用户界面）人机交互领域，由于基础技术手段较为成熟，其创造性往往体现在应用场景、操控对象、操作手段组合而成的整体对交互体验的影响。因此，如果人机交互技术方案中若干技术特征之间相互协同和依存，整体地实现了某一功能并产生了相应效果，应将其作为一个整体进行创造性评述，以防止对该等技术特征进行割裂后，再从现有技术中寻找孤立和零散的对应技术特征，最后通过人为拼凑进行创造性评述。

裁判理由

法院生效裁判认为：在以提升用户体验度为核心研发目标的GUI（图形用户界面）人机交互领域，由于基础技术手段较为成熟，其技术创新往往体现在应用场景、操控对象、操作手段组合而成的整体对交互体验的影响。因此，如果人机交互技术方案中若干技术特征之间相互协同和依存，整体地实现了某一功能并产生了相应效果，应将其作为一个整体与现有技术进行对比，以防止对该等技术特征进行割裂后，再从现有技术中寻找孤立和零散的对应技术特征，最后通过相互拼凑进行创造性评述。具体到本案，本专利权利要求1所述区别特征描述了对第二方向上定向接触进行响应的操作，包括两个步骤，其一为基于定向接触将卡标识为被选择，其二为第二方向上将所选择的卡解散以关闭应用程序。该两个步骤按照顺序连贯执行，共同发挥作用，完成了使用卡隐喻应用程序的场景下关闭应用程序的功能，使得用户能够方便快捷地关闭应用程序，在创造性评述时应作为整体进行考量，而不能割裂技术特征后再进行对比。涉案对比文件虽公开了使用“擦拭”动作来关闭应用程序、窗口或媒体文件，但其交互操作的应用场景、关闭操作的对象、动作及整体过程均与区别特征限定的方式存在明显区别，均不涉及在使用卡隐喻应用程序的场景下沿着第二方向移动卡、标识所选择的卡以及解散卡以关闭应用程序，故其技术效果也存在明显差异。因此，涉案对比文件均未公开区别特征。公知常识性证据公开了“光标”拖动对象和“手写笔”拖动对象，其公开内容虽能够证明现有技术中存在拖拽移动对象的视觉显示方式，但与区别特征所限定的内容并不相同或相似，故无法据此证明区别特征为公知常识。综上，基于上述对比文件及公知常识性证据，对于本领域技术人员而言，本专利权利要求1并非显而易见，故本专利权利要求1具备创造性。

D.涉“多元置信度适配系统”发明专利确权案 ——创造性判断的直接证据与“三步法”的关系、创造性判断中 对预料不到的技术效果的考虑

当事人

美国某公司诉国家知识产权局、某互联网平台公司、某科技公司、某银行

案号

最高人民法院（2021）最高法知行终119号

合议庭成员

邵中林 | 岑宏宇 | 孔立明

关键词

行政 发明专利无效宣告 创造性 “三步法”

相关法律规定

— 《中华人民共和国专利法》（1992年修正）第22条第3款

基本案情

美国某公司系专利号为97121280.5、名称为“一种多元置信度适配系统及其相关方法”的发明专利的专利权人。2017年10月-2018年2月，某互联网平台公司、某科技公司、某银行先后分别针对本专利权提出无效宣告请求，对此国家知识产权局于2018年6月12日作出第36402号无效宣告请求审查决定（以下简称被诉决定），认为本专利不具备创造性，宣告本专利权全部无效。美国某公司不服，向北京知识产权法院提起诉讼，请求撤销被诉决定，判令国家知识产权局重新作出决定。

北京知识产权法院判决：驳回美国某公司的诉讼请求。美国某公司提出上诉，最高人民法院于2021年12月20日作出（2021）最高法知行终119号行政判决：驳回上诉，维持原判。

裁判要旨

1. 专利创造性判断中广泛使用的“三步法”是具有普适性的逻辑推演方法；基于解决长期技术难题、克服技术偏见、实现预料不到的技术效果、获得商业成功等直接证据判断创造性的方法则属于经验推定方法，两者都属于创造性判断的分析工具。运用“三步法”判断的结论是技术方案具备创造性时，一般无需再审查有关创造性直接证据；运用“三步法”判断的结论是技术方案不具备创造性时，应当审查有关创造性的直接证据，并根据基于创造性直接证据的经验推定结论复验“三步法”分析，综合考虑逻辑推演和经验推定两方面结论作出判断。

2. 基于预料不到的技术效果认定专利创造性时,专利权人应当对存在该预料不到的技术效果且其来源于相关区别技术特征承担举证责任。该预料不到的技术效果应当足以构成技术方案实际要解决的技术问题的改进目标。如果某一技术方案是解决技术问题的必然选择,即便有关技术效果难以预料,其也仅为本领域技术人员均可作出的必然选择的“副产品”,仅此尚不足以证明该技术方案具备创造性。

裁判理由

法院生效裁判认为:在专利创造性评价过程中,司法审判和行政审查实践中关于权利要求所限定的技术方案是否属于显而易见的判断,通常需要借助分析工具。常见的创造性判断分析工具一般有两类:一类是逻辑推演工具。如专利审查实践中运用最为广泛的所谓的“三步法”,即“问题——解决方案”思路,通过确定最接近的现有技术、确定发明的区别技术特征和发明实际解决的技术问题、判断要求保护的发明对本领域技术人员而言是否显而易见三个步骤,完成创造性判断。其实质是通过还原发明场景、模拟发明过程,以本领域技术人员视角对技术方案是否显而易见作出的逻辑推演。另一类是经验推定工具。如解决了一直渴望解决但始终未能解决的技术难题、克服了技术偏见、取得了预料不到的技术效果、获得了商业上的成功等(为方便起见,以下简称为经验推定因素),其是通过认定技术方案具备创造性的直接证据,并基于这些直接证据与技术方案本身的对应性或者因果关系,在适当考虑获得该技术方案困难程度的基础上,最终对技术方案是否显而易见作出的经验推定。原则上,对于同一技术方案的创造性问题,从逻辑角度和经验角度的分析应当殊途同归。技术方案的创造性未必来源于解决长期技术难题、克服技术偏见、实现预料不到的技术效果,未必带来商业成功;但解决了长期技术难题、克服了技术偏见、实现了预料不到的技术效果、获得了商业成功却是技术方案具备创造性的重要标志。逻辑推演工具的适用具有普适性,而经验推定工具则因仅涵盖了有限的几种典型情形而适用场景有限。故仅在有关创造性判断涉及前述经验推定因素时,才涉及逻辑推演和经验推定结论的协调问题。逻辑推演和经验推定结论不一致的情形一般有两种:一是“三步法”认定具备创造性,但并不存在经验意义上能够充分体现发明创造价值和效果的创造性直接证据,或者虽然存在创造性直接证据但其与有关区别技术特征缺乏对应性或者因果关联;二是“三步法”认定不具备创造性,但存在经验意义上能够充分体现发明创造价值和效果的创造性直接证据,且其与有关区别技术特征具有对应性或者因果关联。对于第一种情形而言,如前所述,因技术方案的创造性未必来源于经验推定因素,故不具备经验推定因素不足以否定技术方案的创造性,可以直接基于“三步法”结论认定技术方案具备创造性。对于第二种情形而言,则需要对“三步法”的结论进行复验。根据有关直接证据的不同,复验的重点也会有所不同:技术方案解决了长期技术难题、克服了技术偏见、获得了商业上的成功的,要重点考察“三步法”分析中,是否未充分考虑技术发展的阶段性和局限性进而错误判断了结合启示;技术方案取得了预料不到的技术效果的,则要重点考察是否错误认定了区别技术特征的技术效果,进而错误归纳了技术方案实际要解决的技术问题。如果复验结论是原先基于“三步法”的分析有误,则实现了分析结论的校准;如果复验结论是原先基于“三步法”的分析无误,则有必要再次审视,关于创造性直接证据的认定,及其与区别技术特征的对应性和因果关系认定是否有误,以及是否存在其他难以基于创造性直接证据认定创造性的情形。据此,原则上,当“三步法”结论是技术方案具备创造性时,无需再审查有关创造性直接证据;当“三步法”结论是技术方案不具备创造性时,应当审查有关创造性直接证据,并根据基于创造性直接证据的经验推定结论复验“三步法”分析,综合考虑逻辑推演和经验推定两方面结论,作出判断。

基于预料不到的技术效果认定专利创造性而言:首先,有关证明责任应当由专利权利人或者申请人承担,其至少应当证明存在预料不到的技术效果,且该预料不到的技术效果来源

于有关区别技术特征。其次，预料不到的技术效果认定中的判断时点应当是申请日或者优先权日，比对基准应当是最接近现有技术而非现有技术整体，判断主体应当是本领域技术人员。最后，预料不到的技术效果应当足以构成技术方案实际要解决的技术问题的改进对象。换言之，该预料不到的技术效果应当构成技术方案选择的重要考量或者重要目标。如果某一技术方案是解决技术问题的必然选择，即便有关技术效果难以预料，该技术效果也仅为本领域技术人员均可作出的必然选择的副产品，其不能成为必然选择技术方案的创造性来源。

本案中，美国某公司作为专利权利人主张本专利权利要求1所限定的技术方案因取得了简化输入、简化权重、简化需求、简化检索等预料不到的技术效果而具备创造性，其应就存在上述技术效果、上述技术效果达到不可预料的程度，以及上述技术效果与有关区别技术特征之间的对应关系承担证明责任。对上述技术效果及其与区别技术特征的对应关系，专利说明书中没有明确具体的记载，美国某公司在本案行政审查阶段和一审期间均未提出此主张，只是在上诉理由和二审庭审中才提出有关主张，但并未举证证明其所主张的技术效果确实存在，更未能够证明所谓的技术效果与最接近的现有技术相比达到了本领域技术人员不可预料的程度。

E. “替格瑞洛”药品发明专利确权案 ——药品专利确权程序中对补充实验数据的接受

当事人

瑞典某公司诉国家知识产权局、深圳某药业公司

案号

最高人民法院 (2019) 最高法知行终33号

合议庭成员

王闯 | 朱理 | 罗霞

关键词

行政 发明专利权无效宣告 药品专利 补充实验数据

相关规定

- 《中华人民共和国专利法》(2008年修正)第22条
- 《最高人民法院关于审理专利授权确权行政案件适用法律若干问题的规定(一)》第10条

基本案情

瑞典某公司系专利号为200610002509.5、名称为“三唑并[4, 5-D]嘧啶化合物的新晶形和非晶形”的发明专利(本专利)的权利人。深圳某药业公司请求宣告本专利无效,其主要理由是本专利权利要求1-4不具备创造性。为证明本专利具备创造性,瑞典某公司提交了补充实验数据,拟证明本专利因具有说明书所载“令人惊讶的高代谢稳定性”这一本领域技术人员预料不到的技术效果而具备创造性。国家知识产权局认为,瑞典某公司所提交的补充实验数据不应被接受,且即便接受也不能证明上述技术效果,本专利不具备创造性,遂作出第33975号无效宣告请求审查决定(以下称被诉决定),宣告本专利权利要求1-4无效。瑞典某公司不服,提起行政诉讼。

北京知识产权法院判决:驳回瑞典某公司的诉讼请求。瑞典某公司不服一审判决,向最高人民法院提起上诉,请求撤销一审判决和被诉决定。最高人民法院认为被诉决定及一审判决关于补充实验数据不应被接受的认定有误,但其关于本专利不具备创造性的结论正确,于2020年10月26日作出(2019)最高法知行终33号行政判决:驳回上诉,维持原判。

裁判要旨

药品专利申请人或者权利人在申请日以后提交补充实验数据，主张该数据能够证明专利申请或者专利具备创造性、专利权利要求能够得到说明书支持的，人民法院应当予以审查。原专利申请文件明确记载或者隐含公开了补充实验数据拟直接证明的待证事实，且申请人并非通过补充实验数据弥补原专利申请文件的固有内在缺陷的，应当接受该补充实验数据，并进一步审查其是否能够证明待证事实。

裁判理由

法院生效裁判认为：基于对现有技术的认知差异、对技术方案发明点的理解不同、对本领域技术人员认知水平的把握不一致等，申请人在原申请文件中未记载特定实验数据的情形恐难避免。例如，就创造性而言，化合物药品的创造性既可以基于化合物本身的结构或者形态，也可以基于化合物药品的药效。其中，药效既可以是药物用途，即适应症；也可以是药物效果，即药物活性、药物毒性、药物稳定性、控释速度等。上述任何一个方面非显而易见的技术贡献，都可以作为确定技术方案实际解决的技术问题的依据，使技术方案满足专利授权的创造性要求，申请人在申请日或者优先权日准确预知发明点存在困难。即便申请人对发明点作出了准确预判，因针对同一技术问题，基于对现有技术的不同理解和对最接近现有技术的选择，证明显而易见技术贡献所需的事实和数据也可能不同。因此，专利申请人需要依靠在申请日或者优先权日之后提交的补充实验数据证明其专利申请符合授权条件。对于专利申请人在申请日之后提交的补充实验数据，应当予以审查。

为避免补充实验数据的接受使专利权人不正当地取得先申请的利益，对于补充实验数据的接受应当着重审查下列问题：

首先，原专利申请文件应当明确记载或者隐含公开了补充实验数据拟直接证明的待证事实，此为积极条件。如果补充实验数据拟直接证明的待证事实为原专利申请文件明确记载或者隐含公开，即可认定申请人完成了相关研究，有关补充实验数据的接受不违反先申请原则。申言之，既不能仅仅因为原专利申请文件记载了待证事实而没有记载相关实验数据，即推定申请人构成以获取不当利益为目的的不实记载，当然拒绝接受有关补充实验数据；也不能以申请人或有可能作不实记载为由，当然地要求其所提交的补充实验数据形成于申请日或者优先权日之前。本案中，原申请文件说明书“背景技术”部分第0005段明确记载了补充实验数据的待证事实，即“令人惊讶的高代谢稳定性和生物利用率”。原审判决以该记载位于“背景技术”部分，且原专利申请文件未记载支持这一技术效果的实验数据为由，对瑞典某公司提交的补充实验数据不予接受，缺乏依据。

其次，申请人不能通过补充实验数据弥补原专利申请文件的固有内在缺陷，此为消极条件。所谓不能通过补充实验数据弥补原专利申请文件的固有内在缺陷，意在强调补充实验数据通常应当通过证明原专利申请文件明确记载或者隐含公开的待证事实具备真实性，进而对申请人或者专利权人最终要证明的法律要件事实起到补充证明作用，而非独立证明原专利申请文件中未予公开的内容，进而克服原专利申请文件自身公开不充分等内在缺陷。本案中，瑞典某公司提供的补充实验数据拟通过证明待证事实的真实性，来补充证明最终要证明的法律要件事实，即权利要求1具备创造性，故该补充实验数据并非用于克服原专利申请文件的内在缺陷，应予接受。

此外，原审判决认定不应接受本案补充实验数据的理由还包括反证5系与瑞典某公司有利害关系的证人自行完成的实验，且缺乏其他证据佐证。对此，药物研发领域，尤其是新药研发中，研发主体相对集中。因此，补充实验数据的来源也相对集中。有关补充实验数据的提供者与专利申请人或者专利权人具有雇佣等利害关系，符合研发规律和研发实践，其不应构成对补充实验数据不予采纳的绝对理由。

因该补充实验数据不能证明权利要求1的化合物具有“令人惊讶的高代谢稳定性和生物利用率”，进而不能证明权利要求1的化合物具有预料不到的技术效果，权利要求1不具备创造性，故在纠正原审判决法律适用错误的基础上，驳回上诉，维持原判。

F. “石墨放电隙装置”发明专利确权案 ——多变量方程式限定的权利要求的说明书公开充分判断

当事人

深圳某公司诉国家知识产权局、四川某公司

案号

最高人民法院（2021）最高法知行终1071号

合议庭成员

邓卓 | 张新锋 | 徐飞

关键词

行政 发明专利权无效宣告 多变量 权利要求 说明书公开充分

相关法律规定

— 《中华人民共和国专利法》（2000年修正）第26条第3款

基本案情

四川某公司系专利号为200710049004.9、名称为“高效层叠式石墨放电隙装置”的发明专利的专利权人。2020年1月21日，深圳某公司请求国家知识产权局宣告该专利权全部无效。2020年9月2日，国家知识产权局作出第46045号无效宣告请求审查决定，认为本专利具备创造性，维持该专利权有效。深圳某公司不服，向北京知识产权法院提起诉讼，请求撤销被诉决定并判令国家知识产权局重新作出决定。

北京知识产权法院判决：驳回深圳某公司的诉讼请求。深圳某公司提出上诉，最高人民法院于2023年11月22日作出（2021）最高法知行终1071号行政判决：一、撤销北京知识产权法院（2020）京73行初15901号行政判决；二、撤销国家知识产权局作出的第46045号无效宣告请求审查决定；三、国家知识产权局针对深圳某公司就专利号为200710049004.9、名称为“高效层叠式石墨放电隙装置”的发明专利所提出的无效宣告请求重新作出审查决定。

裁判要旨

对于以包含两个以上变量的方程式限定的权利要求，说明书未明确界定各变量的数值选取、各变量之间的关系、数值选取与技术效果之间的关系，以至于本领域技术人员阅读权利要求和说明书后，仍需要付出创造性劳动或者过度劳动才能解决技术问题、实现技术效果，当事人据此主张说明书公开不充分的，人民法院可予支持。

裁判理由

法院生效裁判认为：权利要求发挥着限定专利权保护范围的作用，说明书承担着公开权利要求中请求保护的发明创造的使命。权利要求书应当以说明书为依据，权利要求书中的每一项权利要求所要求保护的技术方案应当是所属技术领域的技术人员能够从说明书充分公开的内容中得到或概括得出的技术方案，并且不得超出说明书公开的范围。说明书对发明或者实用新型作出的清楚、完整的说明，应当达到所属技术领域的技术人员能够实现的程度。所属技术领域的技术人员能够实现，是指所属技术领域的技术人员按照说明书记载的内容，就能够实现该发明或者实用新型的技术方案，解决其技术问题，并且产生预期的技术效果。如果权利要求包含了两个以上的特性值技术变量即参数的方程式限定的技术特征，那么在该发明的说明书中，对该方程式所选定的数值范围与所取得技术效果之间的关系应当明确记载。在该方程式所涉及的相关参数的数值范围内，原则上所有数值均应达到不需要付出创造性劳动或者过度劳动就能实现所期望的技术效果的公开程度，能够使本领域技术人员在将发明实施时知道其所确定的参数的数值或者数值区间是否解决了技术问题并达到了说明书声称的技术效果，而不是仅仅按照其说明书记载的具体实施例的公开的数值才能获得相应的技术效果。进一步而言，判断充分公开涉及确定参数的方法的说明时，方法越不常规，越应当在说明书中提供清晰、详尽的信息。如果参数信息不清楚，从而使得本领域技术人员无法基于整体公开的内容并使用普通技术知识来识别解决该专利问题的必要技术手段，则可以认定说明书没有达到公开充分的要求。

该专利权利要求1请求保护的技术方案为：一种高效层叠式石墨放电隙装置，包括N+1个放电隙、N个电容值相同的电容构成的 π 形连接电容组（1），所述 $N \geq 1$ ，各放电隙串联连接，其中，第一个放电隙F1与火线连接，最末一个放电隙FN+1接地， π 形连接电容组中各电容的一端与两放电隙之间的导电件连接，另一端接地；放电隙为石墨放电隙，石墨放电隙的石墨电极片（6）之间放置绝缘环状垫片（9），各石墨放电隙层叠式组装； π 形连接电容组中各电容的电容值均按照下式选择： $C = I_n / 2\pi fVK$ ；式中： I_n 为 π 形连接电容组中电容上的感应放电电流， $I_n = I/N$ ， I 为 π 形连接电容组总电流， N 为 π 形连接电容组电容个数， f 为雷电波频率， V 为 π 形连接电容组中电容上的额定电压， K 为安全系数， $K \geq 1$ 。

根据该专利说明书公开的内容可知，该专利要解决的关键技术问题是给出适用于不同雷电波形的石墨放电隙电容值的计算方法，特别是解决其计算的不确定性问题。其达到的技术效果是：“按照本发明所提供的电容值选择公式，一旦确定装置的 V （可选择较低的限制电压），选择比较小（安全）电容放电电流 I_n ，根据雷电测试波形估算出频率 f ，即可计算出 π 形连接电容组中各电容的值，因而，该公式的操作性强，并适用于在 $8/20\mu s$ 、 $10/350\mu s$ 、 $1.2/50\mu s$ 等雷电波形冲击下使用。”

根据专利侵权诉讼（2020）最高法知民终329号民事判决认定的事实，四川某公司认可相关电容是“市场通用产品”。按照该专利说明书的记载，本领域技术人员根据方程式中 $I_n / 2\pi fVK$ 给出的参数的数值范围，可以便捷简易确定地计算出电容 C 的数值。但是，本领域技术人员在选择雷电波频率 f 和安全系数 K 时，不能依据技术常识就知晓如何在几何级数范围内变动的雷电波频率中选择相应的数值，也无法知晓 K 在所述“正极性162、负极性192、负极性1588、正极性121和负极性117（ $8/20\mu s$ 电流波形）、1040（ $10/350\mu s$ ）”的如此巨大的范围内如何选择相应的数值。如果本领域技术人员可以从上述范围宽泛的数值区间内选择确定限定电容数值的计算参数，则上述数值范围的区间不是有限区间，而是在“ $K \geq 1$ ”“雷电波频率”因时间地域而变化的无限区间，进而得出的电容的电容值也是位于无限区间内的数值。

在该专利说明书中,在技术方案限定电容组中各电容的电容值的选择时,选择 $K \geq 1$,而在实施例中采用了 K 等于2或3,对于 K 的开放区间没有进一步给出选择的依据;同时在该专利说明书中定义 f 为雷电波频率,在实施例中统一采用了 $f \approx 18 \times 10^3 \text{Hz}$,没有进一步说明对于不同雷电波形如此选择的依据。在(2020)最高法知民终329号案中,四川某公司认为,在构成侵权的产品的电容值的选择时,通过测量 C 的数值后,根据公式计算出 K 的取值为正极性162、负极性192、负极性1588、正极性121和负极性117(8/20 μs 电流波形)、1040(10/350 μs),和该专利说明书记载的实施例中选择的 K 等于2或3差异巨大,也没有说明如何选择这些 K 的数值并据此计算出相应的电容值。并且在认定侵权产品的技术特征时,四川某公司也未给出选择安全系数 K 值和雷电波频率 f 的具体选择依据,仅仅解释其为经验公式。而在无效宣告行政程序中,四川某公司没有在说明书中给出清楚解释,使得本领域技术人员能够无需付出创造性劳动或者过度劳动就可以在合理范围内选择安全系数 K 、雷电波频率 f 的取值。本领域技术人员也不能通过有限次的实验,来选择安全系数 K 、雷电波频率 f 的具体取值,进而通过公式 $C = \ln / 2\pi fVK$ 确定可以参考使用的电容值。而按照本发明给出的计算公式 $C = \ln / 2\pi fVK$,参数的 f 、 K 的选择对于最终电容值的计算结果具有不可忽略的显著影响。对于本领域技术人员来说,该专利给出的方法无法消除电容值计算的不确定性。故该专利权利要求1限定的选择电容组中各电容的电容值的技术手段不能解决说明书中提出的技术问题,没有达到其声称的具有较强操作性来确定电容组中各电容的数值的技术效果。

G.涉“绿脓杆菌”发明专利确权案 ——创造性判断中关于生物材料保藏的考量

当事人

戴某良诉国家知识产权局、某生物制药公司

案号

最高人民法院 (2019) 最高法知行终16号

合议庭成员

焦彦 | 余朝阳 | 魏磊

关键词

行政 发明专利无效宣告 创造性 生物材料保藏

相关法律规定

- 《中华人民共和国专利法实施细则》(2010年修订) 第24条

基本案情

某生物制药公司系专利号为200510059850.X, 名称为“绿脓杆菌甘露糖敏感血凝菌毛株”的发明专利(以下简称本专利)的专利权人。2016年2月22日, 戴某良针对本专利权提出无效宣告请求, 国家知识产权局于2016年8月10日作出第29970号无效宣告请求审查决定(以下简称被诉决定), 认为本专利具备创造性, 维持本专利权有效。戴某良不服, 向北京知识产权法院提起诉讼, 请求撤销被诉决定, 判令国家知识产权局重新作出决定。

北京知识产权法院判决: 驳回戴某良的诉讼请求。戴某良提出上诉, 最高人民法院于2019年8月15日作出(2019)最高法知行终16号行政判决: 驳回上诉, 维持原判。

裁判要旨

对比文件仅公开了相同或相近的筛选、突变等手段的制备方法, 并未对制备出的生物材料进行保藏, 本领域普通技术人员不能通过重复该制备方法以及其他途径获得本专利请求保护的生物材料, 且无动机改进制备方法以获得该生物材料的情况下, 专利申请请求保护的生物材料相对于该对比文件具备创造性。

裁判理由

法院生效裁判认为：《中华人民共和国专利法实施细则》（2010年修订）第二十四条规定，申请专利的发明涉及新的生物材料，该生物材料公众不能得到，并且对该生物材料的说明不足以使所属领域的技术人员实施其发明的，除应当符合专利法和本细则的有关规定外，申请人还应当在申请日前或者最迟在申请日（有优先权的，指优先权日），将该生物材料的样品提交国务院专利行政部门认可的保藏单位保藏。

根据上述规定，对于涉及生物材料的发明创造技术方案的创造性评判，如果本专利请求保护的生物材料通过不能再现的筛选、突变等手段制备得来，能够产生有益效果，并且进行了保藏；而在对比文件中仅公开了相同或相近的筛选、突变等手段的制备方法，但并未对制备出的生物材料进行保藏，即本领域技术人员不能通过重复该对比文件中的制备方法而获得本专利请求保护的生物材料。此时，应当认定本专利请求保护的生物材料并未被该对比文件公开，在无证据表明本领域技术人员能够通过其他途径获得该生物材料或者有动机改进制备方法以获得该生物材料的情况下，本专利请求保护的生物材料相对于该对比文件公开的技术方案具备创造性。

本案中，证据1公开了一种绿脓杆菌菌毛株的获得方法和特性，该证据中记载了与本发明基本相同的菌株获得方法，并且该菌株也具有甘露糖敏感血凝菌毛（MSHA）。本专利权利要求1中记载了菌株的保藏号CGMCC0190，而证据1没有公开该菌株被保藏，无任何保藏信息。此时，不宜简单地将有无保藏号当作区别特征进行认定，而应当考量证据1对其中所描述菌株的公开程度和该菌株的可获得性，以判断本领域技术人员是否能够通过证据1的描述而获得该菌株或有动机制备得到该菌株。

首先，证据1中没有公开所述绿脓杆菌MSHA菌毛株的保藏信息，也未记载可购买的商业渠道或发放渠道，因此，没有证据显示证据1的菌株能够通过商品或成品形式为公众所获得而成为现有技术。其次，证据1中公开的建株方法包括多个随机和偶然因素，包括用于建株野生菌株来源的随机性、减毒过程的随机性、基因工程与筛选方法的随机性。由此可见，尽管证据1记载了绿脓杆菌甘露糖敏感血凝菌毛株的制备方法，但是由于其中包括了产生随机突变的多个步骤，即使清楚记载了所述步骤的条件和过程等信息，也无法通过重复该步骤而得到确定相同的结果。故本领域技术人员没有动机进行重复实验证据1所公开的绿脓杆菌甘露糖敏感血凝菌毛株建株方法来获得本专利所保护的菌株。原告戴某良也未能提供证据证明重复证据1的方法能够克服随机因素从而获得具有所述甘露糖敏感血凝菌毛的菌株。再次，本专利说明书中记载了所述菌株的免疫原性，证实了其有益效果，同时对甘露糖敏感血凝菌毛株进行了《中华人民共和国专利法》规定的微生物保藏，相对于现有技术做出了贡献。综上所述，本专利权利要求1-4相对于证据1具有突出的实质性特点和显著的进步，具备创造性。

H. “静脉用药自动配制设备”专利权权属案——职务发明的权属认定

当事人

深圳市某邦科技有限公司诉李某、深圳市某程智能设备有限公司

案号

最高人民法院 (2019) 最高法民申6342号

合议庭成员

杜微科 | 吴蓉 | 张玲玲

关键词

民事 专利权权属 职务发明创造 有关的发明创造

相关法律规定

- 《中华人民共和国专利法》第6条
- 《中华人民共和国专利法实施细则》第12条

基本案情

深圳市某邦科技有限公司（以下简称某邦公司）是一家专业从事医院静脉配液系列机器人产品及配液中心相关配套设备的研发、制造、销售及售后服务的高科技公司。2010年2月至2016年7月期间，某邦公司申请的多项专利均涉及自动配药设备和配药装置。其中，某邦公司于2012年9月4日申请的10284710284747XAA号专利（以下简称47X专利）主要用于注射科药液自动配置。

李某某于2012年9月24日入职某邦公司生产、制造部门，并与某邦公司签订《深圳市劳动合同》《员工保密合同》，约定由李某某担任该公司生产制造部门总监，主要工作是负责研发“输液配药机器人”相关产品。李某某任职期间，曾以部门经理名义在研发部门采购申请表上签字，在多份加盖“受控文件”的技术图纸审核栏处签名，相关技术图纸内容涉及“沙窝复合针装配”“蠕动泵输液针”“蠕动泵上盖连接板实验”“装配体”“左夹爪”“右夹爪”“机械手夹爪1”“机械手夹爪2”等，系有关自动配药装置的系列设计图。此外，某邦公司提供的工作邮件显示，李某某以工作邮件的方式接收研发测试情况汇报，安排测试工作并对研发测试提出相应要求。且从邮件内容可知，李某某多次参与研发方案的会议讨论。

李某某与某邦公司于2013年4月17日解除劳动关系。李某某于2013年7月12日向国家知识产权局申请名称为“静脉用药自动配制设备和摆动型转盘式配药装置”、专利号为201310293690.X的发明专利（以下简称涉案专利）。李某某为涉案专利唯一的发明人。涉案专利技术方案的主要内容是采用机器人完成静脉注射用药配制过程的配药装置。李某某于2016年2月5日将

涉案专利权转移至其控股的深圳市某程智能设备有限公司（以下简称某程公司）。李某某在入职某邦公司前，并无从事与医疗器械、设备相关的行业从业经验或学历证明。

某邦公司向一审法院提起诉讼，请求：1.确认涉案专利的发明专利权归某邦公司所有；2.判令李某某、某程公司共同承担某邦公司为维权所支付的合理开支3万元，并共同承担诉讼费。一审法院认为，李某某在离职后一年内作出涉案专利，某邦公司已举证证明涉案专利与李某某的本职工作或者原单位分配的任务有关，故一审法院认定涉案专利为职务发明创造，该专利应属于某邦公司所有。一审法院判决：一、确认某邦公司为涉案专利的专利权人；二、李某某、某程公司应于判决生效之日起十日内共同向某邦公司支付合理支出30000元。李某某、某程公司不服，提起上诉。二审法院判决：驳回上诉、维持原判。李某某、某程公司不服，向最高人民法院申请再审。最高人民法院于2019年12月31日作出（2019）最高法民申6342号民事裁定驳回了李某某、某程公司的再审申请。

裁判要旨

判断是否属于《中华人民共和国专利法实施细则》第十二条第一款第三项规定的与在原单位承担的本职工作或者原单位分配的任务“有关的发明创造”时，应注重维护原单位、离职员工以及离职员工新任职单位之间的利益平衡，综合考虑以下因素作出认定：一是离职员工在原单位承担的本职工作或原单位分配的任务的具体内容；二是涉案专利的具体情况及其与本职工作或原单位分配的任务的相互关系；三是原单位是否开展了与涉案专利有关的技术研发活动，或者有关的技术是否具有合法来源；四是涉案专利（申请）的权利人、发明人能否对专利技术的研发过程或者来源作出合理解释。

裁判理由

法院生效裁判认为：本案的争议焦点为涉案专利是否属于李某某在某邦公司工作期间的职务发明创造。

《中华人民共和国专利法》第六条规定：“执行本单位的任务或者主要是利用本单位的物质技术条件所完成的发明创造为职务发明创造。职务发明创造申请专利的权利属于该单位。”

《中华人民共和国专利法实施细则》第十二条第一款第三项进一步规定：“退休、调离原单位后或者劳动、人事关系终止后1年内作出的，与其在原单位承担的本职工作或者原单位分配的任务有关的发明创造属于职务发明创造。”

发明创造是复杂的智力劳动，离不开必要的资金、技术和研发人员等资源的投入或支持，并承担相应的风险。在涉及与离职员工有关的职务发明创造的认定时，既要维护原单位对确属职务发明创造的科学技术成果享有的合法权利，鼓励和支持创新驱动发展，同时也不宜将《中华人民共和国专利法实施细则》第十二条第一款第三项规定的“有关的发明创造”作过于宽泛的解释，导致在没有法律明确规定或者竞业限制协议等合同约定的情况下，不适当地限制研发人员的正常流动，或者限制研发人员在新的单位合法参与或开展新的技术研发活动。因此，在判断涉案发明创造是否属于《中华人民共和国专利法实施细则》第十二条第一款第三项规定的“有关的发明创造”时，应注重维护原单位、离职员工以及离职员工新任职单位之间的利益平衡，综合考虑以下因素：一是离职员工在原单位承担的本职工作或原单位分配的任务的具体内容，包括工作职责、权限，能够接触、控制、获取的与涉案专利有关的技术信息等。二是涉案专利的具体情况，包括其技术领域，解决的技术问题，发明目的和技术效果，权利要求限定的保护范围，涉案专利相对于现有技术的“实质性特点”等，以

及涉案专利与本职工作或原单位分配任务的相互关系。三是原单位是否开展了与涉案专利有关的技术研发活动,或者是否对有关技术具有合法的来源。四是涉案专利(申请)的权利人、发明人能否对于涉案专利的研发过程或者技术来源作出合理解释,相关因素包括涉案专利技术方案复杂程度,需要的研发投入,以及权利人、发明人是否具有相应的知识、经验、技能或物质技术条件,是否有证据证明其开展了有关研发活动等。

结合本案一、二审法院查明的有关事实以及再审申请人提交的有关证据,围绕前述四个方面的因素,就本案争议焦点认定如下:

首先,关于李某某在某邦公司任职期间承担的本职工作或分配任务的具体内容。第一,李某某于某邦公司任职期间担任生产制造总监,直接从事配药设备和配药装置的研发管理工作。其在再审申请书中,也认可其从事了“研发管理工作”。第二,李某某在某邦公司任职期间,曾以部门经理名义,在研发部门采购申请表上签字,并在多份与涉案专利技术密切相关且加盖有“受控文件”的技术图纸审核栏处签字。第三,李某某多次参与某邦公司内部与用药自动配药设备和配药装置技术研发有关的会议或讨论,还通过电子邮件接收研发测试情况汇报,安排测试工作,并对研发测试提出相应要求。综上,根据李某某在某邦公司任职期间承担的本职工作或分配的任务,其能够直接接触、控制、获取某邦公司内部与用药自动配制设备和配药装置技术研发密切相关的技术信息,且这些信息并非本领域普通的知识、经验或技能。因此,李某某在某邦公司承担的本职工作或分配的任务与涉案专利技术密切相关。对于李某某有关其仅仅是进行研发管理,没有参与某邦公司有关静脉配药装置的研发工作,某邦公司的相关证据都不是真正涉及研发的必要文件等相关申请再审理由,均不予支持。

其次,关于涉案专利的具体情况及其与李某某的本职工作或分配任务的相互关系。第一,涉案专利涉及“静脉用药自动配制设备和摆动型转盘式配药装置”,其针对的技术问题是:

“1.药剂师双手的劳动强度很大,只能进行短时间的工作;2.由于各药剂师技能不同、配药地点也不能强制固定,造成所配制的药剂药性不稳定;3.化疗药剂对药剂师健康危害较大。”实现的技术效果是:“本发明采用机器人完成静脉注射用药的整个配制过程,采用机电一体化来控制配制的药剂量准确,提高了药剂配制质量;医务人员仅需要将预先的药瓶装入转盘工作盘和母液架,最后将配制好的母液瓶取下,极大地减少了医务人员双手的劳动强度;对人体有害的用药配制(比如化疗用药),由于药剂师可以不直接接触药瓶,采用隔离工具对药瓶进行装夹和取出,可以很大程度地减少化疗药液对人体的健康损害。”在涉案专利授权公告的权利要求1中,主要包括底座、转盘工作台、若干个用于固定药瓶的药瓶夹、具座、转盘座、转盘传动机构和转盘电机、近后侧的转盘工作台两边分别设有背光源和视觉传感器、机器人、夹具体、输液泵、输液管、针具固定座、针具夹头、前后摆动板、升降机构等部件。第二,某邦公司于2012年9月4日申请的47X专利的名称为“自动化配药系统的配药方法和自动化配药系统”,其针对的技术问题是:“医院中配制药物的方式均通过医护人员手工操作。……操作时医护人员工作强度高,而且有的药物具有毒性,对医护人员的安全有着较大的威胁。”发明目的是:“在于克服上述现有技术的不足,提供一种自动化配药系统的配药方法和自动化配药系统,其可实现自动配药,医护人员无需手动配制药液,大大降低了医护人员的劳动强度,有利于保障医护人员的健康安全。”实现的技术效果是:“提供一种自动化配药系统的配药方法和自动化配药系统,其可快速完成多组药液的配制,提高了配药的效率,大大降低了医护人员的劳动强度,有利于保障医护人员的健康安全。”47X专利的说明书中,还公开了“药液输入摇匀装置”“卡夹部件”“输液软管装填移栽及药液分配装置”“用于折断安瓿瓶的断瓶装置”“母液瓶夹持装置”“母液瓶”“可一次容纳多个药瓶的输入转盘”等部件的具体结构和附图。将涉案专利与某邦公司的47X专利相比,二者解决的技术问题、发明目的、技术效果基本一致,二者技术方案高度关联。二审法院结合涉案

专利的审查意见、引证专利检索，认定47X专利属于可单独影响涉案专利权利要求的新颖性或创造性的文件，并无不当。第三，在某邦公司提供的与李某某的本职工作有关的图纸中，涉及“输入模块新盖”“沙窝复合针装配”“蠕动泵输液针”“蠕动泵上盖连接板实验”“装配体”“左夹爪”“右夹爪”“机械手夹爪1”“机械手夹爪2”等与涉案专利密切相关的部件，相关图纸上均加盖“受控文件”章，在“审核”栏处均有李某某的签字。第四，在李某某与某邦公司有关工作人员的往来电子邮件中，讨论的内容直接涉及转盘抱爪、母液上料方案、安瓿瓶掰断测试等与涉案专利技术方案密切相关的研发活动。综上，涉案专利与李某某在某邦公司承担的本职工作或分配的任务密切相关。

再次，某邦公司在静脉用药自动配制设备领域的技术研发是持续进行的。某邦公司成立于2002年，经营范围包括医院静脉配液系列机器人产品及配液中心相关配套设备的研发、制造、销售及售后服务。其在2010年2月至2016年7月期间先后申请了60余项涉及医疗设备、方法及系统的专利，其中44项专利是在李某某入职某邦公司前申请，且有多项专利涉及自动配药装置。因此，对于李某某主张某邦公司在其入职前已经完成了静脉配药装置研发工作，涉案专利不属于职务发明创造的相关申请再审理由，不予支持。

最后，关于李某某、某程公司能否对涉案专利的研发过程或者技术来源作出合理解释。根据涉案专利说明书，涉案专利涉及“静脉用药自动配制设备和摆动型转盘式配药装置”，共有13页附图，约60个部件，技术方案复杂，研发难度大。李某某作为涉案专利唯一的发明人，在离职某邦公司后不到3个月即以个人名义单独申请涉案专利，且不能对技术研发过程或者技术来源做出合理说明，不符合常理。而且，根据二审法院的认定，以及李某某一审提交的专利搜索网页打印件及自制专利状况汇总表，李某某作为发明人，最早于2013年7月12日申请了涉案专利以及201320416724.5号“静脉用药自动配制设备和采用视觉传感器的配药装置”实用新型专利，而在此之前，本案证据不能证明李某某具有能够独立研发涉案专利技术方案的知识水平和能力。

综上，综合考虑本案相关事实以及李某某、某程公司再审中提交的有关证据，一、二审法院认定涉案专利属于李某某在某邦公司工作期间的职务发明创造并无不当。李某某、某程公司的申请再审理由均不能成立。

I.涉电子商务平台侵害发明专利权案 ——电子商务平台通知-删除规则的适用

当事人

深圳某某公司诉广州某某公司、杭州某某公司

案号

最高人民法院 (2019) 最高法民申5954号

合议庭成员

佟姝 | 毛立华 | 戴怡婷

关键词

民事 侵害发明专利权 电子商务平台 通知 必要措施

相关法律规定

- 《中华人民共和国侵权责任法》第36条

基本案情

深圳某某公司系名称为“用于数据处理系统的快闪电子式外存储方法及其装置”发明专利的专利权人。深圳某某公司在某某网站上广州某某公司开设的店铺购买了被诉侵权的优盘。2016年7月1日,深圳某某公司将广州某某公司及杭州某某公司诉至法院。杭州某某公司是某某网站的经营者。2016年7月7日,深圳某某公司就广州某某公司的被诉侵权行为向杭州某某公司发出《律师函》,请杭州某某公司撤销被诉侵权产品并删除涉嫌侵权的网页内容。杭州某某公司签收了前述《律师函》。并回函称投诉收悉,由于投诉所涉情况已在诉讼中,平台会在收到法院判决后第一时间按照法院判决维护投诉方权益。2016年8月8日,深圳某某公司向杭州某某公司提交了侵权对比分析表。2016年8月9日,杭州某某公司转通知广州某某公司其已被深圳某某公司投诉。广州某某公司收到转通知后回复“我司正在准备材料中,准备好后第一时间发过去”。杭州某某公司于2016年8月10日对深圳某某公司发送通知的链接进行了核实,均显示商品已下架。2017年4月6日,广州某某公司的网店上仍有被诉侵权产品在展示,深圳某某公司进行公证。

一审法院认为,杭州某某公司作为网络服务提供者,未采取必要措施,造成损失扩大,一审法院判决,判令杭州某某公司对广州某某公司应承担的赔偿额中的2万元承担连带赔偿责任。杭州某某公司及广州某某公司不服,提起上诉。二审法院判决:驳回上诉、维持原判。杭州某某公司不服,向最高人民法院申请再审。最高人民法院于2021年11月11日作出(2019)最高法民申5954号民事裁定,驳回杭州某某公司的再审申请。

裁判要旨

有效通知一般包括知识产权权利证明及有效的权利人信息、能够实现准确定位的被诉侵权商品或服务信息、构成侵权的初步证据、要求采取的具体措施、通知真实性的书面保证等。认定有效通知应考虑权利类型、作为网络服务提供者的电子商务平台经营者的监管能力以及平台性质等因素。转通知是电子商务平台经营者承担的最低义务，转通知后是否还需要进一步采取必要措施，仍需要结合通知内容作出判断。

裁判理由

最高人民法院审查认为，有效通知一般包括知识产权权利证明及有效的权利人信息、能够实现准确定位的被诉侵权商品或服务信息、构成侵权的初步证据、要求采取的具体措施、通知真实性的书面保证等。认定有效通知应考虑权利类型、作为网络服务提供者的电子商务平台经营者的监管能力以及平台性质。不同权利类型的侵权判断难易程度不同，电子商务平台经营者的监管能力不同，不同平台形式的监管难度也存有差异。因此，针对不同的权利类型与不同性质的平台和电子商务平台经营者，发出有效通知的标准也会有差别。对于涉及专利权的通知，在平台治理规则的框架下，有效通知可以包括技术特征或设计特征对比表、实用新型或外观设计专利权评价报告等材料。电子商务平台经营者应积极履行转通知的义务，当通知达到能够转送的最低限度时就应当完成转送。深圳某某公司提交的侵权对比表符合杭州某某公司制定的知识产权平台治理规则，也符合此前投诉的惯例。在深圳某某公司发出的律师函，记载投诉产品及位置信息，并附有深圳某某公司的专利证书、说明书以及登记簿的情况下。即使作为平台经营者的杭州某某公司认为该侵权初步证据的证明力尚未达到有效通知的标准，亦应给出回复，以实现信息交流的顺畅。因此，二审判决认定深圳某某公司的涉案通知构成有效通知并无不当。转通知是电子商务平台经营者承担的最低义务，转通知后是否还需要进一步采取必要措施，仍需要进一步结合通知内容作出判断。杭州某某公司虽然履行了转通知义务，但并不能因此证明其采取了必要措施。广州某某公司未提出不侵权的反通知。杭州某某公司并不能据此证明其无须采取任何措施已能够较大可能防止侵权行为发生。对于广州某某公司自动下架后又上架的行为，相对于深圳某某公司，由杭州某某公司承担监管责任的社会成本更低。如果权利人需持续关注平台内经营者是否就同一产品重复上架，则可能使权利人陷入循环往复的投诉，通知-删除规则也将形同虚设。而杭州某某公司作为电子商务平台经营者可以通过平台治理规则有效避免此种情形。同时，杭州某某公司作为电子商务平台，对平台内经营者的重复侵权行为应负有更高的注意义务，避免平台内经营者利用此类手段规避法律责任。而且，杭州某某公司未提供证据证明深圳某某公司提交公证书证明被诉侵权商品再次上架后，其采取了必要措施避免损失进一步扩大。

J. “吸纳式充电装置”实用新型专利侵权案 ——划分权利要求的技术特征时应将能够实现一种相对独立的技术功能的技术单元作为一个技术特征

当事人

深圳某甲科技公司诉深圳某乙科技公司

案号

最高人民法院 (2019) 最高法民再348号

合议庭成员

秦元明 | 郎贵梅 | 马秀荣

关键词

民事 侵害实用新型专利权 技术特征 保护范围

相关法律规定

- 《中华人民共和国专利法》(2008年修正) 第59条
- 《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释》第2条、第7条
- 《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释(二)》第8条
- 《最高人民法院关于审理专利纠纷案件适用法律问题的若干规定》(2015年修正) 第8条

基本案情

深圳某甲科技公司向一审法院起诉请求: 1. 深圳某乙科技公司立即停止制造、销售、许诺销售、使用被诉侵权产品, 并销毁在用被诉侵权产品及专用模具; 2. 深圳某乙科技公司赔偿深圳某甲科技公司经济损失85万元以及合理支出15万元, 共计100万元; 3. 深圳某乙科技公司承担本案全部诉讼费用。

深圳某乙科技公司辩称, 被诉侵权产品没有落入涉案专利权利要求的保护范围。被诉侵权产品至少缺少权利要求1中限定的“与第一电机动力连接的传动组件、与传动组件连接的一级滚轴组件”技术特征。请求依法判决驳回深圳某甲科技公司的全部诉讼请求。

法院经审理查明: 涉案专利系ZL20152010331X.2号名称为“吸纳式充电装置”的实用新型专利, 其申请日为2015年2月12日, 授权公告日为2015年6月24日, 专利权人为深圳某甲科技公司。涉案专利授权公告时的权利要求1: 一种吸纳式充电装置, 其特征在于, 其包括吸纳滚轮机构、充电机构、主控PCB, 该吸纳滚轮机构包括第一电机、与第一电机动力连接的传动组件、与传动组件连接的一级滚轴组件, 该一级滚轴组件包括两个对设的滚轴, 该第一电机与主控PCB电连接, 该充电机构包括与主控PCB连接的充电PCB。

一审法院认为，本领域技术人员通常仍会将减速电机看作电机与减速机构的组合，该减速机构可以视为减速电机的一部分，同样，亦可以视为权利要求1所述传动组件的一部分，被诉侵权产品包含权利要求1所述传动组件。一审法院判决：（一）深圳某乙科技公司于本判决生效之日起立即停止制造被诉侵权产品；（二）深圳某乙科技公司于本判决生效之日起三十日内停止使用被诉侵权产品；（三）深圳某乙科技公司自本判决生效之日起十日内赔偿深圳某甲科技公司经济损失共计八十五万元；（四）深圳某乙科技公司自本判决生效之日起十日内赔偿深圳某甲科技公司合理支出共计十五万元；（五）驳回深圳某甲科技公司的其他诉讼请求。深圳某乙公司不服一审判决，提起上诉。二审法院判决：驳回上诉，维持原判。深圳某乙科技公司不服，向最高人民法院申请再审。最高人民法院提审本案，并于2019年12月30日作出（2019）最高法民再348号民事判决：一、撤销一审、二审判决；二、驳回深圳某甲科技公司诉讼请求。

裁判要旨

划分权利要求的技术特征时，一般应把能够实现一种相对独立的技术功能的技术单元作为一个技术特征，不宜把实现不同技术功能的多个技术单元划定为一个技术特征。

裁判理由

法院生效裁判认为：划分权利要求的技术特征时，一般应把能够实现一种相对独立的技术功能的技术单元作为一个技术特征，不宜把实现不同技术功能的多个技术单元划定为一个技术特征。减速电机是一种将电机和减速机构集成在一起的一体化电机，本领域技术人员通常将减速电机看作电机与减速机构的组合，认为属于一个整体。而减速机构作为减速电机的一部分，其主要功能为减速动力输出。涉案专利权利要求1所述“传动组件”独立于电机之外，不属于电机的组成部分，其功能是将电机的力传导给滚轴，从而实现将电机一同封装在机械结构内还能实现驱动滚轴。被诉侵权产品的电机轴通过齿轮组件与有凸点的轴相连在一起，均应当属于减速电机的组成部分，齿轮组件的主要功能为减速动力输出。被诉侵权产品通过将减速电机轴插入滚轴组件的凹槽中以实现动力传递，其传动方式是通过直接连接实现的。可见，被诉侵权产品的减速机构和涉案专利的“传动组件”二者技术手段、功能和效果既不相同亦不等同，被诉侵权产品缺少“传动组件”，因此，二审判决认定减速电机中的减速机构可以视为权利要求1所述“传动组件”的一部分，进而认定被诉侵权产品具有相应技术特征，属于认定事实不清，适用法律错误。在缺少“传动组件”技术特征的情形下，根据《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释》第七条规定，被诉侵权产品未落入涉案专利权利要求9的保护范围，二审判决认定事实不清，适用法律错误，予以纠正。

K. “新型电动平衡车”实用新型专利侵权案 ——与权利要求功能性特征“相同或者等同”的技术特征的认定

当事人

杭州某某智能科技有限公司诉浙江某某运动器械有限公司

案号

最高人民法院 (2018) 最高法民申2345号

合议庭成员

杜微科 | 吴蓉 | 佟姝

关键词

民事 侵害实用新型 专利权 功能性特征 侵权比对 功能和效果

相关法律规定

- 《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释（二）》第8条

基本案情

杭州某某智能科技有限公司（以下简称杭州某智能科技有限公司）诉称，杭州某智能科技有限公司系专利号为ZL201520406847.XXX、名称为“新型电动平衡车”的实用新型（以下简称涉案专利）专利权人。2016年8月8日，宁波海关依据（2016）0499号《采取知识产权海关保护措施通知书》对浙江某某运动器械有限公司（以下简称浙江某运动器械公司）申报出口的电动平衡扭扭车进行了扣留，浙江某运动器械公司后向宁波海关办理了担保放行手续。杭州某智能科技有限公司认为浙江某运动器械公司未经杭州某智能科技有限公司许可，擅自制造、销售被诉侵权产品的行为给杭州某智能科技有限公司造成了较大的经济损失，故向浙江省宁波市中级人民法院提起诉讼。

一审法院判决，驳回杭州某智能科技有限公司的诉讼请求。杭州某智能科技有限公司不服，提起上诉。二审法院判决，撤销一审判决，并判令浙江某运动器械公司立即停止制造、销售落入杭州某智能科技有限公司涉案专利权保护范围的侵权产品的行为，浙江某运动器械公司于本判决送达之日起十日内赔偿杭州某智能科技有限公司10万元（含合理维权费用）。浙江某运动器械公司不服二审判决，向最高人民法院申请再审。最高人民法院于2020年3月20日作出（2018）最高法民申2345号裁定，驳回浙江某运动器械公司的再审申请。

裁判要旨

在认定被诉侵权产品是否具有功能性特征时，一般应根据说明书及附图记载的与功能性特征对应的具体实施方式中为实现权利要求限定的功能或者效果所不可缺少的技术特征，确定功能性特征限定的具体内容。如果专利权人主张其中某些技术特征不是不可缺少的，应当对此进行充分说明或者举证证明。在侵权比对时，应将功能性特征对应的具体实施方式作为一个整体，与被诉侵权技术方案的相应技术特征进行比对。而不宜再将具体实施方式中的各个不可缺少的技术特征再行拆分，分别、逐一与被诉侵权产品中的相应技术特征进行比对。在认定被诉侵权产品的相应技术特征是否能够“实现相同的功能”“达到相同的效果”时，应当以权利要求记载的功能性特征限定的功能和效果为依据。

裁判理由

最高人民法院审查认为：本案的争议焦点为被诉侵权产品是否落入涉案专利权利要求1的保护范围。

（一）关于转动机构特征

1. 涉案专利权利要求1中的转动机构特征是否属于功能性特征

对功能性特征的认定，除了争议特征在权利要求中的具体限定方式以外，还应当重点考察其在权利要求限定的技术方案中所起到的功能和效果。以该功能和效果为基础，判断本领域普通技术人员是否能够仅通过阅读权利要求，即可直接、明确地确定该功能和效果的具体实施方式。如果仅考虑争议特征在本领域中通常的实施方式，而忽略该特征与权利要求中的其他技术特征之间的适配关系，及其因此而对实现权利要求限定的功能和效果的具体实施方式的影响，将难以对技术特征是否属于功能性特征作出准确认定。

本案中，关于转动机构特征，权利要求1中限定其位置“固定于第一内盖与第二内盖之间”，其功能是“第一内盖与第二内盖通过该转动机构实现转动连接。”但是，对于两内盖之间如何通过转动机构实现转动连接，权利要求1并未作进一步描述。涉案专利说明书的“背景技术”部分记载：“目前平衡车的脚踏平台一般是一块板状的平板，其在使用过程中始终是保持水平状态，无法相对转动，所以无法让使用者仅仅通过利用脚部即可对平衡车进行控制。”而涉案专利加以改进，设置为与之不同的左、右内盖结构，并通过转动机构将左右内盖转动连接，从而实现了电动平衡车左右两侧结构的相对转动。虽然杭州某智能科技有限公司主张转动连接在机械领域的含义是众所周知的，本领域技术人员仅通过阅读权利要求即可清楚实现转动连接的具体方式。但是转动机构在涉案专利中起到的功能是使得第一、第二内盖能够转动连接。因此，在判断本领域技术人员仅阅读权利要求是否能够直接确定如何实现权利要求1中的转动连接时，还必须考虑其所连接的左、右内盖的具体情况。即使现有技术中已经有转动机构的连接方式，但是将已有的连接方式与涉案专利中的左、右内盖结构相配合，实现权利要求1中的左、右内盖的转动连接，并不是本领域技术人员仅通过阅读权利要求即可直接、明确地确定的。对此，关于涉案专利的第36457号无效宣告请求审查决定已作出如下认定：“本专利所述内盖结构与其左右可相互转动的设置方式是紧密相连、密切配合的，即使某些特征是现有技术中存在的，但是以特定方式将其有机结合在一起从而得到特定的结构，也需要付出创造性劳动才能获得。”综上，涉案专利权利要求1的转动机构特征属于功能性特征。

2. 被诉侵权产品是否具有与转动机构特征相同或者等同的技术特征

在认定被诉侵权产品是否具有与功能性特征“相同或者等同”的相应技术特征时，应当重点考虑以下问题：第一，明确功能性特征所限定的具体内容。如果说明书及附图所记载的功能性特征所对应的具体实施方式包含多个技术特征，在满足《中华人民共和国专利法》第二十六条第三款规定的“充分公开”等有关专利授权的法定条件的前提下，专利权人通常会选择在说明书及附图中仅记载实现功能性特征的功能或效果所不可缺少的技术特征，以获得更大的保护范围。因此，除非存在明显不属于实现权利要求限定的功能或者效果所不可缺少的技术特征的情形，一般应根据说明书及附图记载的与功能性特征对应的具体实施方式确定功能性特征限定的具体内容。如果专利权人主张其中某些技术特征不是不可缺少的，应当对此进行充分说明或者举证证明。第二，在认定是否构成“相同或者等同”时，对功能性特征不宜再拆分比对。在权利要求限定的技术方案中，功能性特征可以构成实现特定的功能和效果的最小技术单元。在侵权比对时，应与功能性特征对应的具体实施方式作为一个整体，与被诉侵权技术方案的技术特征进行比对。而不宜再将具体实施方式中的各个不可缺少的技术特征再行拆分，分别、逐一与被诉侵权产品中的相应技术特征进行比对。第三，“功能”和“效果”的比对基础。对于功能性特征的侵权比对，在认定被诉侵权产品的相应技术特征是否能够“实现相同的功能”“达到相同的效果”时，应当以权利要求中记载的功能性特征限定的功能和效果为依据，而不是以说明书及附图记载的实现该功能和效果所不可缺少的技术特征分别具有的功能和效果为依据。

本案中，关于转动机构特征，涉案专利说明书第43段记载：“转动机构包括一个轴套、两个轴承和两个卡簧，所述轴套为轴向中空结构，供第一内盖与第二内盖中间的连接线通过且第一内盖、第二内盖均可相对所述轴套转动。轴承固定在两个轴套内并通过卡簧固定在内盖上，这样内盖的左右两个内盖就可在转动机构的配合下转动。通过设置这种转动机构新型电动平衡车的两部分车体都能够自由实现相对转动。”专利权人杭州某智能科技有限公司未主张或举证证明上述说明书记载的内容有不属于实现转动连接的不可缺少的技术特征。因此，权利要求1中转动机构特征限定的内容应当确定为：“转动机构包括一个轴套、两个轴承和两个卡簧，所述轴套为轴向中空结构，供第一内盖和第二内盖中间的连接线通过且第一内盖、第二内盖均可相对所述轴套转动。轴承固定在两个轴套内并通过卡簧固定在内盖上。”

被诉侵权产品中，轴套的一端与内盖通过过盈配合及销钉铆接的方式实现相对固定，另一端则通过与轴承、卡簧的配合实现与另一侧内盖的连接。浙江某运动器械公司主张，涉案专利两侧的内盖相对于轴套都是转动连接，而被诉侵权产品中，仅一侧内盖相对于轴套是转动连接，另外一侧内盖与轴套之间是固定连接，骑行时的安全系数和驾驶体验不同，并且被诉侵权产品仅需要安装一侧轴承，制造成本低，用竖销代替卡簧提高安全性，二者既不相同也不等同。

涉案专利权利要求1中限定了转动机构特征的功能是实现“第一内盖和第二内盖之间的转动连接”，而被诉侵权产品中的转动机构也实现了相同的功能。至于两侧的内盖与轴之间是否都是转动连接，并不属于权利要求1中限定的转动机构的功能和效果，不妨碍“实现相同功能”的认定。二者采用的技术手段整体上也不具有实质性差异，构成《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释（二）》第八条第二款规定的“等同”技术特征。至于浙江某运动器械公司所主张的被诉侵权产品两侧内盖与轴之间均为转动连接，而涉案专利仅一侧内盖与轴之间转动连接，该差异是对转动机构特征再行拆分后，与被诉侵权产品相应技术特征比对得出的，对转动机构特征整体上与被诉侵权产品相应特征构成等

同不具有实质性的影响。至于卡簧数量、安装位置等方面的差异，也同属于对转动机构特征再进行拆分和比较后存在的不同，对功能性特征“转动机构”的等同判断没有实质性影响。

（二）关于电力驱动系统特征

浙江某运动器械公司主张涉案专利权利要求1中限定电力驱动系统固定在内盖上，该特征使得电力驱动系统受内盖保护且被底盖封闭遮掩，不拆卸底盖不可取出更换。而被诉侵权产品与电力驱动系统对应的“电池”固定在底盖的通孔框中，并未固定在内盖上，不受内盖保护，其外露于底盖，无需拆卸底盖即可以更换，以增加续航时间和里程，亦方便单独保管电池，二者在结构和效果上存在不同，不属于等同的技术特征。

涉案专利的电力驱动系统特征明确限定了电源的设置位置，根据涉案专利说明书及附图，电源固定在内盖上，其固定后的位置则仍处于底盖和内盖所形成的空腔内。被诉侵权产品在底盖下部开设有电池的方形通孔，并通过电池两侧的卡扣与通孔的内凹翻边相卡合，实现底盖对电池的初步固定。同时，被诉侵权产品的内盖还设计有对应的电池容腔，以使得安装电池后，顶盖、底盖及内盖之间可以实现完全闭合。电池的两电极片亦在安装后与内盖上所设的弹性电极片紧密接触，实现电力传输。因此，在安装电池后，被诉侵权产品的电池亦处于内盖和底盖所形成的空腔中，位于底盖与内盖之间，与涉案专利对电源位置的限定并无实质区别，两者属于等同技术特征。虽然被诉侵权产品将电池通过卡接于底盖的方式进行初步固定，方便电池的取用和更换，增加维修的便利，但此技术效果并不是由于将电池固定在底盖上实现的，而是基于增加设置了特殊的开口形状和卡扣结合产生的效果，属于额外增加的技术特征所产生的效果，不能据此认定二者不构成等同。

（三）关于其他技术特征

电平衡车由电力驱动，需要相应具备传导装置以实现传感功能，系本领域的常识。被诉侵权产品的集成块能实现多项传感功能，即相当于涉案专利权利要求1中的“多个传感器”。本领域技术人员仅阅读权利要求1即能够明白“传感器”的含义，故该技术特征不属于功能性特征。对浙江某运动器械公司主张用说明书中具体实施方式中的相关内容进一步限定“传感器”的保护范围的申请再审理由不予支持。

涉案专利权利要求1限定控制器及多个传感器固定在内盖上。结合说明书和附图可知，其固定后的位置位于内盖和底盖之间。被诉侵权产品中安装有集成块的电路板及浙江某运动器械公司主张的“主控板”均固定在顶盖下延的塑料支架上，所处位置仍位于底盖和内盖之间，与内盖紧密贴合，二者在手段、功能、效果上均基本相同，且无需本领域普通技术人员的创造性劳动即可以想到，应认定为等同技术特征。对浙江某运动器械公司的相关申请再审理由不予支持。

本领域技术人员在阅读权利要求1的基础上可以清楚地理解技术特征“两个车轮，分别自所述内盖相对的两侧延伸而出，固定在内盖的两侧且可绕内盖转动”的含义。该特征仅限定了车轮的固定位置，而未限定车轮的结构，且该特征不属于功能性特征。浙江某运动器械公司主张用说明书具体实施方式中对于“车轮”结构的描述进一步限定权利要求1的保护范围，并无依据。被诉侵权产品中的轮胎套置在“轮体”上，共同组成车轮，固定位置也与涉案专利限定的相同，落入涉案专利权的保护范围。浙江某运动器械公司的相关申请再审理由最高人民法院不予支持。

L.涉“气化炉”实用新型专利权权属案 ——通过改进他人非公开技术方案获得专利时的权属证明责任

当事人

某化学工程股份有限公司诉聊城市某化工工程设计有限责任公司

案号

最高人民法院（2020）最高法知民终1293号

合议庭成员

周翔 | 张晓阳 | 崔宁

关键词

民事 专利权权属 非公开技术方案 证明责任 实质性特点和进步

相关法律规定

- 《中华人民共和国民事诉讼法》（2017年修正）第64条
- 《中华人民共和国专利法实施细则》（2010年修订）第13条

基本案情

某化学工程股份有限公司（以下简称某化学工程公司）诉称：聊城市某化工工程设计有限责任公司（以下简称聊城市某工程设计公司）申请并获得授权的专利号为201720586771.2、名称为“一种气化炉出口气体喷淋装置”的实用新型专利（以下简称诉争专利）源于某化学工程公司，诉争专利应当归属于某化学工程公司所有。故请求判令：一、确认诉争专利权属于某化学工程公司；二、聊城市某工程设计公司承担本案全部诉讼费用。

聊城市某工程设计公司辩称：聊城市某工程设计公司系诉争专利真正的专利权人，请求驳回某化学工程公司的诉讼请求。

法院经审理查明：

聊城市某工程设计公司于2017年5月24日向国家知识产权局申请专利号为201720586771.2、名称为“一种气化炉出口气体喷淋装置”的实用新型专利申请，并获得授权。

某化学工程公司提供了设计时间在先的五份图纸。与诉争专利内容比对，部分图纸内容与涉案专利说明书附图相同。二审询问中，聊城市某工程设计公司明确主张其改进的技术特征是诉争专利权利要求1中的“喷淋管口朝气化炉方向与气化炉合成气出口管道倾斜连接”及权利要求2的附加技术特征。

山东省济南市中级人民法院判决：名称为“一种气化炉出口气体喷淋装置”（专利号为201720586771.2）的实用新型专利权属于原告某化学工程公司。宣判后，聊城市某工程设计公司以诉争专利技术方案与某化学工程公司提交证据所示的技术方案完全不同，故诉争专利权应归属于聊城市某工程设计公司为由，提起上诉。最高人民法院于2021年12月20日作出（2020）最高法知民终1293号民事判决：驳回上诉，维持原判。

裁判要旨

原告以涉案专利系被告将原告的非公开技术方案申请专利为由，主张涉案专利权归其所有的，应当举证证明涉案专利来源于其在先完成的非公开技术方案，并且被告在涉案专利申请日前能够获知该技术方案；被告主张其对原告的技术方案进行了改进并据此享有涉案专利权的，至少应当证明或者合理说明涉案专利相对于原告的技术方案存在区别，且该区别构成涉案专利的实质性特点和进步。

裁判理由

法院生效裁判认为：本案中，某化学工程公司主张聊城市某工程设计公司将某化学工程公司非公开的技术方案申请诉争专利，对于该种类型的专利权权属纠纷，一般首先应由原告举证证明涉案专利技术来源于其在先完成的技术方案，并且被告在涉案专利申请日前能够获知该技术方案；如果被告主张涉案专利技术系对现有技术而非对原告技术方案的改进，应当举证证明；在已确认涉案专利技术来源于原告的情况下，被告应说明涉案专利技术方案与原告技术方案的区别，并在此基础上就其对发明创造的实质性特点作出创造性贡献进行证明或合理的说明；若双方主张对方各自完成的部分属于公知常识、现有技术或现有技术已给出明确的技术启示，应对此进行举证。人民法院根据双方当事人针对上述内容提交的证据确定专利权归属。

本案中，聊城市某工程设计公司认可其确系在该图纸的技术方案的基础上得到涉案专利的技术方案，但主张其作出了具有实质性特点的改进。与专利授权确权程序中对发明创造是否具有实质性特点的判断不同，在以非公开的技术方案作为主张权利基础的专利权纠纷中，关于“对发明创造的实质性特点作出创造性贡献”的判断，建立在作为专利来源的非公开的技术方案基础之上。在这种情况下，对他人非公开技术方案作出改动并申请专利的一方要单独或共同拥有专利权，至少应当通过体现研发过程、技术效果等内容的证据或理由，证明或合理说明其在他人非公开技术方案基础上，进一步作出了实质性的技术贡献。诉争专利权利要求1、2仅仅是在某化学工程股份有限公司的技术方案的基础上具体选择了喷淋管口与气化炉合成气出口管道之间倾斜连接的方式，并具体限定了倾斜的角度。虽然说明书也记载了其可以获得有益的技术效果，但设置喷淋装置本身即是为了去除合成气中的煤灰，喷淋管口与气化炉合成气出口管道之间连接的角度不同必然导致喷淋位置不同。在聊城市某工程设计公司既无实际研发记录，亦无验证技术效果的证据的情况下，难以说明其通过该点改动对发明创造的实质性特点作出了创造性贡献，故聊城市某工程设计公司不应因此改动而对该技术方案拥有专利权。

M.涉“汽车雨刮器”发明专利侵权案 ——功能性特征的认定；临时禁令与部分判决的关系处理

当事人

法国瓦某清洗系统公司诉厦门卢某汽车配件公司等

案号

最高人民法院（2019）最高法知民终2号

合议庭成员

罗东川 | 王闯 | 朱理 | 徐卓斌 | 任晓兰

关键词

民事 侵害发明专利权 功能性特征 先行判决 行为保全

相关法律规定

- 《中华人民共和国专利法》第59条
- 《中华人民共和国民事诉讼法》第153条

基本案情

法国瓦某清洗系统公司（以下简称瓦某公司）是涉案“机动车辆的刮水器的连接器及相应的连接装置”发明专利的专利权人，该专利仍在保护期内。瓦某公司于2016年向上海知识产权法院提起诉讼称，厦门卢某汽车配件公司（以下简称卢某公司）、厦门富某汽车配件公司（以下简称富某公司）未经许可制造、销售、许诺销售，陈某强未经许可制造、销售的雨刮器产品落入其专利权保护范围。瓦某公司请求判令卢某公司、富某公司和陈某强停止侵权，赔偿损失及制止侵权的合理开支暂计600万元，并请求人民法院先行判决卢某公司、富某公司和陈某强立即停止侵害涉案专利权的行为。此外，瓦某公司还提出了临时行为保全申请，请求法院裁定卢某公司、富某公司、陈某强立即停止侵权行为。

上海知识产权法院判决，判令卢某公司、富某公司于判决生效之日起立即停止对涉案发明专利权的侵害。卢某公司、富某公司不服上述判决，向最高人民法院提起上诉。最高人民法院于2019年3月27日公开开庭审理本案，作出（2019）最高法知民终2号民事判决，并当庭宣判，判决驳回上诉，维持原判。

裁判要旨

1. 如果专利权利要求的某个技术特征已经限定或者隐含了特定结构、组分、步骤、条件或其相互之间的关系等，即使该技术特征同时还限定了其所实现的功能或者效果，亦不属于《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释（二）》第八条所称的功能性特征。
2. 在专利侵权诉讼程序中，责令停止被诉侵权行为的行为保全具有独立价值。当事人既申请责令停止被诉侵权行为，又申请先行判决停止侵害，人民法院认为需要作出停止侵害先行判决的，应当同时对行为保全申请予以审查；符合行为保全条件的，应当及时作出裁定。

裁判理由

法院生效裁判认为：

一、关于“在所述关闭位置，所述安全搭扣面对所述锁定元件延伸，用于防止所述锁定元件的弹性变形，并锁定所述连接器”的技术特征是否属于功能性特征以及被诉侵权产品是否具备上述特征的问题

第一，关于上述技术特征是否属于功能性特征的问题。功能性特征是指不直接限定发明技术方案的结构、组分、步骤、条件或其之间的关系等，而是通过其在发明创造中所起的功能或者效果对结构、组分、步骤、条件或其之间的关系等进行限定的技术特征。如果某个技术特征已经限定或者隐含了发明技术方案的特定结构、组分、步骤、条件或其之间的关系等，即使该技术特征还同时限定了其所实现的功能或者效果，原则上亦不属于《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释（二）》第八条所称的功能性特征，不应作为功能性特征进行侵权比对。前述技术特征实际上限定了安全搭扣与锁定元件之间的方位关系并隐含了特定结构——“安全搭扣面对所述锁定元件延伸”，该方位和结构所起到的作用是“防止所述锁定元件的弹性变形，并锁定所述连接器”。根据这一方位和结构关系，结合涉案专利说明书及其附图，特别是说明书第【0056】段关于“连接器的锁定由搭扣的垂直侧壁的内表面保证，内表面沿爪外侧表面延伸，因此，搭扣阻止爪向连接器外横向变形，因此连接器不能从钩形端解脱出来”的记载，本领域普通技术人员可以理解，“安全搭扣面对所述锁定元件延伸”，在延伸部分与锁定元件外表面的距离足够小的情况下，就可以起到防止锁定元件弹性变形并锁定连接器的效果。可见，前述技术特征的特点是，既限定了特定的方位和结构，又限定了该方位和结构的功能，且只有将该方位和结构及其所起到的功能结合起来理解，才能清晰地确定该方位和结构的具体内容。这种“方位或者结构+功能性描述”的技术特征虽有对功能的描述，但是本质上仍是方位或者结构特征，不是《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释（二）》第八条意义上的功能性特征。

第二，关于被诉侵权产品是否具备前述技术特征的问题。涉案专利权利要求1的前述技术特征既限定了安全搭扣与锁定元件的方位和结构关系，又描述了安全搭扣所起到的功能，该功能对于确定安全搭扣与锁定元件的方位和结构关系具有限定作用。前述技术特征并非功能性特征，其方位、结构关系的限定和功能限定在侵权判定时均应予以考虑。本案中，被诉侵权产品的安全搭扣两侧壁内表面设有一对垂直于侧壁的凸起，当安全搭扣处于关闭位置时，其侧壁内的凸起朝向弹性元件的外表面，可以起到限制弹性元件变形张开、锁定弹性元件并防止刮水器臂从弹性元件中脱出的效果。被诉侵权产品在安全搭扣处于关闭位置时，安全搭扣两侧壁内表面垂直于侧壁的凸起朝向弹性元件的外表面，属于涉案专利权利要求1

所称的“所述安全搭扣面对所述锁定元件延伸”的一种形式，且同样能够实现“防止所述锁定元件的弹性变形，并锁定所述连接器”的功能。因此，被诉侵权产品具备前述技术特征，落入涉案专利权利要求1的保护范围。原审法院在认定上述特征属于功能性特征的基础上，认定被诉侵权产品具有与上述特征等同的技术特征，比对方法及结论虽有偏差，但并未影响本案侵权判定结果。

二、关于本案诉中行为保全申请的具体处理问题

本案需要考虑的特殊情况是，原审法院虽已作出关于责令停止侵害涉案专利权的先行判决，但并未生效，专利权人继续坚持其在一审程序中的行为保全申请。此时，第二审人民法院对于停止侵害专利权的行为保全申请，可以考虑如下情况，分别予以处理：如果情况紧急或者可能造成其他损害，专利权人提出行为保全申请，而第二审人民法院无法在行为保全申请处理期限内作出终审判决的，应当对行为保全申请单独处理，依法及时作出裁定；符合行为保全条件的，应当及时采取保全措施。此时，由于原审判决已经认定侵权成立，第二审人民法院可根据案情对该行为保全申请进行审查，且不要求必须提供担保。如果第二审人民法院能够在行为保全申请处理期限内作出终审判决的，可以及时作出判决并驳回行为保全申请。本案中，瓦某公司坚持其责令卢某公司、富某公司停止侵害涉案专利权的诉中行为保全申请，但是其所提交的证据并不足以证明发生了给其造成损害的紧急情况，且最高人民法院已经当庭作出判决，本案判决已经发生法律效力，另行作出责令停止侵害涉案专利权的行为保全裁定已无必要。对于瓦某公司的诉中行为保全申请，不予支持。

N.涉“路由器”发明专利侵权案 ——多主体实施方法专利的侵权判定；被诉侵权人无正当理由拒不提供侵权账簿资料时损害赔偿的计算

当事人

深圳敦某科技公司诉深圳市吉某科技公司等

案号

最高人民法院（2019）最高法知民终147号

合议庭成员

朱理 | 傅蕾 | 张晓阳

关键词

民事 侵害发明专利权 多主体实施的方法专利 损害赔偿 专利技术贡献度

相关规定

- 《中华人民共和国专利法》（2008年修正）第1条、第11条第1款、第59条第1款

基本案情

原告深圳敦某科技有限公司（以下简称敦某公司）诉称：深圳市吉某科技公司（以下简称吉某公司）未经许可制造、许诺销售、销售，济南历下弘某电子产品经营部（以下简称弘某经营部）、济南历下昊某电子产品经营部（以下简称昊某经营部）未经许可销售的多款商用无线路由器（以下简称被诉侵权产品）落入其享有的名称为“一种简易访问网络运营商门户网站的方法”（专利号为02123502.3，以下简称涉案专利）发明专利的专利权保护范围，请求判令吉某公司、弘某经营部、昊某经营部停止侵权，赔偿损失及制止侵权的合理开支共计500万元。

被告吉某公司辩称：1.涉案专利、被诉侵权产品访问任意网站时实现定向的方式不同，访问的过程亦不等同，吉某公司没有侵害敦某公司的涉案专利权。并且，涉案专利保护的是一种网络接入认证方法，吉某公司仅是制造了被诉侵权产品，但并未使用涉案专利保护的技术方案，故其制造并销售被诉侵权产品的行为并不构成专利侵权；2.敦某公司诉请的赔偿数额过高且缺乏事实及法律依据，在赔偿额计算中应当考虑专利的技术贡献度、涉案专利技术存在替代方案等。

弘某经营部、昊某经营部共同辩称：其所销售的被诉侵权产品是从代理商处合法进货的，其不是被诉侵权产品的生产者，不应承担责任。

法院经审理查明：敦某公司明确以涉案专利的权利要求1和2为依据主张权利，其内容为：1.一种简易访问网络运营商门户网站的方法，其特征在于包括以下处理步骤：A.接入服务器底层硬件对门户业务用户设备未通过认证前的第一个上行HTTP报文，直接提交给“虚

拟Web服务器”，该“虚拟Web服务器”功能由接入服务器高层软件的“虚拟Web服务器”模块实现；B.由该“虚拟Web服务器”虚拟成用户要访问的网站与门户业务用户设备建立TCP连接，“虚拟Web服务器”向接入服务器底层硬件返回含有重定向信息的报文，再由接入服务器底层硬件按正常的转发流程向门户业务用户设备发一个重定向到真正门户网站Portal_Server的报文；C.收到重定向报文后的门户业务用户设备的浏览器自动发起对真正门户网站Portal_Server的访问。2.根据权利要求1所述的一种简易访问网络运营商门户网站的方法，其特征在于：所述的步骤A，由门户业务用户在浏览器上输入任何正确的域名、IP地址或任何的数字，形成上行IP报文；所述的步骤B，由“虚拟Web服务器”虚拟成该IP报文的IP地址的网站。

敦某公司通过公证购买方式从弘某经营部、昊某经营部购得“Txxxx路由器W15E”“Txxxx路由器W20E增强型”各一个，并在公证人员的监督下对“Txxxx路由器W15E”访问网络运营商门户网站的过程进行了技术演示，演示结果表明使用“Txxxx路由器W15E”过程中具有与涉案专利权利要求1和2相对应的方法步骤。

被诉侵权产品在京东商城官方旗舰店、“天猫”网站吉某旗舰店均有销售，且销量巨大。京东商城官方旗舰店网页显示有“吉某（Txxxx）W15E”路由器的图片、京东价199元、累计评价1万+，“吉某（Txxxx）W20E”路由器、京东价399元、累计评价1万+，“吉某（Txxxx）G1”路由器、京东价359元、累计评价1万+等信息。“天猫”网站吉某旗舰店网页显示有“吉某（Txxxx）W15E”路由器的图片、促销价179元、月销量433件、累计评价4342条、安装说明、技术支持等信息。

2018年12月13日，山东省济南市中级人民法院依法作出通知书，主要内容为：限令吉某公司10日内向山东省济南市中级人民法院提交自2015年7月2日以来，关于涉案“路由器”产品生产、销售情况的完整资料和完整的财务账簿。逾期不提交，将承担相应的法律责任。但至二审判决作出时，吉某公司并未提交相关证据。

山东省济南市中级人民法院判决：一、吉某公司立即停止制造、许诺销售、销售涉案的路由器产品；二、弘某经营部、昊某经营部立即停止销售涉案的路由器产品；三、吉某公司于判决生效之日起十日内赔偿敦某公司经济损失及合理费用共计500万元；四、驳回敦某公司的其他诉讼请求。一审案件受理费46800元，由吉某公司负担。宣判后，吉某公司向最高人民法院提起上诉。最高人民法院于2019年12月6日作出（2019）最高法知民终147号民事判决，驳回上诉，维持原判。

裁判要旨

1. 如果被诉侵权行为人以生产经营为目的，将专利方法的实质内容固化在被诉侵权产品中，该行为或者行为结果对专利权利要求的技术特征被全面覆盖起到了不可替代的实质性作用，终端用户在正常使用该被诉侵权产品时就能自然再现该专利方法过程的，则应认定被诉侵权行为人实施了该专利方法，侵害了专利权人的权利。
2. 专利权人主张以侵权获利计算损害赔偿数额且对侵权规模事实已经完成初步举证，被诉侵权人无正当理由拒不提供有关侵权规模事实的相应证据材料，导致用于计算侵权获利的基础事实无法确定的，对被诉侵权人提出的应考虑涉案专利对其侵权获利的贡献度的抗辩，人民法院可以不予支持。

裁判理由

法院生效裁判认为：本案焦点问题包括三个方面：

一、关于被诉侵权产品使用过程是否落入涉案专利权利要求的保护范围

首先，涉案专利权利要求1中的“第一个上行HTTP报文”不应解释为用户设备与其要访问的实际网站建立TCP“三次握手”连接过程中的第一个报文，而应当解释为未通过认证的用户设备向接入服务器发送的第一个上行HTTP报文。其次，根据对被诉侵权产品进行的公证测试结果，被诉侵权产品的强制Portal过程与涉案专利权利要求1和2所限定步骤方法相同，三款被诉侵权产品在“Web认证开启”模式下的使用过程，全部落入涉案专利权利要求1和2的保护范围。

二、关于吉某公司的被诉侵权行为是否构成侵权

针对网络通信领域方法的专利侵权判定，应当充分考虑该领域的特点，充分尊重该领域的创新与发展规律，以确保专利权人的合法权益得到实质性保护，实现该行业的可持续创新和公平竞争。如果被诉侵权行为人以生产经营为目的，将专利方法的实质内容固化在被诉侵权产品中，该行为或者行为结果对专利权利要求的技术特征被全面覆盖起到了不可替代的实质性作用，也即终端用户在正常使用该被诉侵权产品时就能自然再现该专利方法过程的，则应认定被诉侵权行为人实施了该专利方法，侵害了专利权人的权利。本案中：1.吉某公司虽未实施涉案专利方法，但其以生产经营为目的制造、许诺销售、销售的被诉侵权产品，具备可直接实施专利方法的功能，在终端网络用户利用被诉侵权产品完整再现涉案专利方法的过程中，发挥着不可替代的实质性作用。2.吉某公司从制造、许诺销售、销售被诉侵权产品的行为中获得不当利益与涉案专利存在密切关联。3.因终端网络用户利用被诉侵权产品实施涉案专利方法的行为并不构成法律意义上的侵权行为，专利权人创新投入无法从直接实施专利方法的终端网络用户处获得应有回报，如专利权人的利益无法得到补偿，必将导致研发创新活动难以为继。另一方面，如前所述，吉某公司却因涉案专利获得了原本属于专利权人的利益，利益分配严重失衡，有失公平。综合以上因素，在本案的情形下，应当认定吉某公司制造、许诺销售、销售被诉侵权产品的行为具有侵权性质并应承担停止侵权、赔偿损失的民事责任。

三、关于一审判决确定的赔偿数额是否适当

专利权人主张以侵权获利确定赔偿额的，侵权规模即为损害赔偿计算的基础事实。专利权人对此项基础事实承担初步举证责任。在专利权人已经完成初步举证，被诉侵权人无正当理由拒不提供有关侵权规模基础事实的相应证据材料的情况下，对其提出的应考虑涉案专利对其侵权获利的贡献率等抗辩理由可不予考虑。具体到本案中：1.敦某公司主张依照侵权人因侵权获利计算赔偿额，并在一审中提交了吉某公司分别在京东网和天猫网的官方旗舰店销售被诉侵权产品数量、售价的证据，鉴于该销售数量和价格均来源于吉某公司自己在正规电商平台的官方旗舰店，数据较为可信，吉某公司虽指出将累计评价作为销量存在重复计算和虚报的可能性，但并未提交确切证据，且考虑到敦某公司就此项事实的举证能力，应当认定敦某公司已就侵权规模的基础事实完成了初步举证责任。2.敦某公司在一审中，依据其已提交的侵权规模的初步证据，申请吉某公司提交与被诉侵权产品相关的财务账簿、资料等，一审法院也根据本案实际情况，依法责令吉某公司提交能够反映被诉侵权产品生产、销售情况的完整的财务账簿资料等证据，但吉某公司并未提交。在一审法院因

此适用相关司法解释对敦某公司的500万元高额赔偿予以全额支持、且二审中吉某公司就此提出异议的情况下,其仍然未提交相关的财务账簿等资料。由于本案吉某公司并不存在无法提交其所掌握的与侵权规模有关证据的客观障碍,故应认定吉某公司并未就侵权规模的基础事实完成最终举证责任。3.根据现有证据,有合理理由相信,被诉侵权产品的实际销售数量远超敦某公司所主张的数量。综上,在侵权事实较为清楚、且已有证据显示吉某公司实际侵权规模已远大于敦某公司所主张赔偿的范围时,吉某公司如对一审法院确定的全额赔偿持有异议,应先就敦某公司计算赔偿所依据的基础事实是否客观准确进行实质性抗辩,而不能避开侵权规模的基础事实不谈,另行主张专利技术贡献度等其他抗辩事由,据此对吉某公司二审中关于一审确定赔偿额过高的各项抗辩主张均不予理涉。

O. 涉“纤维素酶”发明专利侵权案 ——不诚信诉讼行为对确定维权合理开支的影响

当事人

美国某公司诉某生物公司、某药业公司

案号

最高人民法院（2021）最高法知民终2480号

合议庭成员

朱理 | 崔宁 | 顾正义

关键词

民事 侵害发明专利权 维权合理开支 诚信诉讼

相关法律规定

— 《中华人民共和国专利法》第11条第1款

基本案情

美国某公司诉称：其系专利号200480036105.7、名称为“内切葡聚糖酶STCE和含有内切葡聚糖酶的纤维素酶配制品”的发明专利权的专利权人。某生物公司许诺销售、销售被诉侵权产品，某药业公司制造、使用、许诺销售、销售被诉侵权产品。故请求判令：1.两公司立即停止侵害涉案专利权的行为；2.某生物公司立即销毁未出售的侵权产品，某药业公司立即销毁制造侵权产品的专用设备以及未出售的侵权产品；3.两公司共同赔偿美国某公司经济损失1850万元；4.两公司共同赔偿美国某公司为制止侵权行为支出的合理开支150万元。

某生物公司辩称：某生物公司销售的被诉侵权产品系从某药业公司处采购，具有合法来源。被诉侵权技术方案未落入涉案专利权的保护范围。被诉侵权产品已没有库存。美国某公司主张的赔偿数额和计算方法缺乏依据。两公司不存在共同侵权的故意及行为。

某药业公司辩称：被诉侵权产品的技术方案未落入涉案专利权的保护范围。被诉侵权产品已没有库存。美国某公司主张的赔偿数额缺乏事实和法律依据。

法院经审理查明：某药业公司二审中认可被诉侵权的两种型号的产品落入涉案专利权利要求1、11的保护范围。关于另外两种型号产品的销售过程、该两种型号对应的产品技术方案，某生物公司、某药业公司在诉讼过程中曾作出前后不一致的陈述。关于中性纤维素酶产品的发货流程，某生物公司与下游客户订立销售合同后，通常会结合下游客户的要求起草委托书并发送给某药业公司，某生物公司称，其为位于湖南省的酶制剂厂家，技术服务人员较多，依托这种优势，某生物公司与某药业公司于2016年4月-5月起逐步形成合作，由某生物公司全面销售某药业公司生产的饲料酶制剂、纺织酶制剂。

上海知识产权法院判决：一、某生物公司、某药业公司应于本判决生效之日起立即停止对名称为“内切葡聚糖酶STCE和含有内切葡聚糖酶的纤维素酶配制品”（专利号200480036105.7）的发明专利权的侵害；二、某药业公司应于本判决生效之日起十日内赔偿美国某公司经济损失1000万元及合理开支100万元，某生物公司对前述赔偿金额在750万元范围内承担连带责任；三、驳回美国某公司的其余诉讼请求。美国某公司以损害赔偿过低、某生物公司以被诉侵权产品具有合法来源、某药业公司以赔偿数额认定过高等为由，均提出上诉。最高人民法院于2023年12月14日作出（2021）最高法知民终2480号民事判决：一、维持上海知识产权法院（2017）沪73民初712号民事判决第一项；二、撤销上海知识产权法院（2017）沪73民初712号民事判决第二项、第三项；三、某生物公司、某药业公司于本判决生效之日起十日内共同赔偿美国某公司经济损失1850万元及合理开支150万元；四、驳回美国某公司的其他上诉请求；五、驳回某生物公司的上诉请求；六、驳回某药业公司的上诉请求。

裁判要旨

被诉侵权人在诉讼过程中有虚假陈述等不诚信行为的，可以作为人民法院确定权利人维权合理开支数额时的考量因素。

裁判理由

法院生效裁判认为：被诉侵权技术方案落入涉案专利权的保护范围，被诉侵权行为成立。关于维权合理开支。第一，美国某公司就其主张的金额为25,130元的公证费、金额为1698元的翻译费、金额为30,000元的检测费提交了相应的票据。以上费用均为美国某公司举证之必需，对此予以支持。第二，美国某公司主张的其他合理开支均为律师费，其提供了账单予以证明。考虑到出具账单符合当事人所在国家的交易习惯，账单中体现的律师费应为当事人实际支出的律师费。第三，本案证据较多、事实较为复杂，侵权行为有一定的隐蔽性，并具有较强的专业性，相对于一般案件需要支出更高的律师费。第四，某生物公司、某药业公司在诉讼过程中多次作出不一致的陈述，其中部分属于虚假陈述，客观上增加了美国某公司的诉讼代理人在诉讼中的工作量。因此，美国某公司在本案中主张的律师费金额在合理范围内。综上，对美国某公司主张的150万元合理开支予以全额支持，一审判决确定的合理开支数额偏低，对此予以纠正。

P. “真姬菇菌株”发明专利侵权案 ——“保藏号”限定的微生物发明专利的侵权认定

当事人

上海某生物科技股份有限公司诉天津某农业科技开发有限公司、天津某农业技术开发有限公司

案号

最高人民法院 (2020) 最高法知民终1602号

合议庭成员

徐燕如 | 马军 | 刘晓梅

关键词

民事 侵害发明专利权 微生物保藏号 保护范围 SCAR分子标记

相关法律规定

— 《中华人民共和国专利法》(2008年修正) 第11条、第65条第1款

基本案情

在上海某生物科技股份有限公司诉天津某农业科技开发有限公司、天津某农业技术开发有限公司侵害发明专利权纠纷案中, 上海某生物科技股份有限公司系专利号为201310030601.2、名称为“纯白色真姬菇菌株”的发明专利(以下简称涉案专利)的专利权人。涉案专利的权利要求为: “一种纯白色真姬菇菌株Finc-W-247, 其保藏编号是CCTCCNO: M2012378。”上海某生物科技股份有限公司诉称: 天津某农业科技开发有限公司、天津某农业技术开发有限公司在北京新发地农产品批发市场销售的菌类产品侵害涉案专利权, 故向北京知识产权法院提起侵权诉讼。

天津某农业科技开发有限公司、天津某农业技术开发有限公司辩称: 上海某生物科技股份有限公司主张的975个碱基是该类白玉菇固有的基因序列, 并非涉案专利要求保护的菌株的特异基因片段。被诉侵权产品未落入涉案专利权的保护范围, 故不应承担法律责任。

北京知识产权法院经审理认为: 由于涉案专利要求保护的是一种微生物, 判断被诉侵权产品是否落入涉案专利权的保护范围, 形态学特征判断和分子生物学特征判断缺一不可, 而分子生物学特征判断必须借助相关的方法、试剂、仪器在实验室中才能完成。经委托鉴定, 鉴定机构出具的鉴定意见显示, 基于纯白色真姬菇的性状、基因间隔序列(ITS)和所述特异975bpDNA片段的特点, 根据比对结果可以判断出鸿滨牌白玉菇与涉案专利所要求保护的纯白色真姬菇属于同一种菌株。

北京知识产权法院判决: 被诉侵权产品落入涉案专利权保护范围, 天津某农业科技开发有限公司、天津某农业技术开发有限公司停止侵害并各自赔偿经济损失100万元。天津某农业科

技开发有限公司、天津某农业技术开发有限公司不服，向最高人民法院提起上诉。最高人民法院于2021年8月19日作出（2020）最高法知民终1602号民事判决：驳回上诉，维持原判。

裁判要旨

关于被诉侵权菌株是否落入以“保藏号”限定的微生物发明专利权利要求的保护范围，一般可以借助一种或者多种基因特异性片段检测方法，并结合形态学分析等予以认定。检测微生物菌株的基因特异性时，并非必须采用全基因序列检测方法，如果以“保藏号”限定的菌株具有特有特定序列扩增标记（SCAR）的分子标记片段，则可以该分子标记为检测指标，结合基因序列以及形态学分析，对被诉侵权菌株作出认定。

裁判理由

法院生效裁判认为：由于本领域公知，SCAR分子标记技术是在RAPD基础上发展起来的，其结果不受外界环境因素和生长发育阶段的影响，直接反映被鉴定菌株的遗传本质。SCAR分子标记可以通过获得某个菌株的“株特异性”标记来实现菌株的鉴定。本案中，涉案专利说明书明确记载了与市场上主要栽培品种并且是亲本之一的白玉菇H-W，市场购买的真姬菇G-W、以及日本葛城新育成的白玉菇GC-W菌株相比，所述保藏菌株具有特有的SCAR分子标记975bp片段。因此，利用该菌株特异性975bp片段，并结合形态学以及ITS序列分析对被诉侵权菌株进行鉴定的方法是合理且可信的。

关于天津某农业科技开发有限公司、天津某农业技术开发有限公司提到的仅采用975bp片段对菌株进行鉴定，扩大了涉案专利权保护范围的问题。由于已经证明SCAR分子标记975bp片段是涉案专利保藏菌株的特异性标记，其他同种不同株的菌株并不含有该特异性片段，因此，以该SCAR分子标记作为检测指标，并结合形态学以及ITS序列分析可以反映待测菌株与专利保藏菌株是否相同，该判断方法并没有扩大涉案专利权的保护范围。

关于天津某农业科技开发有限公司、天津某农业技术开发有限公司主张涉案专利没有充分论证975bp片段是该菌株的特异性片段，一审中提交的证据表明全国各地多家企业的白玉菇以及韩国某白色真姬菇均含有975bp片段的问题。由于涉案专利说明书中已经针对保藏菌株与其他同种不同株的真姬菇进行了RAPD和SCAR分子标记分析，并提供实验数据证明975bp片段是保藏菌株所特有的，天津某农业科技开发有限公司、天津某农业技术开发有限公司并没有提供证据证明涉案专利说明书的实验结果有误，或提供证据证明在涉案专利申请日前，其他不同于保藏菌株的真姬菇也包含所述975bp片段，或者经过检索发现了其他真姬菇的基因序列中含有所述975bp片段，根据现有证据无法证明涉案专利说明书的数据不真实有效。且全国存在多家企业以及韩国某白玉菇包含所述975bp片段的情况，亦不能证明其在涉案专利申请日前就存在于市场，同样不能证明涉案专利说明书不真实有效。天津某农业科技开发有限公司、天津某农业技术开发有限公司的该项上诉主张不能成立，不予支持。

Q. “杀虫剂”发明专利侵权案 ——专利侵权产品利润率的确定

当事人

某农业新加坡私人公司诉新乡市某新材料科技公司等

案号

最高人民法院（2022）最高法知民终2898号

合议庭成员

雷艳珍 | 梁琼 | 任小明

关键词

民事 侵害发明专利权 权属 侵权获利 利润率

相关法律规定

- 《中华人民共和国专利法》第71条
- 《最高人民法院关于审理专利纠纷案件适用法律问题的若干规定》第14条第2款、第18条

基本案情

某农业新加坡私人公司诉称，其系专利号为02815924.1、名称为“杀节肢动物的邻氨基苯甲酰胺”的发明专利（以下简称涉案专利）的专利权人。河南某化工公司、新乡市某新材料科技公司、宿迁某医药化工公司、王某超等共同制造、销售被诉侵权产品的行为构成对涉案专利的侵害，请求判令上述被诉侵权人停止侵害、赔偿经济损失及维权合理开支1100万元。

河南某化工公司、宿迁某医药化工公司、新乡市某新材料科技公司、王某超辩称，其没有实施被诉侵权行为，亦不存在与其他被诉侵权人的共同侵权行为。

法院经审理查明：涉案专利申请日为2002年8月13日，授权公告日为2008年6月4日。某农业新加坡私人公司系涉案专利的专利权人之一，并经另一专利共有人同意单独维权。

2021年11月至12月，宿迁某医药化工公司向取证人员提供了被诉侵权产品样品，此后以12,500元的价格销售了25公斤被诉侵权产品，上述被诉侵权产品附有河南某化工公司出具的检验报告。河南某化工公司于2021年10月取得年产100吨被诉侵权产品的排污许可证并开始调试。新乡市某新材料科技公司在其官方网站等网站宣传被诉侵权产品，其销售的被诉侵权产品附有以自己名义出具的检测报告，当地知识产权行政执法部门在其仓库查获25公斤被诉侵权产品。上述取证的被诉侵权产品均由王某超发货。某农业新加坡私人公司主张，根据国内15家农药化工行业的代表性上市公司2021年年报公布的利润率计算，行业平均毛利润率为22.19%，本案中主张以15%作为河南某化工公司的利润率。河南某化工公司经一、二审法院要求，拒绝提供2020年至2022年与侵权行为相关的账簿。

河南省郑州市中级人民法院判决：一、河南某化工公司于判决生效之日起十日内赔偿某农业新加坡私人公司经济损失及合理开支共计156万元，宿迁某医药化工公司和王某超在上述赔偿范围内承担26万元的连带赔偿责任；二、新乡市某新材料科技公司于判决生效之日起十日内赔偿某农业新加坡私人公司经济损失及合理开支共计442,692.94元，王某超在上述赔偿范围内承担92,692.94元的连带赔偿责任；三、驳回某农业新加坡私人公司的其他诉讼请求。某农业新加坡私人公司提出上诉，主张一审判决认定赔偿数额过低，未认定宿迁某医药化工公司许诺销售行为。新乡市某新材料科技公司提出上诉，主张一审法院认定的赔偿数额过高。最高人民法院于2023年11月20日作出（2022）最高法知民终2898号民事判决，改判河南某化工公司赔偿某农业新加坡私人公司经济损失622.5万元，宿迁某医药化工公司和王某超对其中120万元承担连带责任；维持一审判决关于新乡市某新材料科技公司、王某超的责任认定，以及一审判决关于维权合理开支的认定。

裁判要旨

涉农药中间体的产品专利侵权案件中，确定侵权产品的利润率时，可以农药化工行业平均利润率为基础，考虑侵权人无需支付研发成本而作适当上浮；如侵权人还存在举证妨碍等行为，可以进一步上浮。专利权人主张的利润率与基于上述考虑后酌定的利润率接近的，可予支持。

裁判理由

法院生效裁判认为：宿迁某医药化工公司以邮寄样品的方式，向收件人明确表达销售被诉侵权产品的意愿，构成许诺销售。结合某农业新加坡私人公司于2021年12月公证取得被诉侵权产品，河南某化工公司制造被诉侵权产品的工程系于2021年10月取得排污许可证并开始调试，可以合理认定制造被诉侵权产品的时间始于2021年10月，截至涉案专利保护期届满共持续10个月；参考农药化工行业的平均利润，结合本案中被诉侵权产品的中间体性质、河南某化工公司构成举证妨碍且作为侵权人无需支出研发成本等因素，采信某农业新加坡私人公司主张的利润率15%。同时，考虑被诉侵权产品的产量和价格，认定河南某化工公司侵权获利为622.5万元。综合考虑宿迁某医药化工公司和王某超被诉侵权行为的性质、情节、经营时间等因素，酌定宿迁某医药化工公司、王某超在120万元范围内承担连带责任。

R.涉“保温杯”发明专利侵权案 ——被诉侵权产品制造者的认定

当事人

某家庭制品公司诉金华某文体用品公司、广州某贸易公司、浙江某工贸公司、永康某工贸公司

案号

最高人民法院 (2021) 最高法知民终2301号

合议庭成员

徐卓斌 | 颜峰 | 黄中华

关键词

民事 侵害发明专利权 制造者 共同侵权 责任分担

相关法律规定

- 《中华人民共和国侵权责任法》第8条
- 《中华人民共和国专利法》(2008年修正) 第11条第1款、第70条

基本案情

金华某文体用品公司为销售“DISNEY迪士尼”商标的杯子,向广州某贸易公司、浙江某工贸公司(两公司混同经营)购买防伪标签,由广州某贸易公司、浙江某工贸公司对其拟销售的商品外观图样进行审核后,向金华某文体用品公司出具授权书并提供防伪标签,授权金华某文体用品公司在京东平台上销售该产品,并要求金华某文体用品公司在商品上标注“被许可方广州某贸易公司、制造商浙江某工贸公司”的信息。同时,金华某文体用品公司与永康某工贸公司通过微信沟通,确定杯子样式后,由永康某工贸公司制造并向其提供标有上述信息的杯子。

某家庭制品公司是专利号为201510147960.5、名称为“饮料用容器的栓体”的发明专利的专利权人,其认为金华某文体用品公司在京东店铺销售的上述杯子侵害其涉案专利权,通过公证购买了杯子两件。经比对,上述杯子落入涉案专利权的保护范围。某家庭制品公司要求金华某文体用品公司、广州某贸易公司、浙江某工贸公司共同赔偿经济损失24万元及维权合理开支1万元。

浙江省杭州市中级人民法院一审审理中,追加永康某工贸公司为第三人参加诉讼,判决:一、金华某文体用品公司立即停止销售、许诺销售落入涉案专利权保护范围的产品,销毁库存侵权产品;二、金华某文体用品公司于判决生效之日起十日内赔偿某家庭制品公司经济损失及合理开支共计12万元;三、驳回某家庭制品公司的其他诉讼请求。宣判后,金华某文体用品公司以被诉侵权产品具有合法来源、宁波某贸易公司与浙江某工贸公司均应作为制造者承担赔偿责任、金华某文体用品公司作为销售者不应当承担全部侵权责任以及一审赔偿数

额过高等为由，提出上诉。最高人民法院于2023年6月20日作出（2021）最高法知民终2301号民事判决：一、维持浙江省杭州市中级人民法院（2020）浙01知民初564号民事判决第一项；二、撤销浙江省杭州市中级人民法院（2020）浙01知民初564号民事判决第二项、第三项；三、金华某文体用品公司、广州某贸易公司、浙江某工贸公司于判决生效之日起十日内连带赔偿某家庭制品公司经济损失11万元、合理开支1万元，共计12万元；四、驳回某家庭制品公司的其他诉讼请求。

裁判要旨

专利法意义上的产品制造者并非仅指具体制造行为的实施者。组织生产资源、协调上下游生产环节、确定产品技术方案的组织者，同样可能构成被诉侵权产品的制造者。

裁判理由

法院生效裁判认为：首先，关于广州某贸易公司、浙江某工贸公司的制造者身份。虽然广州某贸易公司、浙江某工贸公司与被诉侵权产品的实际制造者没有进行接触，没有实施物理意义上的制造行为，但其通过金华某文体用品公司对产品的外观、图案进行审核以及防伪标签数量的控制，对于被诉侵权产品的制造行为实施了控制。产品包装及说明书、产品合格证上标注的信息以及防伪标识，进一步确认了两公司的制造者身份。

其次，关于金华某文体用品公司的合法来源抗辩。金华某文体用品公司为达到销售杯子的目的，由他人处获取商标授权、选择生产厂家、确定产品式样及技术方案，并且负责全部被诉侵权产品的销售，其在被诉侵权产品的制造、销售的整个链条中具有中枢地位并起到组织作用，应当认定为被诉侵权产品的制造者，其主张合法来源抗辩不符合《中华人民共和国专利法》的规定。

最后，关于本案的处理。本案是在金华某文体用品公司的组织安排下，广州某贸易公司、浙江某工贸公司、永康某工贸公司按照各自分工，与金华某文体用品公司紧密配合，共同完成制造、销售落入涉案专利权保护范围的被诉侵权产品的行为，共同侵害了某家庭制品公司的涉案专利权，依法应当承担连带责任。

S. “无创肝病诊断仪”发明专利侵权案 ——权利要求解释中内部证据和外部证据的使用

当事人

法国弹某公司诉无锡某医学公司、中某医院

案号

最高人民法院 (2019) 最高法知民终21号

合议庭成员

焦彦 | 余朝阳 | 魏磊

关键词

民事 侵害发明专利权 权利要求的解释 内部证据 外部证据

相关法律规定

- 《中华人民共和国专利法》(2008年修正) 第59条第1款
- 《最高人民法院关于审理专利纠纷案件适用法律问题的若干规定》(2015年修正) 第17条
- 《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释》第1条、第3条第1款、第7条
- 《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释(二)》第6条

基本案情

法国弹某公司诉称: 其系名称为“使用切变波的成像方法和装置”、专利号为00805083.X的发明专利(以下简称涉案专利)的专利权人, 中某医院使用的由无锡某医学公司制造的产品侵害了涉案专利权, 故请求中某医院停止使用并销毁被诉侵权产品, 无锡某医学公司停止制造、许诺销售、销售被诉侵权产品并销毁相应模具, 同时发表声明、消除影响, 并赔偿法国弹某公司经济损失3000万元及维权合理开支1,660,582元。

无锡某医学公司辩称: 被诉侵权技术方案并未落入涉案专利权的保护范围, 其不构成侵权。

中某医院辩称: 其具有药物临床试验机构资格及开展医疗器械临床试验的资质, 其依据与无锡某医学公司签订的协议, 有权利用被诉侵权产品进行临床研究试验, 该行为不属于专利侵权行为。

法院经审理查明: 法国弹某公司系涉案专利的专利权人, 其在本案中主张保护权利要求1、16。被诉侵权产品系“Fibrotouch无创肝纤维化诊断仪”产品, 该产品由无锡某医学公司制造、销售, 由中某医院使用。各方争议的焦点为如何解释涉案专利权利要求1“同时观察”“全部接收”技术特征。涉案专利的发明人之一以涉案专利为背景技术与其他人共同提出新的克服缺陷的技术方案, 另行申请并获得专利授权(以下简称在后专利), 专利权人为案

外人法国弹某公司的关联公司回某公司。无锡某医学公司以回某公司该在后专利为背景技术提出另一种解决方案,经申请获得专利授权(以下简称替换方案专利)并实施在被诉侵权产品中。2017年10月24日,针对无锡某医学公司提出的无效宣告请求,原国家知识产权局专利复审委员会(以下简称专利复审委员会)就涉案专利作出第33675号无效宣告请求审查决定(简称第33675号决定),决定维持涉案专利权有效。其中认定:1.权利要求1限定了“在此期间同时观察切变波在被观察介质中多点的传播”,结合权利要求1上下文本领域技术人员能够确定,“同时观察”指在切变波传播的时间段内使用超声压缩波进行观察,而根据权利要求1所记载的“这些点形成了一个至少沿着第一轴(x)延伸的大体上连续的观察区域”,表明“多点”是被测介质中沿一个确定的轴线分布的多个点,这些点能构成大体上连续的区域。2015年10月8日,针对案外人回某公司提出的无效宣告请求,专利复审委员会就无锡某医学公司替换方案专利作出第27205号无效宣告请求审查决定(简称第27205号决定),维持无锡某医学公司替换方案专利的专利权有效。该决定第7/12页记载,本专利要解决的技术问题是如何提供一种无需对换能器触头的运动进行补偿就能避免参考点运动带来的误差的方法,为此提出了一种对获得的超声波信号序列进行选择的方法,除了给出这一不同于现有技术的解决思路外还进一步给出了具体的实施手段。该决定第9/12页记载,一方面,现有技术中解决超声换能器触头运动导致的参考点运动的问题,技术构思是通过实时测量触头的位置,再通过计算进行补偿;而本专利解决上述问题的技术构思是直接对测量获得的信号进行选取,可见本专利并不是在现有技术的基础上进行的改进,而是提出了完全不同的技术构思。

北京知识产权法院判决:一、无锡某医学公司自判决生效之日起停止制造、许诺销售、销售被诉侵权产品的行为;二、无锡某医学公司自判决生效之日起十日内赔偿法国弹某公司经济损失共计3000万元;三、无锡某医学公司自判决生效之日起十日内赔偿法国弹某公司合理开支共计1,660,582元;四、驳回法国弹某公司的其他诉讼请求。宣判后,无锡某医学公司以原审判决对涉案专利权利要求保护范围认定错误、被诉侵权技术方案未落入涉案专利权的保护范围为由,提起上诉。最高人民法院于2019年12月10日作出(2019)最高法知民终21号民事判决:一、撤销北京知识产权法院(2016)京73民初92号民事判决;二、驳回法国弹某公司全部诉讼请求。

裁判要旨

解释权利要求,不能脱离专利说明书及附图、权利要求书中的相关权利要求、与涉案专利存在分案申请关系的其他专利以及生效的专利权无效宣告请求审查决定书与裁判文书等内部证据,同时可以使用外部证据予以佐证或者补充。

裁判理由

法院生效裁判认为:解释权利要求,可以使用专利说明书及附图、权利要求书中的相关权利要求、与涉案专利存在分案申请关系的其他专利以及生效的专利权无效宣告请求审查决定书等所记载的内容。在解释时不能脱离上述内部证据而进行,并且解释时应当站在本领域普通技术人员的角度进行。

(一) 关于对“同时观察”的解释

第一,涉案专利权利要求的文字记载及说明书内容明确限定了“同时观察”技术特征的含义。“同时观察”应指超声波对切变波观察时机的限定,即发出切变波的同时,接收记录超

声回波进行观察。第二,第33675号决定对涉案专利“同时观察”技术特征的解释,与涉案专利权利要求及说明书的记载并不矛盾。该决定指出,涉案专利权利要求1限定了“在此期间同时观察切变波在被观察介质中多点的传播”,结合权利要求1上下文本领域技术人员能够确定,“同时观察”指在切变波传播的时间段内使用超声压缩波进行观察。第三,法国弹某公司关联公司的在后专利可以佐证对涉案专利“同时观察”技术特征的理解。在后专利系针对涉案专利“同时观察”产生的技术缺陷提出的改进方案,如果未采用“同时观察”的方式,则不会面临换能器振动所产生的参考系变化的技术问题,也就没有提出该改进方案的动机与必要。由此可以佐证,涉案专利采用的观察方式为“同时观察”,在后专利的观察方式为“同时观察”加上“运动补偿”。第四,无锡某医学公司的专利可以佐证对涉案专利“同时观察”技术特征的理解。鉴于在后专利采用的运动补偿方式具有技术缺陷,无锡某医学公司提出了“延后观察”的技术方案并申请了替换方案专利,替换方案专利可以进一步佐证,涉案专利采用的观察方式为“同时观察”。第五,第27205号决定可以佐证对涉案专利“同时观察”技术特征的理解。根据该决定可知,无锡某医学公司的替换方案专利最主要的发明点就是针对在后专利中的需要安装位置传感器并进行运动补偿运算的方式进行改进,提供了一种技术构思完全不同的能解决同样技术问题的技术手段,体现为“延后观察”技术特征。相较于“同时观察”,“延后观察”是需要本领域技术人员作出创造性劳动才能联想到的内容,因此,“延后观察”与“同时观察”是完全不同的技术特征,不能将涉案专利“同时观察”技术特征的含义,扩大解释为既包含“同时观察”又包含“延后观察”。综上分析,涉案专利权利要求1“同时观察”技术特征,应理解为在切变波发出的同时通过接收记录的超声回波对其进行观察。

(二) 关于对“全部接收”的解释

涉案专利权利要求1明确记载了“将一连串至少10束超声压缩波……发射到被观察的介质,实时检测并记录……每个超声波束产生的回波。”涉案专利说明书第6/9页具体实施方式部分也明确记载了“事实上探测器必须新的压缩波发射之前,接收压缩波产生的所有回波。”该“全部接收”技术特征是指对于发出的每一个超声波,都要接收该每一个超声波的回波,不存在发出一个超声波,换能器不对其进行接收的情形。鉴于权利要求1的文字明确使用了“每个”的限定词,说明书亦有“接收所有回波”的明确记载,故在解释权利要求时,不应突破该限定条件。因此,对“全部接收”技术特征的解释应该理解为,对发射的超声波束产生的回波都要进行接收。

此外,涉案专利权利要求1的技术方案系基于产生切变波、发射超声波、接收记录超声回波实现观察切变波在被观察介质中多点的传播,只有在切变波激发和超声回波接收记录同时发生的情况下,即实现“同时观察+全部接收”时,才可能在弹性成像图或弹性检测图中呈现出倒V型,体现出P波特性。现有技术文献及涉案专利发明人的相关著作等均能印证该“同时观察+全部接收”的技术特征内容。

综上,通过涉案专利权利要求与说明书、无效宣告请求审查决定及其他证据的佐证,可以证明涉案专利权利要求1中的“同时观察”应指超声波对切变波观察时机的限定,即发出切变波的同时,接收记录超声回波进行观察;“全部接收”是指对发出的每一束超声波,都要接收该每一束回波。

涉案专利“同时观察+全部接收”的技术特征,其作用机理在于“在切变波发出的同时通过接收到的超声回波对其进行观察”,同时,“对于发出的每一束超声波,都要接收该每一束回波”,实现的技术效果为完整地观察并记录切变波在粘弹性介质中多点的传播。而被诉

侵权技术方案“延后观察+部分接收”的技术特征，其作用机理在于“确保采集到的超声波数据的参考点是静止的，进行计算时可以无需进行超声探头运动补偿”，实现的技术效果为可以减少计算时间并降低系统复杂性和成本，两者手段、功能、效果均不相同。因此，被诉侵权技术方案“延后观察+部分接收”的技术特征与涉案专利权利要求1“同时观察+全部接收”的技术特征既不相同也不等同。

T.涉“微波炉”发明专利侵权案 ——非公开销售产品的专利侵权损害赔偿计算

当事人

广东某电器公司诉中山某电子科技有限公司

案号

最高人民法院（2022）最高法知民终1584号

合议庭成员

刘晓梅 | 焦新慧 | 刘鹏

关键词

民事 侵害发明专利权 模具专利 损失计算

相关法律规定

— 《中华人民共和国专利法》（2008年修正）第59条

基本案情

广东某电器公司诉称：其系专利号为201510373341.8、名称为“用于铆紧磁控管上盖的铆盖模具”的发明专利的权利人，中山某电子科技有限公司未经许可为生产经营目的制造、使用侵害涉案专利权的铆盖模具，且主观恶意明显，给其造成严重的经济损失。故请求判令：中山某电子科技有限公司立即停止侵害涉案专利权，即立即停止制造、使用侵害涉案专利权的铆盖模具、立即销毁正在使用及库存的涉诉侵权产品以及制造涉诉侵权产品的专用设备和模具，赔偿广东某电器公司经济损失1000万元及维权合理开支20万元。

中山某电子科技有限公司辩称：涉案专利不符合法律规定；涉诉侵权产品的结构与涉案专利不同，不构成侵权；涉案专利在磁控管制造中作用极小，且磁控管本身属于低价值配件，广东某电器公司的诉请赔偿数额过高，没有事实依据。

法院经审理查明：（2020）粤广广州第255853号公证书、（2020）深先证字第24134号公证书、（2020）粤广广州第252298号公证书、（2020）粤广广州第252305号公证书显示，广东某电器公司于2020年10月27日、10月28日等日期分别在淘宝、京东平台中山某电器有限公司店铺购买多个型号的微波炉，其中所用磁控管均为中山某电子科技有限公司生产的磁控管。

广州知识产权法院判决：驳回广东某电器公司的全部诉讼请求。广东某电器公司不服，提出上诉。最高人民法院于2023年10月7日作出（2022）最高法知民终1584号民事判决：一、撤销广州知识产权法院（2020）粤73知民初2237号民事判决；二、中山某电子科技有限公司立即停止制造、使用侵害广东某电器公司名称为“用于铆紧上盖裙边的边铆盖模”、专利号为201510373341.8发明专利的铆盖模具，并销毁铆盖模具；三、中山某电子科技有限公司于本判决

决生效之日起十日内赔偿广东某电器公司经济损失1000万元；四、中山某电子科技有限公司于本判决生效之日起十日内支付广东某电器公司合理维权支出20万元；五、驳回广东某电器公司的其他诉讼请求。

裁判要旨

专利侵权损害赔偿的目标在于，尽力使专利权利人恢复到若不发生侵权行为时其应有的状态，以维持创新动力。对于未公开销售的产品而言，因无法通过其市场销售情况直接计算侵权损害，故可以根据具体案情将与实施专利技术方案相关、获得市场利益最直接环节的产品作为侵权损害赔偿计算的参考依据。

裁判理由

法院生效裁判认为：本案中，广东某电器公司主张按其实际损失计算赔偿数额应为1000万元，计算方式为：广东某电器公司磁控管产品利润 $\times$ 中山某电子科技有限公司磁控管产品销售数量 $\times$ 涉案专利技术贡献率。其中，广东某电器公司主张其磁控管产品销售单价不低于70元，成本为26.94元，销售利润为43.06元；中山某电子科技有限公司2018年至2020年10月销售磁控管产品数量为4,494,585个；涉案专利的技术贡献率为10%。据此， $43.06\text{元} \times 4,494,585\text{个} \times 10\% = 19,326,715\text{元}$ ，已超出广东某电器公司本案主张的实际损失1000万元。中山某电子科技有限公司认为被诉侵权产品并非磁控管，而是用于磁控管上盖铆紧的加工模具，其对于整个磁控管产品的价值占比轻微，广东某电器公司的赔偿请求和计算方式没有法律依据。对此，评述如下：

关于本案能否以磁控管产品利润和销售数量计算广东某电器公司的实际损失。首先，专利侵权损害赔偿的目标在于，尽力使专利权人恢复到若不发生侵权行为时其应有的状态，维持创新行为的动力；其次，当被诉侵权产品并非市场公开销售的产品时，通常无法通过其市场销售情况来直接计算其价值；再者，经营者在市场上提供产品，通过市场交易产品才能实现利益，因此，利益是在市场上实现的，将市场交易获得市场利益的最直接环节作为经济损失的计算依据是有因果关系的。本案中，被诉侵权的铆盖模具作为磁控管产品的加工模具，其本身并不进入市场，也未有证据显示市场上存在其他技术方案可以替代该铆盖模具，其市场价值无法确认。在这种情形下，考虑到专利侵权损害赔偿制度的设置目标、铆盖模具是制造磁控管产品所需的必要生产工具，将磁控管这一体现市场利益的最直接环节中的产品作为计算广东某电器公司实际损失的依据是合理的。

关于以广东某电器公司磁控管产品的销售利润以及中山某电子科技有限公司销售的磁控管数量作为依据进行损失计算。权利人的实际损失一般可以通过专利产品销售量减少的数量乘以每件专利产品的利润而计算得到。权利人销售量减少的总数难以确定的，侵权产品在市场上销售的总数乘以每件专利产品利润所得之积可以视为权利人因被侵权所受到的损失。本案中，广东某电器公司磁控管产品的销售量减少总数难以确定，因此，可以根据被诉侵权产品在市场上销售的总数乘以每件专利产品利润所得之积作为权利人因被侵权所受到的损失的计算依据。此外，根据（2021）粤0606刑初2200号刑事案件中广东海科资产评估有限公司作出的评估报告书，中山某电子科技有限公司自2018年至2020年10月磁控管销售量合计4,494,585个，广东某电器公司微波炉自研磁控管产品单位成本为每个26.94元。在中山某电子科技有限公司未提交反证的情形下，对上述事实予以确认。根据本案中广东某电器公司提交的出口记录以及销售记录证据，广东某电器公司主张其磁控管产品的销售单价不低于70元，具有事实依据，予以确认。

关于涉案专利技术贡献率。广东某电器公司就磁控管产品针对中山某电子科技有限公司提起的系列侵权诉讼,其中包括侵害商业秘密纠纷、侵害发明以及实用新型专利权纠纷,其主张综合考虑各项技术对磁控管的生产重要性进行划分,涉案专利具有10%的技术贡献率。对此分析如下:涉案专利是将磁控管的上盖铆紧的技术方案,是生产磁控管环节中的一道工序,通过使用涉案专利,避免了现有的铆紧方案常出现的铆不紧现象,降低了次品率,提升了生产质量和效率,综合考虑涉案专利对磁控管生产的重要性,广东某电器公司已经合理区分了在磁控管产品上的其他知识产权,其对涉案专利主张10%技术贡献率,相对合理。并且,中山某电子科技有限公司对此划分方式未提出有效反驳意见,在此情形下,对广东某电器公司主张的10%专利贡献率予以采纳。

关于使用销售利润作为计算依据。根据上述司法解释规定,对于完全以侵权为业的侵权人,可以按照销售利润计算。界定被诉侵权人是否以侵权为业,可从主客观两方面进行判断。从客观方面,被诉侵权人已实际实施侵害行为,并且系其企业的主营业务、构成主要利润来源;从主观方面,被诉侵权人明知其行为构成侵权而仍予实施。本案中,中山某电子科技有限公司成立于2017年1月24日,尽管其经营范围为生产、研发磁控管以及电子产品,但中山某电子科技有限公司确认从2017年1月设立以来只生产磁控管产品供应给威某公司,因此,中山某电子科技有限公司实际实施的侵害行为系其企业的主营业务,即与磁控管产品的制造和销售密切相关,构成了主要利润来源;另外,根据生效刑事判决以及本案二审查明的事实,刘某波于2001年入职应聘到广东某电器公司及其前身公司工作,从2005年开始参与广东某电器公司磁控管的研发,系广东某电器公司磁控管部门的核心技术人员。2017年1月,刘某波辞职,后于同年3月,刘某波使用化名“李某”到由威某公司实际出资成立的中山某电子科技有限公司工作并独自一人负责中山某电子科技有限公司磁控管的开发研制,而涉案专利于2015年6月28日申请并于2017年1月25日授权,刘某波在涉案专利申请授权期间作为广东某电器公司磁控管部门的核心技术人员,理应知悉上述涉案专利情况,结合中山某电子科技有限公司在本案审理过程中并未提交相关技术来源的情况下,可以合理推定中山某电子科技有限公司主观上明知构成侵权而仍予实施。因此,中山某电子科技有限公司属于完全以侵权为业的侵权人,可以按照销售利润计算权利人 so 受到的损失。

综上所述,对于广东某电器公司所主张的权利人所受到的损失计算方式予以支持,鉴于广东某电器公司仅对其中的1000万元请求赔偿,对此亦予以支持。

U. “桥梁伸缩缝装置”标准必要专利侵权案 ——标准必要专利侵权纠纷中FRAND许可义务的判断及其对确定赔偿数额的影响

当事人

徐某、宁波某科技公司诉河北某橡胶制品公司、河北某路桥公司

案号

最高人民法院（2020）最高法知民终1696号

合议庭成员

钱建国 | 颜峰 | 陈瑞子

关键词

民事 侵害发明专利权 标准必要专利 FRAND许可义务 赔偿

相关法律规定

- 《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释（二）》第24条

基本案情

徐某系专利号为200410049491.5、名称为“一种特大抗挠变梳型桥梁伸缩缝装置”发明专利的专利权人。交通运输部发布并实施的《单元式多向变位梳形板桥梁伸缩缝装置》行业推荐性标准记载了上述专利技术方案，并在引言部分声明专利持有人愿意同任何申请人在合理和非歧视的条件下就使用许可涉案专利进行谈判。徐某以零元许可费授权其控股并担任法定代表人的宁波某科技公司独占实施涉案专利。河北某路桥公司在其中标的高速公路工程中，使用了河北某橡胶制品公司按照上述标准制造并销售的伸缩缝装置。徐某、宁波某科技公司认为，河北某路桥公司、河北某橡胶制品公司的行为侵害其专利权，起诉要求两公司停止侵害并共同赔偿经济损失及合理费用合计300万元。

河北省石家庄市中级人民法院判决：河北某橡胶制品公司赔偿徐某、宁波某科技公司经济损失及合理开支共计10万元，驳回徐某、宁波某科技公司其他诉讼请求。宣判后，徐某、宁波某科技公司及河北某橡胶制品公司均提出上诉。最高人民法院于2022年6月30日作出（2020）最高法知民终1696号民事判决：撤销一审判决，改判河北某橡胶制品公司停止侵害并赔偿徐某、宁波某科技公司300万元。

裁判要旨

1. 标准必要专利的许可方式一般应为普通许可，但在特定情况下，基于关联利益关系的许可条件与一般市场竞争环境下的许可条件可能存在差异，如专利权人基于与被许可人的关联利益关系，作出的免费独占许可属于正常的商业安排，只要专利权人或该独占实施被许可人对外仍承担公平、合理、无歧视（FRAND）许可义务，并不影响关于专利许可的商业谈判，原则上不应仅因该种许可条件差异而认定专利权人违反FRAND原则。
2. 标准必要专利侵权纠纷中，专利权人是否违反FRAND原则以及被诉侵权人的过错情况均有可能对于赔偿数额的确定产生影响。如果标准必要专利的权利人并未违反FRAND原则，而在标准文件中明确披露了标准必要专利的技术方案、专利号及权利人联系方式的情况下，被诉侵权人非但没有主动寻求专利许可，在权利人发出通知后仍不进行磋商，反而继续实施该专利的，可以认定被诉侵权人在主观上存在明显过错；在适用许可使用费的倍数确定赔偿数额时，对于该情节应当重点予以考虑。

裁判理由

法院生效裁判认为：由于标准面对的是不特定多数人，在公平、合理、无歧视原则的要求下，标准必要专利的许可方式一般应为普通许可，但是对此不能进行机械的理解。发放独占实施许可是专利权人实施专利的一种方式，即便专利权人与被许可人达成独占实施许可，只要专利权人或该独占实施被许可人仍需对外承担公平、合理、无歧视的许可义务，则不能仅因专利权人与被许可人达成独占实施许可就认为专利权人违反了上述义务。在特定情况下，如专利权人与被许可人系有投资关系的关联公司，或者专利权人系被许可人的股东、法定代表人等具有其他关联利益关系等情形，独占实施被许可人实施专利所获得的利益与专利权人一致，此时，独占实施许可费用可以较低甚至为零。基于关联利益关系的许可条件与一般市场竞争环境下的许可条件可能存在差异，原则上不应仅因该种许可条件差异而认定专利权人违反公平、合理、无歧视的许可义务。本案中，专利权人徐某既是宁波某科技公司的法定代表人，又是该公司的股东和实际控制人，其基于其上述身份，免费将涉案专利独占许可给宁波某科技公司，属于正常的商业安排，且并不影响关于专利许可的商业谈判，不构成对于其他专利实施人的价格歧视，没有违反公平、合理、无歧视的许可义务。涉案专利为标准必要专利，推荐性标准中明确披露了涉案专利技术方案、专利号及权利人联系方式。宁波某科技公司非但没有主动寻求专利许可，在收到专利权利人发出的专利许可协商函后，仍不与专利权人进行磋商，反而在之后的工程中再次实施涉案专利，主观上存在明显过错，因此应当承担停止侵害并赔偿损失的侵权责任。在适用许可使用费的倍数确定赔偿数额时，对于双方当事人的上述过错情节应当重点予以考虑。

V. “艾地骨化醇软胶囊”药品专利链接案 ——仿制药申请人4.2类声明与药品专利权利要求的对应性及仿 制药技术方案的确定

当事人

日本某株式会社诉温州某药业有限公司

案号

最高人民法院（2022）最高法知民终905号

合议庭成员

朱理 | 崔宁 | 柯霄宁

关键词

民事 药品专利链接 比对依据 四类声明 独立权利要求

相关规定

— 《中华人民共和国专利法》第76条

基本案情

日本某株式会社系名称为“ED-71制剂”、专利号为200580009877.6发明专利（以下简称涉案专利）的专利权人，其拥有相关原研药的上市许可，已在中国上市药品专利信息登记平台（以下简称登记平台）就上述药品和专利进行登记。温州某药业有限公司向国家药品监督管理局申请上述原研药的仿制药上市许可，并作出相关声明，称其仿制药未落入登记平台收录的原研药相关专利权保护范围。日本某株式会社向北京知识产权法院提起诉讼，请求确认涉案仿制药技术方案落入涉案专利权利要求的保护范围。

北京知识产权法院判决：驳回日本某株式会社的诉讼请求。日本某株式会社不服，提起上诉。最高人民法院于2022年8月5日作出（2022）最高法知民终905号民事判决：驳回上诉，维持原判。

裁判要旨

1. 仿制药申请人依据《药品专利纠纷早期解决机制实施办法（试行）》第6条的规定作出其申请的仿制药技术方案不落入被仿制药品专利权保护范围的声明的，原则上应当针对被仿制药品所对应的保护范围最大的权利要求作出声明，以保证声明的真实性和准确性。中国上市药品专利信息登记平台公开了被仿制药品所对应的两个或者两个以上的独立权利要求时，仿制药申请人应当针对该两个或者两个以上独立权利要求作出声明。
2. 在药品专利链接诉讼中，判断仿制药的技术方案是否落入专利权保护范围时，原则上应当以仿制药申请人的申报资料为依据进行比对评判；仿制药申请人实际实施的技术方案与申报资料是否相同，一般不属于药品专利链接诉讼的审查范围。

裁判理由

法院生效裁判认为：根据《药品专利纠纷早期解决机制实施办法（试行）》第6条的规定，化学仿制药申请人提交药品上市许可申请时，应当对照已在登记平台公开的专利信息，针对被仿制药每一件相关的药品专利作出声明。仿制药申请人对相关声明的真实性、准确性负责。该规定仅对仿制药申请人作出声明所针对的专利提出了要求，并未明确声明所应当针对的药品专利的具体权利要求。仿制药申请人作出声明时，通常应该考虑被仿制药品与登记平台公开的专利权利要求的对应关系，即被仿制药品是否实施了登记平台公开的专利权利要求的技术方案。对于4.2类声明而言，该类声明的核心在于申明仿制药申请人申请的仿制药技术方案不落入被仿制药品专利权的保护范围。为保证声明的真实性和准确性，仿制药申请人原则上应该针对被仿制药品所对应的保护范围最大的权利要求作出声明。由于专利独立权利要求的保护范围最大，如果被仿制药品对应着专利独立权利要求，只要仿制药的技术方案不落入独立权利要求的保护范围，必然不落入从属权利要求的保护范围。但是，如果仿制药技术方案不落入药品专利从属权利要求的保护范围，并不能当然得出不落入药品专利权保护范围的结论。因此，对于4.2类不落入专利权保护范围的声明，如果被仿制药品对应着专利独立权利要求，仿制药申请人应当针对独立权利要求作出声明；当被仿制药品所对应的保护范围最大的权利要求存在两个或者两个以上的独立权利要求时，仿制药申请人针对该两个或者两个以上独立权利要求作出声明，才能保证声明的真实性和准确性。

专利权人在登记平台上登记信息之后，有可能在无效宣告程序中修改已登记专利的权利要求，但无论以何种方式修改权利要求，最终被接受的审查文本不得扩大原权利要求的保护范围，故只要仿制药申请人在提出仿制药申请时针对被仿制药品所对应的保护范围最大的权利要求作出4.2类声明，专利权人在无效宣告程序中对权利要求的修改就不会影响声明的真实性和准确性。

本案的特殊之处在于，仿制药申请人温州某药业有限公司未针对修改前被仿制药品所对应的独立权利要求作出声明，而是仅对修改前的从属权利要求2作出声明。对此，在无效宣告程序中，专利权人对权利要求的修改并不必然导致审查文本的变化，修改后的审查文本被国家知识产权局接受并公开的最早时点系在口头审理过程中。国家药品监督管理局于2021年8月16日受理温州某药业有限公司提出的涉案仿制药注册申请时，国家知识产权局尚未对涉案专利的无效宣告请求进行口头审理。故温州某药业有限公司申请涉案仿制药上市并作出4.2类声明在前，国家知识产权局举行口头审理在后。温州某药业有限公司在作出4.2类声明之时，未对被仿制药品当时所对应的保护范围最大的独立权利要求作出声明，仅对保护范围更小的从属权利要求作出声明，不具有正当理由，有避重就轻之嫌，其行为难言正当。温州

某药业有限公司称其曾向国家药品监督管理局申请修改声明，但该事实发生在日本某株式会社提起本案诉讼之后，难以证明温州某药业有限公司行为的正当性。

药品上市审评审批过程中，药品上市许可申请人与有关专利权人或者利害关系人之间因申请注册的药品相关的专利权产生的纠纷仅仅是双方之间关于相关专利权的一种特殊形式的纠纷，通常被称为药品专利链接纠纷。对于化学仿制药而言，国务院药品监督管理部门依据仿制药申请人的申报资料进行药品上市审评审批，并在规定的期限内根据人民法院对该类纠纷作出的生效裁判决定是否暂停批准相关药品上市，故在判断仿制药的技术方案是否落入专利权保护范围时，原则上应以仿制药申请人的申报资料为依据进行比对评判。如果仿制药申请人实际实施的技术方案与申报技术方案不一致，其需要依照药品监督管理相关法律法规承担法律责任；如果专利权人或利害关系人认为仿制药申请人实际实施的技术方案构成侵权，亦可另行提起侵害专利权纠纷之诉。因此，仿制药申请人实际实施的技术方案与申报资料是否相同，一般不属于确认落入专利权保护范围纠纷之诉的审查范围。本案中，温州某药业有限公司将登记为原料药的抗氧化剂作为涉案仿制药的辅料申报是否符合相关规定，属于国务院药品监督管理部门的审查范围，不影响本院对申报资料真实性和本案比对对象的确认。此外，日本某株式会社亦无其他证据证明国务院药品监督管理部门审评审批涉案仿制药抗氧化剂的依据发生变化。

W. “玛巴洛沙韦” 药品专利链接案 ——因“过渡期”内申请注册药品产生的药品专利链接诉讼的受理；药品专利链接诉讼的起诉条件

当事人

某制药株式会社诉某药业有限公司

案号

最高人民法院（2023）最高法知民终4号

合议庭成员

崔宁 | 余朝阳 | 柯霄宁

关键词

民事 药品专利链接 过渡期 起诉条件 四类声明

相关规定

— 《中华人民共和国专利法》第76条第1款、第3款

基本案情

某制药株式会社诉称：其系名称为“被取代的多环性氨基甲酰基吡啶酮衍生物的前药”的发明专利的专利权人，请求确认某药业有限公司提交的受理号为CYHS2101377的4类化学仿制药“玛巴洛沙韦片”（20mg）（以下简称涉案仿制药）的技术方案落入涉案专利权利要求1-9的保护范围。尽管涉案仿制药申请在《药品专利纠纷早期解决机制实施办法（试行）》发布之前的2021年6月30日业已受理，但某制药株式会社早在2021年6月21日即已将涉案专利信息登记在专利信息登记平台，且该平台于2021年6月28日首次公开了涉案专利信息。另外，某药业有限公司拒绝承诺在涉案专利权保护期内不寻求涉案仿制药上市，可以视为其认为涉案仿制药未落入涉案专利权的保护范围（相当于其提交了四类声明）。

某药业有限公司辩称：某制药株式会社提起本案诉讼缺乏法律法规明确要求的四类声明，不符合《最高人民法院关于审理申请注册的药品相关的专利权纠纷民事案件适用法律若干问题的规定》规定的起诉条件，不应予以受理。某药业有限公司提交仿制药上市许可申请的行为发生在《药品专利纠纷早期解决机制实施办法（试行）》施行前。彼时，专利信息登记平台尚未正式运行且未披露任何专利信息，某药业有限公司并不知道，且即使知道也不可能依据该办法对一个尚未披露在该平台上的专利作出四类声明。据此，根据法不溯及既往原则，本案不应适用《药品专利纠纷早期解决机制实施办法（试行）》。即使适用药品专利纠纷早期解决机制实施办法，某药业有限公司提交涉案仿制药注册申请时，专利信息登记平台也没有相关专利信息。因此，某药业有限公司不可能作出四类声明。

法院经审理查明：针对涉案专利，某制药株式会社于2021年6月21日在专利信息登记平台登记了相关信息。上述登记信息于2021年6月28日在专利信息登记平台公开。国家药品监督管理局于2021年6月23日收到了某药业有限公司提出的化学4类仿制药“玛巴洛沙韦片”的注册申请。2021年6月30日，国家药品监督管理局药品审评中心（以下简称药品审评中心）受理了该申请。针对涉案专利，某药业有限公司在登记平台未作专利声明。2021年7月14日，某制药株式会社向某药业有限公司发送了《专利告知函》，明确告知其申请注册的仿制药落入涉案专利权的保护范围，希望某药业有限公司在2021年7月21日前回复并承诺在涉案专利保护期内不寻求涉案仿制药上市。如果届时某药业有限公司没有回复，将视为某药业有限公司认为涉案仿制药未落入涉案专利权的保护范围。对于该《专利告知函》，某药业有限公司未予回复。2021年5月18日，药品审评中心在其官网（<https://www.cde.org.cn/>）发布了《关于药品专利纠纷早期解决机制相关专利信息登记平台公开测试等有关事项的通知》。2021年6月25日，药品审评中心在其官网发布《关于结束中国上市药品专利信息登记平台测试工作的预通知》，同时发布了《中国上市药品专利信息登记平台用户操作指南》。

北京知识产权法院判决：确认受理号为CYHS2101377的“玛巴洛沙韦片”的技术方案落入201180056716.8号发明专利权利要求1-9的保护范围。宣判后，某药业有限公司以将药品专利链接制度适用于本案违反法不溯及既往原则、一审判决认定本案视为四类声明显失公平、要求某药业有限公司承诺不在专利有效期内不实施侵权行为缺乏法律依据等为由，提出上诉。最高人民法院于2023年3月14日作出（2023）最高法知民终4号民事判决，驳回上诉，维持原判。

裁判要旨

1. 因《中华人民共和国专利法》施行之后、《药品专利纠纷早期解决机制实施办法（试行）》施行之前申请注册药品产生的专利权纠纷，当事人可以根据《中华人民共和国专利法》第七十六条第一款的规定提起诉讼。即使因有关衔接办法尚未施行致使当事人客观上无法提交有关材料，亦不影响人民法院依法受理。
2. 根据《中华人民共和国专利法》第七十六条第一款的规定，当事人提起药品专利链接诉讼应当符合以下条件：系在药品上市审评审批过程中提起诉讼；提起诉讼的主体系药品上市许可申请人或者有关专利权人、利害关系人；系因申请注册的药品相关的专利权产生的纠纷提起诉讼；诉讼请求的内容系确认申请注册的药品相关技术方案是否落入药品专利权保护范围。此外，专利权人及其利害关系人提起该类诉讼还应当以合法有效的专利权为基础。

裁判理由

法院生效裁判认为：

（一）关于针对本案所涉情形提起诉讼的法律依据

《中华人民共和国专利法》第七十六条中并未特别规定第一款规定的施行应以第三款规定中的具体衔接办法已经实施为前提。在没有特别规定的情况下，应以法律的施行时间作为具体条款的施行时间。其次，《中华人民共和国专利法》第七十六条第一款规定已经赋予当事人诉权，而第三款规定针对的是药品上市许可审批与专利权纠纷解决的衔接办法。两程序之间的具体衔接办法是否制定并施行，不应影响当事人的诉权。再次，尽管仅凭《中华人民共和国专利法》第七十六条的规定尚不足以完整构建药品专利链接制度，但相关制度是

否完善并不影响法律生效后的施行。在具体案件中适用法律时,应当遵循立法本意和立法目的,尊重法律赋予当事人的诉权,原则上不应以此为由事实上改变法律的施行时间。因此,对于《中华人民共和国专利法》施行之后,《药品专利纠纷早期解决机制实施办法(试行)》施行之前申请注册的仿制药,当事人可以依据《中华人民共和国专利法》第七十六条第一款的规定提起诉讼,而不以《药品专利纠纷早期解决机制实施办法(试行)》的施行及其规定的相关条件具备为前提。

(二) 关于针对本案所涉情形提起诉讼的具体条件

虽然某制药株式会社提起本案诉讼的时间在《最高人民法院关于审理申请注册的药品相关的专利权纠纷民事案件适用法律若干问题的规定》施行之后,但《最高人民法院关于审理申请注册的药品相关的专利权纠纷民事案件适用法律若干问题的规定》规定的提起诉讼时应提交的材料均为依据所谓衔接办法形成的材料。前已述及,因《中华人民共和国专利法》施行之后、《药品专利纠纷早期解决机制实施办法(试行)》施行之前申请注册的药品产生的专利权纠纷,当事人可以根据《中华人民共和国专利法》第七十六条第一款的规定提起诉讼。如果因为所谓衔接办法尚未施行而使得当事人客观上无法提交依据所谓衔接办法形成的材料,其诉权不应受到影响,否则将使《中华人民共和国专利法》第七十六条第一款规定的施行时间事实上推迟到《最高人民法院关于审理申请注册的药品相关的专利权纠纷民事案件适用法律若干问题的规定》施行之后。因此,该种情形下应依据《中华人民共和国专利法》第七十六条第一款和《中华人民共和国民事诉讼法》第一百二十二条的规定来判断当事人的起诉是否符合条件。此外,由于该种情形下仿制药申请人并无针对被仿制药相关专利作出声明的法定义务,故在具体适用法律判断提起诉讼的条件时,不宜引入“四类声明”的概念。

根据《中华人民共和国专利法》第七十六条第一款的规定,当事人的起诉应符合以下条件:1.系在药品上市审评审批过程中提起诉讼;2.提起诉讼的主体系药品上市许可申请人与有关专利权人或者利害关系人;3.系因申请注册的药品相关的专利权产生的纠纷提起诉讼;4.诉讼请求的内容系确认申请注册的药品相关技术方案是否落入药品专利权保护范围。此外,专利权人或者利害关系人提起的该类诉讼还应当以合法有效的专利权为基础。对于上述条件中的“申请注册的药品相关的专利权产生的纠纷”,因《中华人民共和国专利法》第七十六条第一款已明确规定该类纠纷的诉讼请求内容应为确认申请注册的药品相关技术方案是否落入药品专利权保护范围,故该类纠纷自然应指有关申请注册的药品相关技术方案是否落入药品专利权保护范围的纠纷。但在仿制药申请人声明机制尚未建立的情况下,专利权人或者利害关系人依据《中华人民共和国专利法》第七十六条第一款对该类纠纷提起诉讼,无需以仿制药申请人的意思表示为前提。双方当事人之间是否实际存在关于落入药品专利权保护范围的争议,应在实体审理阶段进行审查。

本案中,涉案专利权处于有效状态,某制药株式会社作为涉案专利的专利权人,在涉案仿制药审评审批过程中提起诉讼,请求确认涉案仿制药技术方案落入涉案专利权保护范围,符合《中华人民共和国专利法》第七十六条第一款规定的起诉条件。此外,某制药株式会社的起诉亦符合《中华人民共和国民事诉讼法》第一百二十二条规定的条件。

X. “结固式锚栓”实用新型专利侵权案 ——侵权人对外宣称的经营业绩可以作为计算损害赔偿的依据

当事人

某科技公司诉某建筑技术公司、张某某

案号

最高人民法院（2021）最高法知民终1066号

合议庭成员

徐燕如 | 刘晓梅 | 庞敏

关键词

民事 侵害实用新型专利权 赔偿计算 宣传业绩

相关法律规定

- 《中华人民共和国专利法》（2008年修正）第11条、第59条第1款、第65条第1款
- 《最高人民法院关于审理侵犯专利权纠纷案件应用法律若干问题的解释（二）》第27条

基本案情

某科技公司系专利号为201320534267.X、名称为“结固式锚栓”的实用新型专利（以下简称涉案专利）的专利权人。某科技公司认为，某建筑技术公司、张某某于2017年开始积极推广第三代点挂安装技术，其中“点挂专用抗拉拔保护锚栓”落入涉案专利权的保护范围，构成侵权，故向上海知识产权法院提起诉讼，请求判令停止侵害、赔偿损失250万元。

上海知识产权法院判决：驳回某科技公司的诉讼请求。某科技公司提出上诉，最高人民法院于2022年5月23日作出（2021）最高法知民终1066号民事判决：撤销原判，改判某建筑技术公司、张某某停止侵害，赔偿损失250万元。

裁判要旨

专利权利人主张以侵权人对外宣传的经营规模作为损害赔偿计算依据，侵权人抗辩该经营规模属于夸大宣传、并非经营实绩，但未提交证据证明其实际侵权经营规模的，人民法院可以依据该对外宣传的经营规模作为损害赔偿计算依据。

裁判理由

法院生效裁判认为：某建筑技术公司、张某某主张的抵触申请抗辩不成立。被诉侵权产品是某建筑技术公司和张某某积极推广的第三代点挂安装技术产品配件，某建筑技术公司和张某某在2017年宣称其累计施工面积已达200万平方米以上，且其通过宣传册和官方网站对

相关工程案例进行了宣传展示，某建筑技术公司副总经理在2019年2月24日仍通过微信朋友圈对第三代点挂施工工程进行宣传展示。某建筑技术公司和张某某对上述事实虽持有异议，认为200万平方米为夸大宣传，相关工程案例为借鉴合作方的案例，且相关工程并未使用被诉侵权产品。但是，某建筑技术公司和张某某并未提交有效反证证明其实际施工量，其主张夸大宣传依据不足；某建筑技术公司和张某某亦不提交其实际使用的锚栓配件，其主张未使用被诉侵权产品与事实不符，不能成立。在以上事实基础上，参考某科技公司主张的每平方米所需被诉侵权产品平均用量约为5根、专利产品销售单价为3.57元、3.27元不等以及合理利润率认定赔偿数额，某建筑技术公司和张某某侵权获利应不低于250万元。综合考虑某建筑技术公司和张某某经营规模，因其侵权时间长、侵权范围广、侵权恶意明显，以及某科技公司为本案支出的律师费、公证费等合理维权费用等因素，依法对某科技公司主张的250万元赔偿数额予以全额支持。

Y. “平板拖把”实用新型专利侵权纠纷反向行为保全案 ——涉电子商务平台侵害专利权纠纷反向行为保全的适用

当事人

慈溪市博某塑料制品有限公司诉永康市联某工贸有限公司、浙江天某网络有限公司等

案号

最高人民法院（2020）最高法知民终993号

合议庭成员

原晓爽 | 徐飞 | 孔立明

关键词

民事 侵害实用新型专利权 反向行为保全 担保数额 担保金

相关法律规定

— 《中华人民共和国民事诉讼法》（2017年修正）第100条

基本案情

慈溪市博某塑料制品有限公司（以下简称博某公司）系“具有新型桶体结构的平板拖把清洁工具”实用新型专利（以下简称涉案专利）及“一种用于平板拖把挤水和清洗的拖把桶”实用新型专利（以下简称180.2号专利）的专利权人。博某公司认为永康市联某工贸有限公司（以下简称联某公司）在浙江天某网络有限公司（以下简称天某公司）经营的“天某网”上销售的拖把神器构成对上述两专利权的侵犯，故向浙江省宁波市中级人民法院（以下简称宁波中院）提起本案及另案案号为（2019）浙02知民初368号（以下简称368号案）两起诉讼。宁波中院依博某公司的财产保全申请两案各冻结联某公司支付宝账户余额316万元。因博某公司向天某公司发起投诉，联某公司向天某公司申诉，并出具《知识产权保证金承诺函》，同意缴存100万元保证金于其支付宝账户内，并同意支付宝公司及天某公司冻结其网店自2019年11月10日22点起的全店所有销售收入。

宁波中院一审认定本案侵权成立，判令联某公司等停止侵权、连带赔偿损失，天某公司立即删除、断开被诉侵权产品的销售链接。同日，博某公司再次就被诉侵权产品向天某公司发起投诉。随后，天某公司删除了被诉侵权产品在“天某网”上的销售链接。

联某公司等向最高人民法院提起上诉。二审中，涉案专利权被国家知识产权局宣告全部无效，博某公司表示将就此提起行政诉讼。2020年11月5日，联某公司向最高人民法院提出反向行为保全申请，请求法院责令天某公司立即恢复申请人在“天某网”上的产品销售链接。并称被诉侵权产品系其“爆款产品”，“双十一”即将来临，不恢复链接将使其遭受难以弥补的损失。截至行为保全申请提出之日，368号案尚在一审审理中，其所涉180.2号专利仍处于

有效状态;联某公司支付宝账户余额共被冻结1560万元,其中828万元为联某公司同意冻结的其网店自2019年11月10日22点起的全店所有销售收入。

最高人民法院于2020年11月6日作出(2020)最高法知民终993号民事裁定:一、天某公司立即恢复联某公司在“天某网”购物平台上的被诉侵权产品销售链接;二、冻结联某公司名下的支付宝账户余额632万元,期限至本案判决生效之日;三、自恢复被诉侵权产品销售链接之日起至本案判决生效之日,如联某公司恢复链接后被诉侵权产品的销售总额的50%超过632万元,则应将超出部分的销售总额的50%留存在其支付宝账户内,不得提取。

裁判要旨

1. 涉电子商务平台的知识产权侵权纠纷案件中,被诉侵权人向人民法院申请行为保全,请求责令电子商务平台经营者恢复链接或者服务的,人民法院应当予以审查。
2. 被诉侵权人因涉嫌侵害专利权被采取断开链接或者暂停服务等措施后,涉案专利权被宣告无效但相关专利确权行政诉讼尚未终结期间,被诉侵权人申请采取行为保全措施以恢复链接或者服务,其初步证明或者合理说明,不予恢复将导致其遭受市场竞争优势、商业机会严重丧失等无法弥补的损害,采取恢复链接或者服务的行为保全措施对权利人可能造成的损害不会超过不采取行为保全措施对被诉侵权人造成的损害,且不损害社会公共利益的,人民法院可以裁定准许。
3. 人民法院采取前述行为保全措施,可以责令被诉侵权人在本案判决生效前不得提取其通过电子商务平台销售被诉侵权产品的收款账户中一定数额款项作为担保。提供担保的数额应当综合考虑权利人的赔偿请求额、采取保全措施错误可能给权利人造成的损失、采取保全措施后被诉侵权人的可得利益等情况合理确定。担保金可以采取固定担保金加动态担保金的方式。

裁判理由

法院生效裁判认为:

一、关于联某公司作为被诉侵权人是否具有提起行为保全申请的主体资格

电子商务平台经营者在收到知识产权权利人含有侵权初步证据的通知时,具有采取删除、屏蔽、断开链接、终止交易和服务等必要措施的法定义务。而对于电子商务平台经营者在何种情况下可以应平台内经营者的申请采取恢复链接等措施,我国法律没有相关规定。

《中华人民共和国民事诉讼法》第一百条所规定的行为保全措施的申请人并不限于原告。在涉电子商务平台知识产权侵权纠纷中,允许被诉侵权的平台内经营者在符合《中华人民共和国民事诉讼法》第一百条规定的条件下申请行为保全,要求电子商务平台经营者采取恢复链接等行为保全措施,对于合理平衡知识产权权利人、电子商务平台经营者和平台内经营者的合法利益,促进电子商务市场健康发展具有重要意义。

由于专利权等通过行政授权取得权利的知识产权在民事侵权诉讼过程中,可能因被宣告无效、提起行政诉讼等程序而使权利处于不确定状态,且平台内经营者的经营状况等在诉讼过程中也可能发生重大变化。此时,平台内经营者因情况紧急,不恢复链接将会使其合法利益受到难以弥补的损害,向人民法院申请行为保全,要求电子商务平台经营者采取恢复链接等行为保全措施的,人民法院应当予以受理,并依据《中华人民共和国民事诉讼法》第一百条及相关司法解释的规定进行审查。本案中,涉案专利在二审中被国家知识产权局宣告无效,

其有效性因权利人即将提起行政诉讼而处于不确定状态。作为被删除产品链接的联某公司具有提起恢复链接行为保全申请的主体资格。

二、关于本案应采取恢复链接行为保全措施

在确定是否依被诉侵权人的申请采取恢复链接行为保全措施时应主要考虑以下因素：申请人的请求是否具有事实基础和法律依据；不恢复链接是否会对申请人造成难以弥补的损害；恢复链接对专利权人可能造成的损害是否会超过不恢复链接对被诉侵权人造成的损害；恢复链接是否会损害社会公共利益；是否存在不宜恢复链接的其他情形。具体到本案：

（一）联某公司的请求是否具有事实基础和法律依据。本案为侵害实用新型专利权纠纷。我国实用新型专利的授权并经过实质审查，其权利稳定性较弱。为了平衡专利权人的利益及同业竞争者、社会公众的利益，维护正常、有序的网络运营环境，专利权人要求电子商务平台经营者删除涉嫌侵害实用新型专利权的产品销售链接时，应当提交由专利行政部门作出的专利权评价报告。专利权人无正当理由不提交的，电子商务平台经营者可以拒绝删除链接，但法院经审理后认定侵权的除外。本案中，天某公司在原审法院认定侵权成立后及时删除了被诉侵权产品的销售链接，但二审中涉案专利权已被国家知识产权局因缺乏新颖性而宣告全部无效，博某公司即将提起行政诉讼，专利有效性处于不确定状态。联某公司因本案诉讼及368号案，截至2020年11月5日支付宝账户余额共被冻结1560万元，正常生产经营受到严重影响。在此情况下，联某公司要求天某公司恢复产品链接具有事实与法律依据。

（二）不恢复链接是否会对申请人造成难以弥补的损害。在涉电子商务平台知识产权侵权纠纷中，删除、屏蔽、断开商品销售链接不仅将使该商品无法在电子商务平台上销售，而且还将影响该商品之前累积的访问量、搜索权重及账户评级，进而降低平台内经营者的市场竞争优势。因此，确定“难以弥补的损害”应考量是否存在以下情形之一：1.不采取行为保全措施是否会使申请人的商誉等人身性质的权利受到无法挽回的损害；2.不采取行为保全措施是否会导致申请人市场竞争优势或商业机会严重丧失，导致即使因错误删除链接等情况可以请求金钱赔偿，但损失非常大或者非常复杂以至于无法准确计算其数额。

本案中，被诉侵权产品主要通过联某公司在“天某网”上的涉案网店进行销售，且根据原审查明的事实，2019年11月13日被诉侵权产品累计销量为283,693件；2019年12月4日，原审法院组织各方当事人进行证据交换时的累计销量为352,996件；2020年1月13日，原审庭审时的累计销量为594,347件。这一方面说明被诉侵权产品的销量大，另一方面也说明其累计的访问量及搜索权重较大，断开销售链接对其网络销售利益影响较大。特别是在“双十一”等特定销售时机，是否恢复链接将对被诉侵权人的商业利益产生巨大影响。在涉案专利权效力处于不确定状态的情况下，通过恢复链接行为保全措施使平台内经营者能够在“双十一”等特定销售时机正常上线经营，能够避免其利益受到不可弥补的损害。

（三）恢复链接对专利权人可能造成的损害是否会超过不恢复链接对被诉侵权人造成的损害。被诉侵权产品与涉案专利产品虽为同类产品，但市场上类似产品众多，并不会导致博某公司的专利产品因恢复链接而被完全替代。而且，法院已经考虑到因恢复链接可能给博某公司带来的损失，并将冻结联某公司支付宝账户相应金额及恢复链接后继续销售的部分可得利益，联某公司也明确表示同意。在此情况下，相较于不恢复链接对联某公司正常经营的影响，恢复链接对博某公司可能造成的损害较小。

(四) 恢复链接是否会损害社会公共利益。在专利侵权纠纷中, 社会公共利益一般考量的是公众健康、环保以及其他重大社会利益。本案被诉侵权产品系用于家庭日常生活的拖把桶, 恢复链接时考量的重要因素是否会对公众健康、环保造成影响, 特别是需要考虑是否会对消费者的人身财产造成不应有的损害, 而本案无证据表明被诉侵权产品存在上述可能损害公共利益的情形。

(五) 是否存在不宜恢复链接的其他情形。本案被诉侵权产品除涉嫌侵害涉案专利权外, 还在368号案中涉嫌侵害博某公司180.2号专利, 且180.2号专利目前仍处于有效状态。但首先, 368号案尚在一审审理中, 被诉侵权产品是否侵权、现有技术抗辩是否成立尚不确定。其次, 368号案中博某公司赔偿损失的诉讼请求已经通过冻结联某公司支付宝账户余额316万元的财产保全措施予以保障。再次, 在确定本案行为保全担保金额时, 已考虑368号案的情况酌情提高了联某公司的担保金额并将冻结联某公司恢复链接后继续销售的部分可得利益。因本行为保全措施系针对本案诉讼, 担保金额冻结至本案判决生效之日, 届时, 如果368号案仍在审理中, 博某公司可以在该案中通过申请行为保全等措施维护自身合法权益, 由法院根据该案情况决定是否采取行为保全措施。因此, 不存在博某公司就180.2号专利所享有的权利难以得到保障的情况。被诉侵权产品还因涉嫌侵害180.2号专利权而涉诉的事实不影响本案行为保全措施的采取。

三、关于担保金额的确定

行为保全担保金额的确定既要合理又要有效。既要考虑行为保全措施实施后对被申请人可能造成的损害, 也要防止过高的担保金额对申请人的生产经营造成不合理影响。在涉电子商务平台专利侵权纠纷中, 恢复链接行为保全措施担保金额的确定, 一方面应考虑恢复链接后可能给权利人造成的损害, 确保权利人就该损害另行主张赔偿的权利得到充分保障; 另一方面也应合理确定申请人恢复链接后的可得利益, 避免因冻结过多的销售收入不合理影响其资金回笼和后续经营。本案中, 博某公司在本案及368号案中均要求被诉侵权人赔偿经济损失316万元, 原审法院均已采取财产保全措施。但考虑到被诉侵权产品在删除链接前销售数额较大、恢复链接将可能导致博某公司的损失扩大等因素, 为最大限度保护专利权人的利益, 将综合博某公司在两案中的赔偿主张、恢复链接后联某公司的可得利益等因素酌定担保金额。鉴于联某公司的可得利益将随产品销售而不断增加, 除固定担保金外, 本案将增加动态担保金。由于联某公司的销售收入中还含有成本、管理费用等, 为防止过高的担保金额对联某公司的生产经营造成不合理影响, 在考虑本案及368号案所涉专利贡献率的情况下, 酌情将动态担保金确定为联某公司销售额的50%。

2. “便携可充式喷液瓶”实用新型专利发明人报酬案 ——因职务发明专利获得的侵权损害赔偿能否构成发明人报酬 的计算基础

当事人

曾某诉东莞某公司

案号

最高人民法院 (2019) 最高法知民终230号

合议庭成员

罗霞 | 童海超 | 徐飞

关键词

民事 职务发明发明人奖励、报酬 实用新型专利 侵权损害赔偿

相关法律规定

- 《中华人民共和国专利法》(2008年修正) 第11条、第16条
- 《中华人民共和国专利法实施细则》(2010年修订) 第78条

基本案情

曾某诉称：曾某于2006年11月进入东莞某公司工作，担任工程部经理，工作内容为参加技术研发项目、技术开发等。任职期间，曾某作为东莞某公司技术研发项目的负责人，完成多项研发任务，其中曾某主持的涉案专利由东莞某公司申请并获得授权。东莞某公司凭借该专利成功转型，并通过第三人许某实际控制的两家公司销售相关专利产品获取巨额利益。东莞某公司在获得涉案专利授权后，未向曾某支付过任何奖励和报酬，严重侵犯了曾某的合法权益。故向广州知识产权法院提起诉讼，请求判令东莞某公司支付其职务发明创造发明人报酬100万元。

东莞某公司辩称：1.曾某在涉案专利技术的提出、开发、完成过程中仅起辅助、次要作用。2.涉案专利仅系东莞某公司对便携可充液式瓶体不断研发过程中的一次实验，因涉案专利技术的排气结构不合理导致样品产生漏液现象，技术上存在重大缺陷导致涉案专利从未实施，东莞某公司以涉案专利为权利基础起诉他人侵权的诉讼中关于该专利已实施的陈述，仅系出于便于诉讼的目的；3.涉案的三家公司系完全独立的法人，东莞某公司并未通过曾某所述两家公司销售涉案专利产品而获得利润；4.本案已过诉讼时效；5.东莞某公司在其他案件中为便于诉讼所作的陈述，不构成本案的自认，曾某仍应承担与其主张相应的举证责任。

法院经审理查明：曾某与东莞某公司、第三人许某、王某职务发明创造发明人、设计人奖励、报酬纠纷案中，涉及专利号为200720051806.9、名称为“便携可充式喷液瓶”的实用新型专利（以下简称涉案专利）。东莞某公司曾以涉案专利权被侵害为由提起多起侵权诉讼，获得判决支持的侵权赔偿数额合计112.5万元。

广州知识产权法院于2019年5月21日作出（2017）粤73民初3581号民事判决：东莞某公司向曾某支付职务发明创造发明人报酬20万元。东莞某公司提出上诉，主张其并未实施涉案专利，也未因维权获益。最高人民法院于2020年7月21日作出（2019）最高法知民终230号民事判决：驳回上诉，维持原判。

裁判要旨

单位基于职务发明专利权获得的侵权损害赔偿，系禁止他人未经许可实施专利而获得的收入，在扣除必要的维权开支后，可以视为《中华人民共和国专利法实施细则》第七十八条规定的营业利润，发明人可以据此主张合理报酬。

裁判理由

法院生效裁判认为：根据《中华人民共和国专利法》第十六条的规定，发明创造专利实施后，根据其推广应用的范围和取得的经济效益，对发明人或者设计人给予合理的报酬。被授予专利权的单位应当向职务发明人或者设计人支付报酬，其原因在于被授予专利权的单位实施该专利并从实施中获得了经济效益，在专利被实施利用从而产生经济效益的情况下，获得该经济效益的单位应当给予发明人或者设计人合理的报酬。本案中，东莞某公司作为被授予专利权的单位，基于涉案专利的维权行为获得的损害赔偿款，系专利权人禁止他人未经许可实施专利而获得的收入，在扣除必要的维权成本及支出后，该经济效益应当视为《中华人民共和国专利法实施细则》第七十八条规定中所指的营业利润，据此基础给予发明人合理的报酬，于法有据。综合考虑涉案专利类型为实用新型专利、涉案专利涉及三位发明人、涉案专利权的有效期、涉案专利对于东莞某公司相关技术产品的研发和改进具有的影响和价值、东莞某公司在维权诉讼中必然存在的费用支出、东莞某公司获得判决支持的侵权损害赔偿款经过执行实际到账的情况等多项因素，一审法院酌定东莞某公司应当支付曾某职务发明报酬20万元，基本适当。

第三章 著作权案件

- A. “唐韵衣帽间家具”著作权侵权案
——实用艺术品的著作权保护
- B. “武侠Q传游戏”著作权侵权及不正当竞争案
——利用他人作品元素改编行为的判断思路与逻辑
- C. “斗罗大陆”手游著作权侵权案
——作品改编权侵权认定及反编译的运用
- D. “空竹”杂技作品著作权权属及侵权案
——杂技艺术作品的独创性表达及保护范围认定
- E. 涉“KTV”点唱设备著作权侵权案
——在后追认行为不能改变侵害著作权的认定
- F. 涉图片水印、单方权利声明作品信息网络传播权侵权案
——作品著作权权属认定中的证据审查判断
- G. 涉信息网络传播权管辖权异议案
——侵害作品信息网络传播权纠纷由侵权行为地或者被告住所地人民法院管辖
- H. “大头儿子”著作权侵权案
——委托作品和法人作品的认定
- I. “胖虎打疫苗” NFT 数字作品侵权案
——NFT 数字作品交易网络服务提供者的责任认定

A. “唐韵衣帽间家具”著作权侵权案 ——实用艺术品的著作权保护

当事人

某舍家居用品（上海）有限公司诉北京某盛木业有限公司、南京某阳家具销售中心

案号

最高人民法院（2018）最高法民申6061号

合议庭成员

秦元明 | 李嵘 | 吴蓉

关键词

民事 侵害著作权 实用艺术作品 实用性 艺术性

相关法律规定

— 《中华人民共和国著作权法实施条例》第2条、第4条

基本案情

2009年1月，某舍家居用品（上海）有限公司（以下简称某舍公司）设计了一款名称为“唐韵衣帽间家具”的家具图。同年7月，某舍公司委托上海某世摄影设计有限公司对其制作的系列家具拍摄照片。2011年9月、10月，某舍公司先后在和家网、搜房网进行企业及产品介绍与宣传，同时展示了其生产的“唐韵衣帽间家具”产品照片。2013年12月10日，某舍公司申请对“唐韵衣帽间组合柜”立体图案进行著作权登记。

南京某阳家具销售中心（以下简称某阳销售中心）为北京某盛木业有限公司（以下简称某盛公司）在南京地区的代理经销商。某舍公司发现某阳销售中心门店销售品牌为“越界”的“唐韵红木衣帽间”与“唐韵衣帽间组合柜”完全一致。某舍公司认为，“唐韵衣帽间组合柜”属于实用艺术作品，某盛公司侵犯了某舍公司对该作品享有的复制权、发行权；某阳销售中心侵犯了某舍公司对该作品的发行权。2013年11月29日至2014年1月13日，某舍公司对被诉侵权产品申请证据保全，并提起了本案诉讼。

将某舍公司的“唐韵衣帽间家具”与被诉侵权产品“唐韵红木衣帽间”进行比对，二者相似之处在于：整体均呈L形，衣柜门板布局相似，配件装饰相同，板材花色纹路、整体造型相似等，上述相似部分主要体现在艺术方面；不同之处主要在于L形拐角角度和柜体内部空间分隔，体现于实用功能方面，且对整体视觉效果并无影响，不会使二者产生明显差异。

某舍公司向江苏省南京市中级人民法院提起诉讼。一审法院判决：驳回某舍公司的诉讼请求。某舍公司不服一审判决，向江苏省高级人民法院提起上诉。二审法院判决：1.撤销一审判决；2.某盛公司立即停止生产、销售侵害某舍公司“唐韵衣帽间家具”作品著作权的产品。

的行为; 3.某阳销售中心立即停止销售侵害某舍公司“唐韵衣帽间家具”作品著作权的产品的行为; 4.某盛公司于本判决生效之日起十日内赔偿某舍公司经济损失(包括合理费用) 30万元; 5.驳回某舍公司的其他诉讼请求。某盛公司不服, 向最高人民法院申请再审。最高人民法院于2018年12月29日作出(2018) 最高法民申6061号裁定, 驳回某盛公司的再审申请。

裁判要旨

对于具有独创性、艺术性、实用性、可复制性且艺术性与实用性能够分离的实用艺术品, 可以认定为实用艺术作品, 并作为美术作品受《中华人民共和国著作权法》的保护。受《中华人民共和国著作权法》保护的实用艺术作品必须具有艺术性, 《中华人民共和国著作权法》保护的是实用艺术作品的艺术性而非实用性。

裁判理由

法院生效裁判认为, 本案主要争议焦点为:

一、关于某舍公司的“唐韵衣帽间家具”是否构成受《中华人民共和国著作权法》保护作品的问题

《中华人民共和国著作权法实施条例》第二条规定: “著作权法所称作品, 是指文学、艺术和科学领域内具有独创性并能以某种有形形式复制的智力成果。”《中华人民共和国著作权法实施条例》第四条第八项规定: “美术作品, 是指绘画、书法、雕塑等以线条、色彩或者其他方式构成的具有审美意义的平面或者立体的造型艺术作品。”我国《中华人民共和国著作权法》所保护的是作品中作者具有独创性的表达, 而不保护作品中所反映的思想本身。实用艺术品本身既具有实用性, 又具有艺术性。实用功能属于思想范畴不应受《中华人民共和国著作权法》保护, 作为实用艺术作品受到保护的仅仅在于其艺术性, 即保护实用艺术作品上具有独创性的艺术造型或艺术图案, 亦即该艺术品的结构或形式。作为美术作品中受《中华人民共和国著作权法》保护的实用艺术作品, 除同时满足关于作品的一般构成要件及其美术作品的特殊构成条件外, 还应满足其实用性与艺术性可以相互分离的条件。在实用艺术品的实用性与艺术性不能分离的情况下, 不能成为受《中华人民共和国著作权法》保护的美术作品。

某舍公司的“唐韵衣帽间家具”具备可复制性的特点, 双方当事人对此并无争议。本案的核心问题在于“唐韵衣帽间家具”上是否具有具备独创性高度的艺术造型或艺术图案, 该家具的实用功能与艺术美感能否分离。

首先, 关于某舍公司是否独立完成“唐韵衣帽间家具”的问题。某舍公司向一审法院提交的设计图稿、版权登记证书、产品照片、销售合同、宣传报道等证据已经形成完整的证据链, 足以证明该公司已于2009年独立完成“唐韵衣帽间家具”。某盛公司主张某舍公司的“唐韵衣帽间家具”系抄袭自他人的配件设计, 并使用通用花色和通用设计, 因其未提交足以证明其主张的证据, 法院对其上述主张不予支持。

其次, 关于某舍公司完成的“唐韵衣帽间家具”是否具有独创性的问题。从板材花色设计方面看, 某舍公司“唐韵衣帽间家具”的板材花色系由其自行设计完成, 并非采用木材本身的纹路, 而是提取传统中式家具的颜色与元素用抽象手法重新设计, 将传统中式与现代风格融合, 在颜色的选择、搭配、纹理走向及深浅变化上均体现了其独特的艺术造型或艺术图

案;从配件设计方面看,“唐韵衣帽间家具”使用纯手工黄铜配件,包括正面柜门及抽屉把手及抽屉四周镶有黄铜角花,波浪的斜边及镂空的设计。在家具上是否使用角花镶边,角花选用的图案,镶边的具体位置,均体现了某舍公司的取舍、选择、设计、布局等创造性劳动;从中式家具风格看,“唐韵衣帽间家具”右边采用了中式——对称设计,给人以和谐的美感。因此,“唐韵衣帽间家具”具有审美意义,具备美术作品的艺术创作高度。

最后,关于某舍公司“唐韵衣帽间家具”的实用功能是否能与艺术美感分离的问题。“唐韵衣帽间家具”之实用功能主要在于柜体内部置物空间设计,使其具备放置、陈列衣物等功能,以及柜体L形拐角设计,使其能够匹配具体家居环境进行使用。该家具的艺术美感主要体现在板材花色纹路、金属配件搭配、中式对称等设计上,通过在中式风格的基础上加入现代元素,产生古典与现代双重审美效果。改动“唐韵衣帽间家具”的板材花色纹路、金属配件搭配、中式对称等造型设计,其作为衣帽间家具放置、陈列衣物的实用功能并不会受到影响。因此,“唐韵衣帽间家具”的实用功能与艺术美感能够进行分离并独立存在。

因此,某舍公司的“唐韵衣帽间家具”作为兼具实用功能和审美意义的立体造型艺术作品,属于受《中华人民共和国著作权法》保护的美术作品。

二、关于某盛公司是否侵害了某舍公司主张保护涉案作品著作权的问题

判断被诉侵权产品是否构成侵害他人受《中华人民共和国著作权法》保护的作品,应当从被诉侵权人是否“接触”权利人主张保护的作品、被诉侵权产品与权利人主张保护的作品之间是否构成“实质相似”两个方面进行判断。本案中,首先,根据二审法院查明的事实,某盛公司提供的相关设计图纸不能完全反映被诉侵权产品“唐韵红木衣帽间”的设计元素,亦缺乏形成时间、设计人员组成等信息,不能充分证明被诉侵权产品由其自行设计且独立完成。某舍公司的“唐韵衣帽间家具”作品形成及发表时间早于某盛公司的被诉侵权产品。某盛公司作为家具行业的经营者,具备接触某舍公司“唐韵衣帽间家具”作品的条件。其次,如前所述,对于兼具实用功能和审美意义的美术作品,《中华人民共和国著作权法》仅保护其具有艺术性的方面,而不保护其实用功能。判断某舍公司的“唐韵衣帽间家具”作品与某盛公司被诉侵权产品“唐韵红木衣帽间”是否构成实质性相似时,应从艺术性方面进行比较。将“唐韵衣帽间家具”与被诉侵权产品“唐韵红木衣帽间”进行比对,二者相似之处在于:整体均呈L形,衣柜门板布局相似,配件装饰相同,板材花色纹路、整体造型相似等,上述相似部分主要体现在艺术方面;不同之处主要在于L形拐角角度和柜体内部空间分隔,体现于实用功能方面,且对整体视觉效果并无影响,不会使二者产生明显差异。因此,某盛公司的被诉侵权产品与某舍公司的“唐韵衣帽间家具”作品构成实质性相似、某盛公司侵害了某舍公司涉案作品的著作权。

B. “武侠Q传游戏” 著作权侵权及不正当竞争案 ——利用他人作品元素改编行为的判断思路与逻辑

当事人

明某出版有限公司、完某（北京）软件有限公司诉北京火某网络科技有限公司等

案号

北京市高级人民法院（2018）京民终226号

合议庭成员

杨柏勇 | 苏志甫 | 周波

关键词

民事 侵害著作权 改编权 独创性表达 实质性相似

相关法律规定

- 《中华人民共和国民事诉讼法》（2017年修正）第52条第1款、第119条
- 《中华人民共和国著作权法》（2010年修正）第10条第1款第14项、第49条

基本案情

明某出版有限公司（以下简称明某公司）和完某（北京）软件有限公司（以下简称完某公司）共同诉称：自2002年起，明某公司是《金庸作品集》在中国境内除图书形式出版发行简体字中文版本以外的其他专有使用权人。完某公司受让取得了该作品集在特定区域、特定期间内移动终端游戏软件改编权及改编后游戏软件的商业开发独家授权。北京火某网络科技有限公司（以下简称火某公司）、万某科技股份有限公司（以下简称万某公司）、乐某网络技术有限公司（以下简称乐某公司）未经许可擅自将《射雕英雄传》《倚天屠龙记》《神雕侠侣》《笑傲江湖》四部小说（以下合称涉案作品）改编为游戏（以下简称涉案游戏）并通过发行、传播侵权游戏获取巨额非法利益，严重侵犯了明某公司及完某公司的改编权。火某公司、万某公司、乐某公司作为与明某公司及完某公司具有竞争关系的经营者，不正当地利用涉案作品在社会公众中的知名度，将公众耳熟能详的小说人物、武功等元素进行卡牌设置，攀附了涉案作品及作品作者的声誉，虚假宣传并违反诚信原则，构成不正当竞争。故向一审法院提起诉讼，请求：判令火某公司、万某公司、乐某公司停止侵权、赔礼道歉、消除影响，赔偿明某公司及完某公司经济损失1亿元、并支付维权合理开支31万余元。

火某公司、万某公司、乐某公司共同辩称：明某公司及完某公司是否享有改编权存疑，其诉讼主体资格不适格。涉案游戏系某网络公司创作的新作品，其中创作素材来源于公有领域，不构成涉案作品的演绎作品。文字作品中单独的人物角色、场景、武功、兵器、阵法等不是《中华人民共和国著作权法》的保护对象。万某公司及乐某公司已经尽到合理注意义务。涉案游戏不构成对明某公司及完某公司著作权的侵害，亦不构成不正当竞争。

法院经审理查明：自2002年起，明某公司是《金庸作品集》（其中包含《射雕英雄传》《神雕侠侣》《倚天屠龙记》《笑傲江湖》四部作品，即涉案作品）在中国境内除以图书形式出版发行简体字中文版本以外的其他专有使用权人。完某公司受让取得了该作品集在特定区域、特定期间内移动终端游戏软件改编权及改编后游戏软件的商业开发独家授权。

涉案游戏是由火某公司开发，由万某公司和乐某公司负责运营的卡牌类手机游戏。该款游戏包括人物、武功、配饰和阵法等四类卡牌。涉案游戏情节梗概为：武林正派围剿魔教，双方两败俱伤，魔教教主下落不明。一武林正派掌门临终前嘱咐其弟子寻访下落不明的魔教教主。该弟子遵照师父的嘱托，以闯关的形式走遍江湖，寻找魔教教主的下落。其在寻访闯关的过程中，与众多武林高手过招，目睹了江湖中的风风雨雨。

经统计，涉案游戏共设有弟子110个，其中的弟子角色与涉案作品中的角色存在对应关系的共76个，占游戏总人物角色数量的近70%，涉及到涉案作品中的全部核心人物。涉案游戏共设有武功116种，其中的武功与涉案作品中描述的武功存在对应关系的共82个，占比为71%。涉案游戏中设置的关卡与涉案作品中的故事场景存在对应关系有8个，占总关卡数的25%。并且，涉案游戏在人物描述、武功描述、配饰描述、阵法描述、关卡设定等多个方面与涉案作品中的相应内容存在对应关系或相似性。火某公司认可开发涉案游戏时参考借鉴了涉案作品的相关元素。

北京市第一中级人民法院判决：1.火某公司、万某公司、乐某公司立即停止在涉案游戏软件中使用与涉案作品有关的元素，在删除与涉案作品有关的元素之前，不得自行或授权他人提供涉案游戏客户端的下载服务；2.火某公司、万某公司、乐某公司就其实施的不正当竞争行为分别在其各自公司官方网站首页上端连续72小时刊登声明，消除影响；3.火某公司、万某公司、乐某公司连带赔偿明某公司及完某公司经济损失及合理费用合计人民币16,319,650.8元；4.驳回明某公司及完某公司的其他诉讼请求。各方当事人均不服上述判决，向北京市高级人民法院提出上诉。二审法院于2019年12月18日作出（2018）京民终226号民事判决：1.维持一审判决第一项、第三项；2.撤销一审判决第四项；3.变更一审判决第二项为：火某公司、万某公司、乐某公司就其实施的侵害涉案作品改编权的行为分别在其各自公司官方网站首页上端连续七十二小时刊登声明，消除影响；4.驳回完某公司、明某公司的其他诉讼请求；5.驳回火某公司、万某公司、乐某公司的全部上诉请求。

裁判要旨

根据《中华人民共和国著作权法》第十条第一款第十四项的规定，改编权是改变作品，创作出具有独创性的新作品的权利。对于侵犯改编权行为的认定，一般遵循“接触加实质性相似”的判断方法，即从被诉侵权作品作者是否接触过权利人作品、被诉侵权作品与权利人作品之间是否构成实质性相似等方面进行判断。判断是否构成实质性相似时，应比较作者在作品表达中的选择、取舍、安排、设计等是否相同或相似。

裁判理由

法院生效裁判认为：关于涉案游戏是否构成对涉案作品改编权的侵害。根据《中华人民共和国著作权法》第十条第一款第十四项的规定，改编权是改变作品，创作出具有独创性的新作品的权利。对于侵犯改编权行为的认定，一般遵循“接触加实质性相似”的判断方法，即从被诉侵权作品作者是否接触过权利人作品、被诉侵权作品与权利人作品之间是否构成实质性相似等方面进行判断。《中华人民共和国著作权法》给予保护的是作品中作者的独创性表

达,即思想或情感的表现形式,不包括作品中所反映的思想或情感本身。受保护的表达不仅指文字、色彩、线条等符号的最终形式,当作品的内容被用于体现作者的思想、情感时,亦属于受保护的表达,但创意、素材或公有领域的信息、创作形式、必要场景或表达唯一或有限则被排除在《中华人民共和国著作权法》的保护范围之外。判断是否构成实质性相似时,应比较作者在作品表达中的选择、取舍、安排、设计等是否相同或相似。

本案中,涉案作品在涉案游戏开发之前已经在先出版发行,火某公司在一审诉讼中亦认可开发涉案游戏时借鉴和参考了涉案作品的相关元素,可以认定火某公司开发涉案游戏接触了涉案作品。关于二者的相似之处,根据侵权比对材料和侵权对比表所载,该部分内容均是将二者作为对比对象而得出且绝大部分内容存在重合之处。火某公司、万某公司、乐某公司所举证或说明的创作来源与涉案游戏相关内容的具体对应性、一致性程度远远弱于明某公司及完某公司所列明的涉案作品的相关内容。根据高度盖然性的证明标准和证据优势原则,结合火某公司有关借鉴和参考涉案作品相关元素的自认,二审法院对明某公司及完某公司关于涉案游戏使用涉案作品相关内容的的主张予以采信。

本案中,在认定涉案游戏与涉案作品中大量人物名称、性格特征、兵器、武功招式等诸多内容存在相似性和对应性的基础上,判断涉案游戏是否侵害涉案作品改编权的关键在于判断涉案游戏对涉案作品相关内容的使用是否属于以改编方式使用涉案作品的独创性表达。

一般来讲,对于一部由主题、故事脉络、情节设计、人物关系等要素组成的作品而言,故事的主题、单纯的人物关系应归于“思想”范畴;但围绕故事主题展开的特定情节、人物关系的具体化,则可能因其具体到一定程度而应归为“表达”。对于影视、游戏改编涉及到的角色、情节、场景等作品元素,应作具体分析。由于作品是内容与表现形式的有机统一,其创作要素包括涉及思想领域的创作要素和涉及具体表达领域的创作要素。从思想到具体表达,创作要素体现了抽象与具体的区分。抽象创作要素如题材、体裁、主题、事实等,不同创作者可以采用不同创作手法进行个性化表述,不宜由某一特定主体所独占;具体创作要素如结构、情节、人物角色等,其选择、取舍、安排、设计等具备独创性的,则应受《中华人民共和国著作权法》保护。

就本案而言,第一,涉案游戏对涉案作品相关内容的使用是以卡牌网络游戏形式对涉案作品中的独创性表达进行的截取式、组合式使用。首先,明某公司及完某公司主张涉案游戏使用的涉案作品内容并非抽象的题材、体裁、主题、事实等明显应归于“思想”范畴的内容,而是涉案四部武侠小说中的人物角色、人物特征、人物关系、武功招式以及武器、阵法、场景等具体的创作要素,上述要素以特定形式相结合相对完整地表达了作者对特定人物塑造或情节设计的构思,对于上述要素的运用体现了作者在作品表达中进行的取舍、安排和设计,因此,属于涉案作品独创性表达的有机组成部分。其次,涉案游戏对涉案作品相关内容的使用并非是对涉案作品中相对独立元素的孤立使用,而是进行了截取式、组合式使用。根据明某公司及完某公司所提交的侵权比对内容以及在此基础上进行的相关归纳,涉案游戏中的人物卡牌、武功卡牌、配饰卡牌、阵法卡牌以及关卡等在名称设定、具体事项描述上与涉案作品中的相应内容具有极强的对应性,尤其是人物角色、武功种类的相似数量达数十个,在涉案游戏中的占比达70%以上,并且在卡牌组合规则设计中直接使用了涉案作品对人物角色、武功、配饰、阵法以及具体场景相互关联关系的设计和安排,从而使得涉案游戏能够体现涉案作品中有关人物的性格特征、独特经历、人物关系以及与之有关的武功、武器、阵法、场景等具体情节和场景设计。因此,涉案游戏构成了对涉案作品独创性表达的使用,只是这种使用不是一般意义上的整体性或局部性使用,而是将涉案四部武侠小说中的独创性表达进行了截取式、组合式的使用。第二,涉案游戏对涉案作品中独创性表达的使用仅是改变了涉

案作品中独创性表达的表现形式,并未形成脱离于涉案作品的新表达。改编权所控制的改编行为是一种将他人作品用于自己作品的行为,但这种使用行为不同于复制行为和借鉴行为。改编行为与复制行为的区别在于,改编是在原作品基础上进行的再创作,改编是对原作品的改变,但这种再创作受制于原作品,改编形成的新作品不是完全独立于原作品的新作品,而是使用了原作品的表达;改编的形式不以作品体裁、类型的变化为要件,既可以在原作品的基础上对作品进行同一文学、艺术形式范畴内的再创作,也可以采用不同的文学、艺术形式进行再创作,只要在利用原作品表达的基础上,创作出不同原作品的新作品,且这种改动体现了改编者的独创性,均属于改编行为。改编行为与借鉴行为的区别在于,借鉴者创作的新作品是在借鉴原作中的主题、情感、构思等归于“思想”内容的基础上进行自己的独创性表达,该表达不同于或脱离于被借鉴作品中的具体表达。如前文所述,涉案游戏对于涉案作品中人物角色、人物特征、人物关系、武功招式以及武器、阵法、场景等具体创作要素的使用,是以卡牌游戏这一新的表现形式进行再现,且由此所表现的人物特征、人物关系以及其他要素间的组合关系与涉案作品中的选择、安排、设计并不存在实质性差别,并未形成脱离于涉案作品中独创性表达的新表达。第三,若对涉案游戏的改编行为不予制止,将导致涉案作品的移动终端游戏改编权及相关权益难以实现。作品的财产性利益最终需要通过市场交易来实现。对于武侠小说的游戏改编而言,以小说人物为中心的武功、配饰、阵法、场景及其相互关系设计等内容是体现作者选择、安排和设计的核心创作元素。涉案游戏对涉案作品的具体创作要素进行了截取式、组合式的使用,能够使涉案游戏相关用户通过游戏卡牌的形式部分获得欣赏涉案作品的体验,若对该行为不予制止,则完某公司及明某公司所获得的有关涉案作品移动终端游戏改编权授权及相关权益将难以实现。综上所述,涉案游戏构成对涉案作品的改编,火某公司未经许可改编涉案作品,构成对明某公司及完某公司享有的涉案作品移动终端游戏软件改编权的侵害。一审法院的相关认定,与本案事实及法律规定不符,二审法院予以纠正。火某公司作为涉案游戏的开发者,与万某公司、乐某公司合作运营涉案游戏,三者应共同承担侵权责任。

C. “斗罗大陆”手游著作权侵权案 ——作品改编权侵权认定及反编译的运用

当事人

上海玄某娱乐信息科技有限公司诉成都吉某科技有限公司、四某网络股份有限公司

案号

江苏省高级人民法院 (2018) 苏民终1164号

合议庭成员

曹美娟 | 何永宏 | 张长琦

关键词

民事 侵害作品改编权 游戏资源库 反编译

相关法律规定

— 《中华人民共和国著作权法》(2010年修正) 第9条、第12条、第49条

基本案情

上海玄某娱乐信息科技有限公司(以下简称玄某公司)诉称:《斗罗大陆》是著名网络作家唐某所著的长篇网络小说,具有极高知名度。玄某公司经受让取得小说《斗罗大陆》的改编权,并通过自行改编及授权第三方改编的方式行使改编权,已推出同名网络游戏。2016年初,玄某公司发现四某网络股份有限公司(以下简称四某公司)在其运营的4xxx手机游戏网(网址:www.4xxx.cn)上发布了一款名为“新斗罗大陆(神界篇)”的手机游戏软件,该手游宣传页面中显示开发商为成都吉某科技有限公司(以下简称吉某公司),同时标注了“……这款策略游戏《新斗罗大陆》就是以网络人气作家唐某的同名小说《斗罗大陆》为原型的作品”,“……《新斗罗大陆》是一款以知名网络作家唐某的同名小说《斗罗大陆》改编而来……若你是《斗罗大陆》的书迷,那可以来感受一下游戏带给你的全新体验”等信息。经玄某公司对涉案手游进行下载,注册并进入游戏后发现,不仅游戏人物名称大量来自小说《斗罗大陆》,而且游戏剧情也与小说《斗罗大陆》内容完全一致。玄某公司认为,吉某公司、四某公司在未获得玄某公司授权也未与玄某公司协商权利转让的情况下,擅自将涉案小说改编为手机游戏并在4xxx手机游戏网上大肆宣传推广,供网络用户下载,构成了对玄某公司作品改编权的侵害,并给玄某公司带来了极大的经济损失。故向江苏省徐州市中级人民法院提起诉讼,请求判令:1.吉某公司立即停止《新斗罗大陆(神界篇)》游戏的宣传推广;2.四某公司、吉某公司立即停止《新斗罗大陆(神界篇)》游戏的运营;3.四某公司、吉某公司在4xxx手机游戏网首页刊登声明以消除影响;4.吉某公司赔偿玄某公司因侵权所致经济损失2000万元;5.吉某公司承担玄某公司为制止侵权所付出的合理费用52,500元;6.四某公司、吉某公司承担本案的诉讼及其他费用。

吉某公司辩称：1.玄某公司提交的保全证据公证书存在重大程序瑕疵，不应被采信，其主张的侵权事实缺乏依据。2.吉某公司合法享有将唐某的小说《斗罗大陆外传：神界传说》改编为手机游戏并进行运营的权利，该小说为小说《斗罗大陆》的外传，二者在主要人物名称、形象和关系，人物的武功、技能、道具以及故事情节等方面具有一定的一致性和相关性，且为了表现该“外传”与正篇之间的承接关系，少量使用《斗罗大陆》小说中的某些元素作为背景补充，属于对涉案作品的合理使用。3.小说《斗罗大陆》共12部，近300万字，而被控侵权游戏内容中相似的文字数量仅5000-6000字，被控侵权游戏仅主线任务就有140关，而玄某公司主张侵权的关卡数仅15关，无论是被控侵权内容在涉案小说中的占比，还是在被控侵权游戏中的占比均不足以认定构成实质性相似。4.玄某公司诉请的赔偿金额明显过高，缺乏事实和法律依据。

四某公司辩称：1.涉案游戏系吉某公司提供至4xxx手机游戏网，四某公司对涉案游戏中是否存在涉嫌侵权的内容并不了解，且四某公司已经进行了相应的资质审核，尽到了审查义务，主观上没有过错。2.玄某公司主张的系改编权，属财产性权利，并非人身性权利，其消除影响的诉请于法无据，不应予以支持。

法院经审理查明：《斗罗大陆》系张某（笔名：唐某）创作的奇幻小说，2008年12月首发于“起点中文网”。2009年6月5日，张某与玄某公司签订《游戏改编权转让协议》，将《斗罗大陆》小说作品的游戏改编权永久独家转让于玄某公司。《斗罗大陆外传：神界传说》系张某2015年3月创作的《斗罗大陆》外传系列。2015年3月19日，张某将《斗罗大陆外传：神界传说》的独家游戏改编权授权北京思某文化传播有限公司（以下简称思某公司），思某公司将上述权利授权给成都哆某网络科技有限公司（以下简称哆某公司）。2016年1月1日，哆某公司向吉某公司出具授权书，将其拥有的《斗罗大陆：神界传说》改编开发成手机游戏的权利、小说作品元素使用权授权吉某公司行使，吉某公司有权进行手机游戏的开发、运营和推广。

新斗罗大陆（神界篇）游戏软件[简称：新斗罗大陆（神界篇）]V2.0的所有权人为吉某公司，登记号为2015SR23169X，证书编号为软著登字第111877X号，开发完成日为2015年6月20日，登记日为2015年11月25日。2016年1月22日，涉案游戏开始正式运营。一审庭审中，吉某公司陈述称，其于2016年5月28日对《新斗罗大陆（神界篇）》进行了包括开放龙神传说、开放红包功能、开放暗器系统、文字调整等较大幅度的调整，并于2016年7月变更游戏名称为《斗罗大陆（神界传说）》。

江苏省徐州市中级人民法院于2017年12月28日作出（2016）苏03民初369号民事判决：1.吉某公司于判决生效之日起二十日内赔偿玄某公司经济损失及合理开支共计500万元；2.驳回玄某公司的其他诉讼请求。

吉某公司不服一审判决，向江苏省高级人民法院提出上诉。二审法院于2020年11月18日作出（2018）苏民终1164号民事判决：驳回上诉、维持原判。

裁判要旨

1. 电子游戏与小说是不同的表达方式，判断二者是否构成实质性相似时，不能仅以其使用涉案小说文字独创性内容数量比重来判断二者是否构成实质性相似，应综合判断其是否使用了小说中独创性表达的人物、人物关系、技能、故事情节等元素，还要考虑该游戏所利用的小说中独创性的内容在该游戏中的所占比重。

2. 游戏软件通常包含游戏资源库,可以通过对游戏资源库文件进行反编译后,提取其中的内容与涉案小说的内容进行比对,以辅助确定游戏是否使用了文字作品有关独创性的内容。

裁判理由

法院生效判决认为:电子游戏与小说是不同的表达方式,判断二者是否构成实质性相似时,应综合判断其是否使用了小说中独创性表达的人物、人物关系、故事情节等元素,还要考虑该游戏所利用的小说中独创性的内容在该游戏中的所占比重。

首先,涉案《斗罗大陆》小说中的人物角色、魂兽角色、技能方面元素结合人物关系、魂兽关系、故事情节等,反映了作者精心的取舍、选择、安排和设计,体现了作者的艺术品位和风格,吸引了众多读者,因而属于涉案《斗罗大陆》小说独创性的基本表达,应受《中华人民共和国著作权法》保护。

其次,被诉游戏与涉案《斗罗大陆》作品构成实质性相似。其一,被诉游戏属于大型游戏,体量较大,仅公证前十七章即用时十个工作日,如对所有章节进行取证,玄某公司需支出巨大成本,且对玩家也有较高要求,无疑会增加权利人的举证难度和维权成本,有违公平、效率原则。其二,被诉游戏与涉案小说二者表达方式不同,不能仅以其使用涉案小说文字数量来判断二者是否构成实质性相似。涉案《斗罗大陆》实体书共有十二册,约264万文字。考虑到游戏软件通常包含游戏资源库,故在判断被诉游戏所使用的比重时,可以通过对游戏资源库文件进行反编译后,提取其中的内容与涉案小说的内容进行比对,以辅助确定游戏是否使用了小说的有关内容。根据玄某公司取证的前十七章的游戏视频以及对被诉游戏资源库文件反编译后提取的内容,被诉游戏中人物和魂兽名称与涉案《斗罗大陆》小说中的人物和魂兽名称完全相同,故事情节基本相同,情节发展的先后顺序亦相同。根据高度盖然性的证明标准,可以认定被诉游戏大量使用了涉案《斗罗大陆》小说中的人物和魂兽名称、人物关系、技能和故事情节等元素,与涉案《斗罗大陆》小说构成实质性相似。其三,被诉游戏的主线副本前十七章除前序、第一章、第五章少量涉及外传内容外,大量使用了涉案《斗罗大陆》小说中独创性的内容。综上,吉某公司未经玄某公司许可开发涉案游戏,侵害了玄某公司享有的涉案作品游戏改编权。

D. “空竹”杂技作品著作权权属及侵权案 ——杂技艺术作品的独创性表达及保护范围认定

当事人

某杂技团有限公司诉吴桥县某杂技团、某计算机系统公司、某电视台

案号

北京知识产权法院 (2019)京73民终2823号

合议庭成员

宋鹏 | 冯刚 | 李志峰

关键词

民事 著作权权属 侵权 杂技艺术作品 独创性

相关法律规定

- 《中华人民共和国著作权法》第3条
- 《中华人民共和国著作权法实施条例》第4条

基本案情

某杂技团有限公司诉称：杂技节目《俏花旦—集体空竹》属于杂技艺术作品，某杂技团有限公司系著作权人。吴桥县某杂技团表演的杂技节目《俏花旦》在动作组合、背景音乐、演员服装等方面均抄袭《俏花旦—集体空竹》，构成著作权侵权，而某电视台制作、播出节目视频，某计算机系统公司对视频在其网站传播一节未尽审查义务，亦构成侵权。据此，要求吴桥县某杂技团、某电视台、某计算机系统公司停止侵权、赔偿损失等。

吴桥县某杂技团辩称：吴桥县某杂技团没有看过杂技节目《俏花旦—集体空竹》，吴桥县某杂技团是按照他人节目排演，《俏花旦—集体空竹》本身也抄袭了“王氏天桥杂技”。抖空竹是民间传统文化，不应允许著作权登记。杂技表演需要多年练功，仅因他人进行过著作权登记就认定表演节目构成侵权，明显不合理。

某计算机系统公司辩称：《俏花旦—集体空竹》是否属于《中华人民共和国著作权法》意义上的杂技艺术作品以及某杂技团公司是否享有著作权均难以确定。某计算机系统公司运营的相关平台系提供信息存储空间服务，未对上传者提供的涉案节目视频做任何修改、删减，不知道也没有合理理由应当知道涉案节目视频侵权，不应承担赔偿责任。

某电视台辩称：某电视台录制节目得到了吴桥县某杂技团合法授权，如杂技节目《俏花旦》侵权，应由吴桥县某杂技团承担责任，某电视台不应承担赔偿责任。

法院经审理查明：某杂技团有限公司于2004年创作杂技节目《俏花旦—集体空竹》（武汉光谷版），此后针对不同的演出场合需求对《俏花旦—集体空竹》杂技节目做了修改和升级，形成法国版、春晚版、摩纳哥版等版本。该节目曾在多次在国内外获奖。某杂技团有限公司就该节目法国版进行了著作权登记，载明其享有除署名权外的著作权。某杂技团有限公司曾与该节目编导何某、张某分别签订协议，约定节目著作财产权归属于某杂技团有限公司。

吴桥县某杂技团应某电视台邀请，在该电视台举办的2017年春节晚会中演出杂技节目《俏花旦》，后某电视台将节目视频上传至微信公众号及腾讯视频。

将《俏花旦—集体空竹》法国版与《俏花旦》进行比对，二者动作存在以下主要相似之处：1.二者均以“抖空竹”杂技动作为基础，并融入中国戏曲“跑圆场”等动作元素；2.“出场”桥段的核心动作编排相似；3.部分标志性集体动作、连贯性系列动作相同或高度近似，如杂技演员以一排或多排队列阵型，以大跨度单腿提拉舞步、脚下三步舞步同时加上双手抖空竹，形成整齐划一、交替重复、持续连贯的动作。

北京市西城区人民法院判决：一、吴桥县某杂技团停止涉案侵权行为；二、吴桥县某杂技团登报声明消除影响；三、某电视台登报声明消除影响；四、吴桥县某杂技团赔偿某杂技团公司经济损失4万元，某电视台在1万元数额内承担连带责任；五、某电视台赔偿某杂技团公司经济损失1万元；六、吴桥县某杂技团、某电视台赔偿某杂技团公司合理支出28,239元；七、驳回某杂技团公司的其他诉讼请求。宣判后，吴桥县某杂技团以杂技节目《俏花旦—集体空竹》不具有独创性，二节目杂技动作不同，其表演的杂技节目《俏花旦》不构成侵权为由提出上诉。北京知识产权法院于2021年11月1日作出（2019）京73民终2823号民事判决，驳回上诉，维持原判。

裁判要旨

1. 以杂技动作为主要表现形式，在动作衔接和编排上可以体现个性化安排、取舍和设计的，可以认定为《中华人民共和国著作权法》第三条所规定的杂技艺术作品。
2. 杂技艺术作品以动作为基本元素，技巧也通过具体动作展现，但杂技艺术作品并不保护技巧本身，通常也不保护特定的单个动作，而是保护具有一定艺术性的连贯动作的编排。公有领域常规杂技动作的简单组合、重复由于独创性不足，不应受到《中华人民共和国著作权法》的保护。
3. 以杂技动作设计为主要内容，又融入一定舞蹈动作设计的作品，仍可按杂技艺术作品予以保护，而不必将连贯动作强行分割为舞蹈动作与杂技动作分别进行保护。对于杂技节目中的配乐、服装、舞美设计，应根据其具体表现形式判断能否构成音乐或美术等其他类型作品。

裁判理由

法院生效裁判认为，本案的争议焦点在于：

一、《俏花旦-集体空竹》是否属于《中华人民共和国著作权法》上的杂技艺术作品

《中华人民共和国著作权法》将杂技艺术作品与音乐、戏剧、曲艺、舞蹈等作品并列，规定为单独的一类作品，说明杂技艺术作品属于区别于戏剧、舞蹈等作品的独立类型作品。杂技艺术作品包括杂技、魔术、马戏等具体类型，是“通过形体动作和技巧表现的作品”，其

作品内容不是技巧本身。现阶段，诸多杂技吸收舞蹈元素进行动作设计和编排，包括杂技动作之中融入舞蹈动作，杂技动作的衔接之间引入舞蹈动作等。此种情形下，强行将连贯动作分割为支离破碎的舞蹈动作与杂技动作，将舞蹈元素剔除，将使得原作的美感大打折扣，分离后的动作编排亦难以单独作为舞蹈或杂技作品保护。因此，以杂技动作设计为主要内容，又融入一定舞蹈动作设计的作品，仍可按杂技艺术作品予以保护。此外，杂技艺术作品在实际表演过程中，往往在动作之外加入配乐，表演者着专门服装并有相应舞台美术设计。但立法已明确限定杂技艺术作品系通过形体动作和技巧表现，其并不属于可以涵盖音乐、美术作品等予以整体保护的复合型作品，如视听作品。因此，即便上述配乐构成音乐作品，服装、舞美设计构成美术作品，其仍不属于杂技艺术作品的组成部分，不能将之纳入杂技艺术作品的内容予以保护，而应作为不同类型作品分别独立保护。

杂技作品以动作为基本元素，技巧也通过具体动作展现，但杂技作品并不保护技巧本身，通常也不保护特定的单个动作，而是保护连贯动作的编排设计，其载体类似于舞蹈作品中的舞谱。如果仅仅是公有领域常规杂技动作的简单组合、重复，则独创性不足，不应受到著作权法的保护。本案中，从《俏花旦—集体空竹》法国版内容看，其诸多“抖空竹”动作额外融入了包含我国传统戏曲元素、舞蹈元素的动作乃至表情设计，例如其中以大跨度单腿提拉舞步、脚下三步舞步同时加上双手左右或上下抖空竹的整体动作。此外，其在具体走位、连续动作的衔接和编排上亦存在个性化安排，使得相应连贯动作在展示高超身体技巧的同时传递着艺术美感。在此基础上，吴桥县某杂技团并未举证证明上述设计、编排主要来自公有领域或属于有限表达，故对其相关主张，不予采纳。《俏花旦—集体空竹》法国版中的形体动作编排设计体现了创作者的个性化选择，属于具备独创性的表达，构成《中华人民共和国著作权法》规定的杂技艺术作品。

二、《俏花旦—集体空竹》法国版与《俏花旦》是否构成实质性相似

并非对原作不经裁剪的原样照搬方构成抄袭，在表演权侵权认定中，如认定未经许可表演的内容与权利作品的部分相对完整的独创性表达构成实质性相似，被诉侵权人存在接触权利作品的可能且排除其系独立创作后，同样可以认定侵权成立。《俏花旦》在开场部分的走位、动作衔接安排，以及多次出现的标志性集体动作等动作的编排设计，与《俏花旦—集体空竹》法国版相应内容构成实质性相似，而上述内容属于《俏花旦—集体空竹》法国版独创性表达的部分。因此，吴桥县某杂技团构成抄袭及表演权侵权。

E.涉“KTV”点唱设备著作权侵权案 ——在后追认行为不能改变侵害著作权的认定

当事人

苏某诉荆门某公司

案号

最高人民法院（2021）最高法民再114号

合议庭成员

秦元明 | 马秀荣 | 周波

关键词

民事 侵害著作权 侵权认定 许可 追认

相关法律规定

— 《中华人民共和国著作权法》（2010年修正）第48条第1项

基本案情

在再审申请人苏某与被申请人荆门某公司侵害著作权纠纷案中，苏某作为继承人继承了著作权人苏某某（非本案当事人）涉案33部音乐作品著作权中的财产权利。2018年10月15日，苏某委托的取证人员通过第三方支付平台向荆门某公司支付80元，以普通消费者的身份进入荆门某公司的B36包厢，点播了涉案33首歌曲的MV。上述歌曲的播放过程由苏某委托的取证人员使用手机进行了录制，后制作成光盘一张。苏某遂提起诉讼，请求：一、判令荆门某公司向中国音乐著作权协会（以下简称音著协）和中国音像著作权集体协会（以下简称音集协）申请著作权使用许可，或判令荆门某公司停止使用涉案歌曲；二、判令荆门某公司向苏某支付赔偿金15000元。

湖北省荆门市中级人民法院判决，荆门某公司立即停止使用涉案33部音乐作品，赔偿苏某经济损失1万元。荆门某公司不服，提起上诉。湖北省高级人民法院查明，音集协与荆门某公司于2019年6月14日签订许可协议，音集协许可荆门某公司使用其管理的音像作品，许可使用期间为2018年5月28日至2019年12月31日。音集协和音著协于2018年11月5日签订《合作备忘录》，约定在筹建新的收费体系之前的过渡期间，为提高工作效率，许可协议中音集协盖章即代表音集协和音著协。二审法院认为，许可协议约定的许可使用期间为2018年5月28日至2019年12月31日，而本案取证时间为2018年10月15日，并未超出许可使用期间，因此，荆门某公司有权使用涉案作品，并不构成侵权，遂撤销一审判决，驳回苏某诉讼请求。苏某不服，向最高人民法院申请再审。最高人民法院裁定提审本案，并于2021年12月28日作出（2021）最高法民再114号民事判决撤销一审、二审判决，由荆门某公司赔偿苏某经济损失6200元。

裁判要旨

音著协和音集协为解决筹建新收费体系过渡期中产生的相关问题而签订《合作备忘录》应当认为合法有效。但是,在著作权权利人就被诉侵权行为取证时,该被诉侵权行为并未经过音集协或音著协许可的,即使音集协或音著协在后与被告侵权行为人签订许可使用合同,追认被告侵权行为的合法性,在权利人不认可的情况下,该追认行为不能改变被告侵权行为侵害著作权的认定。

裁判理由

法院生效裁判认为:本案的争议焦点为,荆门某公司是否侵害了苏某的著作权及其责任承担。

(一) 关于音著协与音集协所签订的《合作备忘录》的效力问题

卡拉OK经营者通常需要使用音乐作品、录音制品、视听作品(本案发生时《中华人民共和国著作权法》称之为电影作品和以类似摄制电影的方法创作的作品)、录像制品等,因此一般需经过著作权人或录音录像制品权利人的许可。为便于著作权人和有关权利人行使权利,同时便于卡拉OK经营者获得许可,音著协和音集协经过多年探索长期合作,形成了由音集协统一代为许可和收费,由音著协和音集协按一定比例分配收取费用的模式。此模式不仅不违反《中华人民共和国著作权法》等法律法规的规定,而且有利于保护著作权人和相关权利人的利益,有利于使用者统一获得许可和付费。音著协和音集协为解决筹建新收费体系过渡期中产生的相关问题,不仅签订《合作备忘录》,约定由音集协代为行使权利,而且在音集协与使用者实际签订的许可协议中,即使音著协没有在合同中盖章,也是以音集协、音著协的名义共同签订的。《合作备忘录》解决的仅仅是特定时期内代为发放许可的方式问题,并不存在集体管理权的让渡,也不存在集体管理组织超出业务范围管理权利人权利的问题。因此,该《合作备忘录》并不违反《中华人民共和国著作权法》和《著作权集体管理条例》的相关规定,应当认定其合法有效,在双方约定的期限内音集协对外签订的许可协议的效力及于音著协。

(二) 关于荆门某公司与音集协签订许可协议效力和期间的认定问题

如前所述,音著协与音集协签订的《合作备忘录》合法有效。本案中,许可协议是由音集协、音著协共同作为甲方与作为乙方的荆门某公司签订的,即使音著协没有在合同中盖章,但是根据《合作备忘录》的约定,该许可协议的效力也及于音著协,因此,荆门某公司与音集协签订的许可协议亦为合法有效。

依据《中华人民共和国著作权法》的规定,作品许可使用期间可由订立合同的当事人自由协商确定,意即权利人许可使用的期间可能早于合同订立时间或者晚于合同订立时间,更常见的是与合同订立时间一致。只要许可期间是当事人真实意思表示,不违法律、行政法规的强制性规定,不违背公序良俗,就应当认定为有效。许可使用期间早于订立合同时间的追认行为也属当事人自由处分权利的行为,实践中权利人对使用行为表示追认的情况也十分常见,但是权利人或利害关系人的追认与其他权利人的在先行为发生冲突,或者可能损害第三人利益时,追认期间的效力就需要区分情形予以认定。

本案中,许可协议订立于2019年6月14日,而载明的许可期间为自2018年5月28日至2019年12月31日,起算时间早于许可协议订立时间。许可协议对使用行为的许可追认至2018年5

月, 苏某对被诉侵权行为的取证时间为2018年10月, 早于许可协议订立时间, 晚于许可协议起算时间。因此, 在苏某就被诉侵权行为取证时, 荆门某公司尚未取得音集协的许可。在苏某与音集协均有权提起诉讼的情况下, 音集协在后行使权利应当避免与苏某行使诉权相冲突, 否则会导致苏某在原本能够获得胜诉的案件中面临败诉的风险。在苏某不认可追认期间的情况下, 许可协议对早于协议订立日之前期间的追认应当认定为无效, 荆门某公司获得许可期间应自2019年6月14日起计算, 据此, 荆门某公司在此之前的使用行为构成对苏某所有涉案作品著作权的侵害。

(三) 关于荆门某公司的法律责任承担的问题

2019年6月14日之后, 荆门某公司使用涉案作品获得了音著协和音集协的许可, 荆门某公司有权在许可期间使用涉案作品, 故荆门某公司无须停止使用相关作品。

从苏某的一审诉讼请求来看, 苏某提起本案诉讼的目的之一在于督促卡拉OK经营者主动履行《中华人民共和国著作权法》项下的义务, 积极与音著协和音集协达成许可协议, 进而保障著作权人苏某作为会员的利益, 与《中华人民共和国著作权法》保护的利益一致。在卡拉OK经营者使用音乐作品或视听作品被诉侵权的案件中, 一般存在以下两种不同的情况: 一是未获得权利人或者著作权集体管理组织的许可; 二是获得了音集协或者音著协的许可, 但被诉侵权作品权利人并非著作权集体管理组织的会员。本案与上述常见情形不同, 荆门某公司在诉讼期间与音集协、音著协签订了许可协议, 获得了其管理的海量作品的一揽子许可, 有利于苏某以及其他权利人获益, 也有利于营建遵守《中华人民共和国著作权法》和保护知识产权的公共秩序。因此荆门某公司所承担的侵权赔偿责任应当低于前述两种情形下应当承担的责任。最高人民法院综合考虑涉案音乐作品类型和数量、创作难易程度、知名度、维权成本、荆门某公司的侵权情节、方式、后果、经营规模和音著协与音集协的分配比例以及音乐作品词曲作者的获酬比例等因素, 酌定荆门某公司向苏某赔偿损失6200元(含公证费、取证费、律师费等合理支出费用)。

F.涉图片水印、单方权利声明作品信息网络传播权侵权案 ——作品著作权权属认定中的证据审查判断

当事人

某美（天津）图像技术有限公司诉河南某庐蜂业有限公司

案号

最高人民法院（2021）最高法民再355号

合议庭成员

秦元明 | 马秀荣 | 周波

关键词

民事 侵害作品信息网络传播权 权属 举证责任

相关法律规定

- 《中华人民共和国著作权法》（2010年修正）第11条
- 《最高人民法院关于审理著作权民事纠纷案件适用法律若干问题的解释》（2020年修正）第7条
- 《最高人民法院关于适用〈中华人民共和国民事诉讼法〉的解释》（2020年修正）第90条

基本案情

案外人Getty公司授权某美（天津）图像技术有限公司（以下简称某美图像公司）在中国境内展示、销售和许可他人使用该公司的“getty Images”品牌图片，且某美图像公司有权以自己的名义对侵权行为提起诉讼。某美图像公司发现，河南某庐蜂业有限公司（以下简称某庐蜂业公司）未经许可使用了4张上述品牌图片。某美图像公司遂以侵害著作权为由提起诉讼，请求判令某庐蜂业公司赔偿经济损失及维权合理开支。为支持其诉请，某美图像公司提交了Getty公司出具的授权确认书、网站权利声明等证据，涉案图片上有“getty Images®”内容的水印。某庐蜂业公司抗辩认为，涉案图片水印右上角为商标注册标记“®”，不是表明创作者身份的作者署名，水印下方另有摄影师署名和其他品牌名称，显示图片著作权属于作者而不是某美图像公司或Getty公司。某庐蜂业公司还就涉案图片权属问题通过电子邮件询问Getty公司，得到的答复是，涉案图片由摄影师投稿，该公司以自己的名义对外销售后向摄影师支付版税，但摄影师保留图片的著作权。某庐蜂业公司据此认为，因投稿人保留著作权，Getty公司、某美图像公司均不享有涉案图片的著作权，某美图像公司的诉讼请求应予驳回。

一审法院判决：一、某庐蜂业公司于判决生效之日立即赔偿某美图像公司经济损失及为制止侵权行为而支出的合理费用共计8000元；二、驳回某美图像公司的其他诉讼请求。某庐蜂业公司不服一审判决，向二审法院提出上诉。二审法院判决：驳回上诉，维持原判。某庐蜂业公司不服二审判决，向最高人民法院申请再审。最高人民法院于2021年11月12日作出

(2021)最高法民申1063号民事裁定，提审本案，并于2021年12月20日作出(2021)最高法民再355号再审判决：一、撤销一审、二审判决；二、驳回某美图像公司全部诉讼请求。

裁判要旨

在著作权权属有争议的情况下，不能仅凭水印或权利声明认定作品著作权权属，主张著作权的当事人应进一步举证证明，否则应当承担不利的法律后果。

裁判理由

法院生效裁判认为：涉案图片除标注“getty Images®”水印外，还分别标注有摄影师署名和其他品牌名称，而且“getty Images”之后紧接商标注册标记“®”，因此，仅以此水印不能认定涉案图片的著作权属于Getty公司。此外，某美图像公司还提交了Getty公司出具的授权确认书、网站权利声明，但授权确认书只能证明Getty公司向某美图像公司进行授权的事实，并非Getty公司对涉案图片享有著作权的证据。权利声明属于单方陈述，在缺乏其他证据印证的情况下，仅以权利声明不能确定著作权归属。在此情况下，某美图像公司应进一步承担Getty公司享有涉案图片著作权的举证证明责任，但其未能举证证明。相反，根据某庐蜂业公司提交的Getty公司回复邮件等反驳证据，Getty公司确认投稿的摄影师仍然保留涉案图片的著作权。故某美图像公司关于Getty公司拥有涉案图片著作权的主张不能成立，其在本案中提出的相关诉讼请求不应予以支持。

G.涉信息网络传播权管辖权异议案 ——侵害作品信息网络传播权纠纷由侵权行为地或者被告住所 地人民法院管辖

当事人

张某诉北京某公司等

案号

最高人民法院（2022）最高法民辖42号

合议庭成员

杜微科 | 张玲玲 | 戴怡婷

关键词

民事 侵害作品信息网络传播权 管辖 侵权行为地

相关规定

- 《中华人民共和国民事诉讼法》第29条
- 《最高人民法院关于适用〈中华人民共和国民事诉讼法〉的解释》第24条、第25条
- 《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第15条

基本案情

原告张某龙以被告北京某蝶文化传播有限公司、程某、马某擅自在相关网站上发布、使用其享有著作权的写真艺术作品，侵害其作品信息网络传播权为由，向其住所地的河北省秦皇岛市中级人民法院提起诉讼。被告马某以本案应当适用《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条的规定确定管辖，秦皇岛市为原告住所地，不是侵权行为地或被告住所地为由，对本案管辖权提出异议，请求将本案移送侵权行为地和被告住所地的北京互联网法院审理。

河北省秦皇岛市中级人民法院作出（2021）冀03知民初27号民事裁定，驳回马某对管辖权提出的异议。马某不服一审裁定，向河北省高级人民法院提起上诉。河北省高级人民法院裁定撤销一审裁定，将本案移送北京互联网法院审理。北京互联网法院将本案报请北京市高级人民法院，请求该院报请最高人民法院指定管辖。北京市高级人民法院认为，本案不属于侵权行为地和被告住所地均难以确定的例外情形，不需要适用《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条中的相关规定，河北省高级人民法院不应将本案移送北京互联网法院审理，故依法报请最高人民法院指定管辖。最高人民法院于2022年8月22日作出（2022）最高法民辖42号民事裁定：本案由北京互联网法院审理。

裁判要旨

在确定侵害作品信息网络传播权民事纠纷案件的管辖时，应当适用《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条的规定。

裁判理由

法院生效裁判认为：《最高人民法院关于适用〈中华人民共和国民事诉讼法〉的解释》第二十五条规定：“信息网络侵权行为实施地包括实施被诉侵权行为的计算机等信息设备所在地，侵权结果发生地包括被侵权人住所地。”该规定中的“信息网络侵权行为”针对的是通过信息网络对一般民事权利实施的侵权行为。但“信息网络传播权”是《中华人民共和国著作权法》第十条第一款规定的著作权人享有的法定权利，即“以有线或者无线方式向公众提供作品，使公众可以在其个人选定的时间和地点获得作品的权利。”基于信息网络传播权的性质和特点，侵害信息网络传播权的行为一旦发生，随之导致“公众可以在其个人选定的时间和地点获得作品”，其侵权行为涉及的地域范围具有不确定性。故《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条规定：“侵害信息网络传播权民事纠纷案件由侵权行为地或者被告住所地人民法院管辖。侵权行为地包括实施被诉侵权行为的网络服务器、计算机终端等设备所在地。侵权行为地和被告住所地均难以确定或者在境外的，原告发现侵权内容的计算机终端等设备所在地可以视为侵权行为地。”因此，《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条是针对信息网络传播权这一特定类型的民事权利，对侵害信息网络传播权纠纷民事案件的管辖作出的特别规定。在确定侵害信息网络传播权民事纠纷案件的管辖时，应当以《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条为依据。

本案中，秦皇岛市为原告住所地，不属于《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条规定的侵权行为地或被告住所地。本案也不存在《最高人民法院关于审理侵害信息网络传播权民事纠纷案件适用法律若干问题的规定》第十五条规定的“侵权行为地和被告住所地均难以确定或者在境外”的例外情形。因此，河北省秦皇岛市中级人民法院对于本案没有管辖权，河北省高级人民法院将本案移送北京互联网法院并无不当。

H. “大头儿子”著作权侵权案 ——委托作品和法人作品的认定

当事人

杭州某某公司诉某某动漫公司

案号

最高人民法院 (2022) 最高法民再44号

合议庭成员

秦元明 | 白雅丽 | 马秀荣

关键词

民事 侵犯著作权 委托作品 法人作品 单位意志

相关法律规定

— 《中华人民共和国著作权法》(2010年修正) 第17条

基本案情

1994年, 95版动画片导演崔某、制片汤某、上海某某厂甲副厂长席某三人到刘某家中, 委托其为即将拍摄的95版动画片创作人物形象。刘某当场用铅笔勾画了“大头儿子”“小头爸爸”“围裙妈妈”三个人物形象正面图(以下简称94年草图), 并将底稿交给了崔某。当时双方并未就该作品的著作权归属签署任何书面协议。95版动画片由某视和某某电视台联合摄制, 于1995年播出, 在其片尾播放的演职人员列表中载明: “人物设计: 刘某”。2012年, 刘某与洪某签订了《著作权(角色商品化权) 转让合同》, 约定刘某将自己创作的“大头儿子”“小头爸爸”“围裙妈妈”三件作品的所有著作权权利转让给洪某。2013年, 刘某与某某动漫公司约定上述三幅美术作品为委托作品, 某某动漫公司作为甲方, 独家拥有除署名权以外的全部知识产权。杭州某某公司提起诉讼, 主张某某动漫公司《新大头儿子和小头爸爸》动画片侵犯其享有的著作权。

浙江省杭州市滨江区人民法院一审认为, 刘某作为受托人对其所创作的三幅美术作品享有完整的著作权, 杭州某某公司依据其与洪某的转让合同取得了涉案作品的著作权, 某视应视为95版动画片演绎作品的作者, 对该演绎作品享有著作权, 某某动漫公司未经杭州某某公司许可, 在2013版《新大头儿子和小头爸爸》动画片以及相关的展览、宣传中以改编的方式使用杭州某某公司的作品并据此获利的行为, 侵犯了杭州某某公司的著作权, 应承担相应的侵权责任。浙江省杭州市滨江区人民法院判决, 某某动漫公司赔偿杭州某某公司经济损失人民币400万元及其为维权所支出的合理费用人民币22,040元。某某动漫公司不服, 提起上诉。浙江省杭州市中级人民法院判决驳回上诉, 维持原判。某某动漫公司不服, 向浙江省高级人民法院申请再审, 再审申请审查期间, 某某动漫公司提交了“刘某签署的确认书著作权归属”书证一份(以下简称95年声明), 该书证载明: “本人刘某受某某电视台、上海某某电

视台的委托,创作了动画系列片《大头儿子和小头爸爸》片中主要人物‘大头儿子’、‘小头爸爸’的造型设计。”浙江省高级人民法院裁定驳回某某动漫公司再审申请。某某动漫公司不服,向最高人民法院申诉,最高人民法院裁定提审本案,并于2022年4月18日作出(2022)最高法民再44号民事判决,撤销一、二审判决,驳回杭州某某公司诉讼请求。

裁判要旨

在案证据不足以证明作者是代表单位意志进行创作或者是为完成借调工作任务而创作作品的情况下,作品不应当被认定为法人作品或者特殊职务作品。有证据证明涉案作品是受委托创作的,可认定为委托作品。

裁判理由

最高人民法院认为:《中华人民共和国著作权法》第十一条第二款规定:“创作作品的公民是作者。”第四款规定:“如无相反证据,在作品上署名的公民、法人或者其他组织视为作者。”本案中,一审、二审法院和浙江高院查明,95版动画片导演崔某、制片汤某、上海某某厂甲副厂长席某三人到刘某家中,委托其为某视即将拍摄的95版动画片创作人物形象。刘某当场用铅笔勾画了“大头儿子”“小头爸爸”“围裙妈妈”三个人物形象正面图,崔某将底稿带回后,95版动画片美术创作团队在刘某创作的人物概念设计图基础上,进行了进一步的设计和再创作,最终制作成了符合动画片标准造型的三个主要人物形象即“大头儿子”“小头爸爸”“围裙妈妈”的标准设计图以及之后的转面图、比例图等。此外,95版动画片片尾播放的演职人员列表中明确载明“人物设计:刘某”,并且某某动漫公司在2013年11月4日对《大头儿子和小头爸爸》卡通形象进行著作权登记时,亦载明“作者:刘某”,因此现有证据足以证明94年草图为刘某独立创作完成,应当认定刘某为94年草图的作者,一审、二审判决及浙江高院裁定的相关认定并无不当。

《中华人民共和国著作权法》第十一条第三款规定:“由法人或者其他组织主持,代表法人或者其他组织意志创作,并由法人或者其他组织承担责任的作品,法人或者其他组织视为作者。”第十六条规定:“公民为完成法人或者其他组织工作任务所创作的作品是职务作品,除本条第二款的规定以外,著作权由作者享有,但法人或者其他组织有权在其业务范围内优先使用。作品完成两年内,未经单位同意,作者不得许可第三人以与单位使用的相同方式使用该作品。有下列情形之一的职务作品,作者享有署名权,著作权的其他权利由法人或者其他组织享有,法人或者其他组织可以给予作者奖励:(一)主要是利用法人或者其他组织的物质技术条件创作,并由法人或者其他组织承担责任的工程设计图、产品设计图、地图、计算机软件等职务作品;(二)法律、行政法规规定或者合同约定著作权由法人或者其他组织享有的职务作品。”根据再审查明的事实,《大头儿子和小头爸爸》美术设计和造型设计系某视动画部委托上海某某厂甲创作,版权全部归某视动画部所有,亦即属于某视所有。虽然一审、二审法院查明,刘某创作94年草图时,系作为上海某某厂乙工作人员借调到上海某某厂甲工作,但是94年草图的创作系95版动画片导演崔某等人到刘某家中专门委托其创作的。因此,现有证据不足以证明刘某创作94年草图是代表上海某某厂甲意志进行创作或者是为完成借调工作任务而创作。故94年草图不应当被认定为法人作品或者特殊职务作品,应当被认定为委托创作作品,某某动漫公司关于94年草图系法人作品或特殊职务作品的相关主张不能成立,不予支持。

I. “胖虎打疫苗” NFT数字作品侵权案 ——NFT数字作品交易网络服务提供者的责任认定

当事人

深圳某文化创意有限公司诉杭州某科技有限公司

案号

浙江省杭州市中级人民法院 (2022) 浙01民终5272号

合议庭成员

王玲 | 徐珺 | 高海忠

关键词

民事 侵害作品信息网络传播权 NFT数字作品 网络虚拟财产 平台注意义务

相关法律规定

— 《中华人民共和国著作权法》第10条第1款第12项

基本案情

深圳某文化创意有限公司诉称：杭州某科技有限公司经营的NFT数字作品交易平台发布了“胖虎打疫苗”NFT数字作品，杭州某科技有限公司未履行对作品的审核义务，构成信息网络传播权侵权，故请求判令：一、杭州某科技有限公司立即停止侵害深圳某文化创意有限公司作品信息网络传播权的行为，即删除涉案平台上发布的“胖虎打疫苗”NFT作品，将该作品对应的已铸造NFT在发布的区块链上进行销毁或回收；二、杭州某科技有限公司赔偿经济损失及合理开支共计10万元。

杭州某科技有限公司辩称：其系第三方平台，涉案作品系平台用户自行上传，故无需承担责任；其仅负有事后审查义务，已经将涉案作品打入地址黑洞，尽到通知删除义务，故无停止侵权的必要性；本案应适用权利利用尽原则。

法院经审理查明：漫画家马某创作了“我不是胖虎”动漫形象，并于2021年12月16日在其微博“不二马大叔”上发布了“胖虎打疫苗”图。深圳某文化创意有限公司经马某授权享有“我不是胖虎”系列作品在全球范围内独占的著作财产权及维权权利。杭州某科技有限公司经营的涉案平台上有用户铸造并发布了“胖虎打疫苗”NFT数字作品，售价899元。该NFT数字作品与马某在微博发布的插图作品完全一致，且该NFT数字作品右下角依然带有“@不二马大叔”的水印，同时“艺术家介绍”中明确标示作者身份信息“不二马大叔，优秀漫画创作者”。杭州某科技有限公司在NFT数字作品的铸造、出售、转让过程中均收取相应数额的燃料费，并从每次交易中直接获得出售价款10%的佣金。

杭州互联网法院于2022年4月22日作出(2022)浙0192民初1008号民事判决:一、杭州某科技有限公司立即停止侵害深圳某文化创意有限公司《胖虎打疫苗》美术作品信息网络传播权的行为;二、杭州某科技有限公司赔偿深圳某文化创意有限公司经济损失及合理支出4000元。宣判后,杭州某科技有限公司提出上诉。浙江省杭州市中级人民法院于2022年12月30日作出(2022)浙01民终5272号民事判决,驳回上诉,维持原判。

裁判要旨

1. 在NFT数字作品的上架发布阶段,NFT数字作品被提供在公开的互联网环境中,公众可以在选定的时间和地点获得该作品,此种获得既可以是不以受让为条件的在线浏览,也可以是在线受让之后的下载、浏览等方式,属于信息网络传播行为。
2. 基于NFT数字作品的特殊性及其交易平台提供网络服务的性质、控制能力、可能引发的侵权后果、营利模式,NFT数字作品交易网络服务提供者应当对其网络用户侵害信息网络传播权的行为负有相对较高的注意义务。除一般网络服务提供者应当承担的义务外,NFT数字作品交易网络服务提供者应当建立起有效的知识产权审查机制,审查NFT数字作品的权利来源。

裁判理由

法院生效裁判认为:本案的争议焦点有三个:一是涉案NFT数字作品交易行为是否受信息网络传播权规制;二是杭州某科技有限公司作为NFT数字作品交易平台经营者应当负有何种注意义务,以及杭州某科技有限公司在本案中是否尽到了该种注意义务;三是杭州某科技有限公司的民事责任承担。

首先,关于涉案NFT数字作品交易行为是否受信息网络传播权规制。NFT数字藏品是将数字化文件等底层数据上传至NFT交易平台并铸造NFT后呈现的数字内容,在底层文件为数字化作品的场合,称之为NFT数字作品。NFT数字作品的交易流程涉及铸造、上架发布、出售转让三个阶段。其中,在NFT数字作品的“铸造”阶段,涉及复制行为;在NFT数字作品的上架发布阶段,涉及信息网络传播行为;在NFT数字作品的出售转让阶段,不涉及复制行为,也不涉及信息网络传播行为。

其次,在认定杭州某科技有限公司作为NFT数字作品交易平台经营者应当负有何种注意义务时,需考量如下因素:1.涉案NFT数字作品交易平台提供网络服务的性质。不同于一般的网络服务,NFT数字作品交易平台提供的网络服务伴随着相应财产性权益的产生和移转,NFT数字作品的“铸造”、上架发布全流程受控于平台;2.NFT数字作品交易可能引发的侵权后果。NFT数字作品交易平台的网络用户一旦将侵害他人著作权的作品铸造为NFT数字作品,基于NFT数字作品采用的区块链技术,除侵权信息存在于中心化服务器上,记录该错误信息的NFT还存在于区块链上,这势必动摇NFT作为非同质化权益凭证的根基,严重影响NFT数字作品的交易安全,破坏NFT数字作品平台的信任机制和交易秩序;3.涉案NFT数字作品交易平台的营利模式。杭州某科技有限公司在NFT数字作品的铸造和交易环节均收取燃料费,同时在交易环节收取佣金,应当属于“网络服务提供者从网络用户提供的作品、表演、录音录像制品中直接获得经济利益”的情形。基于上述因素,杭州某科技有限公司应当对其网络用户侵害信息网络传播权的行为负有相对于一般网络服务提供者而言较高的注意义务。除一般网络服务提供者应当承担的义务外,NFT数字作品交易服务平台经营者还应当审查NFT数字作品来源的合法性,确认NFT数字作品铸造者具有适当权利。作为预防侵权的合理措施,其审查介入时间应当提前到用户铸造NFT数字作品之时。

本案中，杭州某科技有限公司未能尽到相应的注意义务，其对被诉侵权行为的发生具有主观上的过错，应当承担帮助侵权的民事责任。

关于杭州某科技有限公司的民事责任承担。虽然涉案区块链下存储的底层文件消失，与之对应的NFT也将不再可用，但删除涉案图片、屏蔽该NFT在区块链上的链接地址后，记录了侵权信息的NFT仍存在于区块链上，并未起到销毁侵权信息的效果，鉴于深圳某文化创意有限公司明确提出该项诉请，且杭州某科技有限公司述称其使用的区块链为联盟链，涉案NFT数字作品仅交易过一次，故作为停止侵权的救济措施之一，将涉案NFT打入黑洞地址具有合理性。至于打入联盟链的黑洞地址后，即使NFT在理论上或存在被恢复的可能性，亦不影响本案侵权救济措施的选择。在赔偿数额上，本案系侵害作品信息网络传播权纠纷，在涉案NFT数字作品的上架发布阶段，侵权事实已经发生，即使被诉侵权NFT数字作品未交易成功，也不能视为深圳某文化创意有限公司未因侵权受到损失。

第四章 垄断、竞争案件

- A.涉“稀土永磁材料专利”滥用市场支配地位案
——相关技术市场的界定以及市场力量的认定
- B.涉增值税发票信息商业秘密侵权案
——增值税发票记载的客户信息不构成商业秘密
- C.“香兰素”技术秘密侵权案
——非法获取全部技术秘密后对使用技术秘密行为的推定
- D.“卡波”技术秘密侵权案
——以侵权为业的认定
- E.“蜜胺”技术秘密侵权案
——技术秘密侵权案件中共同故意侵权的认定及责任承担
- F.“DAKS系统”技术秘密侵权案
——披露技术秘密的认定
- G.涉“病毒检测试剂”技术秘密侵权案
——作为技术秘密保护的技术方案的认定
- H.“罩式炉吊具”技术秘密侵权案
——整套图纸记载信息的技术秘密认定及技术秘密侵权行为的事实推定
- I.“油气微生物勘探”技术秘密侵权案
——技术秘密案件裁量判赔金额可不予考虑技术秘密贡献率的情形
- J.生成社交软件虚假截图不正当竞争案
——涉工具类软件竞争行为的正当性判断
- K.干扰搜索引擎不正当竞争案
——干扰搜索引擎排名行为的不正当竞争认定

L.网络游戏代练不正当竞争案

——互联网不正当竞争行为及商业道德的司法认定

M.“锂离子正极材料”不正当竞争案

——商业秘密合同债权的侵权救济及法律适用

A.涉“稀土永磁材料专利”滥用市场支配地位案——相关技术市场的界定以及市场力量的认定

当事人

某磁业公司诉某金属会社

案号

最高人民法院（2021）最高法知民终1482号

合议庭成员

朱理 | 余晓汉 | 何隽

关键词

民事 滥用市场支配地位 相关市场 专利权许可

相关法律规定

- 《中华人民共和国反垄断法》第2条、第12条第2款、第17条第2款、第18条
- 《最高人民法院关于审理因垄断行为引发的民事纠纷案件应用法律若干问题的规定》第8条
- 《中华人民共和国民事诉讼法》（2021年修正）第67条第1款
- 《最高人民法院关于适用〈中华人民共和国民事诉讼法〉的解释》第90条

基本案情

某磁业公司系浙江省宁波市经营生产烧结钕铁硼材料的企业。某金属会社曾经在全球拥有稀土材料领域600余项烧结钕铁硼专利，其在中国许可8家企业实施其专利技术后，决定不再增加新的被许可人。某磁业公司于2014年3月至2015年3月多次请求某金属会社许可而被拒绝，遂于2014年12月11日向浙江省宁波市中级人民法院起诉，请求判决某金属会社停止侵权（拒绝交易等滥用市场支配地位的行为）并赔偿经济损失700万元。

浙江省宁波市中级人民法院判决：某金属会社停止拒绝交易行为，赔偿某磁业公司经济损失490万元。某金属会社不服，提出上诉。最高人民法院于2023年12月14日作出（2021）最高法知民终1482号民事判决：撤销一审判决，驳回某磁业公司的诉讼请求。

裁判要旨

在涉及知识产权的垄断行为认定时，根据具体案情可能需要界定由行使知识产权所涉及的技术和可以与之相互替代的同类技术之间相互竞争所构成的相关技术市场。在相关技术市场存在多个竞争性技术的情况下，如果实施有关技术的下游产品的市场份额能够更为准确和方便地反映相关技术市场的竞争状况，则可以依据该下游产品市场份额评估该技术经营者在上游技术市场中的市场力量。

裁判理由

法院生效裁判认为：烧结钕铁硼材料与其他磁材在市场上不具有可替代性，烧结钕铁硼材料或者其生产技术具有独立成为一个相关市场的首要前提。但本案证据不足以证明存在独立的烧结钕铁硼必需专利许可市场，更难以认定为某金属会社所拥有的烧结钕铁硼必需专利的专利许可相关市场。某磁业公司主张某金属会社的烧结钕铁硼专利不可替代并构成独立的相关市场，与烧结钕铁硼生产销售和有关技术发展的实际不符，其也没有提供充分证据证明其主张，特别是没有提供证据证明金属会社的烧结钕铁硼专利在技术上为何且如何不可替代，对此某磁业公司应当承担举证不能的不利后果。在此情况下，根据烧结钕铁硼材料生产技术的需求替代等情况，本案相关商品市场应界定为烧结钕铁硼材料生产技术市场，包括具有紧密替代性的专利技术和非专利技术等。鉴于烧结钕铁硼材料生产技术就是用于生产烧结钕铁硼材料，且烧结钕铁硼材料（产品）的市场份额等状况能够更为准确且方便地反映烧结钕铁硼生产技术的市场状况，涉案相关市场中技术拥有方的市场力量可以通过烧结钕铁硼材料市场的市场份额予以评估。综合考虑在案证据情况，某磁业公司提供的证据不能证明某金属会社在全球烧结钕铁硼材料生产技术市场具有支配地位，而且在案证据还表明某金属会社在全球烧结钕铁硼材料生产技术市场并不具有支配地位。

B.涉增值税发票信息商业秘密侵权案 ——增值税发票记载的客户信息不构成商业秘密

当事人

安徽某国际货运代理有限公司诉阚某等

案号

最高人民法院 (2021) 最高法民再310号

合议庭成员

佟姝 | 张玲玲 | 吴蓉

关键词

民事 侵害商业秘密 增值税发票 客户信息 保密措施

相关法律规定

— 《中华人民共和国反不正当竞争法》第10条

基本案情

安徽某国际货运代理有限公司（以下简称安徽某公司）向一审法院提出诉讼请求，请求判令：阚某、章某某、崔某某、另一安徽某国际货运代理有限公司（以下简称某货运公司）等立即停止侵犯其商业秘密的行为，赔偿经济损失及调查取证费用、律师费用55万元，并承担本案诉讼费用。

一审查明，2014年9月10日，章某某（乙方）与安徽某进出口贸易有限公司（以下简称某进出口公司）签订《劳动服务协议》。2015年4月9日，阚某与某进出口公司签订了与上述协议内容基本相同的《劳动服务协议》。2015年4月1日，崔某某与安徽某公司签订了一份《劳动服务协议》。上述三份协议书在条款形式、文字表述、排版格式等方面均完全相同。阚某、章某某和崔某某三人在入职时，前二人向某进出口公司，崔某某向安徽某公司出具了相同格式和内容的《入职承诺书》，承诺内容包括不得故意和过失泄露公司的经营、管理、技术机密。2014年8月29日，阚某出具《员工遵守公司客户信息和商业信息承诺书》，记载阚某自愿遵守安徽某公司和某进出口公司一切规章制度及公司日常临时规定，并承诺无论离职还是在职绝不泄露公司客户信息和商业信息。2016年4月1日，安徽某公司、某进出口公司下发《关于各组组长等职务任命通知》，任命阚某为业务部部长兼任业务部三组组长，分管国际货代业务工作；崔某某为业务部四组组长；章某某为报关组组长。该文件由金某某签发。2016年6月13日，某货运公司成立，阚某父亲阚某某任法定代表人，阚某任监事。公司经营范围为海上、航空、陆路国际货物运输代理业务；代理出入、检验检疫；货物仓储（除危险品）；从事货物及技术的进出口业务代理等。

一审诉讼过程中,安徽某公司声称包括上海某国际物流有限公司在内的31家企业名单为其要求保护的客户名单,为此,该公司举证了自2014年12月至2017年2月四年间,与上述名单中的25家企业开展业务时开具的增值税发票。一审法院应安徽某公司申请,调取了某货运公司自2016年9月至2017年5月期间向其客户开具发票的统计清单,清单反映的客户共计55户,其中含有安徽某公司主张作为商业秘密保护的上述25家企业,某货运公司向该25家企业的开票金额共计352,972.57元。

安徽某公司与某进出口公司系同一法人,经营地址相同。安徽某公司提交了某进出口公司出具的书面情况说明,该说明记载,某进出口公司与安徽某公司系“两个牌子,一班人马”,并确认安徽某公司在本案诉讼中所主张的所有商业秘密均系安徽某公司所有,某进出口公司不再就上述商业秘密主张任何权利。一审诉讼过程中,阚某提交某进出口公司以其为被申请人提起仲裁的申请书一份,某进出口公司请求合肥市新站区高新技术产业开发区劳动人事争议仲裁院裁决阚某向该公司支付竞业限制违约金5万元;继续履行竞业限制义务,同时离开与某进出口公司有竞争业务的某货运公司。经查,该劳动仲裁以调解结案,阚某支付竞业限制违约金3万元。阚某、章某某、崔某某主张某货运公司是通过互联网搜索的方式获取的客户信息并于2017年2月离开原聘用单位。

安徽省合肥市中级人民法院经审理认为:从涉案客户名单的内容进行分析,该客户名单不仅包含了25家客户的名称,还包含有每一客户的纳税识别号、地址、电话、开户行及账号,同时包括每一笔业务往来的价格信息;从安徽某公司与这些客户进行交易的时间段和业务往来量分析,时间跨度从2014年12月至2017年2月四年间,累计交易上百次,大部分客户均多次与该公司发生交易。这表明,安徽某公司作为货运代理企业,经过与相关企业进行较长时间的频繁交易,通过对这些企业信息进行整理归类,已将其发展成为固定的客户群。这些客户名称等零散信息或许能从公开渠道获得,但并不同于安徽某公司经过上述过程整理分类后取得的这些具有一定内容和“厚度”的客户信息,这对于经营货运代理的企业显然相当重要,并非社会公众所知悉的容易获取的公开信息。本案中阚某、章某某、崔某某虽抗辩认为某货运公司的交易对象信息系通过互联网搜索获取,但对此并未举证证明。安徽某公司为经营国际货运代理、货物进口分拨及运输业务咨询、报关、报验代理等业务的服务型企业,客户名单对于该公司的价值性体现在其所伴随的交易机会、业务渠道及销售利润的增加,这些经营信息能够直接在与同行业的竞争中获得时间优势,提高竞争能力,创造经济价值,具有现实及潜在的竞争优势,从而具有商业秘密特有的获利性和实用性。阚某、章某某、崔某某均曾为安徽某公司的业务骨干并在该公司担任一定的领导职务,他们所任职务的职责也均涉及单位的主营业务,故必然具有接触和掌握涉案客户名单的机会,所以为加强对公司商业秘密的管理,任职单位与阚某、章某某、崔某某签订了包含保密条款的劳动协议,阚某、章某某、崔某某也出具了保密承诺;安徽某公司也规定了单位员工的保密职责和竞业禁止义务,并将其作为单位规章制度的一部分加以执行。故涉案客户信息具有保密性的特点。综上,因安徽某公司主张的客户名单符合秘密性、价值性和保密性的特征,故应作为商业秘密予以保护。

一审法院判决:阚某、章某某、崔某某、某货运公司停止对安徽某公司涉案商业秘密的侵权行为并赔偿安徽某公司经济损失及制止侵权的合理支出计25万元。阚某、章某某、崔某某、某货运公司不服一审判决,提起上诉。安徽省高级人民法院经审理认为:安徽某公司要求作为经营秘密进行保护的客户名单的载体虽然为增值税发票,但安徽某公司主张的客户名单符合秘密性、价值性和保密性的特征,故应作为商业秘密予以保护。二审法院判决:维持一审判决第一项、第三项,改判阚某、章某某、崔某某、某货运公司共同赔偿安徽某公司经济损失及制止侵权的合理支出合计10万元。阚某、章某某、崔某某、某货运公司向最高人民法

院申请再审，最高人民法院提审本案，并于2021年12月17日作出（2021）最高法民再310号民事判决：撤销一、二审判决，驳回安徽某公司的全部诉讼请求。

裁判要旨

增值税发票是依据国家相关规定，由纳税人向购买方出具的制式票据，票据上直接记载的客户信息通常不具有保密的属性。增值税发票交付购买方后，在相关法律并未明确规定购买方对增值税发票上记载的客户信息负有保密义务，也没有约定保密义务的情况下，增值税发票上直接记载的客户信息本身不构成商业秘密。

裁判理由

最高人民法院再审认为，安徽某公司主张增值税发票中的客户名称、地址、电话、开户行及账号、交易价格等信息形成的客户名单属于商业秘密。从在案证据来看，客户名称、地址、电话、开户行及账号、交易价格均记载在增值税发票中。增值税发票是依据国家相关规定由纳税人向购买方出具的制式票据，票据上记载的信息应符合相关管理规定，发挥一定的管理作用，本身并不具有保密的属性。增值税发票交付购买方后，购买方亦没有对增值税发票上记载信息保密的法定义务。安徽某公司庭审时亦明确，其与购买方并未约定对增值税发票上相关信息进行保密，即购买方并没有对增值税发票相关信息进行保密的合同义务。由此可见，安徽某公司对其主张的增值税发票并未采取保密措施，增值税发票本身亦不具备保密性。此外，增值税发票上记载的客户名称、地址、电话亦可通过其他公开渠道获取。本案中，四申请人提交了“天眼查”等查询结果已经公开了前述信息，安徽某公司亦认可查询结果显示的相关信息与增值税发票上记载的信息一致。因此，增值税发票上记载的客户名称、地址、电话信息不具有秘密性。安徽某公司还主张增值税发票上记载的交易价格以及通过增值税发票能够获知客户的交易习惯、交易频率、交易数量以及对交易价格的接受程度等属于商业秘密，但其并未说明上述主张的秘密点的具体内容以及通过增值税发票如何体现。从增值税发票记载的内容看，“货物或应税劳务、服务名称”均为“代理运费”以及每次的单价与金额。就货运代理行业而言，影响代理运费的因素很多，例如，货运方式、报价折扣、服务方式、付款方式、结算方式等，每笔交易的缔约条件需要根据具体情况确定，仅凭增值税发票中单价及金额难以直接确定客户的交易习惯、交易频次以及交易可接受价格等个性化的商业信息。在安徽某公司仅提交了增值税发票，没有明确具体主张的深度信息内容，亦没有提供证据或者充分说明从增值税发票中如何分析出客户的交易习惯、运输方式、价格折扣等深度信息的情况下，安徽某公司在本案主张增值税发票中的相关信息属于商业秘密依据不足。综上，涉案客户名单因不具有秘密性及未采取保密措施，不属于商业秘密。

C. “香兰素”技术秘密侵权案 ——非法获取全部技术秘密后对使用技术秘密行为的推定

当事人

嘉兴市中某化工有限责任公司、上海欣某新技术有限公司诉王某集团有限公司、宁波王某科技股份有限公司等

案号

最高人民法院（2020）最高法知民终1667号

合议庭成员

朱理 | 刘晓军 | 凌宗亮

关键词

民事 侵害技术秘密 使用全部技术秘密 故意 损害赔偿

相关法律规定

- 《中华人民共和国侵权责任法》第8条
- 《中华人民共和国反不正当竞争法》（2017年修订）第9条、第17条

基本案情

嘉兴市中某化工有限责任公司（以下简称嘉兴中某化工公司）系全球主要的香兰素制造商，具有较强的技术优势。上海欣某新技术有限公司（以下简称上海欣某公司）成立于1999年11月5日，经营范围为生物、化工专业领域内的技术服务、技术咨询、技术开发、技术转让及新产品的研制。2002年开始嘉兴中某化工公司与上海欣某公司共同研发了乙醛酸法制备香兰素的新工艺，包括缩合、中和、氧化、脱羧等反应过程，还包括愈创木酚、甲苯、氧化铜和乙醇的循环利用过程。嘉兴中某化工公司与上海欣某公司主张的技术秘密包括六个秘密点，上述技术秘密载体为涉及58个非标设备的设备图287张（包括主图及部件图）、工艺管道及仪表流程图（第三版）25张。嘉兴中某化工公司与上海欣某公司之间签订的《技术开发合同》《技术转让合同》《关于企业长期合作的特别合同》均有保密条款的约定。

傅某根自1991年进入嘉兴中某化工公司工作，2008年起担任香兰素车间副主任，主要负责香兰素生产设备维修维护工作。自2003年起，嘉兴中某化工公司先后制定了文件控制程序、记录控制程序、食品安全、质量和环境管理手册、设备/设施管理程序等文件。嘉兴中某化工公司就其内部管理规定对员工进行了培训，傅某根于2007年参加了管理体系培训、环境管理体系培训、宣传教育培训、贯标培训。2010年3月25日，嘉兴中某化工公司制定《档案与信息化管理安全保密制度》。2010年4月起，嘉兴中某化工公司与员工陆续签订保密协议，对商业秘密的范围和员工的保密义务作了约定，傅某根以打算辞职为由拒绝签订保密协议。

王某集团有限公司（以下简称王某集团公司）成立于1995年6月8日，经营范围为食品添加剂山梨酸钾的研发、生产，化工产品（除危险化学品）的制造、销售等，王某军任监事。宁波王某科技股份有限公司（以下简称王某科技公司）成立于2009年10月21日，由王某军与王某集团公司共同出资成立，王某军任法定代表人。宁波王某香精香料有限公司成立于2015年11月20日，由王某科技公司以实物方式出资8000万元成立，经营范围为实用香精香料（食品添加剂）的研发、生产等，主要产品为香兰素，王某军任法定代表人。2017年宁波王某香精香料有限公司企业名称变更为某孚狮王某香料（宁波）有限公司（以下简称某孚狮王某公司）。

2010年春节前后，冯某义与傅某根、费某良开始商议并寻求香兰素生产技术的交易机会。同年4月12日，三人前往王某集团公司与王某军洽谈香兰素生产技术合作事宜，以嘉兴市智某工程技术咨询有限公司（以下简称嘉兴智某公司）作为甲方，王某集团公司香兰素分厂作为乙方，签订《香兰素技术合作协议》。同日，王某集团公司向嘉兴智某公司开具100万元银行汇票，冯某义通过背书转让后支取100万元现金支票，从中支付给傅某根40万元、费某良24万元。随后，傅某根交给冯某义一个U盘，其中存有香兰素生产设备图200张、工艺管道及仪表流程图14张、主要设备清单等技术资料，冯某义转交给了王某军。同年4月15日，傅某根向嘉兴中某化工公司提交辞职报告，同年5月傅某根从嘉兴中某化工公司离职，随即与冯某义、费某良进入王某科技公司香兰素车间工作。2011年3月15日，浙江省宁波市环境保护局批复同意王某科技公司生产香兰素等建设项目环境影响报告书，批准香兰素年产量为5000吨。同年6月，王某科技公司开始生产香兰素。某孚狮王某公司自成立时起持续使用王某科技公司作为股权出资的香兰素生产设备生产香兰素。

2018年嘉兴中某化工公司、上海欣某公司向浙江省高级人民法院起诉，认为王某集团公司、王某科技公司、某孚狮王某公司、傅某根、王某军侵害其享有的香兰素技术秘密。

浙江省高级人民法院判决：一、王某集团公司、王某科技公司、某孚狮王某公司、傅某根立即停止侵害涉案技术秘密的行为，即停止以不正当手段获取、披露、使用、允许他人使用涉案设备图和工艺管道及仪表流程图记载的技术秘密；该停止侵害的时间持续到涉案技术秘密已为公众所知悉时止。二、王某集团公司、王某科技公司、傅某根自本判决生效之日起十日内连带赔偿嘉兴中某化工公司、上海欣某公司经济损失300万元、合理维权费用50万元，共计350万元；某孚狮王某公司对其中7%即24.5万元承担连带赔偿责任。三、驳回嘉兴中某化工公司、上海欣某公司的其他诉讼请求。除王某军外，本案各方当事人均不服一审判决，向最高人民法院提出上诉。最高人民法院于2021年2月19日作出（2020）最高法知民终1667号民事判决：一、撤销浙江省高级人民法院（2018）浙民初25号民事判决。二、王某集团公司、王某科技公司、某孚狮王某公司、傅某根、王某军立即停止侵害嘉兴中某化工公司、上海欣某公司技术秘密的行为，即停止以不正当手段获取、披露、使用、允许他人使用涉案设备图和工艺管道及仪表流程图记载的技术秘密，该停止侵害的时间持续到涉案技术秘密为公众所知悉时止。三、王某集团公司、王某科技公司、傅某根、王某军自本判决生效之日起十日内连带赔偿嘉兴中某化工公司、上海欣某公司经济损失155829455.20元，合理维权费用3492216元，共计159321671.20元，某孚狮王某公司对其中7%即11152516.98元承担连带赔偿责任。四、驳回嘉兴中某化工公司、上海欣某公司的其他诉讼请求。五、驳回王某集团公司、王某科技公司、某孚狮王某公司、傅某根的上诉请求。二审宣判后，王某集团公司、王某科技公司、某孚狮王某公司、傅某根、王某军不服，向最高人民法院申请再审。

最高人民法院于2021年10月19日作出（2021）最高法民申3890号民事裁定：驳回王某集团公司、王某科技公司、某孚狮王某公司、傅某根、王某军的再审申请。

裁判要旨

1. 权利人举证证明被诉侵权人非法获取了完整的产品工艺流程、成套生产设备资料等技术秘密且已实际生产出相同产品的, 人民法院可以认定被诉侵权人使用了全部技术秘密, 但被诉侵权人提供相反证据足以推翻的除外。
2. 被诉侵权人构成故意侵害技术秘密的, 人民法院可以以被诉侵权人相关产品销售利润为基础, 计算损害赔偿数额; 销售利润难以确定的, 可以依据权利人相关产品销售价格及销售利润率乘以被诉侵权人相关产品销售数量为基础, 计算损害赔偿数额。

裁判理由

最高人民法院二审认为: 王某集团公司等被诉侵权人已经实际制造了香兰素产品, 故其必然具备制造香兰素产品的完整工艺流程和相应装置设备。嘉兴中某化工公司与上海欣某公司主张的技术秘密包括六个秘密点, 涉及58个非标设备的设备图287张和工艺管道及仪表流程图25张。被诉侵权技术信息载体为王某集团公司等被诉侵权人获取的200张设备图和14张工艺流程图, 经比对其中有184张设备图与涉案技术秘密中设备图的结构型式、大小尺寸、设计参数、制造要求均相同, 设备名称和编号、图纸编号、制图单位等也相同, 共涉及40个非标设备; 有14张工艺流程图与嘉兴中某化工公司的工艺管道及仪表流程图的设备位置和连接关系、物料和介质连接关系、控制内容和参数等均相同, 其中部分图纸标注的图纸名称、项目名称、设计单位也相同。同时, 王某科技公司提供给浙江杭某容器有限公司(以下简称杭某公司)的脱甲苯冷凝器设备图、王某科技公司环境影响报告书附15氧化单元氧化工艺流程图虽然未包含在冯某义提交的图纸之内, 但均属于涉案技术秘密的范围。鉴于王某科技公司已在设备加工和环评申报中加以使用, 可以确定王某科技公司获取了该两份图纸。本案中, 涉案技术秘密的载体为287张设备图和25张工艺管道及仪表流程图, 王某集团公司等被诉侵权人非法获取了其中的185张设备图和15张工艺流程图。考虑到王某集团公司等被诉侵权人获取涉案技术秘密图纸后完全可以做一些针对性的修改, 故虽有4项与涉案技术秘密中的对应技术信息存在些许差异, 但根据本案具体侵权情况, 完全可以认定这些差异是因王某集团公司等被诉侵权人在获取涉案技术秘密后进行规避性或者适应性修改所导致, 故可以认定这4项依然使用了涉案技术秘密。在此基础上, 可以进一步认定王某集团公司等被诉侵权人实际使用了其已经获取的全部185张设备图和15张工艺流程图。具体理由是: 第一, 香兰素生产设备和工艺流程通常具有配套性, 其生产工艺及相关装置相对明确固定, 王某集团公司等被诉侵权人已经实际建成香兰素项目生产线并进行规模化生产, 故其必然具备制造香兰素产品的完整工艺流程和相应装置设备。第二, 王某集团公司等被诉侵权人拒不提供有效证据证明其对香兰素产品的完整工艺流程和相应装置设备进行了研发和试验, 且其在极短时间内上马香兰素项目生产线并实际投产, 王某科技公司的香兰素生产线从启动到量产仅用了一年左右的时间。与之相比, 嘉兴中某化工公司涉案技术秘密从研发到建成生产线至少用了长达四年多的时间。第三, 王某集团公司等被诉侵权人未提交有效证据证明其对被诉技术方案及相关设备进行过小试和中试, 且其又非法获取了涉案技术图纸, 同时王某科技公司的环境影响报告书及其在向杭某公司购买设备的过程中均已使用了其非法获取的设备图和工艺流程图。综合考虑技术秘密案件的特点及本案实际情况, 同时结合王某集团公司等被诉侵权人未提交有效相反证据的情况, 可以认定王某集团公司等被诉侵权人使用了其非法获取的全部技术秘密。第四, 虽然王某集团公司、王某科技公司的香兰素生产工艺流程和相应装置设备与涉案技术秘密在个别地方略有不同, 但其未提交证据证明这种不同是基于其自身的技术研发或通过其他正当途径获得的技术成果所致。同时现有证据表明, 王某集团公司等被诉侵权人是在获取了涉案技术秘密后才开始组建工厂生产香兰素产品, 即其完全可能在获得涉案技术秘密后对照该技术秘密对某些生产工艺或

个别配件装置做规避性或者适应性修改。这种修改本身也是实际使用涉案技术秘密的方式之一。综上,认定王某集团公司等被诉侵权人从嘉兴中某化工公司处非法获取的涉案技术秘密,即185张设备图和15张工艺流程图均已被实际使用。

傅某根长期在嘉兴中某化工公司工作,负责香兰素车间设备维修,能够接触到涉案技术秘密。2010年4月12日,冯某义、傅某根等三人前往王某集团公司与王某军洽谈香兰素生产技术合作事宜,迅速达成《香兰素技术合作协议》,约定由冯某义、傅某根等人以香兰素新工艺技术入股王某集团公司香兰素分厂。傅某根根据该协议获得40万元的对价,随后将含有涉案技术秘密的U盘经冯某义转交给王某军。傅某根从嘉兴中某化工公司辞职后即加入王某科技公司,负责香兰素生产线建设,王某科技公司在很短时间内完成香兰素生产线建设并进行工业化生产,全面使用了嘉兴中某化工公司和上海欣某公司的设备图和工艺流程图。以上事实足以证明傅某根实施了获取及披露涉案技术秘密给王某集团公司、王某科技公司并允许其使用涉案技术秘密的行为。王某集团公司、王某科技公司均系从事香兰素生产销售的企业,与嘉兴中某化工公司具有直接竞争关系,应当知悉傅某根作为嘉兴中某化工公司员工对该公司香兰素生产设备图和工艺流程图并不享有合法权利。但是,王某集团公司仍然通过签订《香兰素技术合作协议》,向傅某根、冯某义等支付报酬的方式,直接获取嘉兴中某化工公司的涉案技术秘密,并披露给王某科技公司使用。王某科技公司雇佣傅某根并使用其非法获取的技术秘密进行生产,之后又通过设备出资方式将涉案技术秘密披露并允许某孚狮王某公司继续使用,以上行为均侵害了嘉兴中某化工公司与上海欣某公司的技术秘密。某孚狮王某公司自成立起持续使用王某科技公司作为技术出资的香兰素生产线,构成侵害涉案技术秘密。

王某集团公司等被诉侵权人非法获取并持续、大量使用商业价值较高的涉案技术秘密,手段恶劣,具有侵权恶意,其行为冲击香兰素全球市场,且王某集团公司等被诉侵权人存在举证妨碍、不诚信诉讼等情节,王某集团公司、王某科技公司、某孚狮王某公司、傅某根拒不执行原审法院的生效行为保全裁定,法院根据上述事实依法决定按照销售利润计算本案侵权损害赔偿数额。由于王某集团公司、王某科技公司及某孚狮王某公司在本案中拒不提交与侵权行为有关的账簿和资料,法院无法直接依据其实际销售数据计算销售利润。考虑到嘉兴中某化工公司香兰素产品的销售价格及销售利润率可以作为确定王某集团公司、王某科技公司及某孚狮王某公司相关销售价格和销售利润率的参考,为严厉惩处恶意侵害技术秘密的行为,充分保护技术秘密权利人的合法利益,人民法院决定以嘉兴中某化工公司香兰素产品2011年至2017年期间的销售利润率来计算本案损害赔偿数额,即以2011年至2017年期间王某集团公司、王某科技公司及某孚狮王某公司生产和销售的香兰素产量乘以嘉兴中某化工公司香兰素产品的销售价格及销售利润率计算赔偿数额。

D. “卡波”技术秘密侵权案 ——以侵权为业的认定

当事人

广州天某高新材料股份有限公司、九江天某高新材料有限公司诉安徽纽某精细化工有限公司等

案号

最高人民法院 (2019) 最高法知民终562号

合议庭成员

徐卓斌 | 雷艳珍 | 邓卓

关键词

民事 侵害技术秘密 以侵害知识产权为业 惩罚性赔偿 损害赔偿数额

相关法律规定

- 《中华人民共和国反不正当竞争法》第17条第3款

基本案情

2000年6月6日，广州天某高新材料股份有限公司（以下简称广州天某公司）登记成立。2007年10月30日，九江天某高新材料有限公司（以下简称九江天某公司）登记成立，独资股东是广州天某公司。两天某公司为证明两者之间存在卡波技术的许可使用关系，提交了两份授权书。第一份授权书于2008年9月30日出具，记载：现将广州天某公司自主研发的卡波姆产品生产技术及知识产权授予九江天某公司无偿使用，授权期限为十年，从2008年10月1日至2018年9月30日止。在授权期间内，九江天某公司拥有该项技术的使用权，其权利包括但不限于：利用该技术生产、制造、销售产品，利用该技术改善其目前的产业流程，对该技术成果进行后续改进形成新的技术成果等。未经双方书面同意与确认，广州天某公司和九江天某公司不得将该项技术授予其他任何单位或个人使用。授权期满后，授予的使用权将归还广州天某公司所有。第二份授权书于2018年9月15日出具，授权期限自2018年10月1日至2028年9月30日，授权内容同第一份授权书。本案案涉产品即为卡波，也称卡波姆（Carbomer），中文别名聚丙烯酸、羧基乙烯共聚物，中和后的卡波是优秀的凝胶基质，广泛应用于乳液、膏霜、凝胶中。

2011年8月29日，安徽纽某精细化工有限公司（以下简称安徽纽某公司）登记成立，成立时法定代表人是刘某，刘某出资比例为70%，后法定代表人变更为吴某成。

华某于2004年3月30日入职广州天某公司，2013年11月8日离职。2007年12月30日至离职，华某先后与广州天某公司签订《劳动合同》及《商业保密、竞业限制协议》《员工手册》《专项培训协议》等文件，就商业秘密的保密义务、竞业限制等方面进行了约定。朱某良、胡某春曾就职于广州天某公司，在职期间均与广州天某公司签订了《劳动合同》《商业保密、

竞业限制协议》《商业技术保密协议》等。2012年至2013年期间，华某利用其卡波产品研发负责人的身份，以撰写论文为由向九江天某公司的生产车间主任李某某索取了卡波生产工艺技术的反应釜和干燥机设备图纸，还违反广州天某公司管理制度，多次从其在广州天某公司的办公电脑里将卡波生产项目工艺设备的资料拷贝到外部存储介质中。华某非法获取两天某公司卡波生产技术中的生产工艺资料后，先后通过U盘拷贝或电子邮件发送的方式将两天某公司的卡波生产工艺原版图纸、文件发送给刘某、朱某良、胡某春等人，并且华某、刘某、朱某良、胡某春对两天某公司卡波生产工艺技术的原版图纸进行了使用探讨。在此过程中，胡某春与朱某良均提出是否会侵犯九江天某公司的相关权利，华某则要求胡某春根据两天某公司卡波生产工艺技术的原版图设计安徽纽某公司的生产工艺，并交代胡某春设计时不要与两天某公司做得一模一样等。于是胡某春按照华某的要求对广州天某公司卡波工艺设计图进行修改，最后将修改后的图纸委托山东某工程设计有限公司合肥分院作出设计，委托江苏某机械有限公司制造反应釜，并向与两天某公司有合作关系的上海某粉体机械制造有限公司订购与两天某公司一样的粉碎机械设备，再委托江苏无锡某搅拌设备有限公司根据江苏某机械有限公司的技术方案设计总装图，进而按照总装图生产搅拌机。

至迟自2014年起，安徽纽某公司利用华某从两天某公司非法获取的卡波生产工艺、设备技术生产卡波产品，并向国内外公司销售，销售范围多达二十余个国家和地区。生产卡波产品为安徽纽某公司的主要经营业务，无证据证明其还生产其他产品。2018年1月，安徽纽某公司原法定代表人刘某等因侵犯商业秘密罪被追究刑事责任，在相关刑事判决已经认定华某、刘某等实施了侵犯权利人技术秘密行为的情况下，安徽纽某公司仍未停止侵权。依据相关证据，安徽纽某公司自2014年起，直至2019年8月，始终持续销售卡波产品。

广州天某公司、九江天某公司于2017年以安徽纽某公司、华某、刘某、胡某春、朱某良等侵害其卡波技术秘密为由诉至广州知识产权法院，请求判令各被告停止侵权、赔偿损失、赔礼道歉。广州知识产权法院判决：一、华某、刘某、胡某春、朱某良、安徽纽某公司于本判决生效之日起立即停止侵害广州天某公司、九江天某公司涉案技术秘密，并销毁记载涉案技术秘密的工艺资料。二、安徽纽某公司于本判决生效之日起十日内赔偿广州天某公司、九江天某公司经济损失3000万元及合理开支40万元，华某、刘某、胡某春、朱某良对前述赔偿数额分别在500万元、500万元、100万元、100万元范围内承担连带责任。三、驳回广州天某公司、九江天某公司其他诉讼请求。一审宣判后，广州天某公司、九江天某公司、安徽纽某公司、华某、刘某向最高人民法院提起上诉。最高人民法院于2020年11月24日作出（2019）最高法知民终562号民事判决：一、维持广州知识产权法院（2017）粤73民初2163号民事判决第一项、第三项。二、变更广州知识产权法院（2017）粤73民初2163号民事判决第二项为：安徽纽某公司于本判决生效之日起十日内赔偿广州天某公司、九江天某公司经济损失3000万元及合理开支40万元，华某、刘某、胡某春、朱某良对前述赔偿数额分别在500万元、3000万元、100万元、100万元范围内承担连带责任。三、驳回广州天某公司、九江天某公司的其他上诉请求。四、驳回华某、刘某、安徽纽某公司的上诉请求。二审宣判后，安徽纽某公司、华某、刘某向最高人民法院提起再审申请。最高人民法院裁定：驳回华某、刘某、安徽纽某公司的再审申请。

裁判要旨

1. 判断侵害知识产权行为是否构成情节严重并适用惩罚性赔偿时，可以综合考量被诉侵权人是否以侵害知识产权为业、是否受到刑事或者行政处罚、是否构成重复侵权、诉讼中是否存在举证妨碍行为，以及侵权行为造成的损失或者侵权获利数额、侵权规模、侵权持续时间等因素。
2. 行为人明知其行为构成侵权，已实际实施侵权行为且构成其主营业务的，可以认定为以侵害知识产权为业。对于以侵害知识产权为业，长期、大规模实施侵权行为的，可以依法从高乃至顶格适用惩罚性赔偿倍数确定损害赔偿数额。

裁判理由

最高人民法院二审认为：《中华人民共和国反不正当竞争法》第十七条第三款规定，因不正当竞争行为受到损害的经营者的赔偿数额，按照其因被侵权所受到的实际损失确定；实际损失难以计算的，按照侵权人因侵权所获得的利益确定。经营者恶意实施侵犯商业秘密行为，情节严重的，可以按照上述方法确定数额的一倍以上五倍以下确定赔偿数额。赔偿数额还应当包括经营者为制止侵权行为所支付的合理开支。

本案中，两天某公司的实际损失无法查清，故根据已查明的安徽纽某公司的部分销售情况进行计算得出其侵权获利。安徽纽某公司生产的卡波产品，其工艺、流程和部分设备侵害了两天某公司的涉案技术秘密，但其卡波配方并未被认定侵害两天某公司的技术秘密。原审法院在确定侵权获利时未考虑涉案技术秘密在卡波生产中的作用，同时也未充分考虑除涉案技术秘密信息之外的其他生产要素在卡波产品生产过程中的作用，以安徽纽某公司自认的3700余万元销售额乘以精细化工行业毛利率32.26%，得到安徽纽某公司可以查实的部分侵权获利近1200万元。现综合考虑涉案被侵害技术秘密在卡波产品生产过程中所起的作用，酌情确定涉案技术秘密的贡献程度为50%，因此对于安徽纽某公司的侵权获利相应酌减取整数确定为600万元。关于利润率的选择，由于安徽纽某公司未根据法院要求提供原始会计凭证、账册、利润表，也未举证证明其卡波产品的利润率，应承担举证不利的法律后果，故按照广州天某公司年报公布的精细化工行业毛利率确定其产品利润率。

安徽纽某公司虽在二审阶段向法院提交营业执照等证据佐证其经营范围不止卡波产品的生产。但营业执照记载的经营范围系安徽纽某公司申请注册成立时的选择，其实际经营范围既可能大于也可能小于营业执照记载的经营范围。且根据已查明的事实，安徽纽某公司除卡波产品外，并没有生产其他产品，安徽纽某公司也未进一步举证证明其除卡波产品以外生产其他产品的事实。本案中，华某被诉披露技术秘密的侵权行为发生于2012年至2013年期间，安徽纽某公司利用华某从两天某公司非法获取的卡波生产工艺、设备技术生产卡波产品，并向国内外销售。此外，安徽纽某公司明确陈述其所生产的卡波产品均为相同设备所产。界定行为人是否以侵权为业，可从主客观两方面进行判断。就客观方面而言，行为人已实际实施侵害行为，并且系其公司的主营业务、构成主要利润来源；从主观方面看，行为人包括公司实际控制人及管理层等，明知其行为构成侵权而仍予以实施。本案中安徽纽某公司以及刘某等人的行为，即属此类情形。

《中华人民共和国反不正当竞争法》第十七条第三款规定了判处惩罚性赔偿的条件以及惩罚性赔偿的倍数范围。可见，若经营者存在恶意侵害他人商业秘密的行为且情节严重的，权利人可请求侵权人承担赔偿金额相应倍数的惩罚性赔偿。因此，本案应在判断安徽纽某公司是否存在恶意侵权、情节是否严重的基础上确定是否适用惩罚性赔偿。根据本案业已

查明的事实，安徽纽某公司自成立以来，便以生产卡波产品为经营业务，其虽辩称也生产其他产品，但并未提交证据加以佐证，且其所生产的卡波产品名称虽有差别，但均由同一套设备加工完成。此外，当其前法定代表人刘某因侵犯商业秘密罪被追究刑事责任，被认定实施了侵犯权利人技术秘密行为后，安徽纽某公司仍未停止生产，销售范围多至二十余个国家和地区，同时在本案原审阶段无正当理由拒不提供相关会计账册和原始凭证，构成举证妨碍，足见其侵权主观故意之深重、侵权情节之严重。鉴于本案被诉侵权行为跨越《中华人民共和国反不正当竞争法》修改施行的2019年4月23日前后，安徽纽某公司拒绝提供财务账册等资料构成举证妨碍，所认定的侵权获利系基于安徽纽某公司自认的销售额确定，仅系其部分侵权获利；侵权人在本案中并未提交证据证明其法律修改前后的具体获利情况，导致无法以2019年4月23日为界进行分段计算；现有证据显示安徽纽某公司在一审判决之后并未停止侵权行为，其行为具有连续性，其侵权规模巨大、持续时间长。鉴于此，导致依据在案证据客观上难以分段计算赔偿数额。《中华人民共和国反不正当竞争法》设立惩罚性赔偿制度的初衷在于强化法律威慑力，打击恶意严重侵权行为，威慑、阻吓未来或潜在侵权人，有效保护创新活动，对长期恶意从事侵权活动应从重处理，故本案可以依据所认定的安徽纽某公司侵权获利从高确定本案损害赔偿数额。

E. “蜜胺”技术秘密侵权案 ——技术秘密侵权案件中共同故意侵权的认定及责任承担

当事人

四川某化工股份有限公司诉山东某化工股份有限公司等

案号

最高人民法院（2022）最高法知民终541号

合议庭成员

岑宏宇 | 徐红妮 | 孔立明

关键词

民事 侵害技术秘密 共同侵权 停止侵权 司法鉴定

相关法律规定

- 《中华人民共和国反不正当竞争法》（2017年修订）第9条、第17条第3款
- 《中华人民共和国侵权责任法》第8条
- 《中华人民共和国民事诉讼法》（2021年修正）第67条第1款

基本案情

四川某化工股份有限公司（以下简称四川某化工公司）诉称：其将加压气相淬冷法年产5万吨三聚氰胺（以下称为蜜胺）生产反应系统（以下简称涉案技术秘密）作为技术秘密保护，山东某化工股份有限公司（以下简称山东某化工公司）、宁波某管理咨询有限公司（以下简称宁波某咨询公司）、宁波某化工工程设计有限公司（以下简称宁波某化工设计公司）、尹某某侵害了涉案技术秘密，构成共同侵权且侵权获利巨大。故请求判令：上述四被诉侵权人停止侵权（包括停止披露、使用、允许他人使用涉案技术秘密，销毁承载有涉案技术秘密的资料，山东某化工公司销毁承载有涉案技术秘密的生产系统、停止销售使用涉案技术秘密生产的蜜胺产品）、连带赔偿四川某化工公司经济损失及合理费用9800万元。

山东某化工公司、宁波某咨询公司、宁波某化工设计公司、尹某某均辩称：不构成侵权，亦不构成共同侵权，不应承担侵权责任。

法院经审理查明：四川某化工公司系涉案技术秘密的权利人，尹某某为涉案技术秘密的研发人员之一且负有保密义务。2011年9月7日，山东某化工公司发布公告称，其拟以尿素为原料，采用加压法气相淬冷工艺技术，分两期建设10万吨/年蜜胺装置；同年10月16日，其与宁波某咨询公司、宁波某化工设计公司签订《大型蜜胺项目技术转让、服务建设工程设计合同》（以下简称工程设计合同），约定委托方为山东某化工公司，承接方为宁波某化工设计公司，技术授权方为宁波某咨询公司，合同约定设计费966万元、专有技术费1600万元。2012年2月至7月期间，宁波某咨询公司、宁波某化工设计公司分别联系尹某某，要求尹某某提供四

川某化工公司的蜜胺生产技术用于给山东某化工公司设计年产5万吨蜜胺制备装置并许以相应高额报酬,并用U盘从尹某某的笔记本电脑上拷贝了四川某化工公司的相关技术资料;又于2013年将宁波某化工设计公司设计完成的山东某化工公司蜜胺项目的设计图纸拷贝给尹某某,让尹某某帮助检查,并在2013年、2014年安排尹某某多次前往山东某化工公司进行现场检查指导、操作培训、故障排除等。尹某某因此获利95万元。2014年4月30日,山东某化工公司发布公告称,其蜜胺一期项目试车成功且已打通全线流程,生产出合格产品,进入试生产阶段。2017年3月28日,山东某化工公司公告中披露,近三年,其与上述工程设计合同有关的蜜胺产品年均营业收入占比2%左右。基于山东某化工公司在年报中披露的其有机胺毛利率,以及同规模企业的蜜胺毛利率,计算得出山东某化工公司在被诉侵权赔偿期间即2014年4月30日至2018年12月30日销售蜜胺的获利分别约为2.8亿元和3.03亿元。

四川省成都市中级人民法院判决,山东某化工公司、宁波某咨询公司、宁波某化工设计公司、尹某某立即停止披露、使用、允许他人使用涉案技术秘密并销毁各自持有的涉案技术秘密的载体资料,山东某化工公司赔偿5000万元,宁波某咨询公司、宁波某化工设计公司对其中的500万元承担连带赔偿责任,尹某某就其中的120万元承担连带赔偿责任,未支持四川某化工公司要求山东某化工公司停止销售使用涉案技术秘密获得的蜜胺产品及销毁侵权生产系统的诉讼请求。宣判后,四川某化工公司、山东某化工公司、宁波某咨询公司、宁波某化工设计公司、尹某某均提起上诉。最高人民法院于2022年12月26日作出(2022)最高法知民终541号民事判决,撤销四川省成都市中级人民法院于2021年12月27日作出(2017)川01民初2948号民事判决,改判山东某化工公司、宁波某咨询公司、宁波某化工设计公司、尹某某自判决生效之日起立即停止披露、使用、允许他人使用四川某化工公司的涉案技术秘密,停止侵害的时间持续至涉案技术秘密信息已为公众知悉之日止,其中山东某化工公司的停止使用包括立即停止销售使用涉案技术秘密所生产的蜜胺产品;宁波某咨询公司、宁波某化工设计公司、尹某某自判决生效之日起10日内销毁各自所持有的记载有涉案技术秘密的技术资料,山东某化工公司自判决生效之日起90日内销毁其10万吨/年蜜胺项目(一期)中涉及涉案技术秘密的设备(销毁的方式包括但不限于拆除有关设备中包含四川某化工公司涉案技术秘密的部分)以及记载有涉案技术秘密的技术资料;山东某化工公司、宁波某咨询公司、宁波某化工设计公司、尹某某自判决生效之日起10日内连带赔偿四川某化工公司经济损失及维权合理开支9800万元。

裁判要旨

1. 构成共同故意侵权不以各参与者事前共谋、事后协同行动为限,各参与者彼此之间心知肚明、心照不宣,先后参与、相互协作,亦可构成共同故意侵权。各侵权人具有侵害技术秘密的意思联络,主观上彼此明知,各自先后实施相应的侵权行为形成完整的技术秘密侵权行为链,客观上分工协作的,属于共同故意侵权,应当判令各侵权人对全部侵权损害承担连带责任。
2. 从主观过错角度看,共同实施侵权行为主要包括三种情形:其一,共同故意实施的行为;其二,共同过失实施的行为;其三,故意行为与过失行为结合实施的行为,即数个行为人虽主观过错程度不一,但各自行为相结合而实施的行为,造成他人损害的,也可以构成共同侵权行为。
3. 当制造者使用的技术秘密为制造特定产品所不可或缺的重要条件且该产品为使用该技术秘密所直接获得的产品时,因其销售该产品的行为显属同一侵权主体实施制造行为的自然延伸和必然结果,权利人主张该制造者停止销售使用该技术秘密所直接获得的产品的,人民法院可予支持。

4. 在权利人证明相应技术秘密载体存在的情况下,对权利人提出的要求侵权人销毁持有的技术秘密载体的诉讼请求,人民法院一般应予支持。人民法院可以综合考虑载体的性质、技术秘密的内容等情况对侵权人销毁其持有的技术秘密载体的具体方式以及履行期予以指明。被诉侵权生产系统既是承载技术秘密的重要载体,也是侵权人可能继续实施侵权行为的重要工具,销毁承载有该技术秘密的被诉侵权生产系统既是停止侵害的应有之义,亦可有效预防侵权人继续使用其上所承载的技术秘密以及在该生产系统上使用该技术秘密中的生产工艺。销毁有关设备的方式包括但不限于拆除。
5. 诉讼过程中当事人申请司法鉴定并不必然启动鉴定程序,人民法院仍应当根据对相关事实的认定需要作出是否启动鉴定程序的决定。对此一般应当着重从关联性、必要性、可行性、正当性四方面予以审查。

裁判理由

法院生效裁判认为:本案争议焦点包括:(1)山东某化工公司、宁波某咨询公司、宁波某化工设计公司、尹某某是否实施了侵害涉案技术秘密的行为以及四者是否构成共同侵权;

(2)山东某化工公司等被诉侵权人应否承担连带责任;(3)销毁涉案技术秘密载体以及停止销售使用涉案技术秘密生产的蜜胺产品的责任应如何承担;(4)山东某化工公司在本案中提出的鉴定申请是否应予准许。

(一)关于山东某化工公司等被诉侵权人是否侵害涉案技术秘密及四者是否构成共同侵权的问题

根据《中华人民共和国侵权责任法》第八条规定,构成共同侵权需要满足以下要件:一是共同侵权行为的主体必须是两个以上。二是共同实施侵权行为。从主观过错角度看,这里的共同实施行为主要包括三种情形:其一,共同故意实施的行为,这属于典型的共同侵权行为。其二,共同过失实施的行为,即基于共同的疏忽大意或者过于自信的过失而造成他人的损害,也可以构成共同侵权行为。其三,故意行为与过失行为结合实施的行为,即数个行为人虽主观过错程度不一,但各自行为相结合而实施的行为,造成他人损害的,也可以构成共同侵权行为。以上三种情形,具备其一,即可认定构成共同实施侵权行为。三是造成受害人损害,且损害具有不可分割性。四是各行为人的侵权行为均与损害后果之间具有因果关系。在共同侵权行为中,有时各个行为人的侵权行为对造成损害后果的原因力可以有所不同,但必须存在法律上的因果关系。

1. 关于山东某化工公司等被诉侵权人共同实施侵权行为的主观过错

尹某某系涉案技术秘密的主要研发人员之一,能够直接接触到涉案技术秘密。尹某某在未办理离职手续,亦未告知其留存有蜜胺生产图纸、资料的情况下,就停止在四川某化工公司工作,其在与宁波某咨询公司、宁波某化工设计公司接触时亦尚在约定的保密期内,亦明知该两公司与山东某化工公司的合作情况,仍然将涉案技术秘密披露给山东某化工公司、宁波某咨询公司、宁波某化工设计公司使用,收取相应报酬,并使用涉案技术秘密提供后续技术指导。尹某某是涉案技术秘密的提供者,亦是山东某化工公司、宁波某咨询公司、宁波某化工设计公司实际使用涉案技术秘密过程中的技术指导者。以上事实足以证明尹某某实施了违反保密义务披露涉案技术秘密给山东某化工公司、宁波某咨询公司、宁波某化工设计公司并允许该三者使用涉案技术秘密的行为,其还违反保密义务自己使用涉案技术秘密为他人使用涉案技术秘密提供技术指导,其行为已构成《中华人民共和国反不正当竞争法》第九条第一款第三项规定的侵犯商业秘密。尹某某主观上明知其披露、允许使用和自己使用的行

为是在促成山东某化工公司、宁波某咨询公司、宁波某化工设计公司后续实施相关侵权行为，系本案共同实施侵权行为中的关键人物。

宁波某咨询公司、宁波某化工设计与山东某化工公司签订工程设计合同后，在明知尹某某曾是涉案技术秘密主要研发人员之一的情况下，仍以高额利诱的非法手段从尹某某处获取涉案技术秘密，然后由宁波某咨询公司作为名义上的技术提供者向山东某化工公司转让涉案技术并由宁波某化工设计公司进行所谓的工程化设计，用于山东某化工公司蜜胺一期项目并从中获取经济利益，该二者构成非法收买并转卖涉案技术秘密，实施了以不正当手段获取涉案技术秘密并披露、使用、允许他人使用涉案技术秘密的行为，已构成《中华人民共和国反不正当竞争法》第九条第一款第一项、第二项规定的侵犯商业秘密行为，属于本案共同实施被诉侵权行为的始作俑者和中间渠道及名义上的技术提供者。

山东某化工公司系涉案蜜胺一期项目的最终使用者、最大获益者，其涉案蜜胺一期项目的技术图纸、资料来源于宁波某咨询公司和宁波某化工设计公司。一审法院据此认定，山东某化工公司获取并使用了涉案技术秘密，具有事实和法律依据。同时，在案证据亦足以证明山东某化工公司对其使用的技术实际来源于四川某化工公司是明知的。因此，山东某化工公司实施了《中华人民共和国反不正当竞争法》第九条第二款规定的视为侵犯商业秘密行为，其虽处于本案共同实施侵权行为的末端环节，但其也是涉案技术秘密的最终使用者和最大获益者。

因此，山东某化工公司、宁波某咨询公司、宁波某化工设计公司、尹某某之间具有侵害涉案技术秘密的共同意思联络，主观上彼此明知，彼此先后实施相应的侵权行为形成了完整的侵害涉案技术秘密的侵权行为链，客观上已形成分工协作，属于共同故意实施被诉侵权行为。需特别指出的是，构成共同故意实施被诉侵权行为并不以各参与者事前共谋、事后协同行动为限，各参与者彼此之间心知肚明、心照不宣，先后参与、相互协作，亦可构成共同故意实施被诉侵权行为。本案中，山东某化工公司等被诉侵权人实施共同侵权行为的过程即属于后者情形，其各自实施的行为均属于实施共同侵权行为的关键环节且为不可或缺的组成部分。

2. 关于损害后果

无损害，则无救济。损害后果系判断侵权责任的重要因素之一，如没有共同的损害结果，则就缺少共同承担侵权责任的基础。本案中，山东某化工公司等被诉侵权人共同故意实施侵害四川某化工公司的涉案技术秘密的行为显然已造成了损害后果，即四川某化工公司原本因涉案技术秘密而享有的竞争优势被削弱，其潜在或预期可得的市场份额丧失。根据《中华人民共和国反不正当竞争法》第十七条第三款的规定，侵权获利可以作为计算损害赔偿的依据，因而山东某化工公司等被诉侵权人的侵权获利本身即已构成侵权损害的后果，当然侵权损害后果并不仅限于侵权获利。就山东某化工公司等被诉侵权人而言，该四者共同实施侵权行为的获利主要体现为山东某化工公司销售蜜胺产品所获得的利益。在判断山东某化工公司等被诉侵权人因共同实施被诉侵权行为的获利时，应当从该四者共同实施行为的整体出发予以考量，而不能孤立地从各被诉侵权人在各环节各自实施的侵权行为单独考量进而割裂地判断获利情况，其中宁波某咨询公司、宁波某化工设计公司、尹某某在各自实施涉案侵权行为中分别所获得利益可以被山东某化工公司销售蜜胺产品所获得的利益所涵盖。山东某化工公司销售蜜胺产品的获利增长系该四者共同实施被诉侵权行为时所共同期望达到的结果且在实施之初就已完全预见得到。

具体而言，首先，该四者共同故意实施侵权行为的初衷及目的在于使山东某化工公司生产蜜胺的产量大幅增长进而使其销售获利也因此增长，该四者共同实施侵权行为后实际上也达

到了上述目的。因此,虽然该四者在各自实施侵权行为的环节中有着不同的行为方式、不同的获利形式及不同的实际获利份额,但从共同实施侵权行为的整体来看,该四者共同实施被诉侵权行为的获利最终主要是体现在销售蜜胺产品的获利上,而且实现此获利亦是该四者共同追求的结果。相应地,四川某化工公司潜在或预期可得的市场份额就会丧失,其相关获利必然受到影响,故其经济损失系因山东某化工公司等被诉侵权人使用涉案技术秘密制造涉案蜜胺一期项目的生产系统、使用该生产系统及涉案技术秘密中的工艺方法生产、销售蜜胺产品而产生。其次,山东某化工公司等被诉侵权人在实施共同侵权行为之初均已完全预见到因共同故意实施被诉侵权行为的损害后果,以及山东某化工公司销售获利大幅增长的结果。就宁波某咨询公司、宁波某化工设计公司、尹某某而言,该三者均明知涉案蜜胺一期项目的生产规模即单一生产线年产5万吨蜜胺。尹某某在披露涉案技术秘密之初就明知将被用于山东某化工公司涉案蜜胺一期项目,宁波某咨询公司、宁波某化工设计公司亦是为了建设该被诉侵权项目而从尹某某处获取涉案技术秘密,该三者均明知该项目的建设目的是提高山东某化工公司的蜜胺年产量且该项目的建成势必会有效提高蜜胺产品的年产量,该三者均明知山东某化工公司将通过销售涉案蜜胺产品营利,更明知山东某化工公司与四川某化工公司具有竞争关系,涉案技术秘密的披露、使用或者允许他人使用必然会损害四川某化工公司原本在该行业内享有的竞争优势。尹某某作为涉案技术秘密的主要研发人员之一,明知涉案技术秘密系四川某化工公司的重要技术秘密,理应充分了解涉案技术秘密给四川某化工公司所带来的竞争优势。宁波某咨询公司、宁波某化工设计公司亦明确知晓涉案技术秘密在行业内的价值。因此,该三者在实施侵权行为之初已完全预见到侵权行为可能造成的损害后果以及山东某化工公司销售涉案蜜胺产品的获利。就山东某化工公司而言,其为提升自身蜜胺的年产量,其在明知来源非法的情况下,仍然非法获取、使用涉案技术秘密并用于其蜜胺一期项目,涉案技术秘密的使用所带来的蜜胺产量的大幅提升、销售蜜胺获利的大幅增长不仅是山东某化工公司已完全预见的结果,更是其积极追求的目标。

综上所述,本案侵权损害后果主要体现在山东某化工公司销售涉案蜜胺产品的获利,且该损害后果具有不可分割性。

3. 关于侵权行为与损害后果之间的因果关系

如前所论,本案中,尹某某违反保密约定,披露涉案技术秘密并允许他人使用涉案技术秘密,系共同侵权行为得以实施的基础环节,同时其使用涉案技术秘密为其他被诉侵权人提供技术指导,亦是共同实施侵权行为中的关键人物;宁波某咨询公司、宁波某化工设计公司以高额利诱的非法手段获取并披露、使用、允许他人使用涉案技术秘密,系共同实施侵权行为的始作俑者和中间渠道及名义上的技术提供者;山东某化工公司非法获取、使用涉案技术秘密,并通过使用涉案技术秘密生产蜜胺产品后进行销售,其为共同实施侵权行为的最终环节和最大获益者。该四者实施的侵权行为环环相扣、缺一不可,与损害后果之间均具有直接的因果关系。

综上,尹某某违反与四川某化工公司有关保守涉案技术秘密的约定,在宁波某咨询公司、宁波某化工设计公司的高额利诱下,将涉案技术秘密非法披露给宁波某咨询公司、宁波某化工设计公司、山东某化工公司并允许该三公司使用,并自己使用涉案技术秘密为山东某化工公司涉案蜜胺一期项目的建设、使用提供技术指导;宁波某咨询公司、宁波某化工设计公司在明知相应的技术信息系四川某化工公司的技术秘密且明知尹某某为四川某化工公司前员工的情况下以不正当手段从尹某某处非法获取涉案技术秘密并用于山东某化工公司涉案蜜胺一期项目的设计、建造、使用,山东某化工公司在明知技术来源非法的情况下获取并使用涉案技术秘密。该四者主观上存在意思联络,客观形成分工协作,共同实施了侵害涉案技术秘

密的行为,造成了不可分割的损害后果,且损害后果与该四者实施的侵权行为之间均具有直接的因果关系,构成共同侵权。

(二) 关于山东某化工公司等被诉侵权人应否承担连带责任的问题

山东某化工公司等被诉侵权人构成共同侵权,根据《中华人民共和国侵权责任法》第八条规定,山东某化工公司等被诉侵权人应当承担连带责任。山东某化工公司等被诉侵权人各自实施的侵权行为均是共同侵权中不可或缺的一环,该四者的行为缺一不可且均造成了同一损害后果,该损害后果与该四者的行为之间均具有直接的因果关系,故各被诉侵权人理应承担共同侵权行为所造成的损失全额承担连带赔偿责任。无论是尹某某从宁波某咨询公司、宁波某化工设计公司处实际已获取的95万元非法获利,还是宁波某咨询公司、宁波某化工设计公司因工程设计合同所获价款均不足以反映该三者与山东某化工公司共同实施的侵权行为所造成的最终损害后果,故该三者实际所得获利或所获合同对价并不能作为该三者应承担的连带赔偿限额的依据。一审法院在考虑山东某化工公司等被诉侵权人各自的实际获利及各自行为对损害后果影响的基础上,进而确定连带责任比例的认定有所不妥,应予以纠正。

(三) 关于销毁涉案技术秘密载体以及停止销售使用涉案技术秘密生产的蜜胺产品的责任应如何承担的问题

1.关于销毁涉案技术秘密载体的责任。《最高人民法院关于审理侵犯商业秘密民事案件适用法律若干问题的规定》第十八条规定:“权利人请求判决侵权人返还或者销毁商业秘密载体,清除其控制的商业秘密信息的,人民法院一般应予支持。”本案中,被诉侵权生产系统即山东某化工公司涉案蜜胺一期项目的建成、实际使用均依赖于涉案技术秘密,特别是其中的设备选择、设备尺寸、工艺参数等,故对山东某化工公司而言,其持有的记载或包含有涉案技术秘密的载体主要为被诉侵权生产系统以及其向相关行政管理部门备案的图纸或技术资料即本案中的设计专篇,同时,为确保生产设备的正常运行、维护、维修,此类大型生产设备的实际使用者理应持有相应技术资料,故可以推定山东某化工公司持有的记载或包含有涉案技术秘密的载体还包括被诉侵权生产系统的相应技术资料。山东某化工公司实施的使用涉案技术秘密的行为主要体现为使用涉案技术秘密建设被诉侵权生产系统并在被诉侵权生产系统建成后继续使用承载有涉案技术秘密的该侵权生产系统和使用涉案技术秘密中的生产工艺生产蜜胺产品并进行销售。可以说,被诉侵权生产系统既是承载涉案技术秘密的重要载体,也是山东某化工公司可能继续实施侵权行为的重要工具。销毁承载有涉案技术秘密的被诉侵权生产系统既是停止侵害的应有之义,亦可有效预防山东某化工公司继续使用其上所承载的技术秘密以及在该生产系统上使用涉案技术秘密中的生产工艺。因此,对四川某化工公司提出的要求山东某化工公司销毁承载涉案技术秘密的相应设备及设备图纸、技术资料的诉讼请求予以支持。同时,应当注意到,被诉侵权生产系统中还涉及其他未承载涉案技术秘密的设备,涉及山东某化工公司的合法财产权利,因此,销毁有关设备的方式包括但不限于以拆除的方式实现。此外,考虑到被诉侵权生产系统涉及大型化工项目,山东某化工公司在履行上述销毁该生产系统的责任时需一定的合理履行期间,且如前所述,该生产系统还涉及相关危险化学品处理,如其进行改建等仍需经相关行政管理部门进行安全条件审查。同时结合山东某化工公司在最高人民法院审理的(2020)最高法知民终1559号案件中自述花费一个月时间对其生产系统进行了改造可知,对于山东某化工公司而言在90天期间内对该生产系统进行拆除等并不存在履行障碍。因此,最高人民法院给予山东某化工公司90天的履行宽限期以实现上述停止侵害的目标。山东某化工公司所持有的设计专篇等其他记载或包含有涉案技术秘密的相应技术资料也应与被诉侵权生产系统同时销毁。一审法院基于避免社会资源浪费以及生产安全的角度考量,希望通过判令停止使用但

不销毁生产设备的方式，鼓励山东某化工公司与四川某化工公司达成技术许可。此种处理方式的出发点虽好，在于试图促成技术许可和避免资源浪费，但结合本案山东某化工公司等被诉侵权人十分明显的主观过错以及较为严重的侵权情节，该处理方式一方面不当限制了权利人对其知识产权的行使，另一方面，在双方不能达成合意时将形成裁判执行的僵局并可能引发新的争议与诉讼，并不能有效保护四川某化工公司的知识产权，一定程度上也会增加四川某化工公司和山东某化工公司的纠纷解决成本。因此，人民法院应当依法全面有效保护知识产权，对本案中四川某化工公司的该诉讼请求应予支持。唯有如此，方可既有效制止侵权和保护知识产权，又有利于促使当事人在明了彼此权利和行为边界的基础上开展诚信磋商，就未来有关事宜作出妥善处理。

2.关于停止销售使用涉案技术秘密生产的蜜胺产品的责任。作为制造者的侵权人在技术秘密侵权案件中的侵权行为通常表现为使用技术秘密制造产品，《中华人民共和国反不正当竞争法》已明确禁止该种行为。当制造者使用的技术秘密为制造该产品所不可或缺的重要条件且该产品为使用该技术秘密所直接获得的产品时，因其销售该产品的行为显属同一侵权主体实施制造行为的自然延伸和必然结果，故此时该禁止使用的范围应当包括禁止该制造者使用该技术秘密制造产品后进行销售。在此情况下，如将不得使用技术秘密狭隘地理解为仅禁止制造者使用技术秘密的制造行为，而不包括禁止其在制造完成后进行销售，不仅于理不通、自相矛盾，而且有销售即有获利，如不禁止制造者继续销售将必然造成侵权损害后果的继续发生或扩大。当然，制造者使用技术秘密制造的产品被其售出后，使用技术秘密的侵权结果即同时发生，且非属制造者的他人的独立的销售行为并不属于《中华人民共和国反不正当竞争法》所列明的侵害技术秘密的行为，因此，在一般情况下，制造者之外的其他人后续销售使用技术秘密制造的产品并不为法律所禁止。但是，如果该后续销售者系因明显过错而依法与产品制造者构成共同侵权或帮助侵权的，则亦应为法律所不许。本案中，山东某化工公司使用涉案技术秘密的行为主要表现为使用涉案技术秘密建设被诉侵权生产系统并在被诉侵权生产系统建成后继续使用承载有涉案技术秘密的该侵权生产系统和使用涉案技术秘密中的生产工艺制造蜜胺产品并进行销售。从涉案技术秘密的内容来看，其所包含的设备选择以及相关设备的结构、尺寸、形状、生产工艺参数等技术信息均是山东某化工公司建造和使用被诉侵权生产系统所必需的技术信息，涉案技术秘密中包含的相关技术参数对使用被诉侵权生产系统制造蜜胺产品亦不可或缺，而且蜜胺是使用涉案技术秘密所直接获得的产品，如不使用涉案技术秘密，则山东某化工公司无法建造完成被诉侵权生产系统，更无从使用被诉侵权生产系统得以每年生产5万吨的蜜胺产品。因此，涉案技术秘密既是山东某化工公司制造被诉侵权生产系统不可或缺的重要条件，也是其制造涉案蜜胺产品不可或缺的重要条件，而且其涉案蜜胺产品为使用涉案技术秘密所直接获得的产品。四川某化工公司所提出的责令山东某化工公司停止销售使用涉案技术秘密生产的蜜胺产品的请求实质上已被涵盖在要求其停止使用涉案技术秘密的范畴内，亦是作为制造者的山东某化工公司停止使用涉案技术秘密的应有之义，故在一审判决山东某化工公司停止使用涉案技术秘密的基础上，进一步明确山东某化工公司应当立即停止销售使用涉案技术秘密生产出的蜜胺产品。

（四）关于山东某化工公司在本案中提出的鉴定申请是否应予准许的问题

根据《中华人民共和国民事诉讼法》第六十七条第一款的规定，当事人对自己提出的主张，有责任提供证据。司法鉴定是指在诉讼活动中鉴定人运用科学技术或者专门知识对诉讼涉及的专门性问题进行鉴别和判断并提供鉴定意见的活动。而鉴定意见属于民事诉讼证据的一种，需经各方当事人质证后，再由人民法院决定是否予以采纳。当事人申请鉴定并不必然启动鉴定程序，人民法院仍需根据对相关事实的认定需要作出是否启动鉴定程序的决定。鉴

定程序启动与否的关键在于法官在审理案件过程中对相关专门性问题缺乏判断认定能力，而需要委托相关鉴定机构通过科学的方法和手段来查明该专门性问题的相关事实。对于当事人提出的鉴定申请，既要避免当事人滥用申请鉴定的权利，也要避免不当剥夺其相关的诉讼权利，一般应着重从以下四方面予以审查：一是关联性，申请鉴定的事项与案件有待查明的事实是否具有关联；二是必要性，即是否必须通过特殊技术手段或者专门方法才能确定相应的专门性问题，是否已经通过其他的举证、质证手段仍然对专门性问题无法查明；三是可行性，对于待鉴定的专门性问题，是否有较为权威的鉴定方法和相应资质的鉴定机构，是否有明确充分的鉴定材料；四是正当性，鉴定申请的提出是否遵循了相应的民事诉讼规则，在启动鉴定之前是否已充分听取各方当事人的意见，以确保程序上的正当性。

本案于2017年8月28日由一审法院立案，四川某化工公司提交了其主张作为技术秘密保护的技术信息证据，至一审判决作出时止，在四年的审理过程中，一审法院分别组织了七次庭前会议，组织各方当事人在签署保密协议的前提下进行举证、质证，并于2021年10月20日、21日开庭审理本案，在此期间一审法院亦多次询问山东某化工公司是否查阅本案保密证据，但山东某化工公司均明确拒绝查阅四川某化工公司提交的保密证据并无故中途退出七次庭前会议及两次庭审。直至2021年9月28日，山东某化工公司向一审法院提出书面《司法鉴定申请书》，载明：“鉴定事项：1.原告主张作为商业秘密保护的技术信息是否不为公众所知悉；2.原告主张作为商业秘密保护的技术信息是否具有经济性、实用性”，其提出该鉴定申请已明显超过举证期限。二审期间，在一审法院已经对涉案技术信息的秘密性、价值性作出认定的情况下，山东某化工公司虽然坚持提出鉴定申请，但是仍拒绝查阅四川某化工公司提交的载有其技术信息的保密证据或发表质证意见，也未就一审判决的有关认定提出有针对性的反驳意见。换言之，山东某化工公司因其自身原因，实质上已放弃了对四川某化工公司提交的载有四川某化工公司主张的技术信息的保密证据进行质证的诉讼权利，其在一审所提鉴定申请既无准许之必要，也因过于迟延提出而缺少鉴定申请提出的程序正当性。同理，其在二审提出的鉴定申请亦不应予准许。

F. “DAKS系统”技术秘密侵权案 ——披露技术秘密的认定

当事人

某岩油藏有限公司、某石油科技（北京）有限公司诉翟某元、大庆某软件科技股份有限公司、北京某数据有限公司

案号

最高人民法院（2022）最高法知民终901号

合议庭成员

余晓汉 | 欧宏伟 | 何隼

关键词

民事 侵害技术秘密 披露 脱离控制

相关法律规定

- 《中华人民共和国反不正当竞争法》第10条第1款和第3款、《中华人民共和国反不正当竞争法》（2017年修订）第9条

基本案情

某岩油藏有限公司于2000年初创建名称为“油气勘探开发类比决策专家知识库系统”（简称DAKS系统），某岩油藏有限公司和某石油科技（北京）有限公司为关联公司。某岩油藏有限公司授权某石油科技（北京）有限公司使用DAKS系统，当DAKS系统相关知识产权被他人侵害时，某石油科技（北京）有限公司有权提起诉讼。某岩油藏有限公司、某石油科技（北京）有限公司在本案主张的商业秘密为DAKS系统软件中的相关技术参数及工程数据（简称涉案技术信息），其中秘点1为“包含1339个油气藏数据的DAKS系统数据库中，用于定义油气藏属性信息的474个技术参数（数据库字段）”；秘点2为“包含1339个油气藏数据的DAKS知识系统数据库中，用于定义各油气藏属性信息的474个技术参数（数据库字段）及其对应的工程数据”。翟某元于2009年至2012年在某石油科技（北京）有限公司任职，离职后创建了包含与涉案技术信息实质相同之被诉侵权信息的IRBS系统软件。2017年8月，翟某元将IRBS系统软件转让给大庆某软件科技股份有限公司，转让价款为350.72万元。大庆某软件科技股份有限公司在北京某数据有限公司的网站运营该系统，北京某数据有限公司系大庆某软件科技股份有限公司的全资子公司。因此，翟某元、大庆某软件科技股份有限公司、北京某数据有限公司构成对某岩油藏有限公司、某石油科技（北京）有限公司涉案商业秘密的共同侵权。某岩油藏有限公司、某石油科技（北京）有限公司据此诉至法院，请求判令翟某元、大庆某软件科技股份有限公司、北京某数据有限公司停止侵权并承担相应的赔偿责任。

北京知识产权法院判决：一、北京某数据有限公司、大庆某软件科技股份有限公司、翟某元自本判决生效之日起立即停止使用、允许他人使用某岩油藏有限公司、某石油科技（北京）有限

公司的涉案技术信息；二、北京某数据有限公司、大庆某软件科技股份有限公司自本判决生效之日起十日内共同赔偿某岩油藏有限公司、某石油科技（北京）有限公司经济损失200万元及合理开支60万元，翟某元对上述金额中的100万元承担连带责任；三、驳回某岩油藏有限公司、某石油科技（北京）有限公司的其他诉讼请求。翟某元、大庆某软件科技股份有限公司、北京某数据有限公司不服，提出上诉。最高人民法院于2023年12月4日作出（2022）最高法知民终901号民事判决，驳回上诉，维持原判。

裁判要旨

被诉侵权人实施向特定或者不特定主体提供技术秘密信息或者载体的行为，使该技术秘密脱离权利人的控制、为他人所知悉的，人民法院可以认定该行为构成对技术秘密的披露。

裁判理由

法院生效裁判认为：翟某元在本案中实施了获取、使用和允许他人使用涉案商业秘密的行为，关于大庆某软件科技股份有限公司、北京某数据有限公司是否实施侵害涉案商业秘密的行为，分析如下：首先，大庆某软件科技股份有限公司在与翟某元围绕IRBS系统软件著作权转让事宜进行磋商、签订股份购买资产协议的过程中，没有尽到足够的审慎注意义务。DAKS数据库涉及分布世界各地众多油气藏之技术参数及工程数据组合而成的大数据库，而该大数据库的完成者仅是翟某元这一自然人。大庆某软件科技股份有限公司作为专门从事油田勘探开发数据处理业务的专业型企业，于此情况下理应对翟某元的技术实力、IRBS系统中相关参数数据信息来源的合法性产生怀疑。大庆某软件科技股份有限公司如进行必要调查，当不难获知翟某元任职单位“CCAP”与某岩油藏有限公司英文简称中的“C&C”存在密切指向关系，进而基于IRBS系统软件与DAKS系统软件在功能、效果、用途等方面的高相似度，对IRBS系统软件中的相关参数数据信息来源的合法性产生进一步的警觉。但大庆某软件科技股份有限公司未作进一步调查，特别是未就翟某元个人简历中披露的上述事实细节加以注意，便与之完成此次股票收购资产的重大交易活动。立足于理性人角度观察，不足以认为大庆某软件科技股份有限公司就此次交易是否合规已经尽到足够审慎的注意义务。

其次，翟某元入职大庆某软件科技股份有限公司后，大庆某软件科技股份有限公司仍未对翟某元个人简历的相关细节尽到必要的核实查证义务。在大庆某软件科技股份有限公司先后于2016年、2017年发布了两份公司年度报告中，关于“翟某元2006年至2016年期间工作经历”的记载内容明显前后不一。对此反常现象，作为上市公司的大庆某软件科技股份有限公司理应对翟某元是否作出诚信陈述产生怀疑，但其并未对翟某元的个人经历作进一步的延伸调查。由于大庆某软件科技股份有限公司没有对翟某元这段期间工作经历进行必要的延伸调查，导致其未能就IRBS系统软件与某石油科技（北京）有限公司的DAKS系统软件是否存在某种内在关联、IRBS系统软件中的被诉侵权信息是否可能系翟某元利用不正当手段从某石油科技（北京）有限公司处获取产生合理怀疑。因此，大庆某软件科技股份有限公司关于其被翟某元欺诈、其对翟某元隐瞒其持有的IRBS系统软件来源不知情的主张，不予采纳。

最后，翟某元将IRBS系统软件著作权以技术入股的方式入股大庆某软件科技股份有限公司，大庆某软件科技股份有限公司于2017年7月5日受让IRBS系统软件著作权，并于2018年4月24日与某油田研究院就IRBS系统软件签订《软件产品使用许可合同》，而北京某数据有限公司系大庆某软件科技股份有限公司的全资子公司。即便大庆某软件科技股份有限公司、北京某数据有限公司二审提交的相关仲裁裁决书认定翟某元并没有将IRBS系统软件的全部源代码交付给该两公司，但该认定不足以证明大庆某软件科技股份有限公司、北京某数

据有限公司没有实际利用IRBS系统软件中的被诉侵权信息。大庆某软件科技股份有限公司在应知翟某元实施了侵害某岩油藏有限公司、某石油科技（北京）有限公司涉案商业秘密的情况下，仍从其本人处受让IRBS系统软件著作权，并以大庆某软件科技股份有限公司名义对外签订《软件产品使用许可合同》，且在北京某数据有限公司网站的产品介绍页加挂IRBS系统相关网页插件并链接可登录该系统的登录页面，上述经营行为客观上使IRBS系统软件中的被诉侵权信息（实为涉案商业秘密）存在被特定或不特定公众接触并获取的披露风险。

因此，基于以上分析，应认定大庆某软件科技股份有限公司、北京某数据有限公司在本案中共同实施了披露、使用、允许他人使用涉案商业秘密的行为。

G.涉“病毒检测试剂”技术秘密侵权案 ——作为技术秘密保护的技术方案的认定

当事人

上海某诊断公司诉程某、成都某生物科技有限公司

案号

最高人民法院（2020）最高法知民终1889号

合议庭成员

徐卓斌 | 颜峰 | 黄中华

关键词

民事 侵害技术秘密 载体 技术方案 技术信息

相关法律规定

— 《中华人民共和国反不正当竞争法》第9条第1款第3项、第4款、第32条

基本案情

上海某诊断公司系光激化学发光免疫检测系统的研发企业。程某原为该公司的核心技术开发人员，负责微粒研发制备，离职后进入成都某生物科技有限公司工作。上海某诊断公司认为，程某将其掌握的“光激化学发光分析系统通用液”技术秘密擅自披露给成都某生物科技有限公司，成都某生物科技有限公司直接使用该技术秘密制造体外诊断试剂盒产品并予销售。上海某诊断公司以程某、成都某生物科技有限公司前述行为构成对其技术秘密权益的侵害为由提起本案诉讼。

上海知识产权法院判决：程某、成都某生物科技有限公司停止侵害并共同赔偿经济损失100万元、维权合理开支30万元。程某、成都某生物科技有限公司提出上诉，最高人民法院于2022年12月14日作出（2020）最高法知民终1889号民事判决：驳回上诉，维持原判。

裁判要旨

当权利人所主张的技术秘密是技术方案时，其既可以是在一份技术文件中记载的完整技术方案，也可以是在图纸、工艺规程、质量标准、操作指南、实验数据等多份不同技术文件中记载的不为公众所知悉的技术信息的基础上加以合理总结、概括与提炼的技术方案。

裁判理由

法院生效裁判认为：技术秘密通常以图纸、工艺规程、质量标准、操作指南、实验数据的形式来体现，权利人为证明其技术秘密的存在及其内容，通常会在体现上述技术秘密的载体文件基础上，总结、概括、提炼其需要保护的技术信息，其技术秘密既可以是技术方案，也可以是构成技术方案的部分技术信息。权利人在从其技术资料等载体中总结、概括、提炼秘密信息时，应当允许将其具有秘密性的信息结合现有技术及公知常识形成一个完整的技术方案请求保护。权利人从其不为公众所知的工艺规程、质量控制标准等技术文件中合理提炼出的技术方案，只要不为社会公众普遍知悉和容易获得，即可作为技术秘密予以保护。本案中，上海某诊断公司主张的技术秘密为8个技术方案，每一技术方案包括若干技术信息，在后技术方案对在前技术方案的技术信息作出进一步限定或增加，从而形成层层递进的技术方案。涉案技术秘密中的微粒CV值、粒径等技术信息在上海某诊断公司的技术文件中均有对应记载。上海某诊断公司根据其技术文件，并结合本领域的现有技术、公知常识的合理总结与提炼，能够证明上海某诊断公司实际拥有并掌握上述技术方案，程某、成都某生物科技公司关于涉案技术秘密的相应信息没有载体予以对应、不能证明上海某诊断公司为涉案技术秘密权利人的主张不能成立。

H. “罩式炉吊具”技术秘密侵权案 ——整套图纸记载信息的技术秘密认定及技术秘密侵权行为的事实推定

当事人

大连某吊具公司诉大连某机电设备公司、刘某

案号

最高人民法院（2022）最高法知民终719号

合议庭成员

徐卓斌 | 黄中华 | 颜峰

关键词

民事 侵害技术秘密 技术信息组合 事实推定 公知信息

相关法律规定

- 《中华人民共和国反不正当竞争法》第10条
- 《最高人民法院关于审理不正当竞争民事案件应用法律若干问题的解释》第14条
- 《最高人民法院关于适用〈中华人民共和国民事诉讼法〉的解释》第90条、第108条

基本案情

大连某吊具公司向辽宁省大连市中级人民法院起诉称：大连某机电设备公司通过雇佣刘某以及其他核心技术人员获取了大连某吊具公司罩式炉吊具产品相关技术图纸、技术文件等技术秘密，并大量制造、销售罩式炉吊具产品，请求判令大连某机电设备公司立即停止侵权行为，大连某机电设备公司和刘某连带赔偿经济损失50万元及合理开支23万元。大连某吊具公司主张其整套图纸构成技术秘密，提供了共包含29页的证据图纸，由总图、部件图、零件图组成。

辽宁省大连市中级人民法院认为，在大连某吊具公司未明确其技术秘密信息具体内容的情况下，无法推定大连某吊具公司主张的大连某机电设备公司、刘某违法获取其技术秘密的事实，故大连某吊具公司亦应承担举证不能的后果，遂判决：驳回大连某吊具公司的诉讼请求。大连某吊具公司不服，向最高人民法院提起上诉。最高人民法院于2023年3月2日作出（2022）最高法知民终719号民事判决：撤销原判，大连某机电设备公司立即停止侵害大连某吊具公司技术秘密、销毁载有大连某吊具公司技术秘密的文件、图纸、电子数据，并赔偿大连某吊具公司经济损失50万元、维权合理开支23万元。

裁判要旨

1. 权利人主张图纸记载的技术信息构成技术秘密的，其既可以主张图纸记载的全部技术信息的集合属于技术秘密，也可以主张图纸记载的某个或某些技术信息属于技术秘密。
2. 针对侵害技术秘密行为的隐蔽性，可以采用“接触+实质相同-合法来源”的规则认定被诉侵权人采取不正当手段获取、披露、使用技术秘密。

裁判理由

法院生效裁判认为：大连某吊具公司主张整套29张图纸上记载的全部信息的集合为技术秘密，其主张保护的技术秘密内容是明确的，应当据此审查其主张的技术信息是否具备秘密性、价值性、保密性，并进一步审查对方当事人是否采取了不正当手段予以获取、披露、使用等。“不为公众所知悉”即秘密性，一般是指特定信息未在本行业内众所周知，而不是指绝对无人知悉。在证明责任上，“不为公众所知悉”虽是权利人即案件原告需要证明的内容，但不宜对权利人施以过重的证明负担。技术秘密与专利虽同为知识产权，但技术秘密保护与专利权保护并不相同，技术秘密要获得法律保护，并无新颖性、创造性等要求，只要其符合法定的秘密性、价值性、保密性即可。即便技术秘密中的部分信息已经存在于公共领域，但只要该技术信息组合整体上符合法律要求，仍可以按照技术秘密予以保护。即便图纸的部分技术信息已经存在于公共领域，如果信息持有人对公开信息进行了整理、改进、加工以及组合、汇编而产生新信息，他人不经一定努力无法容易获得，该新信息经采取保密措施同样可以成为技术秘密而受到法律保护。不宜要求商业秘密权利人对其所主张的技术秘密与公知信息的区别作过于严苛的证明。权利人提供了证明技术信息秘密性的初步证据，或对其主张的技术秘密之“不为公众所知悉”作出合理的解释或说明，即可初步认定秘密性成立。权利人初步举证后，即由被诉侵权人承担所涉技术秘密属于公知信息的举证责任，其亦可主张将公知信息从权利人主张范围中剔除，从而在当事人的诉辩对抗中完成涉案技术秘密信息事实认定。

商业秘密侵权行为通常不会大张旗鼓地进行，权利人很难了解被诉侵权人使用的信息的确切来源，不正当手段采用事实推定较为常见。根据案件具体情况或者已知事实以及日常生活经验，权利人可通过间接证据来证明被诉侵权人采取不正当手段获取、披露、使用商业秘密。不正当手段的推定可采用“接触+实质相同-合法来源”的规则，即商业秘密的权利人证明被诉侵权人有获取其商业秘密的条件、被诉侵权人所用的信息与权利人商业秘密信息具有一致性或实质相同，被诉侵权人不能提供或拒不提供其所使用的信息的合法来源比如自行研发、反向工程等证据，可以推定被诉侵权人采取不正当手段获取、披露、使用了权利人的商业秘密。

1. “油气微生物勘探”技术秘密侵权案 ——技术秘密案件裁量判赔金额可不予考虑技术秘密贡献率的情形

当事人

某地质微生物公司诉某能源科技公司等

案号

最高人民法院（2021）最高法知民终1363号

合议庭成员

魏磊 | 周平 | 李艳

关键词

民事 侵害技术秘密 赔偿数额 技术贡献率

相关规定

- 《中华人民共和国反不正当竞争法》第20条

基本案情

某地质微生物公司诉称：罗某某、李某、胡某某、张某某违反保密义务，向某能源科技公司披露涉案技术信息，某能源科技公司明知罗某某等人不当获取涉案技术信息仍使用涉案技术信息，均构成侵权。故请求判令：（1）某能源科技公司、罗某某、李某、胡某某、张某某立即停止侵害某地质微生物公司技术秘密的行为；（2）某能源科技公司、罗某某、李某、胡某某共同赔偿某地质微生物公司经济损失588万元以及某地质微生物公司为调查、制止侵权行为支付的合理费用50.7万元（代理费50万元、公证费0.7万元），共计638.7万元，张某某在638.7万元的10%范围内承担连带责任；（3）本案诉讼费由某能源科技公司、罗某某、李某、胡某某、张某某承担。

某能源科技公司、罗某某、胡某某辩称：某地质微生物公司主张的微生物烃检测技术为公知技术，某能源科技公司的微生物油气勘探技术是公开信息加自主研发，故某能源科技公司、罗某某、胡某某不存在侵权行为。

李某辩称：李某未接触过某地质微生物公司的涉案技术秘密，也未向他人披露过涉案技术秘密；一审法院保全得到的涉案侵权文件并非来自其私人电脑，且该些侵权文件中内容均属于公知信息。

张某某辩称：张某某在某地质微生物公司任职期间，无权限接触涉案技术秘密，也从未从他处获取涉案技术秘密，不存在侵权行为。

法院经审理查明：某地质微生物公司通过《技术排他实施许可协议》获得了涉案技术秘密，该技术秘密主要用于微生物油气勘探。罗某某、李某、胡某某、张某某此前均是某地质微生物公司的员工，罗某某是某能源科技公司的法定代表人。一审法院前往某能源科技公司进行证据保全时，李某、胡某某均在场，发现李某电脑中保存的“微生物油气勘探采集技术规程”（起草人：罗某某、胡某某）与密点1、2、3、5、7、8、9、12的载体内容完全一致；“微生物油气勘探海洋沉积物检测标准”与密点13至16的载体内容完全一致；“施工流程”“1607和0333区块微生物油气勘探项目中期成果81”与密点9的载体内容基本相同。2017年5月，某能源科技公司中标了洛克项目，在该项目中使用了“微生物油气勘探海洋沉积物检测标准”，获得项目款735万元。

北京知识产权法院判决：一、某能源科技公司、李某、罗某某于判决生效之日起立即停止侵害某地质微生物公司涉案技术秘密的行为；二、某能源科技公司、李某于判决生效之日起10日内共同赔偿某地质微生物公司经济损失50万元、合理费用25万元，共计75万元；三、驳回某地质微生物公司其他诉讼请求。宣判后，某地质微生物公司以胡某某、张某某亦存在侵权行为及一审判赔金额过低为由，提起上诉；某能源科技公司、李某、罗某某以涉案技术秘密不成立、其不构成侵权为由，提起上诉。最高人民法院于2022年10月26日作出（2021）最高法知民终1363号民事判决：一、撤销北京知识产权法院（2017）京73民初1382号民事判决；二、某能源科技公司、李某、罗某某、胡某某于本判决生效之日起立即停止侵害某地质微生物公司涉案部分技术秘密的行为，该停止侵害的时间持续到涉案部分技术秘密为公众所知悉时止；三、某能源科技公司、李某、罗某某、胡某某于本判决生效之日起10日内连带赔偿某地质微生物公司经济损失200万元；四、某能源科技公司、李某、罗某某、胡某某于本判决生效之日起10日内连带支付某地质微生物公司合理费用50.7万元；五、驳回某地质微生物公司其他诉讼请求。

裁判要旨

对于侵权人存在明显过错且根据在案证据能够认定或者根据具体案情可以推定侵害技术秘密行为直接决定了侵权人商业机会的获得或者权利人商业机会的丧失的，原则上可以将侵权人的全部获利作为侵权获利。

裁判理由

法院生效裁判认为：某能源科技公司明知系某地质微生物公司的技术秘密而获取并使用；罗某某、胡某某违反其与某地质微生物公司的保密协议约定，将包含某地质微生物公司技术秘密的“微生物油气勘探采集技术规程”直接用于制定某能源科技公司的《地质微生物勘探野外采集技术规程》；李某作为某地质微生物公司研发部的研究员，违反其与某地质微生物公司保密协议的约定，未在离职时交还其在某地质微生物公司任职期间所接触并掌握的包含有某地质微生物公司涉案技术秘密信息的资料，且将上述技术秘密用于某能源科技公司中标的洛克项目，故某能源科技公司、罗某某、李某、胡某某均构成侵权，应承担停止侵权及赔偿责任。

鉴于本案系因前员工组建新公司并侵害原任职公司技术秘密引发的案件，某能源科技公司在实际经营中使用某地质微生物公司的技术秘密，有明显的主观恶意，且考虑涉案技术信息应用的领域为油气微生物勘探领域，并非市场竞争充分的普通商业领域，可推定某能源科技公司不当攫取了原本属于某地质微生物公司的交易机会。在此情况下，某能源科技

公司是否存在恶意低价竞标行为、是否在洛克项目中还使用了其他自有技术，以及所使用技术秘密的技术贡献率大小，均不影响赔偿金额的计算。

根据某地质微生物公司所提交的海域项目审计报告所反映的盈利情况，两个项目的平均营业利润率约为43.85%，以某地质微生物公司在洛克项目中的最终报价775万元计算，营业利润约为339万余元，远超出某地质微生物公司的诉请金额200万元。即便依据某能源科技公司在洛克项目中的获利情况计算，某能源科技公司因洛克项目实际收到项目款项735万元，洛克项目利润率为27.91%，某能源科技公司在洛克项目中的营业利润为205万余元（735万元×27.91%），亦超出某地质微生物公司在本案中诉请赔偿的金额。考虑本案的具体侵权情节，故对某地质微生物公司的诉请金额予以全额支持。

J.生成社交软件虚假截图不正当竞争案 ——涉工具类软件竞争行为的正当性判断

当事人

深圳市某计算机公司诉郴州某科技公司、长沙市某服务部、北京市某科技公司

案号

北京知识产权法院(2021)京73民终2963号

合议庭成员

张宁 | 马兴芳 | 范米多

关键词

民事 不正当竞争 网络 工具类软件

相关法律规定

- 《中华人民共和国反不正当竞争法》第2条、第12条

基本案情

原告深圳市某计算机公司诉称：其开发、运营“微信”“QQ”软件，上述软件提供对话聊天、发红包、转账等多种服务，拥有极高的知名度和影响力。被告郴州某科技公司、被告长沙市某服务部共同开发、运营的“微商截图王”（后更名为“微商星球”）“火星美化”两款软件（以下简称被诉软件），模仿“微信”“QQ”软件的界面设计，提供与“微信”“QQ”软件的界面、图标、表情等完全一致的素材和模板，生成与“微信”“QQ”软件界面相同的对话、红包、转账、钱包等虚假截图供用户下载和使用。上述行为攀附和利用“微信”“QQ”软件的影响力为自身谋取不正当利益，严重扰乱“微信”“QQ”软件的正常运营秩序，为不法分子提供伪造虚假截图的便利，造成不良的社会影响，根据《中华人民共和国反不正当竞争法》第二条、第十二条的规定构成不正当竞争。被告北京市某科技公司运营的“乐商店”应用平台为被诉软件提供搜索、链接、下载服务，构成帮助侵权。请求法院判令：1.北京市某科技公司立即停止涉案不正当竞争行为；2.郴州某科技公司、长沙市某服务部连带赔偿深圳市某计算机公司经济损失19,715,480元及合理开支284,520元。

被告郴州某科技公司辩称：深圳市某计算机公司未证明其具有应受《中华人民共和国反不正当竞争法》保护的合法权益；被诉软件虽推广了微商服务，但未损害深圳市某计算机公司的利益，虚假截图均为用户自行制作，郴州某科技公司已尽到了提示义务；被诉软件的盈利不应被法律所禁止，被诉软件是否盈利与深圳市某计算机公司无关；郴州某科技公司与深圳市某计算机公司不存在竞争关系，即使法院认定被诉软件具有不正当性，也应当由相应的行政法规或消费者管理制度予以规制，而不是由郴州某科技公司进行赔偿。

被告长沙市某服务部辩称：其仅是被诉软件的收款方，没有参与被诉软件的运营，没有共同侵权的故意，不应承担连带责任。

被告北京市某科技公司辩称：其是信息网络服务提供者，对应用程序不进行实质性审查，无法知晓被诉软件涉及不正当竞争；其与郴州某科技公司、长沙市某服务部没有合作，亦从未从被诉软件中获利，不具有主观过错。

法院经审理查明：深圳市某计算机公司系“微信”“QQ”应用程序的运营者，上述软件在社交通讯领域具有极高知名度。郴州某科技公司、长沙市某服务部（以下简称二被告）共同开发、运营“微商截图王”（后更名为“微商星球”）“火星美化”两款软件，该两款软件的“微商截图”版块中，有“微信截图”“QQ截图”等功能。“微信截图”功能可以生成的微信截图包括微信对话页、微信群聊页、微信红包页、微信转账页、微信钱包页等，部分为免费制作，部分仅VIP会员可以制作；“微信对话”功能分为经典版、高级版、模拟版，后两种版本仅VIP会员可以使用。用户通过被诉软件提供的“微信表情、微信支付图标、微信红包详情页、微信图标、转发文章、个人名片、收付款通知”等素材，可以自行编辑、生成和下载微信相关使用场景的截图，该截图与微信产品相关界面一致。“QQ截图”功能可以选择生成包括时间、文本、图片、语音、表情、红包、转账、电话、戳一戳、系统提示等场景页面，用户通过该软件提供的“QQ表情、QQ红包及领取页、QQ钱包详情页”等素材，可以自行编辑、生成和下载QQ对话页、QQ红包页、QQ钱包页、QQ账户页、QQ提现页等截图，该截图与QQ产品相关界面一致。在微信、QQ软件更新相应界面后，被诉软件亦会实时进行界面调整。相关媒体报道显示市场中已经出现关于自制虚假聊天记录欺骗消费者、伪造截图操弄舆论、伪造支付截图实施诈骗等因伪造微信截图引发的负面事件。

北京市海淀区人民法院判决：一、本判决生效之日起十日内，被告郴州某科技公司、被告长沙市某服务部连带赔偿原告深圳市某计算机公司经济损失500万元及合理开支284,520元；二、驳回原告深圳市某计算机公司的其他诉讼请求。宣判后，二被告向北京知识产权法院提出上诉。北京知识产权法院于2022年5月25日作出（2021）京73民终2963号民事判决，驳回上诉，维持原判。

裁判要旨

1. 如被诉侵权行为属于《中华人民共和国反不正当竞争法》第十二条第二款前三项所规定的网络不正当竞争行为时，应当优先适用类型化条款进行调整；若被诉行为不属于前三项所调整的行为类型但符合“利用技术手段”“妨碍、破坏网络产品正常运行”等条件，可以适用该条第四项“兜底条款”进行规制。
2. 被诉侵权行为虽发生在网络环境下，但不符合《中华人民共和国反不正当竞争法》第十二条第二款所列明的具体行为特征，可以适用《中华人民共和国反不正当竞争法》第二条进行评价。
3. 适用《中华人民共和国反不正当竞争法》第二条评判被诉行为时，通常应当考虑如下因素：一是被诉行为是否违反了诚信原则和相关行业的商业道德；二是被诉行为是否损害了其他经营者的合法权益；三是被诉行为是否损害了消费者利益；四是被诉行为是否损害了公平、健康的市场竞争秩序。

裁判理由

法院生效裁判认为：二被告的涉诉行为并未使用相关技术手段使得微信、QQ产品和服务无法正常运行，且涉诉行为与《中华人民共和国反不正当竞争法》第十二条第二款前三项列举的具体网络不正当竞争行为亦不具有可类比性，故二被告的涉诉行为并不属于第十二条第二款第四项所规制的不正当竞争行为。

被诉软件提供了与微信、QQ软件界面、图片、表情、文字等元素完全一致的素材和模板，使用户能够自行编辑并生成与微信、QQ软件各使用场景界面相同的微信对话、微信红包、微信转账、微信钱包、QQ对话、QQ转账、QQ红包等虚假截图。二被告正是借助了微信、QQ软件所具有的广泛用户基础、已经构建起的真实、诚信的社交和商业生态以及用户对微信、QQ软件中社交信息的高度信任，利用部分用户意图通过造假、作弊来获取不当利益的心理，使被诉软件获得了大量用户并据此牟取高额收益。涉诉行为不仅没有为社会福利的提升创造积极、正面的社会价值，反而提供了一款造假、作弊的工具，即使最终截图由用户制作，但涉诉行为为弄虚作假、行骗欺瞒之行提供了条件，显然违背了诚实信用原则和商业道德。

微信、QQ软件以即时通讯为基础，通过相继提供微信朋友圈、微信公众平台、微信支付以及QQ空间、QQ钱包等系列功能和服务，极大增加了微信、QQ软件的用户粘度，建立起多领域多主体互利共生且诚信、健康的社交和商业生态，并据此获得市场收益和竞争优势，该种合法权益应当受到《中华人民共和国反不正当竞争法》的保护。被诉软件的出现，直接冲击了微信、QQ以真实社交为依托的运营基础，长此以往，极有可能影响微信、QQ的用户使用体验，降低微信、QQ的社会评价，损害了深圳市某计算机公司的竞争利益。同时，善良的用户看到使用被诉软件生成的虚假截图后，基于自己使用微信、QQ各种功能的经验，极大可能会相信编辑生成的微信、QQ截图所展示的对话、交易记录、收款情况、红包发送情况等是客观真实，进而被误导或被欺骗，甚至可能因此受到人身和财产方面的损害，即可能会使不特定的消费者受到利益损害。此外，健康有序的市场竞争秩序需要经营者以善意、诚信的方式参与和维持，通过智慧和劳动创造竞争优势。但是二被告作为互联网领域的软件服务提供者，仅向市场提供了一款自动生成其他软件交互界面截图的工具，其用户利用该软件可以伪造交易情况、用户评价、支付情况等虚假事实。如允许涉诉行为广泛存在且不加以制止，必将对行业健康发展造成不良影响，亦有害于公平、有序的市场竞争秩序。因此，涉诉行为依据《中华人民共和国反不正当竞争法》第二条之规定，构成不正当竞争。

北京市某科技公司作为网络服务提供者，已经尽到了合理的注意义务，不存在主观过错，不构成不正当竞争。

K.干扰搜索引擎不正当竞争案 ——干扰搜索引擎排名行为的不正当竞争认定

当事人

北京某科技有限公司与江苏某网络科技有限公司

案号

江苏省苏州市中级人民法院 (2021) 苏05民初1480号

合议庭成员

徐飞云 | 王小丰 | 严常海

关键词

民事 不正当竞争 搜索引擎 干扰 排名

相关法律规定

— 《中华人民共和国反不正当竞争法》第12条

基本案情

原告北京某科技有限公司诉称：被告江苏某网络科技有限公司通过运营管理系统专门为他人提供设置关键词、推广网页等“万词霸屏”服务。其通过“伪原创”、采集、拼接内容等方式，制造“垃圾页面”，使用技术手段将“垃圾页面”植入到第三方网站中，生成“虚假页面”，并将虚假页面与搜索关键词相关联，以达到用户触发搜索关键词，即产生虚假页面占据搜索结果首页一条甚至几条搜索结果内容的效果。江苏某网络科技有限公司的行为严重干扰北京某科技有限公司提供经营及服务，破坏了搜索生态，且对其他合法、合规网站经营者的正当利益造成破坏，构成不正当竞争。故请求判令：1.江苏某网络科技有限公司立即停止通过公司网站及其发布管理系统向他人提供“万词霸屏”服务；2.江苏某网络科技有限公司赔偿经济损失及合理支出共计1000万元；3.江苏某网络科技有限公司登报刊登声明，消除影响。

被告江苏某网络科技有限公司辩称：江苏某网络科技有限公司的运营模式并未违反互联网行业的商业惯例和商业道德，其发布的信息合法合规，并无证据表明江苏某网络科技有限公司通过不正当手段攫取他人可合理预期的商业机会，进而扰乱正常的市场秩序。因此涉案行为不构成不正当竞争，请求驳回北京某科技有限公司的诉讼请求。

法院经审理查明：江苏某网络科技有限公司的管理系统具有设置关键词、文章段落、图片，查看发布的文章以及实时监控其发布的网页在百度搜索结果中的排名趋势、访问量等功能。江苏某网络科技有限公司与几十家“高权重网站”签订了合作协议，由“高权重网站”为其开通信息二级目录服务，其在二级目录项下开展广告业务。

江苏某网络科技有限公司提供的“万词霸屏”服务内容包括：1.帮助客户在合作的媒体网站进行信息关键词发布，促进百度和手机引擎的收录；2.保证客户关键词的数量不低于1000个；3.合作期间最低确保1000-5万个关键词以上在PC百度和手机百度首页排名；4.利用云技术优势为客户做搜索引擎的优化推广工作，使之在各搜索引擎收录排名。江苏某网络科技有限公司的具体运营模式是：找同行业的文章生成伪原创文章，通过公司的管理系统自动组合关键词，将文章发布到合作的“高权重网站”，借助高权重平台提升搜索结果排名，合作期间最低保证一千个关键词在搜索结果首页，通常都是几千到几十万的关键词在结果首页。

为调查取证，北京某科技有限公司于2021年2月23日向江苏某网络科技有限公司购买了为期3个月的“万词霸屏”服务。截至2021年3月8日，江苏某网络科技有限公司发布的相关网页链接出现在百度搜索PC端1237个、手机端1294个关键词的结果首页；2021年3月10日，在PC端和手机端分别用百度搜索相应关键词，PC端搜索结果首页第3位、第5位、第7位，手机端搜索结果首页第1位、第3位、第5位、第8位、第10位显示江苏某网络科技有限公司发布的位于第三方域名下的广告页面；截至2021年3月23日，江苏某网络科技有限公司发布的相关网页链接出现在百度搜索PC端8735个、手机端8176个关键词的结果首页。在第三方网站中输入江苏某网络科技有限公司设置的关键词进行站内搜索无法搜索到江苏某网络科技有限公司发布的上述相关网页。

北京某科技有限公司为打击江苏某网络科技有限公司这类售卖目录的行为，采取了更新售卖目录算法、提升召回、针对B2B类页面专项覆盖等一系列行动，识别作弊页面2亿多个。

江苏某网络科技有限公司确认自2017年至2021年五年合计净利润超300万元。

江苏省苏州市中级人民法院于2022年3月1日作出（2021）苏05民初1480号民事判决：一、江苏某网络科技有限公司立即停止涉案不正当竞争行为；二、江苏某网络科技有限公司于判决生效之日起十日内在其公司官网刊登声明、消除影响；三、江苏某网络科技有限公司于判决生效之日起十日内赔偿原告北京某科技有限公司经济损失270万元及为制止本案侵权行为所支付的合理开支53,000元，共计2,753,000元；四、驳回原告北京某科技有限公司其他诉讼请求。宣判后，双方当事人均未提起上诉，判决已发生法律效力。

裁判要旨

互联网企业利用技术手段生成大量关键词和非人工编写页面，并将上述推广页面发布在高权重网站二级目录下，恶意干扰、操纵搜索引擎自然排名结果，获取不法利益且不具备合理理由的，属于《中华人民共和国反不正当竞争法》第十二条第二款规定的“其他妨碍、破坏其他经营者合法提供的网络产品或者服务正常运行的行为”，构成不正当竞争。

裁判理由

法院生效裁判认为：江苏某网络科技有限公司涉案“万词霸屏”的行为构成以技术中立为名，干扰搜索引擎算法、扰乱排序结果的不正当竞争行为，主要从以下方面进行认定。

第一，江苏某网络科技有限公司与北京某科技有限公司之间存在竞争关系。

第二，江苏某网络科技有限公司通过租赁“高权重网站”二级目录，将大量关键词及非人工编写页面发布到目录等网络技术手段实施涉案侵权行为。

第三，江苏某网络科技有限公司的行为违背了北京某科技有限公司的意愿并导致北京某科技有限公司的网络产品或服务无法正常运行。破坏了百度搜索引擎正常收录和排名秩序，造成引擎算法失准；造成北京某科技有限公司的机器性能和服务器资源的浪费；影响百度搜索用户体验，降低用户信任。

第四，江苏某网络科技有限公司的行为有悖诚实信用原则和商业道德。一是生成网页及网页内容多系通过技术手段形成的非人工编写文章；二是将第三方“高权重网站”ICP备案主体无关的相关网页植入其网站；三是与江苏某网络科技有限公司签约的部分主体并非“高权重网站”的ICP备案主体；四是江苏某网络科技有限公司利用北京某科技有限公司算法漏洞通过技术手段达成“万词霸屏”的关联效果。

第五，江苏某网络科技有限公司的行为扰乱市场竞争秩序并损害消费者的合法权益。一是影响了其他经营者利用网络开展搜索排序的秩序，将合法经营者挤压至搜索排序后位；二是影响了“高权重网站”在百度搜索系统中的自然评价；三是影响了互联网信息服务管理秩序，造成“高权重网站”超出了许可或者备案的项目提供互联网信息服务，尤其是个别非经营性网站涉嫌从事有偿服务。从对消费者（网络用户）合法权益的损害来看，江苏某网络科技有限公司涉案行为不仅极大地干扰了用户的正常检索行为，增加了消费者信息获取成本，同时进一步放大了用户因信息不对称被误导甚至欺骗的不良体验，侵犯了消费者的知情权。

第六，江苏某网络科技有限公司的行为缺乏合理理由。一是江苏某网络科技有限公司的行为是商业行为，而非为了保护社会公益或增进消费者福祉的公益行为。二是江苏某网络科技有限公司的行为是违背诚信原则的扰乱行为，而非创设新的有利于消费者的算法或技术行为。

法院综合考虑江苏某网络科技有限公司涉案业务及整体利润等因素，确定案件的损害赔偿金额。

L.网络游戏代练不正当竞争案 ——互联网不正当竞争行为及商业道德的司法认定

当事人

某科技（成都）有限公司等诉佛山市南海区某网络科技有限公司

案号

上海市浦东新区人民法院（2022）沪0115民初13290号

合议庭成员

吴智永 | 倪红霞 | 袁田

关键词

民事 不正当竞争 一般条款 互联网 商业代练

相关法律规定

- 《中华人民共和国反不正当竞争法》第2条
- 《最高人民法院关于适用〈中华人民共和国反不正当竞争法〉若干问题的解释》第1条、第2条、第3条

基本案情

原告某科技（成都）有限公司（以下简称某科技公司）、深圳市某计算机系统有限公司（以下简称深圳某公司）共同诉称，被告运营的“代练帮”客户端以“发单返现金”、设立“王者荣耀”专区的形式引诱、鼓励包括未成年人在内的用户通过其平台进行商业化、规模化的《王者荣耀》游戏代练交易，并从中获得收益，已构成不正当竞争。故诉请判令被告停止不正当竞争行为、赔偿原告经济损失及合理开支共计450万元。

被告佛山市南海区某网络科技有限公司（以下简称某网络公司）辩称，原告系提供游戏服务，被告系提供游戏代练，并非同一领域。游戏代练增强了游戏用户体验，没有给原告造成损失，反而给原告增加了流量和用户粘性，不构成不正当竞争。

法院经审理查明：原告某科技公司是涉案游戏《王者荣耀》的著作权人，并授权原告深圳某公司独家运营该游戏。《王者荣耀》向用户免费提供游戏下载，并通过营造公平的竞技环境吸引更多用户，提供“皮肤”等增值服务以从中获利。《王者荣耀》游戏通过用户协议要求用户实名制登记，不得将游戏账号提供给他人做代练代打等商业性使用。为落实未成年人保护要求，《王者荣耀》账号严格采用实名制并配有完备的“防沉迷”措施，未成年人仅能在国家新闻出版署规定的时间段内登录游戏。被告某网络公司运营的“代练帮”APP以“发单返现金”、设立“王者荣耀”专区的形式，引诱、鼓励包括未成年人在内的用户通过其平台进行商业化、规模化的《王者荣耀》游戏代练交易并从中获得收益。接单者可以非真实身份登录涉案游戏，未成年人亦可接单获得他人的游戏账号绕开“防沉迷”机制进入游戏并赚

取费用。“代练帮”客户端通过“安全保证金”“效率保证金”等方式保障交易实现,从用户充值手续费、提现手续费、订单结算手续费中抽取一定比例作为平台收益,并明确要求接单者均关闭手机定位以避免封号等处罚措施。被诉客户端自2020年初开始运营,至诉讼时已上架华为、小米、豌豆荚、360手机助手、PP助手等多个应用商城,总下载量超过1.5万次。

上海市浦东新区人民法院判决,判令被告某网络公司停止涉案不正当竞争行为;综合考虑涉案游戏知名度、被诉侵权行为的主观过错程度等因素,酌定被告某网络公司赔偿原告某科技公司、深圳某公司经济损失80万元及为制止侵权行为所支付的合理开支185,000元,以上共计985,000元。判决后,双方均未上诉。本案已生效。

裁判要旨

适用《中华人民共和国反不正当竞争法》第二条认定不正当竞争行为,需要满足以下条件:一是法律对该竞争行为未作出特别规定;二是该竞争行为扰乱市场竞争秩序,损害其他经营者或者消费者合法权益;三是该竞争行为因违反诚实信用原则和公认的商业道德而具有不正当性。

裁判理由

法院经审理认为,被诉“代练帮”客户端组织商业化的代练服务的行为符合《中华人民共和国反不正当竞争法》第二条的适用要件:一是法律对该竞争行为未作出特别规定;二是该竞争行为扰乱市场竞争秩序,损害其他经营者或者消费者合法权益;三是该竞争行为因违反诚实信用原则和商业道德而具有不正当性。

首先,针对被告某网络公司的行为,《中华人民共和国反不正当竞争法》没有作出相对应的特别规定。《中华人民共和国反不正当竞争法》第十二条第二款第四项中的“利用技术手段”应指以运用技术的方式实现不正当竞争,该技术手段的运用不正当地影响用户选择或者实质性地破坏、妨碍其他经营者正常提供网络产品或服务的技术运行逻辑,技术手段和行为损害后果之间具有直接因果关系,而非所有借助互联网实施的行为均可视作“利用技术手段”。涉案行为虽系被告通过运营“代练帮”客户端在互联网中实施,但该客户端仅提供代练交易平台,核心的代练行为系由用户通过人工操作实施,并非利用技术手段实现,故不符合该条款的适用条件。涉案行为亦并非《中华人民共和国反不正当竞争法》第二章第六条至第十二条列举的其他不正当竞争行为或《中华人民共和国专利法》、《中华人民共和国著作权法》等知识产权专门法规制的行为。

其次,被诉行为扰乱市场竞争秩序,损害原告作为经营者、游戏用户作为消费者的合法权益。两原告运营的《王者荣耀》游戏内设“ELO等级分系统”的公平匹配机制,根据游戏账号的游戏行为数据分析评价的竞技水平登记,匹配水平相当的对战对手及队友,保障用户获得良好的游戏体验,吸引并积累用户,最终获得游戏收益。这一竞争优势应受法律保护。此外,涉案游戏严格落实国家关于未成年人游戏防沉迷的要求,限制未成年人游戏时长、时段,建立未成年人游戏防沉迷机制,基于此获得的良好商誉亦应受法律保护。被诉“代练帮”客户端组织商业化的代练服务,造成了如下三方面的损害后果:一是扰乱市场竞争秩序。被诉行为致使涉案游戏的实名制及未成年人防沉迷机制落空,妨碍网络游戏运营秩序,不利于网络生态治理和未成年人权益保护,损害社会公共利益。二是损害两原告作为经营者的合法权益。涉案代练客户端绕开了被诉游戏的实名制和未成年人防沉迷机制,但原告却因无法知晓真实使用者信息从而无法通过自身的治理机制规制涉案行为,导致相关公众质疑原告的合规运

营和社会责任承担。三是损害消费者权益。被诉行为导致其他实名游戏用户无法匹配到水平相当的对手及队友，无法获得公平竞技的游戏体验，还增加未成年人玩家沉迷游戏的风险，严重影响未成年人身心健康。

最后，被诉行为因违反诚实信用原则和商业道德而具有不正当性。就网络游戏领域而言，其商业伦理主要涉及如下三个维度：通过禁止出借游戏账号及禁止商业代练保障竞技公平；通过游戏管理机制承担社会责任；通过设置数据使用行为边界保障数据清洁性和安全性。“代练帮”客户端组织商业化、规模化游戏代练行为将原告具有竞争性权益的网络游戏作为获利工具，违反诚实信用原则和公认的商业道德。被诉客户端明确要求接单者关闭定位以避免封号等处罚措施，刻意规避原告的游戏监管机制，反映了被告的主观恶意。原告无从通过平台自行予以规制，从而不合理增加原告运营涉案网络游戏的运营成本。至此，市场自发的调节机制失灵，法律具有干预的必要性。

M. “锂离子正极材料”不正当竞争案 ——商业秘密合同债权的侵权救济及法律适用

当事人

江苏百某新能源科技公司诉江苏翔某新能源科技公司、三某科技股份有限公司、柳某、刘某迅、金某峰

案号

最高人民法院（2021）最高法知民终814号

合议庭成员

余晓汉 | 雷艳珍 | 欧宏伟

关键词

民事 不正当竞争 商业秘密 反不正当竞争法 一般条款

相关规定

- 《中华人民共和国侵权责任法》第2条、第5条、第6条第1款、第8条
- 《中华人民共和国反不正当竞争法》第2条、第9条、第17条、第32条
- 《最高人民法院关于审理侵犯商业秘密民事案件适用法律若干问题的规定》第3条、第4条、第5条、第6条、第28条

基本案情

北京某贸易公司董事长朱某能于2014年7月经人介绍认识柳某，双方约定柳某团队以江苏马某新能源科技公司名义代为履行技术入股，朱某能团队由北京某贸易公司代为履行出资入股，占江苏百某新能源科技公司25%的股份。双方于2014年12月25日注册成立江苏百某新能源科技公司。2015年11月30日经评估，“一种锂离子正极材料生产技术”评估结论为该技术价值为5000万元。江苏马某新能源科技公司实际由柳某出资并控制，柳某向江苏百某新能源科技公司交付部分案涉技术秘密，同时担任江苏百某新能源科技公司首席技术官，江苏百某新能源科技公司建设了部分生产线；江苏百某新能源科技公司在建设生产线过程中，与天津某科技公司的独资子公司协商融资，在协商过程披露了涉案技术秘密的出资评估报告；天津某科技公司的独资子公司的董事金某峰于2016年1月知悉了锂电池项目。后柳某与金某峰接触，并携锂电池正极材料等制备技术与金某峰合作，组建江苏翔某新能源科技公司。柳某于2016年3月1日从江苏百某新能源科技公司辞职，同年6月12日入职江苏翔某新能源科技公司，开始投产生产锂电池。而江苏百某新能源科技公司部分建成的生产线瘫痪。江苏百某新能源科技公司于2017年11月29日向北京知识产权法院起诉，主张江苏翔某新能源科技公司使用了其商业秘密，主要体现在柳某在江苏翔某新能源科技公司任职，江苏翔某新能源科技公司的经营范围与江苏百某新能源科技公司相同，以及江苏翔某新能源科技公司实际生产了锂电池产品，请求判令江苏翔某新能源科技公司、柳某、金某峰、天津某科技公司、

刘某迅（江苏百某新能源科技公司的前职员）等五被诉侵权人停止侵害江苏百某新能源科技公司商业秘密并连带赔偿经济损失2亿元。

北京知识产权法院认为江苏百某新能源科技公司提交的初步证据尚不能合理表明商业秘密被侵犯，判决：驳回江苏百某新能源科技公司的诉讼请求。江苏百某新能源科技公司不服，提出上诉，请求改判五被诉侵权人共同赔偿江苏百某新能源科技公司经济损失5000万元等。最高人民法院于2023年6月30日作出（2021）最高法知民终814号民事判决：撤销一审判决，江苏翔某新能源科技公司、柳某、金某峰于判决生效之日起十日内连带赔偿江苏百某新能源科技公司经济损失5000万元。

裁判要旨

当事人对他人依法应当交付但尚未交付的商业秘密拥有合同债权，第三人故意侵害该商业秘密合同债权，不当攫取债权人交易机会、破坏其竞争优势的，人民法院可以依据《中华人民共和国反不正当竞争法》第二条的规定认定该行为构成不正当竞争行为。

裁判理由

法院生效裁判认为：涉案商业秘密部分由柳某代表江苏马某新能源科技公司交付给江苏百某新能源科技公司，部分尚未交付。对于部分已经交付的商业秘密，江苏百某新能源科技公司享有知识产权（即商业秘密知识产权）；对于尚未交付的部分商业秘密，江苏百某新能源科技公司对江苏马某新能源科技公司享有取得商业秘密的合同债权（即商业秘密合同债权）。

在反不正当竞争法层面，如果故意侵害合同项下一方期待获取商业秘密的债权的行为，违反2019年《中华人民共和国反不正当竞争法》第二条第一款规定的竞争原则（即应当遵循自愿、平等、公平、诚信的原则，遵守法律和商业道德），产生不当地夺取交易机会或者破坏其他经营者的竞争优势等一般不正当竞争行为的损害后果，且该行为不属于2019年《中华人民共和国反不正当竞争法》第二章及知识产权专门法等法律规定情形的，人民法院可以依据2019年《中华人民共和国反不正当竞争法》第二条的规定认定该行为构成不正当竞争行为。此时，应遵循《中华人民共和国侵权责任法》第五条关于“其他法律对侵权责任另有特别规定的，依照其规定”的规定，优先适用《中华人民共和国反不正当竞争法》处理有关民事责任纠纷。对于江苏马某新能源科技公司尚未向江苏百某新能源科技公司交付的部分商业信息而言，如果可以合理预见或者相信该尚未交付的部分商业信息能够构成商业秘密，且合同当事人之外的行为人故意侵害江苏百某新能源科技公司拟掌握该商业秘密的合同债权（即商业秘密债权），则江苏百某新能源科技公司可以相应请求该行为人承担不正当竞争的损害赔偿赔偿责任。

本案中，江苏翔某新能源科技公司、柳某、金某峰既侵害了江苏百某新能源科技公司的商业秘密债权，又侵害了江苏百某新能源科技公司的商业秘密知识产权，但没有证据表明刘某迅、天津某科技公司参与实施了侵害行为或者具有其他应当承担责任的情形（本案中江苏百某新能源科技公司没有起诉天津某科技公司的独资子公司，故难以追究天津某科技公司作为独资股东的责任），遂改判江苏翔某新能源科技公司、柳某、金某峰连带赔偿江苏百某新能源科技公司经济损失5000万元，全额支持了江苏百某新能源科技公司在二审中主张的损害赔偿诉讼请求。

第五章 集成电路布图设计 案件

A. “锂电池保护芯片”集成电路布图设计侵权案
——集成电路布图设计专有权保护范围的确定

A. “锂电池保护芯片”集成电路布图设计侵权案 ——集成电路布图设计专有权保护范围的确定

当事人

苏州赛某电子科技有限公司诉深圳裕某科技有限公司等

案号

最高人民法院 (2019) 最高法知民终490号

合议庭成员

徐卓斌 | 雷艳珍 | 高雪

关键词

民事 侵害集成电路布图设计专有权 登记 保护对象及范围 独创性

相关法律规定

— 《集成电路布图设计保护条例》第4条第1款、第8条

基本案情

苏州赛某电子科技有限公司（以下简称赛某公司）于2012年4月22日申请登记了名称为“集成控制器与开关管的单芯片负极保护的锂电池保护芯片”的集成电路布图设计，并于2012年6月8日公告，该集成电路布图设计专有权至今处于有效状态。深圳准某电子有限公司（以下简称准某公司，已注销）未经许可，复制、销售的芯片与涉案集成电路布图设计实质相同。深圳裕某科技有限公司（以下简称裕某公司）为准某公司的销售行为代开发票。被诉侵权行为发生时，户某欢为准某公司的唯一股东，持有裕某公司51%的股权，并同时担任两公司的法定代表人。户某欢后将准某公司股权转让给黄某东、黄某亮。在一审诉讼期间，黄某东、黄某亮注销了准某公司。

赛某公司认为，准某公司、裕某公司共同侵害了涉案集成电路布图设计专有权，户某欢、黄某东、黄某亮应对准某公司承担连带责任。故诉至广东省深圳市中级人民法院，请求判令停止侵权，裕某公司、户某欢、黄某东、黄某亮连带赔偿经济损失。

广东省深圳市中级人民法院判决：一、裕某公司在判决生效之日起十日内赔偿赛某公司经济损失50万元；二、户某欢、黄某东、黄某亮对上述赔偿金额承担连带责任；三、驳回赛某公司其余诉讼请求。宣判后，裕某公司、户某欢、黄某东、黄某亮向最高人民法院提起上诉。最高人民法院于2020年10月16日作出（2019）最高法知民终490号民事判决：驳回上诉，维持原判。

裁判要旨

1. 集成电路布图设计登记的目的在于确定保护对象，而非公开设计内容。公开布图设计内容并非取得集成电路布图设计专有权的条件。
2. 集成电路布图设计专有权的保护范围，一般可以根据申请登记时提交的布图设计复制件或者图样确定。对于无法从复制件或者图样识别的布图设计内容，可以依据与复制件或者图样具有一致性的样品确定。
3. 取得集成电路布图设计登记，并不当然意味着登记的布图设计内容具有独创性，权利人仍应当对其主张权利的布图设计的独创性作出合理解释或者说明。被诉侵权人不能提供充分反证推翻该解释或者说明的，可以认定有关布图设计具备独创性。

裁判理由

法院生效裁判认为：

一、关于能否以样品剖片确定涉案布图设计的保护范围

1.复制件或图样的纸件、样品能否用以确定布图设计的保护范围。在布图设计登记时，向登记部门提交的材料中包含布图设计内容的有：复制件或者图样的纸件、复制件或者图样的电子版本、样品。其中，复制件或者图样的纸件是必须提交的；样品在布图设计已经投入商业利用的情况下提交；复制件或者图样的电子版本是基于自愿提交的，还特别要求电子文档应当包含该布图设计的全部信息，并注明文件的数据格式。可见，复制件或图样的纸件是获得登记必须提交的文件。在确定布图设计的保护范围时，一般应根据复制件或图样的纸件进行。随着半导体行业的发展，布图设计能在更小的半导体基片上完成更为复杂的布图设计，其集成度大幅提高。即使按照《集成电路布图设计保护条例实施细则》第十四条规定“复制件或者图样的纸件至少放大到该布图设计生产的集成电路的20倍以上”，仍然存在复制件或者图样的纸件放大倍数尚不足以完整、清晰地反映布图设计内容的情况。此时，在样品与复制件或图样的纸件具有一致性的前提下，可以采用样品剖片，通过技术手段精确还原出芯片样品包含的布图设计的详细信息，提取其中的三维配置信息，确定纸件中无法识别的布图设计细节，用以确定布图设计的内容。

2.是否只能以登记时已经公开的内容确定保护范围。不同于《中华人民共和国专利法》对发明创造采取公开换保护的制度设计，《集成电路布图设计保护条例》对布图设计的保护并不以权利人公开布图设计为条件。国家知识产权局在布图设计的登记审查时，对纸件的要求是至少放大到20倍以上，对电子版本的要求是包含布图设计的全部信息。登记公告后，公众可以请求查阅的是纸件，对于已经投入商业利用的布图设计纸件中涉及的保密信息，除侵权诉讼或行政处理程序的需要，不得查阅或复制；对于电子版本，同样除侵权诉讼或行政处理程序需要外，任何人不得查阅或复制。从上述规定内容可以看出，无论在登记过程中还是登记公告后，对含有布图设计全部信息的电子版本和已投入商业利用的布图设计纸件中的保密信息均没有对公众无条件全部公开的要求。

《集成电路布图设计保护条例》在布图设计的保护上采取的是专门法模式。布图设计的保护没有采用类似对发明创造的专利保护规则，即并非通过登记公开布图设计内容以换取专有权。同时，《集成电路布图设计保护条例》对布图设计的保护也与《中华人民共和国著作权法》对作品的保护不完全相同。布图设计的登记是确定保护对象的过程，是获得布图设计专有权的条件，而不是公开布图设计内容的过程，也不是以公开布图设计为对价而获得专有权保护。

二、关于涉案布图设计是否具有独创性

关于布图设计的独创性。首先，集成电路布图设计专有权保护的是集成电路中元件和三维配置，不延及思想等。在体现布图设计的功能层次上由于不含有元件和线路的三维配置，不给予保护。在这个层次之下，独创性的体现逐步增强，对元件分配、布置，各元部件间的互联，信息流向关系，组合效果等可以给予保护。其次，受保护的独创性部分应能够相对独立地执行某种电子功能。受保护的布图设计的独创性，可以体现在布图设计任何具有独创性的部分中，也可以体现在布图设计整体中。布图设计中任何具有独创性的部分均受法律保护，而不论其在整体设计中是否占据主要部分，是否能够实现整体设计的核心性能。如果一项布图设计是由公认的常规设计组合而成，则其组合作为整体应具有独创性。同时，如果权利人提出的是具有独创性的部分，则该部分应当能够相对独立地执行某种电子功能。再次，独创性是布图设计受保护的前提条件。布图设计的独创性包含两层含义：自己设计完成；不属于创作时公认的常规设计。在侵权诉讼中，当被诉侵权人对布图设计的独创性提出异议时，人民法院应当根据双方的主张、提交的证据对布图设计的独创性进行认定。对于专有权人选择布图设计中具有独创性的部分，围绕权利人提出的部分进行独创性判断时，应从两个层面逐次进行：一是受保护的布图设计属于为执行某种电子功能而对元件、线路所作的三维配置，否则不能受布图设计专有权保护。二是上述部分含有的三维配置在其创作时不是公认的常规设计。

权利人在提出独创性部分的同时，可以对独创性部分进行说明，权利人的独创性说明可能是从不同角度对独创性部分的概括或者抽象，而不一定包括对三维配置内容的描述，但在对上述权利人指明的部分进行独创性判断时，应根据权利人的独创性说明，将权利人指明部分中含有的元件和线路的具体三维配置作为判断对象。

对权利人提出的独创性部分进行证明的过程中，不能以经过登记备案而当然认为布图设计的整体或任何部分具有独创性。但对于独创性的证明，不能过分加重权利人的举证责任，要求其穷尽一切手段证明布图设计的独创性。相对而言，被诉侵权人只要能够提供一份已经公开的常规布图设计就能推翻权利人主张的独创性部分。因此，对独创性的举证责任分配应充分考虑集成电路布图设计的特点、目前我国集成电路布图设计的登记现状、双方的举证能力等因素，以权利人提出的独创性部分为依据，首先要求权利人对其主张的独创性部分进行充分说明或初步证明，然后由被诉侵权人就不具有独创性提出相反证据，在综合考虑上述事实、证据的基础上进行判断。

第六章 植物新品种案件

A. “都蜜5号”植物新品种临时保护期使用费案

——品种权人在起诉前单方自行委托鉴定的审查以及临时保护期使用费的计算

A. “都蜜5号”植物新品种临时保护期使用费案 ——品种权人在起诉前单方自行委托鉴定的审查以及临时保护期使用费的计算

当事人

某种业科技有限公司诉新疆某农业科技发展有限公司

案号

海南自由贸易港知识产权法院（2021）琼73知民初24号

合议庭成员

夏君丽 | 罗静怡 | 潘召勇

关键词

民事 植物新品种 临时保护期使用费 自行委托鉴定

相关规定

- 《中华人民共和国植物新品种保护条例》第33条
- 《最高人民法院关于审理侵害植物新品种权纠纷案件具体应用法律问题的若干规定》第3条
- 《最高人民法院关于审理侵害植物新品种权纠纷案件具体应用法律问题的若干规定（二）》第19条第1款、第22条

基本案情

某种业科技有限公司诉称：2021年6月18日，“都蜜5号”获得植物新品种权。同年4月，某种业科技有限公司获得其他共有品种权人授权进行维权。2019年12月13日，某种业科技有限公司发现新疆某农业科技发展有限公司销售的“世纪蜜二十五号”甜瓜种子疑似“都蜜5号”。经鉴定，“测试样品‘世纪蜜二十五号’与对比样品‘都蜜5号’无明显差异”。某种业科技有限公司提起诉讼，请求：1.判令新疆某农业科技发展有限公司停止以“世纪蜜二十五号”的名义生产、销售“都蜜5号”甜瓜种子；2.判令新疆某农业科技发展有限公司支付“都蜜5号”临时保护期内的甜瓜新品种使用费2,970,000元、合理开支30,000元，共计3,000,000元；3.判令新疆某农业科技发展有限公司承担本案诉讼费用。

新疆某农业科技发展有限公司辩称：某种业科技有限公司的诉请不应予以支持。“世纪蜜二十五号”的母本与“都蜜5号”的母本同源，但两个品种在特性、果形、果皮颜色、果肉硬度等方面均有本质区别。鉴定报告不能作为认定案件事实的根据，不能予以采信，应重新鉴定。

法院经审理查明：2021年6月18日，北京市某科学院、某北京公司、某种业科技有限公司获得“都蜜5号”植物新品种权。（2019）琼乐东证字1287号公证书主要载明：“二〇一九年十二月十三日上午十时二十八分至十时三十七分，本公证员及本处工作人员随同代理人来到‘其哥种子店’，代理人以消费者身份向该店选购了本保全所涉商品（世纪蜜二十五号甜瓜

种子三包,生产商:新疆某农业科技发展有限公司;其哥抗裂25号甜瓜种子三包,生产商:海南其哥果业),并获得收据一张。上述公证书所附收据照片显示,客户购买“世纪蜜二十五号”3包,2000粒/包,合计支付1800元。上述公证书所附购买产品外包装照片显示,“生产单位:新疆某农业科技发展有限公司,包装袋底部印有新疆某农业科技发展有限公司名称、海南总经销商:海南其哥果业及联系电话。海南省某公证处收取1285-1292号保全证据公证费共计8000元。

2020年12月11日,某植物新品种测试中心出具植物品种田间种植对比鉴定报告,载明:“测试样品‘世纪蜜二十五号’;对比样品‘都蜜5号’;样品来源测试样品和对比样品由某北京公司提供;测试指南《植物品种特异性、一致性和稳定性测试指南甜瓜》(NY/T2342-2013);测试周期2020年至2020年,1个生长周期;对比结果经1个生长周期1点测试,测试样品和对比样品在65个基本性状中有0个性状有明显差异。(有明显差异性状对比表附后);鉴定结论测试样品和对比样品无明显差异;审查员邓某;日期2020年12月11日”。

新疆某农业科技发展有限公司自认从2014年起测配甜瓜种子,2017年起正式销售“世纪蜜二十五号”,经统一制作包装后销往海南、山东、河北、新疆、内蒙古。2019年6月26日至2020年底,新疆某农业科技发展有限公司将“世纪蜜二十五号”以单价0.1-0.2元/粒的价格,共向某种子店销售2,225,000粒,收取货款244,500元,截至庭审时,新疆某农业科技发展有限公司尚有“世纪蜜二十五号”库存约500-600公斤存储在位于新疆的仓库内,每公斤约28,000粒。

2021年11月4日,新疆某农业科技发展有限公司提交鉴定申请书,请求将某种业科技有限公司经公证处封存的“世纪蜜二十五号”检测后,与“都蜜5号”委托有鉴定资质的部门予以重新鉴定。

海南自由贸易港知识产权法院于2021年12月31日作出(2021)琼73知民初24号民事判决:一、新疆某农业科技发展有限公司于本判决生效之日起十日内向某种业科技有限公司支付临时保护期使用费及合理开支共计350,000元;二、驳回某种业科技有限公司的其他诉讼请求。宣判后,双方当事人均未提出上诉,判决已发生法律效力。

裁判要旨

1. 植物新品种权纠纷中,权利人在起诉前单方自行委托的鉴定,不是司法委托鉴定,人民法院可参照法律和司法解释关于鉴定意见的审查规则,从样品来源、鉴定资质、适用的鉴定规则和测试方法等方面,依法审查证据的证明力。
2. 临时保护期使用费纠纷中,权利人请求由未经许可生产或销售该授权品种繁殖材料的单位和个人支付其基于正当理由提起诉讼所产生的合理费用的,人民法院应当予以支持,并可作为确定临时保护期使用费的考虑因素予以考虑。

裁判理由

法院生效裁判认为:一、新疆某农业科技发展有限公司是否应向某种业科技有限公司支付植物新品种权临时保护期使用费

“都蜜5号”临时保护期为2019年5月1日至2021年6月18日,品种权人对未经其许可,为商业目的生产或者销售该授权品种的繁殖材料的单位和个人,享有在上述期间追偿的权利。综合双方诉辩意见,某种业科技有限公司在起诉前单方自行委托农业农村部植物新品种测

试中心出具的鉴定报告是否应予采信,是判定新疆某农业科技发展有限公司是否应向某种业科技有限公司支付植物新品种临时保护期使用费的前提。

(一) 关于鉴定报告是否应予采信

鉴定报告系某种业科技有限公司在起诉前单方自行委托,在法律性质上并非鉴定意见,但作为证据宜参照法律和司法解释关于鉴定意见的审查规则,结合具体案情,对其证明力从严审查。

关于样品来源。某种业科技有限公司提交的公证书对取证过程予以记录,某植物新品种测试中心亦出具《说明》表明其收到了带有封条,封口处盖有印章的测试样品。可见从公证处将封装的文件袋返还某北京公司保管,到某北京公司将封装文件袋邮寄至某植物新品种测试中心,文件袋封装完整。

关于鉴定资质。某植物新品种测试中心是经农业部批准的具有相应品种检测技术水平的专业机构。考虑到目前植物新品种权领域尚无鉴定机构被司法部授予鉴定资格的情况,某种业科技有限公司委托某植物新品种测试中心进行检测,并无不当。

关于鉴定规则和检测方法。1.田间小区种植是品种真实性和测定品种纯度的最为可靠、准确的方法。本案系由某植物新品种测试中心对“世纪蜜二十五号”测试样品与“都蜜5号”对比样品进行了植物新品种田间种植对比,对比结果在品种真实性方面应当最为准确;2.某植物新品种测试中心依据测试指南对测试样品与对比样品在甜瓜的各个生长阶段的性状进行比较,经过1个生长周期1点测试,得出二者在65个基本性状中0个性状有明显差异,得出无明显差异的结论,表明二者系同一品种。

(二) 新疆某农业科技发展有限公司重新鉴定的申请是否应予准许

根据《最高人民法院关于审理侵害植物新品种权纠纷案件具体应用法律问题的若干规定(二)》第二十二条的规定,对鉴定意见有异议的一方当事人向人民法院申请复检、补充鉴定或者重新鉴定,但未提出合理理由和证据的,人民法院不予准许。本案中,新疆某农业科技发展有限公司未提出足以推翻鉴定报告的相反证据,也没有提出足以令人信服的理由或质疑,对新疆某农业科技发展有限公司重新鉴定的申请,法院不予准许。

二、临时保护期使用费的负担和数额

某种业科技有限公司请求新疆某农业科技发展有限公司支付临时保护期使用费,此外还请求支付合理开支。法律、司法解释未明确规定临时保护期使用费纠纷是否应支持权利人维权所支付的合理开支,法院认为,某种业科技有限公司基于正当理由提起诉讼所产生的合理费用,根据公平原则,应当予以支持,并且宜作为确定临时保护期使用费的考虑因素,由新疆某农业科技发展有限公司适当分担。本案中,某种业科技有限公司未提交有关品种权实施许可费的相关证据,无许可使用费可供参考。综合考虑以下因素确定本案临时保护期使用费数额:“都蜜5号”作为甜瓜品种,属于水果品种,系经济作物之一;“都蜜5号”的临时保护期为2019年5月1日至2021年6月18日;2019年6月26日至2020年底,新疆某农业科技发展有限公司将其生产的“世纪蜜二十五号”共计向乐东佛罗其哥种子店销售2,225,000粒,收到货款244,500元,目前尚有涉案种子库存约500-600公斤,上述生产、销售期间与临时保护期重合;新疆某农业科技发展有限公司销售“世纪蜜二十五号”的单价为0.1-0.2元/粒;

因本案纠纷购买“世纪蜜二十五号”支付1800元，支付本案证据保全费1600元和品种测试费4800元。新疆某农业科技发展有限公司未经许可实施了生产、销售“都蜜5号”的行为，结合上述考虑因素，酌情确定新疆某农业科技发展有限公司应当支付临时保护期使用费及合理开支共计350,000元。

第七章 知识产权刑事案件

A.涉“乐高”侵犯著作权罪案

——侵犯著作权罪中复制发行行为的认定

B.涉“某某影视字幕组”侵犯著作权罪案

——侵犯著作权罪中“未经著作权人许可”的认定

C.涉“蓝牙耳机电子弹窗”假冒注册商标罪案

——以无线通信技术展示商标的行为属于商标使用行为

A.涉“乐高”侵犯著作权罪案 ——侵犯著作权罪中复制发行行为的认定

当事人

李某某等九人

案号

上海市高级人民法院 (2020) 沪刑终105号

合议庭成员

刘晓云 | 刘军华 | 罗开卷

关键词

刑事 侵犯著作权罪 美术作品 发行行为

相关法律规定

— 《中华人民共和国刑法》第217条

基本案情

“Great Wall of China” 拼装玩具等47个系列663款产品系某公司创作的美术作品，某公司根据该作品制作、生产了系列拼装玩具并在市场上销售。

2015年至2019年4月间，在未经某公司许可的情况下，被告人李某某指使被告人杜某甲、闫某某、余某某、王某甲、张某、王某乙、吕某某、李某等人，购买新款乐高系列玩具，通过拆解研究、电脑建模、复制图纸、委托他人开制模具，设立玩具生产厂，专门复制某公司创作的“Great Wall of China” 等47个系列663款拼装积木玩具产品，并冠以“乐拼”品牌通过线上、线下等方式销售。

2019年4月23日，上海市公安局在被告人李某某租赁的厂房内查获注塑模具88件、零配件68件、包装盒289,411个、说明书175,141件、销售出货单5万余张、复制乐高系列的“乐拼”玩具产品603,875件。

经中国版权保护中心版权鉴定委员会鉴定，“乐拼”品牌玩具、图册与某公司的玩具、图册均基本相同，构成复制关系。经司法会计鉴定，2017年9月11日至2019年4月23日，李某某等人生产销售侵权产品数量4,249,255盒，涉及634种型号，合计300,924,050.9元。扣押储存在仓库的待销售侵权产品数量603,875盒，涉及344种型号，合计金额30,508,780.7元。

另查明，2017年被告人杜某甲离开某甲玩具厂后，开始从事乐拼玩具的经销，其从某甲玩具厂购进货源，在淘宝网店销售复制乐高的乐拼玩具盈利，经鉴定销售金额为6,215,989.43元。

被告人余某某、王某乙在广东某科技股份有限公司工作期间，分别在其经营的淘宝网店销售复制乐高的乐拼玩具盈利，经鉴定销售金额分别为3,560.28元和11,747,427.79元。

2019年4月22日、4月23日、5月12日，被告人李某某、杜某甲、王某甲分别被抓获。同年4月23日，被告人余某某、闫某某主动到案，同年6月14日、7月15日、7月31日，被告人王某乙、吕某某、张某分别到案。同年7月，被告人李某某规劝被告人李某到公安机关接受调查，同年8月5日被告人李某主动投案，各被告人到案后均如实供述上述犯罪事实。

上海市第三中级人民法院于2020年9月2日作出（2020）沪03刑初28号刑事判决：一、被告人李某某犯侵犯著作权罪，判处有期徒刑六年，并处罚金人民币九千万元；二、被告人闫某某犯侵犯著作权罪，判处有期徒刑四年六个月，并处罚金人民币八十万元，撤销广东省汕头市龙湖区人民法院（2017）粤0507刑初303号刑事判决书中被告人闫某某犯寻衅滋事罪，判处有期徒刑七个月，缓刑一年的缓刑部分，决定执行有期徒刑四年十个月，并处罚金人民币八十万元；三、被告人张某犯侵犯著作权罪，判处有期徒刑四年六个月，并处罚金人民币一百二十万元；四、被告人王某乙犯侵犯著作权罪，判处有期徒刑三年九个月，并处罚金人民币四百五十万元；五、被告人杜某甲犯侵犯著作权罪，判处有期徒刑三年六个月，并处罚金人民币二百五十万元；六、被告人吕某某犯侵犯著作权罪，判处有期徒刑三年，并处罚金人民币三十万元；七、被告人王某甲犯侵犯著作权罪，判处有期徒刑三年，并处罚金人民币三十万元；八、被告人余某某犯侵犯著作权罪，判处有期徒刑三年，缓刑三年，并处罚金人民币二十万元；九、被告人李某犯侵犯著作权罪，判处有期徒刑三年，缓刑三年，并处罚金人民币二十万元；十、违法所得予以追缴，扣押在案的侵权商品及供犯罪所用的本人财物等予以没收。宣判后，被告人李某某、闫某某、张某、王某乙、杜某甲、吕某某提出上诉。上海市高级人民法院于2020年12月29日作出（2020）沪刑终105号刑事裁定，驳回上诉，维持原判。

裁判要旨

1. 权利人设计创作的具有独创性的拼装积木玩具，其中包装、图册上的平面图案以及由积木颗粒搭建完成的立体模型具有独创性及独特的审美意义，属于我国《中华人民共和国著作权法》所保护的美术作品。
2. 未经权利人许可复制发行美术作品数额达到刑法及司法解释规定的标准，构成侵犯著作权罪。区别侵犯著作权的“发行”行为与销售侵权复制品罪的“销售”行为，需结合案件中行为人与复制生产商是否具有紧密联系综合考量。

裁判理由

法院生效裁判认为：关于某公司被侵权拼装玩具是否属于美术作品的问题。本案中，被侵权的拼装立体模型共计663款，这些立体模型所承载的表达，均系某公司独立创作，具有独创性及独特的审美意义，故拼装完成的立体模型均属于我国《中华人民共和国著作权法》所保护的美术作品范畴。此外，《中华人民共和国著作权法》第二条第二款规定：“外国人、无国籍人的作品根据其作者所属国或者经常居住地国同中国签订的协议或者共同参加的国际条约享有的著作权，受本法保护。”某公司是涉案美术作品的著作权人，其所属国为丹麦，丹麦是《保护文学和艺术作品伯尔尼公约》和《世界版权公约》成员国，我国于1992年加入该两公约。基于我国法律及上述国际公约规定，涉案的某公司美术作品受我国法律保护。

关于李某某等人侵犯著作权犯罪的非法经营数额的问题。结合会计鉴定意见书及相关证据，认定李某某等人侵犯著作权犯罪的非法经营数额为3.3亿余元正确，应予确认。一方面，

本案选取同型号已售侵权产品最低单价乘以实际销售出货的数量或者待销售侵权产品数量, 计算得出的非法经营数额有利于被告人, 且于法有据; 另一方面, 李某某等人自2015年开始复制乐高玩具, 而本案非法经营数额的计算时段仅为2017年9月11日至案发, 实质上也是作了有利于被告人的认定。此外, 李某某及其辩护人未就退货单和客户返利情况提供相关证据, 故相关上诉理由和辩护意见无事实依据。

关于本案是否属于广东某科技股份有限公司单位犯罪的问题。根据《中华人民共和国刑法》及《最高人民法院关于审理单位犯罪案件具体应用法律若干问题的解释》(法释〔1999〕14号)的规定, 以单位名义实施犯罪, 违法所得归单位所有的, 是单位犯罪。结合在案事实, 本案不属于广东某科技股份有限公司实施的单位犯罪, 而系李某某等人结伙实施的共同犯罪。首先, 从生产销售环节看, 虽然上诉人李某某担任广东某科技股份有限公司主要负责人, 复刻乐高玩具由其决定, 但复制乐高玩具的乐拼玩具主要由某甲玩具厂生产, 并以某乙玩具厂名义对外销售, 而非以广东某科技股份有限公司名义进行生产销售。其次, 从银行账户明细看, 生产销售乐拼玩具的收支均通过杜某乙、谢某某的个人账户进出, 账户款项用于支付给个人及以现金方式支取, 并未与广东某科技股份有限公司发生资金往来, 相关违法所得亦不归属广东某科技股份有限公司, 故广东某科技股份有限公司不是本案犯罪主体。此外, 涉案的某甲玩具厂已于2016年7月26日被注销, 不再具有单位主体资格。涉案的某乙玩具厂, 设立后主要生产销售涉案的乐拼玩具, 不以单位犯罪论处。况且, 某甲玩具厂系个体工商户。故此, 某甲玩具厂、某乙玩具厂也不能作为本案犯罪主体。

关于对杜某甲以侵犯著作权罪定罪处罚是否准确的问题。结合在案证据, 原判对杜某甲以侵犯著作权罪定罪处罚准确。首先, 杜某甲离职后作为经销商之一, 以营利为目的, 在销售复制乐高玩具的乐拼玩具期间, 一方面积极向某甲玩具厂了解生产情况并定制所需的型号玩具; 另一方面还作为经销商通过批发等方式销售乐拼玩具, 销售金额达621万余元, 其行为属于侵犯著作权罪中的发行行为, 应以侵犯著作权罪定罪处罚。其次, 杜某甲离职前较长时间且较深地参与了本案复制乐高玩具的侵犯著作权行为, 理应承担相应的法律责任; 离职后即作为经销商之一, 以营利为目的销售复制乐高玩具的乐拼玩具, 其离职前的复制行为和离职后的销售行为, 在主观故意和客观行为上均具有明确的连续性, 应进行整体评判, 其行为符合侵犯著作权罪的构成要件。

B.涉“某某影视字幕组”侵犯著作权罪案 ——侵犯著作权罪中“未经著作权人许可”的认定

当事人

梁某某、王某甲等十五人

案号

上海市第三中级人民法院 (2021) 沪03刑初101号、上海市杨浦区人民法院 (2021) 沪0110刑初826号

合议庭成员

高卫萍 | 程亭亭 | 陆金华

刘惠珠 | 白婷婷 | 吴奎丽

关键词

刑事 侵犯著作权罪 网络传播 以营利为目的 未经许可

相关法律规定

- 《中华人民共和国刑法》第217条第1项
- 《最高人民法院、最高人民检察院关于办理侵犯知识产权刑事案件具体应用法律若干问题的解释》第5条第2款第1项、第11条
- 《最高人民法院、最高人民检察院关于办理侵犯知识产权刑事案件具体应用法律若干问题的解释（二）》第1条
- 《最高人民法院、最高人民检察院关于办理侵犯知识产权刑事案件具体应用法律若干问题的解释（三）》第2条第2款

基本案情

自2018年起，被告人梁某某先后成立武汉甲科技有限公司、武汉乙科技有限公司，指使被告人王某甲聘用被告人万某某、徐某、熊某、姜某某、田某、温某、文某、王某乙、胡某某、阳某某等人作为技术、运营人员，开发、运营“某某影视字幕组”网站及Android、IOS、Windows、MacOSX、TV等客户端；被告人梁某某又聘用被告人谢某甲等人组织翻译人员，从境外网站下载未经授权的影视作品，翻译、制作、上传至相关服务器，通过所经营的“某某影视字幕组”网站及相关客户端向用户提供免费在线观看和下载。期间，被告人梁某某还以接受“捐赠”的名义通过“某某影视字幕组”网站及客户端收取会员费；指使被告人谢某乙以广西三江县某科技有限公司等公司的名义，对外招揽广告并收取广告费用；指使被告人丛某某对外销售拷贝有未授权影视作品的移动硬盘。经鉴定及审计，“某某影视字幕组”网站及相关客户端内共有未授权影视作品32,824部，会员数量共计683万余人；自2018年1月至案发，上述各渠道非法经营数额总计人民币1,200余万元，其中，被告人阳某某、胡某某任职期间的非法经营数额分别为200余万元、400余万元。

2021年1月6日,被告人梁某某、王某甲等13名被告人被抓获到案;2021年4月19日,被告人胡某某、阳某某主动至公安机关投案。十五名被告人到案后均如实供述了犯罪事实。

上海市第三中级人民法院于2021年11月22日作出(2021)沪03刑初101号刑事判决:一、被告人梁某某犯侵犯著作权罪,判处有期徒刑三年六个月,并处罚金人民币一百五十万元;二、违法所得予以追缴,扣押在案的供犯罪所用的本人财物等予以没收。上海市杨浦区人民法院于2021年11月22日作出(2021)沪0110刑初826号刑事判决:一、被告人王某甲犯侵犯著作权罪,判处有期徒刑三年,缓刑三年,并处罚金人民币三十五万元;二、被告人万某某犯侵犯著作权罪,判处有期徒刑二年六个月,缓刑二年六个月,并处罚金人民币三十三万元;三、被告人姜某某犯侵犯著作权罪,判处有期徒刑二年六个月,缓刑二年六个月,并处罚金人民币三十万元;四、被告人田某犯侵犯著作权罪,判处有期徒刑二年六个月,缓刑二年六个月,并处罚金人民币二十五万元;五、被告人熊某犯侵犯著作权罪,判处有期徒刑二年六个月,缓刑二年六个月,并处罚金人民币三十一万元;六、被告人王某乙犯侵犯著作权罪,判处有期徒刑二年六个月,缓刑二年六个月,并处罚金人民币十二万元;七、被告人谢某乙犯侵犯著作权罪,判处有期徒刑二年六个月,缓刑二年六个月,并处罚金人民币五万元;八、被告人谢某甲犯侵犯著作权罪,判处有期徒刑二年,缓刑二年,并处罚金人民币九万元;九、被告人温某犯侵犯著作权罪,判处有期徒刑二年,缓刑二年,并处罚金人民币十二万元;十、被告人徐某犯侵犯著作权罪,判处有期徒刑二年,缓刑二年,并处罚金人民币十三万元;十一、被告人文某犯侵犯著作权罪,判处有期徒刑二年,缓刑二年,并处罚金人民币十七万元;十二、被告人阳某某犯侵犯著作权罪,判处有期徒刑二年,缓刑二年,并处罚金人民币十二万元;十三、被告人丛某某犯侵犯著作权罪,判处有期徒刑二年,缓刑二年,并处罚金人民币四万元;十四、被告人胡某某犯侵犯著作权罪,判处有期徒刑一年六个月,缓刑一年六个月,并处罚金人民币九万元;十五、违法所得予以追缴,查获的供犯罪所用的本人财物予以没收。宣判后,被告人梁某某、王某甲等十五名被告人均未提出上诉。

裁判要旨

在涉案作品众多且权利人分散的侵犯著作权罪案件中,因与涉案作品相关的著作权证明文书难以全部取得,故若在案证据能够证明涉案作品的传播属于不具备相应传播资质的非法传播,且侵权人不能提供获得著作权人许可的相关证据材料的,可以认定为侵犯著作权罪规定的“未经著作权人许可”。

裁判理由

法院生效裁判认为:综合控辩双方的争议焦点,综合评判如下:

一、关于未经授权的影视作品的数量及非法经营数额的认定问题。《最高人民法院、最高人民检察院关于办理侵犯知识产权刑事案件具体应用法律若干问题的解释(三)》第二条规定,在涉案作品、录音制品种类众多且权利人分散的案件中,有证据证明涉案复制品系非法出版、复制发行,且出版者、复制发行者不能提供获得著作权人、录音制作者许可的相关证据材料的,可以认定为刑法第二百一十七条规定的“未经著作权人许可”“未经录音制作者许可”。本案中,首先,国家广播电视总局媒体融合发展司出具的《信息网络传播视听节目许可证》持证机构目录证实,“某某影视字幕组”网站及客户端不具备信息网络传播视听节目许可。其次,证人朴某某的证言、控告书、授权委托书、著作权登记证书及中国版权保护中心版权鉴定委员会出具的鉴定报告、韩国著作权委员会(海外著作权认证机构)北京代表处出具的报告书、美国电影协会北京代表处出具的证明材料等证据,证实涉案影

视作品未经著作权人授权,且与著作权人作品实质性相同的事实。再次,上海某某会计师事务所从“某某影视字幕组”的服务器上保全的合计52,683部影片中,去除重复的影片,不涉及版权、公开播放的讲座、演讲以及超过50年著作权有效期限的影片后,统计得出侵犯版权的影片数量为32,824部,非法经营额共计1,200余万元。最后,被告人梁某某无法提供其获得著作权人许可的相关证据材料,且对涉案影视作品均未获得授权供认不讳。综上,起诉指控涉案未经授权的影视作品共计32,824部以及非法经营额共计1,200余万元的事实清楚,证据确实充分。

二、关于社会危害性的问题。虽然单纯的翻译行为不构成侵权,但是被告人在明知未取得授权许可的情况下,将未经授权的影视作品制作、上传至相关服务器并提供用户在线观看及下载,其行为在侵害他人著作权的同时,还扰乱了国家著作权的管理制度,属于《中华人民共和国刑法》第二百一十七条侵犯著作权罪中的“复制发行”行为。根据被告人梁某某的供述,有捐赠意向的会员通过捐赠后,能得到包括可以在线观看、免除部分或全部广告、不同点播次数等会员权益。因此梁某某以捐赠名义收取费用,其实质类似于会员充值。梁某某等人以收取会员费、广告费以及销售拷贝有未授权影视作品的移动硬盘的方式,在不到三年的时间里,非法经营数额达1,200余万元,涉案未经授权的影视作品共计32,824部,会员数量共计约683万,属于有其他特别严重情节,具有较大的社会危害性。

综上,被告人梁某某、王某甲等十五名被告人结伙,以营利为目的,未经著作权人许可,复制发行他人作品,属于有其他特别严重情节,其行为均已构成侵犯著作权罪,依法均应予惩处。综合考虑本案的犯罪事实、性质、情节和对社会的危害程度,依法作出如上裁判。

C.涉“蓝牙耳机电子弹窗”假冒注册商标罪案 ——以无线通信技术展示商标的行为属于商标使用行为

当事人

马某华等

案号

广东省深圳市中级人民法院 (2022) 粤03刑终514号

合议庭成员

蒋筱熙 | 骆丽莉 | 王媛媛

关键词

刑事 假冒注册商标罪 物联网 商标使用

相关法律规定

- 《中华人民共和国刑法》第213条
- 《最高人民法院、最高人民检察院关于办理侵犯知识产权刑事案件具体应用法律若干问题的解释》第8条第2款

基本案情

法院经审理查明：第17636443号“AirPods”、第41866814号“AirPods Pro”、第12611326号“DESIGNED BY APPLE IN CALIFORNIA”等商标注册人为苹果公司，核定使用商品第9类，包括耳塞机、耳机等，各商标均在合法保护期内。

被告人罗某洲、马某华分别系“昇某公司”和“聆某公司”的法定代表人。2020年9月，两人经密谋后以各占50%股份的使用方式，借助两公司场所、人员及生产设施，合作组装假冒某果注册商标的蓝牙耳机并对外销售牟利。组装生产的蓝牙耳机成品没有商标标识，但与某果手机配对时会出现“Airpods”或“Airpods Pro”的电子弹窗。

侦查机关在昇某公司住所地抓获罗某洲、李某、王某汝、向某等人，并查获疑似假冒二代某果蓝牙耳机1900个，疑似假冒三代某果蓝牙耳机6700个（均无商标标识，但连接某果手机后会显示“Airpods”或“Airpods Pro”标识的弹窗）等物品。

在聆某公司生产场地抓获马某华、梁某意、吕某芳、明某等人，并查获1546个包装完整的疑似假冒某果三代蓝牙耳机（有某果商标，连接后弹窗显示“Airpods Pro”）、319个未包装的疑似假冒某果三代蓝牙耳机（外包装有某果商标，连接后弹窗显示“Airpods Pro”）、5600个未包装的疑似假冒某果三代蓝牙耳机（无某果商标，连接后弹窗显示“Airpods Pro”）、100个某果牌蓝牙耳机包装盒、2163个未包装的疑似假冒某果二代蓝牙耳机（包装有某果商标，连接某果手机后弹窗显示“Airpods”）、100个完整包装的疑似假冒某果二代蓝牙耳机（充

电仓上有DESIGNED BY APPLE IN CALIFORNIA商标, 包装盒上有标识, 耳机连接后弹窗显示“Airpods”)及测试机、测试仪、电烙铁、原材料, 电脑主机、单据、销售价格清单等物品。

涉案假冒某果蓝牙耳机及包装无论是否印有某果注册商标, 经蓝牙连接某果手机后均弹窗显示“Airpods”或“Airpods Pro”标识。

深圳市龙岗区人民法院于2022年2月24日作出(2021)粤0307刑初1686号刑事判决: 一、被告人马某华犯假冒注册商标罪, 判处有期徒刑六年, 并处罚金人民币六百八十万元; 二、被告人罗某洲犯假冒注册商标罪, 判处有期徒刑四年, 并处罚金人民币四百万元; 三、被告人明某犯假冒注册商标罪, 判处有期徒刑二年, 并处罚金人民币十万元; 四、被告人向某犯假冒注册商标罪, 判处有期徒刑二年, 缓刑二年, 并处罚金人民币十万元; 五、被告人李某犯假冒注册商标罪, 判处有期徒刑二年, 缓刑二年, 并处罚金人民币十万元; 六、被告人王某汝犯假冒注册商标罪, 判处有期徒刑二年, 缓刑二年, 并处罚金人民币十万元; 七、被告人吕某芳犯假冒注册商标罪, 判处有期徒刑二年, 缓刑二年, 并处罚金人民币十万元; 八、被告人梁某意犯假冒注册商标罪, 判处有期徒刑二年, 缓刑二年, 并处罚金人民币十万元。广东省深圳市中级人民法院于2022年12月28日作出(2022)粤03刑终514号刑事裁定, 驳回上诉、维持原判。

裁判要旨

1. 假冒注册商标犯罪中的“使用”不限于将商标用于商品、商品包装或者容器等有形载体中, 只要是在商业活动中将相关商标标识用于识别商品来源的行为均构成商标性使用。判断是否构成假冒注册商标罪, 应当综合被告人的主观意图、使用方式和相关公众的认知来判断是否在商业活动中造成消费者的混淆和误认。
2. 侵权产品通过蓝牙技术建立通信环境的无线技术连接, 每对配对设备之间进行蓝牙通讯时, 由手机终端进行查找发起配对, 建链成功后双方即进行信息交换和通信, 实现智能化识别等。如果消费者需要通过蓝牙配对建链寻找设备, 对产品来源的识别主要通过设备查找正确的配对项识别产品来源实现产品功能, 这一过程强调蓝牙设备名称与消费者的识别之间的关系使消费者误认为其链接使用的产品是注册商标专用权人制造, 造成对产品来源的混淆和误认, 构成假冒注册商标罪。

裁判理由

法院生效裁判认为: 关于上诉人、原审被告制造的蓝牙耳机链接某果手机配对弹窗出现“Airpods 或者Airpods Pro”等注册商标的涉案蓝牙耳机的行为是否属于《中华人民共和国刑法》第二百一十三条规定的“使用”。

《最高人民法院、最高人民检察院关于办理侵犯知识产权刑事案件具体应用法律若干问题的解释》(法释〔2004〕19号)第八条第二款规定, 刑法第二百一十三条规定的“使用”, 是指将注册商标或者假冒的注册商标用于商品、商品包装或者容器以及产品说明书、商品交易文书, 或者将注册商标或者假冒的注册商标用于广告宣传、展览以及其他商业活动等行为。商标识别商品来源的功能或者说商标具有识别性是商标的基本和首要功能, 生产经营者使用商标标明商品的来源, 消费者通过商标来区别同类商品, 了解商品, 做出选择。根据上述司法解释的规定, 假冒注册商标犯罪中“使用”不限于将商标用于商品、商品包装或者容器及交易文书或广告宣传等有形载体中, 只要是在商业活动中用于识别商品来源的行为均构成商标性使用。是否认定为商标性使用关键在于其在商标使用方式上, 是否在商业活

动中破坏了注册商标的识别功能造成消费者的混淆和误认，应当综合被告人的主观意图、使用方式、产品的行业惯例和相关公众的认知来判断。

蓝牙技术是一种无线数据和语音通信开放的全球规范，它是基于低成本的近距离无线连接，为固定和移动设备建立通信环境的无线技术连接，可以使便携移动设备能够不需要电缆就能以无线方式接入互联网。蓝牙技术规定每一对设备之间进行蓝牙通讯时，必须一个为主角色，另一个为从角色才能进行通信。通信时，由电子设备终端进行查找发起配对，建链成功后双方即可收发数据。本案侵权产品是通过物理的“物”物之间通过蓝牙技术相连。物联网时代带来了新的商标使用方式和新的信息传播途径，通过信息传感设备，按照约定的协议，将任何物体与网络相连接，物体通过信息传播媒介进行信息交换和通信，以实现智能化识别、定位、跟踪等。本案中各上诉人、原审被告人生生产的部分蓝牙耳机虽然在耳机外包装或产品上没有附着注册商标标识，但在生产制造过程中将蓝牙耳机的蓝牙协议的设备名称设置为“AirPods”，涉案蓝牙耳机在连接电子设备手机终端时会在“设置”界面下的手机电子弹窗显示“Airpods”或者“Airpods Pro”标识。对于蓝牙耳机的消费者而言，由于需要通过蓝牙配对建链寻找设备，对蓝牙耳机产品来源的识别不仅仅是通过产品包装，更主要是通过设备查找正确的配对项实现蓝牙耳机功能。涉案耳机通过寻找配对激活过程中向消费者展示的是某果公司享有注册商标专用权的“Airpods”或者“Airpods Pro”标识，消费者通过蓝牙配对成功显示的“Airpods”或者“Airpods Pro”字样来识别其购买使用的蓝牙耳机产品来源，被告人组装生产的产品在连接手机终端设备展示某果公司享有注册商标专用权的“Airpods”或者“Airpods Pro”标识，使消费者误认为其使用的产品是某果公司制造，造成对产品来源的混淆和误认。

综合对侵权产品生产、销售的主观意图、产品实际使用方式可以认定，上诉人及原审被告入等共同故意制造和销售侵权产品，各上诉人、原审被告入制造的蓝牙耳机链接手机配对弹窗出现“Airpods”或者“Airpods Pro”的行为属于假冒注册商标罪中的“使用”行为。罗某洲、马某华及其各自辩护人对此提出的异议理据不足，不予采纳。

第八章 其他涉知识产权案件

- A. “QQ企鹅”外观设计专利权恶意诉讼案
——恶意诉讼损害责任纠纷中“恶意”和“损害责任”的审查认定
- B. “TELEMATRIX”商标权恶意诉讼案
——恶意诉讼损害责任纠纷中主观过错的判断标准
- C. “靶式流量计”实用新型专利权恶意诉讼案
——权利终止情形下恶意提起知识产权诉讼的认定
- D. “循环水处理设备”发明专利财产损害赔偿案
——专利权权属争议期间不履行善良管理义务的损害赔偿责任

A. “QQ企鹅”外观设计专利权恶意诉讼案 ——恶意诉讼损害责任纠纷中“恶意”和“损害责任”的审查认定

当事人

深圳市某某计算机系统有限公司诉谭某

案号

广东省高级人民法院 (2019) 粤民终407号

合议庭成员

王静 | 邓燕辉 | 郑颖

关键词

民事 恶意诉讼 损害责任 过错 损失

相关法律规定

- 《中华人民共和国侵权责任法》第6条
- 《中华人民共和国专利法》第47条

基本案情

深圳市某某计算机系统有限公司（以下简称深圳某某公司）诉称：深圳某某公司是“QQ企鹅及图”系列美术作品的著作权以及“企鹅图形”注册商标专用权的权利人。谭某明知深圳某某公司拥有“QQ企鹅及图”形象的在先权利，仍恶意注册“音箱（Xzeit迷你企鹅型）”外观设计专利，在深圳某某公司起诉谭某等构成商标侵权和著作权侵权后，仍拒不撤回其企鹅音箱外观设计专利的申请，反而恶意提起侵犯外观设计专利权诉讼，指控深圳某某公司侵害其外观设计专利权。谭某恶意诉讼行为，给深圳某某公司造成了包括商誉损失、律师代理费、差旅费、预期可得利益等在内一系列损失。深圳某某公司请求法院判令：谭某向深圳某某公司赔偿因其恶意提起知识产权诉讼给深圳某某公司造成的包括律师代理费、差旅费、商誉损失、预期可得利益等在内的各项经济损失以及深圳某某公司因本案维权支出的包括律师费、公证费在内的合理费用共计200万元，并向深圳某某公司赔礼道歉，消除影响，诉讼费由谭某承担。

谭某辩称：本案当事人双方在（2011）深福法知民初字第348、349号两案中最终达成调解，根据司法解释的相关规定，因调解或和解作出妥协和认可的事实不能作为后续诉讼中对其不利的证据。谭某依据外观设计专利证书提起的诉讼是合法维权行为。请求依法驳回深圳某某公司诉讼请求。

法院经审理查明：深圳某某公司拥有多项“QQ企鹅”系列美术作品的著作权以及注册商标专用权。谭某为傲某科技（深圳）有限公司（以下简称傲某公司）的股东及董事。2008年12月谭某向国家知识产权局申请“音箱（Xzeit迷你企鹅型）”外观设计专利，并获得授权。

2011年3月,深圳某某公司以谭某、傲某公司销售的QQ迷你音箱侵害其著作权和商标权为由提起诉讼。后双方就该两案达成和解,谭某同意停止侵权并支付赔偿款2.5万元。谭某同时承诺,将于一个月内向国家知识产权局撤回其企鹅音箱外观设计专利的申请。后谭某并未履行承诺,且持续缴纳该外观设计年费至2015年12月。此后,深圳某某公司与深圳中某某科技有限公司(以下简称中某某公司)合作生产、销售企鹅外形音箱。2016年2月,谭某以深圳某某公司及中某某公司侵犯其外观设计专利权为由,提起诉讼,要求法院确认深圳某某公司及中某某公司侵权并判令深圳某某公司及中科公司支付专利使用费90万元([案号:(2016)粤03民初236号,以下简称236号案])。深圳某某公司随即针对谭某的外观设计专利提出无效宣告请求,原国家知识产权局专利复审委员会经审查宣告该外观设计专利权无效。一审法院遂裁定驳回谭某的起诉。深圳某某公司据此提起本案诉讼。

广东省深圳市中级人民法院判决:谭某于判决生效之日起十日内赔偿深圳某某公司经济损失及维权合理开支共计50万元;驳回深圳某某公司的其他诉讼请求。宣判后,谭某提出上诉。广东省高级人民法院于2019年6月10日作出(2019)粤民终407号民事判决:驳回上诉,维持原判。

裁判要旨

1. 恶意提起知识产权诉讼本质上属于侵权行为,判断当事人是否具有恶意提起知识产权诉讼的主观过错,应坚持主客观相结合的标准,综合考虑知识产权权利基础以及当事人判断能力、相关行为、诉讼时机、抗辩理由等多方面因素。
2. 因知识产权恶意诉讼侵权行为造成的损害既包括积极的损害,也包括消极损害,即“逸失利益”,如果有证据证明消极损害确实存在,在确定赔偿数额时可作为情节一并予以考虑。

裁判理由

法院生效裁判认为:恶意提起知识产权诉讼本质上属于侵权行为。本案中,判断谭某针对深圳某某公司提起专利诉讼的行为是否构成恶意诉讼,应从谭某该行为是否构成侵权行为进行分析。首先,关于谭某是否存在过错的问题。从权利基础分析,深圳某某公司的QQ企鹅形象具有较高的知名度。谭某利用外观设计专利不进行实质审查的制度,将他人拥有在先权利的QQ企鹅形象申请为外观设计专利,其涉案专利权缺乏正当的权利基础。从主观状态分析,谭某在起诉前曾被深圳某某公司以侵害其QQ企鹅形象著作权和商标权起诉,双方达成和解,谭某同意停止侵权并赔偿损失,说明谭某主观上早已知悉深圳某某公司拥有QQ企鹅形象的在先权利,且知悉其外观设计专利缺乏合法权利基础。此外,谭某在申请涉案专利及提起专利诉讼时,均聘请了专利代理机构和律师,具有判断其外观设计专利是否符合法律规定的授权要件的能力。从谭某的诉讼行为分析,谭某在明知其涉案专利权不具备合法权利基础的情况下,仍起诉深圳某某公司侵害其涉案专利权,在深圳某某公司对涉案专利提起无效宣告程序后,仍继续参与无效宣告程序和专利诉讼程序,而且在上述程序中,谭某均委托了专业律师参与相关程序,能够预见其行为的结果,该行为具有损害他人权益的故意。综合考虑谭某提起专利诉讼的权利基础、对涉案专利的判断能力、在诉讼相关行为中的表现及抗辩理由,谭某明知其诉讼请求缺乏正当权利基础,仍不正当地提起专利诉讼,违反了诚实信用原则,主观上具有恶意,损害了深圳某某公司的合法权益,构成恶意提起知识产权诉讼。

关于赔偿数额。因专利权人的恶意给他人造成的损失应包括直接损失和间接损失。在损失的具体数额无法确定时，应结合侵权情节及恶意程度酌定赔偿数额。本案中，法院支持了深圳某某公司的合理维权开支。深圳某某公司与中科公司的合作的确会因恶意诉讼受到一定影响，该情节可作为确定赔偿数额的参考因素。综合考虑QQ企鹅的知名度较高，谭某主观恶意明显等因素，一审判决金额并无不当，予以维持。

B. “TELEMATRIX” 商标权恶意诉讼案 ——恶意诉讼损害责任纠纷中主观过错的判断标准

当事人

江苏某数码公司诉山东某科技公司

案号

最高人民法院 (2019) 最高法民申366号

合议庭成员

佟姝 | 毛立华 | 吴蓉

关键词

民事 恶意诉讼 损害赔偿 诉讼目的 主观过错

相关法律规定

- 《中华人民共和国民事诉讼法》第13条
- 《中华人民共和国商标法》(2001年修正) 第31条

基本案情

案外人T某公司于1999年在欧盟注册了第9类电话机商品上的“TELEMATRIX”商标(即涉案商标),后赛某公司兼并T某公司。1998年起,赛某公司开始委托山东某科技公司加工酒店专用电话。2006年起,赛某公司开始委托江苏某数码公司加工TELEMATRIX品牌酒店电话。后赛某公司变更企业名称为美某公司。2004年11月12日,山东某科技公司的前身充某公司在第9类电话机商品上提出涉案商标的注册申请,该商标于2007年5月28日被核准注册。2008年起,山东某科技公司先后对包括江苏某数码公司在内的赛某公司TELEMATRIX品牌电话的代工商提起商标侵权之诉。2010年9月6日,美某公司的关联企业北京美某公司对涉案商标提出撤销申请。2013年7月22日,原国家工商行政管理总局商标评审委员会(以下简称商标评审委员会)作出裁定认为:“TELEMATRIX”电话机商品于2002年进入中国市场,迄今已经具有一定的知名度。山东某科技公司自1998年起即与美某公司的前身合作并为其加工生产酒店专用电话机,作为同业经营者,山东某科技公司在同类商品上申请注册与美某公司在先商标完全相同的涉案商标,构成“以不正当手段抢先注册他人已经使用并有一定影响的商标”之情形,遂对涉案商标予以撤销。后经三级法院的司法审查程序,均对撤销结论予以维持。2016年4月26日,江苏某数码公司向江苏省无锡市中级人民法院提起本案诉讼,认为山东某科技公司对其提起商标侵权之诉的行为构成恶意诉讼。

江苏省无锡市中级人民法院于2017年7月26日作出(2016)苏02民初71号民事判决:判令山东某科技公司承担消除影响、赔偿经济损失100万元等侵权责任。宣判后,山东某科技公司提出上诉。江苏省高级人民法院于2018年9月28日作出(2017)苏民终1874号民事判决,驳回上诉、维持原判。山东某科技公司不服二审判决,向最高人民法院提起再审申请。最高

人民法院于2019年12月12日作出（2019）最高法民申366号民事裁定，驳回山东某科技公司的再审申请。

裁判要旨

在因恶意提起知识产权诉讼损害责任纠纷中，判断当事人提起知识产权侵权之诉是否具有主观恶意，应当考虑当事人的权利基础及其对该种权利基础的认识能力、当事人提起侵权诉讼的目的等因素。

裁判理由

最高人民法院再审审查认为，本案所涉为恶意提起知识产权诉讼损害责任纠纷，其本质上为侵权责任纠纷的一种具体类型。山东某科技公司在本案中应当承担侵权责任的前提是，山东某科技公司对江苏某数码公司提起商标侵权之诉的行为，属于恶意提起知识产权诉讼。据此，应当从侵害行为、损害结果、侵害行为与损害结果之间的因果关系以及行为人的主观过错等几方面进行审查。民事诉讼是知识产权人维护自身权益的重要途径，人民法院应当依法保障知识产权人在其权利范围内获得充分和严格的保护。但民事行为的实施、民事诉讼程序的启动，同样应当遵循诚实信用、禁止权利滥用的原则。判断江苏某数码公司提起商标侵权诉讼是否具有主观恶意，应当考虑如下因素：第一，山东某科技公司的权利基础及其对该种权利基础的认识能力。商标评审委员会及三级法院均认定，山东某科技公司注册涉案商标的行为，属于“以不正当手段抢先注册他人在先使用并有一定影响的商标”，并予以撤销。据此，涉案商标权自始不具有正当性基础，且在权利取得之初，山东某科技公司对于其权利基础的正当性应当具备相应的认识能力。第二，山东某科技公司对江苏某数码公司提起商标侵权诉讼的目的。经查，山东某科技公司与江苏某数码公司曾先后接受赛某公司的委托，为其加工酒店电话机产品，系具有竞争关系的同行业经营者。结合山东某科技公司的涉案商标为“抢注他人在先使用并有一定影响的商标”、山东某科技公司宣传使用的情况以及其先后对美某公司及其代工企业提起商标侵权之诉等事实，难以认定山东某科技公司是以依法维权为目的，正当行使其诉讼权利。一审、二审法院认定山东某科技公司对江苏某数码公司提起侵权诉讼的行为构成恶意诉讼，该结论于法有据，在综合考虑江苏某数码公司现实的经济损失、预期利润的损失以及公司的主观恶意等因素，酌情确定山东某科技公司在本案中应当承担的赔偿责任的具体数额亦属得当。

C. “靶式流量计”实用新型专利权恶意诉讼案 ——权利终止情形下恶意提起知识产权诉讼的认定

当事人

某科技公司诉某仪器仪表公司

案号

最高人民法院（2022）最高法知民终1861号

合议庭成员

徐卓斌 | 颜峰 | 徐飞

关键词

民事 恶意诉讼 损害赔偿 明知 专利权管理义务

相关法律规定

— 《中华人民共和国民法典》第120条、第179条、第1165条、第1184条

基本案情

某科技公司诉称：某仪器仪表公司在明知“内置式数显靶式流量计”实用新型专利权被终止的情况下，恶意提起第三次、第四次知识产权诉讼，损害了某科技公司的合法权益。故请求判令：某仪器仪表公司赔礼道歉并赔偿经济损失及维权合理开支合计50万元。

某仪器仪表公司辩称：其不构成恶意诉讼，第三、四次诉讼是因为最高人民检察院再次确认某科技公司构成侵权，某仪器仪表公司方才据此向某科技公司主张侵权赔偿，诉讼中并未做出有损某科技公司合法权益的行为，故无需承担任何责任。

法院经审理查明：某仪器仪表公司于2000年11月1日获得涉案专利的授权。2006年3月1日，国家知识产权局的官方网站刊登了涉案专利权因未缴年费而终止的公告。2006年5月23日，某仪器仪表公司以其在2005年发现某科技公司、某机械公司生产、销售的“智能靶式流量计”侵犯了包括涉案专利权在内的实用新型专利权为由，向福建省泉州市中级人民法院提起诉讼（以下简称第一次诉讼）。2006年11月7日，福建省泉州市中级人民法院作出（2006）泉民初字第230号民事判决，认为被诉侵权产品未落入前述专利权保护范围，驳回某仪器仪表公司全部诉讼请求。某仪器仪表公司不服，提起上诉。2008年3月20日，福建省高级人民法院作出（2007）闽民终字第23号民事判决，以被诉侵权产品未再现涉案专利全部必要技术特征为由，驳回某仪器仪表公司的上诉、维持原判。某仪器仪表公司不服，向最高人民法院申请再审。2008年11月14日，最高人民法院作出（2008）民申字第504号民事裁定，指令福建省高级人民法院进行再审。2014年12月20日，福建省高级人民法院作出（2009）闽民再终字第4号民事判决，认为被诉侵权产品落入涉案专利权保护范围，某科技公司的行为构成专利侵权，故判决撤销一审判决，某科技公司向某仪器仪表公司赔偿12.5万元。

2015年12月25日,某仪器仪表公司向福建省泉州市中级人民法院提起诉讼(以下简称第二次诉讼),认为前述再审判决确定的是2006年5月起诉时的证据,因某科技公司在2006年5月至2010年期间仍大量生产、销售侵害涉案专利权的产品,故诉求某科技公司赔偿其经济损失350万元。2016年5月23日,某仪器仪表公司申请撤诉。福建省泉州市中级人民法院于2016年5月25日作出(2016)闽05民初17号之一民事裁定书,准许某仪器仪表公司撤回起诉。

2019年5月27日,某仪器仪表公司向福建省福州市中级人民法院提起诉讼(以下简称第三次诉讼),以第一次诉讼审判监督程序中最高人民检察院认定被诉侵权产品实质上构成专利侵权,某科技公司在2006年5月至2010年期间仍大量生产、销售侵害涉案专利权的产品为由,诉请某科技公司赔偿其经济损失450万元。2020年6月4日,某仪器仪表公司申请撤诉。

2020年7月8日,某仪器仪表公司以与第三次诉讼相同诉请和事由向一审法院提起诉讼(以下简称第四次诉讼),一审法院于2021年2月8日作出(2020)闽02民初963号民事判决,驳回某仪器仪表公司全部诉讼请求。某仪器仪表公司不服,上诉至最高人民法院,但未依法缴纳受理费。最高人民法院于2021年6月9日作出(2021)最高法知民终921号民事裁定,认定某仪器仪表公司在缴费期间内未缴纳上诉案件受理费,本案按自动撤回上诉处理。

某科技公司分别于2006年6月12日和2016年4月29日就涉案专利权提出宣告无效的请求,国家知识产权局均作出维持涉案专利权有效的决定。2017年1月4日,因不服国家知识产权局终止涉案专利权,某仪器仪表公司于2017年1月4日向北京知识产权法院提起行政诉讼。2018年7月2日,某仪器仪表公司申请撤回起诉。2018年7月6日,北京知识产权法院作出(2017)京73行初31号行政裁定,准许某仪器仪表公司撤回起诉。

福建省厦门市中级人民法院判决:一、某仪器仪表公司赔偿某科技公司经济损失(含合理费用)6万元;二、驳回某科技公司的其他诉讼请求。某仪器仪表公司不服,以涉案的诉讼行为具有合法的权利基础,其主观上不存在恶意为由提出上诉。最高人民法院于2023年10月30日作出(2022)最高法知民终1861号民事判决,驳回上诉、维持原判。

裁判要旨

专利权利人明知涉案专利权已因未缴纳专利年费等原因终止,仍然提起专利侵权诉讼,给他人造成损失的,可以认定构成恶意提起知识产权诉讼。

裁判理由

法院生效裁判认为:审查某仪器仪表公司提起的第三次及第四次诉讼是否构成恶意诉讼,关键在于判断某仪器仪表公司是否明知其起诉缺乏权利基础、事实根据或明知被诉侵权人不构成侵权但仍提起专利侵权诉讼,对于造成实际损害后果是否存在故意。

首先,涉案专利已于2006年3月1日权利终止且该终止状态已经确定,第三次及第四次诉讼明显缺乏权利基础。某仪器仪表公司未依规定缴纳专利年费,涉案专利权于2006年3月1日被国家知识产权局公告终止,该专利已处于失权状态,某仪器仪表公司作为专利权人对此应承担不利后果。某仪器仪表公司虽对国家知识产权局终止涉案专利权的决定不服,并于2017年1月4日向北京知识产权法院提起行政诉讼,但其后又于2018年7月撤回起诉,主动放弃救济机会,涉案专利权已无恢复之可能。虽然某科技公司曾于2006年6月、2016年4月两次针对涉案专利权提起无效宣告请求且国家知识产权局均作出维持有效的决定,但无效程序系对

涉案专利是否具备创造性等作出评价,涉案专利权是否被终止、保护期限是否届满等,均不影响专利权无效宣告程序的启动以及技术方案是否符合授权条件的判断。而且,专利行政机关作出专利技术方案符合授权条件的决定,并不意味着当时的专利权处于有权状态。

其次,某仪器仪表公司知晓其提起第三次及第四次诉讼缺乏权利基础。某仪器仪表公司提起第三次及第四次诉讼系发生在涉案专利权被终止且2017年1月4日提起之行政诉讼撤诉之后,而某仪器仪表公司自认自2016年5月第二次诉讼时已经明知涉案专利权被终止并撤回此次起诉,其第三次及第四次起诉已明显不具有权利基础。并且,某仪器仪表公司提起第三次及第四次诉讼时均委托了专业从事诉讼代理业务的律师,某仪器仪表公司对其诉讼没有权利基础显然具有清晰认知,在如此明显缺乏权利基础的情况下仍然提起专利侵权诉讼,完全可以认定具有追求或者放任使某科技公司受到损失的主观故意。即便如某仪器仪表公司主张,其系依据最高人民检察院《不支持监督申请决定书》提起诉讼,作为专利权人的某仪器仪表公司亦理应知晓最高人民检察院并非专利行政机关,其决定并无授予或恢复专利权之效力,该《不支持监督申请决定书》不应理解为对专利权效力的认定,且该《不支持监督申请决定书》仅针对第一次诉讼,而非对本案双方之间多次专利侵权纠纷的完整评价。

再次,某仪器仪表公司第三次及第四次诉讼的行为造成他人损害。因某仪器仪表公司提起的第三次及第四次诉讼,某科技公司须支出应对诉讼的律师费等费用,某科技公司已举证多次招投标机会中招标方要求不存在知识产权纠纷,可能导致其失去投标机会而造成损失,且某仪器仪表公司在第四次诉讼中对某科技公司采取财产保全措施,亦会给某科技公司造成损失。前述损失均因某仪器仪表公司诉讼而起,属于侵权损害。某仪器仪表公司系明知其起诉缺乏权利基础,但仍提起第三次及第四次诉讼,导致对方当事人损害,对损害后果的发生具有故意,应认定构成恶意诉讼。

需要特别指出的是,涉案专利权因年费少缴而被终止,但其后年度的年费某仪器仪表公司依然缴纳、国家知识产权局依然收取,反映出国家知识产权局相应业务流程衔接有待完善,对于涉案专利权被终止后所收取的年费,可按相关规定通过其他途径处理;其中也反映出专利代理机构可能存在的履行合同义务不当问题,某仪器仪表公司亦可依合同追究其相应的违约责任。

D. “循环水处理设备”发明专利财产损害赔偿案 ——专利权权属争议期间不履行善良管理义务的损害赔偿责任

当事人

广州德某水产设备科技有限公司诉广州宇某水产科技有限公司、南某水产研究所

案号

最高人民法院 (2019) 最高法知民终424号

合议庭成员

刘晓军 | 李自柱 | 唐小妹

关键词

民事 财产损害赔偿 未缴纳专利年费 专利权终止 赔偿损失

相关法律规定

《中华人民共和国侵权责任法》第6条、第26条

基本案情

专利号为200910192778.6、名称为“一种多功能循环水处理设备”发明专利（以下简称涉案专利）的专利权人为南某水产研究所、广州宇某水产科技有限公司（以下简称宇某公司），发明人为姜某平、李某厚、颜某勇。涉案专利申请日为2009年9月28日，授权日为2012年5月30日，因未及时缴费，涉案专利的专利权于2012年9月28日被终止。

广州德某水产设备科技有限公司（以下简称德某公司）认为，姜某平曾是德某公司员工，其离职后成为了宇某公司的股东，李某厚、颜某勇是南某水产研究所的员工。涉案专利是姜某平的职务发明，专利的申请权应该属于德某公司。德某公司曾分别于2010年、2011年就涉案专利申请权纠纷起诉南某水产研究所、宇某公司等，请求判令涉案专利申请权归德某公司所有。涉案专利权因未缴费而终止失效时，相关权属纠纷正在审理中。故德某公司以宇某公司和南某水产研究所故意未缴纳该专利年费，致使该专利权终止失效，给德某公司造成了无法挽回的损失为由诉至广州知识产权法院，请求判令各被告赔偿经济损失及维权合理开支共计150万元。

广州知识产权法院判决：一、宇某公司、南某水产研究所应于本判决发生法律效力之日起十日内赔偿德某公司经济损失及合理维权费用共50万元；二、驳回德某公司的其他诉讼请求。宣判后，宇某公司、南某水产研究所向最高人民法院提起上诉。最高人民法院于2020年4月1日作出（2019）最高法知民终424号民事判决，在变更本案案由的基础上，驳回上诉，维持原判。

裁判要旨

登记的专利权人在专利权权属争议期间负有善意维护专利权效力的义务，因其过错致使专利权终止、无效或者丧失，损害真正权利人合法权益的，构成对真正权利人财产权的侵害，应当承担赔偿损失的民事责任。

裁判理由

法院生效裁判认为：

一、关于本案案由的确定

《中华人民共和国专利法》第十一条第一款规定，发明和实用新型专利权被授予后，除本法另有规定的以外，任何单位或者个人未经专利权人许可，都不得实施其专利，即不得为生产经营目的制造、使用、许诺销售、销售、进口其专利产品，或者使用其专利方法以及使用、许诺销售、销售、进口依照该专利方法直接获得的产品。根据该规定，侵害发明专利权的行为仅限于以生产经营为目的的制造、使用、许诺销售、销售、进口专利产品的行为和使用专利方法以及使用、许诺销售、销售、进口依照该专利方法直接获得的产品行为。也即，《中华人民共和国专利法》实行专利侵权行为法定原则，除法律明确规定为侵害专利权的行为外，其他行为即使与专利权有关，也不属于侵害专利权的行为。在登记的专利权人不是专利技术所有人的情况下，如登记的专利权人故意不缴纳专利年费导致专利权终止失效而给专利技术所有人造成经济损失，那么该损失实际上是与该专利技术有关的财产损失。故意不缴纳专利年费导致专利权终止失效的行为应当属于一般侵权行为，该种案件案由可以确定为财产损害赔偿纠纷。本案中，根据德某公司的主张，其认为南某水产研究所、宇某公司将归其所有的职务发明申请专利，之后却故意不缴纳专利年费导致专利权终止失效，致使该技术进入公有领域，失去了专利权的保护，损害了其本应该基于涉案专利获得的市场独占利益，因此德某公司主张的侵权行为不是侵害专利权的行为，其主张的经济损失实际上是与该专利技术有关的财产损失，故本案应当属于财产损害赔偿纠纷，而非侵害发明专利权纠纷。原审判决将本案案由确定为侵害发明专利权纠纷，显属不当，应予纠正。

二、南某水产研究所、宇某公司是否应当对涉案专利权终止失效承担赔偿责任，应否赔偿德某公司50万元的经济损失与合理费用

诚实信用原则是民法的基本原则，它要求民事主体在民事活动中恪守诺言，诚实不欺，在不损害他人利益和社会利益的前提下追求自己的利益，从而在当事人之间的利益关系和当事人与社会之间的利益关系中实现平衡，并维持市场道德秩序。专利权是经国家行政审查后授予的有期限的知识产权，其在权利保护期内有效存续需要专利权人持续缴纳专利年费、不主动放弃等。当事人无论基于何种原因对专利申请权、专利权权属发生争议时，基于诚实信用原则，登记的专利权人通常应当负有使已经获得授权的专利权维持有效的善良管理责任，包括持续缴纳专利年费等，因为专利权一旦终止失效，专利技术通常情况下即会进入公有领域，从而使专利技术所有人丧失市场独占利益，损害到专利技术所有人的合法权益。登记的专利权人未尽到该善良管理责任，给专利技术所有人造成损失的，应当负有赔偿责任。本案中，在2010年、2011年德某公司已经两次以专利申请权权属纠纷为由起诉南某水产研究所、宇某公司，尤其是德某公司主张涉案发明是职务发明的第二次诉讼正在进行的情况下，作为登记的专利权人，南某水产研究所、宇某公司应当负有在涉案专利授权以后维持其持续有效的善良管理责任，包括持续缴纳专利年费，以避免可能给德某公司造成损害。但南某水

产研究所、宇某公司却未缴纳专利年费，导致涉案专利权于2012年9月28日被终止失效，侵害了德某公司的合法权益，其显然未尽到善良管理责任，违背了诚实信用原则，应当赔偿因此给德某公司造成的损失。对于赔偿损失的具体数额，本案应当根据涉案专利权终止失效时的市场价格确定具体赔偿数额。鉴于双方均未提供证据证明涉案专利权在终止失效时的市场价格，综合考虑到涉案专利为发明专利、涉案专利权在授权公告当年即被终止失效、南某水产研究所和宇某公司过错严重、德某公司历时较长的维权情况等，即便考虑德某公司也存在一定过失，原审判决确定的经济损失及合理费用共计50万元的赔偿也并无不妥。

This casebook of judgments by the Supreme People's Court of the People's Republic of China in the WIPO Collection of Leading Judgments on Intellectual Property Rights series covers decisions rendered between 2019 and 2023.

The WIPO Collection gives the global intellectual property community access to landmark judgments from some of the most dynamic litigation jurisdictions of the world, through a succession of volumes that illustrate intellectual property adjudication approaches and trends by jurisdiction or by theme.

这本中华人民共和国最高人民法院案例集是《世界知识产权组织知识产权典型案例集》中的一卷，涵盖2019年至2023年期间作出的裁判。

产权组织案例集将先后推出多卷，按司法管辖区或主题阐明知识产权案件的审判方法和趋势，使全球知识产权界了解世界上最活跃的诉讼管辖区作出的具有里程碑意义的判决。